FIRST DIVISION

[G.R. No. 5270. January 15, 1910.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **H. N. BULL**, *defendant-appellant*.

D E C I S I O N

ELLIOTT, *J* :

The appellant was convicted in the Court of First Instance of a violation of section 1 of Act No. 55, as amended by section 1 of Act No. 275, and from the judgment entered thereon appealed to this court, where under proper assignments of error he contends: (1) that the complaint does not state facts sufficient to confer jurisdiction upon the court; (2) that under the evidence the trial court was without jurisdiction to hear and determine the case; (3) that Act No. 55 as amended is in violation of certain provisions of the Constitution of the United States, and void as applied to the facts of this case; and (4) that the evidence is insufficient to support the conviction.

The information alleges:

> "That on and for many months prior to the 2d day of December, 1908, the said H. N. Bull was then and there master of a steam sailing vessel known as the steamship *Standard*, which vessel was then and there engaged in carrying and transporting cattle, carabaos, and other animals from a foreign port, to wit, the port of Ampieng, Formosa, to the port and city of Manila, Philippine Islands; that the said accused H. N. Bull, while master of said vessel, as aforesaid, on or about the 2d day of December, 1908, did then and there willfully, unlawfully, and wrongfully carry, transport, and bring into the port and city of Manila, aboard said vessel, from the port of Ampieng, Formosa, six hundred and seventy-seven (677) head of cattle and carabaos, without providing suitable means for securing said animals while in transit, so as to avoid cruelty and unnecessary suffering to the said animals, in this, to wit, that the said H. N. Bull, master, as aforesaid, did then and there fail to provide stalls for said animals so in transit and suitable means for tying and securing said animals in a proper manner, and did then and there cause some of said animals to be tied by means of rings passed through their noses, and allow and permit others to be transported loose in the hold and on the deck of said vessel without being tied or secured in stalls, and all without bedding; that by reason of the aforesaid neglect and failure of the accused to provide suitable means for securing said animals while so in transit, the noses of some of said animals were cruelly torn, and many of said animals were tossed about upon the decks and hold of said vessel, and cruelly wounded, bruised, and killed.
>
> "All contrary to the provisions of Acts No. 55 and No. 275 of the Philippine Commission."

Section 1 of Act No. 55, which went into effect January 1, 1901, provides that —

> "The owners or masters of steam, sailing, or other vessels, carrying or transporting cattle, sheep, swine, or other animals, from one port in the

Philippine Islands to another, or from any foreign port to any port within the Philippine Islands, shall carry with them, upon the vessels carrying such animals, sufficient forage and fresh water to provide for the suitable sustenance of such animals during the ordinary period occupied by the vessel in passage from the port of shipment to the port of debarkation, and shall cause such animals to be provided with adequate forage and fresh water at least once in every twenty-four hours from the time that the animals are embarked to the time of their final debarkation."

By Act No. 275, enacted October 23, 1901, Act No. 55 was amended by adding to section 1 thereof the following:

"The owners or masters of steam, sailing, or other vessels, carrying or transporting cattle, sheep, swine, or other animals from one port in the Philippine Islands to another, or from any foreign port to any port within the Philippine Islands, shall provide suitable means for securing such animals while in transit so as to avoid all cruelty and unnecessary suffering to the animals, and suitable and proper facilities for loading and unloading cattle or other animals upon or from vessels upon which they are transported, without cruelty or unnecessary suffering. It is hereby made unlawful to load or unload cattle upon of from vessels by swinging them over the side by means of ropes or chains attached to the horns."

Section 3 of Act No. 55 provides that —

"Any owner or master of a vessel, or custodian of such animals, who knowingly and willfully fails to comply with the provisions of section one, shall, for every such failure, be liable to pay a penalty of not less than one hundred dollars nor more than five hundred dollars, United States money, for each offense. Prosecutions under this Act may be instituted in any Court of First Instance or any provost court organized in the province or port in which such animals are disembarked."

1. It is contended that the information is insufficient because it does not state that the court was sitting at a port where the cattle were disembarked, or that the offense was committed on board a vessel registered and licensed under the laws of the Philippine Islands.

Act No. 55 confers jurisdiction over the offense created thereby on Courts of First Instance or any provost court organized in the province or port in which such animals are disembarked, and there is nothing inconsistent therewith in Act No. 136, which provides generally for the organization of the courts of the Philippine Islands. Act No. 400 merely extends the general jurisdiction of the courts over certain offenses committed on the high seas, or beyond the jurisdiction of any country, or within any of the waters of the Philippine Islands on board a ship or water craft of any kind registered or licensed in the Philippine Islands, in accordance with the laws thereof. (U. S. vs. Fowler, 1 Phil. Rep., 614.) This jurisdiction may be exercised by the Court of First Instance in any province into which such ship or water craft upon which the offense or crime was committed shall come after the commission thereof. Had this offense been committed upon a ship carrying a Philippine registry, there could have been no doubt of the jurisdiction of the court, because it is expressly conferred, and the Act is in accordance with well recognized and established public law. But the *Standard* was a Norwegian vessel, and it is conceded that it was not registered or licensed in the Philippine Islands under the laws thereof. We have then the question whether the court had jurisdiction over an offense of this character, committed on board a foreign ship by

the master thereof, when the neglect and omission which constitutes the offense continued during the time the ship was within the territorial waters of the United States. No court of the Philippine Islands had jurisdiction over an offense or crime committed on the high seas or within the territorial waters of any other country, but when she came within 3 miles of a line drawn from the headlands which embrace the entrance to Manila Bay, she was within territorial waters, and a new set of principles became applicable. (Wheaton, Int. Law (Dana ed.), p. 255, note 105; Bonfils, Le Droit Int., sec. 490 *et seq.*; Latour, La Mer Ter., ch. 1.) The ship and her crew were then subject to the jurisdiction of the territorial sovereign subject to such limitations as have been conceded by that sovereignty through the proper political agency. This offense was committed within territorial waters. From the line which determines these waters the *Standard* must have traveled at least 25 miles before she came to anchor. During that part of her voyage the violation of the statute continued, and as far as the jurisdiction of the court is concerned, it is immaterial that the same conditions may have existed while the vessel was on the high seas. The offense, assuming that it originated at the port of departure in Formosa, was a continuing one, and every element necessary to constitute it existed during the voyage across the territorial waters. The completed forbidden act was done within American waters, and the court therefore had jurisdiction over the subject-matter of the offense and the person of the offender.

The offense then was thus committed within the territorial jurisdiction of the court, but the objection to the jurisdiction raises the further question whether that jurisdiction is restricted by the fact of the nationality of the ship. Every state has complete control and jurisdiction over its territorial waters. According to strict legal right, even public vessels may not enter the ports of a friendly power without permission, but it is now conceded that in the absence of a prohibition such ports are considered as open to the public ships of all friendly powers. The exemption of such vessels from local jurisdiction while within such waters was not established until within comparatively recent times. In 1794, Attorney-General Bradford, and in 1796 Attorney-General Lee, rendered opinions to the effect that "the laws of nations invest the commander of a foreign ship of war with no exemption from the jurisdiction of the country into which he comes." (1, Op. U. S. Attys. Gen., 46, 87.) This theory was also supported by Lord Stowell in an opinion given by him to the British Government as late as 1820. In the leading case of The Schooner *Exchange vs.* McFadden (7 Cranch (U. S.), 116, 144), Chief Justice Marshall said that the implied license under which such vessels enter a friendly port may reasonably be construed as "containing exemption from jurisdiction of the sovereign within whose territory she claims the rights of hospitality." The principle was accepted by the Geneva Arbitration Tribunal, which announced that "the privilege of exterritoriality accorded to vessels of war has been admitted in the law of nations; not as an absolute right, but solely as a proceeding founded on the principle of courtesy and mutual deference between nations." (2 Moore, Int. Law Dig., secs. 252 and 254; Hall, Int. Law, sec. 55; Taylor, Int. Law, sec. 256; Ortolan, Dip. de la Mer, 2. C. X.)

Such vessels are therefore permitted during times of peace to come and go freely. Local officials exercise but little control over their actions, and offenses committed by their crews are justiciable by their own officers acting under the laws to which they primarily owe allegiance. This limitation upon the general principle of territorial sovereignty is based entirely upon comity and convenience, and finds its justification in the fact that experience shows that such vessels are generally careful to respect local laws and regulations which are essential to the health, order, and well-being of the port. But comity and convenience does not require the extension of the

same degree of exemption to merchant vessels. There are two well-defined theories as to the extent of the immunities ordinarily granted to them. According to the French theory and practice, matters happening on board a merchant ship which do not concern the tranquillity of the port or persons foreign to the crew, are justiciable only by the courts of the country to which the vessel belongs. The French courts therefore claim exclusive jurisdiction over crimes committed on board French merchant vessels in foreign ports by one member of the crew against another. (See Bonfils, Le Droit Int. (quat. ed.), secs. 624-628; Martens, Le Droit Int., tome 2, pp. 338, 339; Ortolan, Dip. de la Mer, tit. 1, p. 292; Masse, Droit Int., tome 2, p. 63.) Such jurisdiction has never been admitted or claimed by Great Britain as a right, although she has frequently conceded it by treaties. (Halleck, Int. Law (Baker's ed.), vol. 1, 231; British Territorial Waters Act, 1878.) Writers who consider exterritoriality as a fact instead of a theory have sought to restrict local jurisdiction, but Hall, who is doubtless the leading English authority, says that —

> "It is admitted by the most thoroughgoing asserters of the territoriality of merchant vessels that so soon as the latter enter the ports of a foreign state they become subject to the local jurisdiction on all points in which the interests of the country are touched." (Hall, Int. Law, p. 263.)

The United States has adhered consistently to the view that when a merchant vessel enters a foreign port it is subject to the jurisdiction of the local authorities, unless the local sovereignty has by act of acquiescence or through treaty arrangements consented to waive a portion of such jurisdiction. (15 Op. Attys. Gen., U. S., 178; 2 Moore, Int. Law Dig., sec. 204; article by Dean Gregory, Mich. Law Review, Vol. II, No. 5.) Chief Justice Marshall, in the case of The *Exchange*, said that —

> "When merchant vessels enter for the purposes of trade, it would be obviously inconvenient and dangerous to society and would subject the laws to continual infraction and the government to degradation if such individual merchants did not owe temporary and local allegiance, and were not amenable to the jurisdiction of the country."

The Supreme Court of the United States has recently said that the merchant vessels of one country visiting the ports of another for the purpose of trade, subject themselves to the laws which govern the ports they visit, so long as they remain; and this as well in war as in peace, unless otherwise provided by treaty. (U. S. *vs.* Diekelman, c92 U. S., 520-525.)

Certain limitations upon the jurisdiction of the local courts are imposed by article 13 of the treaty of commerce and navigation between Sweden and Norway and the United States, of July 4, 1827, which concedes to the consuls, vice-consuls, or consular agents of each country "the right to sit as judges and arbitrators in such differences as may arise between the captains and crews of the vessels belonging to the nation whose interests are committed to their charge, without the interference of the local authorities, unless the conduct of the crews or of the captains should disturb the order or tranquillity of the country." (Comp. of Treaties in Force, 1904, p. 754.) This exception applies to controversies between the members of the ship's company, and particularly to disputes regarding wages. (2 Moore, Int. Law Dig., sec. 206, p. 318; Tellefsen *vs.* Fee, 168 Mass., 188.) The order and tranquillity of the country are affected by many events which do not amount to a riot or general public disturbance. Thus an assault by one member of the crew upon another, committed upon the ship, of which the public may have no knowledge whatever, is not by this treaty withdrawn from the cognizance of the local authorities.

In 1876 the mates of the Swedish bark *Frederike and Carolina* engaged in a "quarrel" on board the vessel in the port of Galvestion, Texas. They were prosecuted before a justice of the peace, but the United States district attorney was instructed by the Government to take necessary steps to have the proceedings dismissed, and the aid of the governor of Texas was invoked with the view to "guard against a repetition of similar proceedings." (Mr. Fish, Secretary of State, to Mr. Grip, Swedish and Norwegian charge, May 16, 1876; Moore, Int. Law Dig.) It does not appear that this "quarrel" was of such a nature as to amount to a breach of the criminal laws of Texas, but when in 1879 the mate of the Norwegian bark *Livingston* was prosecuted in the courts of Philadelphia Country for an assault and battery committed on board the ship while lying in the port of Philadelphia, it was held that there was nothing in the treaty which deprived the local courts of jurisdiction. (Commonwealth vs. Luckness, 14 Phila. (Pa.), 363.) Representations were made through diplomatic channels to the State Department, and on July 30, 1880, Mr. Evarts, Secretary of State, wrote to Count Lewenhaupt, the Swedish and Norwegian minister, as follows:

> "I have the honor to state that I have given the matter careful consideration in connection with the views and suggestion of your note and the provisions of the thirteenth article of the treaty of 1827 between the United States and Sweden and Norway. The stipulations contained in the last clause of that article . . . are those under which it is contended by you that jurisdiction is conferred on the consular officers, not only in regard to such differences of a civil nature growing out of the contract of engagement of the seamen, but also as to disposing of controversies resulting from personal violence involving offenses for which the party may be held amenable under the local criminal law.
>
> "This Government does not view the article in question as susceptible of such broad interpretation. The jurisdiction conferred upon the consuls in conceived to be limited to their right to sit as judges or abitrators *in such differences as may arise between captains and crews of the vessels, where such differences do not involve on the part of the captain or crew a disturbance of the order or tranquillity of the country.* When, however, a complaint is made to a local magistrate, either by the captain or one or more of the crew of the vessel, involving the disturbance *of the order* or tranquillity of the country, it is competent for such magistrate to take cognizance of the matter in furtherance of the local laws, and under such circumstances in the United States it becomes a public duty which the judge or magistrate is not at liberty voluntarily to forego. In all such cases it must necessarily be left to the local judicial authorities whether the procedure shall take place in the United States or in Sweden to determine if in fact there has been such disturbance of the local order and tranquillity, and if the complaint is supported by such proof as results in the conviction of the party accused, to visit upon the offenders such punishment as may be defined against the offense by the municipal law of the place." (Moore, Int. Law Dig., vol. 2, p. 315.)

The treaty does not therefore deprive the local courts of jurisdiction over offenses committed on board a merchant vessel by one member of the crew against another which amount to a disturbance of the order or tranquillity of the country, and a fair and reasonable construction of the language requires us to hold that any violation of criminal laws disturbs the order or tranquillity of the country. The offense with which the appellant is charged had nothing to do with any difference between the captain and the crew. It was a violation by the master of the criminal law of the country into who port he came. We thus find that neither by reason of the nationality of the vessel, the place of

the commission of the offense, or the prohibitions of any treaty or general principle of public law, are the courts of the Philippine Islands deprived of jurisdiction over the offense charged in the information in this case.

It is further contended that the complaint is defective because it does not allege that the animals were disembarked at the port of Manila, an allegation which it is claimed is essential to the jurisdiction of the court sitting at that port. To hold with the appellant upon this issue would be to construe the language of the complaint very strictly against the Government. The disembarkation of the animals is not necessary in order to constitute the completed offense, and a reasonable construction of the language of the statute confers jurisdiction upon the court sitting at the port into which the animals are brought. They are then within the territorial jurisdiction of the court, and the mere fact of their disembarkation is immaterial so far as jurisdiction is concerned. This might be different if the disembarkation of the animals constituted a constitutional element in the offense, but it does not.

It is also contended that the information is insufficient because it fails to allege that the defendant *knowingly* and *willfully* failed to provide suitable means for securing said animals while in transit, so as to avoid cruelty and unnecessary suffering. The allegation of the complaint that the act was committed willfully includes the allegation that it was committed knowingly. As said in Wood house *vs.* Rio Grande R.R. Company (67 Texas, 416), "the word 'willfully' carries the idea, when used in connection with an act forbidden by law, that the act must be done knowingly or intentionally; that, with knowledge, the will consented to, designed, and directed the act." So in Wong *vs.* City of Astoria (13 Oregon, 538), it was said: "The first one is that the complaint did not show, in the words of the ordinance, that the appellant 'knowingly' did the act complained of. This point, I think, was fully answered by the respondents counsel-that the words 'willfully' and 'knowingly ' conveyed the same meaning. To 'willfully' do an act implies that it was done by design-don for a set purpose; and I think that it would necessarily follow that it was 'knowingly' done." To the same effect is Johnson *vs.* The People (94 III., 505), which seems to be on all fours with the present case.

The evidence shows not only that the defendant's acts were knowingly done, but his defense rests upon the assertion that "according" to his experience, the system of carrying cattle loose upon the decks and in the hold is preferable and more secure to the life and comfort of the animals." It was conclusively proven that what was done was done knowingly and intentionally.

In charging an offense under section 6 of General Orders, No. 58, paragraph 3, it is only necessary to state the act or omission complained of as constituting a crime or public offense in ordinary and concise language, without repetition. *It need not necessarily be in the words of the statute,* but it must be in such form as to enable a person of common understanding to know what is intended and the court to pronounce judgment according to right. A complaint which compile with this requirement is good. (U.S. vs. Sarabia, 4 Phil. Rep., 566.)

The Act, which is in the English language, imposes upon the master of a vessel the duty to "provide suitable means for securing such animals while in transit, so as to avoid all cruelty and unnecessary suffering to the animals." The allegation of the complaint as it reads in English is that the defendant willfully, unlawfully, and wrongfully carried the cattle "without providing suitable means for securing said animals while in transit, so as to avoid cruelty and unnecessary suffering to the said animals in this . . . that by reason of the aforesaid neglect and failure of the accused to provide suitable

means for securing said animals while so in transit, the noses of some of said animals were cruelly torn, and many of said animals were tossed about upon the decks and hold of said vessel, and cruelly wounded, bruised, and killed."

The appellant contends that he language of the Spanish text of the information does not charge him with failure to provide "sufficient" and "adequate" means. The words used are "*medios suficientes*" and "*medios adecuados.*" In view of the fact that the original complaint was prepared in English, and that the word "suitable" is translatable by the words "*adecuado*," "*suficiente*," and "*conveniente*," according to the context and circumstances, we determine this point against the appellant, particularly in view of the fact that the objection was not made in the court below, and that the evidence clearly shows a failure to provide "suitable means for the protection of the animals."

2. The appellant's argument against the constitutionality of Act No. 55 and the amendment thereto seems to rest upon a fundamentally erroneous conception of the constitutional law of these Islands. The statute penalizes acts and omissions incidental to the transportation of live stock between foreign ports and ports of the Philippine Islands, and had a similar statute regulating commerce with its ports been enacted by the legislature of one of the States of the Union, it would doubtless have been in violation of Article I, section 3, of the Constitution of the United States. (Stubbs *vs.* People (Colo.), 11 L.R.A., N.S., 1071.)

But the Philippine Islands is not a State, and its relation to the United States is controlled by constitutional principles different from those which apply to States of the Union. The importance of the question thus presented requires a statement of the principles which govern those relations, and consideration of the nature and extent of the legislative power of the Philippine Commission and the Legislature of the Philippines. After much discussion and considerable diversity of opinion certain applicable constitutional doctrines are established.

The Constitution confers upon the United States the express power to make war and treaties, and it has the power possessed by all nations to acquire territory by conquest or treaty. Territory thus acquired belongs to the United States, and to guard against the possibility of the power of Congress to provide for its government being questioned, the framers of the Constitution provided in express terms that Congress should have the power "to dispose of and make all needful rules and regulations respecting territory and other property belonging to the United States." (Art. IV. sec. 3, par. 3.) Upon the acquisition of territory by the United States, and until it is formally incorporated into the Union, the duty of providing a government therefor devolves upon Congress. It may govern the territory by its direct acts, or it may create a local government, and delegate thereto the ordinary powers required for local government. (Binns *vs.* U.S., 194 U.S., 486.) This has been the usual procedure. Congress has provided such governments for territories which were within the Union and for newly acquired territory not yet incorporated therein. It has been customary to organize a government with the ordinary separation of powers into executive, legislative, and judicial, and to prescribe in an organic act certain general conditions in accordance with which the local government should act. The organic act thus became the constitution of the government of the territory which had not been formally incorporated into the Union, and the validity of legislation enacted by the local legislature was determined by its conformity with the requirements of such organic act. (National Bank *vs.* Yankton, 11 Otto (U.S.), 129.) To the legislative body of the local government Congress has

delegated that portion of legislative power which in its wisdom it deemed necessary for the government of the territory, reserving, however, the right to annual the action of the local legislature and itself legislate directly for the territory. This power has been exercised during the entire period of the history of the United States. The right of Congress to delegate such legislative power can no longer be seriously questioned. (Dorr *vs.* U.S., 195 U.S., 138; U.S. *vs.* Heinszen, 206 U.S., 370, 385.)

The Constitution of the United States does not by its own force operate within such territory, although the liberality of Congress in legislating the Constitution into contiguous territory tended to create an impression upon the minds of many people that it went there by its own force. (Downes *vs.* Bidwell, 182 U.S., 289.) In legislating with reference to this territory, the power of Congress is limited only by those prohibitions of the Constitution which go to the very root of its power to act at all, irrespective of time or place. In all other respects it is plenary. (De Lima *vs.* Bidwell, 182 U.S., 1; Downes *vs.* Bidwell, 182 U.S., 244; Hawaii *vs.* Mankichi, 190 U.S., 197; Dorr *vs.* U.S., 195 U.S., 138; Rassmussen *vs.* U.S., 197 U.S., 516.)

This power has been exercised by Congress throughout the whole history of the United States, and legislation founded on the theory was enacted long prior to the acquisition of the present Insular possessions. Section 1891 of the Revised Statutes of 1878 provides that "The Constitution and all laws of the United States which are not locally inapplicable shall have the same force and effect within all the organized territories, and in every Territory hereafter organized, as elsewhere within the United States." When Congress organized a civil government for the Philippines, it expressly that this section of the Revised Statutes should not apply to the Philippine Islands, (Sec. 1, Act of 1902.)

In providing for the government of the territory which was acquired by the United States as a result of the war with Spain, the executive and legislative authorities have consistently proceeded in conformity with the principles above stated. The city of Manila was surrendered to the United States on August 13, 1898, and the military commander was directed to hold the city, bay, and harbor, pending the conclusion of a peace which should determine the control, disposition, and government of the Islands. The duty then devolved upon the American authorities to preserve peace and protect persons and property within the occupied territory. Provision therefor was made by proper orders, and on August 26 General Merritt assumed the duties of military governor. The treaty of peace was signed December 10, 1898. On the 22d of December, 1898, the President announced that the destruction of the Spanish fleet and the surrender of the city had practically effected the conquest of the Philippine Islands and the suspension of the Spanish sovereignty therein, and that by the treaty of peace the future control, disposition, and government of the Islands had been ceded to the United States. During the period of strict military occupation, before the treaty of peace was ratified, and the interim thereafter, until Congress acted (Santiago *vs.* Nogueras, 214 U.S., 260), the territory was governed under the military authority of the President as commander in chief. Long before Congress took any action, the President organized a civil government, which, however, had its legal justification, like the purely military government which it gradually superseded, in the war power. The military power of the President embraced legislative, executive, and judicial functions, all of which he might exercise personally, or through such military or civil agents as he chose to select. As stated by Secretary Root in his report for 1901—

"The military power in exercise in a territory under military occupation

includes executive, legislative, and judicial authority. It not infrequently happens that in a single order of a military commander can be found the exercise of all three of these different powers-the exercise of the legislative powers by provisions prescribing a rule of action; of judicial power by determinations of right; and of executive power by the enforcement of the rules prescribed and the rights determined."

President Mckinley desired to transform military into civil government as rapidly as conditions would permit. After full investigation, the organization of civil government was initiated by the appointment of a commission to which civil authority was to be gradually transferred. On September 1, 1900, the authority to exercise, subject to the approval of the President, "that part of the military power of the President in the Philippine Islands which is legislative in its character" was transferred from the military government to the Commission, to be exercised under such rules and regulations as should be prescribed by the Secretary of War, until such time as complete civil government should be established, or Congress otherwise provided. The legislative power thus conferred upon the Commission was declared to include "the making of rules and orders having the effect of law for the raising of revenue by taxes, customs duties, and imposts; the appropriation and expenditure of public funds of the Islands; the establishment of an educational system throughout the Islands; the establishment of a system to secure an efficient civil service; the organization and establishment of courts; the organization and establishment of municipal and department governments, and all other matters of a civil nature which the military governor is now competent to provide by rules or orders of a legislative character." This grant of legislative power to the Commission was to be exercised in conformity with certain declared general principles, and subject to certain specific restrictions for the protection of individual rights. The Commission were to bear in mind that the government to be instituted was "not for our satisfaction or for the expression of our theoretical views, but for the happiness, peace, and prosperity of the people of the Philippine Islands, and the measures adopted should be made to conform to their customs, their habits, and even their prejudices, to the fullest extent consistent with the accomplishment of the indispensable requisites of just and effective government." The specific restrictions upon legislative power were found in the declarations that "no person shall be deprived of life, liberty, or property without due process of law; that private property shall not be taken for public use without just compensation; that in all criminal prosecutions the accused shall enjoy the right to a speedy and public trial, to be informed of the nature and cause of the accusation, to be confronted with the witnesses against him, to have compulsory process for obtaining witnesses in his favor, and to have the assistance of counsel for his defense; that excessive bail shall not be required, nor excursive fines imposed, nor cruel and unusual punishment inflicted; that no person shall be put twice in jeopardy for the same offense or be compelled in any criminal case to be a witness against himself; that the right to be secure against unreasonable searches and seizures shall not be violated; that neither slavery nor involuntary servitude shall exist except as a punishment for crime; that no bill of attainder or expost facto law shall be passed; that no law shall be passed abridging the freedom of speech or of the press or of the rights of the people to peaceably assemble and petition the Government for a redress of grievances; that no law shall be made respecting an establishment of religion or prohibiting the free exercise thereof, and that the free exercise and enjoyment of religious profession and worship without discrimination or preference shall forever be allowed."

To prevent any question as to the legality of these proceedings being raised, the

Spooner amendment to the Army Appropriation Bill passed March 2, 1901, provided that "all military, civil, and judicial powers necessary to govern the Philippine Islands . . . shall until otherwise provided by Congress be vested in such person and persons, and shall be exercised in such manner, as the President of the United States shall direct, for the establishment of civil government, and for maintaining and protecting the inhabitants of said Islands in the free enjoyment of their liberty, property, and religion," Thereafter, on July 4, 1901, the office of Civil Governor was created, and the executive authority, which had been exercised previously by the military governor, was transferred to that official. The government thus created by virtue of the authority of the President as Commander in Chief of the Army and Navy continued to administer the affairs of the Islands under the direction of the President until by the Act of July 1, 1902, Congress assumed control of the situation by the enactment of a law which, in connection with the instructions of April 7, 1900, constitutes the organic law of the Philippine Islands.

The Act of July 1, 1902, made no substantial changes in the form of government which the President had erected. Congress adopted the system which was in operation, and approved the action of the President in organizing the government. Substantially all the limitations which had been imposed on the legislative power by the President's instructions were included in the law, Congress thus extending to the Islands by legislative act not the Constitution, but all its provisions for the protection of the rights and privileges of individuals which were appropriate under the conditions. The action of the President in creating the Commission with designated powers of government, in creating the office of the Governor-General and Vice-Governor-General, and through the Commission establishing certain executive departments, was expressly approved and ratified. Subsequently the action of the President in imposing a tariff before and after the ratification of the treaty of peace was also ratified and approved by Congress. (Act of March 8, 1902; Act of July 1, 1902; U.S. *vs.* Heinszen, 206 U.S., 370; Lincoln *vs.* U.S., 197 U.S., 419.) Until otherwise provided by law the Islands were to continue to be governed "as thereby and herein provided." In the future the enacting clause of all statutes should read "By authority of the United States" instead of "By the authority of the President." In the course of time the legislative authority of the Commission in all parts of the Islands not inhabited by Moros or non-Christian tribes was to be transferred to a legislature consisting of two houses-the Philippine Commission and the Philippine Assembly. The government of the Islands was thus assumed by Congress under its power to govern newly acquired territory not incorporated into the United States.

This Government of the Philippine Islands is not a State or a Territory, although its form and organization somewhat resembles that of both. It stands outside of the constitutional relation which unites the States and Territories into the Union. *The authority for its creation and maintenance* is derived from the Constitution of the United States, which, however, operates on the President and Congress, and not directly on the Philippine Government. It is the creation of the United States, acting through the President and Congress, both deriving power from the same source, but from different parts thereof. For its powers and the limitations thereon the Government of the Philippines looked to the orders of the President before Congress acted and the Acts of Congress after it assumed control. Its organic laws are derived from the formally and legally expressed will of the President and Congress, instead of the popular sovereign constituency which lies back of American constitutions. The power to legislate upon any subject relating to the Philippines is primarily in Congress, and when it exercises such power its act is from the viewpoint of the Philippines the legal equivalent of an amendment of a constitution in the United States.

Within the limits of its authority the Government of the Philippines is a complete governmental organism with executive, legislative, and judicial departments exercising the functions commonly assigned to such departments. The separation of powers is as complete as in most governments. In neither Federal nor State governments is this separation such as is implied in the abstract statement of the doctrine. For instance, in the Federal Government the Senate exercises executive powers, and the President to some extent controls legislation through the veto power. In a State the governor is not a member of the legislative body, but the veto power enables him to exercise much control over legislation. The Governor-General, the head of the executive department in the Philippine Government, is a member of the Philippine Commission, but as executive he has no veto power. The President and Congress framed the government on the model with which Americans are familiar, and which has proven best adapted for the advancement of the public interests and the protection of individual rights and privileges.

In instituting this form of government the intention must have been to adopt the general constitutional doctrines which are inherent in the system. Hence, under it the Legislature must enact laws subject to the limitations of the organic laws, as Congress must act under the national Constitution, and the States under the national and state constitutions. The executive must execute such laws as are constitutionally enacted. The judiciary, as in all governments operating under written constitutions, must determine the validity of legislature enactments, as well as the legality of all private and official acts. In performing these functions it acts with the same independence as the Federal and State judiciaries in the United States. Under no other constitutional theory could there be that government of laws and not of men which is essential for the protection of rights under a free and orderly government.

Such being the constitutional theory of the Government of the Philippine Islands, it is apparent that the courts must consider the question of the validity of an act of the Philippine Commission or the Philippine Legislature, as a State court considers an act of the State legislature. The Federal Government exercises such powers only as are expressly or impliedly granted to it by the Constitution of the United States, while the States exercise all powers which have not been granted to the central governments. The former operates under grants, the latter subject to restrictions. The validity of an Act of Congress depends upon whether the Constitution of the United States contains a grant of express or implied authority to enact it. An act of a State legislature is valid unless the Federal or State constitution expressly or impliedly prohibits its inaction. An act of the legislative authority of the Philippine Government which has not been expressly disapproved by Congress is valid unless its subject-matter has been covered by congressional legislation, or its enactment forbidden by some provision of the organic laws.

The legislative power of the Government of the Philippines is granted in general terms subject to specific limitations. The general grant is not alone of power to legislate on certain subjects, but to exercise the legislative power subject to the restrictions stated. It is true that specific authority is conferred upon the Philippine Government relative to certain subjects of legislation, and that Congress has itself legislated upon certain other subjects. These, however, should be viewed simply as enactments on matters wherein Congress was fully informed and ready to act, and not as implying any restriction upon the local legislative authority in other matters. (See Opinion of Atty. Gen. of U.S., April 16, 1908.)

The fact that Congress reserved the power to annul specific acts of legislation by

the Government of the Philippines tends strongly to confirm the view that for purposes of construction the Government of the Philippines should be regarded as one of general instead of enumerated legislative powers. The situation was unusual. The new government was to operate far from the source of its authority. To relieve Congress from the necessity of legislating with reference to details, it was thought better to grant general legislative power to the new government, subject to broad and easily understood prohibitions, and reserve to Congress the power to annul its acts if they met with disapproval. It was therefore provided "that all laws passed by the Government of the Philippine Islands shall be reported to Congress, which hereby reserves the power and authority to annul the same." (Act of Congress, July 1, 1902, sec. 86.) This provision does not suspend the acts of the Legislature of the Philippines until approved by Congress, or when approved, expressly or by acquiescence, make them the laws of Congress. They are valid acts of the Government of the Philippine Islands until annulled. (Miners Bank *vs.* Iowa, 12 How. (U.S.), 1.)

In order to determine the validity of Act No. 55 we must then ascertain whether the Legislature has been expressly or by implication forbidden to enact it. Section 3, Article IV, of the Constitution of the United States operates only upon the States of the Union. It has no application to the Government of the Philippine Islands. The power to regulate foreign commerce is vested in Congress, and by virtue of its power to govern the territory belonging to the United States, it may regulate foreign commerce with such territory. It may do this directly, or indirectly through a legislative body created by it, to which its power in this respect is delegated. Congress has by direct legislation determined the duties which shall be paid upon goods imported into the Philippines, and it has expressly authorized the Government of the Philippines to provide for the needs of commerce by improving harbors and navigable waters. A few other specific provisions relating to foreign commerce may be found in the Acts of Congress, but its general regulation is left to the Government of the Philippines, subject to the reserved power of Congress to annul such legislation as does not meet with its approval. The express limitations upon the power of the Commission and Legislature to legislate do not affect the authority with respect to the regulation of commerce with foreign countries. Act No. 55 was enacted before Congress took over the control of the Islands, and this act was amended by Act No. 275 after the Spooner amendment of March 2, 1901, was passed. The military government, and the civil government instituted by the President, had the power, whether it be called legislative or administrative, to regulate commerce between foreign nations and the ports of the territory. (Cross *vs.* Harrison, 16 How. (U.S.), 164, 190; Hamilton *vs.* Dillin, 21 Wall. (U.S.), 73, 87.) This Act has remained in force since its enactment without annulment or other action by Congress, and must be presumed to have met with its approval. We are therefore satisfied that the Commission had, and the Legislature now has, full constitutional power to enact laws for the regulation of commerce between foreign countries and the ports of the Philippine Islands, and that Act No. 55, as amended by Act No. 275, is valid.

3. Whether a certain method of handling cattle is suitable within the meaning of the Act can not be left to the judgment of the master of the ship. It is a question which must be determined by the court from the evidence. On December 2, 1908, the defendant Bull brought into and disembarked in the port and city of Manila certain cattle, which came from the port of Ampieng, Formosa, without providing suitable means for securing said animals while in transit, so as to avoid cruelty and unnecessary suffering to said animals, contrary to the provisions of section 1 of Act No. 55, as amended by section 1 of Act No. 275. The trial court found the following facts, all of

which are fully sustained by the evidence: amended by section 1 of Act No. 275. The trial court found the following facts, all of which are fully sustained by the evidence: amended by section 1 of Act No. 275. The trial court found the following facts, all of which are fully sustained by the evidence:

> "That the defendant, H.N. Bull, as captain and master of the Norwegian steamer known as the *Standard*, for a period of six months or thereabouts prior to the 2d day of December, 1908, was engaged in the transportation of cattle and carabaos from Chinese and Japanese ports to and into the city of Manila, Philippine Islands.
>
> "That on the 2d day of December, 1908, the defendant, as such master and captain as aforesaid, brought into the city of Manila, aboard said ship, a large number of cattle, which ship was anchored, under the directions of the said defendant, behind the breakwaters in front of the city of Manila, in Manila Bay, and within the jurisdiction of this court; an that fifteen of said cattle then and there had broken legs and three others of said cattle were dead, having broken legs; and also that said cattle were transported and carried upon said ship as aforesaid by the defendant, upon the deck and in the hold of said ship, without suitable precaution and care for the transportation of said animals, and to avoid danger and risk to their lives and security; and further that said cattle were so transported aboard said ship by the defendant and brought into the said bay, and into the city of Manila, without any provision being made whatever upon said decks of said ship and in the hold thereof to maintain said cattle in a suitable condition and position for such transportation.
>
> "That a suitable and practicable manner in which to transport cattle aboard steamships coming into Manila Bay and unloading in the city of Manila is by was of individual stalls for such cattle, providing partitions between the cattle and supports at the front, sides, and rear thereof, and cross cleats upon the floor on which they stand and are transported, so that in case of storms, which are common in this community at sea, such cattle may be able to stand without slipping and pitching and falling, individually or collectively, and to avoid the production of panics and hazard to the animals on account of transportation in the manner in which said animals or cattle were transported in this case. Captain Summerville of the steamship *Taming*, a very intelligent and experienced seaman, has testified, as a witness in behalf of the Government, and stated positively that since the introduction in the ships with which he is acquainted of the stall system for the transportation of animals and cattle he has suffered no loss whatever during the last year. The defendant has testified, as a witness in his own behalf, that according to his experience the system of carrying cattle loose upon the decks and in the hold is preferable and more secure to the life and comfort of the animals, but this theory of the case is not maintainable, either by the proofs or common reason. It can not be urged with logic that, for instance, three hundred cattle without supports for the feet and without stalls or any other protection for them individually can be safely and suitably carried in times of storm upon the decks and in the holds of ships; such a theory is against the law of nature. One animal falling or pitching, if he is united or unprotected, might produce a serious panic and the wounding of half the animals upon the ship if transported in the manner found in this case."

The defendant was found guilty, and sentenced to pay a fine of two hundred and fifty pesos, with subsidiary imprisonment in case of insolvency, and to pay the costs. The sentence and judgment is affirmed. So ordered.

Arellano, C. J., Torres, Johnson, Carson and *Moreland, JJ.,* concur.

THIRD DIVISION

[G.R. No. 193707. December 10, 2014.]

NORMA A. DEL SOCORRO, for and in behalf of her minor child RODERIGO NORJO VAN WILSEM, *petitioner*, ***vs.*** **ERNST JOHAN BRINKMAN VAN WILSEM**, *respondent*.

DECISION

PERALTA, *J* :

Before the Court is a petition for review on *certiorari* under Rule 45 of the Rules of Court seeking to reverse and set aside the Orders [1] dated February 19, 2010 and September 1, 2010, respectively, of the Regional Trial Court of Cebu City *(RTC-Cebu)*, which dismissed the criminal case entitled *People of the Philippines v. Ernst Johan Brinkman Van Wilsem*, docketed as Criminal Case No. CBU-85503, for violation of Republic Act (R.A.) No. 9262, otherwise known as the Anti-Violence Against Women and Their Children Act of 2004.

The following facts are culled from the records:

Petitioner Norma A. Del Socorro and respondent Ernst Johan Brinkman Van Wilsem contracted marriage in Holland on September 25, 1990. [2] On January 19, 1994, they were blessed with a son named Roderigo Norjo Van Wilsem, who at the time of the filing of the instant petition was sixteen (16) years of age. [3]

Unfortunately, their marriage bond ended on July 19, 1995 by virtue of a Divorce Decree issued by the appropriate Court of Holland. [4] At that time, their son was only eighteen (18) months old. [5] Thereafter, petitioner and her son came home to the Philippines. [6]

According to petitioner, respondent made a promise to provide monthly support to their son in the amount of Two Hundred Fifty (250) Guildene (which is equivalent to Php17,500.00 more or less). [7] However, since the arrival of petitioner and her son in the Philippines, respondent never gave support to the son, Roderigo. [8]

Not long thereafter, respondent came to the Philippines and remarried in Pinamungahan, Cebu, and since then, have been residing thereat. [9] Respondent and his new wife established a business known as Paree Catering, located at Barangay Tajao, Municipality of Pinamungahan, Cebu City. [10] To date, all the parties, including their son, Roderigo, are presently living in Cebu City. [11]

On August 28, 2009, petitioner, through her counsel, sent a letter demanding for support from respondent. However, respondent refused to receive the letter. [12]

Because of the foregoing circumstances, petitioner filed a complaint-affidavit with the Provincial Prosecutor of Cebu City against respondent for violation of Section 5, paragraph E (2) of R.A. No. 9262 for the latter's unjust refusal to support his minor child with petitioner. [13] Respondent submitted his counter-affidavit thereto, to which petitioner also submitted her reply-affidavit. [14] Thereafter, the Provincial Prosecutor of Cebu City

issued a Resolution recommending the filing of an information for the crime charged against herein respondent.

The information, which was filed with the RTC-Cebu and raffled to Branch 20 thereof, states that:

> That sometime in the year 1995 and up to the present, more or less, in the Municipality of Minglanilla, Province of Cebu, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, did then and there wilfully, unlawfully and deliberately deprive, refuse and still continue to deprive his son RODERIGO NORJO VAN WILSEM, a fourteen (14) year old minor, of financial support legally due him, resulting in economic abuse to the victim.
>
> CONTRARY TO LAW. [15]

Upon motion and after notice and hearing, the RTC-Cebu issued a Hold Departure Order against respondent. [16] Consequently, respondent was arrested and, subsequently, posted bail. [17]

Petitioner also filed a Motion/Application of Permanent Protection Order to which respondent filed his Opposition. [18] Pending the resolution thereof, respondent was arraigned. [19]

Subsequently, without the RTC-Cebu having resolved the application of the protection order, respondent filed a Motion to Dismiss on the ground of: (1) lack of jurisdiction over the offense charged; and (2) prescription of the crime charged. [20]

On February 19, 2010, the RTC-Cebu issued the herein assailed Order, [21] dismissing the instant criminal case against respondent on the ground that the facts charged in the information do not constitute an offense with respect to the respondent who is an alien, the dispositive part of which states:

> WHEREFORE, the Court finds that the facts charged in the information do not constitute an offense with respect to the accused, he being an alien, and accordingly, orders this case DISMISSED.
>
> The bail bond posted by accused Ernst Johan Brinkman Van Wilsem for his provisional liberty is hereby cancelled *(sic)* and ordered released.
>
> SO ORDERED.
>
> Cebu City, Philippines, February 19, 2010. [22]

Thereafter, petitioner filed her Motion for Reconsideration thereto reiterating respondent's obligation to support their child under Article 195 [23] of the Family Code, thus, failure to do so makes him liable under R.A. No. 9262 which "equally applies to all persons in the Philippines who are obliged to support their minor children regardless of the obligor's nationality." [24]

On September 1, 2010, the lower court issued an Order [25] denying petitioner's Motion for Reconsideration and reiterating its previous ruling. Thus:

> . . . The arguments therein presented are basically a rehash of those advanced earlier in the memorandum of the prosecution. Thus, the court hereby reiterates its ruling that since the accused is a foreign national he is not subject to our national law (The Family Code) in regard to a parent's duty and obligation to give support to his child. Consequently, he cannot be charged of violating R.A.

9262 for his alleged failure to support his child. Unless it is conclusively established that R.A. 9262 applies to a foreigner who fails to give support to his child, notwithstanding that he is not bound by our domestic law which mandates a parent to give such support, it is the considered opinion of the court that no *prima facie* case exists against the accused herein, hence, the case should be dismissed.

WHEREFORE, the motion for reconsideration is hereby DENIED for lack of merit.

SO ORDERED.

Cebu City, Philippines, September 1, 2010.[26]

Hence, the present Petition for Review on *Certiorari* raising the following issues:

1. Whether or not a foreign national has an obligation to support his minor child under Philippine law; and

2. Whether or not a foreign national can be held criminally liable under RA. No. 9262 for his unjustified failure to support his minor child.[27]

At the outset, let it be emphasized that We are taking cognizance of the instant petition despite the fact that the same was directly lodged with the Supreme Court, consistent with the ruling in *Republic v. Sunvar Realty Development Corporation*, [28] which lays down the instances when a ruling of the trial court may be brought on appeal directly to the Supreme Court without violating the doctrine of hierarchy of courts, to wit:

> . . . Nevertheless, the Rules do not prohibit any of the parties from filing a Rule 45 Petition with this Court, **in case only questions of law are raised or involved**. This latter situation was one that petitioners found themselves in when they filed the instant Petition to raise only questions of law.
>
> In *Republic v. Malabanan*, the Court clarified the three modes of appeal from decisions of the RTC, to wit: (1) by ordinary appeal or appeal by writ of error under Rule 41, whereby judgment was rendered in a civil or criminal action by the RTC in the exercise of its original jurisdiction; (2) by a petition for review under Rule 42, whereby judgment was rendered by the RTC in the exercise of its appellate jurisdiction; and (3) by a petition for review on *certiorari* before the Supreme Court under Rule 45. "The first mode of appeal is taken to the [Court of Appeals] on questions of fact or mixed questions of fact and law. The second mode of appeal is brought to the CA on questions of fact, of law, or mixed questions of fact and law. **The third mode of appeal is elevated to the Supreme Court only on questions of law**." (Emphasis supplied)
>
> There is a question of law when the issue does not call for an examination of the probative value of the evidence presented or of the truth or falsehood of the facts being admitted, and the doubt concerns the correct application of law and jurisprudence on the matter. The resolution of the issue must rest solely on what the law provides on the given set of circumstances. [29]

Indeed, the issues submitted to us for resolution involve questions of law — the response thereto concerns the correct application of law and jurisprudence on a given set of facts, *i.e.*, whether or not a foreign national has an obligation to support his minor child under Philippine law; and whether or not he can be held criminally liable under

R.A. No. 9262 for his unjustified failure to do so.

It cannot be negated, moreover, that the instant petition highlights a novel question of law concerning the liability of a foreign national who allegedly commits acts and omissions punishable under special criminal laws, specifically in relation to family rights and duties. The inimitability of the factual milieu of the present case, therefore, deserves a definitive ruling by this Court, which will eventually serve as a guidepost for future cases. Furthermore, dismissing the instant petition and remanding the same to the CA would only waste the time, effort and resources of the courts. Thus, in the present case, considerations of efficiency and economy in the administration of justice should prevail over the observance of the hierarchy of courts.

Now, on the matter of the substantive issues, We find the petition meritorious. Nonetheless, we do not fully agree with petitioner's contentions.

To determine whether or not a person is criminally liable under R.A. No. 9262, it is imperative that the legal obligation to support exists.

Petitioner invokes Article 195 [30] of the Family Code, which provides the parent's obligation to support his child. Petitioner contends that notwithstanding the existence of a divorce decree issued in relation to Article 26 of the Family Code, [31] respondent is not excused from complying with his obligation to support his minor child with petitioner.

On the other hand, respondent contends that there is no sufficient and clear basis presented by petitioner that she, as well as her minor son, are entitled to financial support. [32] Respondent also added that by reason of the Divorce Decree, he is not obligated to petitioner for any financial support. [33]

On this point, we agree with respondent that petitioner cannot rely on Article 195 [34] of the New Civil Code in demanding support from respondent, who is a foreign citizen, since Article 15 [35] of the New Civil Code stresses the principle of nationality. In other words, insofar as Philippine laws are concerned, specifically the provisions of the Family Code on support, the same only applies to Filipino citizens. By analogy, the same principle applies to foreigners such that they are governed by their national law with respect to family rights and duties. [36]

The obligation to give support to a child is a matter that falls under family rights and duties. Since the respondent is a citizen of Holland or the Netherlands, we agree with the RTC-Cebu that he is subject to the laws of his country, not to Philippine law, as to whether he is obliged to give support to his child, as well as the consequences of his failure to do so. [37]

In the case of *Vivo v. Cloribel*, [38] the Court held that —

> Furthermore, ***being still aliens, they are not in position to invoke the provisions of the Civil Code of the Philippines, for that Code cleaves to the principle that family rights and duties are governed by their personal law***, *i.e.*, the laws of the nation to which they belong even when staying in a foreign country (cf. Civil Code, Article 15). [39]

It cannot be gainsaid, therefore, that the respondent is not obliged to support petitioner's son under Article 195 of the Family Code as a consequence of the Divorce Covenant obtained in Holland. **This does not, however, mean that respondent is not obliged to support petitioner's son altogether.**

In international law, the party who wants to have a foreign law applied to a

dispute or case has the burden of proving the foreign law. [40] In the present case, respondent hastily concludes that being a national of the Netherlands, he is governed by such laws on the matter of provision of and capacity to support. [41] While respondent pleaded the laws of the Netherlands in advancing his position that he is not obliged to support his son, he never proved the same.

It is incumbent upon respondent to plead and prove that the national law of the Netherlands does not impose upon the parents the obligation to support their child (either before, during or after the issuance of a divorce decree), because *Llorente v. Court of Appeals*, [42] has already enunciated that:

> True, foreign laws do not prove themselves in our jurisdiction and our courts are not authorized to take judicial notice of them. Like any other fact, ***they must be alleged and proved.*** [43]

In view of respondent's failure to prove the national law of the Netherlands in his favor, the doctrine of processual presumption shall govern. Under this doctrine, if the foreign law involved is not properly pleaded and proved, our courts will presume that the foreign law is the same as our local or domestic or internal law. [44] Thus, since the law of the Netherlands as regards the obligation to support has not been properly pleaded and proved in the instant case, it is presumed to be the same with Philippine law, which enforces the obligation of parents to support their children and penalizing the non-compliance therewith.

Moreover, while in *Pilapil v. Ibay-Somera*, [45] the Court held that a divorce obtained in a foreign land as well as its legal effects may be recognized in the Philippines in view of the nationality principle on the matter of status of persons, the Divorce Covenant presented by respondent does not completely show that he is not liable to give support to his son after the divorce decree was issued. Emphasis is placed on petitioner's allegation that under the second page of the aforesaid covenant, respondent's obligation to support his child is specifically stated, [46] which was not disputed by respondent.

We likewise agree with petitioner that notwithstanding that the national law of respondent states that parents have no obligation to support their children or that such obligation is not punishable by law, said law would still not find applicability, in light of the ruling in *Bank of America, NT and SA v. American Realty Corporation* , [47] to wit:

> In the instant case, assuming *arguendo* that the English Law on the matter were properly pleaded and proved in accordance with Section 24, Rule 132 of the Rules of Court and the jurisprudence laid down in *Yao Kee, et al. vs. Sy-Gonzales*, said foreign law would still not find applicability.
>
> ***Thus, when the foreign law, judgment or contract is contrary to a sound and established public policy of the forum, the said foreign law, judgment or order shall not be applied.***
>
> Additionally, prohibitive laws concerning persons, their acts or property, and those which have for their object public order, public policy and good customs shall not be rendered ineffective by laws or judgments promulgated, or by determinations or conventions agreed upon in a foreign country.
>
> The public policy sought to be protected in the instant case is the principle imbedded in our jurisdiction proscribing the splitting up of a single cause of

action.

Section 4, Rule 2 of the 1997 Rules of Civil Procedure is pertinent —

> If two or more suits are instituted on the basis of the same cause of action, the filing of one or a judgment upon the merits in any one is available as a ground for the dismissal of the others.

Moreover, ***foreign law should not be applied when its application would work undeniable injustice to the citizens or residents of the forum***. To give justice is the most important function of law; hence, a law, or judgment or contract that is obviously unjust negates the fundamental principles of Conflict of Laws. [48]

Applying the foregoing, even if the laws of the Netherlands neither enforce a parent's obligation to support his child nor penalize the non-compliance therewith, such obligation is still duly enforceable in the Philippines because it would be of great injustice to the child to be denied of financial support when the latter is entitled thereto.

We emphasize, however, that as to petitioner herself, respondent is no longer liable to support his former wife, in consonance with the ruling in *San Luis v. San Luis*, [49] to wit:

> As to the effect of the divorce on the Filipino wife, the Court ruled that she should no longer be considered married to the alien spouse. Further, she should not be required to perform her marital duties and obligations. It held:
>
> > **To maintain, as private respondent does, that, under our laws, petitioner has to be considered still married to private respondent and still subject to a wife's obligations under Article 109, et. seq. of the Civil Code cannot be just.** Petitioner should not be obliged to live together with, observe respect and fidelity, and render support to private respondent. The latter should not continue to be one of her heirs with possible rights to conjugal property. She should not be discriminated against in her own country if the ends of justice are to be served. (Emphasis added) [50]

Based on the foregoing legal precepts, we find that respondent may be made liable under Section 5 (e) and (i) of R.A. No. 9262 for unjustly refusing or failing to give support to petitioner's son, to wit:

> **SECTION 5.** *Acts of Violence Against Women and Their Children* — The crime of violence against women and their children is committed through any of the following acts:
>
> xxx xxx xxx
>
> (e) Attempting to compel or compelling the woman or her child to engage in conduct which the woman or her child has the right to desist from or desist from conduct which the woman or her child has the right to engage in, or attempting to restrict or restricting the woman's or her child's freedom of movement or conduct by force or threat of force, physical or other harm or threat of physical or other harm, or intimidation directed against the woman or child. This shall include, but not limited to, the following acts committed with the purpose or effect of controlling or restricting the woman's or her child's movement or conduct:

xxx xxx xxx

(2) ***Depriving or threatening to deprive the woman or her children of financial support legally due her or her family***, or deliberately providing the woman's children insufficient financial support;

xxx xxx xxx

(i) Causing mental or emotional anguish, public ridicule or humiliation to the woman or her child, including, but not limited to, repeated verbal and emotional abuse, and ***denial of financial support*** or custody ***of minor children*** of access to the woman's child/children.[51]

Under the aforesaid special law, the deprivation or denial of financial support to the child is considered an act of violence against women and children.

In addition, considering that respondent is currently living in the Philippines, we find strength in petitioner's claim that the Territoriality Principle in criminal law, in relation to Article 14 of the New Civil Code, applies to the instant case, which provides that:" [p]enal laws and those of public security and safety shall be obligatory upon all who live and sojourn in Philippine territory, subject to the principle of public international law and to treaty stipulations." On this score, it is indisputable that the alleged continuing acts of respondent in refusing to support his child with petitioner is committed here in the Philippines as all of the parties herein are residents of the Province of Cebu City. As such, our courts have territorial jurisdiction over the offense charged against respondent. It is likewise irrefutable that jurisdiction over the respondent was acquired upon his arrest.

Finally, we do not agree with respondent's argument that granting, but not admitting, that there is a legal basis for charging violation of R.A. No. 9262 in the instant case, the criminal liability has been extinguished on the ground of prescription of crime [52] under Section 24 of R.A. No. 9262, which provides that:

SECTION 24. *Prescriptive Period.* — Acts falling under Sections 5(a) to 5(f) shall prescribe in twenty (20) years. Acts falling under Sections 5(g) to 5(l) shall prescribe in ten (10) years.

The act of denying support to a child under Section 5 (e) (2) and (i) of R.A. No. 9262 is a continuing offense, [53] which started in 1995 but is still ongoing at present. Accordingly, the crime charged in the instant case has clearly not prescribed.

Given, however, that the issue on whether respondent has provided support to petitioner's child calls for an examination of the probative value of the evidence presented, and the truth and falsehood of facts being admitted, we hereby remand the determination of tis issue to the RTC-Cebu which has jurisdiction over the case.

WHEREFORE, the petition is **GRANTED**. The Orders dated February 19, 2010 and September 1, 2010, respectively, of the Regional Trial Court of the City of Cebu are hereby **REVERSED** and **SET ASIDE**. The case is **REMANDED** to the same court to conduct further proceedings based on the merits of the case.

SO ORDERED.

Velasco, Jr., Villarama, Jr., Mendoza * and *Reyes, JJ.,* concur.

Footnotes

* Designated Acting Member in lieu of Associate Justice Francis H. Jardeleza, per Special Order No. 1896 dated November 28, 2014.

1. Penned by Judge Bienvenido R. Saniel, Jr.; Annexes "A" and "B" to Petition, respectively, *rollo*, pp. 22-26.

2. *Rollo*, p. 6.

3. *Id.*

4. *Id.* at 7.

5. Annex "F" to Petition, *rollo*, p. 31.

6. *Id.* at 32.

7. Annex "A" to Petition, *rollo*, pp. 23-24.

8. *Id.* at 24.

9. *Id.* at 32.

10. *Id.*

11. *Supra* note 7, at 23-24.

12. *Supra* note 5, at 32.

13. *Rollo*, p. 7.

14. *Id.*

15. *Id.* at 22.

16. *Id.*

17. *Id.* at 24.

18. *Id.* at 8.

19. *Id.*

20. *Id.*

21. *Supra* note 7.

22. *Id.* at 24.

23. Art. 195. Subject to the provisions of the succeeding articles, the following are obliged to support each other to the whole extent set forth in the preceding article:

    (1) The spouses;

    (2) Legitimate ascendants and descendants;

    (3) Parents and their legitimate children and the legitimate and illegitimate children of the latter;

(4) Parents and their illegitimate children and the legitimate and illegitimate children of the latter; and

(5) Legitimate brothers and sisters, whether of full or half-blood.

24. Annex "R" to Petition, *rollo*, p. 102.

25. Annex "B" to Petition, *id.* at 25.

26. *Id.*

27. *Rollo*, p. 10.

28. G.R. No. 194880, June 20, 2012, 674 SCRA 320.

29. *Id.* at 332-333.

30. *Supra* note 23.

31. Art. 26. All marriages solemnized outside the Philippines, in accordance with the laws in force in the country where they were solemnized, and valid there as such, shall also be valid in this country, except those prohibited under Articles 35 (1), (4), (5) and (6), 3637 and 38.

    Where a marriage between a Filipino citizen and a foreigner is validly celebrated and a divorce is thereafter validly obtained abroad by the alien spouse capacitating him or her to remarry, the Filipino spouse shall have capacity to remarry under Philippine law. *(As amended by Executive Order 227)*

32. Comment on the Petition for Review on *Certiorari*, *rollo*, p. 123.

33. *Id.* at 122.

34. *Supra* note 23.

35. Art. 15. Laws relating to family rights and duties, or to the status, condition and legal capacity of persons are binding upon citizens of the Philippines, even though living abroad.

36. *Supra* note 7, at 24.

37. *Id.*

38. G.R. No. L-25411, n October 26, 1968, 25 SCRA 616.

39. *Id.* at 625-626. (Emphasis supplied)

40. *EDI-Staffbuilders International, Inc. v. NLRC*, 563 Phil. 1, 22 (2007).

41. Annex "N" to Petition, *rollo*, p. 84.

42. 399 Phil. 342 (2000).

43. *Id.* at 354. (Emphasis supplied)

44. *Bank of America, NT and SA v. American Realty Corporation*, 378 Phil. 1279, 1296 (1999).

45. G.R. No. 80116, June 30, 1989, 174 SCRA 653.

46. *Rollo*, p. 18.

47. *Supra* note 44.

48. *Id.* at 1296-1297. (Emphasis supplied)

49. 543 Phil. 275 (2007).

50. *Id.* at 290.

51. Section 5 (e) and (i) of R.A. No. 9262. (Emphasis supplied)

52. *Rollo*, p. 15.

53. In *People v. De Leon*, 608 Phil. 701, 722 (2009), it was held that:

> A continued (continuous or continuing) crime is defined as a single crime, consisting of a series of acts but all arising from one criminal resolution. Although there is a series of acts, there is only one crime committed; hence, only one penalty shall be imposed.

n Note from the Publisher: Written as "L-25441" in the official document.

FIRST DIVISION

[G.R. No. L-18924. October 19, 1922.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellant*, ***vs.*** **WONG CHENG (*alias* WONG CHUN)**, *defendant-appellee*.

D E C I S I O N

ROMUALDEZ, *J* :

In this appeal the Attorney-General urges the revocation of the order of the Court of First Instance of Manila, sustaining the demurrer presented by the defendant to the information that initiated this case and in which the appellee is accused of having illegally smoked opium aboard the merchant vessel *Changsa* of English nationality while said vessel was anchored in Manila Bay two and a half miles from the shores of the city.

The demurrer alleged lack of jurisdiction on the part of the lower court, which so held and dismissed the case.

The question that presents itself for our consideration is whether such ruling is erroneous or not; and it will or will not be erroneous according to said court has or has no jurisdiction over said offense.

The point at issue is whether the courts of the Philippines have jurisdiction over a crime, like the one herein involved, committed aboard merchant vessels anchored in our jurisdictional waters.

There are two fundamental rules on this particular matter in connection with International Law; to wit, the French rule, according to which crimes committed aboard a foreign merchant vessel should not be prosecuted in the courts of the country within whose territorial jurisdiction they were committed, unless their commission affects the peace and security of the territory; and the English rule, based on the territorial principle and followed in the United States, according to which, crimes perpetrated under such circumstances are in general triable in the courts of the country within whose territory they were committed. Of this two rules, it is the last one that obtains in this jurisdiction, because at present the theories and jurisprudence prevailing in the United States on this matter are authority in the Philippines which is now a territory of the United States.

In the case of *The Schooner Exchange vs*. M'Faddon and Others (7 Cranch [U. S.]. 116), Chief Justice Marshall said:

> ". . . When merchant vessels enter for the purposes of trade, it would be obviously inconvenient and dangerous to society, and would subject the law to continual infraction, and the government to degradation, if such individual or merchants did not owe temporary and local allegiance, and were not amenable to the jurisdiction of the country. . . ."

In United States vs. Bull (15 Phil., 7), this court held:

> ". . . No court of the Philippine Islands had jurisdiction over an offense or crime committed on the high seas or within the territorial waters of any other

country, but when she came within tree miles of a line drawn from the headlands which embrace the entrance to Manila Bay, she was within territorial waters, and a new set of principles became applicable. (Wheaton, International Law [Dana ed.], p. 255, note 105; Bonfils, Le Droit Int., secs. 490 *et seq.*; Latour, La Mer Ter., ch. 1.) The ship and her crew were then subject to the jurisdiction of the territorial sovereign subject to such limitations as have been conceded by that sovereignty through the proper political agency. . . ."

It is true that in certain cases the comity of nations is observed, as in Mali and Wildenhus *vs*. Keeper of the Common Jail (120 U. S., 1), wherein it was said that:

". . . The principle which governs the whole matter is this: Disorders which disturb only the peace of the ship or those on board are to be dealt with exclusively by the sovereignty of the home of the ship, but those which disturb the public peace may be suppressed, and, if need be, the offenders punished by the proper authorities of the local jurisdiction. It may not be easy at all times to determine to which of the two jurisdictions a particular act of disorder belongs. Much will undoubtedly depend on the attending circumstances of the particular case, but all must concede that felonious homicide is a subject for the local jurisdiction, and that if the proper authorities are proceeding with the case in the regular way the consul has no right to interfere to prevent it."

Hence in United States vs. Look Chaw (18 Phil., 573), this court held that:

"Although the mere possession of an article of prohibited use in the Philippine Islands, aboard a foreign vessel in transit, in any local port, does not, as a general rule, constitute a crime triable by the courts of the Islands, such vessel being considered as an extension of its own nationality, the same rule does not apply when the article, the use of which is prohibited in the Islands, is landed from the vessel upon Philippine soil; in such a case an open violation of the laws of the land is committed with respect to which, as it is a violation of the penal law in force at the place of the commission of the crime, no court other than that established in the said place has jurisdiction of the offense, in the absence of an agreement under an international treaty."

As to whether the United States has ever consented by treaty or otherwise to renouncing such jurisdiction or a part thereof, we find nothing to this effect so far as England is concerned, to which nation the ship where the crime in question was committed belongs. Besides, in his work "Treaties, Conventions, etc.," volume 1, page 625, Malloy says the following:

"There shall be between the territories of the United States of America, and all the territories of His Britanic Majesty in Europe, a reciprocal liberty of commerce. The inhabitants of the two countries, respectively, shall have liberty freely and securely to come with their ships and cargoes to all such places, ports and rivers, in the territories aforesaid, to which other foreigners are permitted to come, to enter into the same, and to remain and reside in any parts of the said territories, respectively; also to hire and occupy houses and warehouses for the purposes of their commerce; and, generally, the merchants and traders of each nation respectively shall enjoy the most complete protection and security for their commerce, but subject always to the laws and statutes of the two countries, respectively." (Art. 1, Commerce and Navigation Convention.)

We have seen that the mere possession of opium aboard a foreign vessel in transit was held by this court not triable by our courts, because it being the primary object of our Opium Law to protect the inhabitants of the Philippines against the disastrous effects entailed by the use of this drug, its mere possession in such a ship,

without being used in our territory, does not bring about in the said territory those effects that our statute contemplates avoiding. Hence such a mere possession is not considered a disturbance of the public order.

But to smoke opium within our territorial limits, even though aboard a foreign merchant ship, is certainly a breach of the public order here established, because it causes such drug to produce its pernicious effects within our territory. It seriously contravenes the purpose that our Legislature has in mind in enacting the aforesaid repressive statute. Moreover, as the Attorney-General aptly observes:

> ". . . The idea of a person smoking opium securely on board a foreign vessel at anchor in the port of Manila in open defiance of the local authorities, who are impotent to lay hands on him, is simply subversive of public order. It requires no unusual stretch of the imagination to conceive that a foreign ship may come into the port of Manila and allow or solicit Chinese residents to smoke opium on board."

The order appealed from is revoked and the cause ordered remanded to the court of origin for further proceedings in accordance with law, without special finding as to costs. So ordered.

Araullo, C.J., Street, Malcolm, Avanceña, Villamor, Ostrand, and *Johns, JJ.,* concur.

EN BANC

[G.R. No. L-5887. December 16, 1911.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **LOOK CHAW (alias LUK CHIU)**, *defendant-appellant*.

D E C I S I O N

ARELLANO, *C.J* :

The first complaint filed against the defendant, in the Court of First Instance of Cebu, stated that he "carried, kept, possessed and had in his possession and control, 96 kilograms of opium," and that "he had been surprised in the act of selling 1,000 pesos worth prepared opium."

The defense presented a demurrer based on two grounds, the second of which was the more than one crime was charged in the complaint. The demurrer was sustained, as the court found that the complaint contained two charges, one, for the unlawful possession of opium, and the other, for the unlawful sale of opium, and, consequence of that ruling, it ordered that the fiscal should separated one charge from the other and file a complaint for each violation; this, the fiscal did, and this cause concerns only the unlawful possession of opium. It is registered as No. 375, in the Court of First Instance of Cebu, and as No. 5887 on the general docket of this court.

The facts of the case are contained in the following finding of the trial court:

> "The evidence, it says, shows that between 11 and 12 o'clock a. m. on the present month (stated as August 19, 1909), several persons, among them Messrs. Jacks and Milliron, chief of the department of the port of Cebu and internal-revenue agent of Cebu, respectively, went abroad the steamship *Erroll* to inspect and search its cargo, and found, first in a cabin near the saloon, one sack (Exhibit A) and afterwards in the hold, another sack (Exhibit B). The sack referred to as Exhibit A contained 49 cans of opium, and the other, Exhibit B, the larger sack, also contained several cans of the same substance. The hold, in which the sack mentioned in Exhibit B was found, was under the defendant's control, who moreover, freely and of his own will and accord admitted that this sack, as well as the other referred to in Exhibit B and found in the cabin, belonged to him. The said defendant also stated, freely and voluntarily, that he had bought these sacks of opium, in Hongkong with the intention of selling them as contraband in Mexico or Vera Cruz, and that, as his hold had already been searched several times for opium, he ordered two other Chinamen to keep the sack. Exhibit A."

It is to be taken into account that the two sacks of opium, designated as Exhibits A and B, properly constitute the *corpus delicti*. Moreover, another lot of four cans of opium, marked, as Exhibit C, was the subject matter of investigation at the trial, and with respect to which the chief of the department of the port of Cebu testified that they were found in the part of the ship where the firemen habitually sleep, and that they were delivered to the first officer of the ship to be returned to the said firemen after the vessel should have left the Philippines, because the firemen and crew of foreign vessels,

pursuant to the instructions he had from the Manila custom-house, were permitted to retain certain amounts of opium, always provided it should not be taken shore.

And, finally, another can of opium, marked "Exhibit D," is also *corpus delicti* and important as evidence in this cause. With regard to this the internal-revenue agent testified as follows:

> "FISCAL. What is it?
>
> "WITNESS. It is a can opium which was bought from the defendant by a secret-service agent and taken to the office of the governor to prove that the accused had opium in his possession to sell."

On motion by the defense, the court ruled that this answer might be stricken out "because it refers to a sale." But, with respect to this answer, the chief of the department of customs had already given this testimony, to wit:

> "FISCAL. Who asked you to search the vessel?
>
> "WITNESS. The internal-revenue agent came to my office and said that a party brought him a sample of opium and that the same party knew that there was more opium on board the steamer, and the agent asked that the vessel be searched."

The defense moved that this testimony be rejected, on the ground of its being hearsay evidence, and the court only ordered that the part thereof "that there was more opium, on board the vessel" be stricken out.

The defense, to abbreviate proceedings, admitted that the receptacles mentioned as Exhibits A, B, and C, contained opium and were found on board the steamship Erroll, a vessel of English nationality, and that it was true that the defendant stated that these sacks of opium were his and that he had them in his possession.

According to the testimony of the internal-revenue agent, the defendant stated to him, in the presence of the provincial fiscal, of a Chinese interpreter (who afterwards was not needed, because the defendant spoke English), the warden of the jail, and four guards, that the opium seized in the vessel had been bought by him in Hongkong, at three pesos for each round can and five pesos for each one of the others, for the purpose of selling it, as contraband, in Mexico and Puerto de Vera Cruz; that on the 15th the vessel arrived at Cebu, and on the same day he sold opium; that he had tried to sell opium for P16 a can; that he had a contract to sell an amount of the value of about P500; that the opium found in the room of the other two Chinamen prosecuted in another cause, was his, and that he had left it in their stateroom to avoid its being found in his room, which had already been searched many times; and that, according to the defendant, the contents of the large sack was 80 cans of opium, and of the small one, 49, and the total number, 129.

It was established that the steamship Erroll was of English nationality, that it came from Hongkong, and that it was bound for Mexico, via the call ports of Manila and Cebu.

The defense moved for a dismissal of the case, on the grounds that the court had no jurisdiction to try the same and the facts concerned therein did not constitute a crime. The fiscal, at the conclusion of his argument, asked that the maximum penalty of the law be imposed upon the defendant, in view of the considerable amount of opium seized. The court ruled that it did not lack jurisdiction, inasmuch as the crime had been committed within its district, on the wharf of Cebu.

The court sentenced the defendant to five years' imprisonment, to pay a fine of P10,000, with additional subsidiary imprisonment in case of insolvency, though not to exceed one third of the principal penalty, and to the payment of the costs. It further ordered the confiscation, in favor of the Insular Government, of the exhibits presented in the case, and that, in the event of an appeal being taken or a bond given, or when the sentenced should have been served, the defendant be not released from custody, but turned over to the customs authorities for the purpose of the fulfillment of the existing laws on immigration.

From this judgment, the defendant appealed to this court.

The appeal having been heard, together with the allegations made therein by the parties, it is found: That, although the mere possession of a thing of prohibited use in these Islands, aboard a foreign vessel in transit, in any of their ports, does not, as a general rule, constitute a crime triable by the courts of this country, on account of such vessel being considered as an extension of its own nationality, the same rule does not apply when the article, whose use is prohibited within the Philippine Islands, in the present case a can of opium, is landed from the vessel upon Philippine soil, thus committing an open violation of the laws of the land, with respect to which, as it is a violation of the penal law in force at the place of the commission of the crime, only the court established in that said place itself had competent jurisdiction, in the absence of an agreement under an international treaty.

It is also found: That, even admitting that the quantity of the drug seized, the subject matter of the present case, was considerable, it does not appear that, on such account, the two penalties fixed by the law on the subject, should be imposed in the maximum degree.

Therefore, reducing the imprisonment and the fine imposed to six months and P1,000, respectively, we affirm in all other respects the judgment appealed from, with the costs of this instance against the appellant. So ordered.

Torres, Mapa, Johnson, Carson, Moreland and *Trent, JJ.,* concur.

EN BANC

[G.R. No. 13005. October 10, 1917.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **AH SING**, *defendant-appellant*.

D E C I S I O N

MALCOLM, *J* :

This is an appeal from a judgment of the Court of First Instance of Cebu finding the defendant guilty of a violation of section 4 of Act No. 2381 (the Opium Law), and sentencing him to two years imprisonment, to pay a fine of P300 or to suffer subsidiary imprisonment in case of insolvency, and to pay the costs.

The following facts are fully proven: The defendant is a subject of China employed as a fireman on the steamship *Shun Chang*. The *Shun Chang* is a foreign steamer which arrived at the port of Cebu on April 25, 1917, after a voyage direct from the port of Saigon. The defendant bought eight cans of opium in Saigon, brought them on board the steamship *Shun Chang*, and had them in his possession during the trip from Saigon to Cebu. When the steamer anchored in the port of Cebu on April 25, 1917, the authorities on making a search found the eight cans of opium above mentioned hidden in the ashes below the boiler of the steamer's engine. The defendant confessed that he was the owner of this opium, and that he had purchased it in Saigon. He did not confess, however, as to his purpose in buying the opium. He did not say that it was his intention to import the prohibited drug into the Philippine Islands. No other evidence direct or indirect, to show that the intention of the accused was to import illegally this opium into the Philippine Islands, was introduced.

Has the crime of illegal importation of opium into the Philippine Islands been proven?

Two decisions of this Court are cited in the judgment of the trial court, but with the intimation that there exists inconsistency between the doctrines laid down in the two cases. However, neither decision is directly a precedent on the facts before us.

In the case of United States vs. Look Chaw ([1910], 18 Phil., 573), in the opinion handed down by the Chief Justice, it is found —

> "That, although the mere possession of a thing of prohibited use in these Islands, *aboard a foreign vessel in transit*, in any of their ports, *does not, as a general rule, constitute a crime triable by the courts of this country, on account of such vessel being considered as an extension of its own nationality*, the same rule does not apply when the article, whose use is prohibited within the Philippine Islands, in the present case a can of opium, is *landed from the vessel upon Philippine soil*, thus committing an open violation of the laws of the land, with respect to which, as it is a violation of the penal law in force at the place of the commission of the crime, only the court established in the said place itself has competent jurisdiction, in the absence of an agreement under an international treaty."

A marked difference between the facts in the Look Chaw case and the facts in the present instance is readily observable. In the Look Chaw case, the charge was the illegal possession and sale of opium — in the present case the charge is illegal importation of opium; in the Look Chaw case the foreign vessel was in transit — in the present case the foreign vessel was not in transit; in the Look Chaw case the opium was landed from the vessel upon Philippine soil — in the present case the opium was not landed by the defendant. In the case of United States vs. Jose ([1916], 34 Phil., 840), the main point, and the one on which resolution turned, was that in a prosecution based on the illegal importation of opium or other prohibited drug, the Government must prove, or offer evidence sufficient to raise a presumption, that the vessel from which the drug is discharged came into Philippine waters from a foreign country with the drug on board. In the Jose case, the defendants were acquitted because it was not proved that the opium was imported from a foreign country; in the present case there is no question but what the opium came from Saigon to Cebu. However, in the opinion in the Jose case, we find the following which may be *obiter dicta*, but which at least is interesting as showing the view of the writer of the opinion:

> "The importation was complete, to say the least, when the ship carrying it anchored in Subic Bay. It was not necessary that the opium be discharged or that it be taken from the ship. It was sufficient that the opium was brought into the waters of the Philippine Islands on a boat destined for a Philippine port and which subsequently anchored in a port of the Philippine Islands with intent to discharge its cargo."

Resolving whatever doubt may exist as to the authority of the views just quoted, we return to an examination of the applicable provisions of the law. It is to be noted that section 4 of Act No. 2381 begins, "Any person who shall unlawfully import or bring any prohibited drug into the Philippine Islands." "Import" and "bring" are synonymous terms. The Federal Courts of the United States have held that the mere act of going into a port, without breaking bulk, is *prima facie* evidence of importation. (The Mary [U.S.], 16 Fed. Cas., 932, 933.) And again, the importation is not the making entry of goods at the custom house, but merely the bringing them into port; and the importation is complete before entry of the Custom House. (U.S. vs. Lyman [U.S.], 26 Fed. Cas., 1024, 1028; Perots vs. U.S., 19 Fed. Cas., 258.) As applied to the Opium Law, we expressly hold that any person unlawfully imports or brings any prohibited drug into the Philippine Islands, when the prohibited drug is found under this person's control on a vessel which has come direct from a foreign country and is within the jurisdictional limits of the Philippine Islands. In such case, a person is guilty of illegal importation of the drug unless contrary circumstances exist or the defense proves otherwise. Applied to the facts herein, it would be absurd to think that the accused was merely carrying opium back and forth between Saigon and Cebu for the mere pleasure of so doing. It would likewise be impossible to conceive that the accused needed so large an amount of opium for his personal use. No better explanation being possible, the logical deduction is that the defendant intended this opium to be brought into the Philippine Islands. We accordingly find that there was illegal importation of opium from a foreign country into the Philippine Islands. To anticipate any possible misunderstanding, let it be said that these statements do not relate to foreign vessels in transit, a situation not present.

The defendant and appellant, having been proved guilty beyond a reasonable doubt as charged and the sentence of the trial court being within the limits provided by law, it results that the judgment must be affirmed with the costs of this instance against the appellant. So ordered.

Arellano, C.J., Johnson, Carson, Araullo and *Street, JJ.,* concur.

EN BANC

[G.R. No. L-17958. February 27, 1922.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *Plaintiff-appellee*, ***vs.*** **LOL-LO and SARAW**, *defendants-appellants*.

D E C I S I O N

MALCOLM, *J* :

The days when pirates roamed the seas, when the picturesque buccaneers Captain Avery and Captain Kidd and Bartholomew Roberts gripped the imagination, when grotesque brutes like Blackbeard flourished, seem far away in the pages of history and romance. Nevertheless, the record before us tells a tale of twentieth century piracy in the south seas, but stripped of all touches of chivalry or of generosity, so as to present a horrible case of rapine and near murder.

On or about June 30, 1920, two boats left Matuta, a Dutch possession, for Peta, another Dutch possession. In one of the boats was one individual, a Dutch subject, and in the other boat eleven men, women, and children, likewise subjects of Holland. After a number of days of navigation, at about 7 o'clock in the evening, the second boat arrived between the Islands of Buang and Bukid in the Dutch East Indies. There the boat was surrounded by six vintas manned by twenty-four Moros all armed. The Moros first asked for food, but once on the Dutch boat, took for themselves all of the cargo, attacked some of the men, and brutally violated two of the women by methods too horrible to described. All of the persons on the Dutch boat, with the exception of the two young women, were again placed on it and holes were made in it, with the idea that it would submerge, although as a matter of fact, these people, after eleven days of hardship and privation, were succored. Taking the two women with them, and repeatedly violating them, the Moros finally arrived at Maruro, a Dutch possession. Two of the Moro marauders were Lol-lo, who also raped one of the women, and Saraw. At Maruro the two women were able to escape.

Lol-lo and Saraw later returned to their home in South Ubian, Tawi-Tawi, Sulu, Philippine Islands. There they were arrested and were charged in the Court of First Instance of Sulu with the crime of piracy. A demurrer was interposed by counsel *de officio* for the Moros, based on the grounds that the offense charged was not within the jurisdiction of the Court of First Instance, nor of any court of the Philippine Islands, and that the facts did not constitute a public offense, under the laws in force in the Philippine Islands. After the demurrer was overruled by the trial judge, a trial was had, and a judgment was rendered finding the two defendants guilty and sentencing each of them to life imprisonment (*cadena perpetua*), to return together with Kinawalang and Maulanis, defendants in another case, to the offended parties, the thirty-nine sacks of coprax which had been robbed, or to indemnify them in the amount of 942 rupees, and to pay a one-half part of the costs.

A very learned and exhaustive brief has been filed in this court by the attorney *de officio*. By a process of elimination, however, certain questions can be quickly disposed

of.

The proven facts are not disputed. All of the elements of the crime of piracy are present. Piracy is robbery or forcible depredation on the high seas, without lawful authority and done *animo furandi*, and in the spirit and intention of universal hostility.

It cannot be contended with any degree of force as was done in the lower court and as is gain done in this court, that the Court of First Instance was without jurisdiction of the case. Pirates are in law *hostes humani generis*. Piracy is a crime not against any particular state but against all mankind. It may be punished in the competent tribunal of any country where the offender may be found or into which he may be carried. The jurisdiction of piracy unlike all other crimes has no territorial limits. As it is against all so may it be punished by all. Nor does it matter that the crime was committed within the jurisdictional 3-mile limit of a foreign state, "for those limits, though neutral to war, are not neutral to crimes." (U. S. vs. Furlong [1820], 5 Wheat., 184.)

The most serious question which is squarely presented to this court for decision for the first time is whether or not the provisions of the Penal Code dealing with the crime of piracy are still in force. Articles 153 to 156 of the Penal Code read as follows:

> "ART. 153. The crime of piracy committed against Spaniards, or the subjects of another nation not at war with Spain, shall be punished with a penalty ranging from *cadena temporal* to *cadena perpetua.*
>
> "If the crime be committed against nonbelligerent subjects of another nation at war with Spain, it shall be punished with the penalty or *presidio mayor.*
>
> "ART. 154. Those who commit the crimes referred to in the first paragraph of the next preceding article shall suffer the penalty of cadena perpetua or death, and those who commit the crimes referred to in the second paragraph of the same article, from cadena temporal to cadena perpetua:
>
> "1. Whenever they have seized some vessel by boarding or firing upon the same.
>
> "2. Whenever the crime is accompanied by murder, homicide, or by any of the physical injuries specified in articles four hundred and fourteen and four hundred and fifteen and in paragraphs one and two of article four hundred and sixteen.
>
> "3. Whenever it is accompanied by any of the offenses against chastity specified in Chapter II, Title IX, of the book.
>
> "4. Whenever the pirates have abandoned any persons without means of saving themselves.
>
> "5. In every case, the captain or skipper of the pirates.
>
> "ART. 155. With respect to the provisions of this title as well as all others of this code, when Spain is mentioned it shall be understood as including any part of the national territory.
>
> "ART. 156. For the purpose of applying the provisions of this code, every person, who, according to the Constitution of the Monarchy, has the status of a Spaniard shall be considered as such."

The general rules of public law recognized and acted on by the United States relating to the effect of a transfer of territory from another State to the United States are well-known. The political law of the former sovereignty is necessarily changed. The municipal law in so far as it is consistent with the Constitution, the laws of the United

States or the characteristics and institutions of the government, remains in force. As a corollary to the main rules, laws subsisting at the time of transfer, designed to secure good order and peace in the community, which are strictly of a municipal character, continue until by direct action of the new government they are altered or repealed. (Chicago, Rock Island, etc., R. Co. vs. McGlinn [1885], 114 U.S., 542.)

These principles of the public law were given specific application to the Philippines by the Instructions of President McKinley of May 19,1889, to General Wesley Merritt, the Commanding General of the Army of Occupation in the Philippines, when he said:

"Thought the powers of the military occupant are absolute and supreme, and immediately operate upon the political condition of the inhabitants, the municipal laws of the conquered territory, such as affect private rights of person and property, *and provide for the punishment of crime*, are considered as continuing in force, so far as they are compatible with the new order of things, until they are suspended or superseded by the occupying belligerent; and in practice they are not usually abrogated, but are allowed to remain in force, and to be administered by the ordinary tribunals, substantially as they before the occupation. This enlightened practice is, so far as possible, to be adhered to on the present occasion." (Official Gazette, Preliminary Number, Jan. 71. 1903, p. 1. *See* also General Merritt's Proclamation of August 14, 1898.)

It cannot admit of doubt that the articles of the Spanish Penal Code dealing with piracy were meant to include the Philippine Islands. Article 156 of the Penal Code of the Penal Code in relation to article 1 of the Constitution of the Spanish Monarchy, would also make the provisions of the Code applicable not only to Spaniards but to Filipinos.

The opinion of Grotius was that piracy by the law of nations is the same thing as piracy by the civil law, and he has never been disputed. The specific provisions of the Penal Code are similar in tenor to statutory provisions elsewhere and to the concepts of the public law. This must necessarily be so, considering that the Penal Code finds its inspiration in this respect in the *Novelas*, the *Partidas*, and the *Novisima Recopilacion*.

The Constitution of the United States declares that the Congress shall have the power to define and punish piracies and felonies committed on the high seas, and offenses against the law of nations. (U.S Const. Art. I, sec. 8, cl. 10.) The Congress, in putting on the statute books the necessary ancillary legislation, provided that whoever, on the high seas, commits the crime of piracy as *defined by the law of nations,* and is afterwards brought into or found in the United States, shall be imprisoned for life. (U.S. Crim. Code, sec. 290; penalty formerly death: U.S. Rev. Stat., sec. 5368.) The framers of the Constitution and the members of Congress were content to let a definition of piracy rest on its universal conception under the law of nations.

It is evident that the provisions of the Penal Code now in force in the Philippines relating to piracy are not inconsistent with the corresponding provisions in force in the United States.

By the Treaty of Paris, Spain ceded the Philippine Islands to the United States. A logical construction of articles of the Penal Code, like the articles dealing with the crime of piracy, would be that wherever "Spain" is mentioned, it should be substituted by the words "United States" and wherever "Spaniards" are mentioned, the word should be substituted by the expression "citizens of the United States and citizens of the Philippine Islands." Somewhat similar reasoning led this court in the case of United States vs.

Smith ([1919]); 39 Phil., 533) to give to the word "authority" as found in the Penal Code a limited meaning, which would no longer comprehend all religious, military, and civil officers, but only public officers in the Government of the Philippine Islands.

Under the construction above indicated, article 153 of the Penal Code would read as follows:

> "The crime of piracy committed against citizens of the United States and citizens of the Philippine Islands, or the subjects of another nation not at war with the United States, shall be punished with a penalty ranging from *cadena temporal* to *cadena perpetua.*
>
> "If the crime be committed against nonbelligerent subjects of another nation at war with the United States, it shall be punished with the penalty of *presidio mayor."*

We hold those provisions of the Penal Code dealing with the crime of piracy, notably articles 153 and 154, to be still in force in the Philippines.

The crime falls under the first paragraph of article 153 of the Penal Code in relation to article 154. There are present at least two of the circumstances named in the last cited article as authorizing either *cadena perpetua* or death. The crime of piracy was accompanied by (1) an offense against chastity and (2) the abandonment of persons without apparent means of saving themselves. It is, therefore, only necessary for us to determine as to whether the penalty of *cadena perpetua* or death should be imposed. In this connection, the trial court, finding present the one aggravating circumstance of nocturnity, and compensating the same by the one mitigating circumstance of lack of instruction provided by article 11, as amended, of the Penal Code, sentenced the accused to life imprisonment. At least three aggravating circumstances, that the wrong done in the commission of the crime was deliberately augmented by causing other wrongs not necessary for its commission, that advantage was taken of superior strength, and that means were employed which added ignominy to the natural effects of the act, must also be taken into consideration in fixing the penalty. Considering, therefore, the number and importance of the qualifying and aggravating circumstances here present, which cannot be offset by the sole mitigating circumstance of lack of instruction, and the horrible nature of the crime committed, it becomes our duty to impose capital punishment.

The vote upon the sentence is unanimous with regard to the propriety of the imposition of the death penalty upon the defendant and appellant Lol-lo (the accused who raped one of the women) but is not unanimous with regard to the defendant and appellant Saraw, since one member of the court, Mr. Justice Romualdez, registers his nonconformity. In accordance with the provisions of Act No. 2726, it results, therefore, that the judgment of the trial court as to the defendant and appellant Saraw is affirmed, and is reversed as to the defendant and appellant Lol-lo, who is found guilty of the crime of piracy and is sentenced therefor to be hung until dead, at such time and place as shall be fixed by the judge of first instance of the Twenty-sixth Judicial District. The two appellants together with Kinawalang and Maulanis, defendants in another case, shall indemnify jointly and severally the offended parties in the equivalent of 924 rupees, and shall pay a one-half part of the cost of both instances. So ordered.

Araullo, C. J., Johnson, Avancena, Villamor, Ostrand, Johns, and *Romualdez, JJ.,* concur.

SECOND DIVISION

[G.R. No. 5272. March 19, 1910.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **AH CHONG**, *defendant-appellant*.

D E C I S I O N

CARSON, *J* :

The evidence as to many of the essential and vital facts in this case is limited to the testimony of the accused himself, because from the very nature of these facts and from the circumstances surrounding the incident upon which these proceedings rest, no other evidence as to these facts was available either to the prosecution or to the defense. We think however, that, giving the accused the benefit of the doubt as to the weight of the evidence touching those details of the incident as to which there can be said to be any doubt, the following statement of the material facts disclosed by the record may be taken to be substantially correct:

The defendant, Ah Chong, was employed as a cook at "Officers' quarters, No. 27," Fort McKinley, Rizal Province, and at the same place Pascual Gualberto, deceased, was employed as a house boy or *muchacho*. "Officers' quarters No. 27" is a detached house situated some 40 meters from the nearest building, and in August, 1908, was occupied solely as an officers' mess or club. No one slept in the house except the two servants, who jointly occupied a small room toward the rear of the building, the door of which opened upon a narrow porch running along the side of the building, by which communication was had with the other part of the house. This porch was covered by a heavy growth of vines for its entire length and height. The door of the room was not furnished with a permanent bolt or lock, and the occupants, as a measure of security, had attached a small hook or catch on the inside of the door, and were in the habit of reinforcing this somewhat insecure means of fastening the door by placing against it a chair. In the room there was but one shall window, which, like the door, opened on the porch. Aside from the door and window, there were no other openings of any kind in the room.

On the night of August 14, 1908, at about 10 o'clock, the defendant, who had retired for the night, was suddenly awakened by someone trying to force open the door of the room. He sat up in bed and called out twice, "Who is there?" He heard no answer and was convinced by the noise at the door that it was being pushed open by someone bent upon forcing his way into the room. Due to the heavy growth of vines along the front of the porch, the room was very dark, and the defendant, fearing that the intruder was a robber or a thief, leaped to his feet and called out. "If you enter the room, I will kill you." At the moment he was struck just above the knew by the edge of the chair which had been placed against the door. In the darkness and confusion the defendant thought that the blow had been inflicted by the person who had forced the door open, whom he supposed to be a burglar, though in the light of after events, it is probable that the chair was merely thrown back into the room by the sudden opening of the door against which it rested. Seizing a common kitchen knife which he kept under his pillow, the defendant

struck out wildly at the intruder who, it afterwards turned out, was his roommate, Pascual. Pascual ran out upon the porch and fell down on the steps in a desperately wounded condition, followed by the defendant, who immediately recognized him in the moonlight. Seeing that Pascual was wounded, he called to his employers who slept in the next house, No. 28, and ran back to his room to secure bandages to bind up Pascual's wounds.

There had been several robberies in Fort McKinley not long prior to the date of the incident just described, one of which took place in a house in which the defendant was employed as cook; and as defendant alleges, it was because of these repeated robberies he kept a knife under his pillow for his personal protection.

The deceased and the accused, who roomed together and who appear to have been or friendly and amicable terms prior to the fatal incident, had an understanding that when either returned at night, he should knock at the door and acquaint his companion with his identity. Pascual had left the house early in the evening and gone for a walk with his friends, Celestino Quiambao and Mariano Ibañez, servants employed at officers' quarters No. 28, the nearest house to the mess hall. The three returned from their walk at about 10 o'clock, and Celestino and Mariano stopped at their room at No. 28, Pascual going on to his room at No. 27. A few moments after the party separated, Celestino and Mariano heard cries for assistance and upon returning to No. 27 found Pascual sitting on the back steps fatally wounded in the stomach whereupon one of them ran back to No. 28 and called Lieutenants Jacobs and Healy, who immediately went to the aid of the wounded man.

The defendant then and there admitted that he had stabbed his roommate, but said that he did it under the impression that Pascual was "a ladron" because he forced open the door of their sleeping room, despite defendant's warnings.

No reasonable explanation of the remarkable conduct on the part of Pascual suggests itself, unless it be that the boy in a spirit of mischief was playing a trick on his Chinese roommate, and sought to frighten him by forcing his way into the room, refusing to give his name or say who he was, in order to make Ah Chong believe that he was being attacked by a robber.

Defendant was placed under arrest forthwith, and Pascual was conveyed to the military hospital, where he died from the effect of the wound of the following day.

The defendant was charged with the crime of assassination, tried, and found guilty by the trial court of simple homicide, with extenuating circumstances, and sentenced to six years and one day *presidio mayor*, the minimum penalty prescribed by law.

At the trial in the court below the defendant admitted that he killed his roommate, Pascual Gualberto, but insisted that he struck the fatal blow without any intent to do a wrongful act, in the exercise of his lawful right of self defense.

Article 8 of the Penal Code provides that —

> "The following are not delinquent and are therefore exempt from criminal liability:
>
> "4. He who acts in defense of his person or rights, provided there are the following attendant circumstances:
>
> xxx xxx xxx
>
> "(1) Illegal aggression.

"(2) Reasonable necessity of the means employed to prevent or repel it.

"(3) Lack of sufficient provocation on the part of the person defending himself."

Under these provisions we think that there can be no doubt that defendant would be entitled to complete exemption from criminal liability for the death of the victim of his fatal blow, if the intruder who forced open the door of his room had been in fact a dangerous thief or "ladron," as the defendant believed him to be. No one, under such circumstances, would doubt the right of the defendant to resist and repel such an intrusion, and the thief having forced open the door notwithstanding defendant's thrice-repeated warning to desist, and his threat that he would kill the intruder if he persisted in his attempt, it will not be questioned that in the darkness of the night, in a small questioned that in the darkness of the night, in a small room, with no means of escape, with the thief advancing upon him despite his warning, defendant would have been wholly justified in using any available weapon to defend himself from such an assault, and in striking promptly, without waiting for the thief to discover his whereabouts and deliver the first blow.

But the evidence clearly discloses that the intruder was not a thief or a "ladron." That neither the defendant nor his property nor any of the property under his charge was in real danger at the time when he struck the fatal blow. That there was no such "unlawful aggression" on the part of a thief or "ladron" as defendant believed he was repelling and resisting, and that there was no real "necessity" for the use of knife to defend his person or his property or the property under his charge.

The question then squarely presents itself, whether in this jurisdiction one can be held criminally responsible who, by reason of a mistake as to the facts, does an act for which he would be exempt from criminal liability if the facts were as he supposed them to be, but which would constitute the crime of homicide or assassination if the actor had known the true state of the facts at the time when he committed the act. To this question we think there can be but one answer, and we hold that under such circumstances there is no criminal liability, provided always that the alleged ignorance or mistake of fact was not due to negligence or bad faith.

In broader terms, ignorance or mistake of fact, if such ignorance or mistake of fact is sufficient to negative a particular intent which under the law is a necessary ingredient of the offense charged (e. g., in larceny, *animus furendi;* in murder, malice; in crimes and misdemeanors generally some degree of criminal intent) "cancels the presumption of intent," and works an acquittal; except in those cases where the circumstances demand a conviction under the penal provisions touching criminal negligence; and in cases where, under the provisions of article 1 of the Penal Code one voluntarily committing a crime or misdemeanor incurs criminal liability for any wrongful act committed by him, even though it be different from that which he intended to commit. (Wharton's Criminal Law, sec. 87 and cases cited; McClain's Crim. Law, sec. 133 and cases cited; Pettit *vs.* S., 28 Tex. Ap.; 240; Commonwealth *vs.* Power, 7 Met., 596; Yates *vs.* People, 32 N. Y., 509; Isham *vs.* State, 38 Ala., 213; Commonwealth *vs.* Rogers, 7 Met., 500)

The general proposition thus stated hardly admits of discussion, and the only question worthy of consideration is whether malice of criminal intent is an essential element or ingredient of the crimes of homicide and assassination as defined and penalized in the Penal Code. It has been said that since the definitions there given of

these as well as most other crimes and offenses therein defined, do not specifically and expressly declare the acts constituting the crime or offense must be committed with malice or with criminal intent in order that the actor may be held criminally liable, the commission of the acts set out in the various definitions subjects the actor to the penalties described therein, unless it appears that he is exempted from liability under one or other of the express provisions of article 8 of the code, which treats of exemptions. But while it is true that contrary to the general rule of legislative enactment in the United States, the definitions of crimes and offenses as set out in the Penal Code rarely contain provisions expressly declaring that malice or criminal intent is an essential ingredient of the crime, nevertheless, the general provisions of article 1 of the code clearly indicate that malice, or criminal intent in some form, is an essential requisite of all crimes and offenses therein defined, in the absence of express provisions modifying the general rule, such as are those touching liability resulting from acts negligently or imprudently committed, and acts done by one voluntarily committing a crime or misdemeanor, where the act committed is different from that which he intended to commit. And it is to be observed that even these exceptions are more apparent than real, for "There is a little distinction, except in degree, between a will to do a wrongful thing and indifference whether it is done or not. Therefore carelessness is criminal, and within limits supplies the place of the affirmative criminal intent" (Bishop's New Criminal Law, vol. 1, s. 313); and, again, "There is so little deference between a disposition to do a great harm and a disposition to do harm that one of them may very well be looked upon as the measures of the other. Since, therefore, the guilt of a crime consists in the disposition to do harm, which the criminal shows by committing it, and since this disposition is greater or less in proportion to the harm which is done by the crime the consequence is that the guilt of the crime follows the same proportion; it is greater or less harm" (Ruth. Ints. C. 18, p. 11); or, as it has been otherwise stated the thing done, having proceeded from a corrupt mind, is to be viewed the same whether the corruption was of one particular form or another.

Article 1 of the Penal Code is as follows:

> "Crimes or misdemeanors are voluntary acts and omissions punished by law.
>
> "Acts and omissions punished by law are always presumed to be voluntary unless the contrary shall appear.
>
> "Any person voluntarily committing a crime or misdemeanor shall incur criminal liability, even though the wrongful act committed be different from that which he had intended to commit."

The celebrated Spanish jurist Pacheco, discussing the meaning of the word "voluntary" as used in this article, says that a voluntary act is a *free, intelligent*, and *intentional* act, and roundly asserts that without intention (intention to do wrong or criminal intention) there can be no crime; and that the word "voluntary" implies and includes the words "*con malicia.*" which were expressly set out in the definition of the word "crime" in the code of 1822, but omitted from the code of 1870, because, as Pacheco insists, their use in the former code was redundant, being implied and included in the word "voluntary." (Pacheco, Codigo Penal, vol. 1, p. 74.)

Viada, while insisting that the absence of intention to commit the crime can only be said exempt from criminal responsibility when the act which was actually intended to be done was in itself a lawful one, and in the absence of negligence or imprudence, nevertheless admits and recognizes in his discussion of the provisions of this article of

the code that in general without intention there can be no crime. (Viada, vol. 1, p. 16.) And, as we have shown above, the exceptions insisted upon by Viada are more apparent than real.

Silvela, in discussing the doctrine herein laid down, says:

> "In fact, it is sufficient to remember the first article, which declares that where there is no intention there is no crime . . . . in order to affirm, without fear of mistake, that under our code there can be no crime if there is no act, an act which must fall within the sphere of ethics if there is no moral injury." (Vol. 2, The Criminal Law, folio 169.)

And to the same effect are various decisions of the supreme court of Spain, as, for example in its sentence of May 31, 1882, in which it made use of the following language:

> "It is necessary that this act, in order to constitute a crime, involve all the malice which is supposed from the operation of the will and an intent to cause the injury which may be the object of the crime."
>
> "And again in its sentence of March 16, 1892, wherein it held that "considering that, whatever may be the civil effects of the inscription of his three sons, made by the appellant in the civil registry and in the parochial church, there can be no crime because of the lack of the necessary elements or criminal intention, which characterizes every action or omission punished by law; nor is he guilty of criminal negligence."

And to the same effect in its sentence of December 30, 1896, it made use of the following language:

> ". . . Considering that the moral element of the crime that is intent or malice or their absence in the commission of an act defined and punished by law as criminal, is not a necessary question of fact submitted to the exclusive judgment and decision of the trial court."

That the author of the Penal Code deemed criminal intent or malice to be an essential element of the various crimes and misdemeanors therein defined becomes clear also from an examination of the provisions of article 568, which are as follows:

> "He who shall execute through reckless negligence an act that, if done with malice, would constitute a grave crime, shall be punished with the penalty of *arresto mayor* in its maximum degree, to *prison correccional* in its minimum degree, and with *arresto mayor* in its minimum and medium degrees if it shall constitute a less grave crime.
>
> "He who in violation of the regulations shall commit a crime through simple imprudence or negligence shall incur the penalty of *arresto mayor* in its medium and maximum degrees.
>
> "In the application of these penalties the courts shall proceed according to their discretion, without being subject to the rules prescribed in article 81.
>
> "The provisions of this article shall not be applicable if the penalty prescribed for the crime is equal to or less than those contained in the first paragraph thereof, in which case the courts shall apply the next one thereto in the degree which they may consider proper."

The word "malice" in this article is manifestly substantially equivalent to the words "criminal intent," and the direct inference from its provisions is that the commission of the acts contemplated therein, in the absence of malice (criminal intent), negligence,

and imprudence, does not impose any criminal liability on the actor.

The word "voluntary" as used in article 1 of the Penal Code would seem to approximate in meaning the word "willful" as used in English and American statutes to designate a form of criminal intent. It has been said that while the word "willful" sometimes means little more than intentionally or designedly, yet it is more frequently understood to extend a little further and approximate the idea of the milder kind of legal malice; that is, it signifies an evil intent without justifiable excuse. In one case it was said to mean, as employed in a statute in contemplation, "wantonly" or "causelessly;" in another, "without reasonable grounds to believe the thing lawful." And Shaw, C. J., once said that ordinarily in a statute it means "not merely 'voluntarily' but with a bad purpose; in other words, corruptly." In English and the American statutes defining crimes "malice," "maliciously," and "malice aforethought" are words indicating intent, more purely technical than "willful" or "willfully," but "the difference between them is not great;" the word "malice" not often being understood to require general malevolence toward a particular individual, and signifying rather the intent from which flows any unlawful and injurious act committed without legal justification. (Bishop's New Criminal Law, vol. 1, secs. 428 and 429, and cases cited.)

But even in the absence of express words in a statute, setting out a condition in the definition of a crime that it be committed "voluntarily," willfully," "maliciously," "with malice aforethought," or in one of the various modes generally construed to imply a criminal intent, we think that reasoning from general principles it will always be found that, with the rare exceptions hereinafter mentioned, to constitute a crime evil intent must combine with an act. Mr. Bishop, who supports his position with numerous citations from the decided cases, thus forcefully presents this doctrine:

> "In no one thing does criminal jurisprudence differ more from civil that in the rule as to intent. In controversies between private parties the *quo animo* with which a thing was done is sometimes important, not always; but crime proceeds only from a criminal mind. So that —
>
> "There can be no crime, large or small, without an evil mind. In other words, punishment is the sequence of wickedness, without which it can not be. And neither in philosophical speculation nor in religious or moral sentiment would any people in any age allow that a man should be deemed guilty unless his mind was so. It is therefore a principle of our legal system, as probably it is of every other, that the essence of an offense is the wrongful intent, without which it can not exist. We find this doctrine confirmed by —
>
> "*Legal maxims.* — The ancient wisdom of the law, equally with the modern, is distinct on this subject. It consequently has supplied to us such maxims as *Actus non facit reum nisi mens sit rea*, 'the act itself does not make a man guilty unless his intention were so;' *Actus me invito factus non est meus actus*, 'an act done by me against my will is not my act;' and others of the like sort. In this, as just said, criminal jurisprudence differs from civil. So also —
>
> *"Moral science and moral sentiment* teach the same thing. 'By reference to the intention, we inculpate or exculpate others or ourselves without any respect to the happiness or misery actually produced. Let the result of an action be what it may, we hold a man guilty simply on the ground of intention; or, on the same ground, we hold him innocent.' The calm judgment of mankind keeps this doctrine among its jewels. In times of excitement, when vengeance takes the place of justice, every guard around the innocent is cast down. But with the return of reason the public voice that were the mind is pure, he who

differs in act from his neighbors does not offend. And —

> "In the spontaneous judgment which springs from the nature given by God to man, no one deems another to deserve punishment for what he did from an upright mind, destitute of every form of evil. And whenever a person is made to suffer a punishment which the community deems not his due, so far from its placing an evil mark upon him it elevates him to the seat of the martyr. Even infancy itself spontaneously pleads the want of bad intent in justification of what has the appearance of wrong, with the utmost confidence that the plea, if its truth is credited, will be accepted as good. Now these facts are only the voice of nature uttering one of her immutable truths. It is, then the doctrine of the law, superior to all other doctrines, because first in nature from which the law itself proceeds, that no man is to be punished as a criminal unless his intent is wrong." (Bishop's New Criminal Law, vol. 1, secs. 286 to 290.)

Compelled by necessity, "the great master of all things," an apparent departure from this doctrine of abstract justice results from the adoption of the arbitrary rule that *Ignorantia juris non excusat* ("Ignorance of the law excuses no man"), without which justice could not be administered in our tribunals; and compelled also by the same doctrine of necessity, the courts have recognized the power of the legislature to forbid, in a limited class of cases, the doing of certain acts, and to make their commission criminal without regard to the intent of the doer. Without discussing these exceptional cases at length, it is sufficient here to say that the courts have always held that the intention of the lawmaker to make the commission of certain acts criminal without regard to the intent of the doer is clear and beyond question the statute will not be so construed (cases cited in Cyc., vol. 12, p. 158, notes 76 and 77); and the rule that ignorance of the law excuses no man has been said not to be a real departure from the law's fundamental principle that crime exists only where the mind is at fault, because "the evil purpose need not be to break the law, and it suffices if it is simply to do thing which the law in fact forbids." (Bishop's New Criminal Law, sec. 300, and cases cited.)

But, however this may be, there is no technical rule, and no pressing necessity therefor, requiring mistake in fact to be dealt with otherwise than in strict accord with the principles of abstract justice. On the contrary the maxim here is *Ignorantia facti excusat* ("Ignorance or mistake in point of fact is, in all cases of supposed offense, a sufficient excuse"). (Brown's Leg. Max., 2d ed., 190.)

Since evil intent is in general an inseparable element in every crime, any such mistake of fact as shows the act committed to have proceeded from no sort of evil in the mind necessarily relieves the actor from criminal liability, provided always there is no fault or negligence on his part; and as laid down by Baron Parke, "The guilt of the accused must depend on the circumstances as they appear to him." (Reg. *vs.* Thurborn, 1 Den. C. C., 387; P. *vs.* Anderson, 44 Cal., 65; P. *vs.* Lamb, 54 Barb., 342; Yates vs P., 32 N.Y., 509; Patterson *vs.* P., 46 Barb., 625; Reg. vs Cohen, 8 Cox C. C., 41; P. *vs.* Miles, 55 Cal., 207, 209; Nalley *vs.* S., 28 Tex. Ap., 387.) That is to say, the question as to whether he honestly, in good faith, and without fault or negligence fell into the mistake is to be determined by the circumstances as they appeared to him at the time when the mistake was made, and the effect which the surrounding circumstances might reasonably be expected to have on his mind, in forming the intent, criminal or otherwise upon which he acted.

> "If in language not uncommon in the cases, one has*reasonable cause to believe the existence* of facts which will justify a killing — or, in terms more

nicely in accord with the principles on which the rule is founded, if without fault or carelessness he does believe them — he is legally guiltless of the homicide; though he mistook the facts, and so the life of an innocent person is unfortunately extinguished. In order words, and with reference to the right of self-defense and the not quite harmonious authorities, it is the doctrine of reason, and sufficiently sustained in adjudication, that notwithstanding some decisions apparently adverse, whenever a man undertakes self-defense, he is justified in acting on the facts as they appear to him. If without fault or carelessness, he is misled concerning them, and defends himself correctly according to what he thus supposes the facts to be, the law will not punish him though they are in truth otherwise, and he has really no occasion for the extreme measure." (Bishop's New Criminal Law, sec. 305, and large array of cases there cited.)

The common illustration in the American and English textbooks of the application of this rule is the case where a man, masked and disguised as a footpad, at night and on a lonely road, "holds up" his friend in a spirit of mischief, and with leveled pistol demands his money or his life, but is killed by his friend under the mistaken belief that the attack is a real one, that the pistol leveled at his head is loaded, and that his life and property are in imminent danger at the hands of the aggressor. No one will doubt that if the facts were such as the slayer believed them to be he would be innocent of the commission of any crime and wholly exempt from criminal liability, although if he knew the real state of the facts when he took the life of his friend he would undoubtedly be guilty of the crime of homicide or assassination. Under such circumstances, proof of his innocent mistake or criminal intent, and (since malice or criminal intent is a necessary ingredient of the "act punished by law" in cases of homicide or assassination) overcomes at the same time the presumption established in article 1 of the code, that the *"act punished by law"* was committed "voluntarily."

Parsons, C. J., in the Massachusetts court, once said:

> "If the party killing had a felonious design against him, and under that supposition killed him, although it should afterwards appear that there was no such design, it will not be murder, but it will be either manslaughter or excusable homicide, according to the degree of caution used and the probable grounds of such belief." (Charge to the grand jury in Selfridge's case, Whart. Hom., 417, 418, Lloyd's report of the case, p. 7.)

In this case, Parker, J., charging the petit, jury, enforced the doctrine as follows:

> "A in the peaceable pursuit of his affairs, sees B rushing rapidly toward him, with an outstretched arm and a pistol in his hand, and using violent menaces against his life as he advances. Having approached near enough in the same attitude, A, who has a club in his hand, strikes B over the head before or at the instant the pistol is discharged; and of the wound B dies. It turns out the pistol was loaded with *powder only*, and that the real design of B was only to *terrify* A. Will any reasonable man say that A is more criminal than he would have been if there had been a bullet in the pistol? Those who hold such doctrine must require that a man so attacked must, before he strikes the assailant, stop and ascertain how the pistol is loaded — a doctrine which would entirely take away the essential right of self-defense. And when it is considered that the jury who try the cause, and not the party killing, are to judge of the reasonable grounds of his apprehension, no danger can be supposed to flow from this principle." (Lloyd's Rep., p. 160.)

To the same effect are various decisions of the supreme court of Spain, cited by

Viada, a few of which are here set out in full because the facts are somewhat analogous to those in the case at bar.

> "QUESTION III. When it is shown that the accused was sitting at his hearth, at night, in company only of his wife, without other light than that reflected from the fire, and that the man with his back to the door was attending to the fire, there suddenly entered a person whom he did not see or know, who struck him one or two blows, producing a contusion on the shoulder, because of which he turned, seized the person and took from him the stick with which he had undoubtedly been struck, and gave the unknown person a blow, knocking him to the floor, and afterwards striking him another blow on the head, leaving the unknown lying on the floor, and left the house. It turned out the unknown person was his father-in-law, to whom he rendered assistance as soon as he learned his identity, and who died in about six days in consequence of cerebral congestion resulting from the blow. The accused, who confessed the facts, had always sustained pleasant relations with his father-in-law, whom he visited during his sickness, demonstrating great grief over the occurrence. Shall he be considered free from criminal responsibility, as having acted in self-defense, with all the circumstances related in paragraph 4, article 8, of the Penal Code? The criminal branch of the *Audiencia* of Valladolid found that he was an illegal aggressor, without sufficient provocation, and that there did not exist rational necessity for the employment of the force used, and in accordance with articles 419 and 87 of forced used, and in accordance with articles 419 and 87 of the Penal Code condemned him to twenty months of imprisonment, with accessory penalty and costs. Upon appeal by the accused, he was acquitted by the supreme court, under the following sentence: 'Considering, from the facts found by the sentence to have been proven, that the accused was surprised from behind, at night, in his house beside his wife, who was nursing her child, was attacked, struck, and eaten, without being able to distinguish the person or persons attacking, nor the instruments with which they might have executed their criminal intent, because of the fact that the attack was made from behind and because there was no other than fire light in the room, and considering that in such a situation and when the acts executed demonstrated that they might endanger his existence, and possibly that of his wife and child, more especially because his assailant was unknown, he should have defended himself, and in doing so with the same stick with which he was attacked, he did not exceed the limits of self-defense, nor did he use means which were not rationally necessary, particularly because the instrument with which he killed was the one which he took from his assailant, and was capable of producing death, and in the darkness of the house and the consternation which naturally resulted from such strong aggression, it was not given him to know or distinguish whether there was one or more assailants, nor the arms which they might bear, nor that which they might accomplish, and considering that the lower court did not find from the accepted facts that there existed rational necessity for the means employed, and that it did not apply paragraph 4 of article 8 of the Penal Code, it erred, etc.' (Sentence of supreme court of Spain, February 28, 1876.)" (Viada, Vol. I, p. 266.)

> "QUESTION XIX. A person returning, at night, to his house, which was situated in a retired part of the city, upon arriving at a point where there was no light, heard the voice of a man, at a distance of some 8 paces, saying: 'Face down, hand over your money!' because of which , and almost at the same moment , he fired two shots from his pistol, distinguishing immediately the voice of one of his friends (who had before stimulated a different voice)

saying, 'Oh! they have killed me,' and hastening to his assistance, finding the body lying upon the ground, he cried, 'Miguel, Miguel, speak, for God's sake, or I am ruined,' realizing that he had been the victim of a joke, and not receiving a reply, and observing that his friend was a corpse, he retired from the place. Shall he be declared exempt in toto from responsibility as the author of this homicide, as having acted in just self-defense under the circumstances defined in paragraph 4, article 8, Penal Code? The criminal branch of the *Audiencia* of Malaga did not so find, but only found in favor of the accused two of the requisites of said article, but not that of the reasonableness of the means employed to repel the attack, and therefore, condemned the accused to eight years and one day of *prision mayor*, etc. The supreme court acquitted the accused on his appeal from this sentence, holding that the accused was acting under a justifiable and excusable mistake of fact as to the identity of the person calling to him, and that under the circumstances, the darkness and remoteness, etc., the means employed were rational and the shooting justifiable. (Sentence supreme court, March 17, 1885.)" (Viada, Vol. I, p. 136.)

"Question VI. The owner of a mill, situated in a remote spot, is awakened, at night, by a large stone thrown against his window — at this, he puts his head out of the window and inquires what is wanted, and is answered 'the delivery of all his money, otherwise his house would be burned' — because of which, and observing in an alley adjacent to the mill four individuals, one of whom addressed him with blasphemy, he fired his pistol at one of the men, who, on the next morning was found dead on the same spot. Shall this man be declared exempt from criminal responsibility as having acted in just self-defense with all of the requisites of law? The criminal branch of the *Audiencia* of Zaragoza finds that there existed in favor of the accused a majority of the requisites to exempt him from criminal responsibility, but not that of reasonable necessity for the means, employed, and condemned the accused to twelve months of *prision correccional* for the homicide committed. Upon appeal, the supreme court acquitted the condemned, finding that the accused, in finding at the malefactors, who attacked his mill at night in a remote spot by threatening robbery and incendiarism, was acting in just self-defense of his person, property, and family. (Sentence of May 23, 1877)." (I Viada, p. 128.)

A careful examination of the facts as disclosed in the case at the bar convinces us that the defendant Chinaman struck the fatal below alleged in the information in the firm belief that the intruder who forced open the door of his sleeping room was a thief, from whose assault he was an imminent peril, both of his life and of his property and of the property committed to his charge; that in view of all the circumstances, as they must have presented themselves to the defendant at the time, he acted in good faith, without malice, or criminal intent, in the belief that he was doing no more than exercising hid legitimate right of self-defense; that had the facts been as he believed them to be he would have been wholly exempt from criminal liability on account of his act; and that he can not be said to have been guilty of negligence or recklessness or even carelessness in falling into his mistake as to the facts, or in the means adopted by him to defend himself from the imminent danger which he believed threatened his person and his property and the property under his charge.

The judgment of conviction and the sentence imposed by the trial court should be reversed, and the defendant acquitted of the crime with which he is charged and he is bail bond exonerated, with the costs of both instances de oficio. So ordered.

Johnson, Moreland and *Elliott, JJ.,* concur.

Arellano, C.J., and *Mapa, J.,* dissent.

Dissenting Opinion

TORRES, J.:

The writer, with due respect to the opinion of the majority of the court, believes that, according to the merits of the case, the crime of homicide by reckless negligence, is defined and punished in article 568 of the Penal Code, was committed, inasmuch as the victim was willfully (*voluntariamente*) killed, and while the act was done without malice or criminal intent it was, executed with real negligence, for the acts committed by the deceased could not warrant the aggression by the defendant under the erroneous belief on the part of the accused that the person who assaulted him was a malefactor; the defendant therefore incurred responsibility in attacking with a knife the person who was accustomed to enter said room, without any justifiable motive.

By reason of the nature of the crime committed, in the opinion of the undersigned the accused should be sentenced to the penalty of one year and one month of *prision correccional*, to suffer the accessory penalties provided in article 61, and to pay an indemnity of P1,000 to the heirs of the deceased, with the costs of both instances, thereby reversing the judgment appealed from.

FIRST DIVISION

[G.R. No. 47722. July 27, 1943.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **ANTONIO Z. OANIS and ALBERTO GALANTA**, *defendants-appellants*.

D E C I S I O N

MORAN, *J* :

Charged with the crime of murder of one Serapio Tecson, the accused Antonio Z. Oanis and Alberto Galanta, chief of police of Cabanatuan and corporal of the Philippine Constabulary, respectively were, after due trial, found guilty by the lower court of homicide through reckless imprudence and were sentenced each to an indeterminate penalty of from one year and six months to two years and two months of *prision correccional* and to indemnify jointly and severally the heirs of the deceased in the amount of P1,000. Defendants appealed separately from this judgment.

In the afternoon of December 24, 1938, Captain Godofredo Monsod, Constabulary Provincial Inspector at Cabanatuan, Nueva Ecija, received from Major Guido a telegram of the following tenor: "Information received escaped convict Anselmo Balagtas with *bailarina* named Irene in Cabanatuan get him dead or alive." Captain Monsod accordingly called for his first sergeant and asked that he be given four men. Defendant corporal Alberto Galanta, and privates Nicomedes Oralo, Venancio Serna and D. Fernandez, upon order of their sergeant, reported at the office of the Provincial Inspector where they were shown a copy of the abovequoted telegram and a newspaper clipping containing a picture of Balagtas. They were instructed to arrest Balagtas and, if overpowered, to follow the instruction contained in the telegram. The same instruction was given to the chief of police Oanis who was likewise called by the Provincial Inspector. When the chief of police was asked whether he knew one Irene, a bailarina, he answered that he knew one of loose morals of the same name. Upon request of the Provincial Inspector, the chief of police tried to locate some of his men to guide the constabulary soldiers in ascertaining Balagtas' whereabouts, and failing to see anyone of them he voluntered to go with the party. The Provincial Inspector divided the party into two groups with defendants Oanis and Galanta, and private Fernandez taking the route to Rizal street leading to the house where Irene was supposedly living. When this group arrived at Irene's house, Oanis approached one Brigida Mallare, who was then stripping banana stalks, and asked her where Irene's room was. Brigida indicated the place and upon further inquiry also said that Irene was sleeping with her paramour. Brigida trembling, immediately returned to her own room which was very near that occupied by Irene and her paramour. Defendants Oanis and Galanta then went to the room of Irene, and on seeing a man sleeping with his back towards the door where they were, simultaneously or successively fired at him with their .32 and .45 caliber revolvers. Awakened by the gunshots, Irene saw her paramour already wounded, and looking at the door where the shots came, she saw the defendants still firing at him. Shocked by the entire scene, Irene fainted; it turned out later that the person shot and killed was not the notorious criminal Anselmo Balagtas but a peaceful

and innocent citizen named Serapio Tecson, Irene's paramour. The Provincial Inspector, informed of the killing, repaired to the scene and when he asked as to who killed the deceased, Galanta, referring to himself and to Oanis, answered: "We two, sir." The corpse was thereafter brought to the provincial hospital and upon autopsy by Dr. Ricardo de Castro, multiple gunshot wounds inflicted by a .32 and a .45 caliber revolvers were found on Tecson's body which caused his death.

These are the facts as found by the trial court and fully supported by the evidence, particularly by the testimony of Irene Requinea. Appellants gave, however, a different version of the tragedy. According to Appellant Galanta, when he and chief of police Oanis arrived at the house, the latter asked Brigida where Irene's room was. Brigida indicated the place, and upon further inquiry as to the whereabouts of Anselmo Balagtas, she said that he too was sleeping in the same room. Oanis went to the room thus indicated and upon opening the curtain covering the door, he said: "If you are Balagtas, stand up." Tecson, the supposed Balagtas, and Irene woke up and as the former was about to sit up in bed. Oanis fired at him. Wounded, Tecson leaned towards the door, and Oanis receded and shouted: "That is Balagtas." Galanta then fired at Tecson.

On the other hand, Oanis testified that, after he had opened the curtain covering the door and after having said, "if you are Balagtas stand up," Galanta at once fired at Tecson, the supposed Balagtas, while the latter was still lying on bed, and continued firing until he had exhausted his bullets; that it was only thereafter that he, Oanis, entered the door and upon seeing the supposed Balagtas, who was then apparently watching and picking up something from the floor, he fired at him.

The trial court refused to believe the appellants. Their testimonies are certainly incredible not only because they are vitiated by a natural urge to exculpate themselves of the crime, but also because they are materially contradictory. Oanis averred that he fired at Tecson when the latter was apparently watching somebody in an attitude of picking up something from the floor; on the other hand, Galanta testified that Oanis shot Tecson while the latter was about to sit up in bed immediately after he was awakened by a noise. Galanta testified that he fired at Tecson, the supposed Balagtas, when the latter was rushing at him. But Oanis assured that when Galanta shot Tecson, the latter was still lying on bed. It is apparent from these contradictions that when each of the appellants tries to exculpate himself of the crime charged, he is at once belied by the other; but their mutual incriminating averments dovetail with, and corroborate substantially, the testimony of Irene Requinea. It should be recalled that, according to Requinea, Tecson was still sleeping in bed when he was shot to death by appellants. And this, to a certain extent, is confirmed by both appellants themselves in their mutual recriminations. According to Galanta, Oanis shot Tecson when the latter was still in bed about to sit up just after he was awakened by a noise. And Oanis assured that when Galanta shot Tecson, the latter was still lying in bed. Thus corroborated, and considering that the trial court had the opportunity to observe her demeanor on the stand, we believe and so hold that no error was committed in accepting her testimony and in rejecting the exculpatory pretensions of the two appellants. Furthermore, a careful examination of Irene's testimony will show not only that her version of the tragedy is not concocted but that it contains all indicia of veracity. In her cross-examination, even misleading questions had been put which were unsuccessful, the witness having stuck to the truth in every detail of the occurrence. Under these circumstances, we do not feel ourselves justified in disturbing the findings of fact made by the trial court.

The true fact, therefore, of the case is that, while Tecson was sleeping in his

room with his back towards the door, Oanis and Galanta, on sight, fired at him simultaneously or successively, believing him to be Anselmo Balagtas but without having made previously any reasonable inquiry as to his identity. And the question is whether or not they may, upon such fact, be held responsible for the death thus caused to Tecson. It is contended that, as appellants acted in innocent mistake of fact in the honest performance of their official duties, both of them believing that Tecson was Balagtas, they incur no criminal liability. Sustaining this theory in part, the lower court held and so declared them guilty of the crime of homicide through reckless imprudence. We are of the opinion, however, that, under the circumstances of the case, the crime committed by appellants is murder though specially mitigated by circumstances to be mentioned below.

In support of the theory of non-liability by reason of honest mistake of fact, appellants rely on the case of U. S. v. Ah Chong, 15 Phil., 488. The maxim is *ignorantia facti excusat*, but this applies only when the mistake is committed without fault or carelessness. In the Ah Chong case, defendant therein after having gone to bed was awakened by someone trying to open the door. He called out twice, "who is there," but received no answer. Fearing that the intruder was a robber, he leaped from his bed and called out again, "if you enter the room I will kill you." But at that precise moment, he was struck by a chair which had been placed against the door and believing that he was then being attacked, he seized a kitchen knife and struck and fatally wounded the intruder who turned out to be his room-mate. A common illustration of innocent mistake of fact is the case of a man who was masked as a footpad at night and in a lonely road held up a friend in a spirit of mischief, and with leveled pistol demanded his money or life. He was killed by his friend under the mistaken belief that the attack was real, that the pistol leveled at his head was loaded and that his life and property were in imminent danger at the hands of the aggressor. In these instances, there is an innocent mistake of fact committed without any fault or carelessness because the accused, having no time or opportunity to make a further inquiry, and being pressed by circumstances to act immediately, had no alternative but to take the facts as they then appeared to him, and such facts justified his act of killing. In the instant case, appellants, unlike the accused in the instances cited, found no circumstances whatsoever which would press them to immediate action. The person in the room being then asleep, appellants had ample time and opportunity to ascertain his identity without hazard to themselves, and could even effect a bloodless arrest if any reasonable effort to that end had been made, as the victim was unarmed, according to Irene Requinea. This, indeed, is the only legitimate course of action for appellants to follow even if the victim was really Balagtas, as they were instructed not to kill Balagtas at sight but to arrest him, and to get him dead or alive only if resistance or aggression is offered by him.

Although an officer in making a lawful arrest is justified in using such force as is reasonably necessary to secure and detain the offender, overcome his resistance, prevent his escape, recapture him if he escapes, and protect himself from bodily harm (People vs. Delima, 46 Phil., 738), yet he is never justified in using unnecessary force or in treating him with wanton violence, or in resorting to dangerous means when the arrest could be effected otherwise (6 C. J. S., par. 13, p. 612). The doctrine is restated in the new Rules of Court thus: "No unnecessary or unreasonable force shall be used in making an arrest, and the person arrested shall not be subject to any greater restraint than is necessary for his detention." (Rule 109, sec. 2, par. 2). And a peace officer cannot claim exemption from criminal liability if he uses unnecessary force or violence in making an arrest. (5 C. J., p. 753; U. S. vs. Mendoza, 2 Phil., 109). It may be true that Anselmo Balagtas was a notorious criminal, a life-termer, a fugitive from justice and a

menace to the peace of the community, but these facts alone constitute no justification for killing him when, in effecting his arrest, he offers no resistance, or in fact no resistance can be offered, as when he is asleep. This, in effect, is the principle laid down, although upon different facts, in U. S. vs. Donoso (3 Phil., 234, 242).

It is, however, suggested that a notorious criminal "must be taken by storm" without regard to his right to life which he has by such notoriety already forfeited. We may approve of this standard of official conduct where the criminal offers resistance or does something which places his captors in danger of imminent attack. Otherwise we cannot see how, as in the present case, the mere fact of notoriety can make the life of a criminal a mere trifle in the hands of the officers of the law. Notoriety rightly supplies a basis for redoubled official alertness and vigilance; it never can justify precipitate action at the cost of human life. Where, as here, the precipitate action of the appellants has cost an innocent life and there exist no circumstances whatsoever to warrant action of such character in the mind of a reasonably prudent man, condemnation — not condonation — should be the rule; otherwise we would offer a premium to crime in the shelter of official actuation.

The crime committed by appellants is not merely criminal negligence, the killing being intentional and not accidental. In criminal negligence, the injury caused to another should be unintentional, it being simply the incident of another act performed without malice. (People vs. Sara, 55 Phil., 939). In the words of Viada, "para que se califique un hecho de imprudencia es preciso que no haya mediado en el malicia ni intencion alguna de dañar; existiendo esa intencion, debera calificarse el hecho del delito que ha producido, por mas que no haya sido la intencion del agente el causar un mal de tanta gravedad como el que se produjo." (Tomo 7, Viada Codigo Penal Comentado, 5.a ed. pag. 7). And, as once held by this Court, a deliberate intent to do an unlawful act is essentially inconsistent with the idea of reckless imprudence (People vs. Nanquil, 43 Phil., 232; People vs. Bindor, 56 Phil., 16), and where such unlawful act is wilfully done, a mistake in the identity of the intended victim cannot be considered as reckless imprudence (People vs. Gona, 54 Phil., 605) to support a plea of mitigated liability.

As the deceased was killed while asleep, the crime committed is murder with the qualifying circumstance of alevosia. There is, however, a mitigating circumstance of weight consisting in the incomplete justifying circumstance defined in article 11, No. 5, of the Revised Penal Code. According to such legal provision, a person incurs no criminal liability when he acts in the fulfillment of a duty or in the lawful exercise of a right or office. There are two requisites in order that the circumstance may be taken as a justifying one: (*a*) that the offender acted in the performance of a duty or in the lawful exercise of a right; and (*b*) that the injury or offense committed be the necessary consequence of the due performance of such duty or the lawful exercise of such right or office. In the instant case, only the first requisite is present — appellants have acted in the performance of a duty. The second requisite is wanting for the crime by them committed is not the necessary consequence of a due performance of their duty. Their duty was to arrest Balagtas or to get him dead or alive if resistance is offered by him and they are overpowered. But through impatience or over-anxiety or in their desire to take no chances, they have exceeded in the fulfillment of such duty by killing the person whom they believed to be Balagtas without any resistance from him and without making any previous inquiry as to his identity. According to article 69 of the Revised Penal Code, the penalty lower by one or two degrees than that prescribed by law shall, in such case, be imposed.

For all the foregoing, the judgment is modified and appellants are hereby

declared guilty of murder with the mitigating circumstance above mentioned, and accordingly sentenced to an indeterminate penalty of from five (5) years of *prision correccional* to fifteen (15) years of *reclusion temporal*, with the accessories of the law, and to pay the heirs of the deceased Serapio Tecson jointly and severally an indemnity of P2,000, with costs.

Yulo, C.J., Bocobo, Generoso and *Lopez Vito, A.,* concur.

Dissenting Opinion

PARAS, J.:

Anselmo Balagtas, a life termer and notorious criminal, managed to escape and flee from Manila to the provinces. Receiving information to the effect that he was staying with one Irene in Cabanatuan, Nueva Ecija, the office of the Constabulary in Manila ordered the Provincial Inspector in Cabanatuan by telegram dispatched on December 24, 1938, to get Balagtas "dead or alive". Among those assigned to the task of carrying out the said order, were Antonio Z. Oanis, chief of police of Cabanatuan, and Alberto Galanta, a Constabulary corporal, to whom the telegram received by the Provincial Inspector and a newspaper picture of Balagtas were shown. Oanis, Galanta and a Constabulary private, after being told by the Provincial Inspector to gather information about Balagtas, "to arrest him and, if overpowered, to follow the instructions contained in the telegram," proceeded to the place where the house of Irene was located. Upon arriving thereat, Oanis approached Brigida Mallari, who was then gathering banana stalks in the yard, and inquired for the room of Irene. After Mallari had pointed out the room, she was asked by Oanis to tell where Irene's paramour, Balagtas, was, whereupon Mallari answered that he was sleeping with Irene. Upon reaching the room indicated, Oanis and Galanta, after the former had shouted "Stand up, if you are Balagtas," started shooting the man who was found by them lying down beside a woman. The man was thereby killed, but Balagtas was still alive, for it turned out that the person shot by Oanis and Galanta was one Serapio Tecson.

Consequently, Oanis and Galanta were charged with having committed murder. The Court of First Instance of Nueva Ecija, however, convicted them only of homicide through reckless imprudence and sentenced them each to suffer the indeterminate penalty of from 1 year and 6 months to 2 years and 2 months of *prision correccional*, to jointly and severally indemnify the heirs of Serapio Tecson in the amount of P1,000, and to pay the costs. Oanis and Galanta have appealed.

In accomplishing the acts with which the appellants were charged, they undoubtedly followed the order issued by the Constabulary authorities in Manila requiring the Provincial Inspector in Cabanatuan to get Balagtas dead or alive, in the honest belief that Serapio Tecson was Anselmo Balagtas. As the latter became a fugitive criminal, with revolvers in his possession and a record that made him extremely dangerous and a public terror, the Constabulary authorities were justified in ordering his arrest, whether dead or alive. In view of said order and the danger faced by the appellants in carrying it out, they cannot be said to have acted feloniously in shooting the person honestly believed by them to be the wanted man. Conscious of the fact that Balagtas would rather kill than be captured, the appellants did not want to take chances and should not be penalized for such prudence. On the contrary, they should be commended for their bravery and courage bordering on recklessness because, without knowing or ascertaining whether the wanted man was in fact asleep in his room, they proceeded thereto without hesitation and thereby exposed their lives to danger.

The Solicitor-General, however, contends that the appellants were authorized to use their revolvers only after being overpowered by Balagtas. In the first place, the alleged instruction by the Provincial Inspector to that effect, was in violation of the express order given by the Constabulary authorities in Manila and which was shown to the appellants. In the second place, it would indeed be suicidal for the appellants or, for that matter, any agent of the authority to have waited until they have been overpowered before trying to put out such a character as Balagtas. In the third place, it is immaterial whether or not the instruction given by the Provincial Inspector was legitimate and proper, because the facts exist that the appellants acted in conformity with the express order of superior Constabulary authorities, the legality or propriety of which is not herein questioned.

The theory of the prosecution has acquired some plausibility, though quite psychological or sentimental, in view only of the fact that it was not Balagtas who was actually killed, but an "innocent man . . . while he was deeply asleep." Anybody's heart will be profoundly grieved by the tragedy, but in time will be consoled by the realization that the life of Serapio Tecson was not vainly sacrificed, for the incident will always serve as a loud warning to any one desiring to follow in the footsteps of Anselmo Balagtas that in due time the duly constituted authorities will, upon proper order, enforce the summary forfeiture of his life.

In my opinion, therefore, the appellants are not criminally liable if the person killed by them was in fact Anselmo Balagtas for the reason that they did so in the fulfillment of their duty and in obedience to an order issued by a superior for some lawful purpose (Revised Penal Code, art. 11, pars. 5 and 6). They also cannot be held criminally liable even if the person killed by them was not Anselmo Balagtas, but Serapio Tecson, because they did so under an honest mistake of fact not due to negligence or bad faith. (U. S. vs. Ah Chong, 15 Phil., 488).

It is true that, under article 4 of the Revised Penal Code, criminal liability is incurred by any person committing a felony although the wrongful act done be different from that which he intended; but said article is clearly inapplicable since the killing of the person who was believed to be Balagtas was, as already stated, not wrongful or felonious.

The case of U. S. vs. Mendieta (34 Phil., 242), cited by the Solicitor-General, is not in point, inasmuch as the defendant therein, who intended to injure Hilario Lauigan with whom he had a quarrel, but killed another by mistake, would not be exempted from criminal liability if he actually injured or killed Hilario Lauigan, there being a malicious design on his part. The other case invoked by the prosecution is U. S. vs. Donoso (3 Phil., 234). This is also not in point, as it appears that the defendants therein killed one Pedro Almasan after he had already surrendered and allowed himself to be bound and that the said defendants did not have lawful instructions from superior authorities to capture Almasan dead or alive.

The appealed judgment should therefore be reversed and the appellants, Antonio Z. Oanis and Alberto Galanta, acquitted, with costs *de oficio*.

Dissenting Opinion

HONTIVEROS, J.:

According to the opinion of the majority, it is proper to follow the rule that a notorious criminal "must be taken by storm without regard to his life which he has, by

his conduct, already forfeited," whenever said criminal offers resistance or does something which places his captors in danger of imminent attack. Precisely, the situation which confronted the accused-appellants Antonio Z. Oanis and Alberto Galanta in the afternoon of December 24, 1938, was very similar to this. It must be remembered that both officers received instructions to get Balagtas "dead or alive", and according to the attitude of not only the said appellants but also of Capt. Monsod, constabulary provincial inspector of Nueva Ecija, it may be assumed that said instructions gave more emphasis to the first part; namely, to take him dead. It appears in the record that after the shooting, and having been informed of the case, Capt. Monsod stated that Oanis and Galanta might be decorated for what they had done. That was when all parties concerned honestly believed that the dead person was Balagtas himself, a dangerous criminal who had escaped from his guards and was supposedly armed with a .45 caliber pistol. Brigida Mallari, the person whom the appellants met upon arriving at the house of Irene Requinea, supposed mistress of Balagtas, informed them that said Balagtas was upstairs. Appellants found there asleep a man closely resembling the wanted criminal. Oanis said: "If you are Balagtas stand up." But the supposed criminal showed his intention to attack the appellants, a conduct easily explained by the fact that he should have felt offended by the intrusion of persons in the room where he was peacefully lying down with his mistress. In such predicament, it was nothing but human on the part of the appellants to employ force and to make use of their weapons in order to repel the imminent attack by a person who, according to their belief, was Balagtas. It was unfortunate, however, that an innocent man was actually killed. But taking into consideration the facts of the case, it is, according to my humble opinion, proper to apply herein the doctrine laid down in the case of U. S. vs. Ah Chong (15 Phil., 488). In the instant case we have, as in the case supra, an innocent mistake of fact committed without any fault or carelessness on the part of the accused, who, having no time to make a further inquiry, had no alternative but to take the facts as they appeared to them and act immediately.

The decision of the majority, in recognition of the special circumstances of this case which favored the accused-appellants, arrives at the conclusion that an incomplete justifying circumstance may be invoked, and therefore, according to Article 69 of the Revised Penal Code, the imposable penalty should be one which is lower by one or two degrees than that prescribed by law. This incomplete justifying circumstance is that defined in Article 11, No. 5, of the Revised Penal Code, in favor of "a person who acts in the fulfillment of a duty or in the lawful exercise of a right or office." I believe that the application of this circumstance is not proper. Article 69 of the Revised Penal Code provides as follows:

> "ART. 69. *Penalty to be imposed when the crime committed is not wholly excusable*. — A penalty lower by one or two degrees than that prescribed by law shall be imposed if the deed is not wholly excusable by reason of the lack of some of the conditions required to justify the same or to exempt from criminal liability in the several cases mentioned in articles 11 and 12, provided that the majority of such conditions be present. The courts shall impose the penalty in the period which may be deemed proper, in view of the number and nature of the conditions of exemption present or lacking."

This provision has been copied almost *verbatim* from Article 84 of the old Penal Code of the Philippines, and which was also taken from Article 87 of the Spanish Penal Code of 1870.

Judge Guillermo Guevara, one of the members of the Committee created by

Administrative Order No. 94 of the Department of Justice for the drafting of the Revised Penal Code, in commenting on Article 69, said that the justifying circumstances and circumstances exempting from liability which are the subject matter of this article are the following: self-defense, defense of relatives, defense of strangers, state of necessity and injury caused by mere accident. Accordingly, justifying circumstance No. 5 of Article 11 dealing with the fulfillment of a duty or the lawful exercise of a right, calling or office, cannot be placed within its scope.

The eminent treatiser of criminal law Mr. Groizard, in his commentary of Article 87 of the Spanish Penal Code of 1870 which is the source of Article 69 of our Code, says:

> "Ni tratandose de la imbecilidad, ni de la locura, ni de la menor edad, ni del que obra violentado por una fuerza irresistible o impulsado por miedo insuperable de un mal igual o mayor, o en cumplimiento de un deber, o en el ejercicio legítimo de un derecho, oficio o cargo, o en virtud de obediencia debida, ni del que incurre en alguna omision hallandose impedido por causa legítima o insuperable, puede tener aplicacion al articulo que comentamos. Y la razon es obvia. En ninguna de estas exenciones hay pluralidad de requisitos. La irresponsabilidad depende de una sola condicion. Hay o no perturbacion de la razon; el autor del hecho es o no menor de nueve años; existe o no violencia material o moral irresistible, etc., etc.; tal es lo que respectivamente hay que examinar y resolver para declarar la culpabilidad o inculpabilidad. Es, por lo tanto, imposible que acontezca lo que el texto que va al frente de estas lineas requiere, para que se imponga al autor del hecho la penalidad excepcional que establece; esto es, que falten algunos requisitos de los que la ley exige para eximir de responsabilidad, y que concurran el mayor número de ellos, toda vez que, en los casos referidos, la ley no exige multiples condiciones."

It must be taken into account the fact according to Article 69 a penalty lower by one or two degrees than that prescribed by law shall be imposed if the deed is not wholly excusable by reason of the lack of some of the conditions required by the law to justify the same or exempt from criminal liability. The word "conditions" should not be confused with the word "requisites". In dealing with justifying circumstance No. 5, Judge Guevara states: "There are two requisites in order that this circumstance may be taken into account: (*a*) That the offender acted in the performance of his duty or in the lawful exercise of a right; and (*b*) That the injury or offense committed be the necessary consequence of the performance of a duty or the lawful exercise of a right or office." It is evident that these two requisites concur in the present case if we consider the intimate connection between the order given to the appellant by Capt. Monsod, the showing to them of the telegram from Manila to get Balagtas who was with a bailarina named Irene, the conduct of said appellants in questioning Brigida Mallari and giving a warning to the supposed criminal when both found him with Irene, and the statement made by Capt. Monsod after the shooting.

If appellant Oanis is entitled to a reversal of the decision of the court below, there are more reasons in favor of the acquittal of appellant Galanta. According to the evidence no bullet from the gun fired by this accused ever hit Serapio Tecson. Galanta was armed in the afternoon of December 24, 1938, with a .45 caliber revolver (Exhibit L). He so testified and was corroborated by the unchallenged testimony of his superior officer Sgt. Valeriano Serafica. According to this witness, since Galanta was made a corporal of the Constabulary he was given, as part of his equipment, revolver Exhibit L with a serial No. 37121. This gun had been constantly used by Galanta, and, according to Sgt. Pedro Marasigan, who accompanied said accused when he took it from his trunk

in the barracks on the night of December 24, 1938, upon order of Captain Monsod, it was the same revolver which was given to the witness with five .45 caliber bullets and one empty shell. Fourteen unused bullets were also taken from Galanta by Sergeant Serafica, thus completing his regular equipment of twenty bullets which he had on the morning of December 24, 1938, when Sergeant Serafica made the usual inspection of the firearms in the possession of the non-commissioned officers and privates of the constabulary post at Cabanatuan. Galanta stated that he had fired only one shot and missed. This testimony is corroborated by that of a ballistic expert who testified that bullets exhibits F and O, — the first being extracted from the head of the deceased, causing wound No. 3 of autopsy report Exhibit C and the second found at the place of the shooting, — had not been fired from revolver Exhibit L nor from any other revolver of the constabulary station in Cabanatuan. It was impossible for the accused Galanta to have substituted his revolver because when Exhibit L was taken from him nobody in the barracks doubted that the deceased was none other than Balagtas. Moreover, Exhibit L was not out of order and therefore there was no reason why Galanta should carry along another gun, according to the natural course of things. On the other hand, aside from wound No. 3 as above stated, no other wound may be said to have been caused by a .45 caliber revolver bullet. Doctor Castro's record gives the conclusion that wound No. 2 must have been caused by a .45 caliber bullet, but inasmuch as the diameter of the wound's entrance was only 8 mm., the caliber should be .32 and not .45, because according to the medico-legal expert who testified in this case, a bullet of a .45 caliber will produce a wound entrance with either 11 mm. or 12 mm. diameter. All other wounds found by the surgeon who performed the autopsy appeared to have been caused by bullets of a lesser caliber. In consequence, it can be stated that no bullet fired by Galanta did ever hit or kill Serapio Tecson and therefore there is no reason why he should be declared criminally responsible for said death.

SECOND DIVISION

[G.R. No. 207175. November 26, 2014.]

EDUARDO MAGSUMBOL, *petitioner*, ***vs.*** **PEOPLE OF THE PHILIPPINES**, *respondent*.

DECISION

MENDOZA, *J* :

This is a petition for review on *certiorari* seeking to reverse and set aside the December 14, 2012 Decision [1] and the May 6, 2013 Resolution [2] of the Court of Appeals *(CA)* in CA-G.R. CR No. 34431 filed by Eduardo Magsumbol *(Magsumbol)*, questioning his conviction for Theft.

The Facts

Petitioner Magsumbol, together with Erasmo Magsino *(Magsino)*, Apolonio Inanoria *(Inanoria)*, and Bonifacio Ramirez *(Ramirez)*, was charged with the crime of Theft in the Information, dated August 30, 2002, filed before the Regional Trial Court of Lucena City, Branch 55 *(RTC)* and docketed as Criminal Case No. 2002-1017. The Information indicting Magsumbol and his co-accused reads:

> That on or about the 1st day of February 2002, at Barangay Kinatihan I, in the Municipality of Candelaria, Province of Quezon, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, conspiring and confederating together with seven (7) John Does whose true names and real identities are still unknown and whose physical descriptions were not made known by available witnesses, and who are all still at large, and mutually helping one another, with intent to gain and without the consent of the owner, Menandro Avanzado, did then and there willfully, unlawfully and feloniously cut, take, steal and carry away with them thirty three (33) coconut trees from the coconut plantation of the said owner, valued at FORTY FOUR THOUSAND FOUR HUNDRED PESOS (P44,400.00), Philippine currency, belonging to said Menandro Avanzado, to his damage and prejudice in the aforesaid amount. [3]

Culled from the testimonies of prosecution witnesses Ernesto Caringal *(Caringal)*, private complainant Engr. Menandro Avanzado *(Menandro)*, and SPO1 Florentino Manalo *(SPO1 Manalo)*, it appears that at around 11:00 o'clock in the morning of February 1, 2002, Caringal, the overseer of a one-hectare unregistered parcel of land located in Candelaria, Quezon, and co-owned by Menandro, saw the four accused, along with seven others, cutting down the coconut trees on the said property. Later, the men turned the felled trees into coco lumber. Caringal did not attempt to stop the men from cutting down the coconut trees because he was outnumbered. Instead, Caringal left the site and proceeded to San Pablo City to inform Menandro about the incident.

On February 3, 2002, Menandro and Caringal reported the incident to the police. Thereafter, the two, accompanied by SPO1 Manalo, went to the coconut plantation only to discover that about thirty three (33) coconut trees *(subject trees)* had been cut down.

The coco lumber were no longer in the area. They took photographs of the stumps left by the men.

The defense, on the other hand, presented Atanacio Avanzado *(Atanacio)*, accused Ramirez, petitioner Magsumbol, Barangay Captain Pedro Arguelles *(Brgy. Captain Arguelles)* and accused Inanoria, to substantiate its claim of innocence for all the accused.

Atanacio testified that he authorized his brothers-in-law, Magsino and Magsumbol, to cut down the coconut trees within the boundary of his property, which was adjacent to the land co-owned by Menandro. Atanacio admitted that he had never set foot on his property for about 20 years already and that he was not present when the cutting incident happened.

Defense witness Brgy. Captain Arguelles testified that on January 28, 2002, Magsumbol, Magsino, Ramirez, and Inanoria came to his office seeking permission to cut down the coconut trees planted on the land of Atanacio.

All the accused vehemently denied the charges against them. Ramirez and Magsumbol claimed that only the coconut trees which stood within the land owned by Atanacio, a relative off the private complainant, were cut down on that morning of February 1, 2002. Ramirez added that he was a coco lumber trader and that Atanacio offered to sell the coconut trees planted on his lot. Magsumbol claimed that he took no part in the felling of the coconut trees but merely supervised the same. He claimed that he did not receive any remuneration for the service he rendered or a share from the proceeds of the coco lumbers sale. Inanoria likewise denied participation in the cutting down of the coconut trees but confirmed the presence of Magsumbol and Magsino at the site to supervise the accomplishment of the work being done thereat. Inanoria corroborated the narration of Magsumbol and Ramirez that all the felled trees were planted inside the lot owned by Atanacio. Inanoria intimated that Menandro included him in the complaint for theft due to his refusal to accede to latter's request for him to testify against his co-accused in relation to the present criminal charge. [4]

Ruling of the RTC

On March 15, 2011, the RTC rendered its decision [5] stating that the prosecution was able to establish with certitude the guilt of all the accused for the crime of simple theft. The RTC rejected the defense of denial invoked by the accused in the face of positive identification by Caringal pointing to them as the perpetrators of the crime. It did not believe the testimony of Atanacio and even branded him as biased witness on account of his relationship with accused Magsino and Magsumbol. The trial court adjudged:

> WHEREFORE, judgment is hereby rendered finding all the accused Erasmo Magsino, Apolonio Inanoria, Eduardo Magsumbol and Bonifacio Ramirez guilty as charged and applying the Indeterminate sentence law, the court hereby sentences them to suffer an imprisonment of 2 years, 4 months and 1 day of *Prision Correccional* as minimum to 6 years and 1 day of *Prision Mayor* as maximum.
>
> The accused are likewise directed to pay jointly and severally Engr. Menandro Avanzado and the other heirs of Norberto Avanzado the sum of P13,200.00 representing the value of the 33 coconut trees they have cut and sold to accused Ramirez.
>
> SO ORDERED.

Aggrieved, the accused appealed from the March 15, 2011 judgment of the RTC before the CA insisting that the prosecution evidence did not meet the quantum of proof necessary to warrant their conviction of the crime charged. They posited that the RTC erred in failing to appreciate the lack of criminal intent on their part to commit the crime of simple theft. They claimed that not a scintilla of evidence was presented to prove the element of intent to gain. [6]

Ruling of the CA

In its assailed Decision, dated December 14, 2012, the CA sustained the findings of facts and conclusions of law by the RTC and upheld the judgment of conviction rendered against the accused. The CA was of the view, however, that the crime committed in this case would not fall under the general definition of theft under Article 308 of the Revised Penal Code *(RPC)*, but rather under paragraph (2) of the same provision which penalizes *theft of damaged property*. The CA ruled that the RTC was correct in giving full faith and credence to the testimony of Caringal who was not shown to have been motivated by any ill will to testify falsely against the accused. It agreed with the RTC that Atanacio's testimony should not be given any evidentiary weight in view of his relationship with Magsino and Magsumbol, which provided sufficient reason for him to suppress or pervert the truth. Anent the element of intent to gain, the CA stated that the mere fact that the accused cut the coconut trees on Menandro's land and made them into coco lumber, gave rise to the presumption that it was done with intent to gain. The *fallo* reads:

> WHEREFORE, premises considered, the appeal is hereby DENIED. The Decision dated March 15, 2011, of the Regional Trial Court, Branch 55, Lucena City is AFFIRMED with MODIFICATION in that the accused-appellants Erasmo Magsino, Apolonio Inanoria, Eduardo Magsumbol and Bonifacio Ramirez are sentenced to suffer imprisonment of two (2) years, four (4) months and one (1) day as minimum, to seven (7) years, four (4) months and one (1) day, as maximum; and to pay jointly and severally private complainant Menandro Avanzado the amount of Thirteen Thousand Two Hundred Pesos (P13,200.00).
>
> SO ORDERED. [7]

The accused moved for reconsideration of the December 14, 2012 Decision but their motion was denied by the CA on May 6, 2013.

Issues:

Bewailing his conviction, Magsumbol filed the present petition before this Court and imputes to the CA the following

ERRORS:

THE HONORABLE COURT OF APPEALS COMMITTED SERIOUS ERRORS OF LAW WHEN IT FOUND THE ACCUSED GUILTY OF THE CRIME OF THEFT UNDER ARTICLE 308 OF THE REVISED PENAL CODE, IN THAT:

I

NO COMPETENT EVIDENCE WAS ADDUCED BY THE PROSECUTION TO PROVE THAT THE COCONUT TREES THAT WERE CUT WERE BEYOND THE PROPERTY OWNED BY ATANACIO AVANZADO; and

II

MALICE AND INTENT TO GAIN, AS ELEMENTS OF THE CRIME OF THEFT, ARE NOT PRESENT IN THE CASE AT HAND. [8]

The Court's Ruling

The petition is impressed with merit.

It is a time-honored rule that the assessment of the trial court with regard to the credibility of witnesses deserves the utmost respect, if not finality, for the reason that the trial judge has the prerogative, denied to appellate judges, of observing the demeanor of the declarants in the course of their testimonies. Though it is true that the trial court's evaluation of the credibility of witnesses and their testimonies is entitled to great respect and will not be disturbed on appeal, this rule, however, is not a hard and fast one. The exception is observed if there is a showing that the trial judge overlooked, misunderstood, or misapplied some fact or circumstance of weight and substance that would have cast doubt on the guilt of the accused. [9] The said exception apparently exists in the case at bench.

It is the statutory definition that generally furnishes the elements of each crime under the RPC, while the elements in turn unravel the particular requisite acts of execution and accompanying criminal intent. In the case at bench, petitioner Magsumbol and his co-accused were convicted by the CA of the crime of theft of damaged property under paragraph (2) of Article 308 of the RPC which provides:

> Art. 308. *Who are liable for theft.* — . . .
>
> Theft is likewise committed by:
>
> 1. . . .;
>
> 2. Any person who, after having **maliciously damaged** the property of another, shall remove or make use of the fruits or object of the damage caused by him; and . . . .
>
> [Emphasis Supplied]

To warrant a conviction under the aforecited provision for theft of damaged property, the prosecution must prove beyond reasonable that the accused maliciously damaged the property belonging to another and, thereafter, removed or used the fruits or object thereof, with intent to gain. Evidently, theft of damaged property is an intentional felony for which criminal liability attaches only when it is shown that the malefactor acted with criminal intent or malice. Criminal intent must be clearly established with the other elements of the crime; otherwise, no crime is committed. [10] Was criminal intent substantiated to justify the conviction of Magsumbol and his co-accused?

It does not so appear in this case.

There is no dispute that the land co-owned by Menandro is adjacent to the land owned by Atanacio. The prosecution claimed that the thirty three (33) cut coconut trees were planted within the land co-owned by Menandro. The defense, on the other hand, averred that only the coconut trees found within the land of Atanacio were felled by Magsumbol and his co-accused. Menandro testified that there were muniments that delimit the boundaries between the adjacent lots [11] while Atanacio claimed that there were none and that "x" marks were just etched on the trunk of the trees to delineate the boundary of his land. [12] Apart from the bare allegations of these witnesses, no concrete

and competent evidence was adduced to substantiate their respective submissions. In view of such conflicting claims and considering the meager evidence on hand, the Court cannot determine with certainty the owner of the 33 felled coconut trees. The uncertainty of the exact location of the coconut trees negates the presence of the criminal intent to gain.

At any rate, granting *arguendo* that the said coconut trees were within Menandro's land, no malice or criminal intent could be rightfully attributed to Magsumbol and his co-accused. The RTC and the CA overlooked one important point in the present case, to wit: Magsumbol and his co-accused went to Barangay Kinatihan I, Candelaria, Quezon, to cut down the coconut trees belonging to Atanacio upon the latter's instruction.

Such fact was confirmed by Atanacio who narrated that due to financial reversals, he sold all the coconut trees in his land to Ramirez, a coco lumber trader; that since he could not go to the site due to health reasons, he authorized Magsumbol and Magsino to cut down his trees and to oversee the gathering of the felled trees; that he informed Menandro about this and even offered to pay for the damages that he might have sustained as some of his (Menandro's) trees could have been mistakenly cut down in the process; that Menandro refused his offer of compensation and replied that a case had already been filed against the four accused; and that he tried to seek an audience again from Menandro, but the latter refused to talk to him anymore. [13]

Both the RTC and the CA chose to brush aside the foregoing unrebutted testimony of Atanacio for being unreliable and considered him a biased witness simply because he is related by affinity to Magsumbol and Magsino. Family relationship, however, does not by itself render a witness' testimony inadmissible or devoid of evidentiary weight. [14] To warrant rejection of the testimony of a relative or friend, it must be clearly shown that, independently of the relationship, the testimony was inherently improbable or defective, or that improper or evil motives had moved the witness to incriminate the accused falsely. [15]

The relationship of Atanacio to the accused, per se, does not impair his credibility. It bears stressing that while Magsumbol and Magsino are Atanacio's brothers-in-law, Menandro is his cousin. Considering that both the accused and the accuser are Atanacio's relatives, and purportedly both have bearing with regard to his decision, why would then Atanacio support one over the other? The logical explanation could only be that Atanacio had indeed ordered Magsumbol and Magsino to cut the trees on his land. The Court is convinced that Atanacio was telling the truth.

If, indeed, in the course of executing Atanacio's instructions, Magsumbol and his co-accused encroached on the land co-owned by Menandro, because they missed the undetectable boundary between the two lots, and cut down some of Menandro's trees, such act merely constituted mistake or judgmental error. The following pronouncement in the case of *Lecaroz vs. Sandiganbayan* [16] may serve as a guidepost, to wit:

> If what is proven is mere judgmental error on the part of the person committing the act, no malice or criminal intent can be rightfully imputed to him. . . . . Ordinarily, evil intent must unite with an unlawful act for a crime to exist. *Actus non facit reum, nisi mens sit rea* **There can be no crime when the criminal mind is wanting**. As a general rule, ignorance or mistake as to particular facts, honest and real, will exempt the doer from felonious responsibility. The exception of course is neglect in the discharge of duty or indifference to consequences, which is equivalent to criminal intent, for in this

instance, the element of malicious intent is supplied by the element of negligence and imprudence. [17]

[Emphasis supplied]

The criminal mind is indeed wanting in the situation where Magsumbol and his co-accused even sought prior permission from Brgy. Captain Arguelles to cut down the coconut trees which was done openly and during broad daylight effectively negated malice and criminal intent on their part. It defies reason that the accused would still approach the barangay captain if their real intention was to steal the coconut trees of Menandro. Besides, criminals would usually execute their criminal activities clandestinely or through stealth or strategy to avoid detection of the commission of a crime or a wrongdoing.

The findings of this Court in this case should not create the mistaken impression that the testimonies of the prosecution witnesses should always be looked at with askance. The point is that courts should carefully scrutinize the prosecution evidence to make sure that no innocent person is condemned. An allegation, or even a testimony, that an act was done should never be hastily accepted as proof that it was really done. Evidence adduced must be closely examined under the lens of a judicial microscope to ensure that conviction only flows from moral certainty that guilt has been established by proof beyond reasonable doubt.

Here, that quantum of proof has not been satisfied. The prosecution miserably failed to establish proof beyond reasonable doubt that Magsumbol, together with his co-accused, damaged the property of Menandro with malice and deliberate intent and then removed the felled coconut trees from the premises.

Hence, we must reckon with a *dictum* of the law, *in dubilis reus est absolvendus*. All doubts must be resolved in favor of the accused.

WHEREFORE, the petition is **GRANTED**. The assailed December 14, 2012 Decision and the May 6, 2013 Resolution of the Court of Appeals in CA-G.R. CR No. 34431 are **REVERSED** and **SET ASIDE**. Petitioner Eduardo Magsumbol is **ACQUITTED** on reasonable doubt.

SO ORDERED.

Carpio, Del Castillo, Reyes [*] and *Leonen, JJ.,* concur.

Footnotes

* Designated Acting Member in lieu of Associate Justice Arturo D. Brion, per Special Order No. 1881, dated November 25, 2014.

1. Penned by Associate Justice Ramon R. Garcia, with Associate Justice Amelita G. Tolentino and Associate Justice Danton Q. Bueser, concurring; *rollo*, pp. 18-30.

2. *Id.* at 31-32.

3. *Id.* at 19.

4. *Id.* at 20-21.

5. Penned by Judge Bienvenido A. Mapaye; record, pp. 488-499.

6. *Id.* at 24.

7. *Rollo*, p. 29.

8. *Id.* at 5.

9. *People v. Alvarado*, 429 Phil. 208, 219 (2002).

10. *Garcia v. Court of Appeals*, 519 Phil. 591, 596 (2006).

11. TSN, dated September 17, 2003, p. 30.

12. TSN, dated June 7, 2006, p. 7.

13. TSN, dated February 8, 2006, pp. 6-7.

14. *People v. Manambit*, 338 Phil. 57, 96 (1997).

15. *People v. Lusabio, Jr.*, G.R. No. 186119, October 27, 2009, 604 SCRA 565, 585.

16. 364 Phil. 890 (1999).

17. *Id.* at 905.

THIRD DIVISION

[G.R. No. 206725. July 11, 2018.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **ESMAEL GERVERO, FLORENCIO ARBOLONIO, DANILO CASTIGADOR, CELSO SOLOMON AND EDUARDO BAÑES**, *accused*.

ESMAEL GERVERO (deceased), DANILO CASTIGADOR, CELSO SOLOMON AND EDUARDO BAÑES, *accused-appellants*.

DECISION

MARTIRES, *J.*:

This is an appeal from the 31 March 2011 Decision [1] of the Court of Appeals in CA-G.R. CR-H.C. No. 00674 which affirmed with modification the 6 March 2006 Decision [2] of the Regional Trial Court, Branch 29, Iloilo City *(RTC)*, in Criminal Case No. 37792, finding Esmael Gervero, Florencio Arbolonio, Celso Solomon, Danilo Castigador, and Eduardo Bañes *(the accused)* guilty of murder. [3]

THE FACTS

In an Information, dated 27 March 1992, the accused were charged with multiple murder. The information reads:

> That on or about the 25th day of November, 1991, in the Municipality of Lemery, Province of Iloilo, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, conspiring and confederating with one another, with deliberate intent and decided purpose to kill, armed with firearms, they were then provided, through treachery, evident premeditation and superior strength, did then and there, wilfully, unlawfully, and feloniously attack, assault, shoot and hit HERNANDO VILLEGAS, JOSE VILLEGAS and BENITO BASUG, JR. with said firearms inflicting upon said Hernando Villegas, Jose Villegas and Benito Basug, Jr. numerous gunshot wounds on different parts of their bodies which caused their deaths immediately thereafter.
>
> CONTRARY TO LAW. [4]

Upon arraignment, the accused pleaded not guilty to the charge.

Version of the Prosecution

The prosecution presented Delia Villegas *(Delia)*, Isaac Villegas *(Isaac)*, Dr. Alexander Rendon *(Dr. Rendon),* Barangay Captain Hernando Balinas *(Brgy. Capt. Balinas)*, Roda Incronal *(Roda)*, SPO3 Julius Dacles, PO3 Nazario Apundar, PS/Supt. Juan Mabugat, Jr., Inspector Norberto Simon, Nenita Villegas, and Ramona Basug as its witnesses. Their combined testimony tended to establish the following:

At around 6:30 p.m. of 25 November 1991, at Barangay Milan, Lemery, Iloilo, Roda was at the house of Barangay Civilian Volunteer Organization *(CVO)* Commander

Hernando Villegas *(Hernando)*. After eating and while Roda was waiting for transportation bound for her residence at Ajuy, Hernando, CVO members Jose Villegas *(Jose)* and Benito Basug, Jr. *(Benito)* came out of Hernando's house. Citizens Armed Forces Geographical Unit *(CAFGU)* officers Bañes, Castigador, and their two companions, who were carrying firearms, approached Hernando and asked him for money. When Hernando gave them P20.00, Bañes remarked, "Is that the only amount you can give when you just received money from your wife?" Castigador took the money and said, "You just watch out." When the CAFGU officers left, Roda informed Hernando of Castigador's remark, which Hernando dismissed. Thereafter, Hernando, Jose, and Benito went back to Hernando's house and prepared to go to the wake of CVO member Saturnino Inventor's wife. [5]

At around eight o'clock in the evening, while Delia was inside their house at Barangay Milan, Lemery, Iloilo, her husband Jose, together with Hernando and Benito, passed by. Delia peeped through the window, called Jose's attention, and told him not to stay long at the wake. With the area being illuminated by a light bulb, Delia saw the three walk along the national road and cross towards the rice field. A few minutes later, Isaac, Jose's younger brother and also a CVO member, passed by Delia's house together with Roda. Isaac shouted to call the attention of Hernando, who was then already in the middle of the rice field. Roda, Delia, and Isaac could hear the three CVOs laughing while they were traversing the rice field. [6]

Suddenly, Delia, Roda, and Isaac heard a burst of gunfire from where Hernando, Jose, and Benito were walking. Jose, who was then wearing a pair of white pants, fell first. Delia heard someone shout, "This is Hernando, a CVO!" and someone replied, "Birahi na!" ("Shoot now!"). Delia, from her window, also saw Hernando attempting to turn back but was also gunned down. She also witnessed the group of armed men approach the three CVOs whom they fired upon at close range. [7]

When they heard the gunfire, Isaac dropped to the ground and ran back to his house; Roda took cover among the rice paddies, looked at the direction of the gunshots, and saw persons with long firearms. When Roda reached Hernando's house, she saw Hernando's son Ronnie and told him that his father was shot but warned him not to go out as he might also be harmed. Delia and Isaac heard men pass by their houses thereafter. Isaac recognized some of the gunmen to be his friends and positively identified the accused as the armed men he saw. [8]

Later that same night, Pilar Basulgan, wife of Brgy. Capt. Balinas, summoned Isaac. Together with Delia and Ronnie, Isaac went to the house of Brgy. Capt. Balinas. There they saw the accused who had already told Brgy. Capt. Balinas that they made a mistake in shooting Hernando, Jose, and Benito because they thought that the three were members of the New People's Army *(NPA)*. Isaac asserted that misapprehension was impossible because the CAFGU officers personally knew the victims and the voices of the three CVO members were recognizable. Brgy. Capt. Balinas asked if the victims were able to shoot back, but the accused answered in the negative. Thereafter, Isaac, Delia and Ronnie proceeded to the crime scene and saw Hernando, Jose, and Benito lifeless on the ground. [9]

Version of the Defense

At around six o'clock in the evening of 25 November 1991, the accused were given oral instructions by Senior Inspector Benigno Baldevinos *(Senior Inspector Baldevinos)* to conduct tactical patrol and combat operations against NPA members at

Barangay Milan, Lemery, Iloilo. In that briefing, they were told to use the password "Simoy," to which the response would be "Amoy." [10]

At Barangay Milan, the accused positioned themselves near the river. A while later, they noticed people approaching, which prompted Arbolonio to utter the password "Simoy." Instead of replying with the agreed safe word, the men fired at the accused. The accused fired back and the exchange of gunfire lasted for about thirty minutes. Gervero thereafter ordered his group to gather the firearms of the slain persons. Arbolonio crawled ahead of his companions and with the use of a flashlight, he recovered a homemade armalite and one pistolized 12 gauge with two live ammunitions. Gervero ordered the group to proceed to the house of Brgy. Capt. Balinas to inform him that they encountered a group of men, whom they believed to be members of the NPA. They also turned over the recovered firearms to the police and reported the incident to Senior Inspector Baldevinos, who went back to the scene of the incident with the accused. [11]

The Regional Trial Court's Ruling

In its decision, the RTC found the accused guilty of murder. It found the testimonies of prosecution witnesses straightforward, credible, and in accord with the physical evidence.

With regard to the defense of fulfillment of duty, the trial court ruled that the attendant circumstances leading to the killing of the three victims by the accused clearly showed the absence of the two essential requisites for such defense to prosper. It declared that while it may be initially said that the accused acted in obedience to the order of their superior to conduct foot patrol and take up ambush position at the place of the incident, they undoubtedly exceeded in the performance of their duties by immediately firing successive shots on the three unsuspecting victims. The RTC observed that the accused approached their victims and mercilessly sprayed them with bullets to completely silence them.

The court *a quo* further held that the defense of misencounter due to mistake of fact was unbelievable. It noted that just a few hours before the incident happened, Bañes, Castigador, and two other unidentified CAFGU members came to the house of Hernando to ask for money, indicating that they knew each other; and that Gervero was likewise bound by his testimony that he knew Hernando. Lastly, the RTC concluded that the suddenness of the attack and the lack of opportunity for the victims to defend themselves constituted treachery. The *fallo* reads:

> WHEREFORE, premises considered, judgment is hereby rendered finding the remaining five (5) accused ESMAEL GERVERO, FLORENCIO ARBOLONIO, CELSO SOLOMON, DANILO CASTIGADOR and EDUARDO BAÑES GUILTY beyond reasonable doubt of the crime of MURDER under Art. 248 of the Revised Penal Code, and hereby sentences each of them as follows:
>
> 1. The penalty of RECLUSION PERPETUA for the death of Hernando Villegas;
> 2. The penalty of RECLUSION PERPETUA for the death of Jose Villegas; and
> 3. The penalty of RECLUSION PERPETUA for the death of Benito Basug, Jr.
>
> Each of the accused are likewise ordered to pay the heirs of Hernando

Villegas, Jose Villegas and Benito Basug, Jr. the following:

1. P15,000.00 as temperate damages;
2. P50,000.00 as civil indemnity;
3. P50,000.00 as exemplary damages;
4. P50,000.00 as moral damages; and
5. To pay the costs.

SO ORDERED. [12]

Aggrieved, the accused elevated its appeal before the CA.

The Court of Appeals Ruling

In its assailed decision, the CA affirmed the conviction of the accused but modified the amount of damages awarded. It pronounced that even in cases of arrest, the use of unnecessary force, the wantonly violent treatment of the offender, and the resort to dangerous means, when such apprehension could be done otherwise, were not justified acts. The appellate court opined that the accused were entirely careless in not first verifying the identities of the victims; such negligence diminished the defense of mistake of fact. It added that if self-defense could be negated by the manner it was allegedly employed, the sheer number of gunshot wounds demonstrated the accused's *mens rea*. The CA disposed of the case in this wise:

> WHEREFORE, in view of the foregoing premises, the assailed Decision of 06 March 2006 rendered by the Regional Trial Court (RTC) of Iloilo City, Branch 29, in Criminal Case No. 37792 is hereby AFFIRMED with MODIFICATION only insofar as the amount of damages as follows:
>
> "Each of the accused [is] likewise ordered to pay the heirs of Hernando Villegas, Jose Villegas, and Benito Basug, Jr. the following:
>
> 1. P25,000.00 as temperate damages;
> 2. P75,000.00 as civil indemnity;
> 3. P30,000.00 as exemplary damages;
> 4. P75,000.00 as moral damages; and
> 5. To pay the costs."
>
> SO ORDERED. [13]

Hence, this appeal by Esmael Gervero *(deceased)*, Danilo Castigador, Celso Solomon, and Eduardo Bañes *(accused-appellants)*.

ISSUES

I. WHETHER THE TRIAL COURT ERRED IN NOT APPRECIATING THE DEFENSE OF MISTAKE OF FACT; AND

II. WHETHER THE TRIAL COURT ERRED IN RULING THAT THE AGGRAVATING CIRCUMSTANCE OF TREACHERY QUALIFIED THE KILLING TO MURDER.

Accused-appellants assert that the patrol and combat operation they conducted on 25 November 1991, was authorized by their commanding officer Senior Inspector Baldevinos; that the year 1991 was a time of political instability as the then administration had to deal with an invigorated communist insurgency; that when they

went their way to confront their enemies, they needed the mindset of men with resolve; thus, when they confronted three non-uniformed armed men who fired at them, they were acting in good faith; that there was no treachery because they were justified by the circumstances of place and time to introduce the element of surprise; and that they reported the encounter to the barangay captain of Barangay Milan and to the Lemery Police Station at their own volition, when during such time they could have already fled if indeed they had acted in malice and bad faith. [14]

THE COURT'S RULING

Mistake of fact finds no application in this case

As early as in the case of *People v. Oanis and Galanta*, [15] the Court has ruled that mistake of fact applies only when the mistake is committed without fault or carelessness:

> In support of the theory of non-liability by reasons of honest mistake of fact, appellants rely on the case of *U.S. v. Ah Chong*, 15 Phil., 488. The maxim is *ignorantia facti excusat*, but this applies only when the mistake is committed without fault or carelessness. In the Ah Chong case, defendant therein after having gone to bed was awakened by someone trying to open the door. He called out twice, "who is there," but received no answer. Fearing that the intruder was a robber, he leaped from his bed and called out again, "If you enter the room I will kill you." But at that precise moment, he was struck by a chair which had been placed against the door and believing that he was then being attacked, he seized a kitchen knife and struck and fatally wounded the intruder who turned out to be his room-mate. A common illustration of innocent mistake of fact is the case of a man who was marked as a footpad at night and in a lonely road held up a friend in a spirit of mischief, and with leveled, pistol demanded his money or life. He was killed by his friend under the mistaken belief that the attack was real, that the pistol leveled at his head was loaded and that his life and property were in imminent danger at the hands of the aggressor. In these instances, there is an innocent mistake of fact committed without any fault or carelessness because the accused, having no time or opportunity to make a further inquiry, and being pressed by circumstances to act immediately, had no alternative but to take the facts as they then appeared to him, and such facts justified his act of killing. In the instant case, appellants, unlike the accused in the instances cited, found no circumstances whatsoever which would press them to immediate action. The person in the room being then asleep, appellants had ample time and opportunity to ascertain his identity without hazard to themselves, and could even effect a bloodless arrest if any reasonable effort to that end had been made, as the victim was unarmed, according to Irene Requinea. This, indeed, is the only legitimate course of action for appellants to follow even if the victim was really Balagtas, as they were instructed not to kill Balagtas at sight but to arrest him, and to get him dead or alive only if resistance or aggression is offered by him.
>
> Although an officer in making a lawful arrest is justified in using such force as is reasonably necessary to secure and detain the offender, overcome his resistance, prevent his escape, recapture him if he escapes, and protect himself from bodily harm (*People vs. Delima*, 46 Phil. 738), yet he is never justified in using unnecessary force or in treating him with wanton violence, or in resorting to dangerous means when the arrest could be effected otherwise x

x x [16]

Further, in *Yapyuco v. Sandiganbayan* , [17] the Court has laid down the requisites for such defense to prosper, *viz.*:

> At this juncture, we find that the invocation of the concept of mistake of fact faces certain failure. In the context of criminal law, a "mistake of fact" is a misapprehension of a fact which, if true, would have justified the act or omission which is the subject of the prosecution. Generally, a reasonable mistake of fact is a defense to a charge of crime where it negates the intent component of the crime. It may be a defense even if the offense charged requires proof of only general intent. The inquiry is into the mistaken belief of the defendant, and it does not look at all to the belief or state of mind of any other person. **A proper invocation of this defense requires (a) that the mistake be honest and reasonable; (b) that it be a matter of fact; and (c) that it negate the culpability required to commit the crime or the existence of the mental state which the statute prescribes with respect to an element of the offense**.
>
> The leading authority in mistake of fact as ground for non-liability is found in *United States v. Ah Chong*, but in that setting, the principle was treated as a function of self-defense where the physical circumstances of the case had mentally manifested to the accused an aggression which it was his instinct to repel. There, the accused, fearful of bad elements, was woken by the sound of his bedroom door being broken open and, receiving no response from the intruder after having demanded identification, believed that a robber had broken in. He threatened to kill the intruder but at that moment he was struck by a chair which he had placed against the door and, perceiving that he was under attack, seized a knife and fatally stabbed the intruder who turned out to be his roommate. Charged with homicide, he was acquitted because of his honest mistake of fact. Finding that the accused had no evil intent to commit the charge, the Court explained:
>
> x x x The maxim here is *Ignorantia facti excusat* ("Ignorance or mistake in point of fact is, in all cases of supposed offense, a sufficient excuse").
>
> Since evil intent is in general an inseparable element in every crime,**any such mistake of fact as shows the act committed to have proceeded from no sort of evil in the mind necessarily relieves the actor from criminal liability, provided always there is no fault or negligence on his part** and as laid down by Baron Parke, "The guilt of the accused must depend on the circumstances as they appear to him." x x x
>
> If, in language not uncommon in the cases, one has reasonable cause to believe the existence of facts which will justify a killing — or, in terms more nicely in accord with the principles on which the rule is founded, if without fault or carelessness he does not believe them — he is legally guiltless of homicide; though he mistook the facts, and so the life of an innocent person is unfortunately extinguished. In other words, and with reference to the right of self-defense and the not quite harmonious authorities, it is the doctrine of reason, and sufficiently sustained in adjudication, that notwithstanding some decisions apparently adverse, whenever a man undertakes self-defense, he is justified in acting on the facts as they appear to him. If, without fault or carelessness, he is misled concerning them, and defends himself correctly according to what he thus supposes the facts to be, the law will not punish him though they are in truth otherwise, and he has really no occasion for the

extreme measure.

xxx xxx xxx

Besides, as held in *People v. Oanis* and *Baxinela v. People*, the justification of an act, which is otherwise criminal on the basis of a mistake of fact, must preclude negligence or bad faith on the part of the accused. Thus, *Ah Chong* further explained that —

The question then squarely presents itself, whether in this jurisdiction one can be held criminally responsible who, by reason of a mistake as to the facts, does an act for which he would be exempt from criminal liability if the facts were as he supposed them to be, but which would constitute the crime of homicide or assassination if the actor had known the true state of the facts at the time when he committed the act. To this question we think there can be but one answer, and we hold that under such circumstances there is no criminal liability, provided always that the alleged ignorance or mistake of fact was not due to negligence or bad faith. [emphases supplied] [18]

First, there was no reason for the accused not to recognize the victims because they were traversing an open area which was illuminated not only by moonlight, but also by a light bulb. In addition, the witnesses testified that the victims were conversing and laughing loudly. It must be borne in mind that it was not the first time that the accused had seen the victims as, in fact, accused Bañes and Castigador met Hernando just a few hours before the shooting. Moreover, they all reside in the same town and, certainly, the accused who were all members of the CAFGU would know the residents of that town so as to easily distinguish them from unknown intruders who might be alleged members of the NPA. *Second*, when Jose fell down, Hernando identified himself and shouted, "This is Hernando!" However, instead of verifying the identities of the victims, the accused continued to fire at them. One of them even shouted, "Birahi na!" ("Shoot now!"). *Third*, when the victims fell down, the accused approached their bodies. At that point, they could no longer claim that they didn't recognize the victims; and still not contented, they sprayed them with bullets such that Jose suffered 14 gunshot wounds, [19] Hernando 16 gunshot wounds, [20] and Benito 20 gunshot wounds. [21] *Fourth*, contrary to their testimonies during trial to the effect that the victims were the first to fire their weapons, Brgy. Capt. Balinas testified that when he asked the accused whether the victims had fired at them, the accused answered him in the negative. *Fifth*, the accused would like the Court to believe that the victims knew the safe word "Amoy" which must be uttered in response to "Simoy" in order to easily determine whether they were members of the NPA. However, the victims could not have known the safe words as accused Gervero himself stated in his testimony that only he and his co-accused were present when their commanding officer briefed them about the safe words to be used in their operation. [22] All these circumstances negate accused-appellants' claim of mistake of fact and point instead to a concerted action to eliminate the victims.

No justifying circumstance of fulfillment of duty

In *People v. Oanis*, [23] the Court set forth two requisites in order that fulfillment of duty and exercise of a right may be considered as justifying circumstance, namely: (a) that the offender acts in the performance of a duty or in the lawful exercise of a right; and (b) that the injury or offense committed be the necessary consequence of the due performance of such duty or in the lawful exercise of such right or office. If one is

absent, accused is entitled to the privileged mitigating circumstance of incomplete fulfillment of duty or lawful exercise of right or office. [24]

In this case, it could not even be said that the accused acted in the performance of their duty. Indeed, Gervero narrated that they conducted the operation on 25 November 1991, on the verbal instruction of Senior Inspector Baldevinos who later on testified in court to corroborate this claim. However, even assuming that they were indeed tasked to capture members of the NPA, their actions on that fateful night disprove their defense of fulfillment of duty as shown by the way they had viciously attacked their helpless victims. The evidence speaks in no uncertain terms that the accused, instead of fulfilling their sworn duty to protect the public in accordance with law, allowed their personal grudges and thirst for vengeance to prevail and killed Jose, Hernando, and Benito in cold blood.

Accused-appellants are guilty of murder qualified by treachery

Murder is defined and penalized under Article 248 of the Revised Penal Code *(RPC)*, as amended, which provides:

> ART. 248. *Murder*. — Any person who, not falling within the provisions of Article 246, shall kill another, shall be guilty of murder and shall be punished by *reclusion perpetua*, to death if committed with any of the following attendant circumstances:
>
> 1. With treachery, taking advantage of superior strength, with the aid of armed men, or employing means to weaken the defense, or of means or persons to insure or afford impunity;
>
> 2. In consideration of a price, reward, or promise;
>
> 3. By means of inundation, fire, poison, explosion, shipwreck, stranding of a vessel, derailment or assault upon a railroad, fall of an airship, by means of motor vehicles, or with the use of any other means involving great waste and ruin;
>
> 4. On occasion of any calamities enumerated in the preceding paragraph, or of an earthquake, eruption of a volcano, destructive cyclone, epidemic, or any other public calamity;
>
> 5. With evident premeditation;
>
> 6. With cruelty, by deliberately and inhumanly augmenting the suffering of the victim, or outraging or scoffing at his person or corpse.

Generally, the elements of murder are: 1) That a person was killed; 2) That the accused killed him; 3) That the killing was attended by *any* of the qualifying circumstances mentioned in Art. 248; and 4) That the killing is not parricide or infanticide. [25]

That Hernando, Jose, and Benito died and that the killing is neither parricide nor infanticide have already been established by the trial and appellate courts. Moreover, that accused-appellants killed the three victims remain undisputed considering that they had admitted the act of shooting the victims, but raised the defense of mistake of fact. However, as previously mentioned, neither mistake of fact nor fulfilment of duty is applicable to exculpate accused-appellants from criminal liability. Thus, what remains to

be resolved is the appreciation of treachery as a qualifying circumstance.

Paragraph 16, Article 14 of the RPC provides that "[t]here is treachery when the offender commits any of the crimes against the person, employing means, methods or forms in the execution thereof which tend directly and specially to ensure its execution, without risk to himself arising from the defense which the offended party might make." Thus, in order for the qualifying circumstance of treachery to be appreciated, the following requisites must be shown: (1) the employment of means, method, or manner of execution would ensure the safety of the malefactor from the defensive or retaliatory acts of the victim, no opportunity being given to the latter to defend himself or to retaliate; and (2) the means, method, or manner of execution was deliberately or consciously adopted by the offender. [26] "The essence of treachery is that the attack comes without a warning and in a swift, deliberate, and unexpected manner, affording the hapless, unarmed, and unsuspecting victim no chance to resist or escape." [27]

The witnesses were all consistent in declaring that accused-appellants suddenly fired at the three unsuspecting victims who never had a chance to mount a defense. The victims, who were on their way to attend a wake and happily conversing with one another, were caught off guard when all of a sudden, they were met with multiple gunshots. In such a rapid motion, accused-appellants shot the victims, affording the latter no opportunity to defend themselves or fight back. Without any doubt, the manner of execution was deliberately adopted by the accused who were all armed with heavily powered firearms. They positioned themselves in what they termed as "ambush position," at a distance where their victims could not easily see them, thereby ensuring that they hit and terminate their targets.

Penalty and award of damages

Pursuant to Art. 248 of the RPC, the penalty for murder is *reclusion perpetua* to death. Applying Art. 63 (2) of the RPC, the lesser of the two indivisible penalties, *i.e.*, *reclusion perpetua*, shall be imposed upon the accused-appellants in view of the absence of any mitigating or aggravating circumstance that attended the killing of Jose, Hernando, and Benito.

Following the jurisprudence laid down by the Court in *People v. Jugueta*, [28] accused-appellants are ordered to pay the heirs of Hernando Villegas, Jose Villegas, and Benito Basug, Jr. P75,000.00 as civil indemnity, P75,000.00 as moral damages, and P75,000.00 as exemplary damages. [29] It was also ruled in *Jugueta* that when no documentary evidence of burial or funeral expenses is presented in court, the amount of P50,000.00 as temperate damages shall be awarded. In addition, interest at the rate of six percent per annum shall be imposed on all monetary awards from the date of finality of this decision until fully paid.

WHEREFORE, the appeal is **DISMISSED**. The 31 March 2011 Decision of the Court of Appeals in CA-G.R. CR-HC No. 00674 is **AFFIRMED** with **MODIFICATIONS**. Accused-appellants Danilo Castigador, Celso Solomon, and Eduardo Bañes are found **GUILTY** beyond reasonable doubt of **MURDER** for the killing of Hernando Villegas, Jose Villegas, and Benito Basug, Jr. and are hereby sentenced to suffer the penalty of *reclusion perpetua*. They are ordered to pay the heirs of the victims the amount of Seventy-Five Thousand Pesos (P75,000.00) as civil indemnity; Seventy-Five Thousand Pesos (P75,000.00) as moral damages; Seventy-Five Thousand Pesos (P75,000.00) as exemplary damages; and Fifty Thousand Pesos (P50,000.00) as temperate damages.

All monetary awards shall earn interest at the rate of six percent (6%) per annum from the date of finality of this Decision until fully paid.

SO ORDERED.

Velasco, Jr., Bersamin and *Gesmundo, JJ.*, concur.

Leonen, * *J.*, is on official leave.

Footnotes

* On Official Leave.

1. *Rollo*, pp. 3-18; penned by Associate Justice Eduardo B. Peralta, Jr. with Associate Justices Edgardo L. Delos Santos and Gabriel T. Ingles, concurring.
2. Records, pp. 805-827; penned by Pairing Judge Loida J. Diestro-Mapurol.
3. Remegildo P. Arbolonio and Jesus A. Catequista, Jr. died during the pendency of the case.
4. Records, p. 1.
5. Records, pp. 994-999.
6. Records, pp. 886-890, 905-907, 1000.
7. Records, pp. 890-891, 908, 1000-1002.
8. Records, pp. 891-893, 908-909, 1001-1002.
9. Records, pp. 910-911, 941-942.
10. Records, pp. 1054-1057, 1106.
11. Records, pp. 1059-1064.
12. Records, p. 827.
13. *Rollo*, p. 17.
14. CA *rollo*, pp. 38-58.
15. 74 Phil. 257 (1943).
16. *Id.* at 257-258.
17. 689 Phil. 75 (2012).
18. *Id.* at 115-118.
19. Records, p. 927.
20. Records, pp. 808-809.
21. Records, p. 930.
22. Records, p. 1106.
23. *Supra* note 15.

24. *Id.* at 259.

25. Luis B. Reyes, The Revised Penal Code Criminal Code, Book Two, 17th Ed., p. 496 (2008).

26. *People v. Manzano, Jr.*, G.R. No. 217974, 5 March 2018.

27. *People v. Amora*, 748 Phil. 608, 621 (2014).

28. 783 Phil. 806 (2016).

29. *Id.* at 847.

THIRD DIVISION

[G.R. No. 75369. November 26, 1990.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **FERNANDO ILIGAN y JAMITO, EDMUNDO ASIS y ILIGAN and JUAN MACANDOG (at large)**, *defendants*, **FERNANDO ILIGAN y JAMITO and EDMUNDO ASIS y ILIGAN**, *defendants-appellants*.

D E C I S I O N

FERNAN, *C.J* :

In this appeal, uncle and nephew, Fernando Iligan and Edmundo Asis, seek a reversal of the decision of the then Court of First Instance of Camarines Norte, Branch II [1] convicting them of the crime of murder and sentencing them to suffer the penalty of reclusion perpetua and to indemnify the heirs of Esmeraldo Quiñones, Jr. in the amounts of P30,000 for the latter's death and P256,960 representing the victim's unrealized income.

On October 21, 1980, the following information for murder was filed against Fernando Iligan, Edmundo Asis and Juan Macandog:

> "That on or about 3:00 a.m., August 4, 1980, at sitio Lico II, barangay Sto. Domingo, municipality of Vinzons, province of Camarines Norte, Philippines, and within the jurisdiction of the Honorable Court, the above named accused, conspiring and mutually helping one another, with treachery and evident premeditation, one of the accused Fernando Iligan armed with a bolo (sinampalok) and with deliberate intent to kill, did then and there wilfully, unlawfully and feloniously, gang up and in a sudden unexpected manner, hacked Esmeraldo Quiñones, Jr., on his face, thus causing fatal injuries on the latter's face which resulted to (sic) the death of said Esmeraldo Quiñones.
>
> "CONTRARY TO LAW."

Juan Macandog was never apprehended and he remains at large. At their arraignment on January 12, 1981 Fernando Iligan and Edmundo Asis pleaded not guilty to the crime charged. Thereafter, the prosecution presented the following version of the commission of the crime.

At around 2:00 o'clock in the morning of August 4, 1980, Esmeraldo Quiñones, Jr. and his companions, Zaldy Asis and Felix Lukban, were walking home from barangay Sto. Domingo, Vinzons, Camarines Norte after attending a barrio fiesta dance. In front of the ricemill of a certain Almadrones, they met the accused Fernando Iligan, his nephew, Edmundo Asis, and Juan Macandog. Edmundo Asis pushed ("winahi") them aside thereby prompting Zaldy Asis to box him. [2] Felix Lukban quickly told the group of the accused that they had no desire to fight. [3] Fernando Iligan, upon seeing his nephew fall, drew from his back a bolo and hacked Zaldy Asis but missed. Terrified, the trio ran pursued by the three accused. They ran for about half an hour, passing by the house of Quiñones, Jr. They stopped running only upon seeing that they were no longer being chased. After resting for a short while, Quiñones, Jr. invited the

two to accompany him to his house so that he could change to his working clothes and report for work as a bus conductor. [4]

While the trio were walking towards the house of Quiñones, Jr., the three accused suddenly emerged on the roadside and without a word, Fernando Iligan hacked Quiñones, Jr. with his bolo hitting him on the forehead and causing him to fall down. [5] Horrified, Felix Lukban and Zaldy Asis fled to a distance of 200 meters, but returned walking after they heard shouts of people. Zaldy Asis specifically heard someone shout "May nadale na." [6]

On the spot where Quiñones, Jr. was hacked, Zaldy Asis and Felix Lukban saw him already dead with his head busted. [7] They helped the brother of Quiñones, Jr. in carrying him to their house. [8]

That same day, August 4, 1980, the body of Quiñones, Jr. was autopsied at the Funeraria Belmonte in Labo, Camarines Norte by the municipal health officer, Dr. Marcelito E. Abas. The postmortem examination report which is found at the back of the death certificate reveals that Esmeraldo Quiñones, Jr., who was 21 years old when he died, sustained the following injuries:

> "1. Shock and massive cerebral hemorrhages due to multiple fracture of the entire half of the frontal left, temporal, parietal and occipital bone of the head, with massive maceration of the brain tissue.
>
> "2. Other findings — Incised wound at the right eyebrow, medial aspect measuring about 4 cms. in length, 0.5 cm. in width and 0.5 cm. in depth, abrasion on the left shoulder and right side of the neck." [9]

The death certificate also indicates that Quiñones, Jr. died of "shock and massive cerebral hemorrhages due to a vehicular accident."

The defendants denied having perpetrated the crime. They alleged that they were in their respective houses at the time the crime was committed.

Accused Fernando Iligan testified that at around midnight of August 4, 1980, he left his house to fetch his visitors at the dance hall. [10] Along the way, he met his nephew, Edmundo Asis, whom he presumed was drunk. He invited his nephew to accompany him to the dance hall. However, they were not able to reach their destination because Edmundo was boxed by somebody whom he (Edmundo) sideswiped. [11] Instead, Fernando Iligan brought his nephew home. [12] On their way, they were overtaken by Juliano Mendoza whom Fernando Iligan invited to his house to help him cook. [13] After bringing his nephew home, Fernando Iligan and Juliano Mendoza proceeded to Iligan's house and arrived there between 1:30 and 2:00 o'clock in the morning of the same day. [14]

Edmundo Asis corroborated Iligan's testimony. He testified that while they were walking in front of the Almadrones ricemill, he sideswiped someone whom he did not recognize because there were several persons around. He said, "Sorry, pare" but the person to whom he addressed his apology boxed him on his left face. He fell down and Iligan helped him. Later, Iligan accompanied him to his home in Lico II. [15] After Iligan and Juliano Mendoza had left his house, he slept and woke up at 7:00 o'clock the following morning. [16]

The defense made capital of the testimony of prosecution witness Dr. Abas to the effect that Quiñones, Jr. died because of a vehicular accident. In ruling out said theory, however, the lower court, in its decision of May 7, 1986, said:

> "The accused, to augment their alibi, have pointed to this Court that the

> Certificate of Death have shown that the victim's death was caused by a vehicular accident. To this, notwithstanding, the Court cannot give credit for some reasons. First, the fact of the alleged vehicular accident has not been fully established. Second, Esmeraldo Quiñones, Sr., (the) father of the victim, testified that Dr. Abas told him that if his son was hacked by a bolo on the face and then run over the entire head by a vehicle's tire, then that hacking on the face could not be visibly seen on the head (t.s.n., pp. 16-17, October 13, 1981) Third, Exhibit '2' (the photograph of the victim taken immediately after his body had been brought home) is a hard evidence. It will attestly (sic) show that the entire head was not crushed by any vehicle. On the contrary, it shows that only half of the face and head, was damaged with the wound starting on a sharp edge horizontally. There are contusions and abrasions on the upper left shoulder and on the neck while the body downwards has none of it, while on the right forehead there is another wound caused by a sharp instrument. Therefore, it is simple, that if the victim was run over by a vehicle, the other half portion of his head and downward part of his body must have been likewise seriously damaged, which there are none." [17]

The lower court also found that Iligan's group conspired to kill anyone or all members of the group of the victim to vindicate the boxing on the face of Edmundo Asis. It appreciated the aggravating circumstances of evident premeditation and treachery and accordingly convicted Iligan and Edmundo Asis of the crime of murder and imposed on them the aforementioned penalty.

Iligan and Edmundo Asis interposed this appeal professing innocence of the crime for which they were convicted. For the second time, they attributed Quiñones, Jr.'s death to a vehicular accident.

No eyewitnesses were presented to prove that Quiñones, Jr. was run over by a vehicle. The defense relies on the testimony of Dr. Abas, a prosecution witness, who swore that the multiple fracture on the head of Quiñones, Jr. was caused by a vehicular accident [18] which opinion was earlier put in writing by the same witness in the postmortem examination. Dr. Abas justified his conclusion by what he considered as tire marks on the victim's left shoulder and the right side of his neck. [19] He also testified that the incised wound located at the victim's right eyebrow could have been caused by a sharp bolo but it was so superficial that it could not have caused the victim's death. [20]

Circumstantial evidence on record indeed point to the veracity of the actual occurrence of the vehicular mishap. One such evidence is the testimony of prosecution witness Zaldy Asis that when he helped bring home the body of Quiñones, Jr., he told the victim's father, Esmeraldo Quiñones, Sr. that "before Esmeraldo Quiñones (Jr.) was run over by a vehicle, he was hacked by Fernando Iligan." [21] When asked why he mentioned an automobile, Zaldy Asis said that he did not notice any vehicle around but he mentioned it "because his (Quiñones, Jr.) head was busted." [22] It is therefore not farfetched to conclude that Zaldy Asis had actual knowledge of said accident but for understandable reasons he declined to declare it in court. Defense witness Marciano Mago, the barangay captain of Sto. Domingo, also testified that when he went to the scene of the crime, he saw bits of the brain of the victim scattered across the road where he also saw tire marks. [23]

For its part, the prosecution, through the victim's father, presented evidence to the effect that Iligan authored the maceration of half of the victim's head. Quiñones, Sr. testified that from their house, which was about five meters away from the road, he saw Fernando Iligan holding a "sinampalok" as he, together with Edmundo Asis and Juan Macandog, chased someone. During the second time that he saw the three accused,

he heard Iligan say, "Dali, ayos na yan." [24] Hence, the lower court concluded that the victim's head was "chopped" resulting in the splattering of his brain all over the place. [25] It should be emphasized, however, that the testimony came from a biased witness and it was uncorroborated.

While the factual findings of the trial court are generally given due respect by the appellate court, an appeal of a criminal case throws it open for a complete review of all errors, by commission or omission, as may be imputable to the trial court. [26] In this instance, the lower court erred in finding that the maceration of one half of the head of the victim was also caused by Iligan for the evidence on record point to a different conclusion. We are convinced beyond peradventure that indeed, after Quiñones, Jr. had fallen from the bolo-hacking perpetrated by Iligan, he was run over by a vehicle. This finding, however, does not in any way exonerate Iligan from liability for the death of Quiñones, Jr.

Under Article 4 of the Revised Penal Code, criminal liability shall be incurred "by any person committing a felony (delito) although the wrongful act done be different from that which he intended." Based on the doctrine that "el que es causa de la causa es causa del mal causado" (he who is the cause of the cause is the cause of the evil caused), [27] the essential requisites of Article 4 are: (a) that an intentional felony has been committed, and (b) that the wrong done to the aggrieved party be the direct, natural and logical consequence of the felony committed by the offender. [28] We hold that these requisites are present in this case.

The intentional felony committed was the hacking of the head of Quiñones, Jr. by Iligan. That it was considered as superficial by the physician who autopsied Quiñones is beside the point. What is material is that by the instrument used in hacking Quiñones, Jr. and the location of the wound, the assault was meant not only to immobilize the victim but to do away with him as it was directed at a vital and delicate part of the body: the head. [29]

The hacking incident happened on the national highway [30] where vehicles are expected to pass any moment. One such vehicle passed seconds later when Lukban and Zaldy Asis, running scared and having barely negotiated the distance of around 200 meters, heard shouts of people. Quiñones, Jr., weakened by the hacking blow which sent him to the cemented highway, was run over by a vehicle.

Under these circumstances, we hold that while Iligan's hacking of Quiñones, Jr.'s head might not have been the direct cause, it was the proximate cause of the latter's death. Proximate legal cause is defined as "that acting first and producing the injury, either immediately or by setting other events in motion, all constituting a natural and continuous chain of events, each having a close causal connection with its immediate predecessor, the final event in the chain immediately effecting the injury as a natural and probable result of the cause which first acted, under such circumstances that the person responsible for the first event should, as an ordinarily prudent and intelligent person, have reasonable ground to expect at the moment of his act or default that an injury to some person might probably result therefrom." [31] In other words, the sequence of events from Iligan's assault on him to the time Quiñones, Jr. was run over by a vehicle is, considering the very short span of time between them, one unbroken chain of events. Having triggered such events, Iligan cannot escape liability.

We agree with the lower court that the defense of alibi cannot turn the tide in favor of Iligan because he was positively seen at the scene of the crime and identified by the prosecution witnesses. [32]

But we disagree with the lower court with regards to its findings on the aggravating circumstances of treachery and evident premeditation. Treachery has been appreciated by the lower court in view of the suddenness of the attack on the group of Quiñones, Jr. Suddenness of such attack, however, does not by itself show treachery. [33] There must be evidence that the mode of attack was consciously adopted by the appellant to make it impossible or hard for the person attacked to defend himself. [34] In this case, the hacking of Edmundo Asis by Iligan followed by the chasing of the trio by the group of Iligan was a warning to the deceased and his companions of the hostile attitude of the appellants. The group of Quiñones, Jr. was therefore placed on guard for any subsequent attacks against them. [35]

The requisites necessary to appreciate evident premeditation have likewise not been met in this case. Thus, the prosecution failed to prove all of the following: (a) the time when the accused determined to commit the crime; (b) an act manifestly indicating that the accused had clung to their determination to commit the crime; and (c) the lapse of sufficient length of time between the determination and execution to allow him to reflect upon the consequences of his act. [36]

Absent any qualifying circumstances, Iligan must be held liable only for homicide. Again, contrary to the lower court's finding, proof beyond reasonable doubt has not been established to hold Edmundo Asis liable as Iligan's co-conspirator. Edmundo Asis did not take any active part in the infliction of the wound on the head of Quiñones, Jr., which led to his running over by a vehicle and consequent death. As earlier pointed out, the testimony that he was carrying a stone at the scene of the crime hardly merits credibility being uncorroborated and coming from an undeniably biased witness. Having been the companion of Iligan, Edmundo Asis must have known of the former's criminal intent but mere knowledge, acquiescence or approval of the act without cooperation or agreement to cooperate, is not enough to constitute one a party to a conspiracy. There must be intentional participation in the act with a view to the furtherance of the common design and purpose. [37] Such being the case, his mere presence at the scene of the crime did not make him a co-conspirator, a co-principal or an accomplice to the assault perpetrated by Iligan. [38] Edmundo Asis therefore deserves exoneration.

There being no mitigating circumstance, the penalty imposable on Iligan is *reclusion temporal* medium (Arts. 249 and 64, Revised Penal Code). Applying the Indeterminate Sentence Law, the proper penalty is that within the range of prision mayor as minimum and reclusion temporal medium as maximum. We find insufficient proof to warrant the award of P256,960 for the victim's unrealized income and therefore, the same is disallowed.

WHEREFORE, appellant Fernando Iligan y Jamito is hereby convicted of the crime of homicide for which he is imposed the indeterminate penalty of six (6) years and one (1) day of prision mayor as minimum to fourteen (14) years, eight (8) months and one (1) day of reclusion temporal medium as maximum and he shall indemnify the heirs of Esmeraldo Quiñones, Jr. in the amount of fifty thousand pesos (P50,000). Appellant Edmundo Asis is hereby acquitted of the crime charged against him. Costs against appellant Iligan.

SO ORDERED.

Gutierrez, Jr. and *Bidin, JJ.*, concur.

Feliciano, J., is on leave.

Footnotes

1. Presided by Judge Luis D. Dictado.
2. TSN, February 12, 1981, pp. 54-55.
3. TSN, February 11, 1981, p. 7.
4. TSN, February 12, 1981, pp. 57-58.
5. *Ibid.*, pp. 58-59.
6. *Ibid.*, p. 59.
7. *Ibid.*, p. 63.
8. *Ibid.*, pp. 59-60.
9. Exh. A.
10. TSN, May 11, 1983, p. 316.
11. *Ibid.*, pp. 317-318.
12. *Ibid.*, p. 319.
13. *Ibid.*, pp. 320, 322-323.
14. *Ibid.*, p. 325.
15. TSN, August 29, 1983, pp. 349-350.
16. *Ibid.*, p. 351.
17. Decision, pp. 8-9.
18. TSN, September 2, 1981, p. 114.
19. *Ibid.*, p. 121.
20. *Ibid.*, pp. 114-116.
21. TSN, February 12, 1981, p. 60.
22. *Ibid.*, p. 63.
23. TSN, February 24, 1982, pp. 196 & 208-209.
24. TSN, January 19, 1982, pp. 157-163.
25. Decision, p. 8.
26. People v. Valerio, Jr., L-4116, February 25, 1982, 112 SCRA 208, 231.
27. People v. Ural, G.R. No. L-30801, March 27, 1974, 56 SCRA 138, 144.
28. People v. Mananquil, L-35574, September 28, 1984, 132 SCRA 196, 207.
29. *See:* People v. Diana, 32 Phil. 344 (1915).
30. TSN, February 11, 1981, p. 8.

31. Urbano v. Intermediate Appellate Court, G.R. No. 72964, January 7, 1988, 157 SCRA 1 quoting Vda. de Bataclan v. Medina, 102 Phil. 181.

32. People v. Pineda, G.R. No. 72400, January 15, 1988, 157 SCRA 71.

33. People v. Gadiano, L-31818, July 30, 1982, 115 SCRA 559.

34. People v. Crisostomo, L-32243, April 15, 1988, 160 SCRA 47.

35. People v. Mercado, L-33492, March 30, 1988, 159 SCRA 455.

36. People v. Batas, G.R. Nos. 84277-78, August 2, 1989, 176 SCRA 46.

37. People v. Izon, 104 Phil. 690 (1958).

38. Orobio v. Court of Appeals, G.R. No. 57519, September 13, 1988, 165 SCRA 316.

SECOND DIVISION

[G.R. No. L-35574. September 28, 1984.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **VALENTINA MANANQUIL Y LAREDO**, *defendant-appellant*.

The Solicitor General for plaintiff-appellee.

Herminio Sugay for defendant-appellant.

D E C I S I O N

CUEVAS, *J* :

In an amended Information [1] filed before the then Court of First Instance of Rizal, VALENTINA MANANQUIL y LAREDO was accused of PARRICIDE allegedly committed as follows:

> "That on or about the 6th day of March, 1965, in Pasay City, Philippines, and within the jurisdiction of this Hon. Court, the above-named accused, did then and there wilfully, unlawfully and feloniously, with evident premeditation, that is, having conceived and deliberated to kill her husband, Elias Day y Pablo, with whom she was united in lawful wedlock, enter (sic) the NAWASA building situated at Pasay City, where said Elias Day y Pablo was working as a security guard; and the said accused, having in her possession a bottle containing gasoline suddenly and without warning, poured the contents on the person of her husband, Elias Day y Pablo, ignited the gasoline, as a result of which, said Elias Day y Pablo suffered burns *and injuries which subsequently caused his death*.
>
> Contrary to law." [2]

Tried after pleading "NOT GUILTY" upon arraignment, accused was convicted and thereafter sentenced to *reclusion perpetua*, to indemnify the heirs of the deceased in the amount of P12,000.00; and to pay costs.

From the aforesaid judgment, she ventilated an appeal to the then Court of Appeals (which referred the appeal to us considering that the penalty imposed was reclusion perpetua) assailing her aforesaid conviction and contending that the trial court erred: 1) in convicting her solely on the basis of the alleged extrajudicial confession; 2) in finding that Pneumonia was a complication of the burns sustained by the victim; 3) in not finding her not to have caused the death of the deceased; and 4) in not acquitting her at least on ground of reasonable doubt.

The prosecution's version of the incident as summarized in the People's Brief is as follows:

> "On March 6, 1965, at about 11:00 o'clock in the evening, appellant went to the NAWASA Building at Pasay City where her husband was then working as a security guard. She had just purchased ten (10) centavo-worth of gasoline

from the Esso Gasoline Station at Taft Avenue which she placed in a coffee bottle (t.s.n., p. 13, January 13, 1969). She was angry of her husband, Elias Day y Pablo, because the latter had burned her clothing, was maintaining a mistress and had been taking all the food from their house. Upon reaching the NAWASA Building, she knocked at the door. Immediately, after the door was opened, Elias Day shouted at the appellant and castigated her saying, "PUTA BUGUIAN LAKAW GALIGAON" (t.s.n., p. 14, id). The appellant tried of hearing the victim, then got the bottle of gasoline and poured the contents thereof on the face of the victim (t.s.n., p. 14, id). Then, she got a matchbox and set the polo shirt of the victim a flame. (Exhs. "A" and "A-1", p. 197, Rec.).

The appellant was investigated by elements of the Pasay City Police to whom she gave a written statement (Exh. "A", p. 197, Rec.) where she admitted having burned the victim.

Upon the other hand, the victim was taken first to the Philippine General Hospital and then to the Trinity General Hospital at Sta. Ana, Manila, when *he died on March 10, 1965*. (Exh. "C", p. 208, rec. due to `Pneumonia, lobar bilateral. Burns 2x secondary.'" [3]

Appellant's story on the other hand runs, thus:

"It was before 10:00 o'clock p.m. when appellant returned from Olongapo City. She fed her grandson and put him to bed. After filling the tank with water, she remembered that the next day was a Sunday and she had to go to church. Her shoes were dirty but there was no gasoline with which to clean them. Taking with her an empty bottle of Hemo, she left for a nearby gasoline station and bought ten centavos worth of gasoline. Then she remembered that her husband needed gasoline for his lighter so she dropped by his place of work. (p. 13, ibid.)

Appellant saw her husband inside a building of the NAWASA standing by the window. As the iron grille was open, she entered and knocked at the wooden door. Elias opened the door, but when he saw his wife he shouted at her. Appellant said that she had brought the gasoline which he needed for his lighter, but Elias, who was under the influence of liquor, cursed her thus: 'PUTA BUGUIAN LAKAW GALIGAON'. Elias continued shouting and cursing even as appellant told him that she had come just to bring the gasoline that he wanted. Appellant trembled and became dizzy. She was beside herself and did not know that she was sprinkling the gasoline on her husband's face. She was tired and dizzy and had to sit down for a while. Then she remembered her grandson who was alone in the house so she went home leaving her husband who was walking to and fro and not paying attention to her. (pp. 13-14, Ibid., p. 2, March 20, 1969).

She went to bed but could not sleep. She went back to the NAWASA compound to apologize to her husband. Upon reaching the NAWASA, however, she found that police officers were present. Her husband was walking all around still fuming mad, and when he saw her he chased her. A policeman pulled appellant aside and asked if she was the wife of Elias. When she replied in the affirmative, the police officer accused her of burning her husband. She denied the accusation. But the police took her to the headquarters, and prepared a written statement, Exhibits A, A-1. Appellant was made to sign said statement upon a promise that she would be released if she signed it. Although she did not know the contents, she signed it because of the promise. (pp. 14-16, Id.; p. 5, March 20, 1969)" [4]

Appellant's assigned errors boil down to two (2) main issues: (1) whether or not appellant's extrajudicial confession was voluntarily given; and (2) whether or not the burns sustained by the victim contributed to cause pneumonia which was the cause of the victim's death.

Right after the burning incident, appellant was picked up by the police operatives of Pasay City. She was thereafter investigated by Sgt. Leopoldo Garcia of the Pasay City Police who took her statement in Tagalog and in Question and Answer form which was reduced into writing [5] After Sgt. Garcia was through taking her statement, she was brought to Fiscal Paredes who asked her questions regarding the said statement and its execution and before whom said statement was subscribed and sworn to by her. In that investigation, appellant categorically admitted having thrown gasoline at her husband and thereafter set him aflame as evidenced by this pertinent portion of her statement —

> "T Ano ang nangyari at iyong binusan ng gasolina ang iyong asawa na si Elias Day?
>
> S Dahil may sala siya, at sinonog niya ang aking mga damit, at may babae pa, at saka lahat ng aming pagkain sa bahay ay hinahakot.
>
> T Ng dahil dito sa mga binanggit mong ito ay ano ang ginawa mo sa iyong asawa?
>
> S Ako po ay nagdilim ang aking isipan at ang ginawa ko ay naisip kong buhusan ng gasolina, kaya ang aking ginawa ay bumili ako ng halagang 10 sentimos sa Esso Gasoline Station sa Talf Avenue at inilagay ko sa isang boti.
>
> T Pagkatapos na ikaw ay makabili ng gasolina sa station ng Esso sa Taft Avenue dito sa Pasay City, ay ano ang ginawa mo?
>
> S Ako po ay nagpunta sa kanya na pinaggoguardiahan sa Nawasa at pagdating ko ruon ay kumatok ako sa pintuan ng Nawasa, at nang marinig niya ang aking katok sa pinto ay binuksan niya ang pintuan, at pagkabukas ng pintuan ay nakita niya ako, at nagalit siya at ako ay minura ng puta putan Ina mo, lalakad ka ng gabi, at namumuta raw ako, at pagkatapos na ako ay minura ay hinahabol pa ako ng suntok, *kayat ang ginawa ko po kinuha ko ang aking dalang bote na may gasolina at aking ibinuhos sa kanyang katawan, at aking kinuha ang posporo at aking sinindihang at hangang magliyab ang suot niyang polo shirt*, na may guhit na itim at puti.
>
> T Alam mo ba na kung ano ang iyong ginawa sa iyong asawa kanginang humigit kumulang na mag-iika alas 11:00 ng gabi Marzo 6, 1965?
>
> S Opo, aking sinonog ang aking asawa." (Exhs. A & A-1 — Emphasis supplied).

She would now like her aforesaid extrajudicial confession discredited by asserting that she did not understand its contents because she is not a Tagala aside from having reached only the primary grades; and furthermore, that said statement was signed by her merely upon the promise of the policemen that she will later be released.

We find appellant's aforesaid assertions a mere pretense too flimsy to be accepted as true. For the truth is that appellant knew and understood Tagalog despite her not being a Tagala, having stayed in Manila since 1951, continuously up to the time of the burning incident in question for which she was investigated. During this period of almost fourteen years, she was in daily association with Tagalogs communicating with them in Pilipino. This is clear from her admission on cross-examination which runs thus

—

"Q But you can understand Tagalog because of the length of time that you have been living here in Manila?

A Yes.

Q And as a matter of fact, when you buy something from the store, you speak Tagalog?

A Yes.

Q And when you ride in a jeep or bus, you speak Tagalog?

A Yes.

Q And you were well understood by these Tagalog people?

A Yes.

Q And as a matter of fact, you can understand Tagalog?

A Yes.

Q And you can also read Tagalog?

A Yes.

Q You can read?

A Yes, but I do not have interest to read." (TSN, March 29, 1969, pp. 11-12).

All throughout the entire investigation and even at the time appellant was before Fiscal Paredes, before whom she subscribed and swore to the truth of all what appeared in her statement, [6] no denunciation of any sort was made nor levelled by her against the police investigators. Neither was there any complaint aired by her to the effect that she merely affixed her signatures thereto because of the promise by the police that she will be released later. We therefor find her aforesaid claim highly incredible and a mere concoction. For why will the police still resort to such trickery when the very sworn statement given by her proved by its contents that appellant was indeed very cooperative. In fact, almost all the recitals and narrations appearing in the said statement were practically repeated by her on the witness stand thus authenticating the truth and veracity of her declarations contained therein. Moreover, We find said statement replete with details which could not have been possibly supplied by the police investigators who have no previous knowledge of, nor acquaintance with her and the victim, especially with respect to the circumstances and incidents which preceded the fatal incident that brought about the death of the latter. We therefore find no error in the trial court's pronouncement that appellant's sworn statement was voluntarily given by her; that she fully understood its contents; and that she willingly affixed her signatures thereto.

Well settled is the rule that extrajudicial confession may be regarded as conclusive proof of guilt when taken without maltreatment or intimidation [7] and may serve as a basis of the declarant's conviction. [8] It is presumed to be voluntary until the contrary is proven. The burden of proof is upon the person who gave the confession. [9] That presumption has not been overcome in the instant case.

Indeed the trial court could not be faulted for relying heavily on accused-appellant's sworn statement in assessing her guilt since it was given shortly after the incident took place. By then, she had yet no time to concoct any fabrication favorable to her. Shock by the aftermath consequences of her criminal design she must have been

motivated by no other purpose except to admit the undeniable. On the other hand, when she took the witness stand, disclaiming any responsibility for the burning of her husband, it was already January 13, 1969 . . . more than five years after the incident and decidedly after she had the benefit of too many consultations.

That appellant has murder in her heart and meant to do harm to her husband when she went to the latter's place of work on that fatal night and intended all the consequences of her nefarious act finds clearer manifestation and added support in her total indifference and seemingly unperturbed concern over the fate that had befallen the victim . . . her husband . . . especially at times when he needed her most. Being the wife, she must be the closest to him and the hardest hit by the mishap if she has not authored the same nor voluntarily participated therein. She was then reasonably expected to come to his succor and alleviate him from his sufferings. And yet, the records do not show her having seen her husband even once while the latter lay seriously ill at the hospital hovering between life and death. Neither did she attend his funeral nor was she ever present during the wake while the victim's remains lay in state. That she was under detention does not excuse nor justify those glaring and significant omissions. For she could have asked the court's permission for any of the enumerated undertakings which we believe would not have been denied. But she did not even attempt.

Indeed, the more we scrutinize appellant's alibi and explanation, we become more convinced of the falsity and incredibility of her assertions. For instance, her claim that her purpose in buying gasoline at so an unholy hour of the night, past ten o'clock in the evening, solely for the purpose of cleaning her shoes which she would wear in going to church the following Sunday, hardly recommend acceptance. That she dropped at her husband's place of work also at the middle of the night for no other purpose except to deliver to him gasoline for his cigarette lighter, is likewise too taxing upon one's credulity . . . more so if we have to consider the previous spat she had with the deceased in the morning of that fatal day.

In her vain attempt to exculpate herself, appellant would like Us to believe that her husband died of pneumonia because the latter drank liquor as shown by the toxicology report indicating presence of alcohol in the victim's body. Hence, assuming she set her husband on fire, she is not criminally liable for her husband's death.

We are not persuaded by appellant's aforesaid ratiocination.

The claim that the victim drank liquor while confined in the hospital would not suffice to exculpate the appellant. For as testified by Dr. Reyes, pneumonia could not be caused by taking alcohol. In fact, alcohol, according to him, unless taken in excessive dosage so as to produce an almost comatose condition would not cause suffocation nor effect a diminution of the oxygen content of the body. [10] In fine, as correctly pointed out by the Hon. Solicitor General, the victim's taking of liquor was not an efficient supervening cause of *his death which took place on March 10, 1965*, just four days after the burning.

The cause of death as shown by the necropsy report is pneumonia, lobar bilateral. Burns 2º secondary. There is no question that the burns sustained by the victim as shown by the post-mortem findings involved about 62% of the victim's entire body. The evidence shows that pneumonia was a mere complication of the burns sustained. While accepting pneumonia as the immediate cause of death, the court *a quo* held on to state that this could not have resulted had not the victim suffered from second degree burns. It concluded, and rightly so, that with pneumonia having

developed, the burns became as to the cause of death, merely contributory. We agree.

Appellant's case falls squarely under Art. 4, Par. 1 of the Revised Penal Code which provides:

> "Art. 4. Criminal Liability. — Criminal liability shall be incurred.
>
> 1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended."

the essential requisites of which are: (a) that an intentional felony has been committed; and (b) that the wrong done to the aggrieved party be the direct, natural and logical consequence of the felony committed by the offender. [11]

The reason for the rule as spelled out in the earlier cases of PP vs. Moldes, 61 Phil. 1, 3 & 4; and PP vs. Quianzon, 62 Phil. 162, citing 13 RCL, 748, 751 is as follows —

> "One who inflicts injury on another is deemed guilty of homicide if the injury contributes mediately or immediately to the death of such other. The fact that other causes contribute to the death does not relieve the actor of responsibility. He would still be liable "even if the deceased might have recovered if he had taken proper care of himself, or submitted to surgical operation, or that unskilled or improper treatment aggravated the wound and contributed to the death, or that death was immediately caused by a surgical operation rendered necessary by the condition of the wound. `The principle on which this rule is founded is one of universal application. It lies at the foundation of criminal jurisprudence. It is that every person is held to contemplate and be responsible for the natural consequences of his own acts. If a person inflicts a wound with a deadly weapon in a manner as to put life in jeopardy, and death follows as a consequence of this felonious and wicked act, it does not alter its nature or diminish its criminality to prove that other causes cooperated in producing the fatal result. Neglect of the wound or its unskilled and improper treatment which are themselves consequences of the criminal act, must in law be deemed to have been among those which are in contemplation of the guilty party and for which he must be responsible." The rule has its foundation on a wise and practical policy. A different doctrine would tend to give immunity to crime and to take away from human life a salutary and essential safeguard. Amidst the conflicting theories of medical men and the uncertainties attendant upon the treatment of bodily ailments and injuries it would be easy in many cases of homicide to raise a doubt as to the immediate cause of death, and thereby open a wide door by which persons guilty of the highest crime might escape conviction and punishment."

In convicting the accused, the trial court imposed upon her the obligation to indemnify the heirs of the deceased only in the amount of P12,000.00. That should now be increased to P30,000.00.

WHEREFORE, except as thus modified, the judgment appealed from is hereby AFFIRMED with costs against appellant.

It appearing however that appellant Valentina Mananquil is now 71 years of age, this Court recommends her for executive clemency. For the purpose, let His Excellency, President Ferdinand E. Marcos, be furnished with a copy of this decision thru the Hon. Minister of Justice.

SO ORDERED.

Makasiar, Aquino, Abad Santos and *Escolin, JJ .,* concur.

Concepcion, Jr. and *Guerrero, JJ* ., are on leave.

Footnotes

1. Appellant was accused merely of Frustrated Parricide in the original information filed on March 8, 1965.
2. Pages 44-45, Record.
3. Appellee's Brief, pp. 1 and 2.
4. Pages 4, 5 and 6, Appellant's Brief.
5. Exhibits "A" and "A-1".
6. Exhibits "A" and "A-1".
7. PP vs. Pincalin, 102 SCRA 137; PP vs. Carias, 122 SCRA 783.
8. PP vs. Perez, 102 SCRA 313.
9. PP. vs. dela Cruz, 115 SCRA 154.
10. TSN, February 6, 1974, page 30.
11. US vs. Brobst, 14 Phil. 310; US vs. Mallare, 29 Phil. 14.

FIRST DIVISION

[G.R. No. 4935. October 25, 1909.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **JAMES L. BROBST**, *defendant-appellant*.

Kincaid & Hurd for appellant.

Attorney-General Villamor for appellee.

D E C I S I O N

CARSON, *J* :

The defendant, James L. Brobst, and another American named Mann, were engaged in work on a mine located in the municipality of Masbate, where they gave employment to a number of native laborers. Mann discharged one of these laborers named Simeon Saldivar, warned him not to come back on the premises, and told the defendant not to employ him again, because he was a thief and a disturbing element with the other laborers. A few days afterwards, some time after 6 o'clock on the morning of the 10th of July, 1907, Saldivar, in company with three or four others, went to the mine to look for work. The defendant, who at the time was dressing himself inside his tent, which was erected on the mining property, when he caught sight of Saldivar, ordered him off the place, ex-claiming in bad Spanish, "*Sigue, Vamus*!" (Begone). Saldivar made no move to leave, and although the order was repeated, merely smiled or grinned at the defendant, where-upon the latter became enraged, took three steps toward Saldivar, and struck him a powerful blow with his closed fist on the left side, just over the lower ribs, at the point where the handle of Saldivar's bolo lay against the belt from which it was suspended. On being struck, Saldivar threw up his hands, staggered (*dio vueltas* — spun around helplessly) and without saying a word, went away in the direction of his sister's house, which stood about 200 yards (100 brazas) away, and about 100 feet up the side of a hill. He died as he reached the door of the house and was buried some two or three days later.

The trial court found the defendant guilty of the crime of homicide (*homicidio*), marked with the extenuating circumstances, denied in subsections 3 and 7 of article 9 of the Penal Code, in that the defendant "had no intention of committing so grave an injury as that which he inflicted," and that he struck the blow "under such powerful excitement as would naturally produce entire loss of reason and self-control." Sentence of sic years and one day of *prision mayor* was imposed, and from this sentence defendant appealed to this court.

Counsel for the appellant, relying mainly on appellant's claim that he did not strike Saldivar, and that he merely pushed him lightly with the back of his open hand, and relying also on the lack of satisfactory proof of the existence of lesions or external marks of violence on the body of the deceased, contend: first, that the evidence fails to sustain a finding that the deceased came to his death as a result of injuries inflicted by

the defendant; and, second, that even if it be a fact that the defendant, in laying his hand upon the deceased, contributed to his death, nevertheless, since the defendant had a perfect right to eject the deceased from the mining property, he can not be held criminally liable for unintentional injuries inflicted in the lawful exercise of this right.

Two witnesses, Dagapdap and Yotiga, who were standing close by at the time, swore positively that the blow was delivered with the closed fist, from the shoulder (*de dentro para fuera*), and that it was a hard blow; Dagapdap testifying that, "*Al pegar el puñetazo, Simeon dio vueltas, y despues se marcho*" (when the blow was struck, Simeon staggered and afterwards went away); and Yotiga that "*despues de dar el golpe se retrocedio'y levanto los brazos*" (after the blow was struck, he backed away and threw up his arms). The testimony of these witnesses is clear, positive, and definite and is wholly uncontradicted, except for the improbable story told by the accused in his own behalf, when he testified that he testified that seeing Saldivar standing outside his tent, he told him twice to go away and then stepped up to him and pushed him lightly with the back of his hand, which came in contact with the handle of Saldivar's bolo, but not with sufficient force to push him back or do him any injury. If it had been necessary to use force to compel Saldivar to leave the place, it is at least highly improbable that the accused approaching him from the front would have lightly placed the *back* of his *open* right hand on Saldivar's *left* side, without attempting to seize him, or to compel him to give ground.

Pedro Leocampo, the only other witness called at the trial who appears to have been present when the incident occurred, corroborated the testimony of the witnesses Dagapdap and Yotiga as to all that occurred prior to the actual infliction of the blow, which he did not see. He testified that at the time when the accused, standing in his tent, ordered the deceased to leave, standing in his tent, ordered the deceased to leave, he, the witness, was eating his breakfast, with his back to the accused and the deceased; that hearing the order, he turned his head and saw the accused start toward the deceased with his arm outstretched, but that at that moment he turned away and did not see the accused actually come up to, strike or touch the deceased; that when he saw the accused approaching the deceased, the accused did not have his fist clenched, but that he could not say whether the blow was struck with the open hand or the closed fist, because at the moment when it is said the accused came up to and touched or struck the deceased, the witness's head was so turned that he could not and did not see what took place.

No evidence was introduced at the trial which in any wise tends to put in doubt the truth of the testimony of these witnesses as to the fact that they were present at the time when and the place where the incident occurred; and of this fact we are satisfied that there can be no reasonable doubt, although, as frequently happens when ignorant witnesses are testifying in the courts in these Islands, their evidence is conflicting as to the precise hour by the clock when it took place.

Some attempt is made to discredit the testimony of Yotiga, because it appears from the record that in answer to certain questions on his examination-in-chief, he stated that when the blow was struck he was some hundred *brazas* (200 yards) away. It developed, however, on examination by the trial judge, that this answer was given under the impression that the question asked was the distance from the mine to the house of the sister of the deceased, as to which considerable testimony was taken; and it is very clear from all the testimony that both these witnesses were standing within a few yards of the defendant when he struck the blow.

The testimony of Dagapdap is also criticized because, in answer to the opening questions on the examination-in-chief, he spoke of the blow inflicted as a *bofetada* (a slap with the open hand on the cheek), which, later on in his testimony, he changed to the word *puñetazo* (a blow with the first), as a result, it is intimated, of suggestive questions by counsel for the prosecution. We do not think this criticism well founded, or that the language of the witness on which it rests sustains the inference sought to be drawn therefrom. In the first place, it must not be forgotten that the witness was manifestly an ignorant man, unskilled in the use of words, and testifying in a remote province in a native dialect; and that his testimony was interpreted into the Spanish of the record by an interpreter who might well have been mistaken in selecting the precise Spanish equivalent of the word or words actually used by the witness, and whose use of Spanish throughout the record does not demonstrate such precision and nicety in the use of words as to justify the laying of too much stress on the phrasing adopted by him in the haste of interpretation in the course of a trial in open court: so that, in our opinion, the detailed description of the manner in which the blow was inflicted, as given by the witness without suggestion or assistance of any kind, is much more decisive as to its nature than the word by which reference to it was made. And in the second place, as appears from the *Diccionario Enciclopedico de la Lengua Castellana* and the *Diccionario de la Lengua por la Academia Española*, the word "*bofetada*," when used strictly, connotes not merely a blow with the open hand, but such a blow struck on the cheek or side of the face, a meaning which the whole testimony or the witness clearly discloses it was not his intention to give to whatever word he did actually make use of in referring to the act. The definition of the word "*bofetada*," as given in the former dictionary, is "a blow which is given on the cheek (*mejilla*) with the open hand," and in the latter is "a blow given the open hand, on the side of the face (*carrillo*) or cheek (*mejilla*) of another."

It has also been suggested that the testimony of the witnesses for the prosecution is inherently improbable, because, as it is said, if the blow had been struck as describe by them, the injured person would necessarily have "doubled up or over," and not, as appears from their testimony, thrown up his hands and staggered away. No expert testimony was introduced at the trial upon this point, and while it may, perhaps, be admitted that if the blow took effect in the abdominal region, common experience would justify us in expecting as a result of the blow, that the injured person would "double up or over," it must not be forgotten that the blow having been delivered over the ribs on the left side, it may as well have taken effect in the region of the heart; in the absence of expert testimony, we do not think in that event, evidence that the injured person threw up his hands and staggered away is necessarily in conflict the evidence of the witnesses for the prosecution as to the weight of the blow and the place where it was inflicted.

We are satisfied that the evidence of record leaves no room for reasonable doubt with his closed first; and that whatever authority the defendant may have had to eject the deceased from the mining property and to use physical force to that end in case of need, the blow thus struck was far in excess of such authority, and was, therefore, unlawful, and can not be excused or justified as an exercise of necessary force in the exercise of a right. The defendant's own testimony does not indicate that there was any danger to be apprehended from Saldivar, and there is nothing in the record which would indicate that he would offer a violent or even a substantial to an attempt to expel him from the mining property.

We are satisfied also that the deceased came to his death as result of the blow

inflicted by the defendant. Two or three days prior to his death he was employed as a laborer in defendant's mine; his sister testified that on the morning of the day he died, he left her house in apparent good health and went to the mines to look for work; a short time afterwards he received a violent blow on his lower left side, a region of the body where many of the vital organs are located; and immediately thereafter, he started up the short trail leading to his sister's house, and died as he reached the door. In the absence of evidence of any intervening cause, we think there can be no reasonable doubt that his death resulted from the blow.

Counsel for appellant suggest that death may have been the result of some cause unknown, such as a fall, an assault by robbers, or perchance a suicidal frenzy, intervening between the time when the accused was last seen starting up the 200-yard trail to his sister's house, and the time when, as she testified, he died just as he reached her door, on his way back from the mine; and that the accused in entitled to the benefit of the doubt. But the doubt which must be decided in favor of an accused person in a criminal trial is a reasonable doubt, and not a mere whimsical and fanciful doubt, based upon imagined but wholly improbable possibilities, unsupported by evidence; and while we do not hold that it is absolutely and morally impossible that some other cause could have intervened to bring about the death of Saldivar, we do hold that there can be no reasonable doubt in the mind of a reasonable man that death was in fact brought about by the blow inflicted by the accused, and was not the result of some independent cause intervening during the very short period of time prior to his death, during which he was not under observation by witnesses called at the trial.

Counsel for the appellant enlarge on the fact that accepting defendant's statement that he sent the deceased away from the mines about a quarter past six, it would appear from the testimony of the sister of the deceased that about two hours may have elapsed between that time and the time when he arrived at her house. The sister fixed the time of the arrival of her brother at from 7 to 8 o'clock or possibly a little later; but she appears to have been an ignorant woman who did not know how to read the face of a clock, and it is quite clear that hers was no more than a rough estimate, based on the height of the sun, and the most that can fairly be inferred from the testimony is that the deceased was struck early on the morning in question, and that not long afterwards on the same morning, he died at the door of his sister's house 200 yards away. But even if it be granted that two hours actually did elapse from the time the deceased left that mines, until he reached his sister's house, this interval is not long enough to materially weaken the inference that the death resulted from the blow.

It is true that no autopsy was had on the body of the deceased, and that a medical officer called in by the accused who saw the body, but who does not appear to have examined it very closely , certified that he found no outward lesions or mark or violence; but this evidence is not sufficient to negative the existence of internal lesions, for he medical authorities inform us that death may and often does result from a blow over or near the heart of in the abdominal region, notwithstanding the fact that the blow leaves no outward mark of violence; and there is evidence in the record of the discovery on the cadaver of two suspicious black spots, one about the place where the blow was struck, and another at or near the umbilicus, though the evidence fails to disclose the precise nature of these discolorations. (Medical Jurisprudence, Taylor, 12th Am. Ed., pp. 310 and 388; Moulin's Treatise on Surgery, Hamilton, part 2, chap. 1, p. 151; *Tratado de Medicina Legal por Legran de Sulle* , Vol. II, pp. 206,207.)

It has been suggested that the deceased may have had a weak heart or some other diseased organ, and that but for such physical defect death might not have

ensued from the mere force of the blow inflicted by the defendant. There is no evidence to this effect, and on the contrary there is testimony in the record that on the morning before he died he was in apparent good health; and the fact that a few days before, he was able to work in the mines, and that he came to the mines that day in search of work, renders it highly improbable that he was suffering at that time from any grave organic weakness. But however this may have been, it has been frequently and justly decided that where death result as a direct consequence of the use of illegal violence, the mere fact that the diseased or weakened condition of the injured person contributed to his death, does not relieve the illegal aggressor of criminal responsibility. (U. S. vs. Luciano, 2 Phil. Rep., 96; U. S. vs. Montes, 6 Phil. Rep., 443; see also decisions of supreme court of Spain, March 10, 1871, and June 26, 1880.)

Counsel for appellant also contend that even if it be granted that in unlawfully exercising force upon the person of the deceased, the appellant caused or contributed to his death, nevertheless he should at most be convicted of *homicidio por imprudencia temeraria* (homicide as a result of reckless negligence), because, manifestly, the unlawful act was not committed with intent to kill, and because, as counsel contend, the striking of the blow by the appellant was not an act adapted, or likely (*idoneo*) to inflict a death wound under ordinary circumstances, or reasonably calculated so to do. In support of this contention counsel cite decisions of the supreme court of Spain of November 9, 1885, February 10, 1876, July 5, 1888, and July 12, 1890, and appears to rely especially on the former decision wherein sentence of *homicidio por imprudencia temeraria* was imposed, the court holding "*que es condicion esencial del delito de homicidio, que el hecho material de que resulte sea umpulsado por voluntad libre encaminada por acto idoneo a causar la muerte o algun mal fisico que pro consecuencia natural la produzca*."

In that case, however, it was proven, and the court found that not only did the defendant no intend to kill the deceased but also that he did not intend to do him any physical injury whatever; but in the case at bar the evidence conclusively establishes the voluntary, intentional, and unlawful infliction by the accused of a severe blow on the person of the deceased; and while it is true that the accused does not appear to have intended to take the life of his victim, there can be no doubt that in thus striking the deceased, he intended to do him some injury, at least to the extent of inflicting some degree of physical pain upon him, and he is, therefore, criminally responsible for the natural, even if unexpected results of his act, under the provisions of article 1 of the Penal Code, which prescribes that —

> "Any person voluntarily committing a crime or misdemeanor shall incur criminal liability, even though the wrongful act committed be different from that which he had intended to commit."

In such cases the law in these Islands does not excuse one from liability for the natural consequences of his illegal acts merely because he did not intend to produce such consequence, but it does take that fact into consideration as an extenuating circumstance, as did the trial judge in this case.

What has been said sufficiently disposes of all errors assigned by counsel for appellant, except certain alleged errors of procedure in the court below which we do not think it necessary to discuss, because even if it be admitted that such errors were committed, they do not appear to have in any wise prejudiced the substantial rights of the defendant.

The judgment of conviction and the sentence imposed by the trial court should be

and are hereby affirmed, with the costs of this instance against the appellant. So ordered.

Arellano, C.J., Torres and *Mapa, JJ.,* concur.

Concurring and Dissenting Opinion

MORELAND, J., with whom concurs Johnson, J.:

The facts in this case, as claimed by the Government, are as follows:

The defendant, James L. Brobst, and another American, named Mann, were engaged in working a mine belonging to them, located in the municipality of Masbate, where they gave employment to a number of native laborers. Mann discharged one of these laborers, named Simeon Saldivar, ejected him forcibly from the premises and warned him no to come back, and told the defendant no to employ him again or permit him to be upon the premises because he was a thief and a disturbing element with the other laborers. A few days afterwards, at about 6 o'clock in the morning or a bout the 10th of July, 1907, Saldivar, in company with three or four others, went to the mine ostensibly to look for work. The defendant, who at that time was dressing himself inside his tent, which was erected on the mining property, catching sought of Saldivar, ordered him off the place. Saldivar made no move to leave, and, although the orders was repeated, still did not leave, although he said and did nothing whatever; whereupon, as claimed by the Government, the defendant became enraged, took three steps towards Saldivar and struck him a powerful blow with his fist on the left side, just over the lower ribs. Saldivar turned around, without saying a word, and went in the direction of his sister's house, which stood about 200 yards away and about 100 feet up the side of a hill. He was not seen by anybody after starting toward the house. About two hours later, slightly more of less, he came to the front door of the house in a dying condition. He died just after being carried into the house and was buried two or three days later.

The trial court found the defendant guilty of the crime of homicide, marked with the extenuating circumstances defined in subsections 3 and 7 of article 9 of the Penal Code in that the defendant had no intention of committing so grave an injury as that which he inflicted and that he struck the blow under such powerful excitement as would naturally produce entire loss of reason and self-control. Sentence of six years and one day of *prision mayor* was imposed, and from this sentence the defendant appealed to this court.

The claim of the defendant is that he was not enraged, that he did not strike Saldivar, the decedent, a blow with his fist or a blow in any other manner, but that he simply stepped up to the decedent, put his open hand against him and pushed him gently backwards.

To secure a conviction it was necessary for the Government to prove, first, that the defendant unlawfully injured the decedent, and, second, that the decedent died because of that injury.

In this case the death is admitted. The cause of death is in dispute. The Government seeks to prove the cause of death by circumstantial evidence. The prosecution asserts that it has proved by direct evidence a blow or push delivered by the defendant to the person of the decedent, and, the subsequent death being admitted, asks the court to make the deduction that the one resulted from the other. No autopsy was had. No examination of the body, either before or after death, which merits the slightest consideration, was made by the prosecution. No expert testimony worthy of the

name was produce by the Government as to the cause of death. Such as was given is not only wholly valueless, but positively ridiculous.

The prosecution claims to have proved by reliable evidence, *and rests its case wholly upon that proposition*, that the defendant administered a powerful blow with the closed fist in the lower left side; that the death of decedent occurred very soon thereafter, and that therefore, the irresistible inference is that he injury caused the death. The claim of a proper conviction rests upon the proposition laid down generally by the authorities that where there has been inflicted an injury *sufficient to produce death*, followed by the demise of the injured person, the presumption arises that the injury was the cause of death, and, if no other cause is suggested by the evidence, the conclusion becomes practically irresistible and need not be corroborated by expert testimony. It should be noted here, however, in order to avoid confusion, that if there is no injury *sufficient to produce death*, then that presumption does not arise and no conclusion as to the cause of death can be indulged without additional proof.

The first question to be decided in this case is, Was the blow one which, in the ordinary acceptation of the term, was *sufficient to produce death*? If it was, and that fact is established by the evidence beyond a reasonable doubt, then the conviction of the defendant might possibly be sustained — a proposition not necessary to decide under my view of the case. If it was not, then, there being an absolute failure of proof as to the cause of death, the judgment of conviction must be reversed.

The resolution of this question depends, in this particular case, wholly upon the nature and character of the blow delivered.

After a very careful and thorough examination of the proof adduced at the trial, I can not bring myself to believe that the prosecution has established satisfactorily that the blow complained of was sufficient to produce death.

I am not convinced that the claim of the Government that the alleged blow was delivered with the clenched hand, or fist, has been sustained. Three witnesses were sworn on behalf of the Government to the question of the blow alleged to have been delivered by the defendant to the decedent. One of them, Pedro Leocampo, testified flatly and directly that the push or blow (he does not designate by express words which it was) was administered with the open hand. At page 19 and following pages of the evidence he declares that, at the beginning of the incident in question between the defendant and the decedent, he had his back toward the participants, eating his breakfast; that he heard the defendant say to the decedent, "*Fuera*, go ahead, *vamus*," and immediately turning his head he saw the defendant with his open hand extending toward and touching the body of the decedent; that he saw decedent then turn and walk away. Later, in replying to questions put by the trial judge, he said he was not quite sure whether the open hand of defendant actually touched decedent's body or not. It is unquestionable, however, that the movement of the defendant's hand which he saw was the blow or push which it is claimed caused the fatal injury; because it is admitted by all, and the evidence also on that point is undisputed, that what the witness saw was at least the critical part of the incident — the delivery of the alleged blow. Moreover, it is conceded that the alleged blow was not delivered until after the defendant had uttered the words referred to and had stepped forward at least one peace; and it is nowhere asserted or claimed by anybody that the defendant extended his hand toward the decedent more than once or that more than one blow was given. It is evident, therefore, that what the witness saw was the delivery of the very blow or push which the prosecution claims was the cause of death. If can not well be imagined, in view of the

testimony given by this witness, how the Government could fairly claim otherwise. These conclusion as it is found in the record. In answer to a question put by the fiscal on direct examination he said:

"T. Que estuve de espalda con ellos y el americano no ha dicho nada y momentos despues dejo: 'fuera,' '*go ahead*,' le vi que tenia la mano abierta y esta mano toco el cuerpo de Simeon, pero no he visto como estabe."

After cross-examination the court questioned the witness as follows:

"J. Oyo Vd. ruido de algun golpe cuando el acusado Brobst dijo 'fuera de aqui?' — T. No he oido el golpe.

"J. En el momento de decir 'fuera de aqui,' a que distancia estabe Simeon del acusado? T. A distancia de mas de una vara.

"J. Y vio Vd. al acusado empujar al occiso Simeon? — T. No puedo decir si el acusado empujo a Simeon.

"J. Vio Vd. a Simeon Saldivar retroceder en el momento de decir el acusado 'fuera de aqui? — T. He visto retroceder y dar las espaldas.

"J. *Cuando hizo el ademan de empujarle, como tenia el puno — cerrado o abierto*? — T. *Tenia la mano abierta*.

"J. *En que forma*? — T. *Tenia abierta la mano*."

The testimony of this witness clearly discloses the fact that he saw the critical part of the event, that is, the part wherein the hand of the defendant touched the body of the decedent in the alleged blow. *At that moment the hand of the defendant was open*.

The witness Miguel Yotiga, another witness called by the Government, testified on pages 2,3, and 4 of the record that during the month of July, 1907, he was at the place questions and answer, among others:

"F. Sabe Vd. se durante el mes de Julio de 1907 que estuvo Vd. trabajando alli ha occurrido alguna cosa extraoridinaria? — T. Se, senor.

"F. Que es? — T. El haber *abofeteado* el americano a untao.

"F. Estaba Vd. presente? — T. Se, señor.

"F. Relate Ve. fielmente en este juzgado todo lo que Vd. ha presenciado desde el principio hasta el fin. — T. Yo he sido asalariado por el para acarrear arroz. Cuando llegue en las minmas era ya de noche, y al requerir nuestro salario nos dijo Cristobal que nos dormiriamos alli porque el americano estabe ya durmiendo y que Vds. pueden salir muy temprano por la manana. Se nos dio el salario per el acarreo del arroz, y despues de darnos el salario se nos dijo que quedaramos para desayunar. Despues de desayunar llegaron tambien 4 hombres; el cocinero me dijo: 'Miguel, presente Vd. a estos 4 hombres por si el Sr. Brobst los quiere empliar en el trabajo.' Brobst so aim pueden trabajar esos 4 hombres. El Sr. Brobst se levanto para ver a aquellos 4 hombres, al ultimo de los cuales le pego una *bofetada*, y yo habia visto la *bofetada* que le dio en la cintura en el bolo colocado en la cintura, e inmediatamente el hombre se dirigio a la casa de su hermana.

"F. A que distancia estaba Vd. de Mr. Brobst cuando dio el *puñetazo* a aquel individuo? — T. Uns distancia de 10 metros.

"F. Sabe Vd. por que el acusado habia dado *puñetazo a aquel*? — T. Que yo

le he visto pegar con el *bofeton*, pero que no se el motivo.

"F. Cruzaron entre ellos alguna disputa o rina antes que el acusado haya dado el *golpe*? — T. No se nada, unicamente he visto que cuando llegaba Mr. Brobst dio el *puñetazo*."

Later on the witness says, in reply to leading questions, that the blow was struck with the closes hand and was a heavy one.

It will be observed from this testimony that the witness, in making his statement in narrative form and without the influence which particular words in questions frequently exerts on simple-minded witnesses, used the words *abofeteado* and *bofetada* in speaking of the kind of blow which the defendant administered to the decedent. The word *bofetada*, as well as *abofeteado*, means a blow with the open hand. It does not mean a severe blow, and particularly not a blow with the fist or closed hand. It is much nearer in character to a push than it is to a *puñetazo*, which is always a blow with the fist. It is a light slap rather than a blow. It is the diminutive of the word *bofeton*; that is to say, if it can be called a blow at all, it is a gentler blow than would be signified if the word *bofeton* were use. All of the dictionaries say that *puñetazo* is a blow with the clenched hand, or fist, and that *bofetada* is a blow with the *open* hand. The dictionaries also say, in giving the definition of *bofeton*, that it is the *aumentativo de bofetada*. In his testimony on pages 2, 3, and 4, the witness continually and persistently used the word *bofetada* in describing the blow given by the defendant to the decedent until the word *puñetazo* was suggested to him or put into his mouth, as it were, by the questions of the fiscal. Then the witness himself picked up the word and thereafter used it. No amount or species of word torture can make the word "slap" mean a blow with the fist. No more can *bofetada* be made to mean *puñetazo*. A witness who, in describing the same blow, first uses the word *bofetada* and then, after suggestion, changes it to *puñetazo*, provokes a contradiction in his testimony, which, if not explained, militates strongly against his credibility. This is especially so when the change in the word goes to the very essence of the cause of action, as it does in this case. This whole case depends upon whether the word *puñetazo* or the word *bofetada* correctly describes the event out of which this action grows:

It is but repeating the general experience of those familiar with the trial of causes to say that suggestions to a witness by the form and specific wording of a question are of very frequent occurrence. The suggestion produces the same result whether wilfully made and received or innocently indulged, as was undoubtedly the case here on the part of the fiscal. In the case of an ignorant or simpleminded witness, his vocabulary being limited, he catches very readily, as a rule, the words used by the interrogator and, in his answers, uses the exact words in which the question is propounded, without, perhaps, being in the least conscious that the words he assumes do not exactly, sometimes not all closely, represent what he really wants to express. These suggestions display one of the vices found by the courts in what are termed "leading questions," and furnish a reason for the rule uniformly enforced in trial courts that they will not be permitted.

The questions and answers already quoted illustrate this vice forcibly as to the use by the witness Yotiga of the words *bofetada* and *puñetazo*. On page 5 of the evidence occurs another illustration. There the fact sought to be elicited was whether the blow was gentle or severe. "F. *Hizo despacio o fuerte*? — T. *Fuerte*." On page 12, 19, and 24 the following occurs:

"F. Donde toco — directamente en el cuerpo o en el bolo? — T. Dio en el bolo.

"F. En que parte del bolo — en la vaina o en el puno? — T. En el puno del bolo.

"F. Era fuerte el puñetazo of flojo? — T. Fuerte.

"F. Cuando el acusado pego a Simeon Saldivar, estaba riendose o estaba furioso? — T. Furioso.

"F. Tenia cerrado el puno o abierto la mano? — T. Cerrado la mano."

In these illustrations, it will be observed, the witness is presented by the questions with only two words to make use of in answering — one word the very extreme in one direction and the other word the very extreme in the other. The ignorant or simple-minded witness whose vocabulary is extremely limited, who is unused to court proceedings, is strongly tempted, and in many instances is virtually forced, to accept one word or the other and thereby assume one extreme or the other in making his answers, although the word made use of may not within many degrees express his real meaning. All of these questions were leading and suggestive, and, judging from the testimony given anterior to those questions, especially by the witness Yotiga, led to very marked contradictions of, or, at least, changes in, the evidence as previously presented.

The third and last witness for the Government who testified as to the blow was Fermin Dagapdap. In describing the blow this witness from the first used the word *puñetazo*. This witness, however, stated that he was at the time of the occurrence about 100 *brazas* (600 feet) from the participants. Later in his testimony he attempts to claim that he gaves 100 *brazas* as the distance which the decedents was from his brother's house at the time of the occurrence. This, however, is very difficult to believe in view of the evidence which he gave, as shown on page 25, which follows:

"F. A que distancia estaba Vd. de los dos cuando dio el puñetazo? — T. Unas 100 brazas.

"F. Vd. estaba a 100 brazas de distancia? — T. Se, senor.

"F. Indique Vd. aqui la distancia aproxemadamente de las 100 brazas que Vd. dice. — T. Aquella casa de techo de hierro.

"F. Esa es la distancia donde Vd. estaba cuando dio el punetazo a Simeon Saldivar? — T. Si, señor."

If, after all that questioning as to the distance he was away from the scene of the occurrence, and if, after all the effort which the fiscal evidently made to induce in him a proper comprehension of the nature of the question, the witness did not then understand, he displayed qualities, or the lack of them, which justly lead to the conclusion that his testimony ought not to be given any weight whatever, especially where it is in conflict with the testimony of any witness more reliable. Moreover, his manifest evasions on cross-examination materially weaken any claim which may be made in favor of his credibility.

These witnesses for the Government are in conflict in other particulars. Yotiga declared that the incident occurred at eight o'clock in the morning. Dagapdap swore that it occurred at four o'clock in the morning. Yotiga declared that if happened while the workmen were eating breakfast; Dagapdap averred that it took place after breakfast and while the men were working.

It seems to me, therefore, that the direct testimony adduced by the Government

to prove that the defendant delivered against the body of decedent a blow with his fist, is conspicuously weak, particularly when we take into consideration that one of the Government witnesses flatly contradicts the other two in every important point; and that testimony, taken in connection with all the circumstances surrounding and accompanying the incident, seems rather to support the testimony and claim of the defendant that he did not strike the decedent with his fist but gave him a push with his open hand.

The following are the said circumstances, present at the very time the act complained of was committed, which go to prove that the blow, alleged to have been delivered against the body of the decedent was not blow at all in the real sense of the word and was wholly insufficient ordinarily speaking, to cause any injury whatever:

The decedent at the time showed absolutely no signs of having been injured in the slightest degree.

(*a*) The three witnesses for the prosecution above referred to, Yotiga, Dagapdap and Leocampo, if their testimony is to be believed, unite in declaring that they were looking the decedent full in the face when the alleged blow was struck and that they saw thereon nothing but a perfectly natural expression. There is not the slightest evidence to show that the countenance of the decedent betrayed even the faintest appearance of Spain, distress or discomfort at the time the blow was delivered or at any time thereafter so long as he was observed.

(*b*) Nobody heard any blow struck. It is concealed by every witness for the Government that there was no sound of a blow. There were at the place where the incident occurred about twenty men, all of them as close to the participants as were the three witnesses for the Government and yet, so far as can be gathered, not a person heard the sound of a blow. In fact, only three of the twenty (the witnesses for the Government) knew that anything unusual had happened at all.

(*c*) The decedent gave no cry of pain, made no exclamation, uttered no sound. This is the uncontradicted proof.

(*d*) The decedent did not reel or stagger backward, forward or sideways, nor did he lose his equilibrium in any way.

This is established by uncontradicted proof. Every witness for the Government declares that after the delivery of the alleged blow the decedent remained in a perfectly upright attitude and in a natural position; and that immediately after receiving the blow he turned and walked away.

One of the witnesses, after being sharply questioned by the fiscal, stated that on the delivery of the blow the decedent stepped back, threw up his arms and walked away. The following is his testimony:

> "El Sr. Brobst . . . le pego una bofetada y yo habia visto la bofetada que le dio en la cintura en el bolo colocado en la cintura *e immediatamente el hombre se dirigio a la casa de su hermana*.
>
> "F. En que posicion se quedo aquel individuo en el mismo momento de recibir el golpe? — T. Que *inmediatamente de haber recibido el puñetazo se marcho*.
>
> "F. Yo le pregunto a Vd. en el mismo momento de haber dado el puñetazo. — T. Que despues de dar el golpe se retrocedioy levanto los brazos yen

seguida se marcho."

It will be observed, from the evidence quoted, that the witness testified at first the decedent did nothing on receiving the blow except to turn and walk away. This testimony the witness repeats in response to a second question of the fiscal. The third question as to the same point was evidently very sharply put by the fiscal, and that effort drew from the witness the additional statement, quite inconsistent with his two previous ones, that the decedent stepped back and *threw up his arms*. Neither of the other two witnesses for the Government saw this latter manifestation on the part of the decedent. One of them, Leocampo, testifies directly that no such thing happened, and the other, Dagapdap, although one of those who claimed to have been a eyewitness of the whole affair and who assumed to describe the whole incident in detail, fails to mention the very important fact, if it is a fact, that the decedent *threw up his arms*. He testified that the decedent simply whirled around and walked away.

The claim of the prosecution that the decedent staggered at the time of the alleged blow is based upon the translation of "*dio vueltas*." One of the Government's witnesses says that on the delivery of the blow the decedent "*dio vueltas y se marcho*." So far as my researches go, no such interpretation can be given those words. They do not mean that he "staggered". They mean simply that he turned or whirled around. This might follow a blow or a push. No other witness uses these same words; but the other two witnesses for the Government, in describing the same act of the decedent, used words which, it may fairly be assumed, in order to maintain as much harmony as possible in the testimony of the Government's witnesses, were intended to mean the same thing. Such words are "*se dirigio a la casa*," and "*volvi la cara y se marcho el difunto*." These words were used by the other two Government witnesses in describing the very same act to which the other Government witness applied the description "*dio vueltas*." Those words can not possibly be construed to mean that the decedent staggered.

(*e*) The decedent, according to the testimony of the prosecution, did not attempt to ward off, dodge or escape the blow in any way.

He had abundant opportunity to do so. It is nowhere denied, but always admitted, that the defendant twice ordered the decedent to leave the place and after delivering the order the second time advanced toward him a peace or two. The decedent was fully warned. Yet the witnesses of the prosecution claim that, up to the time the blow touched him, he made no move whatever. It is unbelievable that the decedent would permit the defendant to walk up to him, after due warning, and plant a powerful blow in his abdomen without any effort to dodge or escape and without the slightest effort to ward off the blow by movement of body, hand, or arm. The throwing of the arms down to protect the abdomen in such a case is involuntary and almost inevitable; and the fact that he did not do so points strongly to the conclusion that he was not struck as claimed.

(*f*) The body of decedent exhibited no external sign of injury after death.

Two witnesses were sworn by the prosecution as to signs of injury upon the body of the decedent. One, the father of decedent, laborer, testified that at 4 o'clock of the afternoon of the day after the alleged injury (the alleged injury occurred at about 6 a. m.) he examined the body of decedent and found a black spot about the size of a peso on the left side. The other witness, Alejandro Santiago, 70 years, farmer and herbalist, declared that he examined the body, he does not remember when, and found a black

spot on the ribs (he does not remember on which side of the body) and another one on the navel. The cause of these spots, if they really existed, is pure speculation. Certainly one blow could not make both. They may have been caused by the decedent falling or by handling the at the time of or subsequent to death, or by ecchymosis. No one knows. Certain it is that an examination of the body by a licensed physician, Hans Hoch, made the day of the alleged injury, some hours thereafter, disclosed, so the physician testified, absolutely no external sign or evidence of injury. While the absence of external signs of injury is not conclusive that there was no injury, still such signs are usual in cases of this character and their absence is significant and important.

The weight of the testimony produced seems, therefore, to be that there were no external signs of injury upon the body of decedent — certainly none that were fairly traceable to the blow, even if delivered in the manner and with the force claimed by the Government.

It seems to me, therefore, that there is an essential and fatal conflict in the evidence of the prosecution. The prosecution claims (and portions of the direct testimony of some of its witnesses tend to prove) that the defendant gave the decedent a powerful blow with his fist, full in the left side; on the other hand, other positions of that testimony are utterly and destructively contradictory to that claim. It is contrary to the universal experience of life to assert that a man, receiving in his lower left side a powerful blow with the fist, a blow which, it is claimed, was sufficiently forcible to cause death within a short time, can maintain an erect and natural posture and exhibit absolutely no signs of pain. Experience also demonstrates that it is little short of the impossible that one receiving such a blow would *throw his arms up*. I do not believe a case can be cited where that has occurred. It is the experience of mankind that under such circumstances the person always throws his arms *down*. Such a blow in or about the abdomen or in the lower ribs produces such a shock to the nervous system, causes such a contraction of all the muscles thereabouts, induces such a difficulty of respiration, and such great pain, that the person so struck is not only wholly unable to throw his arms up but he is absolutely incapable of maintaining the body in an erect position. He involuntarily and inevitably throws the arms down the abdomen and bends the body forward at the hips. In other words, using which almost universal experience has taught accurately describes the position necessarily assumed by the one receiving such a blow, he would "double up like a jackknife." The claim that the blow was a powerful one delivered with the fist is so utterly inconsistent with the appearance and conduct of the decedent at the time of the assault subsequent thereto as to lead almost necessarily to the conclusion that no such blow was struck. Granting such a blow, it would be little short of the impossible, it certainly would be most extraordinary, for the decedent to exhibit no signs of pain, maintain an erect and natural position, preserve perfectly his equilibrium with the exception of stepping backward a little, turn in the ordinary way and walk off the premises at his usual and natural gait and with his usual and natural carriage. The entire absence of symptoms or evidence of injury at *the time of the act* complained of is, in my judgment, of the very gravest importance. It speaks louder and stronger and clearer than all the other evidence in the case as to whether or not the decedent was actually injured *at that time*.

On the other hand, the theory and claim of the defendant, that he simply stepped forward and pushed the decedent backward lightly with the open hand, after ordering him to leave, explains fully and satisfactorily every fact and every circumstance above mentioned as being so utterly inconsistent with the claim of the prosecution.

(1) It explains why the decedent did not try to dodge or escape or protect

himself by movement of the body, or by using the hands and arms to defend himself from the assault of this enraged and furious men. There was no violence from which he needed to protect himself.

(2) It explains why there was no cry of pain, no appearance of distress, no reeling, staggering, falling, doubling up or other exhibition or sign of injury. It explains why he did not at once drop to the ground, as he naturally and almost inevitably would on receiving a blow such as is sought to be established by the prosecution. There was no violence or force to cause any of these things.

(3) It explains why decedent was able to walk away promptly at his usual gait and with his customary carriage.

(4) It explains why there was no satisfactory proof of marks of violence or external signs of injury on the body of the decedent.

(5) It explains why nobody of all who were present heard the sound of a blow, not even the witnesses for the prosecution.

(6) It explains why, among the twenty persons there present, only a very small per cent knew that anything unusual had taken place.

(7) It explains why the witness Yotiga first used the word " *bofetada*" instead of " *puñetazo*" or "*golpe*".

(8) It explains why the witness Leocampo testified that the defendant's hand was open at the very time of its contact with decedent's person.

(9) It explains the entire lack of reason or motive on the part of defendant inducing him to inflict on the decedent punishment as severe as would follow such a blow.

It seems, therefore, to be demonstrated from the evidence that the prosecution has not only not sufficiently substantiated its claim that the blow was delivered with the fist, but has failed as well to show that any blow, in the real sense of that term, was struck. Rather the strong tendency of the proof, taken as a whole, together with all the circumstances, is to support the contention of the defendant that he simply pushed the decedent back with the open hand. That being so, it is perfectly apparent that such an act was utterly insufficient to produce death.

As stated at the outset, the Government rests its case wholly upon the proposition laid down by the authorities that where there has been inflicted an injury sufficient to produce death, followed by the demise of the injured person, the presumption arise that the injury was the cause of death, and, if no other cause is suggested by the evidence, the conclusion becomes practically irresistible and need not be corroborated by expert testimony. But it must always be remembered that the basis of and the reason for that presumption is the injury *sufficient to produce death*. If the injury is not one capable of producing death, ordinarily speaking, then no such presumption can possibly arise. The law invariably requires that there be established by clearest proof the connection between the injury and the death, making the one result of the other. Where the injury is one capable of producing death that connection of cause and effect is established between the injury and death by the *inherent nature of the act* — its sufficiency to produce death. But where the act is one not sufficient to produce death, then the relation of cause and effect is not established for the reason that the act fails of the very quality from which the presumption of cause and effect springs, namely, its capability of producing death. In such a case, when the Government has proved simply the injury and death, it has done nothing. The connection between the two is

wholly lacking. It is indispensable to a conviction in such case that the Government prove the *cause* of death; and that cause must be proved in addition to the fact of injury. This the Government has wholly failed to do. No effort was made to do so. The Government rested its case entirely upon the presumption, which it assumed arose by reason of the injury and death, to establish the relation of cause and effect between them. No autopsy was held. No one knows the cause of death. The incident occurred at about 6 o'clock a.m. The decedent died at about 8 o'clock the same morning. He left the scene of the event instantly. He was not seen again by anybody, so far as the evidence shows, until the very moment of his death. Where he was, what he did, and what happened to him during the two hours intervening the evidence does not disclose.

It being fairly established by the evidence that the defendant simply pushed the decedent, the remaining question is simple. The land and premises where the event transpired belonged to the defendant. The decedent, according to the evidence, was known to the defendant as a thief and as maker of mischief among the workers in the mines. Only two days before the event from which this suit arose defendant had seen the decedent forcibly ejected from these same premises by one Mann, a partner of defendant; and the defendant was at that time advised by Mann that the decedent was a mischief-maker and a thief and should not be allowed about the mines. The defendant had a right to protect his property from invasion particularly by such as he believed decedent to be; and if, being upon the premises, decedent refused to leave when given fair warning, the defendant had a right to eject him therefrom using no more force than was necessary to that end. (Cooley, Torts, 1st Ed., 167; McCarty *vs*. Fremont, 23 Cal., 196; Woodman *vs*. Howell, 45 Ill., 367; Bucher *vs*. Parmelee, 9 Vt., 352; People *vs*. Payne, 8 Cal., 341; People *vs*. Batchelder, 27 Cal., 69.)

That he did not use more force than was necessary is established by the evidence as shown by the preceding discussion.

Wills, on Circumstantial Evidence, says on page 291:

> "(3) In the proof of criminal homicide the true cause of death must be clearly established; and the possibility of accounting for the event by self-inflicted violence, accident or natural cause, excluded; and only when it has been proven that no other hypothesis will explain all the conditions of the case can it be safely and justly concluded that it has been caused by intentional injury. But, in accordance with the principles which govern the proof of every other element of the *corpus delicti*, it is not necessary that the cause of death should be verified by direct and positive evidence; it is sufficient if it be proven by circumstantial evidence, which produces a moral conviction in the minds of the jury, equivalent to that which is the result of positive and direct evidence."

In the People *vs*. Bennet (49 N. Y., 144) the court said:

> "In determining a question of fact from circumstantial evidence, there are two general rules to be observed: (1) The hypothesis of delinquency or guilt should flow naturally from the facts proved, and be consistent with them all. (2) The evidence must be such as to exclude, to a moral certainty, every hypothesis but that of his guilt of the offense imputed to him; or, in other words, the facts proved must all be consistent with and point to his guilt not only, but they must be inconsistent with his innocence."
>
> "On an indictment for murder, the prosecutor must prove that the blows caused the death; but, if he proves that the blows were given by *dangerous*

weapon — were followed by *insensibility or other alarming symptoms*, and soon afterward by death; this is sufficient to impose it on the accused, to show that the death was occasioned by some other cause." (U.S. *vs*. Wiltberger, Fed, Cas. No. 16738)

"On trial for murder, the State's failure to prove by what means the deceased came to his death is fatal to its case." (Cole *vs*. The State, 56 Ark., 50.)

"In order that a defendant may be properly convicted by circumstantial evidence, all the circumstances proved must be consistent with each other, consistent with the hypothesis that the accused is guilty, and, at the same time, inconsistent with the hypothesis that he is innocent, and with every other rational hypothesis except that of guilt."

(12 Cyc., 488; U.S. *vs*. Reyes, 3 Phil. Rep., 3; People *vs*. Ward, 105 Cal., 335; Carlton *vs*. The People, 150 Ill., 181; State *vs*. Vinson, 37 La. Ann., 792; Commonwealth *vs*. Costley, 118 Mass., 1; People *vs*. Aikin, 66 Mich., 460; U.S. *vs*. Reder, 69 Fed. Rep., 965.)

The judgment of conviction should be reversed, the defendant declared not guilty and his discharge from custody ordered.

SECOND DIVISION

[G.R. No. 171951. August 28, 2009.]

AMADO ALVARADO GARCIA, *petitioner*, ***vs.*** **PEOPLE OF THE PHILIPPINES**, *respondent*.

DECISION

QUISUMBING, *J.*:

For review on *certiorari* is the Decision [1] dated December 20, 2005 of the Court of Appeals in CA-G.R.-CR No. 27544 affirming the Decision [2] dated July 2, 2003 of the Regional Trial Court (RTC), Branch 9, Aparri, Cagayan, which found petitioner Amado Garcia guilty beyond reasonable doubt of homicide. Contested as well is the appellate court's Resolution [3] dated March 13, 2006 denying petitioner's Motion for Reconsideration. [4]

On February 10, 2000, petitioner was charged with murder in an Information that alleges as follows:

> The undersigned, Provincial Prosecutor accuses AMADO GARCIA @ Manding of the crime of Murder, defined and penalized under Article [248] of the Revised Penal Code, as amended by Republic Act No. 7659, committed as follows:
>
> That on or about September 29, 1999, in the municipality of Aparri, province of Cagayan, and within the jurisdiction of this Honorable Court, the above-named accused, armed with a bottle, with intent to kill, with evident premeditation and with treachery, did then and there wilfully, unlawfully and feloniously assault, attack, box, club and maul one Manuel K. Chy, inflicting upon the latter fatal injuries which caused his death.
>
> CONTRARY TO LAW. [5]

Upon arraignment, petitioner entered a not guilty plea. Thereafter, trial on the merits ensued.

The factual antecedents are as follows:

At approximately 11:00 a.m. on September 26, 1999, petitioner, Fidel Foz, Jr. and Armando Foz had a drinking spree at the apartment unit of Bogie Tacuboy, which was adjacent to the house of Manuel K. Chy. At around 7:00 p.m., Chy appealed for the group to quiet down as the noise from the videoke machine was blaring. It was not until Chy requested a second time that the group acceded. Unknown to Chy, this left petitioner irate and petitioner was heard to have said in the *Ilocano* vernacular, *"Dayta a Manny napangas makaala caniac dayta".* (This Manny is arrogant, I will lay a hand on him.) [6]

On September 28, 1999, the group met again to celebrate the marriage of Ador Tacuboy not far from Chy's apartment. Maya Mabbun advised the group to stop singing lest they be told off again. This further infuriated petitioner who remarked, *"Talaga a napangas ni Manny saan ko a pagbayagen daytoy",* meaning, "This Manny is really arrogant, I will not let him live long". [7]

Yet again, at around 12:00 p.m. on September 29, 1999, the group convened at the house of Foz and Garcia. There, petitioner, Foz, Jr. and Fred Rillon mused over the drinking session on the 26th and 28th of September and the confrontation with Chy. Enraged at the memory, petitioner blurted out *"Talaga a napangas dayta a day[t]oy a Manny ikabbut ko ita".* (This Manny is really arrogant, I will finish him off today.) [8] Later that afternoon, the group headed to the store of Adela dela Cruz where they drank until petitioner proposed that they move to Punta. On their way to Punta, the group passed by the store of Aurelia Esquibel, Chy's sister, and there, decided

to have some drinks.

At this juncture, petitioner ordered Esquibel to call on Chy who, incidentally, was coming out of his house at the time. Upon being summoned, the latter approached petitioner who suddenly punched him in the face. Chy cried out, *"Bakit mo ako sinuntok hindi ka naman [inaano]"?* (Why did you box me[?] I'm not doing anything to you.) [9] But petitioner kept on assaulting him. Foz attempted to pacify petitioner but was himself hit on the nose while Chy continued to parry the blows. Petitioner reached for a bottle of beer, and with it, struck the lower back portion of Chy's head. Then, Foz shoved Chy causing the latter to fall.

When Chy found an opportunity to escape, he ran towards his house and phoned his wife Josefina to call the police. Chy told Josefina about the mauling and complained of difficulty in breathing. Upon reaching Chy's house, the policemen knocked five times but nobody answered. Josefina arrived minutes later, unlocked the door and found Chy lying unconscious on the kitchen floor, salivating. He was pronounced dead on arrival at the hospital. The autopsy confirmed that Chy died of myocardial infarction.

After trial in due course, the RTC of Aparri, Cagayan (Branch 9) found petitioner guilty beyond reasonable doubt of homicide. The dispositive portion of the RTC decision reads:

> **WHEREFORE**, the Court renders judgment:
>
> 1) Finding AMADO GARCIA guilty beyond reasonable doubt for the crime of HOMICIDE defined and penalized by Article 249 of the Revised Penal Code and after applying in his favor the provisions of the Indeterminate Sentence Law, hereby sentences him to suffer an indeterminate prison term of TEN (10) YEARS OF PRISION MAYOR, as minimum, to FOURTEEN (14) YEARS and EIGHT (8) MONTHS of RECLUSION TEMPORAL as maximum;
>
> 2) Ordering him to pay the heirs of Manuel Chy the amount of FIFTY THOUSAND (P50,000.00) PESOS, as death indemnity; TWO HUNDRED THOUSAND (P200,000.00) PESOS, representing expenses for the wake and burial; THREE HUNDRED THOUSAND (P300,000.00) PESOS, as moral damages; and THREE HUNDRED THIRTY[-]TWO THOUSAND (P332,000.00] PESOS, as loss of earning, plus the cost of this suit.
>
> **SO ORDERED**. [10]

On appeal, the Court of Appeals affirmed the conviction in a Decision dated December 20, 2005, thus:

> WHEREFORE, premises considered, appeal is hereby **[DENIED]** and the July 2, 2003 Decision of the Regional Trial Court of Aparri, Cagayan, Branch [9], in Criminal Case No. 08-1185, is hereby **AFFIRMED IN TOTO**.
>
> **SO ORDERED**. [11]

Petitioner moved for reconsideration but his motion was denied in a Resolution dated March 13, 2006.

Hence, the instant appeal of petitioner on the following grounds:

I.

THE APPELLATE COURT ERRED IN AFFIRMING THE RULING OF THE TRIAL COURT THAT PETITIONER IS THE ONE RESPONSIBLE FOR INFLICTING THE SLIGHT PHYSICAL INJURIES SUSTAINED BY THE DECEASED MANUEL CHY.

II.

THE APPELLATE COURT ERRED IN AFFIRMING THE RULING OF THE TRIAL COURT FINDING PETITIONER LIABLE FOR THE DEATH OF MANUEL CHY DESPITE THE FACT THAT THE CAUSE OF DEATH IS MYOCARDIAL INFARCTION, A NON-VIOLENT RELATED CAUSE OF DEATH.

III.

THE APPELLATE COURT ERRED IN AFFIRMING THE RULING OF THE TRIAL COURT WHICH CONCLUDED THAT THE HEART FAILURE OF MANUEL CHY WAS DUE TO "FRIGHT OR SHOCK CAUSED BY THE MALTREATMENT".

IV.

BOTH THE APPELLATE TRIBUNAL AND THE TRIAL COURT ERRED IN NOT ACQUITTING THE PETITIONER ON THE GROUND OF REASONABLE DOUBT. [12]

In essence, the issue is whether or not petitioner is liable for the death of Manuel Chy.

In his undated Memorandum, [13] petitioner insists on a review of the factual findings of the trial court because the judge who penned the decision was not the same judge who heard the prosecution evidence. He adds that the Court of Appeals had wrongly inferred from, misread and overlooked certain relevant and undisputed facts, which, if properly considered, would justify a different conclusion. [14]

At the onset, petitioner denies laying a hand on Manuel Chy. Instead, he implicates Armando Foz as the author of the victim's injuries. Corollarily, he challenges the credibility of Armando's brother, Fidel, who testified concerning his sole culpability. Basically, petitioner disowns responsibility for Chy's demise since the latter was found to have died of myocardial infarction. In support, he amplifies the testimony of Dr. Cleofas C. Antonio [15] that Chy's medical condition could have resulted in his death anytime. Petitioner asserts that, at most, he could be held liable for slight physical injuries because none of the blows he inflicted on Chy was fatal.

The Office of the Solicitor General reiterates the trial court's assessment of the witnesses and its conclusion that the beating of Chy was the proximate cause of his death.

Upon careful consideration of the evidence presented by the prosecution as well as the defense in this case, we are unable to consider the petitioner's appeal with favor.

The present petition was brought under Rule 45 of the Rules of Court, yet, petitioner raises questions of fact. Indeed, it is opportune to reiterate that this Court is not the proper forum from which to secure a re-evaluation of factual issues, save where the factual findings of the trial court do not find support in the evidence on record or where the judgment appealed from was based on a misapprehension of facts. [16] Neither exception applies in the instant case as would justify a departure from the established rule.

Further, petitioner invokes a recognized exception to the rule on non-interference with the determination of the credibility of witnesses. He points out that the judge who penned the decision is not the judge who received the evidence and heard the witnesses. But while the situation obtains in this case, the exception does not. The records reveal that Judge Conrado F. Manauis inhibited from the proceedings upon motion of no less than the petitioner himself. Consequently, petitioner cannot seek protection from the alleged adverse consequence his own doing might have caused. For us to allow petitioner relief based on this argument would be to sanction a travesty of the Rules which was designed to further, rather than subdue, the ends of justice.

We reiterate, the efficacy of a decision is not necessarily impaired by the fact that the *ponente* only took over from a colleague who had earlier presided over the trial. It does not follow that the judge who was not present during the trial, or a fraction thereof, cannot render a valid and just decision. [17] Here, Judge Andres Q. Cipriano took over the case after Judge Manauis recused himself from the proceedings. Even so, Judge Cipriano not only heard the evidence for the defense, he also had an opportunity to observe Dr. Cleofas Antonio who was recalled to clarify certain points in his testimony. Worth mentioning, too, is the fact that Judge Cipriano presided during the taking of the testimonies of Fidel Foz, Jr. and Alvin Pascua on rebuttal.

In any case, it is not unusual for a judge who did not try a case in its entirety to decide it on the basis of the records on hand. [18] He can rely on the transcripts of stenographic notes and calibrate the testimonies of witnesses in accordance with their conformity to common experience, knowledge and observation of ordinary men. Such reliance does not violate substantive and

procedural due process of law. [19]

The Autopsy Report on the body of Manuel Chy disclosed the following injuries:

POSTMORTEM FINDINGS

Body embalmed, well preserved.

Cyanotic lips and nailbeds.

Contusions, dark bluish red: 4.5 x 3.0 cms.,**lower portion of the left ear**; 4.0 x 2.8 cms., left inferior mastoid region; 2.5 x 1.1 cms., upper lip; 2.7 x 1.0 cms., **lower lip**; 5.8 x 5.5 cms., dorsum of **left hand**.

Lacerated wound, 0.8 cm., involving mucosal surface of the**upper lip on the right side**.

No fractures noted.

Brain with tortuous vessels. Cut sections show congestion. No hemorrhage noted.

Heart, with abundant fat adherent on its epicardial surface. Cut sections show a reddish brown myocardium with an area of hyperemia on the whole posterior wall, the lower portion of the anterior wall and the inferior portion of the septum. Coronary arteries, gritty, with the caliber of the lumen reduced by approximately thirty (30%) percent. Histopathological findings show **mild fibrosis of the myocardium**.

Lungs, pleural surfaces, shiny; with color ranging from dark red to dark purple. Cut sections show a gray periphery with reddish brown central portion with fluid oozing on pressure with some reddish frothy materials noted. Histopathological examinations show pulmonary edema and hemorrhages.

Kidneys, purplish with glistening capsule. Cut sections show congestion. Histopathological examinations show mild lymphocytic infiltration.

Stomach, one-half (1/2) full with brownish and whitish materials and other partially digested food particles.

CAUSE OF DEATH: — Myocardial Infarction. (Emphasis supplied.) [20]

At first, petitioner denied employing violence against Chy. In his undated Memorandum, however, he admitted inflicting injuries on the deceased, *albeit,* limited his liability to slight physical injuries. He argues that the superficial wounds sustained by Chy did not cause his death. [21] Quite the opposite, however, a conscientious analysis of the records would acquaint us with the causal connection between the death of the victim and the mauling that preceded it. In open court, Dr. Antonio identified the immediate cause of Chy's myocardial infarction:

ATTY. TUMARU:

Q: You diagnose[d] the cause of death to be myocardial infarction that is because there was an occlusion in the artery that prevented the flowing of blood into the heart?

A: That was not exactly seen at the autopsy table but it changes, the hyperemic changes [in] the heart muscle were the one[s] that made us [think] or gave strong conclusion that it was myocardial infarction, and most likely the cause is **occlusion of the blood vessels** itself. (Emphasis supplied.) [22]

By definition, coronary occlusion [23] is the complete obstruction of an artery of the heart, usually from progressive arteriosclerosis [24] or the thickening and loss of elasticity of the arterial walls. This can result from sudden emotion in a person with an existing arteriosclerosis; otherwise, a heart attack will not occur. [25] Dr. Jessica Romero testified on direct examination relative to this point:

ATTY. CALASAN:

Q: Could an excitement trigger a myocardial infarction?

A: Excitement, I cannot say that if the patient is normal[;] that is[,] considering that the patient [does] not have any previous [illness] of hypertension, no previous history of myocardial [ischemia], **no previous [arteriosis] or hardening of the arteries**, then excitement [cannot] cause myocardial infarction. (Emphasis supplied.) [26]

The Autopsy Report bears out that Chy has a mild fibrosis of the myocardium [27] caused by a previous heart attack. Said fibrosis [28] or formation of fibrous tissue or scar tissue rendered the middle and thickest layer of the victim's heart less elastic and vulnerable to coronary occlusion from sudden emotion. This causation is elucidated by the testimony of Dr. Antonio:

ATTY. CALASAN:

Q: You said that the physical injuries will cause no crisis on the part of the victim, Doctor?

A: Yes, sir.

Q: And [these] physical injuries [were] caused by the [boxing] on the mouth and[/]or hitting on the nape by a bottle?

A: Yes, sir.

Q: On the part of the deceased, that [was] caused definitely by emotional crisis, Doctor?

A: Yes, sir.

Q: And because of this emotional crisis the heart palpitated so fast, so much so, that there was less oxygen being pumped by the heart?

A: Yes, sir.

Q: And definitely that caused his death, Doctor?

A: Yes, sir, it could be. [29]

In concurrence, Dr. Antonio A. Paguirigan also testified as follows:

ATTY. CALASAN:

Q: I will repeat the question . . . Dr. Antonio testified that the deceased died because of the blow that was inflicted, it triggered the death of the deceased, do you agree with his findings, Doctor?

A: Not probably the blow but the reaction sir.

Q: So you agree with him, Doctor?

A: It could be, sir.

Q: You agree with him on that point, Doctor?

A: Yes, sir. [30]

It can be reasonably inferred from the foregoing statements that the emotional strain from the beating aggravated Chy's delicate constitution and led to his death. The inevitable conclusion then surfaces that the myocardial infarction suffered by the victim was the direct, natural and logical consequence of the felony that petitioner had intended to commit.

Article 4 (1) of the Revised Penal Code states that criminal liability shall be incurred "by any person committing a felony *(delito)* although the wrongful act done be different from that which he intended". The essential requisites for the application of this provision are: (a) the intended act is felonious; (b) the resulting act is likewise a felony; and (c) the unintended albeit

graver wrong was primarily caused by the actor's wrongful acts. [31]

In this case, petitioner was committing a felony when he boxed the victim and hit him with a bottle. Hence, the fact that Chy was previously afflicted with a heart ailment does not alter petitioner's liability for his death. Ingrained in our jurisprudence is the doctrine laid down in the case of *United States v. Brobst* [32] that:

> . . . where death results as a direct consequence of the use of illegal violence, the mere fact that the diseased or weakened condition of the injured person contributed to his death, does not relieve the illegal aggressor of criminal responsibility. [33]

In the same vein, *United States v. Rodriguez* [34] enunciates that:

> . . . although the assaulted party was previously affected by some internal malady, if, because of a blow given with the hand or the foot, **his death was hastened**, beyond peradventure he is responsible therefor who produced the cause for such acceleration as the result of a voluntary and unlawfully inflicted injury. (Emphasis supplied.) [35]

In this jurisdiction, a person committing a felony is responsible for all the natural and logical consequences resulting from it although the unlawful act performed is different from the one he intended; [36] *"el que es causa de la causa es causa del mal causado"* (he who is the cause of the cause is the cause of the evil caused). [37] Thus, the circumstance that petitioner did not intend so grave an evil as the death of the victim does not exempt him from criminal liability. Since he deliberately committed an act prohibited by law, said condition simply mitigates his guilt in accordance with Article 13 (3) [38] of the Revised Penal Code. [39] Nevertheless, we must appreciate as mitigating circumstance in favor of petitioner the fact that the physical injuries he inflicted on the victim, could not have resulted naturally and logically, in the actual death of the victim, if the latter's heart was in good condition.

Considering that the petitioner has in his favor the mitigating circumstance of lack of intention to commit so grave a wrong as that committed without any aggravating circumstance to offset it, the imposable penalty should be in the minimum period, that is, *reclusion temporal* in its minimum period, [40] or anywhere from twelve (12) years and one (1) day to fourteen years (14) years and eight (8) months. Applying the Indeterminate Sentence Law, [41] the trial court properly imposed upon petitioner an indeterminate penalty of ten (10) years of *prisión mayor,* as minimum, to fourteen (14) years and eight (8) months of *reclusion temporal* as maximum.

We shall, however, modify the award of damages to the heirs of Manuel Chy for his loss of earning capacity in the amount of P332,000. In fixing the indemnity, the victim's actual income at the time of death and probable life expectancy are taken into account. For this purpose, the Court adopts the formula used in *People v. Malinao*: [42]

Net earning capacity = 2/3 x (80-age of the victim at the time of this death) x a reasonable portion of the annual net income which would have been received by the heirs for support. [43]

Branch 9 of the Aparri, Cagayan RTC took judicial notice of the salary which Manuel Chy was receiving as a sheriff of the court. At the time of his death, Chy was 51 years old and was earning a gross monthly income of P10,600 or a gross annual income of P127,200. But, in view of the victim's delicate condition, the trial court reduced his life expectancy to 10 years. It also deducted P7,000 from Chy's salary as reasonable living expense. However, the records are bereft of showing that the heirs of Chy submitted evidence to substantiate actual living expenses. And in the absence of proof of living expenses, jurisprudence [44] approximates net income to be 50% of the gross income. Accordingly, by reason of his death, the heirs of Manuel Chy should be awarded P1,229,600 as loss of earning capacity, computed as follows:

Net earning capacity = 2/3 x (80-51) x [P127,200 - 1/2 (P127,200)]
= 2/3 x (29) x P63,600
= 19 1/3 x P63,600
= P1,229,600

We sustain the trial court's grant of funerary expense of P200,000 as stipulated by the parties [45] and civil indemnity of P50,000. [46] Anent moral damages, the same is mandatory in cases of murder and homicide, without need of allegation and proof other than the death of the victim. [47] However, in obedience to the controlling case law, the amount of moral damages should be reduced to P50,000.

WHEREFORE, the Decision dated December 20, 2005 and the Resolution dated March 13, 2006 of the Court of Appeals in CA-G.R.-CR No. 27544 are **AFFIRMED with MODIFICATION** in that the award of moral damages is reduced to P50,000. Petitioner is further ordered to indemnify the heirs of Manuel K. Chy P50,000 as civil indemnity; P200,000, representing expenses for the wake and burial; and P1,229,600 as loss of earning capacity.

No pronouncement as to costs.

SO ORDERED.

Carpio Morales, Brion, Del Castillo and *Abad, JJ.,* concur.

Footnotes

1. *Rollo*, pp. 51-65. Penned by Associate Justice Vicente Q. Roxas, with Associate Justices Conrado M. Vasquez, Jr. and Juan Q. Enriquez, Jr. concurring.
2. CA *rollo*, pp. 93-108. Penned by Presiding Judge Andres Q. Cipriano.
3. *Rollo*, p. 101.
4. *Id.* at 69-98.
5. Records, p. 2.
6. TSN, September 24, 2001, p. 8.
7. *Id.* at 10.
8. *Id.* at 11.
9. *Id.* at 21.
10. CA *rollo*, pp. 107-108.
11. *Rollo*, p. 65.
12. *Id.* at 188.
13. *Id.* at 180-220.
14. *Id.* at 190.
15. TSN, September 16, 2002, pp. 15-19.
16. *Lascano v. People*, G.R. No. 166241, September 7, 2007, 532 SCRA 515, 524.
17. *Resayo v. People*, G.R. No. 154502, April 27, 2007, 522 SCRA 391, 401-402.
18. *Decasa v. Court of Appeals*, G.R. No. 172184, July 10, 2007, 527 SCRA 267, 283.
19. *Id.* at 284.
20. Records, p. 260.
21. *Rollo*, p. 216.

22. TSN, September 26, 2001, pp. 10-11.

23. R. SLOANE, THE SLOANE-DORLAND ANNOTATED MEDICAL-LEGAL DICTIONARY 506 (1987).

24. *Id.* at 60.

25. *Id.* at 506.

26. TSN, August 5, 2002, p. 39.

27. *Supra* note 23, at 60.

Myocardium is the middle and thickest layer of the heart wall, composed of cardiac muscle.

28. *Id.* at 285.

29. TSN, September 16, 2002, pp. 20-21.

30. TSN, June 20, 2002, p. 44.

31. *People v. Ortega, Jr.*, G.R. No. 116736, July 24, 1997, 276 SCRA 166, 182.

32. 14 Phil. 310 (1909).

33. *Id.* at 318.

34. 23 Phil. 22 (1912).

35. *Id.* at 25.

36. *Quinto v. Andres*, G.R. No. 155791, March 16, 2005, 453 SCRA 511, 520.

37. *People v. Ural,* No. L-30801, March 27, 1974, 56 SCRA 138, 144.

38. **ART. 13**. *Mitigating circumstances*. — The following are mitigating circumstances:

xxx xxx xxx

3. That the offender had no intention to commit so grave a wrong as that committed.

xxx xxx xxx

39. *People v. Ilustre*, 54 Phil. 594, 599 (1930).

40. Article 64 (2) of the Revised Penal Code provides:

ART. 64. *Rules for the application of penalties which contain three periods.*— In cases in which the penalties prescribed by law contains three periods, whether it be a single divisible penalty or composed of three different penalties; each one of which forms a period in accordance with the provisions of Articles 76 and 77, the courts shall observe for the application of the penalty the following rules, according to whether there are or are no mitigating or aggravating circumstances:

xxx xxx xxx

2. When only a mitigating circumstance is present in the commission of the act, they shall impose the penalty in its minimum period.

xxx xxx xxx

41. Act No. 4103.

SECTION 1. Hereafter, in imposing a prison sentence for an offense punished by the Revised Penal Code, or its amendments, the court shall sentence the accused to an indeterminate sentence the maximum term of which shall be that which, in view of the attending circumstances, could be properly imposed under the rules of the said Code, and the minimum which shall be within the range of the penalty next lower to that prescribed by the Code for the offense; and if the

offense is punished by any other law, the court shall sentence the accused to an indeterminate sentence, the maximum term of which shall not exceed the maximum fixed by said law and minimum shall not be less than the minimum term prescribed by the same. *(As amended by Act No. 4225.).*

42. G.R. No. 128148, February 16, 2004, 423 SCRA 34.

43. *Id.* at 54.

44. *Id.* at 55.

45. TSN, October 17, 2001, p. 7.

46. *People v. Ducabo*, G.R. No. 175594, September 28, 2007, 534 SCRA 458, 476.

47. *Id.* at 477.

EN BANC

[G.R. No. L-1896. February 16, 1950.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **RAFAEL BALMORES Y CAYA**, *defendant-appellant*.

D E C I S I O N

OZAETA, *J* :

Appellant, waiving the right to be assisted by counsel, pleaded guilty to the following information filed against him in the Court of First Instance of Manila:

> "The undersigned accuses Rafael Balmores y Caya of attempted estafa through falsification of a security committed as follows.
>
> "That on or about the 22nd day of September, 1947, in the City of Manila, Philippines, the said accused did then and there wilfully unlawfully and feloniously commence the commission of the crime of estafa through falsification of a security directly by overt acts, to wit: by then and there tearing off at the bottom in a cross-wise direction a portion of a genuine 1/8 unit Philippine Charity Sweepstakes ticket thereby removing the true and real unidentified number of same and substituting and writing in ink at the bottom on the left side of said ticket the figure or number 074000 thus making the said ticket bear the said number 074000, which is a prize-winning number in the Philippine Charity Sweepstakes draw last June 29 1947, and presenting the said ticket so falsified on said date, September 22, 1947, in the Philippine Charity Sweepstakes Office for the purpose of exchanging the same for the corresponding cash that said number had won, fraudulently pretending in said office that the said 1/8 unit of a Philippine Charity Sweepstakes ticket is genuine and that he is entitled to the corresponding amount of 1'359.55 so won by said ticket in the Philippine Charity Sweepstakes draw on said date, June 29, 1947, but the said accused failed t perform all the acts of execution which would have produced the crime of estafa through falsification of a security as a consequence by reason of some causes other than his spontaneous desistance, to wit: one Bayani Miller, an employee to whom the said accused presented said ticket in the Philippine Charity Sweepstakes Office discovered that the said ticket as presented by the said accused was falsified and immediately thereafter he called for a policeman who apprehended and arrested the said accused right then and there.
>
> 'Contrary to law.
>
> (Sgd.) "LORENZO RELOVA
>
> *"Assistant City Fiscal"*

and was sentenced by Judge Emilio Pefia to suffer not less than 10 years and 1 day of *prision mayor* and not more than 12 years and 1 day of *reclusion temporal*, and to pay a fine of P100 and the costs.

From that sentence he appealed to this court, contending (1) that the facts

charged in the information did not constitute an offense and (2) that the trial court lacked Jurisdiction to convict him on a plea of guilty because, being illiterate, he was not assisted by counsel.

In support of the first contention, counsel for the appellant argues that there could be no genuine 1/8 unit Philippine Charity Sweepstakes ticket for the June 29, 1947, draw; that this court has judicial notice that the Philippine Charity Sweepstakes Office issued only four 1/4 units for each ticket for the said draw of June 29, 1947; that the information does not show that the true and real unidentified number of the ticket alleged to have been torn was not and could not be 074000; that the substitution and writing in ink of the said number 074000 was not falsification where the true and real number of the ticket so torn was 074000.

This contention is based on assumptions not borne out by the record. The ticket alleged to have been falsified is before us and it appears to be a 1/8 unit. We cannot take judicial notice of what is not of common knowledge. If relevant, it should have been proved. But if it is true that the Philippine Charity Sweepstakes Office did not issue 1/8 but only 1/4 units of tickets for the June 29, 1947, draw, that would only strengthen the theory of the prosecution that the 1/8 unit of a ticket which appellant presented to the Philippine Charity Sweepstakes Office was spurious. The assumption that the true and real unidentified number of the ticket alleged to have been torn was the winning number 074000, is likewise not supported by the record. The information to which appellant pleaded guilty alleged that the appellant removed the true and real unidentified number of the ticket and *substituted* and wrote in ink at the bottom on the left side of said ticket the figure or number 074000. It is obvious that there would have been no need of removal and *substitution* if the original number on the ticket was the same as that which appellant wrote in ink in lieu thereof.

The second contention appears to be based on a correct premise but wrong conclusion. The fact that appellant was illiterate did not deprive the trial court of jurisdiction to convict him on a plea of guilty although he was not assisted by counsel. The decision expressly states that appellant waived the right to be assisted by counsel, and we know of no law against such waiver.

It may be that appellant was either reckless or foolish in believing that a falsification as patent as that which he admitted to have perpetrated would succeed; but the recklessness and clumsiness of the falsification did not make the crime impossible within the purview of paragraph 2, article 4, in relation to article 59, of the Revised Penal Code. Examples of an impossible crime, which formerly was not punishable but is now so under article 59 of the Revised Penal Code, are the following: (1) When one tries to kill another by putting in his soup a substance which he believes to be arsenic when in fact it is common salt; and (2) when one tries to murder a corpse. (Guevara, Commentaries on the Revised Penal Code, 4th ed page 15; decision, Supreme Court of Spain, November 26 1879; 21 Jur. Crim., 343.) Judging from the appearance of the falsified ticket in question, we are not prepared to say that it would have been impossible for the appellant to consummate the crime of estafa thru falsification of said ticket if the clerk to whom it was presented for payment had not exercised due care

The penalty imposed by article 166 for the forging or falsification of "treasury or bank notes or certificates or *other obligations and securities" is reclusion temporal* in its minimum period and a fine not to exceed P10,000, if the document which has been falsified, counterfeited, or altered is an obligation or security of the United States or of the Philippine Islands. This being a complex crime of attempted estafa through

falsification of an obligation or security of the Philippines, the penalty should be imposed in its maximum period in accordance with article 48. Taking into consideration the mitigating circumstance of lack of instruction, and applying the Indeterminate Sentence Law, the minimum cannot be lower than *prision mayor* in its maximum period, which is 10 years and 1 day to 12 years. It results, therefore, that the penalty imposed by the trial court is correct.

The alteration, or even destruction, of a losing sweepstakes ticket could cause no harm to anyone and would not constitute a crime were it not for the attempt to cash the ticket so altered as a prize-winning number. So in the ultimate analysis appellant's real offense was the attempt commit estafa (punishable with eleven days of *arresto menor*); but technically and legally he has to suffer for the serious crime of falsification of a government obligation. We realize that the penalty is too severe, considering all the circumstances of the case, but we have no discretion to impose a lower penalty than that authorized by law. The exercise of clemency is vested by the Constitution in the Chief Executive and not in this court.

We are constrained to affirm the sentence appealed from, with costs against the appellant.

Moran, C.J., Pablo, Bengzon, Padilla, Tuason, Montemayor, Reyes and *Torres, JJ.,* concur.

Dissenting Opinion

PARAS, J.:

The accused-appellant, instead of being the victimizer, has become the victim. He was accused of having falsified a genuine 1/8 unit of the Philippine Charity Sweepstakes ticket for the June, 1947, draw by tearing off at its bottom in a cross-wise direction a portion, thereby removing the true and unidentified number of said ticket and substituting and writing in ink at the bottom on the left side the number 074000, thus making said ticket bear a prize winning number. He was convicted of attempted estafa thru falsification of an obligation or security and sentenced to an indeterminate penalty of from 10 years and 1 day of *prision mayor* to 12 years and 1 day of *reclusion temporal*, and to pay a fine of P100 plus the costs. He waived the right to be assisted by counsel and merely plea ed guilty to the information.

The appellant is admittedly an illiterate and, in my opinion, had committed only an impossible crime now punishable under paragraph 2, article 4, in relation to article 59, of the Revised Penal Code. I say impossible, because in the way the alleged falsification was done, it was inherently inadequate or ineffective and accordingly certain to be detected. Stated otherwise, the appellant could not have succeeded in cashing the ticket. For who would cash a ticket which, in the first place, has a missing portion and, in the second place, contains a number written in ink. Not even boy agents who conduct their trades on street sidewalks, and much less the employee of the Sweep stakes Office to whom it was presented. As a matter of fact, the falsification was readily detected by said employee. The crime is just as impossible as passing a counterfeit paper bill concocted in regular newsprint and in ordinary handwriting.

A doubt also arises from the fact that the ticket is a 1/8 unit, in the face of the contention of attorney for appellant in this instance that the tickets for the June, 1947, Sweepstakes draw consisted of only four units. Of course, this may not be a matter of

judicial notice, but the point remains that if appellant was assisted by competent counsel in the trial court, the fact might have been duly proven. It is true that the appellant waived his right to be assisted by counsel, but we cannot help pointing out that a miscarriage of justice may sometimes result by force of circumstances. In such cases, any capital doubt should be resolved in favor of the accused.

My vote, therefore, is to reverse the appealed judgment and to release the appellant immediately as he has been in prison since November 11, 1947.

SECOND DIVISION

[G.R. No. 103119. October 21, 1992.]

SULPICIO INTOD, *petitioner*, ***vs.*** **HONORABLE COURT OF APPEALS AND PEOPLE OF THE PHILIPPINES**, *respondents*.

D E C I S I O N

CAMPOS, JR., *J* :

Petitioner, Sulpicio Intod, filed this petition for review of the decision of the Court of Appeals [1] affirming *in toto* the judgment of the Regional Trial Court, Branch XIV, Oroquieta City, finding him guilty of the crime of attempted murder.

From the records, we gathered the following facts.

In the morning of February 4, 1979, Sulpicio Intod, Jorge Pangasian, Santos Tubio and Avelino Daligdig went to Salvador Mandaya's house in Katugasan, Lopez Jaena, Misamis Occidental and asked him to go with them to the house of Bernardina Palangpangan. Thereafter, Mandaya and Intod, Pangasian, Tubio and Daligdig had a meeting with Aniceto Dumalagan. He told Mandaya that he wanted Palangpangan to be killed because of a land dispute between them and that Mandaya should accompany the four (4) men, otherwise, he would also be killed.

At about 10:00 o'clock in the evening of the same day, Petitioner, Mandaya, Pangasian, Tubio and Daligdig, all armed with firearms, arrived at Palangpangan's house in Katugasan, Lopez Jaena, Misamis Occidental. At the instance of his companions, Mandaya pointed the location of Palangpangan's bedroom. Thereafter, Petitioner, Pangasian, Tubio and Daligdig fired at said room. It turned out, however, that Palangpangan was in another city and her home was then occupied by her son-in-law and his family. No one was in the room when the accused fired the shots. No one was hit by the gun fire.

Petitioner and his companions were positively identified by witnesses. One witness testified that before the five men left the premises, they shouted: "We will kill you (the witness) and especially Bernardina Palangpangan and we will come back if (sic) you were not injured". [2]

After trial, the Regional Trial Court convicted Intod of attempted murder. The Court of Appeals affirmed *in toto* the trial court's decision. Hence this petition.

This petition questions the decision of the Regional Trial Court (RTC), as affirmed by the Court of Appeals, holding that Petitioner was guilty of attempted murder. Petitioner seeks from this Court a modification of the judgment by holding him liable only for an impossible crime, citing Article 4(2) of the Revised Penal Code which provides:

> ARTICLE 4(2). *Criminal Responsibility*. — Criminal responsibility shall be incurred:
>
> xxx xxx xxx

> 2. By any person performing an act which would be an offense against persons or property, *were it not for the inherent impossibility of its accomplishment* or on account of the employment of inadequate or ineffectual means.

Petitioner contends that, Palangpangan's absence from her room on the night he and his companions riddled it with bullets made the crime inherently impossible.

On the other hand, Respondent People of the Philippines argues that the crime was not impossible. Instead, the facts were sufficient to constitute an attempt and to convict Intod for attempted murder. Respondent alleged that there was intent. Further, in its Comment to the Petition, respondent pointed out that:

> . . . The crime of murder was not consummated, not because of the inherent impossibility of its accomplishment (Art. 4(2), Revised Penal Code), but due to a cause or accident other than petitioner's and his co-accused's own spontaneous desistance (Art. 3., ibid.) Palangpangan did not sleep at her house at that time. Had it not been for this fact, the crime is possible, not impossible. [3]

Article 4, paragraph 2 is an innovation [4] of the Revised Penal Code. This seeks to remedy the void in the Old Penal Code where:

> . . . it was necessary that the execution of the act has been commenced, that the person conceiving the idea should have set about doing the deed, employing appropriate means in order that his intent might become a reality, and finally, that the result or end contemplated shall have been physically possible. So long as these conditions were not present, the law and the courts did not hold him criminally liable. [5]

This legal doctrine left social interests entirely unprotected. [6] The Revised Penal Code, inspired by the Positivist School, recognizes in the offender his formidability, [7] and now penalizes an act which were it not aimed at something quite impossible or carried out with means which prove inadequate, would constitute a felony against person or against property. [8] The rationale of Article 4(2) is to punish such criminal tendencies. [9]

Under this article, the act performed by the offender cannot produce an offense against persons or property because: (1) the commission of the offense is inherently impossible of accomplishment; or (2) the means employed is either (a) inadequate or (b) ineffectual. [10]

That the offense cannot be produced because the commission of the offense is inherently impossible of accomplishment is the focus of this petition. To be impossible under this clause, the act intended by the offender must be by its nature one impossible of accomplishment. [11] There must be either (1) legal impossibility, or (2) physical impossibility of accomplishing the intended act [12] in order to qualify the act as an impossible crime.

Legal impossibility occurs where the intended acts, even if completed, would not amount to a crime. [13] Thus:

> Legal impossibility would apply to those circumstances where (1) the motive, desire and expectation is to perform an act in violation of the law; (2) there is intention to perform the physical act, (3) there is a performance of the intended physical act; and (4) the consequence resulting from the intended act does not amount to a crime. [14]

The impossibility of killing a person already dead [15] falls in this category.

On the other hand, factual impossibility occurs when extraneous circumstances unknown to the actor or beyond his control prevent the consummation of the intended crime. [16] One example is the man who puts his hand in the coat pocket of another with the intention to steal the latter's wallet and finds the pocket empty. [17]

The case at bar belongs to this category. Petitioner shoots the place where he thought his victim would be, although in reality, the victim was not present in said place and thus, the petitioner failed to accomplish his end.

One American case has facts almost exactly the same as this one. In *People vs. Lee Kong*, [18] the accused, with intent to kill, aimed and fired at the spot where he thought the police officer would be. It turned out, however, that the latter was in a different place. The accused failed to hit him and to achieve his intent. The Court convicted the accused of an attempt to kill. It held that:

> The fact that the officer was not at the spot where the attacking party imagined where he was, and where the bullet pierced the roof, renders it no less an attempt to kill. It is a well settled principle of criminal law in this country that where the criminal result of an attempt is not accomplished simply because of an obstruction in the way of the thing to be operated upon, and these facts are unknown to the aggressor at the time, the criminal attempt is committed.

In the case of *Stokes vs. State*, [19] where the accused failed to accomplish his intent to kill the victim because the latter did not pass by the place where he was lying-in wait, the court held him liable for attempted murder. The court explained that:

> It was no fault of Stokes that the crime was not committed . . . It only became impossible by reason of the extraneous circumstance that Lane did not go that way; and further, that he was arrested and prevented from committing the murder. This rule of the law has application only where it is inherently impossible to commit the crime. It has no application to a case where it becomes impossible for the crime to be committed, either by outside interference or because of miscalculation as to a supposed opportunity to commit the crime which fails to materialize; in short it has no application to the case when the impossibility grows out of extraneous acts not within the control of the party.

In the case of *Clark vs. State*, [20] The court held defendant liable for attempted robbery even if there was nothing to rob. In disposing of the case, the court quoted Mr. Justice Bishop, to wit:

> It being an accepted truth that defendant deserves punishment by reason of his criminal intent, no one can seriously doubt that the protection of the public requires the punishment to be administered, equally whether in the unseen depths of the pocket, etc., what was supposed to exist was really present or not. The community suffers from the mere alarm of crime. Again: 'Where the thing intended (attempted) as a crime and what is done is a sort to create alarm, in other words, excite apprehension that the evil intention will be carried out, the incipient act which the law of attempt takes cognizance of is in reason committed.

In *State vs. Mitchell*, [21] defendant, with intent to kill, fired at the window of victim's room thinking that the latter was inside. However, at that moment, the victim was in another part of the house. The court convicted the accused of attempted murder.

The aforecited cases are the same cases which have been relied upon by Respondent to make this Court sustain the judgment of attempted murder against Petitioner. However, we cannot rely upon these decisions to resolve the issue at hand. There is a difference between the Philippine and the American laws regarding the concept and appreciation of impossible crimes.

In the Philippines, the Revised Penal Code, in Article 4(2), expressly provided for impossible crimes and made them punishable. Whereas, in the United States, the Code of Crimes and Criminal Procedure is silent regarding this matter. What it provided for were attempts of the crimes enumerated in the said Code. Furthermore, in said jurisdiction, the impossibility of committing the offense is merely a defense to an attempt charge. In this regard, commentators and the cases generally divide the impossibility defense into two categories: legal versus factual impossibility. [22] In *U.S. vs. Wilson* [23] the Court held that:

> . . . factual impossibility of the commission of the crime is not a defense. If the crime could have been committed had the circumstances been as the defendant believed them to be, it is no defense that in reality the crime was impossible of commission.

Legal impossibility, on the other hand, is a defense which can be invoked to avoid criminal liability for an attempt. In *U.S. vs. Berrigan*, [24] the accused was indicted for attempting to smuggle letters into and out of prison. The law governing the matter made the act criminal if done without the knowledge and consent of the warden. In this case, the offender intended to send a letter without the latter's knowledge and consent and the act was performed. However, unknown to him, the transmittal was achieved with the warden's knowledge and consent. The lower court held the accused liable for attempt but the appellate court reversed. It held unacceptable the contention of the state that "elimination of impossibility as a defense to a charge of criminal attempt, as suggested by the Model Penal Code and the proposed federal legislation, is consistent with the overwhelming modern view". In disposing of this contention, the Court held that the federal statutes did not contain such provision, and thus, following the principle of legality, no person could be criminally liable for an act which was not made criminal by law. Further, it said:

> Congress has not yet enacted a law that provides that intent plus act plus conduct constitutes the offense of attempt irrespective of legal impossibility until such time as such legislative changes in the law take place, this court will not fashion a new non-statutory law of criminal attempt.

To restate, in the United States, where the offense sought to be committed is factually impossible of accomplishment, the offender cannot escape criminal liability. He can be convicted of an attempt to commit the substantive crime where the elements of attempt are satisfied. It appears, therefore, that the act is penalized, not as an impossible crime, but as an attempt to commit a crime. On the other hand, where the offense is legally impossible of accomplishment, the actor cannot be held liable for any crime — neither for an attempt nor for an impossible crime. The only reason for this is that in American law, there is no such thing as an impossible crime. Instead, it only recognizes impossibility as a defense to a crime charge — that is, attempt.

This is not true in the Philippines. In our jurisdiction, impossible crimes are recognized. The impossibility of accomplishing the criminal intent is not merely a defense, but an act penalized by itself. Furthermore, the phrase "inherent impossibility" that is found in Article 4(2) of the Revised Penal Code makes no distinction between

factual or physical impossibility and legal impossibility. *Ubi lex non distinguit nec nos distinguere debemos*.

The factual situation in the case at bar presents physical impossibility which rendered the intended crime impossible of accomplishment. And under Article 4, paragraph 2 of the Revised Penal Code, such is sufficient to make the act an impossible crime.

To uphold the contention of respondent that the offense was Attempted Murder because the absence of Palangpangan was a supervening cause independent of the actor's will, will render useless the provision in Article 4, which makes a person criminally liable for an act "which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment . . ." In that case, all circumstances which prevented the consummation of the offense will be treated as an accident independent of the actor's will which is an element of attempted and frustrated felonies.

WHEREFORE, PREMISES CONSIDERED, the petition is hereby GRANTED, the decision of respondent Court of Appeals holding Petitioner guilty of Attempted Murder is hereby MODIFIED. WE hereby hold Petitioner guilty of an impossible crime as defined and penalized in Articles 4, paragraph 2, and 59 of the Revised Penal Code, respectively. Having in mind the social danger and degree of criminality shown by Petitioner, this Court sentences him to suffer the penalty of six (6) months of arresto mayor, together with the accessory penalties provided by the law, and to pay the costs.

SO ORDERED.

Feliciano, Regalado and *Nocon, Jr., JJ .,* concur.

Narvasa, C .J ., on official leave.

Footnotes

1. *People vs. Intod,* C.A.-G.R. Cr. No. 09205, August 14, 1991; Justice Fidel P. Purisima, *Ponente*; Justices Eduardo R. Bengzon and Salome A. Montoya, concurring.
2. TSN, p. 4, July 24, 1986.
3. Records, p. 65.
4. Guevarra, Commentaries on the Revised Penal Code 15 (4th ed., 1946).
5. Albert, The Revised Penal Code, Annotated 35 (1946).
6. Albert, *ibid*.
7. Albert, *ibid*.
8. Albert, *ibid*.
9. Gregorio and Feria, Comments on the Revised Penal Code 76 (Vol. I, 1st ed. 1958).
10. Reyes, The Revised Penal Code, 90 (Vol. I, 11th ed., 1977).
11. Reyes, *ibid.*
12. Reyes, *ibid*.

13. *U.S. vs. Berrigan*, 482 F. 2d. 171 (1973).

14. *U.S. vs. Berrigan*, *ibid.*

15. Aquino, The Revised Penal Code, 82 (Vol. I, 1987).

16. *U.S. vs. Berrigan*, *supra*, n. 13.

17. *U.S. vs. Berrigan*, *ibid*.

18. 21 L.R.A. 626 (1898).

19. 21 L.R.A. N.S. 898 (1908).

20. 17 S.W. 145 (1888).

21. 71 S.W. 175 (1902).

22. U.S. vs. HENG AWKAK ROMAN, 39 L. Ed. 2d. 874 (1974).

23. 565 F. Supp. 1416 (1983).

24. *Supra*, n. 13.

FIRST DIVISION

[G.R. No. 95322. March 1, 1993.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **PABLITO DOMASIAN AND DR. SAMSON TAN**, *accused-appellant*.

D E C I S I O N

CRUZ, *J* :

The boy was detained for only about three hours and was released even before his parents received the ransom note. But it spawned a protracted trial spanning all of 8 years and led to the conviction of the two accused. [1]

The victim was Enrico Paulo Agra, who was 8 years old at the time of the incident in question. The accused were Pablito Domasian and Samson Tan, the latter then a resident physician in the hospital owned by Enrico's parents. They were represented by separate lawyers at the trial and filed separate briefs in this appeal.

The evidence of the prosecution showed that in the morning of March 11, 1982, while Enrico was walking with a classmate along Roque street in the poblacion of Lopez, Quezon, he was approached by a man who requested his assistance in getting his father's signature on a medical certificate. Enrico agreed to help and rode with the man in a tricycle to Calantipayan, where he waited outside while the man went into a building to get the certificate. Enrico became apprehensive and started to cry when, instead of taking him to the hospital, the man flagged a minibus and forced him inside, holding him firmly all the while. The man told him to stop crying or he would not be returned to his father. When they alighted at Gumaca, they took another tricycle, this time bound for the municipal building from where they walked to the market. Here the man talked to a jeepney driver and handed him an envelope addressed to Dr. Enrique Agra, the boy's father. The two then boarded a tricycle headed for San Vicente, with the man still firmly holding Enrico, who continued crying. This aroused the suspicion of the driver, Alexander Grate, who asked the man about his relationship with the boy. The man said he and the boy were brothers, making Grate doubly suspicious because of the physical differences between the two and the wide gap between their ages. Grate immediately reported the matter to two barangay *tanods* when his passengers alighted from the tricycle. Grate and the *tanods* went after the two and saw the man dragging the boy. Noticing that they were being pursued, the man told Enrico to run fast as their pursuers might behead them. Somehow, the man managed to escape, leaving Enrico behind. Enrico was on his way home in a passenger jeep when he met his parents, who were riding in the hospital ambulance and already looking for him. [2]

At about 1:45 in the afternoon of the same day, after Enrico's return, Agra received an envelope containing a ransom note. The note demanded P1 million for the release of Enrico and warned that otherwise the boy would be killed. Agra thought the handwriting in the note was familiar. After comparing it with some records in the hospital, he gave the note to the police, which referred it to the NBI for examination. [3]

The test showed that it had been written by Dr. Samson Tan. [4] On the other

hand, Enrico was shown a folder of pictures in the police station so he could identify the man who had detained him, and he pointed to the picture of Pablito Domasian. [5] Domasian and Tan were subsequently charged with the crime of kidnapping with serious illegal detention in the Regional Trial Court of Quezon. [6]

The defense of both accused was denial and alibi. Domasian claimed that at the time of the incident he was watching a mahjong game in a friend's house and later went to an optical clinic with his wife for the refraction of his eyeglasses. [7] Dr. Tan for his part said he was in Manila. [8]

After trial, Judge Enrico A. Lanzanas found both accused guilty as charged and sentenced them to suffer the penalty of *reclusion perpetua* and all accessory penalties. They were also required to pay P200,000.00 to Dr. and Mrs. Enrique Agra as actual and moral damages and attorney's fees.

In the present appeal, the accused-appellants reiterate their denial of any participation in the incident in question. They belittle the credibility of the prosecution witnesses and submit that their own witnesses are more believable. Tan specifically challenges the findings of the NBI and offers anew the opposite findings of the PC/INP showing that he was not the writer of the ransom note. He maintains that in any case, the crime alleged is not kidnapping with serious illegal detention as no detention in an enclosure was involved. If at all, it should be denominated and punished only as grave coercion. Finally, both Domasian and Tan insist that there is no basis for the finding of a conspiracy between them to make them criminally liable in equal degree.

First, on the credibility of the witnesses. This is assessed in the first instance by the trial judge, whose finding in this regard is received with much respect by the appellate court because of his opportunity to directly observe the demeanor of the witnesses on the stand.

In the case at bar, Judge Lanzanas relied heavily on the testimony of the victim himself, who positively identified Domasian as the person who detained him for three hours. The trial court observed that the boy was "straight-forward, natural and consistent" in the narration of his detention. The boy's naivete made him even more believable. Tirso Ferreras, Enrico's classmate and also his age, pointed to Domasian with equal certainty, as the man who approached Enrico when they were walking together that morning of March 11, 1982. Grate, the tricycle driver who suspected Enrico's companion and later chased him, was also positive in identifying Domasian. All these three witnesses did not know Domasian until that same morning and could have no ill motive in testifying against him. By contrast, Eugenia Agtay, who testified for the defense, can hardly be considered a disinterested witness because she admitted she had known Domasian for 3 years.

The defense asks why Domasian openly took Enrico to several public places if the intention was to kidnap and detain him. That is for Domasian himself to answer. We do not have to probe the reasons for the irrational conduct of an accused. The more important question, as we see it, is why Domasian detained Enrico in the first place after pretending he needed the boy's help. That is also for Domasian to explain. As for Enrico's alleged willingness to go with Domasian, this was manifested only at the beginning, when he believed the man sincerely needed his assistance. But he was soon disabused. His initial confidence gave way to fear when Domasian, after taking him so far away from the hospital where he was going, restrained and threatened him if he did not stop crying.

Domasian's alibi cannot stand against his positive identification by Enrico, Grate

and Ferreras, let alone the contradictions made by his corroborating witness, Dr. Irene Argosino, regarding the time he was in the optical clinic and the manner of his payment for the refraction. [9] Tan's alibi is not convincing either. The circumstance that he may have been in Manila at the time of the incident does not prove that he could not have written the ransom note except at that time.

Concerning the note, Rule 132, Section 22, of the Rules of Court provides as follows:

> The handwriting of a person may be proved by any witness who believes it to be the handwriting of such person and has seen the person write, or has seen writing purporting to be his upon which the witness has acted or been charged and has thus acquired knowledge of the handwriting of such person. Evidence respecting the handwriting may also be given by a comparison, made by the witness or the court, with writings admitted or treated as genuine by the party against whom the evidence is offered or proved to be genuine to the satisfaction of the judge.

Two expert witnesses were presented in the case at bar, one from the NBI, [10] who opined that the ransom note and the standard documents were written by one and the same person, and another from the PC/INP 1 [1] who expressed a contrary conclusion. The trial court chose to believe the NBI expert because his examination and analysis "was more comprehensive than the one conducted by the PC/INP handwriting expert, who virtually limited his reliance on the perceived similarities and dissimilarities in the pattern and style of the writing, thereby disregarding the basic principle in handwriting identification that it is not the form alone nor any one feature but rather a combination of all the qualities that identify."

We have held that the value of the opinion of a handwriting expert depends not upon his mere statements of whether a writing is genuine or false, but upon the assistance he may afford in pointing out distinguishing marks, characteristics and discrepancies in and between genuine and false specimens of writing which would ordinarily escape notice or detection from an unpracticed observer. [12] The test of genuineness ought to be the resemblance, not the formation of letters in some other specimens but to the general character of writing, which is impressed on it as the involuntary and unconscious result of constitution, habit or other permanent course, and is, therefore itself permanent. [13]

Presented with the conflicting opinions of the witnesses in the case at bar, the Court feels that the scales should tilt in favor of the prosecution. Significantly, the NBI opinion was bolstered by the testimony of Agra, who believed that the ransom note was written by Tan, with whose handwriting he was familiar because they had been working in the hospital for four years and he had seen that handwriting every day in Tan's prescriptions and daily reports. [14]

Cesar v. Sandiganbayan [15] is not applicable because that case involved a forgery or the deliberate imitation of another person's signature. In the case before us, there was in fact an effort to *disguise* the ransom note writer's penmanship to prevent his discovery.

As for the nature of the crime committed, Article 267 of the Revised Penal Code provides as follows:

> ARTICLE 267. *Kidnapping and serious illegal detention*. — Any private individual who shall kidnap or detain another, or in any manner deprive him of his liberty, shall suffer the penalty of *reclusion perpetua* to death:

1. If the kidnapping or detention shall have lasted more than five days.

2. If it shall have been committed simulating public authority.

3. If any serious physical injuries shall have been inflicted upon the person kidnapped or detained; or if threats to kill him shall have been made.

4. If the person kidnapped or detained shall be a minor, female or a public officer.

The penalty shall be death where the kidnapping or detention was committed for the purpose of extorting ransom from the victim or any other person; even if none of the circumstances above-mentioned were present in the commission of the offense.

Contrary to Tan's submission, this crime may consist not only in placing a person in an enclosure but also in detaining him or depriving him in any manner of his liberty. [16] In the case at bar, it is noted that although the victim was not confined in an enclosure, he was deprived of his liberty when Domasian restrained him from going home and dragged him first into the minibus that took them to the municipal building in Gumaca, thence to the market and then into the tricycle bound for San Vicente. The detention was committed by Domasian, who was a private individual, and Enrico was a minor at that time. The crime clearly comes under Par. 4 of the above-quoted article.

Tan claims that the lower court erred in not finding that the sending of the ransom note was an impossible crime which he says is not punishable. His reason is that the second paragraph of Article 4 of the Revised Penal Code provides that criminal liability shall be incurred "by any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means." As the crime alleged is not against persons or property but against liberty, he argues that it is not covered by the said provision.

Tan conveniently forgets the first paragraph of the same article, which clearly applies to him, thus:

ARTICLE 4. *Criminal liability*. — Criminal liability shall be incurred:

1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.

xxx xxx xxx

Even before the ransom note was received, the crime of kidnapping with serious illegal detention had already been committed. The act cannot be considered an impossible crime because there was no inherent improbability of its accomplishment or the employment of inadequate or ineffective means. The delivery of the ransom note after the rescue of the victim did not extinguish the offense, which had already been consummated when Domasian deprived Enrico of his liberty. The sending of the ransom note would have had the effect only of increasing the penalty to death under the last paragraph of Article 267 although this too would not have been possible under the new Constitution.

On the issue of conspiracy, we note first that it exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it, whether they act through physical volition of one or all, proceeding severally or collectively. [17]

It is settled that conspiracy can be inferred from and proven by the acts of the accused themselves when said acts point to a joint purpose and design, concerted action and community of interests. [18] In the instant case, the trial court correctly held that conspiracy was proved by the act of Domasian in detaining Enrico; the writing of the ransom note by Tan; and its delivery by Domasian to Agra. These acts were complementary to each other and geared toward the attainment of the common ultimate objective, *viz*. to extort the ransom of P1 million in exchange for Enrico's life.

The motive for the offense is not difficult to discover. According to Agra, Tan approached him six days before the incident happened and requested a loan of at least P15,000.00. Agra said he had no funds at that moment and Tan did not believe him, angrily saying that Agra could even raise a million pesos if he really wanted to help. [19] The refusal obviously triggered the plan to kidnap Enrico and demand P1 million for his release.

The constitutional issues raised by Domasian do not affect the decision in this case. His claim that he was arrested without warrant and then tortured and held *incommunicado* to extort a confession from him does not vitiate his conviction. He never gave any confession. As for the allegation that the seizure of the documents used for comparison with the ransom note was made without a search warrant, it suffices to say that such documents were taken by Agra himself and not by the NBI agents or other police authorities. We held in the case of People vs. Andre Marti, [20] that the Bill of Rights cannot be invoked against acts of private individuals, being directed only against the government and its law-enforcement agencies as a limitation on official action.

We are satisfied that Tan and Domasian, in conspiracy with each other, committed the crime of kidnapping as defined and penalized under Article 267 of the Revised Penal Code and so deserve the penalty imposed upon them by the trial court.

WHEREFORE, the appealed decision is AFFIRMED, with costs against the accused-appellants.

Let a copy of this decision be sent to the Commission on Human Rights for investigation of the alleged violation of the constitutional rights of Pablito Domasian.

SO ORDERED.

Griño-Aquino, Bellosillo and *Quiason, JJ .,* concur.

Footnotes

1. Records, p. 1; Rollo, p. 119.
2. TSN, December 20, 1983, pp. 38-39.
3. TSN, November 14, 1984, pp. 17-28; 36-37.
4. TSN, September 28, 1982, pp. 35-36.
5. TSN, November 14, 1984, p. 33.
6. Records, p. 122.
7. TSN, January 29, 1987, pp. 4-9.
8. TSN, June 22, 1989, p. 4.

9. TSN, November 13, 1986, pp. 7-9; pp. 22-23.

10. TSN, September 28, 1982, pp. 35-36.

11. TSN, July 19, 1989, p. 35.

12. Alcos v. IAC, 162 SCRA 823.

13. Alcos v. IAC, 162 SCRA 823, citing Moran, Comments on Rules of Court, 434 [Nolasco ed., 1980; also see People v. Bustos, 45 Phil. 9 (1983)].

14. TSN, November 14, 1984, pp. 19-21.

15. 134 SCRA 105.

16. People v. Crisostomo, 46 Phil. 775.

17. People v. Maranion, 199 SCRA 421.

18. People v. Bausing, 199 SCRA 355.

19. TSN, November 14, 1984, pp. 44-47.

20. 193 SCRA 57.

THIRD DIVISION

[G.R. No. 162540. July 13, 2009.]

GEMMA T. JACINTO, *petitioner*, ***vs.*** **PEOPLE OF THE PHILIPPINES**, *respondent*.

D E C I S I O N

PERALTA, *J.*:

Before us is a petition for review on *certiorari* filed by petitioner Gemma T. Jacinto seeking the reversal of the Decisions [1] of the Court of Appeals (CA) in CA-G.R. CR No. 23761 dated December 16, 2003, affirming petitioner's conviction of the crime of Qualified Theft, and its Resolution [2] dated March 5, 2004 denying petitioner's motion for reconsideration.

Petitioner, along with two other women, namely, Anita Busog de Valencia y Rivera and Jacqueline Capitle, was charged before the Regional Trial Court (RTC) of Caloocan City, Branch 131, with the crime of Qualified Theft, allegedly committed as follows:

> That on or about and sometime in the month of July 1997, in Kalookan City, Metro Manila, and within the jurisdiction of this Honorable Court, the above-named accused; conspiring together and mutually helping one another, being then all employees of MEGA FOAM INTERNATIONAL INC., herein represented by JOSEPH DYHENGCO Y CO, and as such had free access inside the aforesaid establishment, with grave abuse of trust and confidence reposed upon them with intent to gain and without the knowledge and consent of the owner thereof, did then and there willfully, unlawfully and feloniously take, steal and deposited in their own account, Banco De Oro Check No. 0132649 dated July 14, 1997 in the sum of P10,000.00, representing payment made by customer Baby Aquino to the Mega Foam Int'l. Inc. to the damage and prejudice of the latter in the aforesaid stated amount of P10,000.00.
>
> CONTRARY TO LAW. [3]

The prosecution's evidence, which both the RTC and the CA found to be more credible, reveals the events that transpired to be as follows.

In the month of June 1997, Isabelita Aquino Milabo, also known as Baby Aquino, handed petitioner Banco De Oro (BDO) Check Number 0132649 postdated July 14, 1997 in the amount of P10,000.00. The check was payment for Baby Aquino's purchases from Mega Foam Int'l., Inc., and petitioner was then the collector of Mega Foam. Somehow, the check was deposited in the Land Bank account of Generoso Capitle, the husband of Jacqueline Capitle; the latter is the sister of petitioner and the former pricing, merchandising and inventory clerk of Mega Foam.

Meanwhile, Rowena Ricablanca, another employee of Mega Foam, received a phone call sometime in the middle of July from one of their customers, Jennifer Sanalila. The customer wanted to know if she could issue checks payable to the account of Mega Foam, instead of issuing the checks payable to *CASH.* Said customer

had apparently been instructed by Jacqueline Capitle to make check payments to Mega Foam payable to *CASH.* Around that time, Ricablanca also received a phone call from an employee of Land Bank, Valenzuela Branch, who was looking for Generoso Capitle. The reason for the call was to inform Capitle that the subject BDO check deposited in his account had been dishonored.

Ricablanca then phoned accused Anita Valencia, a former employee/collector of Mega Foam, asking the latter to inform Jacqueline Capitle about the phone call from Land Bank regarding the bounced check. Ricablanca explained that she had to call and relay the message through Valencia, because the Capitles did not have a phone; but they could be reached through Valencia, a neighbor and former co-employee of Jacqueline Capitle at Mega Foam.

Valencia then told Ricablanca that the check came from Baby Aquino, and instructed Ricablanca to ask Baby Aquino to replace the check with cash. Valencia also told Ricablanca of a plan to take the cash and divide it equally into four: for herself, Ricablanca, petitioner Jacinto and Jacqueline Capitle. Ricablanca, upon the advise of Mega Foams accountant, reported the matter to the owner of Mega Foam, Joseph Dyhengco.

Thereafter, Joseph Dyhengco talked to Baby Aquino and was able to confirm that the latter indeed handed petitioner a BDO check for P10,000.00 sometime in June 1997 as payment for her purchases from Mega Foam. [4] Baby Aquino further testified that, sometime in July 1997, petitioner also called her on the phone to tell her that the BDO check bounced. [5] Verification from company records showed that petitioner never remitted the subject check to Mega Foam. However, Baby Aquino said that she had already paid Mega Foam P10,000.00 cash in August 1997 as replacement for the dishonored check. [6]

Generoso Capitle, presented as a hostile witness, admitted depositing the subject BDO check in his bank account, but explained that the check came into his possession when some unknown woman arrived at his house around the first week of July 1997 to have the check rediscounted. He parted with his cash in exchange for the check without even bothering to inquire into the identity of the woman or her address. When he was informed by the bank that the check bounced, he merely disregarded it as he didn't know where to find the woman who rediscounted the check.

Meanwhile, Dyhengco filed a Complaint, with the National Bureau of Investigation (NBI) and worked out an entrapment operation with its agents. Ten pieces of P1,000.00 bills provided by Dyhengco were marked and dusted with fluorescent powder by the NBI. Thereafter, the bills were given to Ricablanca, who was tasked to pretend that she was going along with Valencia's plan.

On August 15, 2007, Ricablanca and petitioner met at the latter's house. Petitioner, who was then holding the bounced BDO check, handed over said check to Ricablanca. They originally intended to proceed to Baby Aquino's place to have the check replaced with cash, but the plan did not push through. However, they agreed to meet again on August 21, 2007.

On the agreed date, Ricablanca again went to petitioner's house, where she met petitioner and Jacqueline Capitle. Petitioner, her husband, and Ricablanca went to the house of Anita Valencia; Jacqueline Capitle decided not to go with the group because she decided to go shopping. It was only petitioner, her husband, Ricablanca and Valencia who then boarded petitioner's jeep and went on to Baby Aquino's factory. Only Ricablanca alighted from the jeep and entered the premises of Baby Aquino, pretending

that she was getting cash from Baby Aquino. However, the cash she actually brought out from the premises was the P10,000.00 marked money previously given to her by Dyhengco. Ricablanca divided the money and upon returning to the jeep, gave P5,000.00 each to Valencia and petitioner. Thereafter, petitioner and Valencia were arrested by NBI agents, who had been watching the whole time.

Petitioner and Valencia were brought to the NBI office where the Forensic Chemist found fluorescent powder on the palmar and dorsal aspects of both of their hands. This showed that petitioner and Valencia handled the marked money. The NBI filed a criminal case for qualified theft against the two and one Jane Doe who was later identified as Jacqueline Capitle, the wife of Generoso Capitle.

The defense, on the other hand, denied having taken the subject check and presented the following scenario.

Petitioner admitted that she was a collector for Mega Foam until she resigned on June 30, 1997, but claimed that she had stopped collecting payments from Baby Aquino for quite some time before her resignation from the company. She further testified that, on the day of the arrest, Ricablanca came to her mother's house, where she was staying at that time, and asked that she accompany her (Ricablanca) to Baby Aquino's house. Since petitioner was going for a pre-natal check-up at the Chinese General Hospital, Ricablanca decided to hitch a ride with the former and her husband in their jeep going to Baby Aquino's place in Caloocan City. She allegedly had no idea why Ricablanca asked there to wait in their jeep, which they parked outside the house of Baby Aquino, and was very surprised when Ricablanca placed the money on her lap and the NBI agents arrested them.

Anita Valencia also admitted that she was the cashier of Mega Foam until she resigned on June 30, 1997. It was never part of her job to collect payments from customers. According to her, on the morning of August 21, 1997, Ricablanca called her up on the phone, asking if she (Valencia) could accompany her (Ricablanca) to the house of Baby Aquino. Valencia claims that she agreed to do so, despite her admission during cross-examination that she did not know where Baby Aquino resided, as she had never been to said house. They then met at the house of petitioner's mother, rode the jeep of petitioner and her husband, and proceeded to Baby Aquino's place. When they arrived at said place, Ricablanca alighted, but requested them to wait for her in the jeep. After ten minutes, Ricablanca came out and, to her surprise, Ricablanca gave her money and so she even asked, "What is this?" Then, the NBI agents arrested them.

The trial of the three accused went its usual course and, on October 4, 1999, the RTC rendered its Decision, the dispositive portion of which reads:

> ***WHEREFORE,*** in view of the foregoing, the Court finds accused ***Gemma Tubale De Jacinto y Latosa, Anita Busog De Valencia y Rivera and Jacqueline Capitle*** **GUILTY** beyond reasonable doubt of the crime of ***QUALIFIED THEFT*** and each of them is hereby sentenced to suffer imprisonment of **FIVE (5) YEARS, FIVE (5) MONTHS AND ELEVEN (11) DAYS, *as minimum,* to SIX (6) YEARS, EIGHT (8) MONTHS AND TWENTY (20) DAYS, *as maximum.***
>
> **SO ORDERED.** [7]

The three appealed to the CA and, on December 16, 2003, a Decision was promulgated, the dispositive portion of which reads, thus:

> **IN VIEW OF THE FOREGOING,** the decision of the trial court is

MODIFIED, in that:

(a) the sentence against accused Gemma Jacinto stands;

(b) the sentence against accused Anita Valencia is reduced to 4 months *arresto mayor* medium.

(c) The accused Jacqueline Capitle is acquitted.

SO ORDERED.

A Partial Motion for Reconsideration of the foregoing CA Decision was filed only for petitioner Gemma Tubale Jacinto, but the same was denied per Resolution dated March 5, 2004.

Hence, the present Petition for Review on *Certiorari* filed by petitioner alone, assailing the Decision and Resolution of the CA. The issues raised in the petition are as follows:

1. Whether or not petitioner can be convicted of a crime not charged in the information;
2. Whether or not a worthless check can be the object of theft; and
3. Whether or not the prosecution has proved petitioner's guilt beyond reasonable doubt. [8]

The petition deserves considerable thought.

The prosecution tried to establish the following pieces of evidence to constitute the elements of the crime of qualified theft defined under Article 308, in relation to Article 310, both of the Revised Penal Code: (1) the taking of personal property — as shown by the fact that petitioner, as collector for Mega Foam, did not remit the customer's check payment to her employer and, instead, appropriated it for herself; (2) said property belonged to another — the check belonged to Baby Aquino, as it was her payment for purchases she made; (3) the taking was done with intent to gain — this is presumed from the act of unlawful taking and further shown by the fact that the check was deposited to the bank account of petitioner's brother-in-law; (4) it was done without the owner's consent — petitioner hid the fact that she had received the check payment from her employer's customer by not remitting the check to the company; (5) it was accomplished without the use of violence or intimidation against persons, nor of force upon things — the check was voluntarily handed to petitioner by the customer, as she was known to be a collector for the company; and (6) it was done with grave abuse of confidence — petitioner is admittedly entrusted with the collection of payments from customers.

However, as may be gleaned from the aforementioned Articles of the Revised Penal Code, **the personal property subject of the theft must have some value, as the intention of the accused is to *gain* from the thing stolen.** This is further bolstered by Article 309, where the law provides that the penalty to be imposed on the accused is dependent on the value of the thing stolen.

In this case, petitioner unlawfully took the postdated check belonging to Mega Foam, but the same was apparently without value, as it was subsequently dishonored. Thus, the question arises on whether the crime of qualified theft was actually produced.

The Court must resolve the issue in the negative.

Intod v. Court of Appeals [9] is highly instructive and applicable to the present case. In *Intod,* the accused, intending to kill a person, peppered the latter's bedroom

with bullets, but since the intended victim was not home at the time, no harm came to him. The trial court and the CA held Intod guilty of attempted murder. But upon review by this Court, he was adjudged guilty only of an **impossible crime** as defined and penalized in paragraph 2, Article 4, in relation to Article 59, both of the Revised Penal Code, because of the factual impossibility of producing the crime. Pertinent portions of said provisions read as follows:

> Article. 4(2). *Criminal Responsibility.* — Criminal responsibility shall be incurred:
>
> xxx xxx xxx
>
> 2. By any person performing an act which would be an offense against persons or property, were it not for the **inherent impossibility of its accomplishment** or on account of the employment of inadequate to ineffectual means. (emphasis supplied)
>
> Article 59. *Penalty to be imposed in case of failure to commit the crime because the means employed or the aims sought are impossible.* — When the person intending to commit an offense has already performed the acts for the execution of the same but nevertheless the crime was not produced by reason of the fact that the act intended was by its nature one of impossible accomplishment or because the means employed by such person are essentially inadequate to produce the result desired by him, the court, having in mind the social danger and the degree of criminality shown by the offender, shall impose upon him the penalty of *arresto mayor* or a fine ranging from 200 to 500 pesos.

Thus, the requisites of an impossible crime are: (1) that the act performed would be an offense against persons or property; (2) that the act was done with evil intent; and (3) that its accomplishment was inherently impossible, or the means employed was either inadequate or ineffectual. The aspect of the inherent impossibility of accomplishing the intended crime under Article 4 (2) of the Revised Penal Code was further explained by the Court in *Intod* [10] in this wise:

> Under this article, the act performed by the offender cannot produce an offense against persons or property because: (1) the commission of the offense is inherently impossible of accomplishment; or (2) the means employed is either (a) inadequate or (b) ineffectual.
>
> That the offense cannot be produced because the commission of the offense is inherently impossible of accomplishment is the focus of this petition. To be impossible under this clause, the act intended by the offender must be by its nature one impossible of accomplishment. There must be either (1) legal impossibility, or (2) physical impossibility of accomplishing the intended act in order to qualify the act as an impossible crime.
>
> Legal impossibility occurs where the intended acts, even if completed, would not amount to a crime.
>
> xxx xxx xxx
>
> The impossibility of killing a person already dead falls in this category.
>
> On the other hand, factual impossibility occurs when extraneous circumstances unknown to the actor or beyond his control prevent the consummation of the intended crime. . . . [11]

In *Intod,* the Court went on to give an example of an offense that involved factual

impossibility, *i.e.,* a man puts his hand in the coat pocket of another with the intention to steal the latter's wallet, but gets nothing since the pocket is empty.

Herein petitioner's case is closely akin to the above example of factual impossibility given in *Intod.* In this case, petitioner performed all the acts to consummate the crime of qualified theft, which is a crime against property. Petitioner's evil intent cannot be denied, as the mere act of unlawfully taking the check meant for Mega Foam showed her intent to gain or be unjustly enriched. Were it not for the fact that the check bounced, she would have received the face value thereof, which was not rightfully hers. Therefore, it was only due to the extraneous circumstance of the check being unfunded, a fact unknown to petitioner at the time, that prevented the crime from being produced. The thing unlawfully taken by petitioner turned out to be absolutely worthless, because the check was eventually dishonored, and Mega Foam had received the cash to replace the value of said dishonored check.

The fact that petitioner was later entrapped receiving the P5,000.00 marked money, which she thought was the cash replacement for the dishonored check, is of no moment. The Court held in *Valenzuela v. People* [12] that under the definition of theft in Article 308 of the Revised Penal Code, "there is only one operative act of execution by the actor involved in theft — the taking of personal property of another." Elucidating further, the Court held, thus:

> . . . Parsing through the statutory definition of theft under Article 308, there is one apparent answer provided in the language of the law — that theft is already "produced" upon the "tak[ing of] personal property of another without the latter's consent."
>
> xxx xxx xxx
>
> . . . when is the crime of theft produced? There would be all but certain unanimity in the position that theft is produced when there is deprivation of personal property due to its taking by one with intent to gain. Viewed from that perspective, it is immaterial to the product of the felony that the offender, once having committed all the acts of execution for theft, is able or unable to freely dispose of the property stolen since the deprivation from the owner alone has already ensued from such acts of execution. . . .
>
> xxx xxx xxx
>
> . . . we have, after all, held that unlawful taking, or *apoderamiento,* is deemed complete from the moment the offender gains possession of the thing, even if he has no opportunity to dispose of the same. . . .
>
> . . . Unlawful taking, which is the deprivation of one's personal property, is the element which produces the felony in its consummated stage. . . . [13]

From the above discussion, there can be no question that **as of the time that petitioner took possession of the check meant for Mega Foam, she had performed all the acts to consummate the crime of theft, had it not been impossible of accomplishment in this case.** The circumstance of petitioner receiving the P5,000.00 cash as supposed replacement for the dishonored check was no longer necessary for the consummation of the crime of qualified theft. Obviously, the plan to convince Baby Aquino to give cash as replacement for the check was hatched only after the check had been dishonored by the drawee bank. Since the crime of theft is not a continuing offense, petitioner's act of receiving the cash replacement should not be considered as a continuation of the theft. At most, the fact that petitioner was caught

receiving the marked money was merely corroborating evidence to strengthen proof of her intent to gain.

Moreover, the fact that petitioner further planned to have the dishonored check replaced with cash by its issuer is a different and separate fraudulent scheme. Unfortunately, since said scheme was not included or covered by the allegations in the Information, the Court cannot pronounce judgment on the accused; otherwise, it would violate the due process clause of the Constitution. If at all, that fraudulent scheme could have been another possible source of criminal liability.

IN VIEW OF THE FOREGOING, the petition is **GRANTED.** The Decision of the Court of Appeals, dated December 16, 2003, and its Resolution dated March 5, 2004, are **MODIFIED.** Petitioner Gemma T. Jacinto is found **GUILTY** of an **IMPOSSIBLE CRIME** as defined and penalized in Articles 4, paragraph 2, and 59 of the Revised Penal Code, respectively. Petitioner is sentenced to suffer the penalty of six (6) months of *arresto mayor,* and to pay the costs.

SO ORDERED.

Ynares-Santiago, Chico-Nazario, Velasco, Jr. and *Nachura, JJ.,* concur.

Footnotes

1. Penned by Associate Justice Mario L. Guariña III, with Associate Justices Martin S. Villarama, Jr. and Jose C. Reyes, Jr., concurring; *rollo,* pp. 70-77.
2. *Id.* at 86.
3. Records, p. 107.
4. TSN, February 11, 1998, p. 8.
5. *Id.* at 14.
6. TSN, February 11, 1998, pp. 9-10.
7. *Rollo,* p. 51.
8. *Id.* at 128.
9. G.R. No. 103119, October 21, 1992, 215 SCRA 52.
10. *Supra.*
11. *Id.* at 57-58.
12. G.R. No. 160188, June 21, 2007, 525 SCRA 306, 324.
13. *Id.* at 327, 343-345.

EN BANC

[G.R. No. 12155. February 2, 1917.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **PROTASIO EDUAVE**, *defendant-appellant*.

D E C I S I O N

MORELAND, *J* :

We believe that the accused is guilty of frustrated murder.

We are satisfied that there was intent to kill in this case. A deadly weapon was used. The blow was directed toward a vital part of the body. The aggressor stated his purpose to kill, thought he had killed, and threw the body into the bushes. When he gave himself up he declared that he had killed the complainant.

There was *alevosia* to qualify the crime as murder if death had resulted. The accused rushed upon the girl suddenly and struck her from behind, in part at least, with a sharp bolo, producing a frightful gash in the lumbar region and slightly to the side eight and one-half inches long and two inches deep, severing all of the muscles and tissues of that part.

The motive of the crime was that the accused was incensed at the girl for the reason that she had theretofore charged him criminally before the local officials with having raped her and with being the cause of her pregnancy. He was her mother's *querido* and was living with her as such at the time the crime here charged was committed.

That the accused is guilty of some crime is not denied. The only question is the precise crime of which he should be convicted. It is contended, in the first place, that, if death had resulted, the crime would not have been murder but homicide, and in the second place, that it is attempted and not frustrated homicide.

As to the first contention, we are of the opinion that the crime committed would have been murder if the girl had been killed. It is qualified by the circumstance of alevosia, the accused making a sudden attack upon his victim from the rear, or partly from the rear, and dealing her a terrible blow in the back and side with his bolo. Such an attack necessitates the finding that it was made treacherously; and that being so the crime would have been qualified as murder if death had resulted.

As to the second contention, we are of the opinion that the crime was frustrated and not attempted murder. Article 3 of the Penal Code defines a frustrated felony as follows:

> "A felony is frustrated when the offender performs all the acts of execution which should produce the felony as a consequence, but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator."

An attempted felony is defined thus:

> "There is an attempt when the offender commences the commission of the felony directly by overt acts, and does not perform all the acts of execution which

constitute the felony by reason of some cause or accident other than his own voluntarily desistance."

The crime cannot be attempted murder. This is clear from the fact that the defendant performed all of the acts which should have resulted in the consummated crime and *voluntarily* desisted from further acts. A crime cannot be held to be attempted unless the offender, after beginning the commission of the crime by overt acts, is prevented, against his will, by some outside cause from performing *all* of the acts which should produce the crime. In other words, to be an attempted crime the purpose of the offender must be thwarted by a foreign force or agency which intervenes and compels him to stop prior to the moment when he has performed all of the acts which should produce the crime as a consequence, which acts it is his intention to perform. If he has performed *all* of the acts which should result in the consummation of the crime and *voluntarily* desists from proceeding further, it can not be an attempt. The essential element which distinguishes attempted from frustrated felony is that, in the latter, there is no intervention of a foreign or extraneous cause or agency between the beginning of the commission of the crime and the moment when all of the acts have been performed which should result in the consummated crime; while in the former there is such intervention and the offender does not arrive at the point of performing *all* of the acts which should produce the crime. He is stopped short of that point by same cause apart from his from his voluntary desistance.

To put it in another way, in case of an attempt the offender never passes the subjective phase of the offense. he is interrupted and compelled to desist by the intervention of outside causes before the subjective phase is passed.

On the other hand, in case of frustrated crimes the subjective phase is completely passed. Subjectively the crime is complete. Nothing interrupted the offender while he was passing through the subjective phase. The crime, however, is not consummated by reason of the intervention of causes independent of the will of the offender. he did all that was necessary to commit the crime. If the crime did not result as a consequence it was due to something beyond his control.

The subjective phase is that portion of the acts constituting the crime included between the act which begins the commission of the crime and the last act performed by the offender which, with the prior acts, should result in the consummated crime. From that time forward the phase is objective. It may also be said to be that period occupied by the acts of the offender over which he has control — that period between the point where he *begins* and the point where he *voluntarily desists*. If *between these two points* the offender is stopped by reason of any cause outside of his own voluntary desistance, the subjective phase has not been passed and it is an attempt. If he is not so stopped but continues until he performs the last act, it is frustrated.

Then the case before us is frustrated is clear.

The penalty should have been thirteen years of cadena temporal there being neither aggravating nor mitigating circumstance. As so modified, the judgment is affirmed with costs. So ordered.

Torres and *Araullo, JJ.,* concur.

Carson and *Trent, JJ.,* concur in the result.

FIRST DIVISION

[G.R. No. 88724. April 3, 1990.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **CEILITO ORITA alias "Lito,"** *defendant-appellant*.

D E C I S I O N

MEDIALDEA, *J* :

The accused, Ceilito Orita alias Lito, was charged with the crime of rape in Criminal Case No. 83-031-B before the Regional Trial Court, Branch II, Borongan, Eastern Samar. The information filed in the said case reads as follows (p. 47, Rollo):

> "The undersigned Second Assistant Provincial Fiscal upon prior complaint under oath by the offended party, accuses CEILITO ORITA alias LITO of the crime of Rape committed as follows:
>
> "That on March 20, 1983, at about 1:30 o'clock in the morning inside a boarding house at Victoria St., Poblacion, Borongan, Eastern Samar, Philippines, and within the Jurisdiction of this Honorable Court, above named accused with lewd designs and by the use of a Batangas knife he conveniently provided himself for the purpose and with threats and intimidation, did, then and there wilfully, unlawfully and feloniously lay with and succeeded in having sexual intercourse with Cristina S. Abayan against her will and without her consent.
>
> "CONTRARY TO LAW."

Upon being arraigned, the accused entered the plea of not guilty to the offense charged. After the witnesses for the People testified and the exhibits were formally offered and admitted, the prosecution rested its case. Thereafter, the defense opted not to present any exculpatory evidence and instead filed a Motion to Dismiss. On August 5, 1985, the trial court rendered its decision, the dispositive portion of which reads (pp. 59-60, *Rollo*):

> "WHEREFORE, the Court being morally certain of the guilt of accused CEILITO ORITA @ LITO, of the crime of Frustrated Rape (Art. 335, RPC), beyond reasonable doubt, with the aggravating circumstances of dwelling and nighttime (sic) with no mitigating circumstance to offset the same, and considering the provisions of the Indeterminate Sentence Law, imposes on accused an imprisonment of TEN (10) YEARS and ONE (1) DAY, PRISION MAYOR, as minimum to TWELVE (12) YEARS PRISION MAYOR, maximum; to indemnify CRISTINA S. ABAYAN, the amount of Four Thousand (P4,000.00) pesos, without subsidiary imprisonment in case of insolvency, and to pay costs.
>
> "SO ORDERED."

Not satisfied with the decision, the accused appealed to the Court of Appeals. On December 29,1988, the Court of Appeals rendered its decision, the dispositive portion of which reads (p. 102, *Rollo*):

"WHEREFORE, the trial court's judgment is hereby MODIFIED, and the appellant found guilty of the crime of rape, and consequently, sentenced to suffer imprisonment of *reclusion perpetua* and to indemnify the victim in the amount of P30,000.00.

"SO ORDERED."

On January 11,1989, the Court of Appeals issued a resolution setting aside its December 29,1988 decision and forwarded the case to this Court, considering the provision of Section 9, paragraph 30 Batas Pambansa Blg. 129 in conjunction with Section 17, paragraph 3, subparagraph 1 of the Judiciary Act of 1948.

The antecedent facts as summarized in the People's brief are as follows (pp. 71-75, *Rollo*):

"Complainant Cristina S. Abayan was a 19-year old freshman student at the St. Joseph's College at Borongan, Eastern Samar. Appellant was a Philippine Constabulary (PC) soldier.

"In the early morning of March 20, 1983, complainant arrived at her boarding house. Her classmates had just brought her home from a party (p. 44, tsn, May 23, 1984). Shortly after her classmates had left, she knocked at the door of her boarding house (p. 5, *ibid*). All of a sudden, somebody held her and poked a knife to her neck. She then recognized appellant who was a frequent visitor of another boarder (pp. 8-9, *ibid*).

"She pleaded with him to release her, but he ordered her to go upstairs with him. Since the door which led to the first floor was locked from the inside, appellant forced complainant to use the back door leading to the second floor (p. 77, ibid). With his left arm wrapped around her neck and his right hand poking a 'balisong' to her neck, appellant dragged complainant up the stairs (p. 14, ibid). When they reached the second floor, he commanded her to look for a room. With the Batangas knife still poked to her neck, they entered complainant's room.

"Upon entering the room, appellant pushed complainant who hit her head on the wall. With one hand holding the knife, appellant undressed herself. He then ordered complainant to take off her clothes. Scared, she took off her T-shirt. Then he pulled off her bra, pants and panty (p. 20, *ibid*).

"He ordered her to lie down on the floor and then mounted her. He made her hold his penis and insert it in her vagina. She followed his order as he continued to poke the knife to her. At said position, however, appellant could not fully penetrate her. Only a portion of his penis entered her as she kept on moving (p. 23, *ibid*).

"Appellant then lay down on his back and commanded her to mount him. In this position, only a small part again of his penis was inserted into her vagina. At this stage, appellant had both his hands flat on the door. Complainant thought of escaping (p. 20, *ibid*).

"She dashed out to the next room and locked herself in. Appellant pursued her and climbed the partition. When she saw him inside the room, she ran to another room. Appellant again chased her. She fled to another room and jumped out through a window (p. 27, *ibid*).

"Still naked, she darted to the municipal building, which was about eighteen meters in front of the boarding house, and knocked on the door. When

there was no answer, she ran around the building and knocked on the back door. When the policemen who were inside the building opened the door, they found complainant naked sitting on the stairs crying. Pat. Donceras, the first policeman to see her, took off his jacket and wrapped it around her. When they discovered what happened, Pat. Donceras and two other policemen rushed to the boarding house. They heard a sound at the second floor and saw somebody running away. Due to darkness, they failed to apprehend appellant.

"Meanwhile, the policemen brought complainant to the Eastern Samar Provincial Hospital where she was physically examined.

"Dr. Ma. Luisa Abude, the resident physician who examined complainant, issued a Medical Certificate (Exhibit 'A') which states:

> 'Physical Examination — Patient is fairly built, came in with loose clothing with no under-clothes; appears in state of shock, per unambulatory.
>
> 'PE Findings — Pertinent Findings only.
>
> 'Neck — Circumscribed hematoma at Ant. neck.
>
> 'Breast — Well developed, conical in shape with prominent nipples; linear abrasions below (L) breast.
>
> 'Back Multiple pinpoint marks.
>
> 'Extremities — Abrasions at (R) and (L) knees.
>
> 'Vulva — No visible abrasions or marks at the perineal area or over the vulva, *errythematous* (sic) *areas noted surrounding vaginal orifice, tender*; hymen intact; no laceration fresh and old noted; examining finger can barely enter and with difficulty; vaginal canal tight; no discharges noted.' "

As aforementioned, the trial court convicted the accused of frustrated rape.

In this appeal, the accused assigns the following errors:

1) The trial court erred in disregarding the substantial inconsistencies in the testimonies of the witnesses; and

2) The trial court erred in declaring that the crime of frustrated rape was committed by the accused.

The accused assails the testimonies of the victim and Pat. Donceras because they "show remarkable and vital inconsistencies and its incredibility amounting to fabrication and therefore casted doubt to its candor, truth and validity." (p. 33, *Rollo*).

A close scrutiny of the alleged inconsistencies revealed that they refer to trivial inconsistencies which are not sufficient to blur or cast doubt on the witnesses' straightforward attestations. Far from being badges of fabrication, the inconsistencies in their testimonies may in fact be justifiably considered as manifestations of truthfulness on material points. These little deviations also confirm that the witnesses had not been rehearsed. The most candid witnesses may make mistakes sometimes but such honest lapses do not necessarily impair their intrinsic credibility (*People v. Cabato*, G.R. No. L-37400, April 15, 1988, 160 SCRA 98). Rather than discredit the testimonies of the prosecution witnesses, discrepancies on minor details must be viewed as adding credence and veracity to such spontaneous testimonies (*Aportadera, et al. v. Court of Appeals, et al.*, G.R. No. L-41358, March 16, 1988, 158 SCRA 695). As a matter of fact,

complete uniformity in details would be a strong indication of untruthfulness and lack of spontaneity (*People v. Bazar*, G.R. No. L-41829, June 27, 1988, 162 SCRA 609). However, one of the alleged inconsistencies deserves a little discussion which is, the testimony of the victim that the accused asked her to hold and guide his penis in order to have carnal knowledge of her. According to the accused, this is strange because "this is the only case where an aggressor's advances is being helped-out by the victim in order that there will be a consummation of the act." (p. 34, *Rollo*). The allegation would have been meritorious had the testimony of the victim ended there. The victim testified further that the accused was holding a Batangas knife during the aggression. This is a material part of the victim's testimony which the accused conveniently deleted.

We find no cogent reason to depart from the well-settled rule that the findings of fact of the trial court on the credibility of witnesses should be accorded the highest respect because it has the advantage of observing the demeanor of witnesses and can discern if a witness is telling the truth (*People v. Samson*, G.R. No. 55520, August 25, 1989). We quote with favor the trial court's finding regarding the testimony of the victim (p. 56, *Rollo*):

> "As correctly pointed out in the memorandum for the People, there is not much to be desired as to the sincerity of the offended party in her testimony before the court. Her answer to every question profounded (sic), under all circumstances, are plain and straightforward. To the Court she was a picture of supplication hungry and thirsty for the immediate vindication of the affront to her honor. It is inculcated into the mind of the Court that the accused had wronged her; had traversed illegally her honor."

When a woman testifies that she has been raped, she says in effect all that is necessary to show that rape was committed provided her testimony is clear and free from contradiction and her sincerity and candor, free from suspicion (*People v. Alfonso*, G.R. No. 72573, August 31, 1987, 153 SCRA 487; *People v. Alcid*, G.R. Nos. 66387-88, February 28,1985,135 SCRA 280; *People v. Soterol*, G.R. No. 53498, December 16, 1985, 140 SCRA 400). The victim in this case did not only state that she was raped but she testified convincingly on how the rape was committed. The victim's testimony from the time she knocked on the door of the municipal building up to the time she was brought to the hospital was corroborated by Pat. Donceras. Interpreting the findings as indicated in the medical certificate, Dr. Reinerio Zamora (who was presented in view of the unavailability of Dr. Abude) declared that the abrasions in the left and right knees, linear abrasions below the left breast, multiple pinpoint marks, circumscribed hematoma at the anterior neck, erythematous area surrounding the vaginal orifice and tender vulva, are conclusive proof of struggle against force and violence exerted on the victim (pp. 52-53, *Rollo*). The trial court even inspected the boarding house and was fully satisfied that the narration of the scene of the incident and the conditions therein is true (p. 54, *Rollo*):

> ". . . The staircase leading to the first floor is in such a condition safe enough to carry the weight of both accused and offended party without the slightest difficulty, even in the manner as narrated. The partitions of every room were of strong materials, securedly nailed, and would not give way even by hastily scaling the same."

A little insight into human nature is of utmost value in judging rape complaints (*People v. Torio, et al.*, G.R. No. L-48731, December 21, 1983, 126 SCRA 265). Thus, the trial court added (p. 55, Rollo):

". . . And the jump executed by the offended party from that balcony (opening) to the ground which was correctly estimated to be less than eight (8) meters, will perhaps occasion no injury to a frightened individual being pursued. Common experience will tell us that in occasion of conflagration, especially occurring (sic) in high buildings, many have been saved by jumping from some considerable heights without being injured. How much more for a frightened barrio girl, like the offended party to whom honor appears to be more valuable than her life or limbs? Besides, the exposure of her private parts when she sought assistance from authorities, as corroborated, is enough indication that something not ordinary happened to her unless she is mentally deranged. Sadly, nothing was adduced to show that she was out of her mind."

In a similar case (*People v. Sambili*, G.R. No. L-44408, September 30, 1982, 117 SCRA 312), We ruled that:

"What particularly imprints the badge of truth on her story is her having been rendered entirely naked by appellant and that even in her nudity, she had to run away from the latter and managed to gain sanctuary in a house owned by spouses hardly known to her. All these acts she would not have done nor would these facts have occurred unless she was sexually assaulted in the manner she narrated."

The accused questions also the failure of the prosecution to present other witnesses to corroborate the allegations in the complaint and the non-presentation of the medico-legal officer who actually examined the victim. Suffice it to say that it is up to the prosecution to determine who should be presented as witnesses on the basis of its own assessment of their necessity (*Tugbang v. Court of Appeals, et al.*, G.R. No. 56679, June 29, 1989; *People v. Somera*, G.R. No. 65589, May 31, 1989). As for the non-presentation of the medico-legal officer who actually examined the victim, the trial court stated that it was by agreement of the parties that another physician testified inasmuch as the medico-legal officer was no longer available. The accused did not bother to contradict this statement.

Summing up, the arguments raised by the accused as regards the first assignment of error fall flat on its face. Some were not even substantiated and do not, therefore, merit consideration. We are convinced that the accused is guilty of rape. However, We believe the subject matter that really calls for discussion, is whether or not the accused's conviction for *frustrated* rape is proper. The trial court was of the belief that there is no conclusive evidence of penetration of the genital organ of the victim and thus convicted the accused of frustrated rape only.

The accused contends that there is no crime of frustrated rape. The Solicitor General shares the same view.

Article 335 of the Revised Penal Code defines and enumerates the elements of the crime of rape:

"ART. 335. *When and how rape is committed*. — Rape is committed by having carnal knowledge of a woman under any of the following circumstances:

"1. By using force or intimidation;

"2. When the woman is deprived of reason or otherwise unconscious; and

"3. When the woman is under twelve years of age, even though

neither of the circumstances mentioned in the two next preceding paragraphs shall be present.

"xxx xxx xxx"

Carnal knowledge is defined as the act of a man in having sexual bodily connections with a woman (Black's Law Dictionary, Fifth Edition, p. 193).

On the other hand, Article 6 of the same Code provides:

"ART. 6. *Consummated, frustrated, and attempted felonies*. — Consummated felonies as well as those which are frustrated and attempted, are punishable.

"A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

"There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance."

Correlating these two provisions, there is no debate that the attempted and consummated stages apply to the crime of rape. Our concern now is whether or not the frustrated stage applies to the crime of rape.

The requisites of a frustrated felony are: (1) that the offender has performed all the acts of execution which would produce the felony and (2) that the felony is not produced due to causes independent of the perpetrator's will. In the leading case of *United States v. Eduave*, 36 Phil. 209, 212, Justice Moreland set a distinction between attempted and frustrated felonies which is readily understood even by law students:

". . . A crime cannot be held to be attempted unless the offender, after beginning the commission of the crime by overt acts, is prevented, against his will, by some outside cause from performing all of the acts which should produce the crime. In other words, to be an attempted crime the purpose of the offender must be thwarted by a foreign force or agency which intervenes and compels him to stop prior to the moment when he has performed all of the acts which should produce the crime as a consequence, which acts it is his intention to perform. If he has performed all of the acts which should result in the consummation of the crime and voluntarily desists from proceeding further, it can not be an attempt. The essential element which distinguishes attempted from frustrated felony is that, in the latter, there is no intervention of a foreign or extraneous cause or agency between the beginning of the commission of the crime and the moment when all of the acts have been performed which should result in the consummated crime; while in the former there is such intervention and the offender does not arrive at the point of performing all of the acts which should produce the crime. He is stopped short of that point by some cause apart from his voluntary desistance."

Clearly, in the crime of rape, from the moment the offender has carnal knowledge of his victim, he actually attains his purpose and, from that moment also all the essential elements of the offense have been accomplished. Nothing more is left to be done by the offender, because he has performed the last act necessary to produce the crime. *Thus,*

the felony is consummated. In a long line of cases (*People v. Oscar*, 48 Phil. 527; *People v. Hernandez*, 49 Phil. 980; *People v. Royeras*, G.R. No. L-31886, April 29, 1974, 56 SCRA 666; *People v. Amores*, G.R. No. L-32996, August 21, 1974, 58 SCRA 505), We have set the uniform rule that for the consummation of rape, perfect penetration is not essential. Any penetration of the female organ by the male organ is sufficient. Entry of the labia or lips of the female organ, without rupture of the hymen or laceration of the vagina is sufficient to warrant conviction. Necessarily, rape is attempted if there is no penetration of the female organ (*People v. Tayaba* , 62 Phil. 559; *People v. Rabadan, et al.*, 53 Phil. 694; *United States v. Garcia*, 9 Phil. 434) *because not all acts of execution was performed*. *The offender merely commenced the commission of a felony directly by overt acts*. Taking into account the nature, elements and manner of execution of the crime of rape and jurisprudence on the matter, it is hardly conceivable how the frustrated stage in rape can ever be committed.

Of course, We are aware of our earlier pronouncement in the case of *People v. Eriñia*, 50 Phil. 998 [1927] where We found the offender guilty of frustrated rape there being no conclusive evidence of penetration of the genital organ of the offended party. However, it appears that this is a "stray" decision inasmuch as it has not been reiterated in Our subsequent decisions. Likewise, We are aware of Article 335 of the Revised Penal Code, as amended by Republic Act No. 2632 (dated September 12, 1960) and Republic Act No. 4111 (dated March 29, 1965) which provides, in its penultimate paragraph, for the penalty of death when the rape is attempted or *frustrated* and a homicide is committed by reason or on the occasion thereof We are of the opinion that this particular provision on frustrated rape is a dead provision. The Eriñia case, *supra*, might have prompted the law-making body to include the crime of frustrated rape in the amendments introduced by said laws.

In concluding that there is no conclusive evidence of penetration of the genital organ of the victim, the trial court relied on the testimony of Dr. Zamora when he "categorically declared that the findings in the vulva does not give a concrete disclosure of penetration. As a matter of fact, he tossed back to the offended party the answer as to whether or not there actually was penetration." (p. 53, *Rollo*) Furthermore, the trial court stated (p. 57, *Rollo*):

> ". . . It cannot be insensible to the findings in the medical certificate (Exhibit 'A') as interpreted by Dr. Reinerio Zamora and the equivocal declaration of the latter of uncertainty whether there was penetration or not. It is true, and the Court is not oblivious, that conviction for rape could proceed from the uncorroborated testimony of the offended party and that a medical certificate is not necessary (People v. Royeras, People v. Orteza, 6 SCRA 109, 113). But the citations the people relied upon cannot be applicable to the instant case. The testimony of the offended party is at variance with the medical certificate. As such, a very disturbing doubt has surfaced in the mind of the court. It should be stressed that in cases of rape where there is a positive testimony and a medical certificate, both should in all respect, compliment each other, for otherwise to rely on the testimony alone in utter disregard of the manifest variance in the medical certificate, would be productive of mischievous results."

The alleged variance between the testimony of the victim and the medical certificate does not exist. On the contrary, it is stated in the medical certificate that the vulva was erythematous (which means marked by abnormal redness of the skin due to

capillary congestion, as in inflammation) and tender. It bears emphasis that Dr. Zamora did not rule out penetration of the genital organ of the victim. He merely testified that there was uncertainty whether or not there was penetration. Anent this testimony, the victim positively testified that there was penetration, even if only partially (pp. 302, 304, t.s.n., May 23, 1984):

"Q Was the penis inserted on your vagina?"

"A It entered but only a portion of it."

xxx xxx xxx

"Q What do you mean when you said comply, or what act do you referred (sic) to, when you said comply?"

"A I inserted his penis into my vagina.

"Q And was it inserted?"

"A Yes only a little."

The fact is that in a prosecution for rape, the accused may be convicted even on the sole basis of the victim's testimony if credible (*People v. Tabago* , G.R. No. 69778, November 8, 1988, 167 SCRA 65; *People v. Aragona*, G.R. No. L-43752, September 19, 1985, 138 SCRA 569; *People v. Taduyo* , G.R. Nos. L-3792829, September 29, 1987, 154 SCRA 349). Moreover, Dr. Zamora's testimony is merely corroborative and is not an indispensable element in the prosecution of this case (*People v. Alfonso*, *supra*).

Although the second assignment of error is meritorious, it will not tilt the scale in favor of the accused because after a thorough review of the records, We find the evidence sufficient to prove his guilt beyond reasonable doubt of the crime of consummated rape.

Article 335, paragraph 3, of the Revised Penal Code provides that whenever the crime of rape is committed with the use of a deadly weapon, the penalty shall be *reclusion perpetua* to death. The trial court appreciated the aggravating circumstances of dwelling and nighttime. Thus, the proper imposable penalty is death. In view, however, of Article III, Section 19(1) of the 1987 Constitution and Our ruling in *People v. Millora, et al.*, G.R. Nos. L-38968-70, February 9, 1989, that the cited Constitutional provision did not declare the abolition of the death penalty but merely prohibits the imposition of the death penalty, the Court has since February 2, 1987 not imposed the death penalty whenever it was called for under the Revised Penal Code but instead reduced the same to *reclusion perpetua* (*People v. Solis, et al.* , G.R. Nos. 78732-33, February 14,1990). *Reclusion perpetua*, being a single indivisible penalty under Article 335, paragraph 3, is imposed regardless of any mitigating or aggravating circumstances (in relation to Article 63, paragraph 1, Revised Penal Code; see *People v. Arizala*, G.R. No. 59713, March 15, 1982, 112 SCRA 615; *People v. Manzano*, G.R. No. L38449, November 25, 1982, 118 SCRA 705; *People v. Ramirez*, G.R. No. 70744, May 31, 1985, 136 SCRA 702).

ACCORDINGLY, the decision of the Regional Trial Court is hereby MODIFIED. The accused Ceilito Orita is hereby found guilty beyond reasonable doubt of the crime of rape and sentenced to *reclusion perpetua* as well as to indemnify the victim in the amount of P30,000.00.

SO ORDERED.

Narvasa, Cruz, Gancayco and *Griño-Aquino, JJ.*, concur.

EN BANC

[G.R. No. 129433. March 30, 2000.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee,* ***vs.*** **PRIMO CAMPUHAN Y BELLO**, *accused-appellant.*

D E C I S I O N

BELLOSILLO, *J* :

On 3 April 1990 this Court in *People v. Orita* [1] finally did away with frustrated rape [2] and allowed only attempted rape and consummated rape to remain in our statute books. The instant case lurks at the threshold of another emasculation of the stages of execution of rape by considering almost every attempt at sexual violation of a woman as consummated rape, that is, if the contrary view were to be adopted. The danger there is that that concept may send the wrong signal to every roaming lothario, whenever the opportunity bares itself, to better intrude with climactic *gusto*, sans any restraint, since after all any attempted fornication would be considered consummated rape and punished as such. A *mere strafing of the citadel of passion* would then be considered a deadly *fait accompli*, which is absurd.

In *Orita* we held that rape was consummated from the moment the offender had carnal knowledge of the victim since by it he attained his objective. All the elements of the offense were already present and nothing more was left for the offender to do, having performed all the acts necessary to produce the crime and accomplish it. We ruled then that perfect penetration was not essential; *any penetration* of the female organ by the male organ, however slight, was sufficient. The Court further held that entry of the *labia* or lips of the female organ, even without rupture of the hymen or laceration of the vagina, was sufficient to warrant conviction for consummated rape. We distinguished consummated rape from attempted rape where there was no penetration of the female organ because not all acts of execution were performed as the offender merely commenced the commission of a felony directly by overt acts. [3] The inference that may be derived therefrom is that complete or full penetration of the vagina is not required for rape to be consummated. Any penetration, in whatever degree, is enough to raise the crime to its consummated stage.

But the Court in *Orita* clarified the concept of penetration in rape by requiring entry into the *labia* or lips of the female organ, even if there be no rupture of the hymen or laceration of the vagina, to warrant a conviction for consummated rape. While the entry of the penis into the lips of the female organ was considered synonymous with *mere touching* of the external genitalia, e.g., *labia majora, labia minora*, etc., [4] the crucial doctrinal bottom line is that touching must be inextricably viewed in light of, in relation to, or as an essential part of, the process of penile penetration, and *not just mere touching in the ordinary sense*. In other words, the *touching* must be tacked to the penetration itself. The importance of the requirement of penetration, however slight, cannot be gainsaid because where entry into the *labia* or the lips of the female genitalia

has not been established, the crime committed amounts merely to attempted rape.

Verily, this should be the indicium of the Court in determining whether rape has been committed either in its attempted or in its consummated stage; otherwise, no substantial distinction would exist between the two, despite the fact that penalty-wise, this distinction, threadbare as it may seem, irrevocably spells the difference between life and death for the accused — a reclusive life that is not even *perpetua* but only *temporal* on one hand, and the ultimate extermination of life on the other. And, arguing on another level, if the case at bar cannot be deemed attempted but consummated rape, what then would constitute attempted rape? Must our field of choice be thus limited only to consummated rape and acts of lasciviousness since attempted rape would no longer be possible in light of the view of those who disagree with this *ponencia*?

On 27 May 1997 Primo Campuhan y Bello was found guilty of statutory rape and sentenced by the court *a quo* to the extreme penalty of death, [5] hence this case before us on automatic review under Art. 335 of the Revised Penal Code as amended by RA 7659. [6]

As may be culled from the evidence on record, on 25 April 1996, at around 4 o'clock in the afternoon, Ma. Corazon P. Pamintuan, mother of four (4)-year old Crysthel Pamintuan, went down from the second floor of their house to prepare Milo chocolate drinks for her two (2) children. At the ground floor she met Primo Campuhan who was then busy filling small plastic bags with water to be frozen into ice in the freezer located at the second floor. Primo was a helper of Conrado Plata Jr., brother of Corazon. As Corazon was busy preparing the drinks, she heard one of her daughters cry, "*Ayo'ko, ayo'ko*!" [7] prompting Corazon to rush upstairs. Thereupon, she saw Primo Campuhan inside her children's room kneeling before Crysthel whose pajamas or "jogging pants" and panty were already removed, while his short pants were down to his knees.

According to Corazon, Primo was forcing his penis into Crysthel's vagina. Horrified, she cursed the accused, "*P - t - ng ina mo, anak ko iyan* !" and boxed him several times. He evaded her blows and pulled up his pants. He pushed Corazon aside when she tried to block his path. Corazon then ran out and shouted for help thus prompting her brother, a cousin and an uncle who were living within their compound, to chase the accused. [8] Seconds later, Primo was apprehended by those who answered Corazon's call for help. They held the accused at the back of their compound until they were advised by their neighbors to call the *barangay* officials instead of detaining him for his misdeed. Physical examination of the victim yielded negative results. No evident sign of extra-genital physical injury was noted by the medico-legal officer on Crysthel's body as her hymen was intact and its orifice was only 0.5 cm. in diameter.

Primo Campuhan had only himself for a witness in his defense. He maintained his innocence and assailed the charge as a mere scheme of Crysthel's mother who allegedly harbored ill will against him for his refusal to run an errand for her. [9] He asserted that in truth Crysthel was in a playing mood and wanted to ride on his back when she suddenly pulled him down causing both of them to fall down on the floor. It was in this fallen position that Corazon chanced upon them and became hysterical. Corazon slapped him and accused him of raping her child. He got mad but restrained himself from hitting back when he realized she was a woman. Corazon called for help from her brothers to stop him as he ran down from the second floor.

Vicente, Corazon's brother, timely responded to her call for help and accosted

Primo. Vicente punched him and threatened to kill him. Upon hearing the threat, Primo immediately ran towards the house of Conrado Plata but Vicente followed him there. Primo pleaded for a chance to explain as he reasoned out that the accusation was not true. But Vicente kicked him instead. When Primo saw Vicente holding a piece of lead pipe, Primo raised his hands and turned his back to avoid the blow. At this moment, the relatives and neighbors of Vicente prevailed upon him to take Primo to the *barangay* hall instead, and not to maul or possibly kill him.

Although Primo Campuhan insisted on his innocence, the trial court on 27 May 1997 found him guilty of statutory rape, sentenced him to the extreme penalty of death, and ordered him to pay his victim P50,000.00 for moral damages, P25,000.00 for exemplary damages, and the costs.

The accused Primo Campuhan seriously assails the credibility of Ma. Corazon Pamintuan. He argues that her narration should not be given any weight or credence since it was punctured with implausible statements and improbabilities so inconsistent with human nature and experience. He claims that it was truly inconceivable for him to commit the rape considering that Crysthel's younger sister was also in the room playing while Corazon was just downstairs preparing Milo drinks for her daughters. Their presence alone as possible eyewitnesses and the fact that the episode happened within the family compound where a call for assistance could easily be heard and responded to, would have been enough to deter him from committing the crime. Besides, the door of the room was wide open for anybody to see what could be taking place inside. Primo insists that it was almost inconceivable that Corazon could give such a vivid description of the alleged sexual contact when from where she stood she could not have possibly seen the alleged *touching* of the sexual organs of the accused and his victim. He asserts that the absence of any external signs of physical injuries or of penetration of Crysthel's private parts more than bolsters his innocence.

In convicting the accused, the trial court relied quite heavily on the testimony of Corazon that she saw Primo with his short pants down to his knees kneeling before Crysthel whose pajamas and panty were supposedly "already removed" and that Primo was "forcing his penis into Crysthel's vagina." The gravamen of the offense of statutory rape is carnal knowledge of a woman below twelve (12), as provided in Art. 335, par. (3), of the Revised Penal Code. Crysthel was only four (4) years old when sexually molested, thus raising the penalty, from *reclusion perpetua* to death, to the single indivisible penalty of death under RA 7659, Sec. 11, the offended party being below seven (7) years old. We have said often enough that in concluding that carnal knowledge took place, full penetration of the vaginal orifice is not an essential ingredient, nor is the rupture of the hymen necessary; the *mere touching* of the external genitalia by the penis capable of consummating the sexual act is sufficient to constitute carnal knowledge. [10] But the act of *touching* should be understood here as inherently part of the entry of the penis into the *labias* of the female organ and *not mere touching alone of the mons pubis or the pudendum.*

In *People v. De la Peña* [11] we clarified that the decisions finding a case for rape even if the attacker's penis merely touched the external portions of the female genitalia were made in the context of the presence or existence of an erect penis capable of full penetration. Where the accused failed to achieve an erection, had a limp or flaccid penis, or an oversized penis which could not fit into the victim's vagina, the Court nonetheless held that rape was consummated on the basis of the victim's testimony that the accused repeatedly tried, but in vain, to insert his penis into her vagina and in all

likelihood reached the *labia* of her *pudendum as the victim felt his organ on the lips of her vulva*, [12] or *that the penis of the accused touched the middle part of her vagina* . [13] Thus, *touching* when applied to rape cases does not simply mean mere epidermal contact, stroking or grazing of organs, a slight brush or a scrape of the penis on the external layer of the victim's vagina, or the *mons pubis*, as in this case. There must be sufficient and convincing proof that the penis indeed *touched* the *labias* or slid into the female organ, and *not merely stroked the external surface thereof,* for an accused to be convicted of consummated rape. [14] As the *labias*, *which are required to be "touched" by the penis*, are by their natural *situs* or location *beneath* the *mons pubis* or the vaginal surface, to touch them with the penis is to attain some degree of penetration beneath the surface, hence, the conclusion that touching the *labia majora* or the *labia minora* of the *pudendum* constitutes consummated rape.

The *pudendum* or *vulva* is the collective term for the female genital organs that are visible in the perineal area, e.g., *mons pubis, labia majora, labia minora*, the hymen, the clitoris, the vaginal orifice, etc. The *mons pubis* is the rounded eminence that becomes hairy after puberty, and is instantly visible within the surface. The next layer is the *labia majora* or the outer lips of the female organ composed of the outer convex surface and the inner surface. The skin of the outer convex surface is covered with hair follicles and is pigmented, while the inner surface is a thin skin which does not have any hair but has many sebaceous glands. Directly beneath the *labia majora* is the *labia minora*. [15] Jurisprudence dictates that the *labia majora* must be *entered* for rape to be consummated, [16] and not merely for the penis to stroke the surface of the female organ. Thus, a grazing of the surface of the female organ or touching the *mons pubis* of the *pudendum* is not sufficient to constitute consummated rape. Absent any showing of the slightest penetration of the female organ, i.e., touching of either *labia*of the *pudendum* by the penis, there can be no consummated rape; at most, it can only be attempted rape, if not acts of lasciviousness.

Judicial depiction of consummated rape has not been confined to the oft-quoted "touching of the female organ," [17] but has also progressed into being described as "the introduction of the male organ into the *labia* of the *pudendum*," [18] or "the bombardment of the drawbridge." [19] But, to our mind, the case at bar merely constitutes a "shelling of the castle of orgasmic potency," or as earlier stated, a "strafing of the citadel of passion."

A review of the records clearly discloses that the prosecution utterly failed to discharge its *onus* of proving that Primo's penis was able to penetrate Crysthel's vagina however slight. Even if we grant *arguendo* that Corazon witnessed Primo in the act of sexually molesting her daughter, we seriously doubt the veracity of her claim that she saw the inter-genital contact between Primo and Crysthel. When asked what she saw upon entering her children's room Corazon plunged into saying that she saw Primo poking his penis on the vagina of Crysthel without explaining her relative position to them as to enable her to see clearly and sufficiently, in automotive lingo, the contact point. It should be recalled that when Corazon chanced upon Primo and Crysthel, the former was allegedly in a kneeling position, which Corazon described thus:

Q: How was Primo holding your daughter?

A: (*The witness is demonstrating in such a way that the chest of the accused*

is pinning down the victim, while his right hand is holding his penis and his left hand is spreading the legs of the victim).

It can reasonably be drawn from the foregoing narration that Primo's kneeling position rendered an unbridled observation impossible. Not even a vantage point from the side of the accused and the victim would have provided Corazon an unobstructed view of Primo's penis supposedly reaching Crysthel's external genitalia, i.e., *labia majora, labia minora*, hymen, clitoris, etc., since the legs and arms of Primo would have hidden his movements from Corazon's sight, not to discount the fact that Primo's right hand was allegedly holding his penis thereby blocking it from Corazon's view. It is the burden of the prosecution to establish *how* Corazon could have seen the *sexual contact* and to shove her account into the permissive sphere of credibility. It is not enough that she claims that she saw what was done to her daughter. It is required that her claim be properly demonstrated to inspire belief. The prosecution failed in this respect, thus we cannot conclude without any taint of serious doubt that *inter-genital contact* was at all achieved. To hold otherwise would be to resolve the doubt in favor of the prosecution but to run roughshod over the constitutional right of the accused to be presumed innocent.

Corazon insists that Primo did not restrain himself from pursuing his wicked intention despite her timely appearance, thus giving her the opportunity to fully witness his beastly act.

We are not persuaded. It is inconsistent with man's instinct of self-preservation to remain where he is and persist in satisfying his lust even when he knows fully well that his dastardly acts have already been discovered or witnessed by no less than the mother of his victim. For, the normal behavior or reaction of Primo upon learning of Corazon's presence would have been to pull his pants up to avoid being caught literally with his pants down. The interval, although relatively short, provided more than enough opportunity for Primo not only to desist from but even to conceal his evil design.

What appears to be the basis of the conviction of the accused was Crysthel's answer to the question of the court —

Q: Did the penis of Primo touch your organ?

A: Yes, sir.

But when asked further whether his penis penetrated her organ, she readily said, "No." Thus —

Q: But did his penis penetrate your organ?

A: No, sir. [20]

This testimony alone should dissipate the mist of confusion that enshrouds the question of whether rape in this case was consummated. It has foreclosed the possibility of Primo's penis *penetrating* her vagina, however slight. Crysthel made a categorical statement denying penetration, [21] obviously induced by a question propounded to her who could not have been aware of the finer distinctions between *touching* and *penetration*. Consequently, it is improper and unfair to attach to this reply of a four (4)-year old child, whose vocabulary is yet as underdeveloped as her sex and whose language is bereft of worldly sophistication, an adult interpretation that because the penis of the accused *touched* her organ there was sexual entry. Nor can it be deduced that in trying to penetrate the victim's organ the penis of the accused *touched*

the middle portion of her vagina and entered the *labia* of her *pudendum* as the prosecution failed to establish sufficiently that Primo made efforts to penetrate Crysthel. [22] Corazon did not say, nay, not even hint that Primo's penis was erect or that he responded with an erection. [23] On the contrary, Corazon even narrated that Primo had to hold his penis with his right hand, thus showing that he had yet to attain an erection to be able to penetrate his victim.

Antithetically, the possibility of Primo's penis having breached Crysthel's vagina is belied by the child's own assertion that she resisted Primo's advances by putting her legs close together; [24] consequently, she did not feel any intense pain but just felt "not happy" about what Primo did to her. [25] Thus, she only shouted "*Ayo'ko, ayo'ko*!" not "*Aray ko, aray ko*!" In cases where penetration was not fully established, the Court had anchored its conclusion that rape nevertheless was consummated on the victim's testimony that *she felt pain*, or the medico-legal finding of *discoloration in the inner lips of the vagina, or the labia minora was already gaping with redness, or the hymenal tags were no longer visible*. [26] None was shown in this case. Although a child's testimony must be received with due consideration on account of her tender age, the Court endeavors at the same time to harness only what in her story appears to be true, acutely aware of the equally guaranteed rights of the accused. Thus, we have to conclude that even on the basis of the testimony of Crysthel alone the accused cannot be held liable for consummated rape; worse, be sentenced to death.

Lastly, it is pertinent to mention the medico legal officer's finding in this case that there were no external signs of physical injuries on complaining witness' body to conclude from a medical perspective that penetration had taken place. As Dr. Aurea P. Villena explained, although the absence of complete penetration of the hymen does not negate the possibility of *contact*, she clarified that there was no medical basis to hold that there was sexual contact between the accused and the victim. [27]

In cases of rape where there is a positive testimony and a medical certificate, both should in all respects complement each other; otherwise, to rely on the testimonial evidence alone, in utter disregard of the manifest variance in the medical certificate, would be productive of unwarranted or even mischievous results. It is necessary to carefully ascertain whether the penis of the accused in reality entered the labial threshold of the female organ to accurately conclude that rape was consummated. Failing in this, the thin line that separates attempted rape from consummated rape will significantly disappear.

Under Art. 6, in relation to Art. 335, of the Revised Penal Code, rape is attempted when the offender commences the commission of rape directly by overt acts, and does not perform all the acts of execution which should produce the crime of rape by reason of some cause or accident other than his own spontaneous desistance. All the elements of attempted rape — and only of attempted rape — are present in the instant case, hence, the accused should be punished only for it.

The penalty for attempted rape is two (2) degrees lower than the imposable penalty of death for the offense charged, which is statutory rape of a minor below seven (7) years. Two (2) degrees lower is *reclusion temporal*, the range of which is twelve (12) years and one (1) day to twenty (20) years. Applying the Indeterminate Sentence Law, and in the absence of any mitigating or aggravating circumstance, the maximum of the penalty to be imposed upon the accused shall be taken from the medium period of *reclusion temporal*, the range of which is fourteen (14) years, eight (8) months and one

(1) day to seventeen (17) years and four (4) months, while the minimum shall be taken from the penalty next lower in degree, which is *prision mayor*, the range of which is from six (6) years and one (1) day to twelve (12) years, in any of its periods.

WHEREFORE, the Decision of the court *a quo* finding accused PRIMO "SONNY" CAMPUHAN Y BELLO guilty of statutory rape and sentencing him to death and to pay damages is **MODIFIED**. He is instead found guilty of ATTEMPTED RAPE and sentenced to an indeterminate prison term of eight (8) years four (4) months and ten (10) days of *prision mayor* medium as minimum, to fourteen (14) years ten (10) months and twenty (20) days of *reclusion temporal* medium as maximum. Costs *de oficio*.

SO ORDERED.

Davide, Jr., C.J., Melo, Puno, Vitug, Kapunan, Mendoza, Quisumbing, Purisima, Pardo, Buena, Gonzaga-Reyes, Ynares-Santiago and *De Leon, Jr., JJ.,* concur.

Panganiban, J., in the result.

Footnotes

1. *People v. Ceilito Orita alias "Lito,"*G.R. No. 88724, 3 April 1990, 184 SCRA 105.
2. *People v. Eriñia*, 50 Phil. 998 (1927).
3. See Note 1.
4. *People v. Quinañola,* G.R. No. 126148, 5 May 1999.
5. Decision penned by Judge Benjamin T. Antonio, RTC-Br. 170, Malabon, Metro Manila (Crim. Case No. 16857-MN).
6. An Act to Impose the Death Penalty on Certain Heinous Crimes, Amending for that Purpose the Revised Penal Code, as amended, other Special Penal Laws, and for Other Purposes, effective on 31 December 1993.
7. "*Ayoko*," apparently is a contraction of "*ayaw ko*." "*Ayoko, ayoko*" means "I don't like, I don't like."
8. Corazon's brother Vicente Plata responded to her call, as well as others living within the compound namely, Criselda Carlos Manalac, Fernando Bondal, Jose Carlos and Reynoso Carlos.
9. Accused alleged that the charge of rape was merely concocted by Ma. Corazon Pamintuan because of his refusal to buy medicine for her, and perform the other tasks asked of him by her relatives.
10. See the following American cases where the doctrine originated:*Kenny v. State*, 65 L.R.A. 316; *Rodgers v. State*, 30 Tex. App. 510;*Brauer v. State*, 25 Wis. 413, as cited in *People v. Oscar*, 48 Phil. 528 (1925).
11. G.R. No. 104947, 30 June 1994, 233 SCRA 573.
12. *People v. Bacalso*, G.R. No. 89811, 22 March 1991, 195 SCRA 557;*People v. Hangdaan*, G.R. No. 90035, 13 September 1991, 201 SCRA 568;*People v. De la Peña*, G.R. No. 104947, 30 June 1994, 233 SCRA 573; *People v. Clopino*, G.R. No. 117322, 21 May 1998, 290 SCRA 432; *People v. Quinañola*, G.R. No. 126148, 5 May 1999.

13. *People v. Navarro*, G.R. No. 96251, 11 May 1993, 221 SCRA 684.

14. In *People v. Quinañola* (G.R. No. 126148, 5 May 1999) the Court held the word "touching" to be synonymous with the entry by the penis into the labia declaring that "x x x the crime of rape is deemed consummated even when the man's penis merely entered the *labia* or lips of the female organ, or as once said in a case, by the 'mere touching of the external genitalia by the penis capable of sexual act' x x x"

15. Mishell, Stenchever, Droegemueller, *Herbst Comprehensive Gynecology*, 3rd Ed., 1997, pp. 42-44.

16. *People v. Escober*, G.R. Nos. 122980-81, 6 November 1997, 281 SCRA 498;*People v. Galimba*, G.R. Nos. 111563-64, 20 February 1996, 253 SCRA 722;*People v. Sanchez*, G.R. Nos. 98402-04, 16 November 1995, 250 SCRA 14; *People v. Lazaro*, G.R. No. 99263, 12 October 1995, 249 SCRA 234; *People v. Rejano*, G.R. Nos. 105669-70, 18 October 1994, 237 SCRA 627; *People v. Salinas*, G.R. No. 107204, 6 May 1994, 232 SCRA 274; *People v. Palicte*, G.R. No. 101088, 27 January 1994, 229 SCRA 543; *People v. Arce*, G.R. Nos. 101833-34, 20 October 1993, 227 SCRA 406;*People v. Garcia*, G.R. No. 92269, 30 July 1993, 244 SCRA 776;*People v. Tismo*, No. L-44773, 4 December 1991, 204 SCRA 535; *People v. Mayoral*, G.R. Nos. 96094-95, 13 November 1991, 203 SCRA 528, *People v. Hangdaan*, G.R. No. 90035, 13 September 1991, 201 SCRA 568; *People v. Caballes*, G.R. Nos. 93437-45, 12 July 1991, 199 SCRA 152; *People v. Bacalso*, G.R. No. 89811, 22 March 1991, 195 SCRA 557.

17. *People v. Clopino*, G.R. No. 117322, 21 May 1998, 290 SCRA 432.

18. See Note 4.

19. *People v. Escober*, G.R. Nos. 122980-81, 6 November 1997, 281 SCRA 498.

20. TSN, 7 October 1996, p. 20.

21. In *Dulla v. CA* (G.R. No. 123164, 18 February 2000) the Court considered the testimony of a child aged three (3) years and ten (10) months old sufficient and credible even if she answered "yes" or "no" to questions propounded to her. However, the victim therein, who was much younger than Crysthel in the instant case, demonstrated what she meant when unable to articulate what was done to her, even made graphic descriptions of the accused's penis and demonstrated the push and pull movement made by the accused. Yet conspicuously, the Court in the Dulla case found the accused guilty only of acts of lasciviousness on the basis of certain inconsistencies in the testimony of the victim on whether or not petitioner took off her underwear.

22. In *People v. Clopino* (G.R. No. 117322, 21 May 1998) the Court rejected the argument of the accused that he should only be convicted of either attempted rape or acts of lasciviousness. It adopted the reasoning of the Solicitor General and declared that it was impossible for the penis of accused-appellant not to have touched the labia of the *pudendum* in trying to penetrate her. However, such logical conclusion was deduced in the light of evidence presented that accused-appellant made determined attempts to penetrate and insert his penis into the victim's vagina and even engaged her in foreplay by inserting his finger into her genitalia. The same inference cannot be made in the instant case because of the variance in the factual milieu.

23. Decisions finding the accused guilty of consummated rape even if the attacker's penis merely touched the female external genitalia were made in the context of the presence of an erect penis capable of full penetration, failing in which there can be no consummated rape (*People v. De la Peña*, see Note 11).

24. See Note 16, p. 21.

25. *Ibid.*

26. *People v. Villamayor*, G.R. Nos. 97474-76, 18 July 1991, 199 SCRA 472;*People v. Palicte*, G.R. No. 101088, 27 January 1994, 229 SCRA 543;*People v. Sanchez*, G.R. Nos. 98402-04, 16 November 1995, 250 SCRA 14; *People v. Gabris*, G.R. No. 116221, 11 July 1996, 258 SCRA 663; *People v. Gabayron*, G.R. No. 102018, 21 August 1997, 278 SCRA 78.

27. Q: Will you tell the Court, what do you mean by this No. 1 conclusion appearing in Exhibit "A" which I quote "no evident sign of extra-genital physical injury noted on the body of the subject at the time of the examination?"

A: That means I was not able to see injuries outside the genital of the victim, sir.

Q: I presumed *(sic)* that you conducted genital physical examination on the victim in this case?

A: Yes sir.

Q: And you also made the result of the genital physical examination shows*(sic)* that there is no injury on any part of the body of the patient, correct, Doctor?

A: Yes sir.

Q: *There was no medical basis for saying that might have a contact between the patient and the accused in this case*?

A: *Yes sir* (TSN, 8 October 1996, pp. 3-4)

EN BANC

[G.R. No. 248049. October 4, 2022.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **EFREN AGAO y AÑONUEVO**, *accused-appellant*.

DECISION

CAGUIOA, *J.*:

In yet another horrid case of the rape of a child, the Court here takes the difficult but important opportunity to clarify the anatomically accurate physical threshold of contact that must distinguish between attempted and consummated rape in the physical degrees of rape through sexual intercourse. Although at every turn unenviable, the Court now recognizes that there is perhaps no other way to reconcile and refine the current jurisprudence on rape than to peel away the euphemistic shrouds that have been resorted to so far, and instead inform case law with the exact anatomical situs of the pertinent body parts referred to in jurisprudence, which, unlike other matters that attend the crime of rape, are uncolored, self-evident and inarguable in their precision.

Fully aware of the detestable fact that the crime of rape, regardless of its permutations, is a violence of power and an ordeal of unspeakable trauma, the Court deems it fit that a clarification is necessary, crucial even, if it is to ensure that the detestable act of consummated rape by sexual intercourse or through penile penetration is not passed off as a mere attempt. Far from minimizing rape as a crime, objectifying women, or reducing the worth of the female victim, the Court here chooses to draw into the light the true gravity of rape by penile penetration, which has so far been capable of hiding in the shadows of unsure semantics.

To ensure that the deserved conviction and the appropriate penalty are not withheld because of perceived uncertainty, and to guarantee that no victim of rape ever has to face the tallest task of recounting the assault at the level of specificity of detail that are both sordid and unnecessary, the Court here clarifies that in the crime of rape through penile penetration, a particular physical situs and threshold penile contact draws the line between attempted rape and consummated rape of a woman or a girl, the proving of which provides the categorical factual basis for the finding of consummation. In the same breath, the Court here similarly takes the opportunity to reiterate the various badges of rape that are appreciable and applicable in the process of accurately determining the nature of the physical threshold of contact in all rape cases.

In a manner perhaps as barefaced as it is unprecedented, and in no way discounting the other physical modes with which the horrid crime of rape can be conceivably carried out, the Court affirms that to see that the jurisprudential are towards the dignity and integrity of women and children is not undone, it must maintain its ability to take an unflinching look at existing case law and acknowledge where it can rule with better articulated clarity for the bench, the bar and the public at large.

The Facts

This appeal [1] arose from two Informations [2] dated October 27, 2014, which charged accused-appellant Efren Agao *y* Añonuevo (appellant) with two counts of statutory rape, under Article 266-A, paragraph 1 and Article 266-B of the Revised Penal Code (RPC) as amended by Republic Act No. (R.A.) 8353 [3] in conjunction with R.A. 7610, [4] docketed as Criminal Case Nos. 1453-V-14 and 1454-V-14 lodged with Branch 172, Regional Trial Court of Valenzuela City (RTC). The accusatory portions of the Informations read:

Crim. Case No. 1453-V-14

> That sometime in July 2010, in Valenzuela [C]ity, Metro Manila, and within the jurisdiction of this Honorable Court, the above-named accused, being the step-father of herein minor victim AAA, [5] who was then 10 years old, DOB: (December 6, 1999), by means of force and intimidation, did then and there [willfully], unlawfully and feloniously have sexual intercourse with said minor victim, against her will and without her consent, thereby subjecting the said victim to sexual abuse, which debased, degraded and demeaned her intrinsic [worth] and dignity as a human being.
>
> CONTRARY TO LAW.

Crim. Case No. 1454-V-14

> That sometime in January 2012, in Valenzuela City, Metro Manila and within the jurisdiction of this Honorable Court, the above-named accused, being the step-father of herein minor victim AAA, who was then 13 years old DOB: (December 6, 1999), by means of force and intimidation, did then and there [willfully], unlawfully and feloniously have sexual intercourse with the said minor victim, against her will and without her consent, thereby subjecting the said minor to sexual abuse, which debased, degraded and demeaned her intrinsic worth and dignity as a human being.
>
> CONTRARY TO LAW. [6]

Upon arraignment, appellant pleaded not guilty. [7]

During the trial, private complainant AAA recounted the protracted abuse she was subjected to, and positively identified appellant in open court as the man who repeatedly raped her. [8]

The prosecution's collective evidence showed that AAA was born on December 6, 1999 to BBB [9] and CCC, [10] her mother and father, respectively. AAA's parents were not married, [11] and separated when she was still a baby. AAA added that her mother BBB later on lived with appellant, whom AAA identified as her stepfather. [12] AAA alleged that she first fell victim to appellant's abuse sometime in 2009, when she was 10 years old, during an incident when appellant started touching her private parts while he was bathing her. [13] AAA thereafter chose not to tell her mother because she was afraid the latter would not believe her. [14]

AAA further testified that appellant first raped her in July 2010, at around 7:00 in the morning. During her direct examination, she recalled that while she was sleeping, she woke up to find appellant touching her breasts and vagina, [15] and later on trying to insert his penis into her vagina. AAA specifically testified that appellant undressed her and then mounted her. [16] She said that she both felt and saw appellant's penis hard against her, as the appellant kept trying [17] to insert it into her vagina, thereafter managing to introduce the same into the outer fold, also called the *labia majora* of AAA's vagina. [18] Appellant was allegedly unable to fully penetrate AAA's vagina because she kept fighting back. [19]

She further testified that appellant continued to molest her, including another time in January 2012, when appellant raped her while she was sleeping. AAA testified that during the latter incident, she woke up to find appellant touching her breast and then, later, trying to insert his penis into her vagina. [20] She added that similar to the incident in 2010, appellant was also unable to fully penetrate her vagina as she also put up a fight. [21]

Throughout all this time, despite the repeated assaults, she continued not to tell anyone, not even her own mother BBB, for fear that BBB would not believe her, and that she would only be humiliated. On cross-examination, it was further established that AAA chose not to tell anyone about appellant's abuse because she was afraid that appellant might harm her and BBB. [22] It was also shown that up until the beginning of appellant's chronic abuse of AAA, the latter did not harbor any ill feelings towards appellant. [23]

Only after AAA and her mother BBB left appellant in June 2014, or over two years since the last assault on her took place, did AAA

muster the courage to tell her aunt about the harrowing assaults she repeatedly experienced at the hands of appellant. [24] Her aunt, in turn, told her friend who was a police officer. When AAA told her father, CCC about it, the latter accompanied her to the police station, where she finally lodged a complaint against appellant. [25]

Upon physical and genital examination on AAA by Police Chief Inspector Jocelyn P. Cruz (PCI Cruz), it was found that there was no evident injury at the time of examination. [26] PCI Cruz opined that an erect penis, if it merely touches the *labia*, would not cause hymnal laceration. She added that even if there was penetration, if the same happened sometime in July 2010 and January 2012, it was medically possible that there were injuries and lacerations sustained then, but the same may have already healed at the time of the physical examination. [27]

In his defense, appellant denied the allegations levelled against him, and countered that he never molested AAA, but instead treated her like his own daughter. [28] He added that the allegations were triggered by CCC who signified that he wanted to get AAA, and that AAA was only coached by CCC into spinning false accusations against him. [29] Adding proof that the accusations were baseless and that AAA did not harbor any ill feelings against him, appellant testified that AAA even visited him several times during his detention, until she was taken by the City Social Welfare Development Office. [30]

Ruling of the RTC

In its Joint Decision [31] dated March 15, 2017, the RTC found appellant guilty beyond reasonable doubt of two counts of Statutory Rape, sentenced him to suffer the penalty of imprisonment of *reclusion perpetua* for each count, and ordered him to pay AAA the amount of P50,000.00 as moral damages, P50,000.00 as civil indemnity, and P25,000.00 as exemplary damages, all subject to interest at the rate of six percent (6%) *per annum* from the finality of decision until full payment. [32]

In finding appellant's guilt beyond reasonable doubt, the RTC gave credence to AAA's testimony, and appreciated it as categorical, consistent, and straightforward. [33] It held that though there was no laceration noted in AAA's hymen, with appellant's penis only merely touching the *labia*, the crime of rape was nevertheless consummated. [34] Citing *People v. Besmonte*, [35] it held that carnal knowledge, as an element of rape, does not require full penile penetration of the female organ. Instead, consummation occurs once the penis of the accused, capable of consummating the sexual act, touches either the *labia* or the *pudendum*. [36] It further noted PCI Cruz's testimony to the effect that lack of injury or laceration on the date of examination does not rule out laceration at the time of the assault, as the latter could have possibly healed with the passing of time. [37]

The RTC, however, did not appreciate the qualifying circumstance of the stepdaughter-stepfather relationship between AAA and appellant, finding instead that although the Informations alleged that appellant was the stepfather of AAA, the prosecution failed to show proof that appellant was legally married to BBB. In addition, it also found that although there was no dispute that appellant was the common-law spouse of BBB, the information failed to allege the same. [38] Without appreciating relationship between appellant and AAA, the RTC found appellant guilty only of Statutory Rape. [39]

On appeal [40] to the Court of Appeals (CA), appellant argued that: (1) there was no consummated act of rape, as the prosecution failed to prove the same beyond reasonable doubt; (2) AAA's testimony was marked with incredibility and inconsistency; and (3) the CA erred in its failure to appreciate the suspiciously belated reporting of the rape incidents. [41] In its response, the People, through the Office of the Solicitor General, countered that: (1) the RTC correctly ascribed greater credence to AAA's positive testimony; (2) it also properly found appellant guilty beyond reasonable doubt of the crime of consummated rape; and (3) the award of damages imposed against appellant should be modified. [42]

Ruling of the CA

In its Decision [43] dated January 15, 2019, the CA affirmed the RTC's conviction, but modified the same with respect to the award of damages. Particularly, the awards of moral damages, civil indemnity, and exemplary damages for each count were all increased to P75,000.00, with legal interest at the rate of six percent (6%) *per annum* from finality of decision until full satisfaction, in conformity with prevailing jurisprudence. [44]

In affirming appellant's conviction, the CA found that the RTC correctly gave weight to AAA's testimony and her positive identification of appellant as the one who raped her. [45] It held that on the matter of ascribing credibility to the testimony of a witness, the valuations of the RTC are given utmost respect because it had the opportunity to observe the demeanor of the witnesses, and its findings may only be disturbed on appeal, upon a showing that the RTC overlooked material facts which, if considered, would alter its decision. [46]

The CA also noted that AAA did not appear to have been motivated by any ill will against appellant. [47] It further echoed the RTC's ruling that the absence of vaginal laceration was immaterial, for neither full penetration of the vaginal orifice nor the rupture of the hymen was necessary, given that mere introduction of the male organ to the *labia* of the victim's genitalia already consummates the crime of rape. [48] The CA also dismissed appellant's argument that AAA's delay in reporting the incidents of rape cast doubt on the same, ruling instead that such delay may not be taken against the victim unless it was shown to have been unreasonable and unexplained. In this case, given that AAA sufficiently explained that she was only able to report the assaults after she and her mother left the custody of appellant, the same delay could not be deemed to have been unreasonable. [49]

Finally, the CA found that the RTC correctly convicted appellant of Simple Rape, without the appreciation of the qualifying circumstance of stepfather-stepdaughter relationship as indicated in the Informations, because the prosecution failed to adduce any proof that BBB and appellant were married. [50]

On appeal [51] to this Court, appellant manifests [52] that he adopts the issues he raised in his Brief [53] dated November 16, 2017 which was filed before the CA. The People, for its part, likewise manifests [54] that it affirms its discussion of the merits of its case in its own Brief [55] dated March 22, 2018 with the CA.

Issue

The core issue presented before the Court is whether the CA correctly affirmed the RTC decision which found appellant guilty of two counts of rape through sexual intercourse as defined under Article 266-A, paragraph 1 and Article 266-B of the RPC as amended by R.A. 8353 in conjunction with R.A. 7610.

The Court's Ruling

The appeal is without merit.

Appeal in criminal cases opens the entire case for review, with the reviewing tribunal vested with the duty to correct, cite, and appreciate errors in the appealed judgment, whether assigned or unassigned. [56]

In deciding this appeal, the Court is guided by the following principles framed specifically for the review of rape cases: (1) an accusation of rape, while easy to make, is difficult to prove and even harder for the person accused, though innocent, to disprove; (2) because rape, by its very nature, involves only two persons, the testimony of the complainant should be scrutinized with the greatest caution; (3) the evidence for the prosecution must stand or fall on its own merits and must not be allowed to draw strength from the weakness of the evidence for the defense; and (4) the complainant's credibility assumes paramount importance because her testimony, if credible, is sufficient to support the conviction of the accused. [57]

Under the aegis of the foregoing framework, the Court has reviewed the records of this case and finds no reason to overturn the verdict of

guilt handed down by the RTC and affirmed by the CA, but finds it proper to modify the finding of two counts of Statutory Rape, the second one being only Simple Rape.

The Court finds, as correctly discerned by the lower courts, that the prosecution sufficiently established, through the primary and positive testimony of the wronged child herself, that appellant gained carnal knowledge of her, and is therefore guilty beyond reasonable doubt of the crime of rape in the consummated stage.

The Court also holds that the straightforward, candid and consistent testimony of AAA of the rape sufficiently established that appellant's erect penis did touch the *labia* of her vagina which, under prevailing jurisprudence, falls within the operative definition of consummated rape.

Furthermore, pursuant to the balance that must be struck between the fundamental freedoms of the accused and the abused child, and the Court's affirmation notwithstanding, it nevertheless finds both a need as well as a suitable jurisprudential platform to clarify the parameters that must attend the courts' appreciation of the stages of commission of rape in light of prevailing jurisprudence that has evolved in its definition of what constitutes "the slightest touch" that consummates the same. The Court here discerns that an explication is in order given the determined inexactitude in the evolution of the minimum physical threshold that distinguishes between attempted and consummated rape.

Admittedly, despite the fact that the act of rape has long been removed from the realm of private crimes, [58] the Court's practical and doctrinal imaginations and expressions appear to still be colored by old, discarded notions of what rape is and is not, made even worse by the social stigmatization associated with it. As far as jurisprudence goes, as will be shown in the succeeding tracking of relevant case law, categorical descriptions of the kind or degree of genital contact that amounts to consummated rape through penile penetration has been unclear or skirted around at times, owing, for one, to the sensitive nature of the assault. Thus, the unmistakably sexual nature of the crime of rape has previously compelled the Court to sidestep the otherwise unavoidable vulgarity that attends the crime, and into the use of euphemistic but largely inaccurate descriptions, that have only so far convoluted matters regarding the act of rape that should have been kept unambiguous and definitive.

For one, diverging cases show that, despite clear testimony of child victims of repeated attempts and degrees of penetration of an erect penis, the accused therein were convicted merely of attempted rape precisely because of the absence of the clear operative definition of penile penetration that qualifies as consummated rape, especially in cases of younger victims, in view of the physical natural resistance of their underdeveloped anatomy. For another, as raised during deliberations, a clarification is overdue given that an error in the appreciation of the exact anatomical sites of the genital contact amounts to the justice system's complicity in the improper imposition of penalties.

The apparent avoidance in the straightforwardness or clarity now presents the Court with the need to reiterate and clarify for the bench and the bar, the biologically accurate definition of what constitutes the slightest penile contact which consummates rape through penile penetration. Without discounting how the instant clarification of anatomical threshold may extend or apply to rape by sexual assault, the Court's present discussion will be focused on rape of a woman through penile penetration, and will be three-tiered: (i) it will begin with a tracing of the evolution of the operative definition of consummated rape through penile penetration with an illustration of how cases have diverged, then (ii) elaborate on what slightest genital contact contemplates with particular reference to the anatomical situs thereof, and (iii) finally apply said clarified parameters to the instant appeal.

I
Evolution of the Wrong of Rape [59]

The origin of the crime of rape as it is now defined traces its source to the Código Penal of 1870, which was introduced in the Philippines in 1887, and was not superseded until the effectivity of the RPC in 1932, [60] as amended by R.A. 8353, Section 2, which in turn defines the crime of rape under Article 266-A thereof, thus:

> Article 266-A. *Rape; When and How Committed.* — Rape is committed —
>
> 1. By a man who shall have carnal knowledge of a woman under any of the following circumstances:
>
>   a. Through force, threat, or intimidation;
>
>   b. When the offended party is deprived of reason or otherwise unconscious;
>
>   c. By means of fraudulent machination or grave abuse of authority; and
>
>   d. When the offended party is under twelve (12) years of age or is demented, even though none of the circumstances mentioned above be present.
>
> 2. By any person who, under any of the circumstances mentioned in paragraph 1 hereof, shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.

In Philippine jurisprudence, the conceptualization of the wrong of rape, more specifically the meaning of "carnal knowledge" has been consistently defined as the act of a man having sexual intercourse or sexual bodily connections with a woman. [61] Most recently, through R.A. 11648 [62] the first type of rape under Article 266-A was further redefined and broadened as an act which may be committed "[b]y a person who shall have carnal knowledge of another person."

The operative definition of carnal knowledge, however, has been subject to further evolution, with the main vein of contention running along the different thresholds that are drawn between the stages of its commission. In other words, although "carnal knowledge" has always been conceptually clear, the metes and bounds of where or at which physical contact point it actually legally begins has been the subject of further refinement.

The Court's more nuanced approach to the study and determination of the stages of the crime of rape began with the case of *People v. Orita* [63] *(Orita)*, where the Court first held that taking into account the nature, elements and manner of its execution, it was deemed that the commission of the frustrated stage was inconceivable. This was reiterated in the later cases of *People v. Orande* [64] and *People v. Quiñanola* [65] *(Quiñanola)*, where the Court held that until Congress sees it fit to define the term frustrated rape and penalize it, its continued usage in the statute book should be considered a persistent lapse in language.

With only the attempted and consummated stages left possible for the commission of rape, the series of cases that followed thereafter grappled with the question of where the line could be drawn between a mere attempt at rape, on the one hand, or its consummation, on the other. Given that the intrinsic nature of rape is one fraught with repulsive intimacy and covertness, the Court's efforts to clarify the line between the two stages have so far resulted in dispositions of borderline cases that are varying and perceptively both semantically and pragmatically unclear. Contrary to the observation made during the deliberations, the overdue discussion of the anatomical situs and threshold of consummated rape by penile penetration does not reverse progressive doctrine nor does it render invisible the sordid violation of the dignity of the victim. On the stark contrary, the clarification sheds light on the obscurity of the language and the tendency with which the Court may have repulsed from confronting distinctions, and instead makes plain the point of genital contact which, when crossed, provides the courts with categorical factual basis to find that the gravest assault on the victim's body, integrity and dignity has already been consummated, and not merely attempted.

Recalibration of Stages of Commission: Attempted vs. Consummated

As early as 1990, the Court has built on its trajectory in refining the acts which would constitute the stages of the commission of rape by sexual intercourse through penile penetration in the particular context of sexual abuse of minors. In *Orita*, the Court decisively disabused the notion that perfect penetration and hymenal rupture are necessary for consummation, and clarified that *any penetration* of the female organ by the male organ, *however slight*, is sufficient to warrant conviction, *viz.*:

> x x x In a long line of cases (*People v. Oscar*, 48 Phil. 527; *People v. Hernandez*, 49 Phil. 980; *People v. Royeras*, G.R. No. L-31886, April 29, 1974, 56 SCRA 666; *People v. Amores*, G.R. No. L-32996, August 21, 1974, 58 SCRA 505), We have set the uniform rule that for the consummation of rape, perfect penetration is not essential. Any penetration of the female organ by the male organ is sufficient. Entry of the [*labia*] or lips of the female organ, without rupture of the hymen or laceration of the vagina is sufficient to warrant conviction. Necessarily, rape is attempted if there is no penetration of the female organ (*People v. Tayaba*, 62 Phil. 559; *People v. Rabadan, et al.*, 53 Phil. 694; *United States v. Garcia*, 9 Phil. 434) because not all acts of execution [were] performed. The offender merely commenced the commission of a felony directly by overt acts. Taking into account the nature, elements and manner of execution of the crime of rape and jurisprudence on the matter, it is hardly conceivable how the frustrated stage in rape can ever be committed. [66] (Italics in the original omitted)

Proceeding from *Orita*, the efforts of the Court to expound on as well as further sharpen the operative definition of "touch" as that which consummates rape followed. In *People v. Dela Peña* [67] *(Dela Peña)*, the Court fine-tuned the definition of "touch" *vis-à-vis* consummated rape, provided an operative context thereto, and ruled that *mere touching of a vagina by a penis capable of penetration is considered consummated rape*. [68] In this case, the Court held that its earlier decisions, where it considered rape to have been consummated despite the fact that the attacker's penis merely touched the external portions of the vagina, were within the situational context of "the presence of the existence of an erectile penis capable of full penetration." [69] Here, the Court expounded on the operational context for its ruling that the mere touching of the penis on the external portions of the vagina is enough, to wit:

> It is likewise settled that the absence of physical findings on medical examination does not negate a finding that carnal knowledge had actually occurred. The absence of seminal fluid, spermatozoa, abrasions, lacerations, hematoma[,] etc., around the genital area or the presence of an intact hymen does not automatically lead to a conclusion that no act of rape had occurred or that the act was in fact consensual. In fact, the absence of a medical certificate is not indispensable in the crime of rape. **However, our decisions finding a case for rape even if the attacker's penis merely touched the external portions of the female genitalia were made in the context of the presence of the existence of an erectile penis capable of full penetration.** The physiologic impossibility of penetration absent an erection — complete or otherwise — cannot be gainsaid. If, because of the victim's vigilant attempts at warding off her attacker's sexual advances an accused in a case of rape is unable to accomplish the act of completely penetrating his victim's vaginal orifice, a charge for rape under existing jurisprudence can be sustained anyhow, because full penetration would have been accomplished if the penis were erect, were it not for the victim's vigilance or the occurrence of other circumstances which might have frustrated the accomplishment of complete penetration. That is not the case here. [70] (Emphasis supplied)

Then in the 1997 case of *People v. Escober* [71] *(Escober)*, the Court held that what is fundamental is that the entrance, *or at least the introduction*, of the male organ to the *labia* of the *pudendum*, is proved. Still in the same year, in *People v. Castromero* [72] *(Castromero)*, the accused's penis merely touched the minor victim's private parts and did not penetrate — "*[a]ng kanyang pag-aari ay* ***lumapat*** *sa aking pag-aari*." [73] The Court here nevertheless found that the rape already reached its consummated stage. Harking back to *Dela Peña*, and once more ruling that the *mere touching* of the external genitalia by a penis capable of consummating the sexual act constitutes carnal knowledge, the Court there reasoned thus:

> In determining whether the rape was consummated or merely attempted, we observe that in this case there was no complete or perfect penetration of the complainant's sex organ. The salient portions of her testimony are as follows:
>
> *Q* *While he was on top of you, what was he doing?*
>
> *A* *He tried to insert his penis to my vagina.*
>
> *Q* *When he was trying to insert his private part to your private part, what happened?*
>
> *A* *His penis touched my vagina.*
>
> *FISCAL CASTILLO:*
>
> *May I request Your Honor, that the Tagalog word "Ang kanyang pag-aari ay* ***lumapat sa aking pag-aari****."*
>
> *Q* *What happened next?*
>
> *A* *Because of the movement sideways his penis touched my private parts.*
>
> xxx xxx xxx
>
> To consummate rape, perfect or complete penetration of the complainant's private organ is not essential. Even the slightest penetration by the male organ of the lips of the female organ, or [*labia*] of the [*pudendum*], is sufficient. In *People vs. Dela Peña*, this Court held that "the mere touching of the external genitalia by a penis capable of consummating the sexual act constitutes carnal knowledge." **Josephine's testimony that appellant's organ touched the opening of her vagina can lead to no other conclusion than that the appellant's manhood legally invaded, however slightly, the lips of her private organ.** Clearly, rape was consummated in this case. Because the sexual assault was perpetrated by force and intimidation, Appellant Castromero is thus guilty of rape pursuant to Article 335 of the Revised Penal Code. [74] (Emphasis supplied)

In the succeeding case of *Quiñanola*, the Court again echoed *Dela Peña*, and reiterated that in light of discerning whether or not carnal knowledge was had, *"mere touching"* of the penis consummates the crime. In this case, the Court further refined the operative definition of the required genital contact for purposes of finding consummated rape, by outlining that the **genital contact has to be either of the two alternative scenarios: (1) the penis which merely enters the *labia* or the lips of the vagina, or (2) the penis capable of consummation merely touches the external genitalia**, *viz.*:

> In the context it is used in the Revised Penal Code, "carnal knowledge," unlike its ordinary connotation of sexual intercourse, **does not necessarily require that the vagina be penetrated or that the hymen be ruptured**. The crime of rape is deemed consummated even **when the man's penis merely enters the [*labia*] or lips of the female organ** or, as once so said in a case, by the "***mere touching* of the external genitalia by a penis capable of consummating the sexual act**." [75] (Emphasis supplied)

Proceeding from the standing doctrine in *Quiñanola*, the Court further drew distinctions with respect to the genital contact that is contemplated by the consummated stage of rape, through several 1999 Decisions.

In the case of *People v. Oliver* [76] *(Oliver)*, the Court reiterated that rape is consummated "when the penis *touches the pudendum*, however slightly." [77] In the same year, in *People v. Alojado*, [78] the Court described consummated rape as that which consists of even the slightest penetration. Then, in the *En Banc* case of *People v. Puertollano* [79] *(Puertollano)*, it was iterated that *mere touching*, or less than penetration, amounts to consummation, to wit:

> The **mere touching by the male's organ or instrument of sex of the [*labia*] of the [*pudendum*] of the woman's private parts is sufficient to consummate rape**. As we have said in unnumbered cases, full or deep penetration of the victim's vagina is not necessary to consummate sexual intercourse; it is enough that there be even the slightest penetration of the male organ into the female sex organ. [80] (Emphasis supplied)

Then, in the later oft-cited case of *People v. Campuhan* [81] *(Campuhan)*, the Court clarified the standing definition of "touch" in reference to its ruling in *Orita*, and elucidated that the minimum genital contact that is required for a finding of consummated rape must be either (1) the penis touching the *labia majora*, or (2) the penis sliding into the female organ, thus:

> x x x Thus, *touching* when applied to rape cases does not simply mean mere epidermal contact, stroking or grazing of organs, a slight brush or a scrape of the penis on the external layer of the victim's vagina, or the *mons pubis*, as in this case. There must be sufficient and convincing proof that **the penis indeed touched the [*labias*] or slid into the female organ, and not merely stroked the external surface thereof, for an accused to be convicted of consummated rape**. As the *labias*, *which are required to be "touched" by the penis*, are by their natural *situs* or location beneath the *mons pubis* or the vaginal surface, **to touch them with the penis is to attain some degree of penetration beneath the surface**, hence, the conclusion that touching the [*labia majora*] or the *labia minora* of the *pudendum* constitutes consummated rape.
>
> xxx xxx xxx
>
> x x x Jurisprudence dictates that the *labia majora* must be entered for rape to be consummated, and not merely for the penis to stroke the surface of the female organ. Thus, a grazing of the surface of the female organ or touching the *mons pubis* of the *pudendum* is not sufficient to constitute consummated rape. **Absent any showing of the slightest penetration of the female organ, *i.e.*, touching of either [*labia* of] the *pudendum* by the penis, there can be no consummated rape; at most, it can only be attempted rape, if not acts of lasciviousness.** [82] (Emphasis and underscoring supplied)

Following *Campuhan* was the case of *People v. Ombreso* [83] *(Ombreso)*, involving the rape of a six-year old girl, the facts of which are similar to the case at bar. In *Ombreso*, the allegation that the accused's erect penis "touched the upper part of complainant's vaginal opening" was deemed sufficient for a finding of consummated rape, *viz.*:

> Thus, although there was no full penetration, and therefore no laceration of the hymen as the examining physician said, **accused-appellant's penis nonetheless touched the upper part of complainant's vaginal opening. As accused-appellant repeatedly pushed his organ into complainant's vagina, the latter suffered pain**. Unlike in *Campuhan*, where this Court found that accused did not attain erection, and his penis was flaccid, here, accused-appellant's penis, according to the victim, was erect and, for a long time, accused-appellant tried to make a full penetration. This was no mere "stroking" or "grazing of the surface of the female organ," as this Court described what took place in the *Campuhan* case. What happened in this case was a penetration, albeit not a full one because of the relative smallness of complainant's vagina. **Although the victim many times said "just here" in pointing to the spot in her genitalia which was touched by accused-appellant's male organ, "just here," as she demonstrated, meant the "upper part of [her] vaginal opening." It was therefore consummated rape which accused-appellant committed.** [84] (Emphasis supplied)

Following *Ombreso*, in the case of *People v. Comanda* [85] *(Comanda)*, the Court held that the "*briefest of contacts*" or the "mere introduction" of the penis to the vagina consummates the rape, particularly that the penis reaches the *pudendum* or, at the very least, the *labia*, to wit:

> x x x The position of the parties during sexual intercourse is not material in the crime of rape. For rape to be consummated, the hymen of the victim need not be penetrated or ruptured. **It is enough that the penis reaches the [*pudendum*], or, at the very least, the [*labia*]. The briefest of contacts under circumstances of force, intimidation or unconsciousness, even without laceration of the hymen, is deemed to be rape in our jurisprudence. The were introduction of the penis into the aperture of the female organ, thereby touching the [*labia*] of the [*pudendum*], already consummates the crime of rape.** [86] (Emphasis supplied)

In March 2001, the Court, in *People v. Francisco* [87] *(Francisco)* attempted to **reconcile the two alternative minimum genital contacts by clarifying that they are one and the same, in that for the penis to even merely touch the *labia majora* or the *labia minora* of the vagina, the penis would have already attained some level of penetration of the female organ**. The Court here clarified that there must be sufficient proof that the penis indeed touched the *labia* or slid into the female organ, and not merely stroked the external surface thereof, in the absence of which the crime can only be either attempted rape or acts of lasciviousness. In discussing its compunction to find the rape committed therein in its consummated stage, the Court turned on the insufficiency of proof:

> [T]here must be sufficient and convincing proof that the penis indeed **touched the *labias* or slid into the female organ, and not merely stroked the external surface thereof, for an accused to be convicted of consummated rape. As the *labias*, which are required to be "touched" by the penis, are by their natural *situs* beneath the *mons pubis* or the vaginal surface**, to touch them with the penis is to attain some degree of penetration beneath the surface, hence, the conclusion that touching the *labia majora* or the *labia minora* of the [*pudendum*] constitutes consummated rape. "But in the absence of any showing of the slightest penetration of the female organ *i.e.*, touching either *labia* of the *pudendum* by the penis, there can be no consummated rape; at most, it can only be attempted rape, if not acts of lasciviousness. [88] (Emphasis supplied)

Seven months after *Francisco*, the Court repeated said ruling in *People v. Mariano* [89] *(Mariano)* and held that the ascertainment of whether the penis of the accused did enter the labial threshold of the female organ was necessary in order to find consummation, and failure of the medico-legal report to support the allegation of completed rape results in reasonable doubt in favor of the accused. [90]

Taking altogether the evolution of the definition of what constitutes the minimum genital contact that warrants a finding of consummated rape from the above survey of case law, it appears that the ***consummation*** of rape is founded upon the ***prosecution's proof that the erect penis of the accused was, at the very least, introduced to the labia majora of the victim's vagina as a precursor for vaginal penetration***, regardless of whether the penetration, full or partial, was actually obtained. Up to this point, the minimum genital contact threshold for consummated rape was quite literally the merest introduction of the penis to the *labia* of the vagina.

However, the cases that followed thereafter would vacillate between "mere touch" on the one hand, and "slightest penetration" on the other, so that the clear minimum genital contact of the penis touching the *labia majora* of the vagina was confounded.

Diverging cases

An even closer look at the case law that followed *Mariano* on the matter of borderline rape cases indicates that in the cases where the initial finding of consummated rape was modified to attempted rape, said modifications ultimately turned on *the prosecution's failure to establish the manner and nature of penile penetration, i.e.*, that the erect penis of the accused touched the *labia* of the *pudendum* of the victim's vagina as a precursor for vaginal penetration, as operatively defined in *Campuhan*.

What the Court here vitally observes, and which is now the focus of the instant clarification, is that this hesitation to appreciate the presence of the minimal genital contact that is required for consummation to be found persisted *despite* clear testimonial

indication that the penis was in fact introduced to the aperture of the vagina in the manner that was contemplated in the earlier definitive rulings in *Orita, Dela Peña, Escober, Quiñanola, Oliver, Campuhan* and *Castromero*. In the said cases, to recall, the Court already found as consummated rape that level of genital contact which was described as *"[pag]lapat"* or the nudging or pressing upon the vagina by the penis.

As will be shown, the Court, in the succeeding cases, found only attempted rape even in the face of categorical testimonies to the effect that the penis of the accused in these cases was introduced to the vagina of the minor victims in manners or degrees that are semantically similar to the description of the manner of penile contact appreciated in the case of *Castromero*, wherein the Court found for consummated rape. **The Court now finds that the following differing rulings or appreciations of description of genital contact are more borne out of an unclear and often confounded operative definition of the threshold of genital contact that is required, than failure on the part of these minor victims to testify to the same.**

First, in the case of *People v. Tolentino*, [91] despite a clear testimony on the part of the victim that the accused therein kept "trying to force his sex organ into" her vagina, the Court there held that there was no sufficient proof offered to show that the penis touched the *labia* of the victim's vagina, to wit:

> The prosecution did not ask her the appropriate questions to get some more important details that would demonstrate beyond any shadow of doubt that TOLENTINO's penis reached the [*labia*] of the [*pudendum*] or the lips of RACHELLE's vagina. It should have, for instance, asked whether TOLENTINO's penis was firm and erect or whether RACHELLE's legs were spread apart to bring us to the logical conclusion that, indeed, TOLENTINO's penis was not flabby and had the capacity to directly hit the [*labia*] of the [*pudendum*] or the lips of RACHELLE's vagina. There is paucity of evidence that the slightest penetration ever took place. x x x
>
> x x x In this case, there is no doubt at all that TOLENTINO had commenced the commission of the crime of rape by (1) directing RACHELLE to lie down, (2) removing his shorts and hers, and **(3) "trying to force his sex organ into" RACHELLE's sex organ. But there is no conclusive evidence of the penetration, however slight, of RACHELLE's sex organ.** The penetration was an essential act of execution to produce the felony. Thus, in the absence of a convincing evidence thereof, TOLENTINO should be given the benefit of the doubt and can be convicted of attempted rape only. [92] (Emphasis supplied)

Still, in the 2000 case of *People v. Arce, Jr.* [93] *(Arce)* involving the rape of a nine-year old girl, the minor victim repeatedly used the word "*idinikit*" to describe the position of the erect penis *vis-à-vis* her genitalia. The Court notes that " *idinikit*" is semantically similar to the word " *lapat*" which the Court appreciated as consummated rape in the earlier case of *Castromero*. Despite this, the Court in *Arce* was unconvinced that the rape was consummated because the victim's testimony indicated that appellant therein was not able to insert his penis into her vagina nor did she declare that there was the slightest penetration.

Similarly, in *People v. Dimapilis*, [94] the Court also found therein accused guilty only of attempted rape, mainly ruling that the testimony of the 10-year old victim was confusing and made conflicting assertions regarding the entry of the penis into her vagina, despite the fact that on repeated occasions, as the Court therein recognized, the minor victim narrated that the accused "forced his organ into hers," [95] "tried to insert his organ into hers and she felt it when he pressed it against her private part," [96] and "tried to penetrate her, albeit unsuccessfully in view of the natural resistance at her opening and her propitious cry of pain." [97]

Still in the case of *People v. Quarre*, [98] involving a father accused of raping his two minor daughters aged 12 and 16, the Court held that the "bare and true words of the victim," [99] left uncleansed of ambiguous references by a medico-legal report, left it unpersuaded as to the precise character of the sexual act alleged therein. [100] In said case, despite the repeated narration of one of the minor victims that the accused therein kept trying to insert his penis into her vagina, and despite said minor victim's particular notation of the fact that in the accused's attempts at penile penetration she felt persistent pain, the Court there held that the rape was only in the attempted stage. [101]

More, in the similar case of *People v. Brioso*, [102] the Court held that since there was no other evidence, apart from the victim's testimony, that could confirm whether there was penetration of the *labia*, the accused therein could only be convicted of attempted rape. This, despite the consistent testimony of the minor victim therein that the accused kept trying to insert his erect penis into her vagina, albeit unsuccessful, with the cited testimony clearly reading in part:

Q: You said you were dragged by your stepfather to that bed. When you were dragged to the bed, what happened next?

A: He forced me to lie down and he removed my shorts and panty.

Q: While doing this, what if anything did you do?

A: I cried because I could do nothing.

Q: When he removed your garments and you were made to lie on the bed, what happened next?

A: He also undressed himself and tried to insert his penis to my vagina, but it did not succeed.

Q: Now, on what part of your body did you feel that his penis touched?

A: My vagina.

Q: So, what happened after that?

A: He dressed up and I also dressed up and went upstairs.

Q: So, how long therefore, was he on top of you?

A: Around five (5) minutes.

Q: While on top of you on that duration as you approximated it, what if anything did you feel?

A: Painful.

Q: Which is painful?

A: My vagina.

Q: Why is it painful?

A: Because he was trying to insert his penis to my vagina.[103] (Emphasis supplied)

At this point, the Court notes that although all the aforementioned cases were decided by mentioning what constitutes "slightest penetration" under the *Dela Peña* and *Campuhan* standard, with the downgrading of the initial convictions to attempted rape all "on the account of the paucity of evidence to prove that there had been penile penetration, even of the slightest kind, of the victim's genitals," all the above cases also failed to appreciate the genital contact that took place in the manner and circumspection that the Court appreciated them in the cases of *Dela Peña* and *Campuhan*.

Even more instructive is the Court's observation of an unmistakable lack of clarity and consistency in the operative definition of the minimum genital contact which, as we have seen in the jurisprudential arc, has been more of a subjective moving target than a pinned down exposition. **In other words, the appreciation of the minimum genital contact that consummates rape, *i.e.*, whether the erect penis of the accused touched the *labia* of the *pudendum* of the victim's vagina as a precursor for vaginal penetration, has been confounded, with**

said opacity easily resolvable by informing jurisprudence of the exact anatomical situs of the pertinent body parts referred to in settled jurisprudence, which, unlike other inexact matters that surround a rape testimony, are as inarguable as they are true.

For while it is tragically true that, as Senior Associate Justice Marvic M.V.F. Leonen posits, the crime of rape is not suffered in degrees and the destruction in its wake is utterly complete, [104] the existing provisions in the RPC and its amendments on rape continue to define that the *offense itself*, not its trauma, is committed in stages. On this score, and short of judicially legislating a new definition of the crime of rape, the Court must choose to apply itself to ensuring that no obscurity either unduly benefits the accused (in that the accused is convicted for attempted rape when in fact the crime was consummated) or unduly burdens the victims with the heartbreaking task of jumping through hoops of propounded questions in order to try and prove the genital assault required which jurisprudence itself has not so far made clear. Far from "licensing" the toxic masculinity that reduces women to mere sexual objects, [105] the Court pries loose the constricted uncertainty of the semantics, unravels the clearer parameter, and finds that the safety and dignity of all persons are worth the disconcerting conversation that must be had, if it is to dispense with honest justice.

II
Clarifying the parameters for appreciation of "slightest penetration" in cases of rape by sexual intercourse through penile penetration

The Court, in its wisdom, has long laid down jurisprudence to the effect that the level of penetration that is sufficient to appreciate consummation of rape by penile penetration is established by using a minimum litmus test, *i.e.*, mere touching of an erect penis on the *labia* of the female genitalia. Perhaps this was done in order to sidestep discourse that ran along the discussions that seek to demand the degree of particularity (*i.e.*, ask "how deep a penetration is deep enough") that may only be sharp at the level of legal doctrines, but insufferably nebulous and unknowable at the level of actual cases.

On this score, the Court recalls that the prevailing fine-tuned operative definition of the minimum threshold for a finding of consummated rape, from the nuanced jurisprudential development that began in *Orita* all the way to *Mariano* is when the prosecution established that **the erect penis of the accused touched the *labia* of the *pudendum* of the victim's vagina as a precursor for penile penetration, regardless of whether the penetration, full or partial, was actually obtained**.

This operative definition, however, as will be demonstrated, calls for a clarificatory rephrasing, as its physical characterization below proves the same to be either inconsistent or otherwise problematic and uncertain. For the avoidance of doubt and for pedagogical purposes, the Court finds it necessary to herein include a brief descriptive discussion of the parts of the external female genitalia including a clear indication of the situs of the pertinent parts, in order to categorially delineate for the bench and the bar which physical threshold, when crossed, constitutes rape in the consummated stage.

The vulva, or *pudendum*, is a collective term for the external female genital parts that are visible in the perineal area. [106] According to Aikaterini Deliveliotou and George Creatsas, in their article "Anatomy of the Vulva" [107] the parts of the vulva that are crucial for a clear discussion of the consummation of rape are as follows:

> The vulva consists of the [*mons pubis*], the [*labia majora*], the [*labia minora*], hymen, the clitoris, the vestibule of the vagina, the urethral orifice, Skene's glands, Bartholin's glands, and the vestibular bulbs x x x.
>
> The anterior and posterior boundaries of the vulva extend from the [*mons pubis*] to the anus, respectively; its lateral boundaries lie at the genitocrural folds. The vulvar epithelium exhibits regional differences in tissue structure based on embryonic derivation. The skin-bearing [*mons pubis*], perineum, and [*labia*] are derived from the embryonic ectoderm. Vulvar skin, like skin at other sites, has a keratinized, stratified, squamous epithelial structure with hair follicles, sebaceous glands, and sweat glands. The thickness degree of keratinization of vulvar skin decreases progressively from the [*labia majora*], over the clitoris, to the [*labia minora*]. The vulvar vestibule, derived from the embryonic endoderm, is nonkeratinized. x x x
>
> **[*Mons Pubis*]**
>
> The [*mons pubis*] (mons Veneris) is the rounded eminence in front of the pubic symphysis, which is formed by a collection of adipose tissue beneath the integument. During puberty, it becomes covered with hair up to its junction with the abdominal wall. The hair pattern, or escutcheon, of most women is triangular. Genetic and racial differences produce a variety of normal hair patterns, with approximately one in four women having a modified escutcheon with a diamond pattern.
>
> **[*Labia Majora*]**
>
> The [*labia majora*] are a pair of prominent longitudinal, cutaneous folds of fibroadipose tissue that are homologous to the scrotum in the male. The structures bear epidermal tissue resembling the dartos tunic of the scrotum, as well as adipose tissue, areolar tissue, blood vessels, nerves, and glands. The [*labia majora*] also include the terminal extension of the round ligament and, occasionally, a peritoneal diverticulum, the canal of Nuck.
>
> The size of the [*labia majora*] is related to fat content. Each is approximately 7 to 8 cm in length and 2 to 3 cm in width. The [*labia majora*] extend downward and backward from the [*mons pubis*], thus forming the lateral boundaries of a fissure or cleft (the pudendal cleft or rima) into which the vagina and urethra open. [108]

Guided by the foregoing anatomical description, the Court now reiterates, even as it clarifies, that rape of a female victim by a male person through penile penetration reaches the consummated stage as soon as the penis penetrates the cleft of the *labia majora*, also known as the vulval or pudendal cleft, [109] or the fleshy outer lip of the vulva, in *even the slightest degree*. Simply put, **mere introduction, however slight, *into the cleft* of the *labia majora* by a penis that is capable of penetration, regardless of whether such penile penetration is thereafter fully achieved, consummates the crime of rape.**

Necessarily, the Court must now revisit and clarify the language of the descriptions in the cases of *Dela Peña*, *Oliver*, *Puertollano*, *Campuhan*, *Ombreso*, *Comanda*, and *Francisco*, which have collectively described that the act of rape is considered consummated as soon as the penis touches either the *pudendum* or the *labia* of the victim's vagina.

With careful and decisive reference to the anatomical illustration above, the Court clarifies that when jurisprudence refers to "mere touching," it is not sufficient that the penis grazed over the *pudendum* or the fleshy surface of the *labia majora*. **Instead, what jurisprudence considers as consummated rape when it describes a penis touching the vagina is the penis *penetrating the cleft of the labia majora, however minimum or slight*.** Similarly, a mere grazing by the penis of the fleshy portion, not the vulval cleft of the *labia majora*, will also constitute only attempted rape and not consummated rape, since the same cannot be considered to have achieved the slightest level of penetration. **Stated differently, the Court here elucidates that "mere touch" of the penis on the *labia majora* legally contemplates not mere surface touch or skin contact, but the slightest penetration of the vulval or pudendal cleft, however minimum in degree.**

For this seeming nebulous operative definition to remain unclarified, *i.e.*, for the definition that a penis that touches any part of the female genitalia is tantamount to consummated rape, would be both a physical and legal negation of the concept of attempted rape. In other words, if any nature and degree of touch of a penis of the female genitalia can be considered consummated rape, then effectively, all sexual assaults

involving a penis and the vulva would only either be acts of lasciviousness or consummated rape, with no gradation of the attempted stage in between. Since the same cannot be reasonably presumed to be the legislative intendment with respect to defining the stages of rape, the Court must clarify and fine-tune, as it now does, the unveiled, straightforward definition of exactly the threshold genital contact that constitutes consummated rape.

To be sure, the Court's clarification herein remains faithful to the original definition as laid down in the earliest recalibration in *Orita*, where while the Court disabused the notion that full penetration was required for rape to be in the consummated stage, it nevertheless qualified that the "slightest penetration" was nevertheless required, albeit imperfect or slight, otherwise the rape would be deemed to have been in its attempted stage. [110] So that while the Court requires the proof of the minimum genital contact as here clarified, the notion of having to distinguish between depths or extent of penetration remains out of the question.

In point of fact, in the case of *Escober*, the Court already articulated this careful equivocation towards the idea of making further distinctions as to penetration degrees, to wit:

> **There are no half measures or even quarter measures nor is their gravity graduated by the inches of entry. Partial penile penetration is as serious as full penetration. The rape is deemed consummated in either case.** In a manner of speaking, bombardment of the drawbridge is invasion enough even if the troops do not succeed in entering the castle. [111] (Emphasis supplied)

Given the foregoing, **for as long as the prosecutorial evidence is able to establish that the penis of the accused penetrated the vulval cleft or the cleft of the *labia majora* (*i.e.*, the cleft of the fleshy outer lip of the victim's vagina), however slight the introduction may be, the commission of rape already crossed the threshold of the attempted stage and into its consummation**. On the factual appreciation of whether this minimum threshold genital contact is obtained in an allegation of rape, the same is rightly left to the trial court's astute assessment from the entirety of the body of proof presented in each case.

Doubtlessly, the minimum test of erect penile contact preparatory for consummation is the soundest gauge of differentiating between attempted and consummated rape because, as illustrated by the present case, this bare minimum penile contact may be all that can be reasonably wrested from the testimony of a sexually abused child. **On the unenviable task of determining at which stage the crime of rape was committed, the courts are further enjoined to be circumspect in their careful appreciation of the language used to recount the manner, degree of penile contact, especially when the victim attesting to the same is a minor child.**

Appreciation of Stages of Commission of Rape for Pre-Puberty Victims

On this score, as recommended by Associate Justice Maria Filomena D. Singh (Associate Justice Singh), the Court deems it high time, as well, to further calibrate this genital contact threshold and rule, as it does, that for child victims in the pre-puberty age, the genital contact threshold for a finding of consummated rape through penile penetration is deemed already met once the entirety of the prosecution evidence establishes a **clear physical indication of the inevitability of the minimum genital contact threshold as clarified here, if it were not for the physical immaturity and underdevelopment of the minor victim's vagina**, which may include repeated touching of the accused's erect penis on the minor victim's vagina and other indicative acts of penetration. [112]

The Court marks the ages of nine years old and below as the age range when the "repeated touching" test is to be applied since, according to medical literature, particularly the mainly referenced Nelson Textbook of Pediatrics, [113] the first sign of puberty in girls occurs between 10 to 11 years old, *viz.*:

> The age of onset of puberty varies and is more closely correlated with osseous maturation than with chronological age. In females, the **breast bud** (thelarche) is usually the first sign of puberty (10-11 yr.), followed by the appearance of pubic hair (pubarche) 6-12 mo. later. The interval to the onset of menstrual activity (menarche) is usually 2-2.5 yr. but be as long as 6 yr. In the United States, at least one sign of puberty is present in approximately 95% of females by 12 yr. of age and in 99% of females by 13 yr. of age. [114]

The Court takes judicial notice that in these cases, due to the underdeveloped genitalia of child victims in the pre-puberty age, an attempt of the penis to penetrate will already be likely indicative, at the very least, of the penis' introduction to the vulval cleft of the victim's vagina, with penetration considered made if it were not for the natural resistance of the victim's organ due to biological immaturity.

Circumspection required in appreciating testimonies of child victims in rape cases

Furthermore, as Chief Justice Alexander G. Gesmundo (Chief Justice Gesmundo) astutely adds, the Court further reiterates the jurisprudential guideposts which provide that when the necessary genital contact is not explicitly described through the testimony of the victim, whether minor or otherwise, courts can anchor their findings and appreciation of the genital contact on other aspects that would similarly depict the occurrence and circumstance of penile penetration. [115] These guideposts which are appreciable in all rape cases may reasonably find sharper import with respect to cases of rape involving minor victims, especially in view of the inherent limitations of the testimony of child witnesses. The courts are, therefore, enjoined to exercise circumspection in their appreciation, with the use of these surrounding or attendant circumstances which can aid the courts in their appreciation of penile penetration: (i) when the victim testifies that she felt pain in her genitals; [116] (ii) when there is bleeding in the same; [117] (iii) when the *labia minora* was observed to be gaping or has redness [118] or otherwise discolored; [119] (iv) when the hymenal tags are no longer visible; [120] or (v) when the sex organ of the victim has sustained any other type of injury. [121]

Once the testimony of the victim and/or the above attendant circumstances reveal that the threshold genital contact occurred, the courts have sufficient basis to find for consummation.

For the avoidance of doubt, the Court deems it necessary to remind the bench and bar of the need for circumspection given that as may be gleaned from the preceding brief history and the juxtaposition of cases that all involve minor rape victims, with all evidentiary appreciation turning on the child witness' testimony, it appears that the Court, in its valuation of child witness' testimonies in the specific context of rape cases, has repeatedly categorically ruled that the *testimony of the prosecution witness left it unconvinced* that the required degree of penetration did take place so as to consider the crime committed to have been in its consummated stage. It consistently found the testimonies of the child victims *wanting in the degree of explicitness* that would depict for the Court the very manner and extent of penile contact or penetration, *e.g.*, that descriptive words and phrases used by child victims to depict the assault, including "*binundul-bundol ang kanyang ari*," [122] "poked," [123] and "*idinidikit ang ari*" [124] were not explicit or specific enough to assess the nature of the penile contact.

The case at bar offers the Court the opportunity to clarify, streamline, and reconcile the diverging cases, as well as revisit the prevailing principles with respect to appreciating testimonies of child witnesses in the prosecution of rape cases, to the extent that the fairness of the trial is gauged not only in reference to the rights of the accused but also the rights of the minor victims. For admittedly, although existing rules of procedure already grant a discernible accommodation in favor of child witnesses, said rules only go into the manner of facilitating child testimonies in court. The Court now goes a step further, and lays down the guideline on the level of exactitude that must color the court's appreciation of the testimony, after it has been obtained from the child. This need to revisit how the courts appreciate testimonies of child witnesses in the peculiar context of rape cases is far from a wasteful academic exercise, or a tinkering of precedents for the sake of it. Far from it, the instant reexamination rises from both the substantial body of literature in child development which concedes the many inherent limitations of children in the schema of a rape or sexual abuse trial, as well as the appreciable jurisprudential inconsistency in taking these intrinsic

limitations into account.

For another, the Court deems it not only permissible but more so an imperative that precedents, when brought under the light of an actual case and exposed with its incongruence, must be reconsidered. Perhaps the Court may not be faulted in pursuing such a reexamination with circumspection and compassion, not in the least when its ruling is tethered to the lives of sexually abused children, and the odds that are stacked against them.

To be sure, the present revisit by the Court does not militate against the principle that all doubts must be resolved in favor of the accused. This principle, although encompassing, does not negate the fact that not all crimes are alike, and sexual crimes, by their very nature, are rightly approached differently, or at the very least, warrant a nuanced one. The nature of sexual crimes is peculiar principally because the prosecution of sexual crimes rests heavily, if not solely, on the testimony of the victim. Unlike other crimes where other pieces of evidence may be available to prove their elements, the prosecutorial proof in sexual crimes almost singularly rely on the testimony of the victim. The Court would, therefore, be remiss if it unqualifiedly stops at resolving all doubts in favor of the accused, without taking into account two key considerations: (1) the distinctive nature of sexual crimes, and (2) the inherent limitations of a child when giving testimony in the prosecution of such crimes.

Nature of child testimonies in adversarial trials must be taken into account in the context of rape

In the prosecution of criminal cases, witness testimonies often prove pivotal to the establishment of facts. More particularly in rape cases, the conviction or acquittal of the accused often depends almost entirely on the credibility of the complainant's testimony. Rape is, by nature, generally unwitnessed, with the victim usually left to testify for herself, and her testimony considered most vital and received with the utmost care. [125]

In the Philippine jurisdiction, the existing guideline that finds closest relevance to the case at bar is the Rule on Examination of Child Witness [126] (Rule) which governs the examination of child witnesses in all criminal proceedings and non-criminal proceedings that involve them. [127] This Rule mainly covers the facilitation of the testifying of minor witnesses, with the goal of creating a court environment that minimizes the possible trauma on the child witnesses, and assists in enabling them to deliver the most credible testimonies possible. [128] Among other adjustments made in the configuration of a witness examination, this Rule allows for the appointment of a facilitator to pose questions to the child, [129] the involvement of support persons, [130] the employment of testimonial aids such as anatomically correct dolls, [131] and emotional security items. [132] The Rule further modifies the mode of question, and permits the asking of leading questions, [133] and the narrative form of testimony. [134]

Demonstrably, however, the matter of ***appreciating*** testimony already wrested from the child remains unaddressed by this Rule. Stated differently, this existing Rule is primarily geared towards facilitating the giving of the testimony of the child. The Court here, on the other hand, directs the instant clarification towards judges and justices, with respect to how the testimonies of child witnesses must be ***appreciated*** *after* they have been given.

Specifically, although this Rule already exists to provide a generic accommodation for child witnesses, the more nuanced scenario of ascribing credibility, belief, and the overall valuation of the testimony of child witnesses in sexual assault cases presents for the Court a whole new context, precisely because the subject matter requires both levels of specificity on the one hand, and sensitivity on the other, (*e.g.*, accurate description of penile insertion) that are reasonably considered strange to the schema of any child. This scenario, therefore, presents a new, unique barrier to the clarity and articulation of the child's testimony, such that the present Rule pertaining to child witnesses, with its broader application, has shown to be insufficiently applicable.

In other words, the jurisprudence and existing Rule on child witness examination are under-inclusive, and do not squarely consider the needs of child witnesses in rape cases, because they remain largely unmindful of the linguistic descriptive ability and limitations of an abused child. The case at bar presents the Court with the occasion to rethink this demonstrated predisposition towards this descriptive precision, in order to incorporate into the equation the intrinsic limitations of a child witness' testimony. The Court now adds that not only caution but more so circumspection is in order. In sexual abuse cases involving children, the level of exactness that the preceding case law seem to be seeking may be too difficult in the case of child victims as to render its attainment practically impossible.

Illustratively, studies in "The Child Witness: A Training Manual" of the United Nations Children's Fund suggest that child testimonies are steeply affected by the courtroom's general adversarial setting, with a tone of hostility that children are not mature enough to cope with. Especially with respect to sexual abuse testimonies, such must be considered in light of children's limited vocabulary knowledge and awareness of the sexual terminologies, *viz.*:

> Body parts and sexual terminology is the area where it is most obvious that children have limited vocabulary. However, it is also an area that is of crucial importance in cases of child sexual abuse. Although we may think that body part terminology forms part of everyday words, research has shown that children are not as aware of their body part words as we would think. And this applies even to non-sexual body parts. Studies have found that the number of body part words both understood and named increases with age, and some words are not fully acquired until after 6, like ankles and elbows. A child will say that someone touched his leg but will not be able to be more precise. Is it the thigh, the knee, the shin, the ankle?
>
> Adults should, therefore, not assume body part words are everyday words and seek clarification. One of the biggest difficulties in obtaining information about sexual abuse from children is the fact that children, who are not sexually active, do not understand what sex is. This is further exacerbated by the fact that children under the age of 6 do not have an understanding of their sexual anatomy. These children do not know that they have a separate anus and a vagina. Many children under this age believe that they use one orifice for both bodily functions.
>
> In the forensic context, children will often in their disclosure use a general word to describe a body part. It may not be clear what exactly they are referring to, yet this information is vitally important for the court. [135]

There is ample research that has long argued that court involvement with respect to prosecution of child sexual abuse traumatizes the child victims. [136] Child witnesses in sexual abuse cases are subjected to varying limitations, from cognitive maturity to linguistic eloquence. The strength of the testimonies in borderline cases such as the one at bar is impressed with their various constraints on account of their age-determined developmental abilities, vulnerabilities, needs, and other limitations that affect their capability to comprehend court proceedings and intelligently and precisely respond to complex questions during examinations. [137]

A longitudinal psychological study on children in the courtroom even surmised that in responding to lawyer's questions on the witness stand, child witnesses rarely asked for clarification and often attempted to answer questions which they actually deemed ambiguous or without sense. [138] This observed reluctance of child witnesses bears squarely upon the probative weight of their accounts. It is therefore, only consistent with due process for both the complainant and the accused that, in the prosecution of rape, where the crucible of proof closes in on the testimony of the victim, the evaluation and appreciation of the accuracy of the primary testimony should be properly informed of the limitations of the child thrust at its center.

Child witnesses are also exposed to a hostile and unfamiliar environment in the form of a courtroom during an adversarial proceeding, so that the evidence in these types of trials are often "derived not out of truth but as a result of bullying or coercion." [139] Studies have further shown that the intimidating atmosphere of a courtroom causes anxiety in children, and undermines their capacity to offer accurate testimonial evidence.

[140]

Another important difficulty that arises when communicating with young children is not their capacity to recall an event but their insufficient verbal skills to relate the memory. This becomes even more problematic when gathering information in a forensic context. [141] The evidentiary odds are often stacked against children's opportunity to offer the best, clearest, most accurate testimonial evidence, with a "clear mismatch" between the linguistic capabilities and the linguistic norm in court, which includes strangely phrased questions, or questions that are designed to confuse or create the appearance of inconsistencies, and the like. [142] Children's testimonies are also prone to improper questioning, which bear directly on their credibility, and often result in unreliable descriptions of abuse. [143]

Finally, the exacting task of eliciting from a child witness the pivotal pieces of information upon which the prosecution's case stands is further confounded by the persistent rape myths and stereotypes that are still applied to a child who cries sexual assault. Stated simply, therefore, to require from the prosecution a high degree of semantic specificity in the testimony of child victims, to the point that the gradation of penetration may be ascertained with persuasiveness, is too tall an order to be met by the child, and therefore becomes a standard of testimonial proof the achievability of which is more apparent than it is real. For if the treatment were otherwise, it would be unjust to appreciate children's testimonies based on criteria set for testimonies of adults.

To be sure, the courts do not presently require that children should be able to describe the nature of penetration against them using technical or scientifically accurate words. Certainly, the courts do not ask of children the use of technical terms such as *labia minora* or *majora, mons pubis, pudendum* and the like. This would be a nuanced error in the casting of the premise, and is not what the instant recalibration proceeds from.

Instead, it is acknowledged that although in black letter, the courts supposedly afford a level of leniency in favor of children when they testify on the witness stand, this accommodation seems to be, as far as the oscillating jurisprudence shows, not wholly and consistently translated to all actual court cases that call for it. In other words, the Court now no longer insists that it already affords accommodation in view of children's inherent limitations, when these accommodations do not consistently reflect themselves on all child rape cases where the question of threshold between attempted and consummated rape is put to the fore. Truly, the courts, short of requiring children to use technical terms to describe penetration, nevertheless demonstrably search for more accurate depictions of said penetrations than the children, in their studied linguistic and cognitive limitations, can ever be prevailed upon to provide.

Moving forward, therefore, in the specific context of trying cases of rape, the Court enjoins the courts: (i) to be circumspect in their appreciation of the entire body of evidence submitted before them, including the testimonial evidence offered by the minor victims in cases involving them; (ii) take into full account the jurisprudential guideposts which depict the nature and degree of genital contact when not explicitly described through the testimony of the victim, minor or otherwise; and (iii) particularly with respect to minor victims, give due regard to their inherent linguistic limitations as witnesses, in order to avoid demanding the highest exacting level of linguistic accuracy as they have been jurisprudentially demonstrated to have required in the past.

Instant threshold of genital contact may be applied by analogy to acts of rape by sexual assault

Moreover, as proffered by Chief Justice Gesmundo [144] and as raised during deliberations, the Court further finds merit in extending the same threshold of genital contact ***by analogy*** to acts of rape by sexual assault as described in Article 266-A, paragraph 2 of the RPC, as amended, thus:

> Article 266-A. *Rape: When and How Committed.* — Rape is committed:
>
> 1) By a man who shall have carnal knowledge of a woman under any of the following circumstances:
>
> a) Through force, threat, or intimidation;
>
> b) When the offended party is deprived of reason or otherwise unconscious;
>
> c) By means of fraudulent machination or grave abuse of authority; and
>
> d) When the offended party is under twelve (12) years of age or is demented, even though none of the circumstances mentioned above be present.
>
> 2) By any person who, under any of the circumstances mentioned in paragraph 1 hereof, shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, **or any instrument or object, into the genital or anal orifice of another person**. (Emphasis and underscoring supplied)

Stated differently, the extension of the instant anatomical threshold applies to rape by sexual assault such that a finding that the accused has penetrated **the vulval cleft of the victim through the use of any instrument or object** warrants a factual finding of consummated rape by sexual assault.

To be sure, the Court here concedes that the inclusion of the foregoing anatomical descriptive discussion is as much unprecedented as it is necessitous, for in determining physical degrees of sexual assault in the crime of rape by sexual intercourse through penile penetration, there is no other way to reconcile the evolving and, at times, varying jurisprudence than to increasingly incorporate into these legal pronouncements the anatomically accurate and unquestionably specific body parts that these cases in jurisprudence constantly refer to. As Chief Justice Gesmundo supposes, the visual and descriptive clarification herein should enable the country's prosecutors to build and present their cases with sufficient clarity, and for the courts to appreciate them with the same degree of unambiguity. [145]

Further to the instant clarification, in the converse, the Court also clarifies that when there is no touching by the penis of the vulval cleft of the victim's genitalia in a case of rape through penile penetration, there can be no finding of consummated rape but only attempted rape or acts of lasciviousness, as the case may be, with the distinctions determinable based on various indications that may reveal either the absence or presence of "intent to lie" [146] on the part of the accused, [147] which include the presence of an erect penis. [148]

The Court further notes that, perhaps, the inconsistency in the appreciation of testimonial depiction of the genital contact that already consummates the rape committed is not a failure of the imagination nor a deficit in compassion, but simply a lack of certainty as to what the required genital contact as described in preceding jurisprudence really anatomically entailed. For one, the Court understands that over and above an explicit examination of matters that were once relegated to imprecise euphemisms, an intelligent interrogation of these excruciating details is inescapable if it is to dispense justice in a manner that is both consistent with the contemplation of jurisprudential precedents, as well as appreciable in the painful realities of actual rape cases.

Proceeding from this clarification, and to help decrease the trauma which the rape victims experience during testimonies, those that have been correctly described during the deliberations as aggravated by the usual pummeling of probing, pointed and hostile questions from the defense, this clarification of the anatomical threshold in the instant case hopes to spare the victims, especially the minors, the harrowing task of recounting the smallest, most profoundly humiliating details of the attack beyond what is needed. With this clarification, both the prosecution and the courts will have a floor anatomical threshold, the establishment of which is all that is needed to factually confirm for the Court the consummation of this kind of rape.

For another, the Court reminds that the crucial import of this recalibration or clarification is no more evident than in the net resulting

penalties imposable on the convicted accused who, either in the attempted or the consummated stage, has nevertheless been found by the Court to have sexually assaulted a minor, at the very least. Namely, the penalty for attempted rape is two (2) degrees lower than the prescribed penalty of *reclusion perpetua* for consummated rape of a minor under 12 but not below seven years of age. Two (2) degrees lower from *reclusion perpetua* is *prision mayor*, the range of which is six (6) years and one (1) day to twelve (12) years. Absent any aggravating or mitigating circumstances and applying the Indeterminate Sentence Law, the maximum penalty imposable upon an accused convicted of attempted rape of a minor is *prision mayor* in its medium period, while the minimum shall be taken from the penalty next lower in degree, which is *prision correccional*, the range of which is six (6) months and one (1) day to six (6) years, in any of its periods. [149] In palpable contrast, a penalty of *reclusion perpetua* awaits an accused that is convicted of consummated rape of a minor.

Stated plainly, lest the Court be misunderstood, the unclear definition has, considering the diverging cases, resulted in instances where the accused was meted a significantly lighter penalty (*i.e.*, penalty for attempted rape) than the heavier penalty which the act as committed should have incurred (*i.e.*, penalty for consummated rape). It goes without saying, therefore, that the difference in the lengths of period of incarceration is considerable and, insofar as borderline cases of attempted *vis-à-vis* consummated rape of minors are concerned, appears to be too high a cost to be paid for unclear definitions of the genital contact that distinguish between the two stages of commission.

Finally, as raised during deliberations, there also appears to be a distortion in the scale of penalties involving rape, sexual assault and acts of lasciviousness under the RPC, as amended, *vis-à-vis* sexual intercourse and lascivious conduct under Section 5 (b) of R.A. 7610, as amended. Specifically, the Court notes, upon the juxtaposition of these crimes and their prescribed penalties, that acts of lasciviousness under the RPC in relation to R.A. 7610 and lascivious conduct under R.A. 7610 warrant severe punishments of *reclusion temporal* in its medium period and *reclusion temporal* in its medium period to *reclusion perpetua*, respectively. Comparatively, however, attempted rape carries a penalty which is two degrees lower than the prescribed penalty or *prision mayor*. Stated differently, the crime of attempted rape effectively carries a lighter penalty when compared to acts of lasciviousness and lascivious conduct. This, despite the reasonable conclusion that the crime of attempted rape rises from the more detestable criminal intent to have sexual intercourse with the minor victim against her will.

Thus, and in view of the constitutional limitation on the Court, it therefore entreats the Legislature to reinterrogate and examine this inconsistency in the scale of penalties in rape, sexual assault, acts of lasciviousness, and lascivious conduct, in order that they may most accurately approximate and reflect the penalty that each crime truly merits.

III
Application of the foregoing parameters in the present case

Applying this frame of analysis to the instant appeal, the Court finds that the lower courts correctly found herein appellant guilty of consummated rape, on both accounts. Demonstrably, AAA's account in open court vividly described how appellant's penis was hard and erect as he kept trying to penetrate her vagina as antecedent for full penetration, eventually succeeding to introduce his erect penis on the vulval cleft of her vagina, to wit:

Q: After he undressed himself and you, by the way, who did he undressed first?

A: Him, sir.

Q: As he was undressing himself, did you not [try] to go out of the house?

COURT:

Put on record that the witness is crying.

A: No, sir.

Q: After he undressed you, what did he do?

A: He mounted on me, sir.

Q: After he mounted on top of you, what did he do?

A: He wanted to insert his penis in my vagina, sir.

Q: How did you know that he wanted to do that?

A: He told me, sir.

Q: Did you see his penis?

A: Yes, sir and I also felt it.

Q: Was it hard?

A: Yes, sir.

Q: But was he able to fully penetrate your vagina?

A: No, sir.

Q: Using the female doll, at what part of your vagina where his penis was at that time?

A: *Dito po sa may gitna.*

Q: Witness pointed to the pelvic area. When you say sa*may gitna*, you mean *sa may hiwa*?

A: Yes, sir.

Q: Why he wasn't *(sic)* fully inserted his penis?

A: I was fighting, sir. [150] (Emphasis and underscoring supplied)

In the brief excerpt of AAA's testimony, the crucial facts of the appellant's erect penis and its touching of her vulval cleft (*i.e.*, *"sa may gitna," "sa may hiwa"*) were established categorically and beyond doubt, and sufficiently established that the minimum penile-vaginal contact between the penis and the vulval cleft to enable a finding of consummated rape was, in fact, obtained.

The Court further finds that the CA erred in appreciating both incidents of rape as statutory. On the contrary, only the rape as charged under Criminal Case No. 1453-V-14 is statutory in nature, with AAA aged 10 years old at the time of the rape. On the other hand, the rape as charged under Criminal Case No. 1454-V-14 is simple rape, with AAA at age 13 at the time of said incident.

Further, appellant's attempts at ousting the positive and unequivocal testimony of the minor AAA are of no moment, as minor inconsistencies that are irrelevant to the elements of the crime charged are not material and will not sustain an acquittal. [151] Furthermore, jurisprudence is also replete with pronouncements from this Court that in child sexual abuse cases, the child victim's disclosure is the most important evidence of sexual abuse, [152] which in this case is further physically corroborated by medical evidence.

Imputations of concoctions and false testimonies are also of no import as it is likewise well-entrenched in our jurisdiction that courts are rightly inclined to lend credence to testimonies of young offended parties in charges of sexual abuse, considering not only their relative

vulnerability but also the sheer trauma, scandal, and undue exposure brought on by a public trial, which the offended minor would reasonably wish to avoid if not for the fact that her accusations are as inconvenient as they are true. What is decisive in a rape charge is that the commission of rape by the accused against the complainant has been sufficiently proven. In this respect, the testimony of AAA, even on its own, is credible, and sufficiently sustains a conviction. Further, the CA correctly affirmed the RTC with respect to its non-appreciation of the qualifying circumstance of the stepdaughter-stepfather relationship between AAA and appellant, since the marriage between AAA's mother, BBB, and appellant was only alleged in the Information but not proved.

A Final Note

The irreversibility of the crime of rape is not lost on the Court, and the rape myths that persist, the ambient sexism that color the moral imaginations, and the stigma that hounds its victims must all be examined under the light, unvarnished, if society is to meet around the central, shared values of human dignity and life. The Court must be able to interrogate the darkest corners of crimes as closely as possible to ask how justice can be truly served in these spaces, lest it betray a mere artifice of its civilities. Perhaps no truer than in crimes that are too confronting, the Court must be able to put a human face to the suffering and refuse to be too offended to call things for what they are. At the risk of testing its strength under the weight of its decisions, the Court must remain honest, clear-sighted and unflinching, for to look away is violence.

WHEREFORE, the Court **DISMISSES** the appeal and **ADOPTS** with **MODIFICATION** the findings of fact of Branch 172, Regional Trial Court of Valenzuela City, as affirmed by the Court of Appeals in its Decision dated January 15, 2019 in CA-G.R. CR-HC No. 09405, and **AFFIRMS** said Decision with **MODIFICATION**, and hereby finds appellant Efren Agao *y* Añonuevo **GUILTY** beyond reasonable doubt of one (1) count of Statutory Rape in Criminal Case No. 1453-V-14, and one (1) count of Simple Rape in Criminal Case No. 1454-V-14 through sexual intercourse, for which he is sentenced to suffer the penalty of *reclusion perpetua* for each count. [153] The Court further **AFFIRMS** the award of damages pursuant to prevailing jurisprudence.

The letter [154] dated October 23, 2019 of Atty. Julie May Taguiam, Officer-in-Charge, Inmate Documents and Processing Division of the Bureau of Corrections, New Bilibid Prison Reservation, Muntinlupa City, in compliance with the Resolution [155] dated August 19, 2019, informing the Court that appellant was received for confinement at the New Bilibid Prison on May 27, 2017 is **NOTED**.

SO ORDERED.

Hernando, Zalameda, M.V. Lopez, Gaerlan, Rosario and *Dimaampao, JJ.*, concur.

Gesmundo, C.J., see separate concurring opinion.

Leonen, J., I dissent. See separate opinion.

Lazaro-Javier, * *J.*, took no part.

Inting, ** *J.Y. Lopez* ** and *Kho, Jr.,* ** *JJ.*, are on official business.

Singh, ** *J.*, is on official business but left her vote; see attached separate concurring opinion.

Footnotes

* No part.

** On official business.

1. *See* Notice of Appeal dated February 13, 2019, CA*rollo*, pp. 126-127.

2. Records, p. 105.

3. AN ACT EXPANDING THE DEFINITION OF THE CRIME OF RAPE, RECLASSIFYING THE SAME AS A CRIME AGAINST PERSONS, AMENDING FOR THE PURPOSE ACT NO. 3815, AS AMENDED, OTHERWISE KNOWN AS THE REVISED PENAL CODE AND FOR OTHER PURPOSES or The Anti-Rape Law of 1997, dated September 30, 1997.

4. AN ACT PROVIDING FOR STRONGER DETERRENCE AND SPECIAL PROTECTION AGAINST CHILD ABUSE, EXPLOITATION AND DISCRIMINATION, PROVIDING PENALTIES FOR ITS VIOLATION, AND FOR OTHER PURPOSES or the Special Protection of Children Against Child Abuse, Exploitation and Discrimination Act, dated June 17, 1992.

5. The identity of the victim or any information which could establish or compromise his/her identity as well as those of his/her immediate family or household members, shall be withheld pursuant to R.A. 7610, titled "AN ACT PROVIDING FOR STRONGER DETERRENCE AND SPECIAL PROTECTION AGAINST CHILD ABUSE, EXPLOITATION AND DISCRIMINATION, PROVIDING PENALTIES FOR ITS VIOLATION AND FOR OTHER PURPOSES," approved on June 17, 1992; R.A. 9262, titled "AN ACT DEFINING VIOLENCE AGAINST WOMEN AND THEIR CHILDREN, PROVIDING FOR PROTECTIVE MEASURES FOR VICTIMS, PRESCRIBING PENALTIES THEREFOR, AND FOR OTHER PURPOSES," approved on March 8, 2004; and Section 40 of A.M. No. 04-10-11-SC, otherwise known as the "RULE ON VIOLENCE AGAINST WOMEN AND THEIR CHILDREN" (November 15, 2004). (See footnote 4 in *People v. Cadano, Jr.*, 729 Phil. 576, 578 [2014], citing *People v. Lomaque*, 710 Phil. 338, 342 [2013]. *See also* Amended Administrative Circular No. 83-2015, titled "PROTOCOLS AND PROCEDURES IN THE PROMULGATION, PUBLICATION, AND POSTING ON THE WEBSITES OF DECISIONS, FINAL RESOLUTIONS, AND FINAL ORDERS USING FICTITIOUS NAMES/PERSONAL CIRCUMSTANCES," dated September 5, 2017).

6. Records, p. 105.

7. Certificate of Arraignment, *id.* at 31.

8. TSN, March 1, 2016, pp. 9-12.

9. *Supra* note 5.

10. *Id.*

11. TSN, March 1, 2016, p. 4.

12. *Id.* at 5.

13. *Id.* at 6-8.

14. *Id.* at 9.

15. The Court notes that while the term "vagina" may have been previously used in some jurisprudential pronouncements as the global term to refer to the female genitalia, the "vagina" is specifically defined as "a neuromuscular vault connecting to the cervix of the uterus that unsheathes the penis during sexual intercourse and allows passage of the newborn infant during birth." [Aikaterini Deliveliotou and George Creatsas, *Anatomy of the Vulva*, THE VULVA: ANATOMY, PHYSIOLOGY AND PATHOLOGY (Eds. Farage, M. and Maibach, H.) (2006), pp. 5-6.]

16. TSN, March 1, 2016, p. 10.

17. Records, pp. 6-7; in her *Sinumpaang Salaysay*, AAA recounts:

    [Tanong]: Ano naman ang mga sumusunod pang pangyayari noong unang beses ka niyang gahasain noong July 2010?

    [Sagot]: Nung natutulog po ako sa may Northville I, Bignay po hinihipuan niya po ako sa ari [ko po] tapos inaalis [ko po] yung kamay niya tapos po nilalagay niya ulit. Tapos sinarado niya po yung pinto tapos inumpisahan niya [na po] akong gahasain. **Hinuhubaran po niya ko pati rin po siya naghuhubad din tapos pumatong nap o *[sic]* siya sa akin tapos pinipilit po niyang ipasok yung ari niya sa ari ko pero lumalaban po ako kaya hindi niya po naipapasok** tapos po sinabi [ko po] na ayoko po tapos magagalit po siya sasabihin niya sa akin na wag na daw po akong lalapit at ako na rin daw po ang bahala sa pag-aaral ko. Natatakot po ako nung mga oras na yun.

    T: Maaari mo bang sabihin kung ilang beses pa ulit nangyari yung sinasabi mong panggagahasa sa iyo ni Efren?

    S: Simula nung unang beses niya kong gahasain,**mga tatlong beses po sa isang lingo niya ako gahasain magpapalipas lang siya ng dalawang araw tapos uulitin na naman po niya yun**. Nung lumipat po kami sa Canuway West noong January 2012, ganun pa rin po ginagawa niya sa akin palagi niyang dinidikit yung ari niya sa ari ko hindi lang niya naipapasok kasi po lumalaban ako. (Emphasis supplied)

18. TSN, March 1, 2016, p. 11.

19. *Id.* at 9-12; in her own words, AAA related before the RTC, thus:

    PROSECUTOR: Do you remember around July 2010 when you were Grade 4, as you were sleeping something happened between you and Efren?

    AAA: Yes, sir.

    Q: Where were you living at that time?

    A: Canuway West.

    Q: Before Canuway West, where were you living?

    A: Northville I, Bignay.

    Q: Will you tell us what happened at that time?

    A: When I was sleeping, sir.

    Q: Around what time was this?

    A: 7 am.

    Q: As you were sleeping what happened?

    A: He touched me on my vagina, sir.

    Q: You said you were sleeping, when he was *hinihipuan ka*, what happened?

    A: I felt that there is a *malikot na gumagapang sa hita ko*.

    Q: So, when you say you felt, you woke up?

    A: Yes, sir.

    Q: And when you wake up, who did you see?

    A: Efren Agao, sir.

    Q: When you saw him what happened?

    A: He immediately put his hand on my vagina and suddenly he removed his clothes and also removed my clothes.

    Q: At that time, where was your mother?

    A: She is in her place of work.

    Q: Other than your mother, you and Efren, who else was living in that house at that time?

    A: None, sir.

    Q: When that happened did you not shout to get the attention probably of your neighbor?

    A: Not anymore, sir, because he told me not to tell anyone about it.

    Q: After he undressed himself and you, by the way, who did he [undress] first?

    A: Him, sir.

    Q: As he was undressing himself, did you not [try] to go out of the house?

    COURT: Put on record that the witness is crying.

    A: No, sir.

    Q: After he undressed you, what did he do?

    A: He mounted on me, sir.

    Q: After he mounted on top of you, what did he do?

    A: He wanted to insert his penis in my vagina, sir.

    Q: How did you know that he wanted to do that?

    A: He told me, sir.

    Q: Did you see his penis?

    A: Yes, sir and I also felt it.

Q: Was it hard?

A: Yes, sir.

Q: But was he able to fully penetrate your vagina?

A: No, sir.

Q: Using the female doll, at what part of your vagina where his penis was at that time?

A: *Dito po sa may gitna*.

Q: Witness pointed to the pelvic area. When you say *sa may gitna*, you mean *sa may hiwa*?

A: Yes, sir.

Q: Why he wasn't fully inserted his penis?

A: I was fighting, sir.

Q: How?

A: I was kicking him, sir.

Q: How did he react when you kick him?

A: He get angry, sir.

Q: What did he say to you?

A: *Wag na daw po ako lalapit sa kanya. Ako na din daw po bahala sa pag-aaral ko.*

Q: How did you feel at that time?

A: I was afraid, sir.

Q: Did you bleed?

A: No, sir.

Q: How many times did he do those things to you?

A: Three times in a week, sir.

Q: Whenever he would do that, would he be able to fully penetrate in your vagina?

A: No, sir.

Q: Why not?

A: Because whenever he wanted to insert his penis I would fight him.(Emphasis supplied)

20. *Id.* at 13.
21. *Id.*
22. *Id.* at 20.
23. *Id.* at 22; AAA's testimony reads:

    Atty. Alipio: At any rate, before this incident happened, do you have any misunderstanding or ill feelings against Efren Agao?

    AAA: None, sir.

    Q: Do you know if Efren Agao will be convicted in this case, he will be imprisoned from 20 to 40 years?

    A: Yes, sir.

    Q: And yet you still maintain that Efren Agao raped you?

    A: Yes, sir.

24. *Id.* at 14.
25. *Id.* at 14-15.
26. Records, p. 10.
27. TSN, August 5, 2015, p. 6.
28. TSN, August 24, 2016, p. 4.
29. *Id.*
30. *Id.* at 5.
31. Records, pp. 105-112. Penned by Judge Nancy Rivas-Palmones.
32. *Id.* at 112.
33. *Id.* at 111.
34. *Id.* at 110.
35. 735 Phil. 234 (2014).
36. *Id.* at 247, Records, p. 109.
37. Records, pp. 110-111.

38. *Id.* at 111.

39. *Id.* at 112.

40. CA *rollo*, p. 13.

41. *Id.* at 40.

42. *Id.* at 81.

43. *Rollo*, pp. 3-19. Penned by Associate Justice Marie Christine Azcarraga-Jacob, with Associate Justices Remedios A. Salazar-Fernando and Amy C. Lazaro-Javier (now a Member of this Court) concurring.

44. *Id.* at 18-19, citing *People v. Jugueta*, 783 Phil. 806 (2016).

45. *Id.* at 9-10.

46. *Id.* at 13.

47. *Id.*

48. *Id.* at 13-14.

49. *Id.* at 17.

50. *Id.* at 17-18, citing *People v. Manggasin*, 365 Phil. 683 (1999).

51. *Id.* at 20-21.

52. *Id.* at 35-38. Manifestation with Profuse Apology dated November 18, 2019.

53. CA *rollo*, pp. 34-48.

54. *Rollo*, pp. 30-34. Manifestation and Motion in Lieu of Supplemental Brief dated November 6, 2019.

55. CA *rollo*, pp. 74-94.

56. *People v. De Guzman*, 840 Phil. 759, 765 (2018).

57. *People v. Castromero*, 345 Phil. 653, 662 (1997).

58. Since the passage of R.A. 8353, which expanded the definition of the crime of rape and re-classified it as a crime against persons.

59. David Archard, *The Wrong of Rape*, THE PHILOSOPHICAL QUARTERLY (2007), Vol. 57, No. 228, pp. 374-393.

60. Ruben F. Balane, *The Spanish Roots of Philippine Law*, ESTUDIOS DE DEUSTO (2018), Vol. 66, No. 1, pp. 23-31.

61. See *People v. Bon*, 411 Phil. 571, 579 (2003); *People v. Bormeo*, 292-A Phil. 691 (1993); *People v. Miclat, Jr.*, 435 Phil. 561 (2002).

62. AN ACT PROVIDING FOR STRONGER PROTECTION AGAINST RAPE AND SEXUAL EXPLOITATION AND ABUSE, INCREASING THE AGE FOR DETERMINING THE COMMISSION OF STATUTORY RAPE, AMENDING FOR THE PURPOSE ACT NO. 3815, AS AMENDED, OTHERWISE KNOWN AS "THE REVISED PENAL CODE," REPUBLIC ACT NO. 8353, ALSO KNOWN AS "THE ANTI-RAPE LAW OF 1997," AND REPUBLIC ACT NO. 7610, AS AMENDED, OTHERWISE KNOWN AS "THE SPECIAL PROTECTION OF CHILDREN AGAINST ABUSE, EXPLOITATION AND DISCRIMINATION ACT," dated March 4, 2022.

63. 262 Phil. 963, 977 (1990).

64. 461 Phil. 403, 419 (2003).

65. 366 Phil. 390, 415 (1999).

66. *People v. Orita*, *supra* note 63, at 976-977.

67. 303 Phil. 595 (1994).

68. *Id.* at 599.

69. *Id.* at 600.

70. *Id.* at 599-600.

71. 346 Phil. 513, 522 (1997).

72. *Supra* note 57.

73. *Id.* at 665.

74. *Id.* at 664-666.

75. *People v. Quiñanola*, *supra* note 65, at 410.

76. 362 Phil. 414 (1999).

77. *Id.* at 424, citing *People v. Caballes*, 340 Phil. 213, 225 (1997); *People v. Andan*, 336 Phil. 91, 115 (1997); *People v. Magana*, 328 Phil. 721, 745 (1996). (Italics supplied)

78. 364 Phil. 713, 724 (1999), citing *People v. Mangalino*, 261 Phil. 436 (1990). See also *People v. Echegaray*, 327 Phil. 349 (1996); *People v. Faigano*, 324 Phil. 212 (1996); *People v. Abella*, 298-A Phil. 661 (1993); *People v. Tesimo*, 281 Phil. 593 (1991); and *People v. Castillo*, 274 Phil. 940 (1991).

79. 367 Phil. 636 (1999).

80. *Id.* at 645.

81. 385 Phil. 912 (2000).

82. *Id.* at 920-922.

83. 423 Phil. 966 (2001).

84. *Id.* at 987-988.

85. 553 Phil. 655 (2007), citing *People v. Bascugin*, 473 Phil. 100 (2004).

86. *Id.* at 674-675.

87. 406 Phil. 947 (2001).

88. *Id.* at 961.

89. 420 Phil. 727 (2001).

90. *Id.* at 741.

91. 367 Phil. 755 (1999).

92. *Id.* at 764-765.

93. 417 Phil. 18 (2001).

94. 397 Phil. 607 (2000).

95. *Id.* at 616.

96. *Id.* at 617.

97. *Id.* at 618.

98. 427 Phil. 422 (2002).

99. *Id.* at 432.

100. *Id.* The Synopsis of the case states:

> The Supreme Court found no evidence beyond reasonable doubt that accused-appellant consummated the slightest penetration of Marilou's vagina. Consisting of only the bare and true words of the victim, there being no medico-legal examination report that would have cleansed her testimony of ambiguous references to the precise character of the sexual act, the evidence looms with the moral uncertainty that the penis of accused-appellant ever touched the *labia* of the *pudendum*. A perusal of the transcript of the testimony of Marilou disclosed repeated denials of penile insertion. Considering that there was neither testimonial nor physical evidence to provide adequate basis for the finding of consummated rape, the accused should only be properly punished for attempted rape.

101. *Id.* at 432-433. The testimony of the minor therein read in part:

> COURT:
>
> Let's make this clear.
>
> Q: The only thing that your father did to you while he was on top of you was to kiss you on the different parts of your body, is that the only thing that he did to you?
>
> **A: There was, maam, I felt that he was trying to insert his private part into my private part but I resisted that's why he got angry, maam.**
>
> **Q: Was he successful in inserting his private part into yours?**
>
> **A: He tried to insert his private part into my private part and I felt pain, but it did not enter into my private part, it merely made *"dikit,"* maam.**
>
> **Q: And despite that length of time you are telling the Court that your father was not able to penetrate you?**
>
> A: No, maam, he was also trying to insert his finger to my private part. I felt pain and I resisted and I was able to ward off his attempt, maam.
>
> Q: So he was not able to insert his finger into your private part, is that what you mean?
>
> A: He was not able to insert his finger into my private part, maam, but I felt pain because he was forcing his finger into mine.
>
> Q: Does the court understand that he was not able to insert his private part into yours?
>
> A: No, maam, only "*dikit*." (Emphasis supplied)

102. 600 Phil. 530, 542 (2009).

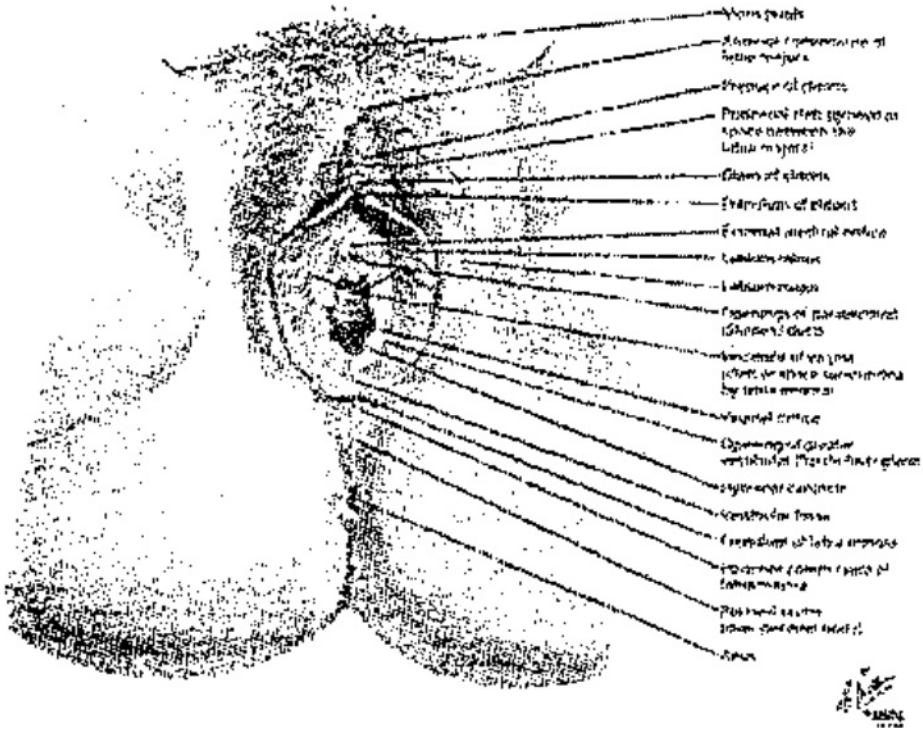
103. *Id.* at 539-540.

104. Opinion of Senior Associate Justice Leonen, p. 1.

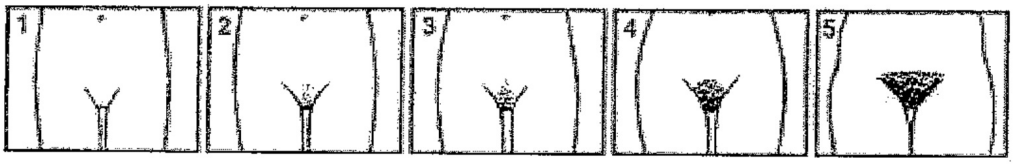
105. *Id.*

106. Aikaterini Deliveliotou and George Creatsas, *Anatomy of the Vulva*, THE VULVA: ANATOMY, PHYSIOLOGY AND PATHOLOGY, *supra* note 15, at 1.

107. *Id.* at 1-8. The anatomy of the vulva is illustrated below as follows.



(*Id.* at 2) As suggested by Associate Justice Singh and for ease of reference of members of the bench and bar who do not have sufficient medical backgrounds, consider below the illustration of the external appearance of the female genitalia, with the vulval cleft appearing as the fleshy external part of the vagina in the illustrated stages of female pubic hair development, as it appeared in Miranda A. Farage, Howard I. Maibach, Aikaterini Deliveliotou and George Creatsas, *Changes in the Vulva and Vagina Throughout Life*, THE VULVA: ANATOMY, PHYSIOLOGY AND PATHOLOGY (Eds. Farage, M. and Maibach, H.) (2006), p. 32:



108. Aikaterini Deliveliotou and George Creatsas, *Anatomy of the Vulva*, THE VULVA: ANATOMY, PHYSIOLOGY AND PATHOLOGY, *supra* note 15, at 2-3.

109. The cleft between the *"labia majora"* is called the pudendal cleft, or "cleft of Venus," and it contains and protects the other, more delicate structures of the vulva. These are lined by skin on the outside and basal layer of cells *(stratum malpighii)*, a thin granular layer on the insides. (Dr. Anya Mandal, MD, *Vulva Structures*, NEWS-MEDICAL-NET, available at <https://www.news-medical.net/health/Vulva-Structures.aspx>.)

110. *People v. Orita*, *supra* note 63, at 976-977.

111. *People v. Escober*, *supra* note 71, at 522, citing *People v. Salinas*, 302 Phil. 305 (1994).

112. Separate Concurring Opinion of Associate Justice Singh, p. 1.

113. Kliegman, St. Geme, Blum, Shah. Tasker and Wilson (2020) (21st ed), Elsevier.

114. *Id.* at 2899.

115. Concurring Opinion of Chief Justice Gesmundo, pp. 3-4.

116. *People v. Campuhan*, *supra* note 81, at 925-926.

117. See *People v. Orande*, *supra* note 64.

118. See *People v. De la Peña*, 342 Phil. 526 (1997).

119. See *People v. Lazaro*, 319 Phil. 352 (1995).

120. *People v. Campuhan*, *supra* note 81, at 926.

121. See *People v. Talan*, 591 Phil. 812 (2008).

122. See *People v. Tolentino*, *supra* note 91.

123. See *People v. Francisco*, *supra* note 87.

124. See *People v. Arce, Jr.*, *supra* note 93.

125. *People v. Comanda*, *supra* note 85, at 664

126. A.M. No. 00-4-07-SC, dated November 21, 2000.

127. RULE ON EXAMINATION OF CHILD WITNESS, Sec. 1.

128. *Id.* at Sec. 2.

129. *Id.* at Sec. 10.

130. *Id.* at Sec. 11.

131. *Id.* at Sec. 16.

132. *Id.* at Sec. 17.

133. *Id.* at Sec. 20.

134. *Id.* at Sec. 19.

135. UNICEF, THE CHILD WITNESS: A TRAINING MANUAL, p. 40.

136. *Id.*

137. Elita Joy G. Pinga and Anna Victoria M. Veloso, *The Child Witness and the Law: The Truth (And Nothing But)*, PUBLIC POLICY, (July-December 2006) Vol. X, No. 2, pp. 70-71, available at <https://cids.up.edu.ph/wp-content/uploads/2022/03/The-Child-Witness-and-the-Law-vol.10-no.2-July-Dec-2006-4.pdf>.

138. Rachel Zajac, Julien Gross and Harlene Hayne, *Asked and Answered: Questioning Children in the Courtroom*, PSYCHIATRY, PSYCHOLOGY AND LAW, Vol. 10 Number 1, 2003, p. 199. The study adds:

> Finally, the unique structure of the cross-examination interview may hinder a child's ability to provide reliable and valid testimony. Contrary to interactions outside the courtroom, where adults readily provide a framework for children's recollections, children's narratives in the legal setting are far less supported. During cross-examination, the defence lawyer asks questions in such a way as to structure and control the information to be recounted. Structural cues that children rely on, such as those that signal a change in conversation topic, are seldom present during the cross-examination process. (Citations omitted)

139. Annie Cossins, *Cross-Examination in Child Sexual Assault Trials: Evidentiary Safeguard or an Opportunity to Confuse?* MELBOURNE UNIVERSITY LAW REVIEW, Vol. 33 (2009), p. 75, citing Judy Cashmore, The Evidence of Children (1995), Crime Prevention Committee, Parliament of Victoria, Combating Child Sexual Assault: An Integrated Model, Parl Paper No. 47 (1995) 191; New South Wales, Royal Commission into the New South Wales Police Service, Final Report (1997) vol. 5, 1086.

140. John E. Myers, *Decade of International Legal Reform Regarding Child Abuse Investigation and Litigation: Steps toward a Child Witness Code*, MCGEORGE LAW REVIEW, 28 Pac. L. J. 169 (1996), available at <https://scholarlycommons.pacific.edu/mlr/vol28/iss1/>.

141. See *People v. Francisco*, *supra* note 87.

142. See *People v. Dimapilis*, *supra* note 94.

143. *Id.*

144. Concurring Opinion of Chief Justice Gesmundo, p. 8.

145. Concurring Opinion of Chief Justice Gesmundo, p. 8.

146. *People v. Banzuela*, 723 Phil. 797, 820 (2013).

147. Concurring Opinion of Chief Justice Gesmundo, pp. 5-6.

148. See *Cruz v. People*, 745 Phil. 54, 74 (2014).

149. *People v. Baluyot*, G.R. No. 227422, March 18, 2019 (Unsigned Resolution).

150. TSN, March 1, 2016, pp. 10-11.

151. See *People v. Linsie*, 722 Phil. 374, 384 (2013).

152. *People v. Bohol*, 415 Phil. 749, 761 (2001).

153. In accordance with the guidelines as laid down in *People v. Tulagan*, G.R. No. 227363, March 12, 2019, 896 SCRA 307.

154. *Rollo*, p. 27.

155. *Id.* at 25-26.

Concurring Opinion

GESMUNDO, C.J.:

I agree with the *ponencia* of our esteemed colleague Associate Justice Alfredo Benjamin S. Caguioa and commend his efforts at enriching jurisprudence. The *ponencia* sets a fine line between consummated and attempted rape based on a visual presentation and "biologically accurate description of what constitutes the slightest penile contact" [1] to better guide the bench in resolving such cases. The *ponencia* clarifies what jurisprudence means by "the slightest touch," that amounts to consummated rape, to wit:

> [R]ape x x x reaches the consummated stage **as soon as the penis penetrates the cleft of the *labia majora***, also known as the vulval or pudendal cleft, or the fleshy outer lip of the vulva, in *even at the slightest degree*. Simply put, mere introduction, however slight, ***into the cleft*** of the *labia majora* by a penis that is capable of penetration, regardless of whether such penile penetration is thereafter fully achieved, consummates the crime of rape.
>
> xxx xxx xxx
>
> With careful and decisive reference to the anatomical illustration above, the Court clarifies that when jurisprudence refers to "mere touching," it is not sufficient that the penis grazed over the *pudendum* or the fleshy surface of the *labia majora*. **Instead, what jurisprudence considers as consummated rape when it describes a penis touching the vagina is the penis *penetrating the cleft of the labia majora, however minimum or slight*.** In other words, the penis' mere touch of the *pudendum* would not result in any degree of penetration since the *pudendum* is a muscular part located over the *labia majora* and therefore mere touch of or brush upon the same would only constitute attempted rape, not consummated. Similarly, a penis' mere grazing of the fleshy portion, not the vulval cleft of the *labia majora*, will also constitute only attempted rape and not consummated rape, since the same cannot be considered to have achieved the slightest level of penetration. **Stated differently, the Court here elucidates that "mere touch" of the penis on the *labia majora***

legally contemplates not mere surface touch or skin contact, but the slightest penetration of the cleft of the *labia majora*, however minimum in degree. [2] (Emphases supplied)

This is consistent with the *En Banc* ruling in *People v. Campuhan* [3] *(Campuhan)* that it is necessary to "carefully ascertain whether the penis of the accused in reality entered the labial threshold of the female organ to accurately conclude that rape was consummated. Failing in this, the thin line that separates attempted rape from consummated rape will significantly disappear." [4] The visual explanation provided in the *ponencia* further clarifies the delineation.

Indeed, the *labia majora* begins from the walls of the vulva to the cleft of the *labia majora* or major lips. [5] The cleft between the *labia majora* is called the pudendal cleft or "cleft of Venus," and it contains and protects the other, more delicate structures of the vulva. [6] When the offender's penis touches the cleft of the *labia majora*, it already constitutes carnal knowledge because such act shows the consummated effort of the offender to penetrate the more delicate structures of the vulva.

I write this Concurring Opinion to express some of my thoughts on the matter.

First, while a victim's testimony on the exact point of contact is ideal, to my mind, a witness — especially a child — may find it challenging to accurately point to the anatomical part of the body that the accused's penis actually touched. Beyond the unfamiliarity of a child with the parts of one's sexual organ and the correct words to use, the harrowing experience of rape may also hinder the victim from accurately recalling the precise touchpoint. Fortunately, in this case, the child witness was able to pinpoint the body part that the penis had touched. [7] This may not hold true in all situations. For instance, in *People v. Ombreso*, [8] the Court cautioned that when a victim "is of such age that she cannot be expected to make a distinction between partial and full penile entry, her testimony that the accused's penis did not enter her sex organ should be taken together with the rest of her testimony and not taken out of context." [9] Moreover, in *Campuhan*, the Court acknowledged the limitations of a child witness. In said case, the child witness answered "yes" to the question of whether the penis of the accused *touched* her organ, but when further asked if the penis *penetrated* her organ, she replied "no." The Court recognized that the child "could not have been aware of the finer distinction between touching and penetration," her "vocabulary is yet as underdeveloped as her sex," and her "language is bereft of worldly sophistication." Hence, the Court looked into other circumstances to assess whether the accused "made efforts to penetrate" or "whether the penis was erect" as to consummate the crime. [10]

On these scores, I deem it necessary to reiterate jurisprudence stating that when the necessary genital contact is not fully established, courts can anchor their findings on other aspects that could reveal the occurrence of penetration.

In *People v. Gabayron*, [11] the witness narrated that she cried in pain as the accused tried to insert his penis. When asked to be specific on how deep the accused was able to insert the organ, the witness simply answered *"I do not know, sir, how far it went, but I felt the pain."* [12] The Court held that the victim's testimony established without a doubt that the accused's organ "managed to come into contact with her vagina, *enough to cause her pain*." [13] In *People v. Orande*, [14] "the victim testified that she felt pain and her vagina bled," which the Court found to be "indisputable indications of slight penetration or, at the very least, that the penis indeed touched the *labia*." [15]

In another case, the Court held that "pain could be nothing but the result of penile penetration, sufficient to constitute rape." [16] Indeed, when the victim "[feels] pain inside her vagina," that indicates penetration. [17] I hasten to add, however, that the absence of pain or even bleeding does not necessarily mean lack of penetration, as shown in *People v. Deliola*, [18] where the accused tried to dispute that rape occurred based on the victim's testimony that she "felt no pain and her vagina did not bleed." The Court disagreed, and in affirming the conviction, held that it is "carnal knowledge, not pain nor bleeding, which is essential to consummate rape." The Court recognized that it is "possible for physiological manifestations of rape, such as pain, to appear only after the incident." [19]

To stress, where the victim did not specifically state in her testimony that the offender's penis penetrated her vagina, whether fully or partially, or that the offender's penis distinctively touched the cleft of her *labia majora*, there may still be a conclusion that rape was consummated based on **any** of the following circumstances:

1. The victim's testimony showed that she felt pain in her genitals;[20]
2. Bleeding occurred in the victim's genitalia;[21]
3. The *labia minora* was gaping with redness;[22]
4. Discoloration in the inner lips of the vagina;[23]
5. The hymenal tags were no longer visible;[24] or
6. Injury to the sex organ of the victim.[25]

Verily, the fact of the offender's penis touching the cleft of the *labia majora* of the victim may be gathered from the totality of evidence aside from the victim specifically pinpointing the precise part of the vulva touched or penetrated by the penis.

Second, I deem it necessary to discuss the effects of the *ponencia*'s pronouncement to crimes closely related to consummated rape, particularly, attempted rape and acts of lasciviousness. The *ponencia*'s disquisition demarcates between consummated rape and attempted rape by clarifying the minimum physical contact needed to consummate the crime, thus: "**as soon as the penis penetrates the cleft of the *labia majora*" even at the slightest degree**. [26] Prescinding from this, there is no consummated rape when there is a failure of the penis to touch the cleft of the *labia majora*. Again, the *labia majora* begins from the walls of the vulva to the cleft of the *labia majora*. Accordingly, if the penis of the offender only touched the extreme external portion of the *labia majora*, which is far from the pudendal cleft, then such act cannot be considered as consummated rape. Absent any showing of at least this minimal level of penetration, the crime can only be attempted rape, if not acts of lasciviousness. [27]

As regards the difference, case law provides that "the intent of the offender to lie with the female defines the distinction between attempted rape and acts of lasciviousness." [28] The Court has explained attempted rape to wit:

> In attempted rape, therefore, the concrete felony is rape, but the offender *does not perform all the acts of execution of having carnal knowledge*. If the slightest penetration of the female genitalia consummates rape, and rape in its attempted stage requires the commencement of the commission of the felony *directly by overt acts* without the offender performing all the acts of execution that should produce the felony, the only means by which the overt acts performed by the accused can be shown to have a causal relation to rape as the intended crime is to make a clear showing of his **intent to lie with the female**. Accepting that intent, being a mental act, is beyond the sphere of criminal law, that showing must be through his overt acts directly connected with rape. He cannot be held liable for attempted rape without such overt acts demonstrating the intent to lie with the female. In short, the State, to establish attempted rape, must show that his overt acts, should his criminal intent be carried to its complete termination without being thwarted by extraneous matters, would ripen into rape, for, as succinctly put in *People v. Dominguez, Jr.*: *"The gauge in determining whether the crime of attempted rape had been committed is the commencement of the act of sexual intercourse, i.e., penetration of the penis into the vagina, before the interruption."* [29]
> (Emphasis supplied; italics in the original)

For clarity, "intent to lie with the female" should be read simply as "intent to penetrate" her genital organ. Attempted rape is committed when the touching of the "cleft of the *labia majora*," as discussed by the *ponencia*, is "coupled with the intent to penetrate." [30]

The distinction between attempted rape and acts of lasciviousness is somewhat clear when the penis does not touch the external surface of the vagina. In borderline cases, however, where there is a "grazing of the surface of the female organ," courts have to assess the character of the other overt acts if they reveal an intention to penetrate the victim's vagina, rather than to just satisfy lewd desires. This begs the question: **How is this intent to penetrate manifested, or what overt acts reveal such intent?**

In *People v. Manuel*, [31] the "intent to penetrate" was found to have been manifested through these overt acts: "forcibly removing AAA's shorts and underwear, lying on top of her, mounting and restraining her hands and feet, and holding his penis with his left hand trying to insert it into her vagina." The Court held that the totality of these acts clearly demonstrates the accused's objective to insert his penis into her vagina, and thus, was guilty of attempted rape. The accused was unsuccessful in penetrating AAA's vagina due to her desistance.

In *Cruz v. People*,[32] however, the Court emphasized the need for an erect penis. It stated that "[t]he intent to penetrate is manifest only through the showing of the penis capable of consummating the sexual act touching the external genitalia of the female." It was held that the act of embracing and touching the vagina and breasts "did not directly manifest his intent to lie with her. The lack of evidence showing his erectile penis being in the position to penetrate her when he was on top of her deterred any inference about his intent to lie with her." [33]

In *People v. Banzuela*, [34] the Court held that the act of laying on the ground, along with undressing and kissing the victim, does not constitute attempted rape, "absent any showing that [the accused] actually commenced to force his penis" into the victim's sexual organ. It was found that the accused was not able to commence the act of intercourse "as he still had his pants on." [35]

In *People v. Pareja*, [36] the accused was found to have "commenced the commission of rape by the following overt acts: kissing [the victim's] nape and neck; undressing her; removing his clothes and briefs; lying on top of her; holding her hands and parting her legs; and trying to insert his penis into her vagina." [37]

In instances where intent to penetrate is not discernible from the accused's external acts, the crime will only fall under acts of lasciviousness. Notable is the case of *People v. Dadulla* [38] wherein the accused opened the zipper and buttons of the victim's shorts and touched her, but when the latter hid under the bed, the accused employed force by pulling her out. The Court held that the accused's overt acts manifested lewd designs but not an intent to penetrate. Hence, the accused was found liable only for acts of lasciviousness. [39] In *People v. Bugarin*, [40] the accused was also found guilty only of acts of lasciviousness because his act of kissing the victim's genitalia was not considered as revealing an intent to commit rape and the former was not even shown to have at least placed himself on top of the victim. [41] It has been held that "perpetration of the preparatory acts" would not render an accused guilty of an attempt to commit such felony. [42] The Court has held that "[s]uch acts, being equivocal, had no direct connection to rape. As a rule, preparatory acts are not punishable under the Revised Penal Code *(RPC)* for as long as they remained equivocal or of uncertain significance, because by their equivocality no one could determine with certainty what the perpetrator's intent really was." [43]

Third, the pronouncement of the *ponencia* regarding the point of reference when there is carnal knowledge — the offender's penis touching the cleft of the *labia majora* of the victim — may equally be applied in the crime of rape by sexual assault. Rape by sexual assault is defined under paragraph 2 of Article 266-A of the RPC, as follows:

> 2) By any person who, under any of the circumstances mentioned in paragraph 1 hereof, shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.

In *Lutap v. People*, [44] the Court held that the treatment of "touching" and "entering" in penile rape may be applied in analogy when there is a crime of rape by sexual assault. It was clarified therein that the mere touching of a female's sexual organ, by itself, does not amount to consummated rape by sexual assault. At the very least, there must be an act of insertion or an attempt to insert offender's finger before it can be considered as rape by sexual assault, whether consummated or attempted. Absent such acts, the crime committed may only be acts of lasciviousness. [45]

Applying the doctrine laid down by the *ponencia*, when any instrument or object, such as a finger, touches the cleft of the *labia majora*, then such act is now considered as a consummated crime of rape by sexual assault because it completes the act of penetration of the genitalia of the female victim. If there is no touching of the cleft of the *labia majora*, then it can either be attempted rape by sexual assault or acts of lasciviousness, as the case may be.

Lastly, it is necessary to stress that the disposition in the *ponencia* is relevant as regards rape by sexual intercourse or through penile penetration **against a woman**, pursuant to Art. 266 (a) of the RPC, as amended by the Anti-Rape Law of 1997, [46] which then defined rape by sexual intercourse as committed by a "man" having "carnal knowledge of a woman."

Notably, Republic Act No. 11648 [47] has recently amended this RPC provision and has redefined this first type of rape as that committed "by a **person** who shall have carnal knowledge of **another person**." The legislative deliberations show that the shift in language was done to make the crime gender-neutral or "gender-friendly." [48] While this is a welcome development in the nation's criminal law, it opens a new dimension to develop in jurisprudence, thus: what would legally constitute carnal knowledge between non-heterosexual individuals? In the meantime, suffice it to say that the disposition in this case relates only to penile penetration against a woman. The repercussions of these statutory changes, *i.e.*, of the accused from "man" to "person" and of the victim from "woman" to "another person," can be scrutinized in proper future cases.

As a final note, "the prosecution bears the primary duty to present its case with clarity and persuasion, to the end that conviction becomes the only logical and inevitable conclusion." [49] It is for this purpose that the clarification in the *ponencia* is important. The visual clarification in the *ponencia* will enable our prosecutors to present their cases with sufficient clarity. It will also provide our magistrates with definitive and anatomically precise guidance when deciding rape cases.

WHEREFORE, I vote to **DENY** the appeal and **CONCUR** with the *ponencia*.

Footnotes

1. *Ponencia*, p. 14.

2. *Id.* at 24-25.

3. 385 Phil. 912 (2000).

4. *Id.* at 927.

5. Dr. Ananya Mandal, Vulva Structures, News Medical Life Sciences, https://www.news-medical.net/health/Vulva-Structures.aspx#:~:text=The%20cleft%20between%20the%20"labia,granular%20layer%20on%20the%20insides. [last accessed: July 11, 2022]

6. Boundless, Chapter 26.5F: Vulva, Anatomy & Physiology, August 23, 2013 https://med.libretexts.org/Bookshelves/Anatomy_and_Physiology/Book%3A_Anatomy_and_Physiology_(Boundless)/26%3A_The_Reproductive_Sys [last accessed: July 11, 2022]

7. *Ponencia*, pp. 36-37.

Q: But was he able to fully penetrate your vagina?

A: No, sir.

Q: Using the female doll, at what part of your vagina where his penis was at that time?

A: *Dito po sa may gitna*.

8. 423 Phil. 966, 975 (2001). The testimony went as follows:

Q Was the penis of your uncle entered into your vagina?

A No, just here. (witness pointing to her vagina)

Q Lorlyn, if this is your vagina, where was the penis of your uncle?

A Just here. *(witness pointing to the upper part of the vagina opening)*

Q Where particularly, can you clearly demonstrate to the court where was the penis of your uncle in relation to your vagina?

A *Here. (witness pointing to the same spot)*

9. *Id.* at 981.

10. *People v. Campuhan*, *supra* at 924-925.

11. 343 Phil. 593 (1997).

12. *Id.* at 598. The testimony went as follows:

A It happened during that night he went home drunk and then he went to my bedroom, undressed me, kissed me on my lips and then downward and took off my panty.

Q After doing all those things, what happened next, if anything happened?

A **He tried to insert his organ into mine but it was very painful so, I cried in pain.** Then, he stopped, sir.

Q How far was he able to insert his organ that you felt the pain?

A **I do not know, sir, how far it went** but **I felt the pain.**

Q So what you want to tell this Honorable Court was that **his organ was able to reach a part of your organ, that's why you felt the pain?**

A **Yes, sir.** (Emphases supplied)

13. *Id.* at 608.

14. 461 Phil. 403 (2003).

15. *Id.* at 420.

16. *People v. Sanchez*, 320 Phil. 60, 72 (1995).

17. *Id.*; see also *People v. Gabayron*, *supra* at 608. But see *People v. Brioso*, 600 Phil. 530, 541-544 (2009), which cautions against convicting an accused for rape "solely on the basis of the pain experienced by the victim as a result of efforts to insert the penis into the vagina," explaining that pain "is subjective and so easy to feign." While the Court stated that "consummated rape can still be anchored on the victim's testimony that she felt pain in the attempt at penetration," it stressed that "penile penetration cannot be presumed from pain alone." However, in *People v. Banzuela* (723 Phil. 797, 818 [2013]), the Court held that pain suffered by the victim "is, in itself, an indicator of the commission of rape."

18. 794 Phil. 194 (2016).

19. *Id.* at 206.

20. *People v. Campuhan*, *supra* note 3 at 925-926; see also *People v. Castillo*, 727 Phil. 556, 574 (2014).

21. *People v. Orande*, *supra* at 420.

22. *People v. De la Peña*, 342 Phil. 526, 529 (1997).

23. *People v. Lazaro*, 319 Phil. 352, 363 (1995).

24. *People v. Campuhan*, *supra* at 926.

25. *People v. Talan*, 591 Phil. 812, 822 (2008).

26. *Ponencia*, p. 24.

27. *Cruz v. People*, 745 Phil. 54, 69 (2014).

28. *Id.* at 58.

29. *Id.* at 71-72.

30. *People v. Banzuela*, *supra* note 17 at 820.

31. G.R. No. 242278, December 9, 2020.

32. *Supra*.

33. *Id.* at 73-74.

34. *Supra*.

35. *Id.* at 820.

36. 694 Phil. 338 (2012).

37. *Id.* at 349.

38. 657 Phil. 442 (2011).

39. *Id.* at 455.

40. 339 Phil. 570 (1997).

41. *Id.* at 588.

42. *Cruz v. People*, *supra* at 72.

43. *Id.* at 72-73.

44. 825 Phil. 10 (2018).

45. *Id.* at 18.

46. Republic Act No. 8353.

47. An Act Providing for Stronger Protection Against Rape and Sexual Exploitation and Abuse, Increasing the Age for Determining the Commission of Statutory Rape, amending for the Purpose Act No. 3815, as amended, otherwise known as "The Revised Penal Code," Republic Act No. 8353, also known as "The Anti-Rape Law of 1997," and Republic Act No. 7610, as amended, otherwise known as the "Special Protection of Children Against Abuse, Exploitation and Discrimination Act," approved on March 4, 2022.

48. Bicameral Conference Committee on the Disagreeing Provisions of Senate Bill No. 2332 and House Bill No. 7836 (Increasing the Age for Statutory Rape), November 24, 2021, pp. 32-33.

> The Chairperson (Sen. Zubiri): Yes, we'd like to put the amendment, for the record, on Article 266-A. Rape; When and How it is Committed. "Rape is committed **by a person**. We **changed it from 'man' to 'person.'** Actually, these are all Risa Hontiveros' amendments where we reiterated also that we just made it **gender-friendly** x x x. For record purposes lang, all mention of 'man' becomes a 'person' and a 'woman' a 'person' as well — another 'person' — if that's all right.
>
> The Chairperson (Rep. Deloso-Montalla). Thank you, Mr. Chair. We have **no objection from the House**.

49. *People v. Manuel*, *supra* note 31; *People v. Pareja*, *supra* note 36 at 352.

Concurring and Dissenting Opinion

LEONEN, J.:

I would have concurred except that the *ponencia* introduces doctrine which I cannot countenance. I therefore dissent.

The experience of a rape survivor cannot be trivialized by abstract invocations of due process and mechanical references to anatomical drawings on the pretense of establishing a "clearer parameter" [1] and to "[loosen] the constricted uncertainty of semantics" [2] that allegedly accompany rape cases. "Honest justice" [3] cannot be had merely by reducing life-altering trauma into sterile diagrams divorced from the context of the offense itself.

With much respect, I fail to see why there is a necessity to discuss the various degrees of penetration in the guise of clarifying the "perceived uncertainty" [4] in the penalties for rape. Regretfully, the discussion regarding the anatomy of the vagina and its relation to penetration reverses established progressive doctrine, downplays the crime of rape, and makes invisible the sordid violation of the dignity of the victim.

Rape is no longer a crime against chastity. It is now a crime against the dignity of a human being.

Rape is not punished in degrees as the trauma that comes from it is not experienced in degrees. The woman and girl victim views the violation as a whole. To tell her that her experience is that of frustrated or attempted rape would be to disregard her experience, her trauma, and the violation of her dignity which the law punishes.

Continued male violence in our patriarchy hides within subtle legal distinctions which burden the victim disproportionately. In this case, the *ponencia* uses an amorphous yet misguided application of the rights of the accused without understanding the full patriarchal concept of rape. It, unfortunately, has not gone beyond rape as a protection of chivalry's male roles and stature *vis-à-vis* female.

There is no such thing as attempted rape. All rape is rape. All rape violates dignity. The finer points of the parts of the vagina touched by the penis is irrelevant.

The *ponencia*, regrettably, is not a progressive step. It will license once more the kind of masculinity that has cheapened women to sexual objects whose value is reduced to their vagina and the pleasure men derive from them.

I urge that we do not do the unnecessary: "clarify" doctrine when it is not needed and, in the process, contribute to the suffering of more women and girl victims.

I urge for the reconsideration of this further objectivization of women. We must reconsider for the sake of our wives, our daughters, and our granddaughters.

This case stemmed from an appeal of the January 15, 2019 Decision of the Court of Appeals finding accused-appellant Efren Agao y Añonuevo guilty beyond reasonable doubt of two counts of statutory rape under Article 266-A, paragraph 1, and Article 266-B of the Revised Penal Code, as amended, with relation to Republic Act No. 7610.

The Informations against accused-appellant read:

> Crim. Case No. 1453-V-14
>
> "That sometime in July 2010, in Valenzuela [C]ity, Metro Manila, and within the jurisdiction of this Honorable Court, the above-named accused, being the step-father of herein minor victim AAA, who was then 10 years old, DOB: (December 6, 1999), by means of force and intimidation, did then and there willfully, unlawfully and feloniously have sexual intercourse with said minor victim, against her will and without her consent, thereby subjecting the said minor victim to sexual abuse, which debased, degraded and demeaned her[] intrinsic [worth] and dignity as a human being.
>
> CONTRARY TO LAW."
>
> Crim. Case No. 1454-V-14
>
> "That sometime in January 2012, in Valenzuela City, Metro Manila and within the jurisdiction of this Honorable Court, the above-named accused being the step-father of herein minor victim AAA, who was then 13 years old [5] DOB: (December 6, 1999), by means of force and intimidation, did then and there willfully, unlawfully and feloniously have sexual intercourse with the said minor victim, against her will and without her consent, thereby subjecting the said minor to sexual abuse, which debased, degraded and demeaned her intrinsic

worth and dignity as human being.

CONTRARY TO LAW." [6]

According to the narration of facts, AAA's mother lived with accused-appellant and AAA treated him as her stepfather. AAA testified that the abuse started when she was 10 years old, when the accused-appellant would touch her genitals while bathing her. She added that the first incident of rape happened in July 2010, at about 7:00 a.m., when she awoke to accused-appellant touching her breasts and vagina and then trying to insert his penis into her vagina. Specifically, she testified that accused-appellant managed to have his erect penis touch the outer fold of her vagina, or the *labia majora*, but was unable to fully penetrate her vagina because she kept fighting back. [7] She stated that this incident happened again sometime in January 2012, but that accused-appellant was again unable to fully penetrate her vagina because she kept fighting back. [8]

When the incidents were reported to the police, AAA's physical examination showed no evident injury to her genitals. [9]

In a March 15, 2017 Joint Decision, the Regional Trial Court held accused-appellant guilty beyond reasonable doubt, noting that while "there was no laceration noted in AAA's hymen, with appellant's penis only merely touching the labia, the crime of rape was nevertheless consummated." [10]

The Court of Appeals affirmed the Joint Decision but made modifications on the award of damages. [11]

The *ponencia* affirms the statement of facts of the case and finds no issue with AAA's clear and categorical testimony of her harrowing experience. The charge for Criminal Case No. 1454-V-14, however, was modified from statutory rape to that of simple rape, since AAA was already 12 years old when the incident occurred in January 2012. [12]

I agree with these findings as well as the modification of the second criminal case to simple rape due to AAA's age at the time of the incident. The *ponencia*, however, goes further than the factual findings and tries to "clarify" a perceived confusion in jurisprudence between attempted rape and consummated rape:

> Furthermore, pursuant to the balance that must be struck between the fundamental freedoms of the accused and the abused child, and the Court's affirmation notwithstanding, it nevertheless finds both a need as well as a suitable jurisprudential platform to clarify the parameters that must attend the courts' appreciation of the stages of commission of rape in light of prevailing jurisprudence that has evolved in its definition of what constitutes "the slightest touch" that consummates the same. The Court here discerns that an explication is in order given the determined inexactitude in the evolution of the minimum physical threshold that distinguishes between attempted and consummated rape. [13]

It then proceeds to go into an exhaustive discussion of the "the exact anatomical situs of the pertinent body parts referred to in existing jurisprudence," [14] even providing this Court with an illustration of the anatomy of the vulva. [15] Using this illustration, it concludes that:

> With careful and decisive reference to the anatomical illustration above, the Court clarifies that when jurisprudence refers to "mere touching," it is not sufficient that the penis grazed over the pudendum or the fleshy surface of the *labia majora*. Instead, what jurisprudence considers as consummated rape when it describes a penis touching the vagina is the penis penetrating the cleft of the *labia majora*, however minimum or slight. In other words, the penis' mere touch of the pudendum would not result in any degree of penetration since the pudendum is a muscular part located over the *labia majora* and therefore mere touch of or brush upon the same would only constitute attempted rape, not consummated. Similarly, a penis' mere grazing of the fleshy portion, not the vulval cleft of the *labia majora*, will also constitute only attempted rape and not consummated rape, since the same cannot be considered to have achieved the slightest level of penetration. Stated differently, the Court here elucidates that "mere touch" of the penis on the *labia majora* legally contemplates not mere surface touch or skin contact, but the slightest penetration of the cleft of the *labia majora*, however minimum in degree. [16]

While it is admirable that the *ponencia* has introduced a novel way to distinguish between the attempted and consummated stages of the crime (*i.e.*, rape is consummated only when the penis touches the vulval cleft of the *labia majora*), it is respectfully submitted that this kind of discussion may not be as progressive as the *ponencia* perceives it to be.

I fear that continuing with this type of erudition disregards the strides the law has made into not only reclassifying the crime of rape, but also into shaping our very notions of what rape is and how it could be committed.

Prior to its amendment, Article 335 of the Revised Penal Code penalized rape as a crime against chastity. Rape could only be committed against someone who was biologically a woman:

> ARTICLE 335. *When and How Rape is Committed*. — Rape is committed by having carnal knowledge of a woman under any of the following circumstances:
>
> 1. By using force or intimidation;
> 2. When the woman is deprived of reason or otherwise unconscious; and
> 3. When the woman is under twelve years of age, even though neither of the circumstances mentioned in the two next preceding paragraphs shall be present.
>
> The crime of rape shall be punished by *reclusion temporal*. [17]

People v. Jumawan [18] explains that the protection of a woman's chastity was not rooted in the protection of a woman's person, but rather in the archaic treatment of women as property — specifically, a man's property:

> The evolution of rape laws is actually traced to two ancient English practices of 'bride capture' whereby a man conquered a woman through rape and 'stealing an heiress' whereby a man abducted a woman and married her.
>
> The rape laws then were intended not to redress the violation of the woman's chastity but rather to punish the act of obtaining the heiress' property by forcible marriage or to protect a man's valuable interest in his wife's chastity or her daughter's virginity.
>
> If a man raped an unmarried virgin, he was guilty of stealing her father's property and if a man raped his wife, he was merely using his property.
>
> Women were subjugated in laws and society as objects or goods and such treatment was justified under three ideologies.
>
> Under the chattel theory prevalent during the 6th century, a woman was the property of her father until she marries to become the property of her husband. If a man abducted an unmarried woman, he had to pay the owner, and later buy her from the owner; buying and marrying a wife were synonymous.
>
> From the 11th century to the 16th century, a woman lost her identity upon marriage and the law denied her political power and status under the feudal doctrine of coverture.
>
> A husband had the right to chastise his wife and beat her if she misbehaved, allowing him to bring order within the family.
>
> This was supplanted by the marital unity theory, which espoused a similar concept. Upon marrying, the woman becomes one with her husband. She had no right to make a contract, sue another, own personal property or write a will. [19]

In 1990, then Representative Raul Roco filed a House Bill attempting to reclassify rape from a private crime to a public crime, to expand its scope include marital rape, and to radically change its meaning to include the forceful insertion of instruments or objects into the genitals.

This was met with reservations, and the 8th Congress adjourned with the bill remaining at committee level. [20] During the 9th Congress, a number of female legislators and women's groups decided to take part in the refiling of a more comprehensive anti-rape bill but it was, again, unfortunately met by strong opposition. By the 10th Congress, the bill was again pushed, this time using the traditional definition of rape, as legislators were more open to the reclassification of the crime from private to public, but not to the more radical definitions pushed by the women's groups. [21]

Republic Act No. 8353, repealing Article 335 of the Revised Penal Code and reclassifying rape as a crime against persons, was finally promulgated in 1997. While the traditional definition of rape has been carried over (*i.e.*, carnal knowledge of a woman against her will), the second paragraph now used the gender-neutral word "person," implying that the offender need not be a man and the offended party need not be a woman. [22] The reclassification of rape as a crime against persons raised the expectation that jurisprudence would proceed to focus on the "offense's nature as a violation of a person rather than as a violation of a woman's honor." [23]

Article 266-A presently states:

> ARTICLE 266-A. *Rape; When and How Committed.* — Rape is Committed
>
> 1) By a man who shall have carnal knowledge of a woman under any of the following circumstances:
>
> (a) Through force, threat, or intimidation;
>
> (b) When the offended party is deprived of reason or otherwise is unconscious;
>
> (c) By means of fraudulent machination or grave abuse of authority; and
>
> (d) When the offended party is under twelve (12) years of age or is demented, even though none of the circumstances mentioned above be present.
>
> 2) By any person who, under any of the circumstances mentioned in paragraph 1 hereof, shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.

In previous cases, this Court has already recognized how the "concept of rape was revolutionized" to cover cases of sexual offenses that were previously not denominated as such:

> With the enactment of Republic Act No. 8353 (R.A. No. 8353), otherwise known as the Anti-Rape Law of 1997, the concept of rape was revolutionized with the new recognition that the crime should include sexual violence on the woman's sex-related orifices other than her organ, and be expanded as well to cover gender-free rape. The transformation mainly consisted of the reclassification of rape as a crime against persons and the introduction of rape by "sexual assault" as differentiated from the traditional "rape through carnal knowledge" or "rape through sexual intercourse."
>
> xxx xxx xxx
>
> Paragraph 1 under Section 2 of R.A. No. 8353, which is now Paragraph 1 of the new Article 266-A of the Revised Penal Code, covers rape through sexual intercourse while paragraph 2 refers to rape by sexual assault. Rape through sexual intercourse is also denominated as "organ rape" or "penile rape." On the other hand, rape by sexual assault is otherwise called "instrument or object rape," also "gender-free rape," or the narrower "homosexual rape." [24] (Citations omitted)

The Court has since promulgated progressive rulings in relation to the nature of rape. [25] In *People v. Quintos*, [26] we held that "[t]he circumstances when rape may be committed under Article 266-A of the Revised Penal Code should be defined in terms of the capacity of an individual to give consent." [27] This Court has likewise, in a long line of cases, [28] declared that the crime of rape is punishable as it is a violation of the victim's dignity:

> Rape, including other forms of sexual abuse, should no longer be viewed as a crime against chastity, which focuses on the dishonor to the victim's father or family. Rape and sexual abuse is a strike against the person of the victim. It is a violation of one's autonomy, a "violation of free will, or the freely made choice to engage in sexual intimacy." [29]

This more progressive view of rape is in line with our obligations under the Convention on the Elimination of All Forms of Discrimination. Against Women (CEDAW), [30] wherein the Philippines, as a State Party, is obliged "[t]o take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices which constitute discrimination against women[.]" [31] State Parties are expected:

> To modify the social and cultural patterns of conduct of men and women, with a view to achieving the elimination of prejudices and customary and all other practices which are based on the idea of the inferiority or the superiority of either of the sexes or on stereotyped roles for men and women[.] [32]

The Committee on the Elimination of Discrimination Against Women previously recognized several problems with legislation involving violence against women, including "treating sexual violence against women as crimes against the honour of the family or crimes against decency rather than violations of women's right to physical integrity." [33] The Committee specifically recommended State Parties to "ensure that laws against family violence and abuse, rape, sexual assault and other gender-based violence give adequate protection to all women, and respect their integrity and dignity." [34]

Thus, rape should be interpreted not as an honor-based offense, but as a consent-based offense. It is an exercise of power over a person, rather than a purely sexual act. The prevalence of physical violence in many rape cases shows that sex is used as a weapon to assault a person. [35] It is not so much a violation of chastity as much as it is a violation of dignity through degradation and humiliation [36] that often results in "severe, long-lasting physical and psychic harm." [37]

I remain firm in my view that the reconceptualization of rape, and our more gender-sensitive laws and legal lenses, require us to examine human sexuality and sexual acts as more than just unwanted penile penetration.

Sexual intercourse is not merely the penetration of a penis in a vagina. It involves numerous other acts that may or may not require penetration. At its core, sexual intercourse is a powerful expression of intimacy between human beings. It "requires the shedding of all inhibitions and defenses to allow humans to explore each other in their most basic nakedness." [38] As I stated in *People v. Caoili*: [39]

> The persistence of an archaic understanding of rape relates to our failure to disabuse ourselves of the notion that carnal knowledge or sexual intercourse is merely a reproductive activity. It is not. Sexual intercourse may be done for pleasure. It may be done for religious purposes. It may be a means to any end.
>
> Hence, sexual intercourse encompasses a wide range of sexual activities not limited to those involving penetration, genitals, and opposite sexes. Sexual intercourse is a sexual activity that is participated by at least two individuals of the same or opposite sex for purposes of attaining erotic pleasure. It may be penetrative or simply stimulative. It may or may not involve persons of opposite sexes. When forced, sexual intercourse constitutes rape.
>
> This understanding of sexual intercourse would prevent courts from unnecessarily and unjustly convicting persons of lesser crimes when they are undoubtedly guilty of rape. [40]

Human beings have full autonomy to decide who to be intimate with and what acts may be shared through that intimacy. Rape is a crime because it violates that autonomy.

Now this Court is faced with determining the "anatomical situs" of where exactly a biological man's penis needs to touch a biological

woman's vagina in order for it to be rape. But rape is no less an act of rape regardless of the "situs." The degree of penetration does not make one case of rape less heinous than the other. This is because all forced sexual acts involve the desecration of the person's will and dignity. In *People v. Quintos*: [41]

> The classifications of rape in Article 266-A of theRevised Penal Code are relevant only insofar as these define the manners of commission of rape. However, it does not mean that one manner is less heinous or wrong than the other. Whether rape is committed by nonconsensual carnal knowledge of a woman or by insertion of the penis into the mouth of another person, the damage to the victim's dignity is incalculable . . . [O]ne experience of sexual abuse should not be trivialized just because it was committed in a relatively unusual manner.
>
> "The prime purpose of [a] criminal action is to punish the offender in order to deter him and others from committing the same or similar offense, to isolate him from society, reform and rehabilitate him or, in general, to maintain social order." Crimes are punished as retribution so that society would understand that the act punished was wrong.
>
> Imposing different penalties for different manners of committing rape creates a message that one experience of rape is relatively trivial or less serious than another. It attaches different levels of wrongfulness to equally degrading acts. Rape, in whatever manner, is a desecration of a person's will and body. In terms of penalties, treating one manner of committing rape as greater or less in heinousness than another may be of doubtful constitutionality. [42] (Citations omitted)

Even prior to the enactment of Republic Act No. 8353, this Court has already accepted as doctrine that "[a] broken hymen is not an essential element of rape." [43] In *People v. Salinas*: [44]

> In rape cases, there are no half measures or even quarter measures nor is their gravity graduated by the inches of entry. Partial penile penetration is as serious as full penetration; the rape is deemed consummated in either case. In a manner of speaking, bombardment of the drawbridge is invasion enough even if the troops do not succeed in entering the castle. [45]

The absence of half measures in a crime as heinous as rape was what prompted this Court to accept that there is no such crime as "frustrated rape." *People v. Orita* [46] explains:

> Clearly, in the crime of rape, from the moment the offender has carnal knowledge of his victim he actually attains his purpose and, from that moment also all the essential elements of the offense have been accomplished. Nothing more is left to be done by the offender, because he has performed the last act necessary to produce the crime. Thus, the felony is consummated. In a long line of cases . . ., We have set the uniform rule that for the consummation of rape, perfect penetration is not essential. Any penetration of the female organ by the male organ is sufficient. Entry of the labia or lips of the female organ, without rupture of the hymen or laceration of the vagina is sufficient to warrant conviction. Necessarily, rape is attempted if there is no penetration of the female organ . . . because not all acts of execution was performed. The offender merely commenced the commission of a felony directly by overt acts. Taking into account the nature, elements and manner of execution of the crime of rape and jurisprudence on the matter, it is hardly conceivable how the frustrated stage in rape can ever be committed. [47] (Citations omitted)

The *ponencia* is correct in stating that this Court has, in past cases, diverged from the ruling in *Orita*, resulting in different interpretations of what may constitute genital contact. However, instead of simply upholding the doctrine in *Orita* and stating that a partial touching of the genitals is as traumatic to the victim as full penetration, the *ponencia* went so much as to provide a pseudo-medical analysis, with the sole purpose of lessening a rapist's liability. By providing an exhaustive — and extensive — description of the parts of the vagina to determine when rape is considered consummated, the *ponencia* has unwittingly limited the scope of rape.

This Court should view Article 266-A of the Revised Penal Code from the eyes of the victim, not from the point of view of the perpetrator. All rape victims suffer the same trauma. All rape victims suffer the same indignity. To continue the discussion started by the *ponencia* would be to accept that the victim will now bear the burden to prove that the penis touched the "outer fleshy part" of her vagina and not merely the muscular part of the *pudendum*. It places the blame on the victim should she fight back and there would only be a slight touching of the *pudendum*, because only the lower offense of attempted rape can be charged then.

We are not discussing here whether the crime has been committed. There is no issue in this case that rape occurred. A discussion of the different degrees of commission presupposes that the crime *was committed*. There was rape. AAA was raped. To further discuss which part of her vagina was violated serves no other purpose than as a platform to determine how this Court can lessen her rapist's punishment.

To reduce a woman to merely a vagina that can be sexually conquered reduces her worth and dignity. By unnecessarily belaboring on the different physiological aspects of her vagina in the guise of protecting the accused's rights from "the [considerable] difference in the lengths of period of incarceration" [48] between the attempted and consummated rape of a minor, this Court takes a step back towards the previous heteronormative — and frankly, misogynistic — definitions of rape. It likewise undermines the severity of the trauma suffered by sexually abused women and children.

Rape is a crime because it is a violation of a person's consent to intimacy and sexual relations. Rape is a crime because it is a violation of a person's human dignity. No amount of anatomical discourse should ever erase the heinousness of this crime.

Footnotes

1. *Ponencia*, p. 22.

2. *Ponencia*, p. 22.

3. *Ponencia*, p. 22.

4. *Ponencia*, p. 2.

5. This appears to be a typographical error since AAA's date of birth is December 6, 1999, which would make her 12 years old in January 2012.

6. *Ponencia*, p. 3.

7. *Id.* at 4-5.

8. *Id.* at 6.

9. *Id.* at 6.

10. *Id.* at 7-8.

11. *Id.* at 8-9.

12. *Id.* at 38. Republic Act No. 11648, enacted July 26, 2021, has since increased the minimum age for sexual consent to 16 years old.

13. *Id.* at 10.

14. *Id.* at 2.
15. *Id.* at 23.
16. *Id.* at 25.
17. REV. PEN. CODE, art. 335.
18. 733 Phil. 102 (2014) [Per J. Reyes, First Division].
19. *Id.* at 126-128 citing Cassandra M. DeLaMothe, *Liberta Revisited: A Call to Repeal the Marital Exemption for All Sex Offenses in New York's Penal Law*, 23 FORDHAM URBAN LAW JOURNAL, 861 (1995) *available at* <http://ir.lawnet.fordham.edu/ulj> *last accessed on* March 31, 2014; Maria Pracher, *The Marital Rape Exemption: A Violation of a Woman's Right of Privacy* 11 GOLDEN GATE U. L. REV., 725 (1981) *available at* <http://digitalcommons.law.ggu.edu/ggulrev/vol 11/iss3/1>, *last accessed on* March 31, 2014.
20. Myrna N. Lavides, *The Congressional Committee and Philippine Policymaking: The Case of the Anti-Rape Law*, 43 PHIL. J. PUB. ADM. 3 & 4, 231 (1999).
21. *Id.* at 232-233.
22. ARTICLE 266-A. *Rape; When and How Committed.* — Rape is Committed

    xxx xxx xxx

    2) By any person who, under any of the circumstances mentioned in paragraph 1 hereof shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.
23. AMPARITA S. STA. MARIA, IMAGES OF WOMEN IN IMPUNITY, HUMAN RIGHTS TREATISE ON THE LEGAL AND JUDICIAL ASPECTS OF IMPUNITY (2001).
24. *People v. Salvania*, 557 Phil. 428, 452-454 (2007) [Per J. Tinga, *En Banc*].
25. In *People v. Jumawan*, 733 Phil. 102 (2014) [Per J. Reyes, First Division], this Court ruled that rape is possible even if the offender and the victim are married. In *People v. Penilla*, 707 Phil. 130 (2013) [Per J. Perez, Second Division], it was ruled that prostituted persons may be victims of rape. In *People v. Suarez*, 750 Phil. 858 (2015) [Per J. Perez, First Division], this Court ruled that the victim's failure to make a tenacious resistance does not make her submission to the act voluntary.
26. 746 Phil. 809 (2014) [Per J. Leonen, Second Division].
27. *Id.* at 829.
28. See *People v. Reyes*, 158 Phil. 342 (1974) [Per J. Fernando, Second Division]; *People v. Nazareno*, 91 Phil. 445 (1977) [Per C.J. Paras, *En Banc*]; *People v. Casinillo*, 288 Phil. 688 (1992) [Per J. Davide, Jr., Third Division]; *People v. Guibao*, 291 Phil. 63 (1993) [Per J. Regalado, Second Division]; *People v. Jimenez*, 320 Phil. 428 (1995) [Per J. Regalado, Second Division]; *People v. Jalosjos*, 421 Phil. 43 (2001) [Per J. Ynares-Santiago, *En Banc*]; *Ricalde v. People*, 751 Phil. 793 (2015) [Per J. Leonen, Second Division]; and *People v. San Pedro*, G.R. No. 219850, July 14, 2021 [Per J. Gaerlan, First Division].
29. *People v. San Pedro*, G.R. No. 219850, July 14, 2021 [Per J. Gaerlan, First Division] 11, *citing* J. Leonen, Dissenting Opinion in *Bangayan v. People*, G.R. No. 235610, September 16, 2020 [Per J. Carandang, Third Division]. This pinpoint citation refers to a copy of the Decision uploaded to the Supreme Court website.
30. The Philippines signed the Convention on July 15, 1980 and ratified it on August 5, 1981.
31. Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), July 15, 1980, U.N. Doc. A/RES/34/180 (1979), Art. 2.
32. CEDAW, art. 5 (a).
33. Nathalie Stadelman, *The International and Regional Legal Frameworks to Address Violence against Women*, in A PARLIAMENTARY RESPONSE TO VIOLENCE AGAINST WOMEN: CONFERENCE OF CHAIRPERSONS AND MEMBERS OF PARLIAMENTARY BODIES DEALING WITH GENDER EQUALITY, Inter-Parliamentary Union (2009), *available at* <http://archive.ipu.org/PDF/publications/vaw_en.pdf#page-71> *last accessed on* October 4, 2022.
34. UN Committee on the Elimination of Discrimination Against Women, CEDAW General Recommendation No. 19 (1992), *available at* <https://www.refworld.org/docid/52d920c54.html> *last accessed on* October 4, 2022.
35. Venus V. Lique, *The Anti-Rape Law and the Changing Times: Nature, Issues and Incidents*, 43 ATENEO L.J. 141 (1998).
36. *Id.* The article stated that according to studies, rapists are not always after sex, but the power emanating from the victim's degradation, pain, and humiliation.
37. *People v. Jumawan*, 733 Phil. 102, 130 (2014) [Per J. Reyes, First Division], citing *People v. Liberia*, Court of Appeals of New York, 474 N.E. 2D 567 (1984).
38. Dissenting Opinion of J. Leonen in *People v. Caoili*, 815 Phil. 839 (2017) [Per J. Tijam, *En Banc*].
39. 815 Phil. 839, 946 (2017) [Per J. Tijam, *En Banc*].
40. *Id.* at 948 *citing* Richardson, Niall, Clarissa Smith, and Angela Verndly, *Studying Sexualities: Theories, Representations, Cultures*, 5 (2013).
41. 746 Phil. 809 (2014) [Per J. Leonen, Second Division].
42. *Id.* at 832-833.
43. *People v. Salinas*, 302 Phil. 305, 310 (1994) [Per J. Cruz, First Division].
44. 302 Phil. 305 (1994) [Per J. Cruz, First Division].
45. *Id.* at 310.
46. 262 Phil. 963 (1990) [Per J. Medialdea, First Division].

47. *Id.* at 976-977.

48. *Ponencia*, p. 42.

Concurring Opinion

SINGH, J.:

I express my full concurrence to the *ponencia*, as it now provides clarity and guidance to the members of the bench and the bar in the prosecution of, and in the appreciation of the evidence in, rape cases.

The (1) adoption of the esteemed *ponente* of the recommendations I have made during the deliberations notwithstanding, particularly, the addition of an illustration of what the female genitalia looks like when a woman is standing up or lying prone, to supplement the illustrations included in the *ponencia*; and (2) the fine-tuning of my original recommendation, *i.e.*, that, in cases of minor victims, the genital contact threshold for a finding of consummated rape through penile penetration is deemed already met once the entirety of the prosecution evidence establishes — "that there was repeated touching of the accused's erect penis on the minor victim's vagina," [1] into "a clear physical indication of the inevitability of the minimum contact threshold as clarified here, if it were not for the physical immaturity and underdevelopment of the minor victim's vagina," [2] as suggested by Associate Justice Rodil V. Zalameda during deliberations, I nevertheless respectfully submit this Separate Concurring Opinion to draw attention to certain discussions in the *ponencia* which I believe merit further elucidation.

The clarification sought to be made in the *ponencia* was captured in this statement:

> x x x, **for as long as the prosecutorial evidence is able to establish that the penis of the accused penetrated the vulval cleft or the cleft of the *labia majora* (*i.e.*, the cleft of the fleshy outer lip of the victim's vagina), however slight the introduction may be, the commission of rape already crossed the threshold of the attempted stage and into its consummation.** [3] (emphasis not mine)

Two things are highlighted in the above statement: (a) the primacy of the presumption of innocence in criminal cases such that, the evidence of the prosecution should be able to establish the guilt of the accused beyond reasonable doubt; and (b) the varying degrees of penetration differentiates consummated rape from attempted rape and acts of lasciviousness.

The presumption of innocence and the evidentiary presumptions in sexual abuse cases

The *ponencia* articulated it best: there must be a balance that must be struck between the fundamental freedoms of the accused and the victim.

Article III, Section 14 of the 1987 Philippine Constitution provides:

> SECTION 14. (1) No person shall be held to answer for a criminal offense without due process of law.
>
> (2) In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, x x x

The presumption of innocence is a "basic constitutional principle, fleshed out by procedural rules which place on the prosecution the burden of proving that an accused is guilty of the offense charged by proof beyond reasonable doubt. Corollary thereto, conviction must rest on the strength of the prosecution's evidence and not on the weakness of the defense." [4]

In *People v. De Guzman*, [5] the Court explained:

> The constitutional presumption of innocence is not an empty platitude meant only to embellish the Bill of Rights. Its purpose is to balance the scales in what would otherwise be an uneven contest between the lone individual pitted against the People of the Philippines and all the resources at their command. [6]

Needless to say, the failure to rebut the presumption of innocence in criminal cases by proof beyond reasonable doubt of the guilt of the accused results in an acquittal.

Crimes that are sexual in nature, such as rape, are particularly hard to prosecute, owing to the, more often than not, privacy that attends their commission. And unless a witness other than the victim herself testifies to the fact of the sexual assault, the strength of the prosecution's case relies heavily on the testimony of the victim to establish the guilt of the accused beyond reasonable doubt. Of course, this is not to say that the crime of rape can only happen in isolation as in fact, the Court, in numerous cases, has held that lust, as in rape, is no respecter of time and place. [7] Thus, convictions have been decreed in rapes that have occurred even in the most unlikely places such as in park, along a roadside, within school premises, or even in an occupied room; [8] inside a house or where there are other occupants, and even in the same room where there are other members of the family who are sleeping. [9]

Jurisprudence has laid down the guidelines in deciding sexual abuse cases:

> The guidelines are: (1) an accusation of rape can be made with facility, and while the accusation is difficult to prove, it is even more difficult for the accused, though innocent, to disprove the accusation; (2) in the nature of things, only two persons are usually involved in the crime of rape; hence, the testimony of the complainant should be scrutinized with great caution; and (3) the evidence for the Prosecution must stand or fall on its own merits, and cannot draw strength from the weakness of the evidence for the Defense. [10]

As has been repeatedly pronounced by the Court, the credibility of the complainant is the single most important issue in prosecution of rape cases. [11]

So too, in this jurisdiction, several presumptions in favor of the victims of sexual assault cases have been jurisprudentially settled.

In *People v. Gahi*, [12] for instance, the Court held:

> It is likewise jurisprudentially settled that when a woman says she has been raped, she says in effect all that is necessary to show that she has been raped and her testimony alone is sufficient if it satisfies the exacting standard of credibility needed to convict the accused. Thus, in this jurisdiction, the fate of the accused in a rape case, ultimately and oftentimes, hinges on the credibility of the victim's testimony. [13]

As the crime of sexual assault may be perpetrated regardless of age, some of these presumptions are applicable to minor victims as well.

Thus, in *People v. Alicante*, [14] the Court noted:

> As we have so held in the past, a young girl would not publicly disclose a humiliating and shameful experience of being sexually abused by her father if such were not the truth, especially so in this case where there has been no showing of bad blood between father and daughter prior to the charges of rape. [15]

Similarly, in *People v. Campaner*, [16] the Court affirmed the conviction of the accused, taking into consideration the factual circumstances of the case that involved a minor victim:

> As we have said time and again, no woman, especially one who is of tender age such as complainant, would concoct a story of defloration against a virtual stepfather, allow an examination of her private parts and subject herself to risk ridicule and the humiliation,

rigors, trouble, and inconvenience of a public trial unless in fact she was raped and her only motive in bringing the cases is to see to it that justice is done. [17]

The foregoing circumstances bear heavily on the accused's defense as the alleged perpetrator is now forced to contend with these presumptions in defending his innocence. Instead of the traditional burden on the prosecution to overcome the constitutional presumption of innocence with proof beyond reasonable doubt, an accused in a sexual abuse case has to face these presumptions, which, for good or bad, have had the practical effect of shifting the burden of evidence to the accused in these cases. In addition, the accused must also be able to negate the credibility of the witnesses, more often, the victim, who have been afforded such benefit.

Thus, *People v. Amarela* [18] was a welcome development, as it veered away from the so-called Maria Clara doctrine that has, for many years, aided the Court in resolving rape cases. While not completely abandoning the Maria Clara doctrine, *Amarela* contextualized the same to level the playing field between the accused and the victim, so to speak:

> This opinion borders on the fallacy of *non sequitur*. And while the factual setting back then would have been appropriate to say it is natural for a woman to be reluctant in disclosing a sexual assault; today, we simply cannot be stuck to the *Maria Clara* stereotype of a demure and reserved Filipino woman. We, should stay away from such mindset and accept the realities of a woman's dynamic role in society today; she who has over the years transformed into a strong and confidently intelligent and beautiful person, willing to fight for her rights.
>
> In this way, we can evaluate the testimony of a private complainant of rape without gender bias or cultural misconception. It is important to weed out these unnecessary notions because an accused may be convicted solely on the testimony of the victim, provided of course, that the testimony is credible, natural, convincing, and consistent with human nature and the normal course of things. Thus, in order for us to affirm a conviction for rape, we must believe beyond reasonable doubt the version of events narrated by the victim. [19]

Of course, it should be stressed, lest I be misunderstood, the presumption of innocence, guaranteed under the Constitution no less, enjoys primacy than the presumptions afforded victims of sexual assault cases. To echo *De Guzman*, the inexorable mandate of the presumption of innocence in favor of the accused is that, for all the authority and influence of the prosecution, the accused must be acquitted and set free if his guilt cannot be proved beyond the whisper of a doubt and, needless to say, that mandate shall be enforced. [20]

As can be gleaned from the *ponencia*, the accused's right to be presumed innocent until proven guilty can only be overturned when his guilt is proven beyond all reasonable doubt. The balance that the *ponente* aims for is thus kept intact with the proposed guidelines.

The varying degrees of penetration differentiates consummated rape from attempted rape and acts of lasciviousness

Currently worded, the offenses of rape, under Article 266-A, as amended by Republic Act (R.A.) No. 11648 [21] and acts of lasciviousness under Article 336 of the Revised Penal Code (RPC) read:

Rape	Acts of Lasciviousness
Article 266-A. *Rape, When and How Committed*. — Rape is committed — 1. By a person who shall have carnal knowledge of another person under any of the following circumstances: a. Through force, threat or intimidation; b. When the offended party is deprived of reason or is otherwise unconscious; c. By means of fraudulent machination or grave abuse of authority; d. When the offended party is under sixteen (16) years of age or is demented, even though none of the circumstances mentioned above be present: *Provided*, That there shall be no criminal liability on the part of a person having carnal knowledge of another person under sixteen (16) years of age when the age difference between the parties is not more than three (3) years, and the sexual act in question is proven to be consensual, non-abusive, and non-exploitative: *Provided, further*, That if the victim is under thirteen (13) years of age, this exception shall not apply. As used in this Act, non-abusive shall mean the absence of undue influence, intimidation, fraudulent machinations, coercion, threat, physical, sexual, psychological, or mental injury or maltreatment, either with intention or through neglect, during the conduct of sexual activities with the child victim. On the other hand, non-exploitative shall mean there is no actual or attempted act or acts of unfairly taking advantage of the child's position of vulnerability, differential power, or trust during the conduct of sexual activities. 2. By any person who, under any of the circumstances mentioned in paragraph 1 hereof,	Article 336. *Acts of Lasciviousness*. — Any person who shall commit any act of lasciviousness upon other persons of either sex, under any of the circumstances mentioned in the preceding article, shall be punished by *prision correccional*.

shall commit an act of sexual assault by inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.	

On the one hand, the elements of rape under Article 266-A of the RPC are: (1) The act is committed by a man; (2) That said man had carnal knowledge of a woman; and (3) That such act was accomplished through force, threat or intimidation. [22]

On the other, the elements of the crime of acts of lasciviousness are: (a) the offender commits any act of lasciviousness or lewdness upon another person of either sex; and (b) the act of lasciviousness or lewdness is committed either (i) by using force or intimidation; or (ii) when the offended party is deprived of reason or is otherwise unconscious; or (iii) when the offended party is under 12 years of age. As thus used, lewd is defined as obscene, lustful, indecent, lecherous; it signifies that form of immorality that has relation to moral impurity; or that which is carried on a wanton manner. [23]

Pertinent to the crime of acts of lasciviousness against minors is the definition given to "lascivious conduct" by the Rules and Regulations on the Reporting and Investigation of Child Abuse Cases of R.A. No. 7610, [24] which reads:

> h) "Lascivious conduct" means the intentional touching, either directly or through clothing, of the genitalia, anus, groin, breast, inner thigh, or buttocks, or the introduction of any object into the genitalia, anus or mouth, of any person, whether of the same or opposite sex, with an intent to abuse, humiliate, harass, degrade, or arouse or gratify the sexual desire of any person, bestiality, masturbation, lascivious exhibition of the genitals or pubic area of a person;

To the mind of the undersigned, the utility of the *ponencia's* discussion on the threshold that should be breached to qualify the crime into rape is easily discernible. Thus, while rape is characterized by the carnal knowledge of a woman under the circumstances enumerated in Article 266-A of the RPC, the crime of acts of lasciviousness contemplates an act that does not breach the physical threshold for the crime of rape.

The Court elucidates in *Lutap v. People*: [25]

> Instead, petitioner's lewd act of fondling AAA's sexual organ consummates the felony of acts of lasciviousness.The slightest penetration into one's sexual organ distinguishes an act of lasciviousness from the crime of rape. *People v. Bonaagua* discussed this distinction:
>
> > It must be emphasized, however, that like in the crime of rape whereby the slightest penetration of the male organ or even its slightest contact with the outer lip or the *labia majora* of the vagina already consummates the crime, in like manner, if the tongue, in an act of cunnilingus, touches the outer lip of the vagina, the act should also be considered as already consummating the crime of rape through sexual assault, not the crime of acts of lasciviousness. Notwithstanding, in the present case, such logical interpretation could not be applied. **It must be pointed out that the victim testified that Ireno only touched her private part and licked it, but did not insert his finger in her vagina. This testimony of the victim, however, is open to various interpretation, since it cannot be identified what specific part of the vagina was defiled by Ireno. Thus, in conformity with the principle that the guilt of an accused must be proven beyond reasonable doubt, the statement cannot be the basis for convicting Ireno with the crime of rape through sexual assault.** [26] (citations omitted; emphasis maintained; underscoring supplied)

Not to diminish the crime of acts of lasciviousness as the lesser offense of the two, and even if the Court were to include attempted rape, which contemplates a situation where there was no penetration of the sex organ of the intended victim because not all acts of execution were performed, [27] the undeniable fact remains: these offenses are unspeakable acts committed by one person against another, without regard to the victim's age, gender, and status. However, the distinction between the two crimes is necessary because of the anatomical context within which crimes of a sexual nature are meant to be understood. I, therefore, agree with the clarification of the *ponencia* that considered the points raised by Chief Justice Alexander G. Gesmundo and Associate Justice Mario V. Lopez:

> Further to the instant clarification, in the converse,the Court also clarifies that **when there is no touching of the penis to the vulval cleft of the *labia majora* of the victim in a case of rape through penile penetration, there can be no finding of consummated rape but only attempted rape or acts of lasciviousness**, as the case may be, with the distinctions determinable based on various indications that may reveal either the absence or presence of "intent to lie" on the part of the accused, which include the presence of an erect penis. [28] (emphasis supplied)

To end, the real value of this *ponencia*, in specifying the threshold by which the crime of rape may be measured, is its inevitability. We all fervently hope that sexual abuse cases will abate, but experience has shown a contrary trend. As we continue to advocate measures to see such mitigation in sexual abuse occurrences, our courts will continue to adjudicate these cases as a matter of course.

This is not the only aspect of this *ponencia's* inevitability, however. It is equally inescapable that rape is committed in a physical, biological way, as the law for now defines it, whether we like it or not. It is for this plain reason that these clarificatory guidelines are now being promulgated, not to diminish or dilute the violation and assault, the trauma and suffering, but rather to ensure and guarantee that it is properly prosecuted and redressed in the ways our present laws allow us.

In view of the foregoing, I respectfully signify my concurrence to the *ponencia*.

Footnotes

* *n* Pursuant to Amended Administrative Circular No. 83-2015, dated September 5, 2017, which requires the preparation of a first copy of Decisions/Resolutions/Orders where the real or genuine name/s or identities and personal circumstances of the victim/s are used.

1. Draft Decision (6 September 2022 Agenda version), p. 31.

2. Draft Decision (4 October 2022 Agenda version), p. 32.

3. *Id.* at 29-30.

4. *Polangcos v. People of the Philippines*, 919 SCRA 324, 339 (2019), citing *People v. Maraorao*, 688 Phil. 458, 465 (2012).

5. 272 Phil. 432-438 (1991).

6. *Id.*

7. *People v. CCC*, 843 Phil. 473, 485 (2018).

8. *People v. Cabillan*, 334 Phil. 912, 919-920 (1997).

9. *People v. Gabayron*, 343 Phil. 593, 608-609 (1997). See also *People v. Managaytay*, 364 Phil. 800-810 (1999).

10. *People v. Sangcajo, Jr.*, 839 Phil. 1073, 1080 (2018).

11. *People v. Rapiz*, G.R. No. 240662, 16 September 2020.
12. 727 Phil. 642-665 (2014).
13. *Id.* at 657-658.
14. 388 Phil. 233, 249 (2000).
15. *Id.*
16. 391 Phil. 324, 388 (2000).
17. *Id.*
18. 823 Phil. 1188-1214 (2018).
19. *Id.* at 1199-1200.
20. *Supra* note 5.
21. An Act Providing for Stronger Protection Against Rape and Sexual Exploitation and Abuse, Increasing the Age for Determining the Commission of Statutory Rape, amending for the Purpose Act No. 3815, as amended, otherwise known as "The Revised Penal Code," Republic Act No. 8353, also known as "The Anti-Rape Law of 1997," and Republic Act No. 7610, as amended, otherwise known as "The Special Protection of Children Against Abuse, Exploitation and Discrimination Act" (2022).
22. *People v. Dechoso y Divina*, G.R. No. 248530, 3 March 2021.
23. *Lutap v. People*, 825 Phil. 10, 26-27 (2018).
24. An Act Providing for Stronger Deterrence and Special Protection Against Child Abuse, Exploitation and Discrimination, Providing Penalties for its Violation, and for Other Purposes (1992).
25. 825 Phil. 10-30 (2018).
26. *Id.* at 25-26.
27. *People v. Orita*, 262 Phil. 963, 977 (1990). See also Article 6, paragraph 3,Revised Penal Code.
28. Draft Decision (4 October 2022 Agenda version), p. 41.

n Note from the Publisher: Copied verbatim from official document.

EN BANC

[G.R. No. 13785. October 8, 1918.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **TOMAS ADIAO**, *defendant-appellant*.

D E C I S I O N

MALCOLM, *J* :

The defendant was charged in the Municipal Court of the city of Manila with the crime of theft. He was found guilty of the lesser crime of frustrated theft. He appealed to the Court of First Instance of the city of Manila and again he was found guilty of the crime of frustrated theft, and was sentenced to pay a fine of P100, with subsidiary imprisonment in case of insolvency, and to pay the costs.

The sole error assigned on appeal is that the lower court erred in holding that the defendant was guilty of the crime of theft as disclosed by the facts appearing of record. We have examined the evidence carefully and from our study are unable to say that the proof is contrary to the findings of the lower court. Stated in one sentence, the defendant, Tomas Adiao, a customs inspector, abstracted a leather belt valued at P0.80, from the baggage of a Japanese named T. Murakami, and secreted the belt in his desk in the Custom House, where it was found by other customs employees.

Based on these facts, the Court is of the opinion that the crime can not properly be classified as frustrated, as this word is defined in article 3 of the Penal Code, but that since the offender performed all of the acts of execution necessary for the accomplishment of the felony, he is guilty of the consummated crime of theft. The fact that the defendant was under observation during the entire transaction and that he was unable to get the merchandise out of the Custom House, is not decisive; all the elements of the completed crime of theft are present. The following decisions of the supreme court of Spain are in point:

> "The defendant was charged with the theft of some fruit from the land of another. As he was in the act of taking the fruit he was seen by a policeman, yet it did not appear that he was at that moment caught by the policeman but sometime later. The court said: ". . . The trial court did not err . . . in considering the crime as that of consummated theft instead of frustrated theft inasmuch as nothing appears in the record showing that the policemen who saw the accused take the fruit from the adjoining land arrested him in the act and thus prevented him from taking full possession of the thing stolen and even its utilization by him for an interval of time." (Decision of the supreme court of Spain, October 14, 1898.)

Defendant picked the pocket of the offended party while the latter was hearing mass in a church. The latter on account of the solemnity of the act, although noticing the theft, did not do anything to prevent it. Subsequently, however, while the defendant was still inside the church, the offended party got back the money from the defendant. The court said that the defendant had performed all the acts of execution and considered the theft as consummated. (Decision of the supreme court of Spain, December 1,

1897.)

The defendant penetrated into a room of a certain house and by means of a key opened up a case, and from the case took a small box, which was also opened with a key, from which in turn he took a purse containing 461 *reales* and 20 *centimos*, and then he placed the money over the cover of the case; just at this moment he was caught by two guards who were stationed in another room near-by. The court considered this as consummated robbery, and said: ". . . The accused . . . having materially taken possession of the money from the moment he took it from the place where it had been, and having taken it with his hands with intent to appropriate the same, he executed all the acts necessary to constitute the crime which was thereby produced; only the act of making use of the thing having been frustrated, which, however, does not go to make the elements of the consummated crime." (Decision of the supreme court of Spain, June 13, 1882.)

There exists the aggravating circumstance that advantage was taken by the offender of his public position. Wherefore, in view of the provisions of articles 517 and 518, No. 5, of the Penal Code, and there being present one aggravating circumstance compensated by no mitigating circumstance, the penalty must be imposed in the maximum degree.

Judgment is reversed and the defendant and appellant is sentenced to three months and one day of *arresto mayor*, with the costs of all instances against him. The merchandise in question, attached to the record as Exhibit A, shall be returned to the lawful owner, T. Murakami. So ordered.

Torres, Johnson, Street, Avanceña and *Fisher, JJ.,* concur.

EN BANC

[G.R. No. 160188. June 21, 2007.]

ARISTOTEL VALENZUELA y NATIVIDAD, *petitioner*, ***vs.*** **PEOPLE OF THE PHILIPPINES and HON. COURT OF APPEALS**, *respondents*.

D E C I S I O N

TINGA, *J* :

This case aims for prime space in the firmament of our criminal law jurisprudence. Petitioner effectively concedes having performed the felonious acts imputed against him, but instead insists that as a result, he should be adjudged guilty of frustrated theft only, not the felony in its consummated stage of which he was convicted. The proposition rests on a common theory expounded in two well-known decisions [1] rendered decades ago by the Court of Appeals, upholding the existence of frustrated theft of which the accused in both cases were found guilty. However, the rationale behind the rulings has never been affirmed by this Court.

As far as can be told, [2] the last time this Court extensively considered whether an accused was guilty of frustrated or consummated theft was in 1918, in *People v. Adiao*. [3] A more cursory treatment of the question was followed in 1929, in *People v. Sobrevilla*, [4] and in 1984, in *Empelis v. IAC.* [5] This petition now gives occasion for us to finally and fully measure if or how frustrated theft is susceptible to commission under the Revised Penal Code.

I.

The basic facts are no longer disputed before us. The case stems from an Information [6] charging petitioner Aristotel Valenzuela (petitioner) and Jovy Calderon (Calderon) with the crime of theft. On 19 May 1994, at around 4:30 p.m., petitioner and Calderon were sighted outside the Super Sale Club, a supermarket within the ShoeMart (SM) complex along North EDSA, by Lorenzo Lago (Lago), a security guard who was then manning his post at the open parking area of the supermarket. Lago saw petitioner, who was wearing an identification card with the mark "Receiving Dispatching Unit (RDU)," hauling a push cart with cases of detergent of the well-known "*Tide*" brand. Petitioner unloaded these cases in an open parking space, where Calderon was waiting. Petitioner then returned inside the supermarket, and after five (5) minutes, emerged with more cartons of *Tide Ultramatic* and again unloaded these boxes to the same area in the open parking space. [7]

Thereafter, petitioner left the parking area and haled a taxi. He boarded the cab and directed it towards the parking space where Calderon was waiting. Calderon loaded the cartons of *Tide Ultramatic* inside the taxi, then boarded the vehicle. All these acts were eyed by Lago, who proceeded to stop the taxi as it was leaving the open parking area. When Lago asked petitioner for a receipt of the merchandise, petitioner and Calderon reacted by fleeing on foot, but Lago fired a warning shot to alert his fellow security guards of the incident. Petitioner and Calderon were apprehended at the

scene, and the stolen merchandise recovered. [8] The filched items seized from the duo were four (4) cases of *Tide Ultramatic*, one (1) case of *Ultra* 25 grams, and three (3) additional cases of detergent, the goods with an aggregate value of P12,090.00. [9]

Petitioner and Calderon were first brought to the SM security office before they were transferred on the same day to the Baler Station II of the Philippine National Police, Quezon City, for investigation. It appears from the police investigation records that apart from petitioner and Calderon, four (4) other persons were apprehended by the security guards at the scene and delivered to police custody at the Baler PNP Station in connection with the incident. However, after the matter was referred to the Office of the Quezon City Prosecutor, only petitioner and Calderon were charged with theft by the Assistant City Prosecutor, in Informations prepared on 20 May 1994, the day after the incident. [10]

After pleading not guilty on arraignment, at the trial, petitioner and Calderon both claimed having been innocent bystanders within the vicinity of the Super Sale Club on the afternoon of 19 May 1994 when they were haled by Lago and his fellow security guards after a commotion and brought to the Baler PNP Station. Calderon alleged that on the afternoon of the incident, he was at the Super Sale Club to withdraw from his ATM account, accompanied by his neighbor, Leoncio Rosulada. [11] As the queue for the ATM was long, Calderon and Rosulada decided to buy snacks inside the supermarket. It was while they were eating that they heard the gunshot fired by Lago, leading them to head out of the building to check what was transpiring. As they were outside, they were suddenly "grabbed" by a security guard, thus commencing their detention. [12] Meanwhile, petitioner testified during trial that he and his cousin, a Gregorio Valenzuela, [13] had been at the parking lot, walking beside the nearby BLISS complex and headed to ride a tricycle going to Pag-asa, when they saw the security guard Lago fire a shot. The gunshot caused him and the other people at the scene to start running, at which point he was apprehended by Lago and brought to the security office. Petitioner claimed he was detained at the security office until around 9:00 p.m., at which time he and the others were brought to the Baler Police Station. At the station, petitioner denied having stolen the cartons of detergent, but he was detained overnight, and eventually brought to the prosecutor's office where he was charged with theft. [14] During petitioner's cross-examination, he admitted that he had been employed as a "bundler" of GMS Marketing, "assigned at the supermarket" though not at SM. [15]

In a Decision [16] promulgated on 1 February 2000, the Regional Trial Court (RTC) of Quezon City, Branch 90, convicted both petitioner and Calderon of the crime of consummated theft. They were sentenced to an indeterminate prison term of two (2) years of *prision correccional* as minimum to seven (7) years of *prision mayor* as maximum. [17] The RTC found credible the testimonies of the prosecution witnesses and established the convictions on the positive identification of the accused as perpetrators of the crime.

Both accused filed their respective Notices of Appeal, [18] but only petitioner filed a brief [19] with the Court of Appeals, causing the appellate court to deem Calderon's appeal as abandoned and consequently dismissed. Before the Court of Appeals, petitioner argued that he should only be convicted of frustrated theft since at the time he was apprehended, he was never placed in a position to freely dispose of the articles stolen. [20] However, in its Decision dated 19 June 2003, [21] the Court of Appeals rejected this contention and affirmed petitioner's conviction. [22] Hence the present Petition for Review, [23] which expressly seeks that petitioner's conviction "be modified to only of Frustrated Theft." [24]

Even in his appeal before the Court of Appeals, petitioner effectively conceded both his felonious intent and his actual participation in the theft of several cases of detergent with a total value of P12,090.00 of which he was charged. [25] As such, there is no cause for the Court to consider a factual scenario other than that presented by the prosecution, as affirmed by the RTC and the Court of Appeals. The only question to consider is whether under the given facts, the theft should be deemed as consummated or merely frustrated.

II.

In arguing that he should only be convicted of frustrated theft, petitioner cites [26] two decisions rendered many years ago by the Court of Appeals: *People v. Diño* [27] and *People v. Flores*. [28] Both decisions elicit the interest of this Court, as they modified trial court convictions from consummated to frustrated theft and involve a factual milieu that bears similarity to the present case. Petitioner invoked the same rulings in his appeal to the Court of Appeals, yet the appellate court did not expressly consider the import of the rulings when it affirmed the conviction.

It is not necessary to fault the Court of Appeals for giving short shrift to the *Diño* and *Flores* rulings since they have not yet been expressly adopted as precedents by this Court. For whatever reasons, the occasion to define or debunk the crime of frustrated theft has not come to pass before us. Yet despite the silence on our part, *Diño* and *Flores* have attained a level of renown reached by very few other appellate court rulings. They are comprehensively discussed in the most popular of our criminal law annotations, [29] and studied in criminal law classes as textbook examples of frustrated crimes or even as definitive of frustrated theft.

More critically, the factual milieu in those cases is hardly akin to the fanciful scenarios that populate criminal law exams more than they actually occur in real life. Indeed, if we finally say that *Diño* and *Flores* are doctrinal, such conclusion could profoundly influence a multitude of routine theft prosecutions, including commonplace shoplifting. Any scenario that involves the thief having to exit with the stolen property through a supervised egress, such as a supermarket checkout counter or a parking area pay booth, may easily call for the application of *Diño* and *Flores*. The fact that lower courts have not hesitated to lay down convictions for frustrated theft further validates that *Diño* and *Flores* and the theories offered therein on frustrated theft have borne some weight in our jurisprudential system. The time is thus ripe for us to examine whether those theories are correct and should continue to influence prosecutors and judges in the future.

III.

To delve into any extended analysis of *Diño* and *Flores*, as well as the specific issues relative to "frustrated theft," it is necessary to first refer to the basic rules on the three stages of crimes under our Revised Penal Code. [30]

Article 6 defines those three stages, namely the consummated, frustrated and attempted felonies. A felony is consummated "when all the elements necessary for its execution and accomplishment are present." It is frustrated "when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator." Finally, it is attempted "when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should

produce the felony by reason of some cause or accident other than his own spontaneous desistance."

Each felony under the Revised Penal Code has a "subjective phase," or that portion of the acts constituting the crime included between the act which begins the commission of the crime and the last act performed by the offender which, with prior acts, should result in the consummated crime. [31] After that point has been breached, the subjective phase ends and the objective phase begins. [32] It has been held that if the offender never passes the subjective phase of the offense, the crime is merely attempted. [33] On the other hand, the subjective phase is completely passed in case of frustrated crimes, for in such instances, "[s]ubjectively the crime is complete." [34]

Truly, an easy distinction lies between consummated and frustrated felonies on one hand, and attempted felonies on the other. So long as the offender fails to complete all the acts of execution despite commencing the commission of a felony, the crime is undoubtedly in the attempted stage. Since the specific acts of execution that define each crime under the Revised Penal Code are generally enumerated in the code itself, the task of ascertaining whether a crime is attempted only would need to compare the acts actually performed by the accused as against the acts that constitute the felony under the Revised Penal Code.

In contrast, the determination of whether a crime is frustrated or consummated necessitates an initial concession that all of the acts of execution have been performed by the offender. The critical distinction instead is whether the felony itself was actually produced by the acts of execution. The determination of whether the felony was "produced" after all the acts of execution had been performed hinges on the particular statutory definition of the felony. It is the statutory definition that generally furnishes the elements of each crime under the Revised Penal Code, while the elements in turn unravel the particular requisite acts of execution and accompanying criminal intent.

The long-standing Latin maxim "*actus non facit reum, nisi mens sit rea*" supplies an important characteristic of a crime, that "ordinarily, evil intent must unite with an unlawful act for there to be a crime," and accordingly, there can be no crime when the criminal mind is wanting. [35] Accepted in this jurisdiction as material in crimes *mala in se*, [36] *mens rea* has been defined before as "a guilty mind, a guilty or wrongful purpose or criminal intent," [37] and "essential for criminal liability." [38] It follows that the statutory definition of our *mala in se* crimes must be able to supply what the *mens rea* of the crime is, and indeed the U.S. Supreme Court has comfortably held that "a criminal law that contains no *mens rea* requirement infringes on constitutionally protected rights." [39] The criminal statute must also provide for the overt acts that constitute the crime. For a crime to exist in our legal law, it is not enough that *mens rea* be shown; there must also be an *actus reus*. [40]

It is from the *actus reus* and the *mens rea*, as they find expression in the criminal statute, that the felony is produced. As a postulate in the craftsmanship of constitutionally sound laws, it is extremely preferable that the language of the law expressly provide when the felony is produced. Without such provision, disputes would inevitably ensue on the elemental question whether or not a crime was committed, thereby presaging the undesirable and legally dubious set-up under which the judiciary is assigned the legislative role of defining crimes. Fortunately, our Revised Penal Code does not suffer from such infirmity. From the statutory definition of any felony, a decisive passage or term is embedded which attests when the felony is produced by the acts of execution. For example, the statutory definition of murder or homicide expressly

uses the phrase "shall kill another," thus making it clear that the felony is produced by the death of the victim, and conversely, it is not produced if the victim survives.

We next turn to the statutory definition of theft. Under Article 308 of the Revised Penal Code, its elements are spelled out as follows:

> Art. 308. *Who are liable for theft.* — Theft is committed by any person who, with intent to gain but without violence against or intimidation of persons nor force upon things, shall take personal property of another without the latter's consent.
>
> Theft is likewise committed by:
>
> 1. Any person who, having found lost property, shall fail to deliver the same to the local authorities or to its owner;
>
> 2. Any person who, after having maliciously damaged the property of another, shall remove or make use of the fruits or object of the damage caused by him; and
>
> 3. Any person who shall enter an inclosed estate or a field where trespass is forbidden or which belongs to another and without the consent of its owner, shall hunt or fish upon the same or shall gather cereals, or other forest or farm products.

Article 308 provides for a general definition of theft, and three alternative and highly idiosyncratic means by which theft may be committed. [41] In the present discussion, we need to concern ourselves only with the general definition since it was under it that the prosecution of the accused was undertaken and sustained. On the face of the definition, there is only one operative act of execution by the actor involved in theft — the taking of personal property of another. It is also clear from the provision that in order that such taking may be qualified as theft, there must further be present the descriptive circumstances that the taking was with intent to gain; without force upon things or violence against or intimidation of persons; and it was without the consent of the owner of the property.

Indeed, we have long recognized the following elements of theft as provided for in Article 308 of the Revised Penal Code, namely: (1) that there be taking of personal property; (2) that said property belongs to another; (3) that the taking be done with intent to gain; (4) that the taking be done without the consent of the owner; and (5) that the taking be accomplished without the use of violence against or intimidation of persons or force upon things. [42]

In his commentaries, Judge Guevarra traces the history of the definition of theft, which under early Roman law as defined by Gaius, was so broad enough as to encompass "any kind of physical handling of property belonging to another against the will of the owner," [43] a definition similar to that by Paulus that a thief "handles (touches, moves) the property of another." [44] However, with the Institutes of Justinian, the idea had taken hold that more than mere physical handling, there must further be an intent of acquiring gain from the object, thus: "*[f]urtum est contrectatio rei fraudulosa, lucri faciendi causa vel ipsius rei, vel etiam usus ejus possessinisve*." [45] This requirement of *animo lucrandi*, or intent to gain, was maintained in both the Spanish and Filipino penal laws, even as it has since been abandoned in Great Britain. [46]

In Spanish law, *animo lucrandi* was compounded with *apoderamiento*, or

"unlawful taking," to characterize theft. Justice Regalado notes that the concept of *apoderamiento* once had a controversial interpretation and application. Spanish law had already discounted the belief that mere physical taking was constitutive of *apoderamiento*, finding that it had to be coupled with "the intent to appropriate the object in order to constitute *apoderamiento*; and to appropriate means to deprive the lawful owner of the thing." [47] However, a conflicting line of cases decided by the Court of Appeals ruled, alternatively, that there must be permanency in the taking [48] or an intent to permanently deprive the owner of the stolen property; [49] or that there was no need for permanency in the taking or in its intent, as the mere temporary possession by the offender or disturbance of the proprietary rights of the owner already constituted *apoderamiento*. [50] Ultimately, as Justice Regalado notes, the Court adopted the latter thought that there was no need of an intent to permanently deprive the owner of his property to constitute an unlawful taking. [51]

So long as the "descriptive" circumstances that qualify the taking are present, including *animo lucrandi* and *apoderamiento*, the completion of the operative act that is the taking of personal property of another establishes, at least, that the transgression went beyond the attempted stage. As applied to the present case, the moment petitioner obtained physical possession of the cases of detergent and loaded them in the pushcart, such seizure motivated by intent to gain, completed without need to inflict violence or intimidation against persons nor force upon things, and accomplished without the consent of the SM Super Sales Club, petitioner forfeited the extenuating benefit a conviction for only attempted theft would have afforded him.

On the critical question of whether it was consummated or frustrated theft, we are obliged to apply Article 6 of the Revised Penal Code to ascertain the answer. Following that provision, the theft would have been frustrated only, once the acts committed by petitioner, if ordinarily sufficient to produce theft as a consequence, "do not produce [such theft] by reason of causes independent of the will of the perpetrator." There are clearly two determinative factors to consider: that the felony is not "produced," and that such failure is due to causes independent of the will of the perpetrator. The second factor ultimately depends on the evidence at hand in each particular case. The first, however, relies primarily on a doctrinal definition attaching to the individual felonies in the Revised Penal Code [52] as to when a particular felony is "not produced," despite the commission of all the acts of execution.

So, in order to ascertain whether the theft is consummated or frustrated, it is necessary to inquire as to how exactly is the felony of theft "produced." Parsing through the statutory definition of theft under Article 308, there is one apparent answer provided in the language of the law — that theft is already "produced" upon the "tak[ing of] personal property of another without the latter's consent."

U.S. v. Adiao [53] apparently supports that notion. Therein, a customs inspector was charged with theft after he abstracted a leather belt from the baggage of a foreign national and secreted the item in his desk at the Custom House. At no time was the accused able to "get the merchandise out of the Custom House," and it appears that he "was under observation during the entire transaction." [54] Based apparently on those two circumstances, the trial court had found him guilty, instead, of frustrated theft. The Court reversed, saying that neither circumstance was decisive, and holding instead that the accused was guilty of consummated theft, finding that "all the elements of the completed crime of theft are present." [55] In support of its conclusion that the theft was consummated, the Court cited three (3) decisions of the Supreme Court of Spain, the

discussion of which we replicate below:

> The defendant was charged with the theft of some fruit from the land of another. As he was in the act of taking the fruit[,] he was seen by a policeman, yet it did not appear that he was at that moment caught by the policeman but sometime later. The court said: "[. . .] The trial court did not err [. . .] in considering the crime as that of consummated theft instead of frustrated theft inasmuch as nothing appears in the record showing that the policemen who saw the accused take the fruit from the adjoining land arrested him in the act and thus prevented him from taking full possession of the thing stolen and even its utilization by him for an interval of time." (Decision of the Supreme Court of Spain, October 14, 1898.)
>
> Defendant picked the pocket of the offended party while the latter was hearing mass in a church. The latter on account of the solemnity of the act, although noticing the theft, did not do anything to prevent it. Subsequently, however, while the defendant was still inside the church, the offended party got back the money from the defendant. The court said that the defendant had performed all the acts of execution and considered the theft as consummated. (Decision of the Supreme Court of Spain, December 1, 1897.)
>
> The defendant penetrated into a room of a certain house and by means of a key opened up a case, and from the case took a small box, which was also opened with a key, from which in turn he took a purse containing 461 reales and 20 centimos, and then he placed the money over the cover of the case; just at this moment he was caught by two guards who were stationed in another room near-by. The court considered this as consummated robbery, and said: "[. . .] The accused [. . .] having materially taken possession of the money from the moment he took it from the place where it had been, and having taken it with his hands with intent to appropriate the same, he executed all the acts necessary to constitute the crime which was thereby produced; only the act of making use of the thing having been frustrated, which, however, does not go to make the elements of the consummated crime." (Decision of the Supreme Court of Spain, June 13, 1882.) [56]

It is clear from the facts of *Adiao* itself, and the three (3) Spanish decisions cited therein, that the criminal actors in all these cases had been able to obtain full possession of the personal property prior to their apprehension. The interval between the commission of the acts of theft and the apprehension of the thieves did vary, from "sometime later" in the 1898 decision; to the very moment the thief had just extracted the money in a purse which had been stored as it was in the 1882 decision; and before the thief had been able to spirit the item stolen from the building where the theft took place, as had happened in *Adiao* and the 1897 decision. Still, such intervals proved of no consequence in those cases, as it was ruled that the thefts in each of those cases was consummated by the actual possession of the property belonging to another.

In 1929, the Court was again confronted by a claim that an accused was guilty only of frustrated rather than consummated theft. The case is *People v. Sobrevilla*, [57] where the accused, while in the midst of a crowd in a public market, was already able to abstract a pocketbook from the trousers of the victim when the latter, perceiving the theft, "caught hold of the [accused]'s shirt-front, at the same time shouting for a policeman; after a struggle, he recovered his pocket-book and let go of the defendant, who was afterwards caught by a policeman." [58] In rejecting the contention that only frustrated theft was established, the Court simply said, without further comment or

elaboration:

> We believe that such a contention is groundless. The [accused] succeeded in taking the pocket-book, and that determines the crime of theft. If the pocket-book was afterwards recovered, such recovery does not affect the [accused's] criminal liability, which arose from the [accused] having succeeded in taking the pocket-book. [59]

If anything, *Sobrevilla* is consistent with *Adiao* and the Spanish Supreme Court cases cited in the latter, in that the fact that the offender was able to succeed in obtaining physical possession of the stolen item, no matter how momentary, was able to consummate the theft.

Adiao, Sobrevilla and the Spanish Supreme Court decisions cited therein contradict the position of petitioner in this case. Yet to simply affirm without further comment would be disingenuous, as there is another school of thought on when theft is consummated, as reflected in the *Diño* and *Flores*decisions.

Diño was decided by the Court of Appeals in 1949, some 31 years after *Adiao* and 15 years before *Flores*. The accused therein, a driver employed by the United States Army, had driven his truck into the port area of the South Harbor, to unload a truckload of materials to waiting U.S. Army personnel. After he had finished unloading, accused drove away his truck from the Port, but as he was approaching a checkpoint of the Military Police, he was stopped by an M.P. who inspected the truck and found therein three boxes of army rifles. The accused later contended that he had been stopped by four men who had loaded the boxes with the agreement that they were to meet him and retrieve the rifles after he had passed the checkpoint. The trial court convicted accused of consummated theft, but the Court of Appeals modified the conviction, holding instead that only frustrated theft had been committed.

In doing so, the appellate court pointed out that the evident intent of the accused was to let the boxes of rifles "pass through the checkpoint, perhaps in the belief that as the truck had already unloaded its cargo inside the depot, it would be allowed to pass through the check point without further investigation or checking." [60] This point was deemed material and indicative that the theft had not been fully produced, for the Court of Appeals pronounced that "the fact determinative of consummation is the ability of the thief to dispose freely of the articles stolen, even if it were more or less momentary." [61] Support for this proposition was drawn from a decision of the Supreme Court of Spain dated 24 January 1888 (1888 decision), which was quoted as follows:

> *Considerando que para que el apoderamiento de la cosa sustraida sea determinate de la consumacion del delito de hurto es preciso que so haga en circunstancias tales que permitan al sustractor la libre disposicion de aquella, siquiera sea mas o menos momentaneamente, pues de otra suerte, dado el concepto del delito de hurto, no puede decirse en realidad que se haya producido en toda su extension, sin materializar demasiado el acto de tomar la cosa ajena*. [62]

Integrating these considerations, the Court of Appeals then concluded:

> This court is of the opinion that in the case at bar, in order to make the booty subject to the control and disposal of the culprits, the articles stolen must first be passed through the M.P. check point, but since the offense was

> opportunely discovered and the articles seized after all the acts of execution had been performed, but before the loot came under the final control and disposal of the looters, the offense can not be said to have been fully consummated, as it was frustrated by the timely intervention of the guard. The offense committed, therefore, is that of frustrated theft. [63]

Diño thus laid down the theory that the ability of the actor to freely dispose of the items stolen at the time of apprehension is determinative as to whether the theft is consummated or frustrated. This theory was applied again by the Court of Appeals some 15 years later, in *Flores*, a case which according to the division of the court that decided it, bore "no substantial variance between the circumstances [herein] and in [*Diño*]." [64] Such conclusion is borne out by the facts in *Flores*. The accused therein, a checker employed by the Luzon Stevedoring Company, issued a delivery receipt for one empty sea van to the truck driver who had loaded the purportedly empty sea van onto his truck at the terminal of the stevedoring company. The truck driver proceeded to show the delivery receipt to the guard on duty at the gate of the terminal. However, the guards insisted on inspecting the van, and discovered that the "empty" sea van had actually contained other merchandise as well. [65] The accused was prosecuted for theft qualified by abuse of confidence, and found himself convicted of the consummated crime. Before the Court of Appeals, accused argued in the alternative that he was guilty only of attempted theft, but the appellate court pointed out that there was no intervening act of spontaneous desistance on the part of the accused that "literally frustrated the theft." However, the Court of Appeals, explicitly relying on *Diño*, did find that the accused was guilty only of frustrated, and not consummated, theft.

As noted earlier, the appellate court admitted it found "no substantial variance" between *Diño* and *Flores* then before it. The prosecution in *Flores* had sought to distinguish that case from *Diño*, citing a "traditional ruling" which unfortunately was not identified in the decision itself. However, the Court of Appeals pointed out that the said "traditional ruling" was qualified by the words "is placed in a situation where [the actor] could dispose of its contents at once." [66] Pouncing on this qualification, the appellate court noted that "[o]bviously, while the truck and the van were still within the compound, the petitioner could not have disposed of the goods 'at once'." At the same time, the Court of Appeals conceded that "[t]his is entirely different from the case where a much less bulk and more common thing as money was the object of the crime, where freedom to dispose of or make use of it is palpably less restricted," [67] though no further qualification was offered what the effect would have been had that alternative circumstance been present instead.

Synthesis of the *Diño* and *Flores* rulings is in order. The determinative characteristic as to whether the crime of theft was produced is the ability of the actor "to freely dispose of the articles stolen, even if it were only momentary." Such conclusion was drawn from an 1888 decision of the Supreme Court of Spain which had pronounced that in determining whether theft had been consummated, "*es preciso que so haga en circunstancias tales que permitan al sustractor de aquella, siquiera sea mas o menos momentaneamente*." The qualifier "*siquiera sea mas o menos momentaneamente*" proves another important consideration, as it implies that if the actor was in a capacity to freely dispose of the stolen items before apprehension, then the theft could be deemed consummated. Such circumstance was not present in either *Diño* or *Flores*, as the stolen items in both cases were retrieved from the actor before they could be physically extracted from the guarded compounds from which the items

were filched. However, as implied in *Flores*, the character of the item stolen could lead to a different conclusion as to whether there could have been "free disposition," as in the case where the chattel involved was of "much less bulk and more common . . ., [such] as money . . . ." [68]

In his commentaries, Chief Justice Aquino makes the following pointed observation on the import of the *Diño* ruling:

> There is a ruling of the Court of Appeals that theft is consummated when the thief is able to freely dispose of the stolen articles even if it were more or less momentary. Or as stated in another case [[69]], theft is consummated upon the voluntary and malicious taking of property belonging to another which is realized by the material occupation of the thing whereby the thief places it under his control and in such a situation that he could *dispose of it at once*. This ruling seems to have been based on Viada's opinion that in order the theft may be consummated, "*es preciso que se haga en circumstancias* . . . [[70]]" [71]

In the same commentaries, Chief Justice Aquino, concluding from *Adiao* and other cases, also states that "[i]n theft or robbery the crime is consummated after the accused had material possession of the thing with intent to appropriate the same, although his act of making use of the thing was frustrated." [72]

There are at least two other Court of Appeals rulings that are at seeming variance with the *Diño* and *Flores* rulings. *People v. Batoon* [73] involved an accused who filled a container with gasoline from a petrol pump within view of a police detective, who followed the accused onto a passenger truck where the arrest was made. While the trial court found the accused guilty of frustrated qualified theft, the Court of Appeals held that the accused was guilty of consummated qualified theft, finding that "[t]he facts of the cases of *U.S. [v.] Adiao* . . . and *U.S. v. Sobrevilla* . . . indicate that actual taking with intent to gain is enough to consummate the crime of theft." [74]

In *People v. Espiritu*, [75] the accused had removed nine pieces of hospital linen from a supply depot and loaded them onto a truck. However, as the truck passed through the checkpoint, the stolen items were discovered by the Military Police running the checkpoint. Even though those facts clearly admit to similarity with those in *Diño*, the Court of Appeals held that the accused were guilty of consummated theft, as the accused "were able to take or get hold of the hospital linen and that the only thing that was frustrated, which does not constitute any element of theft, is the use or benefit that the thieves expected from the commission of the offense." [76]

In pointing out the distinction between *Diño* and *Espiritu*, Reyes wryly observes that "[w]hen the meaning of an element of a felony is controversial, there is bound to arise different rulings as to the stage of execution of that felony." [77] Indeed, we can discern from this survey of jurisprudence that the state of the law insofar as frustrated theft is concerned is muddled. It fact, given the disputed foundational basis of the concept of frustrated theft itself, the question can even be asked whether there is really such a crime in the first place.

IV.

The Court in 1984 did finally rule directly that an accused was guilty of frustrated, and not consummated, theft. As we undertake this inquiry, we have to reckon with the import of this Court's 1984 decision in *Empelis v. IAC.* [78]

As narrated in *Empelis*, the owner of a coconut plantation had espied four (4) persons in the premises of his plantation, in the act of gathering and tying some coconuts. The accused were surprised by the owner within the plantation as they were carrying with them the coconuts they had gathered. The accused fled the scene, dropping the coconuts they had seized, and were subsequently arrested after the owner reported the incident to the police. After trial, the accused were convicted of qualified theft, and the issue they raised on appeal was that they were guilty only of simple theft. The Court affirmed that the theft was qualified, following Article 310 of the Revised Penal Code, [79] but further held that the accused were guilty only of frustrated qualified theft.

It does not appear from the *Empelis* decision that the issue of whether the theft was consummated or frustrated was raised by any of the parties. What does appear, though, is that the disposition of that issue was contained in only two sentences, which we reproduce in full:

> However, the crime committed is only frustrated qualified theft because petitioners were not able to perform all the acts of execution which should have produced the felony as a consequence. They were not able to carry the coconuts away from the plantation due to the timely arrival of the owner. [80]

No legal reference or citation was offered for this averment, whether *Diño*, *Flores* or the Spanish authorities who may have bolstered the conclusion. There are indeed evident problems with this formulation in *Empelis*.

Empelis held that the crime was only frustrated because the actors "were **not able to perform all the acts of execution** which should have produced the felon as a consequence." [81] However, per Article 6 of the Revised Penal Code, the crime is frustrated "**when the offender performs all the acts of execution**," though not producing the felony as a result. If the offender was not able to perform all the acts of execution, the crime is attempted, provided that the non-performance was by reason of some cause or accident other than spontaneous desistance. *Empelis* concludes that the crime was frustrated because not all of the acts of execution were performed due to the timely arrival of the owner. However, following Article 6 of the Revised Penal Code, these facts should elicit the conclusion that the crime was only attempted, especially given that the acts were not performed because of the timely arrival of the owner, and not because of spontaneous desistance by the offenders.

For these reasons, we cannot attribute weight to *Empelis* as we consider the present petition. Even if the two sentences we had cited actually aligned with the definitions provided in Article 6 of the Revised Penal Code, such passage bears no reflection that it is the product of the considered evaluation of the relevant legal or jurisprudential thought. Instead, the passage is offered as if it were sourced from an indubitable legal premise so settled it required no further explication.

Notably, *Empelis* has not since been reaffirmed by the Court, or even cited as authority on theft. Indeed, we cannot see how *Empelis* can contribute to our present debate, except for the bare fact that it proves that the Court had once deliberately found an accused guilty of frustrated theft. Even if *Empelis* were considered as a precedent for frustrated theft, its doctrinal value is extremely compromised by the erroneous legal premises that inform it, and also by the fact that it has not been entrenched by subsequent reliance.

Thus, *Empelis* does not compel us that it is an insurmountable given that frustrated theft is viable in this jurisdiction. Considering the flawed reasoning behind its conclusion of frustrated theft, it cannot present any efficacious argument to persuade us in this case. Insofar as *Empelis* may imply that convictions for frustrated theft are beyond cavil in this jurisdiction, that decision is subject to reassessment.

V.

At the time our Revised Penal Code was enacted in 1930, the 1870 *Codigo Penal de España* was then in place. The definition of the crime of theft, as provided then, read as follows:

> *Son reos de hurto*:
>
> 1. *Los que con ánimo de lucrarse, y sin volencia o intimidación en las personas ni fuerza en las cosas, toman las cosas muebles ajenas sin la voluntad de su dueño*.
>
> 2. *Los que encontrándose una cosa perdida y sabiendo quién es su dueño se la apropriaren co intención de lucro*.
>
> 3. *Los dañadores que sustrajeren o utilizaren los frutos u objeto del daño causado, salvo los casos previstos en los articulos 606, núm. 1.0; 607, núms, 1.0, 2.0 y 3.0; 608, núm. 1.0; 611; 613; Segundo párrafo del 617 y 618*.

It was under the ambit of the 1870 *Codigo Penal* that the aforecited Spanish Supreme Court decisions were handed down. However, the said code would be revised again in 1932, and several times thereafter. In fact, under the *Codigo Penal Español de 1995*, the crime of theft is now simply defined as " *[e]l que, con ánimo de lucro, tomare las cosas muebles ajenas sin la voluntad de su dueño será castigado.*" [82]

Notice that in the 1870 and 1995 definition of theft in the penal c ode of Spain, "*la libre disposicion*" of the property is not an element or a statutory characteristic of the crime. It does appear that the principle originated and perhaps was fostered in the realm of Spanish jurisprudence.

The oft-cited Salvador Viada adopted a question-answer form in his 1926 commentaries on the 1870 *Codigo Penal de España*. Therein, he raised at least three questions for the reader whether the crime of frustrated or consummated theft had occurred. The passage cited in *Diño* was actually utilized by Viada to answer the question whether frustrated or consummated theft was committed "[*e*]*l que en el momento mismo de apoderarse de la cosa ajena, viéndose sorprendido, la arroja al suelo*." [83] Even as the answer was as stated in *Diño*, and was indeed derived from the 1888 decision of the Supreme Court of Spain, that decision's factual predicate occasioning the statement was apparently very different from *Diño*, for it appears that the 1888 decision involved an accused who was surprised by the employees of a haberdashery as he was abstracting a layer of clothing off a mannequin, and who then proceeded to throw away the garment as he fled. [84]

Nonetheless, Viada does not contest the notion of frustrated theft, and willingly recites decisions of the Supreme Court of Spain that have held to that effect. [85] A few

decades later, the esteemed Eugenio Cuello Calón pointed out the inconsistent application by the Spanish Supreme Court with respect to frustrated theft.

> *Hay frustración cuando los reos fueron sorprendidos por las guardias cuando llevaban los sacos de harino del carro que los conducia a otro que tenían preparado, 22 febrero 1913; cuando el resultado no tuvo efecto por la intervención de la policia situada en el local donde se realizó la sustracción que impidió pudieran los reos disponer de lo sustraído, 30 de octubre 1950. Hay "por lo menos" frustración, si existe apoderamiento, pero el culpale no llega a disponer de la cosa, 12 abril 1930; hay frustración "muy próxima" cuando el culpable es detenido por el perjudicado acto seguido de cometer la sustracción, 28 febrero 1931. Algunos fallos han considerado la existencia de frustración cuando, perseguido el culpable o sorprendido en el momento de llevar los efectos hurtados, los abandona, 29 mayo 1889, 22 febrero 1913, 11 marzo 1921; esta doctrina no es admissible, éstos, conforme a lo antes expuesto, son hurtos consumados*. [86]

Ultimately, Cuello Calón attacked the very idea that frustrated theft is actually possible:

> *La doctrina hoy generalmente sustentada considera que el hurto se consuma cuando la cosa queda de hecho a la disposición del agente. Con este criterio coincide la doctrina sentada últimamente porla jurisprudencia española que generalmente considera consumado el hurto cuando el culpable coge o aprehende la cosa y ésta quede por tiempo más o menos duradero bajo su poder. El hecho de que éste pueda aprovecharse o no de lo hurtado es indiferente. El delito no pierde su carácter de consumado aunque la cosa hurtada sea devuelta por el culpable o fuere recuperada.* ***No se concibe la frustración, pues es muy dificil que el que hace cuanto es necesario para la consumación del hurto no lo consume efectivamente, los raros casos que nuestra jurisprudencia, muy vacilante, declara hurtos frustrados son verdaderos delitos consumados.*** [87] (Emphasis supplied)

Cuello Calón's submissions cannot be lightly ignored. Unlike Viada, who was content with replicating the Spanish Supreme Court decisions on the matter, Cuello Calón actually set forth his own thought that questioned whether theft could truly be frustrated, since *"pues es muy dificil que el que hace cuanto es necesario para la consumación del hurto no lo consume efectivamente."* Otherwise put, it would be difficult to foresee how the execution of all the acts necessary for the completion of the crime would not produce the effect of theft.

This divergence of opinion convinces us, at least, that there is no weighted force in scholarly thought that obliges us to accept frustrated theft, as proposed in *Diño* and *Flores*. A final ruling by the Court that there is no crime of frustrated theft in this jurisdiction will not lead to scholastic pariah, for such a submission is hardly heretical in light of Cuello Calón's position.

Accordingly, it would not be intellectually disingenuous for the Court to look at the question from a fresh perspective, as we are not bound by the opinions of the respected Spanish commentators, conflicting as they are, to accept that theft is capable of

commission in its frustrated stage. Further, if we ask the question whether there is a mandate of statute or precedent that must compel us to adopt the *Diño* and *Flores* doctrines, the answer has to be in the negative. If we did so, it would arise not out of obeisance to an inexorably higher command, but from the exercise of the function of statutory interpretation that comes as part and parcel of judicial review, and a function that allows breathing room for a variety of theorems in competition until one is ultimately adopted by this Court.

V.

The foremost predicate that guides us as we explore the matter is that it lies in the province of the legislature, through statute, to define what constitutes a particular crime in this jurisdiction. It is the legislature, as representatives of the sovereign people, which determines which acts or combination of acts are criminal in nature. Judicial interpretation of penal laws should be aligned with what was the evident legislative intent, as expressed primarily in the language of the law as it defines the crime. It is Congress, not the courts, which is to define a crime, and ordain its punishment. [88] The courts cannot arrogate the power to introduce a new element of a crime which was unintended by the legislature, or redefine a crime in a manner that does not hew to the statutory language. Due respect for the prerogative of Congress in defining crimes/felonies constrains the Court to refrain from a broad interpretation of penal laws where a "narrow interpretation" is appropriate. "The Court must take heed of language, legislative history and purpose, in order to strictly determine the wrath and breath of the conduct the law forbids." [89]

With that in mind, a problem clearly emerges with the *Diño/Flores* dictum. The ability of the offender to freely dispose of the property stolen is not a constitutive element of the crime of theft. It finds no support or extension in Article 308, whether as a descriptive or operative element of theft or as the *mens rea* or *actus reus* of the felony. To restate what this Court has repeatedly held: the elements of the crime of theft as provided for in Article 308 of the Revised Penal Code are: (1) that there be taking of personal property; (2) that said property belongs to another; (3) that the taking be done with intent to gain; (4) that the taking be done without the consent of the owner; and (5) that the taking be accomplished without the use of violence against or intimidation of persons or force upon things. [90]

Such factor runs immaterial to the statutory definition of theft, which is the taking, with intent to gain, of personal property of another without the latter's consent. While the *Diño/Flores* dictum is considerate to the mindset of the offender, the statutory definition of theft considers only the perspective of intent to gain on the part of the offender, compounded by the deprivation of property on the part of the victim.

For the purpose of ascertaining whether theft is susceptible of commission in the frustrated stage, the question is again, when is the crime of theft produced? There would be all but certain unanimity in the position that theft is produced when there is deprivation of personal property due to its taking by one with intent to gain. Viewed from that perspective, it is immaterial to the product of the felony that the offender, once having committed all the acts of execution for theft, is able or unable to freely dispose of the property stolen since the deprivation from the owner alone has already ensued from such acts of execution. This conclusion is reflected in Chief Justice Aquino's commentaries, as earlier cited, that "[i]n theft or robbery the crime is consummated after the accused had material possession of the thing with intent to appropriate the same, although his act of making use of the thing was frustrated." [91]

It might be argued, that the ability of the offender to freely dispose of the property stolen delves into the concept of "taking" itself, in that there could be no true taking until the actor obtains such degree of control over the stolen item. But even if this were correct, the effect would be to downgrade the crime to its attempted, and not frustrated stage, for it would mean that not all the acts of execution have not been completed, the "taking not having been accomplished." Perhaps this point could serve as fertile ground for future discussion, but our concern now is whether there is indeed a crime of frustrated theft, and such consideration proves ultimately immaterial to that question. Moreover, such issue will not apply to the facts of this particular case. We are satisfied beyond reasonable doubt that the taking by the petitioner was completed in this case. With intent to gain, he acquired physical possession of the stolen cases of detergent for a considerable period of time that he was able to drop these off at a spot in the parking lot, and long enough to load these onto a taxicab.

Indeed, we have, after all, held that unlawful taking, or *apoderamiento*, is deemed complete from the moment the offender gains possession of the thing, even if he has no opportunity to dispose of the same. [92] And long ago, we asserted in *People v. Avila*: [93]

> . . . [T]he most fundamental notion in the crime of theft is the taking of the thing to be appropriated into the physical power of the thief, which idea is qualified by other conditions, such as that the taking must be effected *animo lucrandi* and without the consent of the owner; and it will be here noted that the definition does not require that the taking should be effected against the will of the owner but merely that it should be without his consent, a distinction of no slight importance. [94]

Insofar as we consider the present question, "unlawful taking" is most material in this respect. Unlawful taking, which is the deprivation of one's personal property, is the element which produces the felony in its consummated stage. At the same time, without unlawful taking as an act of execution, the offense could only be attempted theft, if at all.

With these considerations, we can only conclude that under Article 308 of the Revised Penal Code, theft cannot have a frustrated stage. Theft can only be attempted or consummated.

Neither *Diño* nor *Flores* can convince us otherwise. Both fail to consider that once the offenders therein obtained possession over the stolen items, the effect of the felony has been produced as there has been deprivation of property. The presumed inability of the offenders to freely dispose of the stolen property does not negate the fact that the owners have already been deprived of their right to possession upon the completion of the taking.

Moreover, as is evident in this case, the adoption of the rule — that the inability of the offender to freely dispose of the stolen property frustrates the theft — would introduce a convenient defense for the accused which does not reflect any legislated intent, [95] since the Court would have carved a viable means for offenders to seek a mitigated penalty under applied circumstances that do not admit of easy classification. It is difficult to formulate definite standards as to when a stolen item is susceptible to free disposal by the thief. Would this depend on the psychological belief of the offender at the time of the commission of the crime, as implied in *Diño*?

Or, more likely, the appreciation of several classes of factual circumstances such as the size and weight of the property, the location of the property, the number and identity of people present at the scene of the crime, the number and identity of people

whom the offender is expected to encounter upon fleeing with the stolen property, the manner in which the stolen item had been housed or stored; and quite frankly, a whole lot more. Even the fungibility or edibility of the stolen item would come into account, relevant as that would be on whether such property is capable of free disposal at any stage, even after the taking has been consummated.

All these complications will make us lose sight of the fact that beneath all the colorful detail, the owner was indeed deprived of property by one who intended to produce such deprivation for reasons of gain. For such will remain the presumed fact if frustrated theft were recognized, for therein, all of the acts of execution, including the taking, have been completed. If the facts establish the non-completion of the taking due to these peculiar circumstances, the effect could be to downgrade the crime to the attempted stage, as not all of the acts of execution have been performed. But once all these acts have been executed, the taking has been completed, causing the unlawful deprivation of property, and ultimately the consummation of the theft.

Maybe the *Diño/Flores* rulings are, in some degree, grounded in common sense. Yet they do not align with the legislated framework of the crime of theft. The Revised Penal Code provisions on theft have not been designed in such fashion as to accommodate said rulings. Again, there is no language in Article 308 that expressly or impliedly allows that the "free disposition of the items stolen" is in any way determinative of whether the crime of theft has been produced. *Diño* itself did not rely on Philippine laws or jurisprudence to bolster its conclusion, and the later *Flores* was ultimately content in relying on *Diño* alone for legal support. These cases do not enjoy the weight of *stare decisis*, and even if they did, their erroneous appreciation of our law on theft leave them susceptible to reversal. The same holds true of *Empilis*, a regrettably stray decision which has not since found favor from this Court.

We thus conclude that under the Revised Penal Code, there is no crime of frustrated theft. As petitioner has latched the success of his appeal on our acceptance of the *Diño* and *Flores* rulings, his petition must be denied, for we decline to adopt said rulings in our jurisdiction. That it has taken all these years for us to recognize that there can be no frustrated theft under the Revised Penal Code does not detract from the correctness of this conclusion. It will take considerable amendments to our Revised Penal Code in order that frustrated theft may be recognized. Our deference to Viada yields to the higher reverence for legislative intent.

WHEREFORE, the petition is DENIED. Costs against petitioner.

SO ORDERED.

Puno, C.J., Ynares-Santiago, Sandoval-Gutierrez, Carpio, Austria-Martinez, Corona, Carpio-Morales, Azcuna, Chico-Nazario, Garcia, Velasco, Jr. and *Nachura, JJ.,* concur.

Quisumbing, J., is on official leave.

Footnotes

1. See *infra, People v. Diño* and *People v. Flores*.

2. Not accounting for those unpublished or unreported decisions, in the one hundred year history of this Court, which could no longer be retrieved from the Philippine Reports or

other secondary sources, due to their wholesale destruction during the Second World War or for other reasons.

3. See *People v. Adiao*, *infra*. There have been a few cases wherein the Court let stand a conviction for frustrated theft, yet in none of those cases was the issue squarely presented that theft could be committed at its frustrated stage. See *People v. Abuyen*, 52 Phil. 722 (1929); *People v. Flores*, 63 Phil. 443 (1936); and *People v. Tapang*, 88 Phil. 721 (1951). In *People v. Argel* G.R. No. L-45975, 25 May 1981, 192 SCRA 21, the Court did tacitly accept the viability of a conviction for frustrated theft, though the issue expounded on by the Court pertained to the proper appellate jurisdiction over such conviction.

   It would indeed be error to perceive that convictions for frustrated theft are traditionally unconventional in this jurisdiction, as such have routinely been handed down by lower courts, as a survey of jurisprudence would reveal. Still, the plain fact remains that this Court , since *Adiao* in 1918, has yet to directly rule on the legal foundation of frustrated theft, or even discuss such scenario by way of *dicta*.

   In passing, we take note of a recent decision of the Court of Appeals in *People v. Concepcion*, C.A. G.R. CR No. 28280, 11 July 2005 (See at http://ca.supremecourt.gov.ph /cardis/CR28280.pdf), where the appellate court affirmed a conviction for frustrated theft, the accused therein having been caught inside Meralco property before he could flee with some copper electrical wire. However, in the said decision, the accused was charged at the onset with frustrated theft, and the Court of Appeals did not inquire why the crime committed was only frustrated theft. Moreover, the charge for theft was not under the Revised Penal Code, but under Rep. Act No. 7832, a special law.

4. 53 Phil. 226 (1929).

5. 217 Phil. 377 (1984).

6. Records, pp. 1-2.

7. *Rollo*, pp. 21-22.

8. *Id.* at 22.

9. See *id.* at 472.

10. See Records, pp. 7-14. A brief comment is warranted regarding these four (4) other apparent suspects. The affidavits and sworn statements that were executed during the police investigation by security guards Lago and Vivencio Yanson, by SM employee Adelio Nakar, and by the taxi driver whose cab had been hailed to transport the accused, commonly point to all six as co-participants in the theft of the detergents. It is not explained in the record why no charges were brought against the four (4) other suspects, and the prosecution's case before the trial court did not attempt to draw in any other suspects other than petitioner and Calderon. On the other hand, both petitioner and Calderon claimed during trial that they were innocent bystanders who happened to be in the vicinity of the Super Sale Club at the time of the incident when they were haled in, along with the four (4) other suspects by the security guards in the resulting confusion. See *infra*. However, both petitioner and Calderon made no move to demonstrate that the non-filing of the charges against the four (4) other suspects somehow bolstered their plea of innocence.

In any event, from the time this case had been elevated on appeal to the Court of Appeals, no question was anymore raised on the version of facts presented by the prosecution. Thus, any issue relative to these four (4) other suspects should bear no effect in the present consideration of the case.

11. Also identified in the case record as "Rosalada" or "Rosullado." He happened to be among the four (4) other suspects also apprehended at the scene and brought for investigation to the Baler PNP Station. See *id.* Rosulada also testified in court in behalf of Calderon. See Records, pp. 357-390.

12. Records, pp. 330-337.

13. A person who was neither among the four (4) other suspects (see note 6) nor a witness for the defense.

14. *Rollo*, p. 25.

15. Records, pp. 424-425.

16. *Id.* at 472-474; Penned by Judge Reynaldo B. Daway.

17. *Id.* at 474.

18. *Id.* at 484.

19. CA *rollo*, pp. 54-62.

20. *Rollo*, p. 25.

21. *Id.* at 20-27. Penned by Associate Justice Eubolo G. Verzola of the Court of Appeals Third Division, concurred in by Associate Justices Martin S. Villarama, Jr. and Mario L. Guariña.

22. A motion for reconsideration filed by petitioner was denied by the Court of Appeals in a Resolution dated 1 October 2003.

23. *Rollo*, pp. 8-15.

24. *Id.* at 12.

25. *Id.* at 9.

26. *Id.* at 13-14.

27. No. 924-R, 18 February 1948, 45 O.G. 3446.

28. 6 C.A. Rep. 2d 835 (1964).

29. See *e.g.*, L.B. REYES, I THE REVISED PENAL CODE: CRIMINAL LAW (13th ed., 2001), at 112-113 and R. AQUINO, I THE REVISED PENAL CODE (1997 ed.), at 122.

30. Act No. 3815, as amended.

31. See *People v. Caballero*, 448 Phil. 514, 534 (2003). Reyes defines the final point of the subjective phase as "that point where [the offender] still has control over his acts, including their (acts') natural course." See L.B. REYES, I THE REVISED PENAL CODE: CRIMINAL LAW (13th Ed., 2001), at 101.

32. *People v. Caballero*, 448 Phil. 514, 534 (2003).

33. See *e.g., U.S. v. Eduave*, 36 Phil. 209, 212 (1917); *People v. Caballero*, *id.*

34. *U.S. v. Eduave*, 36 Phil. 209, 212 (1917).

35. *People v. Pacana*, 47 Phil. 48 (1925); cited in AQUINO, *supra* note 29, at 39. See also *Lecaroz v. Sandiganbayan*, 364 Phil. 890, 905 (1999).

36. See *Padilla v. Dizon*, A.C. No. 3086, 23 February 1988, 158 SCRA 127, 135.

37. *People v. Moreno*, 356 Phil. 231, 248 (1998) citing BLACK'S LAW DICTIONARY, 5th ed., p. 889.

38. *Jariol, Jr. v. Sandiganbayan*, Nos. L-52095-52116, 13 August 1990, 188 SCRA 475, 490.

39. *City of Chicago v. Morales*, 527 U.S. 41 (1999) cited in Separate Opinion, *J.* Tinga, *Romualdez v. Sandiganbayan*, G.R. No. 152259, 29 July 2004, 435 SCRA 371, 400.

40. J. Feliciano, Concurring and Dissenting, *Umil v. Ramos*, G.R. No. 81567, 3 October 1991, 202 SCRA 251, 288.

41. See also REVISED PENAL CODE, Art. 310, which qualifies theft with a penalty two degrees higher "if committed by a domestic servant, or with grave abuse of confidence, or if the property stolen is motor vehicle, mail matter or large cattle or consists of coconuts taken from the premises of the plantation or fish taken from a fishpond or fishery, or if property is taken on the occasion of fire, earthquake, typhoon, volcanic eruption, or any other calamity, vehicular accident or civil disturbance."

42. See *People v. Bustinera*, G.R. No. 148233, 8 June 2004, 431 SCRA 284, 291, citing *People v. Sison*, 322 SCRA 345, 363-364 (2000).

43. S. GUEVARRA, COMMENTARIES ON THE REVISED PENAL CODE (4th ed., 1946), at 614.

44. *Id.* at 615.

45. *Id.* citing Inst. 4, 1, 1.

46. Section 1(2) of the Theft Act of 1968 states: "It is immaterial whether the appropriation is made with a view to gain, or is made for the thief's own benefit." Sir John Smith provides a sensible rationalization for this doctrine: "Thus, to take examples from the old law, if D takes P's letters and puts them down on a lavatory or backs P's horse down a mine shaft, he is guilty of theft notwithstanding the fact that he intends only loss to P and no gain to himself or anyone else. It might be thought that these instances could safely and more appropriately have been left to other branches of the criminal law — that of criminal damage to property for instance. But there are cases where there is no such damage or destruction of the thing as would found a charge under another Act. For example, D takes P's diamond and flings it into a deep pond. The diamond lies unharmed in the pond and a prosecution for criminal damage would fail. It seems clearly right that D should be guilty of theft." J. SMITH, SMITH & HOGAN CRIMINAL LAW (9th ed., 1999), at 534.

47. F. REGALADO, CRIMINAL LAW CONSPECTUS (1st ed., 2000), at 520.

48. *People v. Kho Choc*, 50 O.G. 1667, cited in REGALADO, *id.* at 521.

49. *People v. Galang*, CA, 43 O.G. 577; *People v. Rico*, CA, 50 O.G. 3103; *cf. People v. Roxas*, CA-G.R. No. 14953, 31 October 1956, all cited in REGALADO, *supra* note 47 at 521.

50. *People v. Fernandez*, CA, 38 O.G. 985; *People v. Martisano*, CA, 48 O.G. 4417, cited in REGALADO, *supra* note 47 at 521.

51. REGALADO, *supra* note 47 at 521 citing *Villacorta v. Insurance Commission*, G.R. No. 54171, 28 October 1980, 100 SCRA 467; *Association of Baptists for World Evangelism v. Fieldmen's Ins. Co.*, No. L-28772, 21 September 1983, 209 Phil. 505 (1983). See also *People v. Bustinera*, *supra* note 42.

52. The distinction being "inconsequential" if the criminal charge is based on a special law such as the Dangerous Drugs Law. See *e.g.*, *People v. Enriquez*, G.R. No. 99838, October 23, 1997, 281 SCRA 103, 120.

53. 38 Phil. 754 (1918).

54. *Id.* at 755.

55. *Id.*

56. *Id.* at 755-756.

57. *Supra* note 4.

58. *Supra* note 4 at 227.

59. *Id.*

60. *People v. Diño*, *supra* note 27 at 3450.

61. *Id.*

62. *Id.*

63. *Id.* at 3451.

64. *People v. Flores*, *supra* note 28 at 840.

65. *Id.* at 836. The Court of Appeals in *Flores* did not identify the character of these stolen merchandise.

66. *Id.* at 841.

67. *Id.*

68. *People v. Diño*, *supra* note 27 at 841.

69. *People v. Naval and Beltran*, CA 46 O.G. 2641.

70. See note 62.

71. AQUINO, *supra* note 29 at 122.

72. *Id.* at 110.

73. C.A. G.R. No. 20105-R, 4 October 1958, 55 O.G. 1388.

74. *Id.* at 1391. Citations omitted.

75. CA G.R. No. 2107-R, 31 May 1949.

76. Note the similarity between this holding and the observations of Chief Justice Aquino in note 72.

77. REYES, *supra* note 29 at 113.

78. *Supra* note 5.

79. "REVISED PENAL CODE, Art. 310 states that the crime of theft shall "be punished by the penalties next higher by two degrees than those respectively expressed in the next preceding article . . . if the property stolen . . . consists of coconuts taken from the premises of a plantation, ..." Thus, the stealing of coconuts when they are still in the tree or deposited on the ground within the premises is qualified theft. When the coconuts are stolen in any other place, it is simple theft. Stated differently, if the coconuts were taken in front of a house along the highway outside the coconut plantation, it would be simple theft only.

    [In the case at bar, petitioners were seen carrying away fifty coconuts while they were still in the premises of the plantation. They would therefore come within the definition of qualified theft because the property stolen consists of coconuts "taken from the premises of a plantation."] *Empelis v. IAC, supra* note 5, at 379, 380.

80. *Empelis v. IAC, supra* note 5, at 380.

81. *Id.*

82. Art. 234, Código Penal Español de 1995. See *Ley Orgánica 10/1995, de 23 de noviembre, del Código Penal*, http://noticias.juridicas.com/base_datos/Penal/lo10-1995.html (Last visited, 15 April 2007). The traditional qualifier "but without violence against or intimidation of persons nor force upon things," is instead incorporated in the definition of robbery ("robos") under Articulo 237 of the same Code ("*Son reos del delito de robo los que, con ánimo de lucro, se apoderaren de las cosas muebles ajenas empleando fuerza en las cosas para acceder al lugar donde éstas se encuentran o violencia o intimidación en las personas*.")

    By way of contrast, the Theft Act 1968 of Great Britain defines theft in the following manner: "A person is guilty of theft if he dishonestly appropriates property belonging to another with the intention of permanently depriving the other of it; and 'thief' and 'steal' shall be construed accordingly." See Section 1(1), Theft Act 1968 (Great Britain). The most notable difference between the modern British and Spanish laws on theft is the absence in the former of the element of *animo lucrandi*. See note 42.

83. 1 S. VIADA, CODIGO PENAL REFORMADO DE 1870 (1926 ed) at 103.

84. "*Considerando que según se desprende de la sentencia recurrida, los dependientes de la sastrería de D. Joaquin Gabino sorprendieron al penado Juan Gomez Lopez al tomar una capa que había en un maniquí, por lo que hubo de arrojarla al suelo, siendo detenido despues por agentes de la Autoridad yque esto supuesto es evidente que el*

delito no aparece realizado en toda la extensión precisa para poderlo calificar como consumado, etc." *Id.* at 103-104.

85. The other examples cited by Viada of frustrated theft are in the case where the offender was caught stealing potatoes off a field by storing them in his coat, before he could leave the field where the potatoes were taken, see Viada (*supra* note 83, at 103), where the offender was surprised at the meadow from where he was stealing firewood, *id.*

86. E. CUELLO CALON, II DERECHO PENAL (1955 ed.), at 799 (Footnote 1).

87. *Id.* at 798-799.

88. *Laurel v. Abrogar*, G.R. No. 155076, 27 February 2006, 483 SCRA 243, 266, citing *United States v. Wiltberger*, 18 U.S. 76 (1820).

89. *Laurel v. Abrogar*, G.R. No. 155076, 27 February 2006, 483 SCRA 243. See also *Dowling v. United States*, 473 U.S. 207 (1985).

90. See *e.g.*, *People v. Bustinera*, *supra* note 42.

91. AQUINO, *supra* note 29, at 110.

92. *People v. Obillo*, 411 Phil. 139, 150 (2001); *People v. Bernabe*, 448 Phil. 269, 280 (2003); *People v. Bustinera*, *supra* note 42 at 295.

93. 44 Phil. 720 (1923).

94. *Id.* at 726.

95. Justice Regalado cautions against "putting a premium upon the pretensions of an accused geared towards obtention of a reduced penalty." REGALADO, *supra* note 47, at 27.

n Note from the Publisher: Written as "Act No. 3185" in the original document.

EN BANC

[G.R. No. 43530. August 3, 1935.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **AURELIO LAMAHANG**, *defendant-appellant*.

D E C I S I O N

RECTO, *J* :

The defendant Aurelio Lamahang is before this court on appeal from a decision of the Court of First Instance of Iloilo, finding him guilty of attempted robbery and sentencing him to suffer two years and four months of *prision correccional* and to an additional penalty of ten years and one day of *prision mayor* for being an habitual delinquent, with the accessory penalties of the law, and to pay the costs of the proceeding.

At early dawn on March 2, 1935, policeman Jose Tomambing, who was patrolling his beat on Delgado and C. R. Fuentes streets of the City of Iloilo, caught the accused in the act of making an opening with an iron bar on the wall of a store of cheap goods located on the last named street. At that time the owner of the store, Tan Yu, was sleeping inside with another Chinaman. The accused had only succeeded in breaking one board and in unfastening another from the wall, when the policeman showed up, who instantly arrested him and placed him under custody.

The fact above stated was considered and declared unanimously by the provincial fiscal of Iloilo, the trial judge and the Solicitor-General, as constituting attempted robbery, which we think is erroneous.

It is our opinion that the attempt to commit an offense which the Penal Code punishes is that which has a logical relation to a particular, concrete offense; that, which is the beginning of the execution of the offense by overt acts of the perpetrator, leading directly to its realization and consummation. The attempt to commit an indeterminate offense, inasmuch as its nature in relation to its objective is ambiguous, is not a juridical fact from the standpoint of the Penal Code. There is no doubt that in the case at bar it was the intention of the accused to enter Tan Yu's store by means of violence, passing through the opening which he had started to make on the wall, in order to commit an offense which, due to the timely arrival of policeman Tomambing, did not develop beyond the first steps of its execution. But it is not sufficient, for the purpose of imposing penal sanction, that an act objectively performed constitute a mere beginning of execution; it is necessary to establish its unavoidable connection, like the logical and natural relation of the cause and its effect, with the deed which, upon its consummation, will develop into one of the offenses defined and punished by the Code; it is necessary to prove that said beginning of execution, if carried to its complete termination following its natural course, without being frustrated by external obstacles nor by the voluntary desistance of the perpetrator, will logically and necessarily ripen into a concrete offense. Thus, in case of robbery, in order that the simple act of entering by means of force or violence another person's dwelling may be considered an attempt to commit this

offense, it must be shown that the offender clearly intended to take possession, for the purpose of gain, of some personal property belonging to another. In the instant case, there is nothing in the record from which such purpose of the accused may reasonably be inferred. From the fact established and stated in the decision, that the accused on the day in question was making an opening by means of an iron bar on the wall of Tan Yu's store, it may only be inferred as a logical conclusion that his evident intention was to enter by means of force said store against the will of its owner. That his final objective, once he succeeded in entering the store, was to rob, to cause physical injury to the inmates, or to commit any other offense, there is nothing in the record to justify a concrete finding.

> "It must be borne in mind (I Groizard, p. 99) that in offenses not consummated, as the material damage is wanting, the nature of the action intended (*accion fin*) cannot exactly be ascertained, but the same must be inferred from the nature of the acts executed (*accion medio*). Hence, the necessity that these acts be such that by their very nature, by the facts to which they are related, by the circumstances of the persons performing the same, and by the things connected therewith, they must show without any doubt, that they are aimed at the consummation of a crime. Acts susceptible of double interpretation, that is, in favor as well as against the culprit, and which show an innocent as well as a punishable act, must not and can not furnish grounds by themselves for attempted nor frustrated crimes. The relation existing between the facts submitted for appreciation and the offense which said facts are supposed to produce must be direct; the intention must be ascertained from the facts and therefore it is necessary, in order to avoid regrettable instances of injustice, that the mind be able to directly infer from them the intention of the perpetrator to cause a particular injury. This must have been the intention of the legislator in requiring that in order for an attempt to exist, the offender must commence the commission of the felony directly by overt acts, that is to say, that the acts performed must be such that, without the intent to commit an offense, they would be meaningless."

Viada (Vol. I, p. 47) holds the same opinion when he says that "the overt acts leading to the commission of the offense, are not punishable except when they are aimed directly to its execution, and therefore they must have an immediate and necessary relation to the offense."

> "Considering — says the Supreme Court of Spain in its decision of March 21, 1892 — that in order to declare that such and such overt acts constitute an attempted offense it is necessary that their objective be known and established, or that said acts be of such nature that they themselves should obviously disclose the criminal objective necessarily intended, said objective and finality to serve as ground for the designation of the offense: . . .."

In view of the foregoing, we are of the opinion, and so hold that the fact under consideration does not constitute attempted robbery but attempted trespass to dwelling (People vs. Tayag and Morales, 59 Phil., 606, and decisions of the Supreme Court of Spain therein cited). Under article 280 of the Revised Penal Code, this offense is committed when a private person shall enter the dwelling of another against the latter's will. The accused may be convicted and sentenced for an attempt to commit this offense in accordance with the evidence and the following allegation contained in the information: ". . . the accused armed with an iron bar forced the wall of said store by breaking a board and unfastening another for the purpose of entering said store . . . and that the accused did not succeed in entering the store due to the presence of the policeman on beat Jose Tomambing, who upon hearing the noise produced by the

breaking of the wall, promptly approached the accused ***." Under the circumstances of this case the prohibition of the owner or inmate is presumed. (U. S. vs. Ostrea, 2 Phil., 93; U. S. vs. Silvano, 31 Phil., 509; U. S. vs. Ticson, 25 Phil., 67; U. S. vs. Mesina, 21 Phil., 615; U. S. vs. Villanueva, 18 Phil., 215; U. S. vs. Panes, 25 Phil., 292.) Against the accused must be taken into consideration the aggravating circumstances of nighttime and former convictions, — inasmuch as the record shows that several final judgments for robbery and theft have been rendered against him — and in his favor, the mitigating circumstance of lack of instruction. The breaking of the wall should not be taken into consideration as an aggravating circumstance inasmuch as this is the very fact which in this case constitutes the offense of attempted trespass to dwelling.

The penalty provided by the Revised Penal Code for the consummated offense of trespass to dwelling, if committed with force, is *prision correccional* in its medium and maximum periods and a fine not exceeding P1,000 (art. 280, par. 2); therefore the penalty corresponding to attempted trespass to dwelling is two degrees lower (art. 51), or, *arresto mayor* in its minimum and medium periods. Because of the presence of two aggravating circumstances and one mitigating circumstance the penalty must be imposed in its maximum period. Pursuant to article 29 of the same Code, the accused is not entitled to credit for one-half of his preventive imprisonment.

Wherefore, the sentence appealed from is revoked and the accused is hereby held guilty of attempted trespass to dwelling, committed by means of force, with the aforesaid aggravating and mitigating circumstances and sentenced to three months and one day of arresto mayor, with the accessory penalties thereof and to pay the costs.

Avanceña, C.J., Abad Santos, Hull and *Vickers, JJ.,* concur.

SECOND DIVISION

[G.R. No. 86163. April 26, 1990.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **BIENVENIDO SALVILLA, REYNALDO CANASARES, RONALDO CANASARES, AND SIMPLICIO CANASARES, BIENVENIDO SALVILLA**, *defendant-appellant*.

D E C I S I O N

MELENCIO-HERRERA, *J* :

Accused Bienvenido Salvilla alone appeals from the Decision of the Regional Trial Court, Branch 28, Iloilo City, * dated 29 August 1988, in Criminal Case No. 20092, finding him and his co-accused Reynaldo, Ronaldo and Simplicio, all surnamed Canasares, guilty beyond reasonable doubt of the crime of "Robbery with Serious Physical Injuries and Serious Illegal Detention" and sentencing them to suffer the penalty of *reclusion perpetua*.

The Information filed against them reads:

> "The undersigned City Fiscal accuses BIENVENIDO SALVILLA, REYNALDO CANASARES, RONALDO CANASARES, and SIMPLICIO CANASARES, whose maternal surnames, dated and places of birth cannot be ascertained of the crime of ROBBERY WITH SERIOUS PHYSICAL INJURIES AND SERIOUS ILLEGAL DETENTION (Art. 294, paragraph 3, in conjunction with Article 267 of the Revised Penal Code), committed as follows:
>
> That on or about the 12th day of April, 1986, in the City of Iloilo, Philippines and within the jurisdiction of this Court, said accused, conspiring and confederating among themselves, working together and helping one another, armed with guns and handgrenade and with the use of violence or intimidation employed on the person of Severino Choco, Mary Choco, Mimia Choco and Rodita Hablero, did then and there wilfully, unlawfully and criminally take and carry away, with intent of gain, cash in the amount of P20,000.00, two (2) Men's wrist watches, one (1) Lady's Seiko quartz wrist watch and one (1) Lady's Citizen wrist watch and assorted jewelries, all valued at P50,000.00; that on the occasion and by reason of said robbery, Mary Choco suffered serious physical injuries under paragraph 2 of Article 263, Bienvenido Salvilla likewise suffered serious physical injuries and Reynaldo Canasares also suffered physical injuries; that the said accused also illegally detained, at the compound of the New Iloilo Lumber Company, Iznart Street, Iloilo City, Severino Choco, owner/ proprietor of said Lumber Company, Mary Choco, Mimie Choco, who is a minor, being 15 years of age, and Rodita Hablero, who is a salesgirl at said Company; that likewise on the occasion of the robbery, the accused also asked and were given a ransom money of P50,000.00; that the said crime was attended by aggravating circumstances of band, and illegal possession of firearms and explosives; that the amount of P20,000.00, the ransom money of P50,000.00, two (2) Men's wrist watches, two (2) Lady's wrist watches, one (1) .38 caliber revolver and one (1) live grenade were recovered from the accused; to the damage and prejudice of the New Iloilo Lumber Company in the amount

of P120,000.00."

The evidence for the prosecution may be re-stated as follows:

On 12 April 1986, a robbery was staged by the four accused at the New Iloilo Lumber Yard at about noon time. The plan was hatched about two days before. The accused were armed with homemade guns and a hand grenade. When they entered the establishment, they met Rodita Habiero, an employee thereat who was on her way out for her meal break and announced to her that it was a hold-up. She was made to go back to the office and there Appellant Salvilla pointed his gun at the owner, Severino Choco, and his two daughters, Mary and Mimie, the latter being a minor 15 years of age, and told the former that all they needed was money. Hearing this, Severino told his daughter, Mary, to get a paper bag wherein he placed P20,000.00 cash (P5,000.00, according to the defense) and handed it to Appellant. Thereafter, Severino pleaded with the four accused to leave the premises as they already had the money but they paid no heed. Instead, accused Simplicio Canasares took the wallet and wristwatch of Severino after which the latter, his two daughters, and Rodita, were herded to the office and kept there as hostages.

At about 2:00 o'clock of the same day, the hostages were allowed to eat. The four accused also took turns eating while the others stood guard. Then, Appellant told Severino to produce P100,000.00 so he and the other hostages could be released. Severino answered that he could not do so because it was a Saturday and the banks were closed.

In the meantime, police and military authorities had surrounded the premises of the lumber yard. Major Melquiades B. Sequio, Station Commander of the INP of Iloilo City, negotiated with the accused using a loud speaker and appealed to them to surrender with the assurance that no harm would befall them as he would accompany them personally to the police station. The accused refused to surrender or to release the hostages.

Thereafter, OIC Mayor, Rosa Caram, of Iloilo City arrived and joined the negotiations. In her dialogue with the accused, which lasted for about four hours, Appellant demanded P100,000.00, a coaster, and some raincoats. She offered them P50,000.00 instead, explaining the difficulty of raising more as it was a Saturday. Later, the accused agreed to receive the same and to release Rodita to be accompanied by Mary Choco in going out of the office. When they were out of the door, one of the accused whose face was covered by a handkerchief, gave a key to Mayor Caram. With this, Mayor Caram unlocked the padlocked door and handed to Rodita the P50,000.00, which the latter, in turn, gave to one of the accused. Rodita was later set free but Mary was herded back to the office.

Mayor Caram, Major Sequio, and even volunteer radio newscasters continued to appeal to the accused to surrender peacefully but they refused. Ultimatums were given but the accused did not budge. Finally, the police and military authorities decided to launch an offensive and assault the place. This resulted in injuries to the girls, Mimie and Mary Choco as well as to the accused Ronaldo and Reynaldo Canasares. Mary suffered a "macerated right lower extremity just below the knee" so that her right leg had to be amputated. The medical certificate described her condition as "in a state of hemorrhagic shock when she was brought in to the hospital, and had to undergo several major operations during the course of her confinement from April 13, 1986 to May 30, 1986."

For his part, Appellant Salvilla confirmed that at about noon time of 12 April 1986

he and his co-accused entered the lumber yard and demanded money from the owner Severino Choco. He demanded P100,000.00 but was given only P5,000.00, which he placed on the counter of the office of the lumber yard. He admitted that he and his co-accused kept Severino, his daughters, and Rodita inside the office. He maintained, however, that he stopped his co-accused from getting the wallet and wristwatch of Severino and, like the P5,000.00 were all left on the counter, and were never touched by them. He claimed further that they had never fired on the military because they intended to surrender. Appellant's version also was that during the gunfire, Severino's daughter stood up and went outside; he wanted to stop her but he himself was hit by a bullet and could not prevent her. Appellant also admitted the appeals directed to them to surrender but that they gave themselves up only much later.

After trial, the Court *a quo* meted out a judgment of conviction and sentenced each of the accused "to suffer the penalty of reclusion perpetua, with the accessory penalties provided by law and to pay the costs."

Appellant Salvilla's present appeal is predicated on the following Assignments of Error:

> "1. The lower court erred in holding that the crime charged was consummated and in not holding that the same was merely attempted.
>
> "2. The lower court erred in not appreciating the mitigating circumstance of voluntary surrender."

Upon the facts and the evidence, we affirm.

The defense contends that "The complete crime of larceny (theft/robbery) as distinguished from an attempt requires asportation or carrying away, in addition to the taking. In other words, the crime of robbery/theft has three consecutive stages: 1) the giving 2) the taking and 3) the carrying away or asportation. And without asportation the crime committed is only attempted" (Memorandum for Appellant Salvilla, Records, p. 317).

There is no question that in robbery, it is required that there be a taking of personal property belonging to another. This is known as the element of asportation, the essence of which is the taking of a thing out of the possession of the owner without his privity and consent and without the *animus revertendi* (Aquino, Revised Penal Code, p. 97, citing 5 C.J. 607). In fact, if there is no actual taking, there can be no robbery. Unlawful taking of personal property of another is an essential part of the crime of robbery.

Appellant insists that while the "giving" has been proven, the "taking" has not. And this is because neither he nor his three co-accused touched the P5,000.00 given by Severino nor the latter's wallet or watch during the entire incident; proof of which is that none of those items were recovered from their persons.

Those factual allegations are contradicted by the evidence. Rodita, the lumberyard employee, testified that upon demand by Appellant, Severino put P20,000.00 inside a paper bag and subsequently handed it to Appellant. In turn, accused Simplicio Canasares took the wallet and wristwatch of Severino. In respect of the P50,000.00 from Mayor Caram, Rodita declared that the Mayor handed the amount to her after she (the Mayor) had opened the padlocked door and that she thereafter gave the amount to one of the holduppers. The "taking" was, therefore, sufficiently proved (TSN, July 1, 1987, pp. 12-13, 15-16, 27-31). The money demanded, and the wallet and wristwatch were within the dominion and control of the Appellant and his co-

accused and completed the taking.

> "The State established a 'taking' sufficient to support a conviction of robbery even though the perpetrators were interrupted by police and so *did not pick up the money offered by the victim*, where the defendant and an accomplice, armed with a knife and a club respectively, had demanded the money from the female clerk of a convenience store, and the clerk had complied with their instructions and placed money from the register in a paper bag and then placed the bag on the counter in front of the two men; these actions brought the money *within the dominion and control of defendant and completed the taking*." (Johnson vs. State, 432 So 2d 758).
>
> "Severance of the goods from the possession of the owner and absolute control of the property by the taker, *even for an instant* constitutes asportation." (Adams vs. Commonwealth, 154 SW 381; State vs. Murray 280 SW 2d 809; Mason vs. Commonwealth, 105 SE 2d 149) [emphasis supplied].

It is no defense either that Appellant and his co-accused had no opportunity to dispose of the personalities taken. That fact does not affect the nature of the crime. From the moment the offender gained possession of the thing, even if the culprit had no opportunity to dispose of the same, the unlawful taking is complete (Reyes, Revised Penal Code Annotated, Book II, 1981 ed., p. 594).

> "The crime is consummated when the robber acquires possession of the property, even if for a short time, and it is not necessary that the property be taken into the hands of the robber, or that he should have actually carried the property away, out of the physical presence of the lawful possessor, or that he should have made his escape with it" (People vs. Quinn, 176 P 2d 404; Woods vs. State, 220 SW 2d 644; People vs. Beal, 39 P 2d 504; People vs. Clark, 160 P 2d 553).

Contrary to Appellant's submission, therefore, a conviction for consummated and not merely attempted Robbery is in order.

It is the contention of Appellant that Rodita could not have seen the taking because the place was dark since the doors were closed and there were no windows. It will be recalled, however, that Rodita was one of the hostages herself and could observe the unfolding of events. Her failure to mention the taking in her sworn statement would not militate against her credibility, it being settled that an affidavit is almost always incomplete and inaccurate and does not disclose the complete facts for want of inquiries or suggestions (*People vs. Andaya*, G.R. No. L-63862, 31 July 1987, 152 SCRA 570; *People vs. Tan, et al.*, 89 Phil. 337 [1951]).

The fact, too, that Rodita was an employee of Severino would not lessen her credibility. The defense has not proven that she was actuated by any improper motive in testifying against the accused.

In the last analysis, the basic consideration centers around the credibility of witnesses in respect of which the findings of the Trial Court are entitled to great weight as it was in a superior position to assess the same in the course of the trial (see *People vs. Ornoza*, G.R. No. L-56283, 30 June 1987, 151 SCRA 495; *People vs. Alcantara*, G.R. No. L-38042, 30 June 1987, 151 SCRA 326).

Anent the second assignment of error, the "surrender" of the Appellant and his co-accused cannot be considered in their favor to mitigate their liability. To be mitigating, a surrender must have the following requisites: (a) that the offender had not

been actually arrested; (b) that the offender surrendered himself to a person in authority or to his agent; and (c) that the surrender was voluntary (*People vs. Canamo*, G.R. No. L-62043, 13 August 1985, 138 SCRA 141).

The "surrender" by the Appellant and his co-accused hardly meets these requirements. They were, indeed, asked to surrender by the police and military authorities but they refused until only much later when they could no longer do otherwise by force of circumstances when they knew they were completely surrounded and there was no chance of escape. The surrender of the accused was held not to be mitigating as when he gave up only after he was surrounded by the constabulary and police forces (*People vs. Sigayan, et al.*, G.R., No. L-18523-26, 30 April 1966, 16 SCRA 839; *People vs. Mationg*, G.R. No. L-33488, 29 March 1982, 113 SCRA 167). Their surrender was not spontaneous as it was motivated more by an intent to insure their safety. And while it is claimed that they intended to surrender, the fact is that they did not despite several opportunities to do so. There is no voluntary surrender to speak of (*People vs. Dimdiman*, 106 Phil. 391 [1959]).

All told, the assigned errors remain unsubstantiated and we find the guilt of the accused-appellant, Bienvenido Salvilla, established beyond reasonable doubt.

Although unassigned as an error, we deem it necessary to turn now to the nature of the linked offenses involved and the penalty imposed by the Trial Court.

Appellant and his co-accused were charged in the Information with "Robbery with Serious Physical Injuries and Serious Illegal Detention ("Art. 295, par. 3, in conjunction with Art. 267, RPC"), and sentenced to *reclusion perpetua*. We agree with the Trial Court that a complex crime under Article 48 of the Revised Penal Code has been committed such that the penalty for the more serious offense of Serious Illegal Detention (Art. 267, Revised Penal Code), or "*reclusion perpetua* to death," is to be imposed instead of the penalty prescribed for Robbery with Serious Physical Injuries (Art. 294 (3), which is *reclusion temporal*.

Under Article 48, a complex crime arises "when an offense is a necessary means for committing the other." The term "necessary means" does not connote indispensable means for if it did then the offense as a "necessary means" to commit another would be an indispensable element of the latter and would be an ingredient thereof. The phrase "necessary means" merely signifies that one crime is committed to facilitate and insure the commission of the other (Aquino, Revised Penal Code, Vol. I, 1987 ed., p. 624, citing Dissent, Montemayor, J., Amado Hernandez, 99 Phil. 515). In this case, the crime of Serious Illegal Detention was such a "necessary means" as it was selected by Appellant and his co-accused to facilitate and carry out more effectively their evil design to stage a robbery.

The facts of this case differ from those in *People vs. Astor, et al.* (G.R. Nos. L-71765-66, 29 April 1987, 149 SCRA 325) where the accused were convicted of Robbery but acquitted in the case for Serious Illegal Detention and where it was held that "the detention is absorbed in the crime of robbery." For one, in *Astor*, there were two (2) separate Informations filed, one for Robbery and another for Serious Illegal Detention. In the present case, only one Information was filed charging the complex offense. For another, in *Astor*, the robbery had already been consummated and the detention was merely to forestall the capture of the robbers by the police. Not so in this case, where the detention was availed of as a means of insuring the consummation of the robbery. Further, in *Astor*, the detention was only incidental to the main crime of

robbery so that it was held therein:

> ". . . were appellants themselves not trapped by the early arrival of the police at the scene of the crime, they would have not anymore detained the people inside since they have already completed their job. Obviously, appellants were left with no choice but to resort to detention of these people as security, until arrangements for their safe passage were made. This is not the crime of illegal detention punishable under the penal laws but an act of restraint in order to delay the pursuit of the criminals by peace officers (People v. Sol, 9 Phil. 265; People v. Uday, 55 Phil. 167, cited in the Revised Penal Code, Aquino, Vol. 3, 1976 ed., p. 1337). Where the victims in a robbery case were detained in the course of robbery, the detention is absorbed by the crime of robbery (P. v. Baysa, 92 Phil. 1008, *id.*). In the case at bar, the detention was only incidental to the main crime of robbery, and although in the course thereof women and children were also held, that threats to kill were made, the act should not be considered as a separate offense. Appellants should only be held guilty of robbery."

In contract, the detention in the case at bar was not only incidental to the robbery but was a necessary means to commit the same. After the amount of P20,000.00 was handed to Appellant, the latter and his co-accused still refused to leave. The victims were then taken as hostages and the demand to produce an additional P100,000.00 was made as a prerequisite for their release. The detention was not because the accused were trapped by the police nor were the victims held as security against the latter. The detention was not merely a matter of restraint to enable the malefactors to escape, but deliberate as a means of extortion for an additional amount. The police and other authorities arrived only much later after several hours of detention had already passed. And, despite appeals to appellant and his co-accused to surrender, they adamantly refused until the amount of P100,000.00 they demanded could be turned over to them. They even considered P50,000.00, the amount being handed to them, as inadequate.

The foregoing features also distinguish this case from those of *U.S. v. Sol*, 9 Phil. 265 [1907] where the restraint was for no other purpose than to prevent the victims from reporting the crime to the authorities; from *People v. Gamboa*, 92 Phil. 1085 [1953] where the victims were taken to a place one kilometer away and shot in order to liquidate the witnesses to the robbery; from *People v. Baysa*, 92 Phil. 1008 [1953]; *People v. Manzanilla*, 43 Phil. 167 [1922], all of which cases were cited in *Astor*, and where the victims were only incidentally detained so that the detention was deemed absorbed in robbery.

In other words, unlike in the above cases, the elements of the offense of Serious Illegal Detention are present in this case. The victims were illegally deprived of their liberty. Two females (Mary and Minnie), and a minor (Minnie), a specified circumstance in Article 267 (3), were among those detained. The continuing detention was also for the purpose of extorting ransom, another listed circumstance in Article 267 (last parag.), not only from the detained persons themselves but even from the authorities who arrived to rescue them.

It follows then that as the detention in this case was not merely incidental to the robbery but a necessary means employed to facilitate it, the penalty imposed by the Trial Court is proper.

WHEREFORE, the judgment appealed from is hereby AFFIRMED. Proportionate

costs.

SO ORDERED.

Paras, Padilla, Sarmiento and *Regalado, JJ*., concur.

Footnotes

* Penned by Judge Edgar D. Gustilo.

FIRST DIVISION

[G.R. No. 33463. December 18, 1930.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **BASILIO BORINAGA**, *defendant-appellant*.

D E C I S I O N

MALCOLM, *J* :

Sometime prior to March 4, 1929, an American by the name of Harry H. Mooney, a resident of the municipality of Calubian, Leyte, contracted with one Juan Lawaan for the construction of a fish corral. Basilio Borinaga was associated with Lawaan in the construction of the corral. On the morning of March 4, 1929, Lawaan, with some of his men, went to Mooney's shop and tried to collect from him the whole amount fixed by the contract, notwithstanding that only about two-thirds of the fish corral had been finished. As was to be expected, Mooney refused to pay the price agreed upon at that time. On hearing this reply of Mooney, Lawaan warned him that if he did not pay, something would happen to him, to which Mooney answered that if they wanted to do something to him they should wait until after breakfast, inasmuch as he had not yet taken his breakfast. Lawaan then left with his men, and Mooney, after partaking of his morning meal, returned to his shop.

On the evening of the same day, Mooney was in the store of a neighbor by the name of Perpetua Najarro. He had taken a seat on a chair in front of Perpetua, his back being to the window. Mooney had not been there long when Perpetua saw Basilio Borinaga from the window strike with a knife at Mooney, but fortunately for the latter, the knife lodged in the back of the chair on which Mooney was seated. Mooney fell from the chair on which Mooney was seated. Mooney fell from the chair as a result of the force of the blow, but was not injured. Borinaga ran away towards the market place. Before this occurred, it should be stated that Borinaga had been heard to tell a companion: "I will stab this Mooney, who is an American brute." After the attack, Borinaga was also heard to say that he did not hit the back of Mooney but only the back of the chair. But Borinaga was persistent in his endeavor, and hardly ten minutes after the first attack, he returned, knife in hand, to renew it, out was unable to do so because Mooney and Perpetua were then on their guard and turned a flashlight on Borinaga, frightening him away. Again that same night, Borinaga was overheard stating that he had missed his mark and was unable to give another blow because of the flashlight. The paint of the knife was subsequent, on examination of the chair, found imbedded in it.

The foregoing occurrences gave rise to the prosecution of Basilio Borinaga in the Court of First Instance of Leyte for the crime of frustrated murder. The defense was alibi, which was not given credence. The accused was convicted as charged, by Judge Ortiz, who sentenced him to fourteen years, eight months, and one day of imprisonment, *reclusion temporal*, with the accessory penalties and the costs.

The homicidal intent of the accused was plainly evidenced. The attendant circumstances conclusively establish that murder was in the heart and mind of the

accused. More than mere menaces took place. The aggressor stated his purpose, which was to kill, and apologized to his friends for not accomplishing that purpose. A deadly weapon was used. The blow was directed treacherously toward vital organs of the victim. The means used were entirely suitable for accomplishment. The crime should, therefore, be qualified as murder because of the presence of the circumstance of treachery.

The only debatable question, not referred to in the briefs, but which must be decided in order to dispose of the appeal, is: Do the facts constitute frustrated murder or attempted murder within the meaning of article 3 of the Penal Code? Although no exact counterpart to the facts at bar has been found either in Spanish or Philippine jurisprudence, a majority of the court answer the question propounded by stating that the crime committed was that of frustrated murder. This is true notwithstanding the admitted fact that Mooney was not injured in the least.

The essential condition of a frustrated crime, that the author perform all the acts of execution, attended the attack. Nothing remained to be done to accomplish the work of the assailant completely. The cause resulting in the failure of the attack arose by reason of forces independent of the will of the perpetrator. The assailant voluntarily desisted from further acts. What is known as the subjective phase of the criminal act was passed. (U. S. vs. Eduave [1917], 36 Phil., 209; People vs. Mabugat [1926], 51 Phil., 967.)

No superfine distinctions need be drawn in favor of the accused to establish a lesser crime than that of frustrated murder, for the facts disclose a wanton disregard of the sanctity of human life fully meriting the penalty imposed in the trial court.

Based on the foregoing considerations, the judgment appealed from will be affirmed, with the costs of this instance against the appellant.

Avanceña, C. J., Villamor, Ostrand, Johns and *Romualdez, JJ.,* concur.

Concurring and Dissenting Opinion

VILLA-REAL, J., with whom concur JOHNSON and STREET, JJ.:

We dissent from the opinion of the majority in so far as it finds the defendant-appellant guilty of the crime of frustrated murder instead of that of an attempt to commit murder.

Article 3 of the Penal Code provides as follows:

> "ART. 3. Frustrated felonies and attempts to commit felonies are punishable, as well as those which are consummated.
>
> "A felony is frustrated when the offender performs all the acts of execution which should produce the felony as a consequence, but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.
>
> "There is an attempt when the offender commences the commission of the felony directly by overt acts, and does not perform all the acts of execution which constitute the felony by reason of some cause or accident other than his own voluntary desistance."

The pertinent facts as found by the court, below and by this court are the following:

On the evening of the same day, Mooney was in the store of a neighbor by the name of Perpetua Najarro. He had taken a seat on a chair in front of Perpetua, his back

being to the window. Mooney had not been there long when Perpetua saw Basilio Borinaga from the window strike with a knife at Mooney, but fortunately for the latter, the knife lodged in the back of the chair on which Mooney was seated. Mooney fell from the chair as a result of the force of the blow, but was not injured. Borinaga ran away towards the market place. Before this occurred, it should be stated that Borinaga had been heard to tell a companion: "I will stab this Mooney, who is an American brute." After the attack, Borinaga was also heard to say that he did not hit the back of Mooney but only the back of the chair. But Borinaga was persistent in his endeavor, and hardly ten minutes after the first attack, he returned, knife in hand, to renew it, but was unable to do so because Mooney and Perpetua were then on their guard and turned a flashlight on Borinaga, frightening him away. Again that same night, Borinaga was overheard stating that he had missed his mark and was unable to give another blow because of the flashlight. The point of the knife was subsequently, on examination of the chair, found imbedded in it.

Since the fact constituting frustrated felony and those constituting an attempt to commit felony are integral parts of those constituting consummated felony, it becomes important to know what facts would have been necessary in order that the case at bar might have been a consummated murder, so that we may determine whether the facts proved during the trial constitute frustrated murder or simply an attempt to commit murder.

In order that the crime committed by the defendant-appellant might have been a consummated murder it would have been necessary for him to have inflicted a deadly wound upon a vital spot of the body of Mooney, with treachery, as a result of which he should have died.

Since according to the definition given by the Code a frustrated felony is committed "when the offender performs all the acts of execution which should produce the felony as a consequence, but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator" let us examine the facts of record to find out whether the said defendant-appellant has performed all the acts of execution which should produce the murder of Mooney as a consequence. The prisoner at bar, intending to kill Mooney, approached him stealthily from behind and made a movement with his right hand to strike him in the back with a deadly knife, but the blow, instead of reaching the spot intended, landed on the frame of the back of the chair on which Mooney was sitting at the time and did not cause the slightest physical injury on the latter. The acts of execution performed by the defendant-appellant did not produce the death of Mooney as a consequence nor could they have produced it because the blow did not reach his body; therefore the culprit did not perform all the acts of execution which should produce the felony. There was lacking the infliction of the deadly wound upon a vital spot of the body of Mooney.

It is true that the frame of the back of the chair stood between the deadly knife and the back of Mooney; but what it prevented was the wounding of said Mooney in the back and not his death, had he been wounded. It is the preventing of death by causes independent of the will of the perpetrator, after all the acts of execution which constitute the felony, as in the present case. The interference of the frame of the back of the chair which prevented the defendant-appellant from wounding Mooney in the back with a deadly knife, made his acts constitute an attempt to commit, murder; for he had commenced the commission of the felony directly by overt acts, and did not perform all the acts of execution which constitute the felony by reason of a cause or accident other than his own voluntary desistance.

The foregoing consideration force us to the conclusion that the facts alleged in the information and proved during the trial are not sufficient to constitute the crime of frustrated murder, but simply the crime of an attempt to commit murder.

EN BANC

[G.R. No. L-5848. April 30, 1954.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **SY PIO, *alias* POLICARPIO DE LA CRUZ**, *defendant-appellant*.

D E C I S I O N

LABRADOR, *J* :

This is an appeal from a judgment of the Court of First Instance of Manila finding the defendant-appellant herein Sy Pio, *alias* Policarpio de la Cruz, guilty of frustrated murder against the person of Tan Siong Kiap, and sentencing him to suffer an indeterminate sentence of 6 years, 1 month, and 11 days of *prisión mayor,* to 14 years, 8 months, and 1 day of *reclusión temporal,* to indemnify the offended party Tan Siong Kiap in the sum of P350, without subsidiary imprisonment in case of insolvency, and to pay the costs. The case was appealed to the Court of Appeals, but that court certified it to this Court under the provisions of section 17 (4) of Republic Act No. 296, on the ground that the crime charged was committed on the same occasion that the defendant-appellant had committed crime of murder, with which the defendant-appellant was also charged.

The evidence for the prosecution shows that early in the morning of September 3, 1949, the defendant-appellant entered the store at 511 Misericordia, Sta. Cruz, Manila. Once inside he started firing a .45 caliber pistol that he had in his hand. The first one shot was Jose Sy. Tan Siong Kiap, who was in the store and saw the accused enter and afterwards fire a shot at Jose Sy, asked the defendant-appellant, "What is the idea?" Thereupon defendant-appellant turned around and fired at him also. The bullet fired from defendant-appellant's pistol entered the right shoulder of Tan Siong Kiap and passed through his back. Upon being hit, Tan Siong Kiap immediately ran to a room behind the store to hide. From there he still heard gunshots fired from defendant-appellant's pistol, but afterwards defendant-appellant ran away.

Tan Siong Kiap was brought to the Chinese General Hospital, where his wound was treated. He stayed there on September 3 to September 12, 1949, when he was released upon his request and against the physician's advice. He was asked to return to the hospital for further treatment, and he did so five times for a period of more than ten days. Thereafter his wound was completely healed. He spent the sum of P300 for hospital and doctor's fees. The defendant-appellant shot two other persons in the morning of September 3, 1949, before shooting and wounding Tan Siong Kiap; one was Ong Pian and the other Jose Sy. On September 5 information was received by the Manila Police Department that defendant-appellant was in the custody of the Constabulary in Tarlac, so a captain of the Manila police by the name of Daniel V. Lomotan proceeded to Tarlac. There he saw the defendant-appellant and had a conversation with him. On this occasion defendant-appellant admitted to Lomotan that his victims were Tan Siong Kiap, Ong Pian, and Jose Sy. The Constabulary in Tarlac also delivered to Lomotan the pistol used by the defendant- appellant, marked Exhibit C, and its magazine, Exhibit C-1, both of which the Constabulary had confiscated from

the defendant-appellant.

The defendant-appellant was thereupon delivered to the custody of Lomotan, and the latter brought him to Manila, where his statement was taken down in writing. This declaration was submitted at the time of the trial as Exhibit D, and it contains all the details of the assaults that defendant-appellant had made in Manila in the morning of September 3 against the persons of Tan Siong Kiap, Ong Pian, and Jose Sy. This written statement was taken down on a typewriter and afterwards signed by the defendant-appellant in both his Chinese and Filipino names, the latter being Policarpio de la Cruz.

According to the declaration of the defendant-appellant, some months prior to September 3, 1949, he was employed as an attendant in a restaurant belonging to Ong Pian. Defendant-appellant's wife by the name of Vicenta was also employed by Ong Pian's partner, Eng Cheng Suy. Prior to September 3 the relatives of his wife had been asking the latter for help, because her father was sick. Defendant-appellant asked money from Ong Pian, but the latter could only give him P1. His wife was able to borrow P20 from her employer, and this was sent to his wife's parents in Cebu. Afterwards defendant-appellant was dismissed from his work at the restaurant of Ong Pian, and he became a peddler. Ong Pian presented a list of the sums that defendant- appellant had borrowed from him, and these sums were deducted from the salary of his wife. Defendant-appellant did not recognize these sums as his indebtedness, and so he resented Ong Pian's conduct.

As to Tan Siong Kiap, the confession states that a few days before September 3, 1949, defendant-appellant had been able to realize the sum of P70 from the sales of medicine that he peddled. He laid this money in a place in his room, but the following morning he found that it had disappeared from the place in which he had placed it. Tan Siong Kiap and Jose Sy, upon the discovery of the loss of the money, told defendant-appellant that he must have given the money to his wife, and that nobody had stolen it. After this incident of the loss, the defendant-appellant used to hear Tan Siong Kiap and Jose Sy and other Chinamen say that the money had not been actually stolen, but that he lost it in gambling. Because of these accusations against him, he nurtured resentment against both Tan Siong Kiap and Jose Sy.

So early in the morning of September 3, while a Chinaman by the name of Ngo Cho, who was the possessor of a caliber .45 pistol, was away from his room, defendant-appellant got his pistol and tucked it in his belt. With this pistol he went to the restaurant at 822 Ongpin, and there shot Ong Pian. After shooting him, he proceeded to 511 Misericordia, in the store where Jose Sy and Tan Siong Kiap were, and there he fired at them. Then he escaped to Legarda street, in Sampaloc, where he borrowed P1 from his relatives. From there he went to Malabon, to the house of his mother, to whom he told he had killed two. persons and from whom he asked money.

The foregoing is the substance of the written declaration made by the defendant-appellant in Exhibit D on September 6, 1949. At the time of the trial, however, he disowned the confession and explained that he signed it without having read its contents. He declared that it was not he who shot the three victims, but it was one by the name of Chua Tone, with whom he had previously connived to kill the three victims. He introduced no witnesses, however, to support his denial. Neither did he deny that he admitted before Captain Lomotan having killed the three persons, or having been found in Tarlac in possession of the caliber .45 pistol, Exhibit C, and its magazine, Exhibit C-1. In his cross-examination he admitted many of the incidents mentioned in the confession, especially the cause of his resentment against his victims Ong Pian, Jose

Sy, and Tan Siong Kiap.

The trial court refused to believe his testimony, and, therefore, found him guilty of the crime charged.

On this appeal counsel for the defendant-appellant claims that the trial court erred in not finding that Tan Siong Kiap received the shot accidentally from the same bullet that had been fired at Jose Sy, and in finding that defendant-appellant has committed a crime distinct and separate from that of murder for the slaying of Jose Sy. We find no merit in this contention. According to the uncontradicted testimony of the offended party Tan Siong Kiap, when the latter saw defendant- appellant firing shots, he asked him why he was doing so, and the defendant-appellant, instead of answering him, turned around and fired at him also. It is not true, therefore, that the shot which hit him was fired at Sy.

It is also contended that the evidence is not sufficient to sustain the judgment of conviction. We also find no merit in this contention. The evidence submitted to prove the charge consists of: the uncontradicted testimony of the victim himself; the admissions made verbally by the defendant-appellant before Captain Lomotan in Tarlac; the fact that the defendant-appellant had escaped and was found in Tarlac; his possession of the .45 caliber pistol coupled with the fact, attested to by the testimony of the physician who examined and treated the wounds of Tan Siong Kiap, that the wounds found in his person must have been caused by the caliber .45 bullet; and, lastly, the confession of the defendant-appellant himself, Exhibit D, which he was not able to impugn. As against this mass of evidence, defendant- appellant has only made a very unbelievable story that it was not he but another that had committed the crime charged. His admissions at the time of the trial regarding the incidents, as well as the cause of his having assaulted his victims, coincide exactly with the reasons given in his written confession. This shows that he had made the confession himself, for nobody but himself could have known the facts therein stated. The claim that the offense has not been proved beyond reasonable doubt must be dismissed.

The defendant-appellant lastly claims that the lower court also erred in sentencing him to pay an indemnity of P350. The offended party testified that he actually spent P300 for hospital and doctor's fees, and that he was confined in the hospital for nine days. The above facts stand uncontradicted. This assignment of error must also be dismissed.

It is lastly contended that the defendant-appellant should be found guilty only of less serious physical injuries instead of the crime of frustrated murder as defendant-appellant admitted in his confession in the open court that he had a grudge against the offended party, and that he connived with another to kill the latter. The intent to kill is also evident from his conduct in firing the shot directly at the body of the offended party.

But while the intent to kill is conclusively proved the wound inflicted was not necessarily fatal, because it did not touch any of the vital organs of the body. As a matter of fact, the medical certification issued by the physician who examined the wound of the offended party at the time he went to the hospital, states that the wound was to heal within a period of fourteen days, while the offended party actually stayed in the hospital for nine days and continued receiving treatment thereafter five times for a period of more than ten days, or a total of not more than thirty days. The question that needs to be determined, therefore, is: Did the defendant-appellant perform all the acts of execution necessary to produce the death of his victim?

In the cases of U.S. vs. Eduave, 36 Phil., 209, People vs. Dagman, 47 Phil., 768, and People vs. Borinaga, 55 Phil., 433, this Court has held that it is not necessary that

the accused actually commit all the acts of execution necessary to produce the death of his victim, but that it is sufficient that he believes that he has committed all said acts. In the case of People vs. Dagman, *supra,* the victim was first knocked down by a stone thrown at him, then attacked with a lance, and then wounded by bolos and clubs wielded by the accused, but the victim upon falling down feigned death, and the accused desisted from further continuing in the assault in the belief that their victim was dead. And in the case of People vs. Borinaga, *supra,* the accused stabbed his intended victim, but the knife with which he committed the aggression instead of hitting the body of the victim, lodged in the back of the chair in which he was seated, although the accused believed that he had already harmed him. In both these cases this Court held that the crime committed was that of frustrated murder, because the subjective phase of the acts necessary to commit the offense had already passed; there was a full and complete belief on the part of the assailant that he had committed all the acts of execution necessary to produce the death of the intended victim.

In the case at bar, however, the defendant-appellant fired at his victim, and the latter was hit, but he was able to escape and hide in another room. The fact that he was able to escape, which appellant must have seen, must have produced in the mind of the defendant- appellant that he was not able to hit his victim at a vital part of the body. In other words, the defendant-appellant knew that he had not actually performed all the acts of execution necessary to kill his victim. Under these circumstances, it can not be said that the subjective phase of the acts of execution had been completed. And as it does not appear that the defendant-appellant continued in the pursuit, and, as a matter of fact, he ran away afterwards a reasonable doubt exists in our mind that the defendant-appellant had actually believed that he had committed all the acts of execution or passed the subjective phase of the said acts. This doubt must be resolved in favor of the defendant-appellant.

We are, therefore, not prepared to find the defendant-appellant guilty of frustrated murder, as charged in the information. We only find him guilty of attempted murder, because he did not perform all the acts of execution, actual and subjective, in order that the purpose and intention that he had to kill his victim might be carried out.

Therefore, the judgment appealed from should be, as it is hereby, modified, and the defendant-appellant is found guilty of the crime of attempted murder, and the sentence imposed upon him reduced to an indeterminate penalty of from 4 years, 2 months, and 1 day of *prisión correccional,* to 10 years of *prisión mayor.* In all other respects the judgment is affirmed. With costs against the defendant-appellant.

Paras, C. J., Pablo, Bengzon, Reyes, Jugo, Bautista Angelo and *Concepcion, JJ.,* concur.

SECOND DIVISION

[G.R. Nos. 39303-39305. March 17, 1934.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **FELIPE KALALO, ET AL.**, *defendants*. **FELIPE KALALO, MARCELO KALALO, JUAN KALALO, and GREGORIO RAMOS**, *appellants*.

D E C I S I O N

DIAZ, *J* :

On November 10, 1932, the herein appellants Felipe Kalalo, Marcelo Kalalo, Juan Kalalo and Gregorio Ramos, were tried in the Court of First Instance of Batangas jointly with Alejandro Garcia, Fausta Abrenica and Alipia Abrenica in criminal case Nos. 6858, 6859 and 6860, the first two for murder, and the last for frustrated murder. Upon agreement of the parties said three cases were tried together and after the presentation of their respective evidence, the said court acquitted Alejandro Garcia, Fausta Abrenica and Alipia Abrenica, and sentenced the appellants as follows:

In case No. 6858, for the alleged murder of Marcelino Panaligan, to seventeen years, four months and one day of *reclusion temporal,* with the corresponding accessory penalties, and to indemnify the heirs of the said deceased Marcelino Panaligan in the sum of P1,000, with the costs.

In case No. 6859, for the alleged murder of Arcadio Holgado, to seventeen years, four months and one day of *reclusion temporal,* with the corresponding accessory penalties, and to indemnify the heirs of the aforesaid victim, the deceased Arcadio Holgado, in the sum of P1,000, with the costs.

In the third case, that is, No. 6860, wherein the court *a quo* held that the crime committed was simply that of discharge of firearms, not frustrated murder, the appellant Marcelo Kalalo was sentenced to one year, eight months and twenty-one days of *prision correccional* and to pay the proportionate part of the costs of the proceedings. Felipe Kalalo and Juan Kalalo, as well as their co- accused Fausta and Alipia Abrenica, Gregorio Ramos and Alejandro Garcia, were acquitted of the charges therein.

The accused in the aforesaid three cases appealed from their respective sentences assigning six alleged errors as committed by the trial court, all of which may be discussed jointly in view of the fact that they raise only one question, to wit: whether or not said sentences are in accordance with law.

A careful study and examination of the evidence presented disclose the following facts: Prior to October 1, 1932, the date of the commission of the three crimes alleged in the three informations which gave rise to the aforesaid three cases Nos. 6858, 6859 and 6860, the appellant Marcelo Kalalo or Calalo and Isabela Holgado or Olgado, the latter being the sister of the deceased Arcadio Holgado and a cousin of the other deceased Marcelino Panaligan, had a litigation over a parcel of land situated in the barrio of Calumpang of the municipality of San Luis, Province of Batangas. On September 28, 1931, and again on December 8th of the same year, Marcelo Kalalo filed

a complaint against the said woman in the Court of First Instance of Batangas. By virtue of a motion filed by his opponent Isabela Holgado, his first complaint was dismissed on December 7, 1931, and his second complaint was likewise dismissed on February 5, 1932. Marcelo Kalalo cultivated the land in question during the agricultural years 1931 and 1932, but when harvest time came Isabela Holgado reaped all that had been planted thereon.

On October 1, 1932, Isabela Holgado and her brother Arcadio Holgado, one of the deceased, decided to order the aforesaid land plowed, and employed several laborers for that purpose. These men, together with Arcadio Holgado, went to the said land early that day, but Marcelo Kalalo, who had been informed thereof, proceeded to the place accompanied by his brother Felipe and Juan Kalalo, his brother- in-law Gregorio Ramos and by Alejandro Garcia, who were later followed by Fausta Abrenica and Alipia Abrenica, mother and aunt, respectively, of the first three.

The first five were all armed with bolos. Upon their arrival at the said land, they ordered those who were plowing it by request of Isabela and Arcadio Holgado, to stop, which they did in view of the threatening attitude of those who gave them said order.

Shortly after nine o'clock on the morning of the same day, Isabela Holgado, Maria Gutierrez and Hilarion Holgado arrived at the place with food for the laborers. Before the men resumed their work, they were given their food and long after they had finished eating, Marcelino Panaligan, cousin of said Isabela and Arcadio, likewise arrived. Having been informed of the cause of the suspension of the work, Marcelino Panaligan ordered said Arcadio and the other laborers to again hitch their respective carabaos to continue the work already began. At this juncture, the appellant Marcelo Kalalo approached Arcadio, while the appellants Felipe Kalalo, Juan Kalalo and Gregorio Ramos, in turn, approached Marcelino Panaligan. At a remark from Fausta Abrenica, mother of the Kalalos, about as follows, "what is detaining you?" they all simultaneously struck with their bolos, the appellant Marcelo Kalalo slashing Arcadio Holgado, while the appellants Felipe Kalalo, Juan Kalalo and Gregorio Ramos slashed Marcelino Panaligan, inflicting upon them the wounds enumerated and described in the medical certificates Exhibits I and H. Arcadio Holgado and Marcelino Panaligan died instantly from the wounds received by them in the presence of Isabela Holgado and Maria Gutierrez, not to mention the accused. The plowmen hired by Arcadio and Isabela all ran away.

Arcadio Holgado's body bore the following six wounds, to wit:

> "1. A cut wound on the ulnar side of right arm near the wrist, cutting the ulnar bonee completely and, the radius partially.
>
> "2. A cut wound on the anterior upper portion of the left arm measuring about 7 cm. long and 5 cm. wide extending to the bone and cutting the deltoid muscle across.
>
> "3. A penetrating wound on the left chest just below the clavicle going thru the first intercostal space measuring about 8 cm. long and 2 cm. wide.
>
> "4. A wound on the left side of the back about 20 cm. long following the 10th intercostal space and injuring the lung, diaphragm, stomach and large intestine.
>
> "5. A small superficial cut wound about 2 cm. long and Â½ cm. wide situated on the inner side of the right scapula.
>
> "6. A superficial wound barely cutting the skin, about 4 cm. long in the lumbar region just to the right of the spinal column." (Exhibit I.)

Marcelino Panaligan's body, in turn, bore the following fourteen wound, to wit:

"1. A penetrating cut wound in the epigastric region of the abdomen measuring about 7 cm. long 3 cm. wide cutting the omentum and injuring the lower portion of the stomach and a portion of the transverse colon, but no actual perforation of either one of the two organs.

"2. A cut wound on the head just above the forehead about 6 cm. long and 4 cm. wide lifting a portion of scalp as a flap.

"3. A cut wound on the left side of the head measuring about 7 cm. long and 2 cm. wide.

"4. A cut wound about 12 cm. long across the face just below the eyes extending from one cheek bone to the other, perforating the left antrum and cutting the nasal bone.

"5. A cut wound on the anterior portion of the left forearm extending to the bone with a flap of skin and muscle which measures about 12 cm. long and 6 cm. wide.

"6. A cut wound across the dorsal side of the right hand about 5 cm. long and 2 cm. wide cutting the bones of the hand.

"7. A superficial wound about 6 cm. long and 4 cm. wide and 2 cm. deep situated in the left axilla.

"8. A cut wound about 6 cm. long and 2 cm. wide situated over the left scapula.

"9. A cut wound on the right shoulder about 6 cm. long passing near the inner angle of the scapula cutting the muscles of the shoulder.

"10. A cut wound about 7 cm. long and 3 cm. wide situated near and almost parallel to the inner border of the right scapula.

11. A wound on the back of the head, oval in shape, about 10 cm long. and 5 cm. wide from which a flap of scalp was removed.

"12. A wound across the back and left side of the neck about 12 cm. long and 7 cm. deep cutting the vertebral column together with the great arteries and veins on the left side of the neck.

"13. A wound about 15 cm. long and 4 cm. wide on the left side of the back.

"14. A small wound on the left thumb from which a portion of the bone and other tissues were removed." (Exhibit H.).

The above detailed description of the wounds just enumerated discloses — and there is nothing of record to contradict it — that all of them were caused by a sharp instrument or instruments.

After Arcadio Holgado and Marcelino Panaligan had fallen to the ground dead, the appellant Marcelo Kalalo took from its holster on the belt of Panaligan's body, the revolver which the deceased carried, and fired four shots at Hilarion Holgado who was then fleeing from the scene in order to save his own life.

The appellants attempted to prove that the fight, which resulted in the death of the two deceased, was provoked by Marcelino Panaligan who fired shot at Marcelo Kalalo upon seeing the latter's determination to prevent Arcadio Holgado and his men from plowing the land in question. No such firing, however, can be taken into consideration, in the first place, because of the existence of competent evidence such as the testimony of Maria Gutierrez, who is a disinterested witness, which corroborates

that of Isabela Holgado in all its details, showing that the said deceased was already lying prostrate and lifeless on the ground when the appellant Marcelo Kalalo approached him to take his revolver for the purpose of using it, as he in fact did, against Hilarion Holgado; in the second place, because the assault and aggression of the said appellant were not directed against said Marcelino Panaligan but exclusively against Arcadio Holgado, the evidence of record on this point being overwhelming, and if his claim were true, he naturally should have directed his attack at the person who openly made an attempt against his life; in the third place, because the evidence shows without question that Panaligan was an expert shot with a revolver, and among the eight wounds that the appellant Marcelo Kalalo received (Exhibit 3), not one appears to have been caused by bullet, and similarly, none of the other appellants received any wound that might, in any way, suggest the possibility of having been caused by bullet; and finally, because the fact that he and his co-appellants, together with those who had been charged jointly with them, had gone to the place of the crime armed with bolos, determined at any cost to prevent the Holgados from plowing the land in dispute, cannot but disclose not only their determination to resort to violence or something worse, but that they did not need any provocation in order to carry out their intent.

They likewise attempted to prove that the appellant Marcelo Kalalo alone fought against the deceased Marcelino Panaligan and Arcadio Holgado and inflicted upon them the wounds which resulted in their death, said appellant testifying that he was compelled to do so in defense of his own life because both of the deceased attacked him first, the former with a revolver, firing three shots at him, and the latter with a bolo. For the same reasons hereinbefore stated, such defense of the appellants cannot give credit. One man alone could not have inflicted on the two deceased their multiple wounds, particularly when it is borne in mind that one of them was better armed, because he carried a revolver, and that he was furthermore an expert shot and scarcely two arm-lengths from Kalalo, according to the latter's own testimony. The two witnesses for the defense, who witnessed the crime very closely, refuted such allegation saying that Marcelo Kalalo alone fought the deceased Arcadio Holgado and that the other three appellants went after the other deceased. It is true that Arcadio Holgado also used his bolo to defend himself from Marcelo Kalalo's aggression but it is also no less true that five of the principal wounds of the other deceased Marcelino Panaligan were inflicted on him from behind, inasmuch as according to Exhibit H they were all found at the back of the head, on the neck and on his back. Neither is it less true that all the wounds of the appellant Marcelo Kalalo were inflicted on him from the front, which fact shows that it was not he alone who inflicted the wounds on the two deceased because had he been alone Panaligan would not have exposed his back to be thus attacked from behind, inasmuch as he was armed with a revolver, which circumstance undoubtedly allowed him to keep at a distance from Kalalo; and in connection with the testimony of Isabela Holgado and Maria Gutierrez, said circumstance shows furthermore that the three appellants Felipe Kalalo and Gregorio Ramos attacked said Panaligan with their respective bolos at the same time that Marcelo Kalalo attacked Arcadio Olgado, in order that all might act simultaneously in conformity with the common intent of the four and of their coaccused to eliminate through violence and at any cost, without much risk to them, all those who wanted to plow the land which was the cause of the dispute between the two parties. And it is not strange that the three appellants, who inflicted the wounds upon Marcelino Panaligan, should act as they did, because they knew that the latter carried a revolver in bolster on his belt.

Although it may seem a repetition or redundancy, it should be stated that Marcelo Kalalo's allegation that he acted in self-defense is absolutely unfounded on the ground

that, were it true that the deceased Marcelino Panaligan succeeded in using his revolver, he would have wounded if not the said appellant, at least the other appellants.

The trial court has acted correctly in not giving credit to the testimony of the appellants Juan and Felipe Kalalo and Gregorio Ramos that they proceeded to the scene of the crime completely unarmed, with the exception that one of them had a brush in his hand and the other a plane, after Marcelino Panaligan and Arcadio Holgado had already expired, which is incredible and improbable under the circumstances, knowing, as in fact that then knew, that their brother Marcelo Kalalo had been attacked by armed men. This court cannot help but agree with the decision of the lower court where it states:

> "It is improbable that after having been informed that their brother was engaged in a fight, they went to the scene of the crime, one merely armed with a plane and the other with a brush. It is improbable that Felipe Kalalo also went to that place simply to follow Juan Kalalo and Gregorio Ramos upon seeing them run unarmed in that direction. These improbabilities of the defenses of the accused, in the face of the positive and clear testimony of the eyewitness pointing to the said accused as the aggressors of the deceased Marcelino Panaligan and Arcadio Holgado, cannot, of course, prevail against nor direct from the weight of the evidence of the prosecution, particularly taking into consideration the numerous wounds of each of the deceased and the positions thereof, which show that the said deceased were attacked by several persons and that those several persons were the defendants. Furthermore, the established fact that after the commission of the crime the said defendants had been in hiding in order to avoid arrest, is corroborative evidence of their guilt."

It certainly is a fact of record that the said three appellants Felipe Kalalo, Juan Kalalo and Gregorio Ramos were not arrested until several days, because they had been hiding or, at least, absenting themselves from their homes.

That the four appellants should all be held liable for the death of the two deceased leaves no room for doubt. All of them, in going to the land where the killing took place, were actuated by the same motive which was to get rid of all those who might insist on plowing the land which they believed belonged to one of them, that is, to Marcelo Kalalo, a fact naturally inferable from the circumstance that all of them went there fully armed and that they simultaneously acted after they had been instigated by their mother with the words hereinbefore stated, to wit: "What is detaining you?"

The question now to be decided is whether the appellants are guilty of murder or of simple homicide in each of cases G.R. No. 39303 and G.R. No. 39304. The Attorney-General maintain that they are guilty of murder in view of the presence of the qualifying circumstance of abuse of superior strength particularly refer. The trial court was of the opinion that they are guilty of simple homicide but with the aggravating circumstance of abuse of superior strength.

It is true that under article 248 of the Revised Penal Code, which defines murder, the circumstance of "abuse of superior strength", if proven to have present, raises homicide to the category of murder; but this court is of the opinion that said circumstance may not properly be taken into consideration in the two cases at bar, either as a qualifying or as a generic circumstance, if it is borne in mind that the deceased were also armed, one of them with a bolo, and the other with a revolver. The risk was even for the contending parties and their strength was almost balanced because there is no doubt but that, under circumstances similar to those of the present case, a revolver is as effective as, if not more than so than three bolos. For this reason, this court is of the opinion that the acts established in cases Nos. 6858 and 6859 (G.R.

Nos. 39303 and 39304, respectively), merely constitute two homicides, with no modifying circumstance to be taken into consideration because none has been proved.

As to the case No. 6860 (G.R. No. 39305), the evidence shows that Marcelo Kalalo fired four successive shots at Hilarion Holgado while the latter was fleeing from the scene of the crime in order to be out of reach of the appellants and their companions and save his own life. The fact that the said appellant, not having contented himself with firing only once, fired said successive shots at Hilarion Holgado, added to the circumstances that immediately before doing so he and his co-appellants had already killed Arcadio Holgado and Marcelino Panaligan, cousin and brother-in-law, respectively, of the former, shows that he was then bent on killing said Hilarion Holgado. He performed everything necessary on his part to commit the crime that he determined to commit but he failed by reason of causes independent of his will, either because of his poor aim or because his intended victim succeeded in dodging the shots, none of which found its mark. The acts thus committed by the said appellant Marcelo Kalalo constitute attempted homicide with no modifying circumstance to be taken into consideration, because none has been established.

Wherefore, the three appealed sentences are hereby modified as follows:

In case No. 6858, or G.R. No. 39303, the court finds that the crime committed by the appellants is homicide and they are hereby sentenced to fourteen years, eight months and one day of *reclusion temporal* each, to jointly and severally indemnify the heirs of Marcelino Panaligan in the sum of P1,000 and to pay the proportionate part of the costs of the proceedings of both instances; and by virtue of the provisions of Act No. 4103, the minimum of the said penalty of *reclusion temporal* is hereby fixed at nine years;

In case No. 6859, or G.R. No. 39304, the court likewise finds that the crime committed by the appellants is homicide, and they are hereby sentenced to fourteen years, eight months and one day of *reclusion temporal* each, to jointly and severally indemnify the heirs of Arcadio Holgado in the sum of P1,000 and to pay the proportionate part of the costs of both instances; and in conformity with the provisions of Act No. 4103, the minimum of the penalty of *reclusion temporal* herein imposed upon them is hereby fixed at nine years;

In case No. 6860, or G.R. No. 39305, the court finds that the crime committed by the appellant Marcelo Kalalo is attempted homicide, and he is hereby sentenced to two years, four months and one day of *prision correccional,* it being understood that by virtue of the provisions of said Act No. 4103, the minimum of this penalty is six months, and he is furthermore sentenced to pay the costs of the appeal in this case.

In all other respects, the appealed sentences in the said three cases are hereby affirmed without prejudice to crediting the appellants therein with one-half of the time during which they undergone preventive imprisonment, in accordance with article 29 of the Revised Penal Code. So ordered.

Street, Abad Santos, Hull and *Butte, JJ.,* concur.

FIRST DIVISION

[G.R. No. L-23249. November 25, 1974.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **CUNIGUNDA BOHOLST-CABALLERO**, *accused-appellant*.

Solicitor General Arturo A. Alafriz, Assistant Solicitor General Florencio Villamor and *Attorney Concepcion F. Torrijos* for plaintiff-appellee.

Accused-appellant in her own behalf.

D E C I S I O N

MUÑOZ PALMA, *J* **:**

Convicted for having killed her husband, Cunigunda Boholst-Caballero seeks a reversal of the judgment of the Court of First Instance of Ormoc City finding her guilty of PARRICIDE and sentencing her "to suffer an indeterminate imprisonment of from EIGHT (8) YEARS and ONE (1) DAY of *prision mayor* in its medium period, as the minimum, to FOURTEEN (14) YEARS, EIGHT (8) MONTHS and ONE (1) DAY of *reclusion temporal* in its medium period as the maximum; to indemnify the heirs of Francisco Caballero in the sum of SIX THOUSAND PESOS (P6,000.00) without subsidiary imprisonment in case of insolvency, and to pay the costs", and prays for an acquittal based on her plea of self-defense. [1]

The Solicitor General however asks for the affirmance of the appealed decision predicated on the following testimonial and documentary evidence presented by the prosecution before the trial court:

Cunigunda Boholst and Francisco Caballero, both at the age of twenty, were married on June 7, 1956, at a ceremony solemnized by the parish priest of the Roman Catholic Church in Ormoc City. [2] The marriage was not a happy one and before the end of the year 1957 the couple separated. Late in the evening of January 2, 1958, Francisco Caballero and two companions, namely, Ignacio Barabad and Kakong Sacay, drank "tuba" in a certain house in barrio Ipil, Ormoc City. At about midnight, Francisco Caballero and his companions proceeded home. On the way, they saw Francisco's wife, Cunigunda, standing at the corner of the yard of Igmedio Barabad. Cunigunda called Francisco and when the latter approached her, Cunigunda suddenly stabbed Francisco with a knife marked by the prosecution as its Exhibit C. Francisco called for help to his two companions who upon seeing that Francisco was wounded, brought him to the St. Jude Hospital. [3] Dr. Cesar Samson, owner of the hospital, personally attended to the victim and found a "punctured wound on the left lumbar region measuring 1 inch externally" (Exhibit B). First aid was given, but because there was a need for blood transfusion and the facilities of the hospital were inadequate to provide the necessary treatment, Dr. Samson suggested that the patient be transported to Cebu City. [4] In the meantime, Cunigunda Caballero had gone to the Police Department of Ormoc City, surrendered to desk sergeant Restituto Mariveles and informed the latter that she

stabbed her husband. [5] While Francisco Caballero was confined at the hospital, he was interrogated by Patrolman Francisco Covero concerning the identity of his assailant and he pointed to his wife Cunigunda. The questions propounded by Pat. Covero and the answers given by the victim were written down in a piece of paper on which the victim affixed his thumbmark (Exhibit D) in the presence of his brother, Cresencio Caballero, and another policeman, Francisco Tomada. [6] On January 4, 1958, Francisco Caballero was brought to Cebu City on board the "MV Ormoc" but the trip proved futile because the victim died at noontime of the same day from the stab wound sustained by him. [7]

Appellant, on the other hand, pleads that We discard the proof adduced by the prosecution and believe instead what she declared before the trial judge briefly summarized as follows:

After her marriage to Francisco Caballero on June 7, 1956, appellant lived with her husband in the house of her parents in barrio Ipil, Ormoc City, and their marriage, although not a harmonious one, was blessed with a daughter; her married life was marked by frequent quarrels caused by her husband's "gambling, drinking, and serenading', and there were times when he maltreated and beat her; after more than a year she and her husband transferred to a house of their own, but a month had hardly passed when Francisco left her and her child, and she had to go back to live with her parents who bore the burden of supporting her and her child; in the month of November, 1957, her daughter became sick and she went to her husband and asked for some help for her sick child but he drove her away and said "I don't care if you all would die"; in the evening of January 2, 1958, she went out carolling with her friend, Crispina Barabad, and several men who played the musical instruments; at about 12:00 o'clock midnight they divided the proceeds of the carolling in the house of Crispina Barabad, after which she went home, but before she could leave the vicinity of the house of Crispina, she met her husband, Francisco, who upon seeing her, held her by the collar of her dress and asked her: "Where have you been prostituting? You are a son of a bitch."; she replied: "What is your business. Anyway you have already left us. You have nothing to do with us"; upon hearing these words Francisco retorted: "What do you mean by saying I have nothing to do with you. I will kill you all, I will kill you all"; Francisco then held her by the hair, slapped her face until her nose bled, and pushed her towards the ground; to keep herself from falling she held on to his waist and as she did so her right hand grasped the knife tucked inside the belt line on the left side of his body; because her husband continued to push her down she fell on her back to the ground; her husband then knelt over her, held her neck, and choked her saying: "Now is the time I can do whatever I want. I will kill you"; because she had "no other recourse" as she was being choked, she pulled out the knife of her husband and thrust it at him hitting the left side of his body near the "belt line" just above his left thigh; when she finally released herself from the hold of her husband she ran home and on the way she threw the knife; in the morning of January 3, she went to town, surrendered to the police, and presented the torn and bloodstained dress worn by her on the night of the incident (see Exhibit I); Pat. Cabral then accompanied her to look for the weapon but because they could not find it the policeman advised her to get any knife, and she did, and she gave a knife to the desk sergeant which is the knife now marked as Exhibit C for the prosecution. [8]

The sole question thus presented in this appeal is: did appellant stab her husband in the legitimate defense of her person?

The law on self-defense embodied in any penal system in the civilized world finds justification in man's natural instinct to protect, repel, and save his person or rights from

impending danger or peril; it is based on that impulse of self-preservation born to man and part of his nature as a human being. Thus, in the words of the Romans of ancient history: *Quod quisque ob tutelam corporis sui fecerit, jure suo fecisse existimetur*. [9] To the Classicists in penal law, lawful defense is grounded on the impossibility on the part of the State to avoid a present unjust aggression and protect a person unlawfully attacked, and therefore it is inconceivable for the State to require that the innocent succumb to an unlawful aggression without resistance; while to the Positivists, lawful defense is an exercise of a right, an act of social justice done to repel the attack of an aggressor. [10]

Our law on self-defense is found in Art. 11 of the Revised Penal Code which provides:

> "ART. 11. Justifying circumstances. — The following do not incur any criminal liability:
>
> "1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:
>
> "First. Unlawful aggression;
>
> "Second. Reasonable necessity of the means employed to prevent or repel it;
>
> "Third. Lack of sufficient provocation on the part of the person defending himself."
>
> xxx xxx xxx

As part of this law is the settled jurisprudence that he who seeks justification for his act must prove by clear and convincing evidence the presence of the aforecited circumstances, the rationale being that having admitted the wounding or killing of his adversary which is a felony, he is to be held criminally liable for the crime unless he establishes to the satisfaction of the court the fact of legitimate self-defense. [11]

In this case of Cunigunda Caballero, the trial court did not find her evidence clear and convincing, and gave these reasons for its conclusion: a) appellant's testimony is inherently improbable as brought out by her demonstration of the incident in question during the trial of the case; b) there was no wound or injury on appellant's body treated by any physician; c) appellant's insistence that the weapon used by her was a Moro hunting knife and not Exh. C is incredible; d) she gave contradictory statements concerning the report made by her to the police authorities that she was choked by her husband; and e) her husband's abandonment of her and her child afforded the motive behind appellant's attack. [12]

We are constrained, however, to disagree with the court *a quo* and depart from the rule that appellate courts will generally not disturb the findings of the trial court on facts testified to by the witnesses.

An examination of the record discloses that the trial judge overlooked and did not give due importance to one piece of evidence which more than the testimony of any witness eloquently confirms the narration of appellant on how she happened to stab her husband on that unfortunate night. *We refer to the location of the wound inflicted on the victim*.

Appellant's account of that fatal occurrence as given in her direct testimony follows:

"Q At that precise time when you were going home to the place of your parents, did any unusual incident occur?

A Yes, sir.

Q What was it?

A At the time when I went down from the house of Crispina Barabad, when I reached near the banana hill, my husband held me.

Q What happened when your husband, Francisco Caballero, held you?

A He asked me from where did I prostitute myself.

Q What did you answer?

A I answered that I did not go (on) prostituting. I told him that I was only forced to accompany with the carolling in order to earn money for our child.

Q What part of your body did your husband, Francisco Caballero, hold you?

A He held me at the collar of my dress. (Witness holding the right portion of the collar of her dress.).

Q After you answered Francisco, what did he do?

A He said 'Where have you been prostituting? You are a son of a bitch.' Then I told him 'What is your business. Anyway you have already left us. You have nothing to do with us.'

Q When Francisco heard these words, what did he do?

A Francisco said 'What do you mean by saying I have nothing to do with you. I will kill you all. I will kill you all.'

Q And then, what happened?

A He held my hair and slapped my face twice. Then I staggered and my nose was bleeding.

Q Do you mean to say that blood flowed out of your nose?

A Yes, sir.

Q After you were slapped twice and your nose begun to bleed, what happened next?

A He held the front part of my dress just below the collar and pushed me towards the ground.

Q While your husband was holding your dress below the neck and tried to push you down, what did you do?

A I held a part of his body in order that I would not fall to the ground.

Q And then what happened?

A Because I struggled hard in order that I would not fall to the ground, I held his belt and that was the time I got hold of a weapon along his belt line.

Q After that what happened?

A He shoved my hands upward and pushed me to the ground and that

was the time my hands were released. He was choking me.

Q When you said your hands were released, was that before or after you were choked by Francisco Caballero?

A At that time when I was about to fall to the ground that was the time I released my hands.

Q When yon were almost fallen to the ground, where were the hands of Francisco Caballero?

A On my hair.

Q You mean to say the two hands of Francisco Caballero?

A One of his hands was holding my hair. The other hand pushed me.

COURT:

Q What hand was holding your hair?

A His right hand was holding my hair while his left hand pushed me.

ATTORNEY GARCIA:

Q When you were fallen to the ground what happened?

A While I lay prostrate on the ground and believing that I have no other recourse, while his left hand was holding my neck, I was able to take hold of the weapon from his belt line and I thrust it to him.

Q What was this weapon which you were able to get from his belt line?

A It was a hunting knife." (tsn. pp. 53-55, witness Cunigunda Caballero).

On cross-examination, appellant was asked by the private prosecutor to show her position when she stabbed her husband and she did, and although the stenographic notes on that demonstration are very sketchy which We quote:

"Q Please demonstrate to this Court when you made the thrust to your husband?

A When I took hold of the hunting knife I made the thrust in this manner. (Witness held the ruler with her right hand and kneeled on the floor)" (tsn. p. 67, ibid).

still We can get a clear picture of what appellant must have done, from the questions and answers immediately following the above-quoted portion of the transcript, viz:

"Q You want to make us understand that when you thrust the weapon to the body of your husband you were lying down flat to the ground?

A I was lying flat or the ground face upward. I was a little bit inclined because I tried to struggle trying to get away from the hold of my husband.

Q You want to make us understand that your back was touching the ground when you made the thrust to your husband?

A Yes, sir.

COURT:

Q Where were you kneeled by your husband?

A On my right thigh." (ibid; emphasis supplied).

Thus, with her husband kneeling over her as she lay on her back on the ground and his hand choking her neck, appellant, as she said, had no other recourse but to pull out the knife inserted at the left side of her husband's belt and plunge it at his body hitting the left back portion just below the waist, described by the attending physician, Dr. Cesar Samson, as the left lumbar region. The fact that the blow landed in the vicinity from where the knife was drawn is a strong indication of the truth of appellant's testimony, for as she lay on the ground with her husband bent over her it was quite natural for her right hand to get hold of the knife tucked in the left side of the man's belt and thrust it at that section of the body nearest to her hand at the moment.

We do not agree with the trial judge's observation that as demonstrated by the accused it was physically impossible for her to get hold of the weapon because the two knees of her husband were on her right thigh "which would have forced her to put her right elbow towards the ground" (see p. 9 of Decision), for even if it were true that the two knees of Francisco were on his wife's right thigh, however, there is *nothing in the record* to show that the right arm of the accused was held, pinned down or rendered immobile, or that she pressed her elbow to the ground, as conjectured by the trial judge, in such a manner that she could not reach for the knife. On the contrary, as indicated earlier, accused testified and so demonstrated that she was lying flat on her back, her husband kneeling over her and her right arm free to pull out the knife and strike with it.

The trial judge also referred to a demonstration made by appellant of that portion of her testimony when she was held by the hair and pushed down to the ground, and His Honor commented that "(S)he could not be falling to the ground, as shown to the Court by her, considering the fact that the pushing was to and fro as shown in her demonstration." (p. 8, Decision) The trial judge, however, failed to consider that it is humanly impossible to have an exact and accurate reproduction or reenactment of an occurrence especially if it involves the participation of persons other than the very protagonists of the incident being reenacted. In this particular instance appellant was asked by the private prosecutor to show how she was pushed down by her husband, and her demonstration is described in the stenographic transcript as follows:

> "Q Please demonstrate to this Court the position of your husband and you while your husband held your hair.
>
> A He did this way. (Witness held the hair of the Court Interpreter with his left hand and his right hand held the right shoulder of the Interpreter and pulled the Interpreter to and fro. The Interpreter represented as the accused and the accused as the deceased.).
>
> Q Where were your two hands?
>
> A My two hands held his waist line." (tsn. 66, witness Cunigunda Caballero; italics supplied).

In that demonstration, accused represented the victim while she in turn was impersonated by the court interpreter, and so it was difficult if not impossible for the two to give an accurate reenactment considering that the accused assumed a role not hers during the actual incident and the court interpreter played a part which was not truly his. At any rate, the accused showed how one hand of her husband held her hair while the other pushed her down by the shoulder, and to portray how she in turn struggled and tried to push back her husband to keep herself from falling, she "pulled the interpreter (representing the accused) to and fro." The fact is that Francisco succeeded in forcing appellant down to the ground as portrayed by the latter when, following the foregoing demonstration, she was asked by the private prosecutor to show how she stabbed her

husband — a matter which is discussed in pages 8 and 9 of this Decision.

It is this particular location of the wound sustained by the victim which strongly militates against the credibility of the lone prosecution witness, Ignacio Barabad. This witness declared that on that night when husband and wife met on the road, Cunigunda called Francisco and when the latter was near, she immediately stabbed him. If that were true, that is, husband and wife were standing face to face at a distance of one-half meter when the stabbing occurred (tsn. p. 11, witness Ignacio Barabad), it would have been more natural and probable for the weapon to have been directed towards the front part of the body of the victim such as his abdomen or chest, rather than at his back, left side, just above the left thigh.

In cases such as the one now before Us where there are directly conflicting versions of the incident object of the accusation, the Court in its search for the truth perforce has to look for some facts or circumstances which can be used as valuable aids in evaluating the probability or improbability of a testimony, for after all the element of probability is always involved in weighing testimonial evidence [13] , so much so that when a court as a judicial fact-finder pronounces judgment that a set of facts constitute the true happening it does so not of its own personal knowledge but as the result of an evaluating process of the probability or improbability of a fact sought to be proved.

Thus, in People vs. Aquino, L-32390, December 28, 1973, a decision of the First Division of this Court penned by Chief Justice Querube C. Makalintal, the plea of self-defense of the accused-appellant was sustained on the basis of certain "physical and objective circumstances" which proved to be of "decisive importance" in ascertaining the veracity of the plea of self-defense, to wit: the location of the wound on the right side of the throat and right arm of the deceased, the direction of the trajectories of the bullets fired by the accused, the discovery of bloodstains at the driver's seat, the finding of the dagger and scabbard of the deceased, and so on. [14]

In the case of appellant Cunigunda Caballero, We find the location of the fatal wound as a valuable circumstance which confirms the plea of self-defense.

Another, is the lack of motive of appellant in attacking and killing her husband on that particular night of January 2. Although it is the general rule that the presence of motive in the killing of a person is not indispensable to a conviction especially where the identity of the assailant is duly established by other competent evidence or is not disputed, as in this case, nonetheless, the absence of such motive is important in ascertaining the truth as between two antagonistic theories or versions of the killing. [15]

We disagree with the statement of the court *a quo* that appellant's motive for killing her husband was his abandonment of her and his failure to support her and her child. While appellant admitted in the course of her testimony that her marriage was not a happy one, that she and her husband separated in the month of October, 1957, and since then she and her child lived with her parents who supported them, nevertheless she declared that notwithstanding their separation she still loved her husband (tsn. p. 59, cross-examination of appellant). As a matter of fact, appellant had been living with her parents for several months prior to the incident in question and appeared resigned to her fate. Furthermore, there is no record of any event which occurred immediately prior to January 2 which could have aroused her feelings to such a degree as to drive her to plan and carry out the killing of her husband.

On the other hand, it was Francisco Caballero who had a reason for attacking his wife, Cunigunda. Meeting his wife unexpectedly at past midnight on the road, Francisco

reacted angrily, and suspecting that she was out for some bad purpose he held her by the collar of her dress and said: "Where have you been prostituting? You are a son of a bitch." This was followed by a slapping on the face until Cunigunda's nose bled, pulling of her hair, pushing her down to the ground, and strangling her — all of which constituted the unlawful aggression against which appellant had to defend herself.

Next to appellant's lack of motive for killing her husband, is her conduct shortly after the occurrence. As soon as the sun was up that morning of January 3 (the stabbing occurred past midnight of January 2), Cunigunda went to the city and presented herself at the police headquarters where she reported that she stabbed her husband and surrendered the blood-stained dress she wore that night. On this point, the trial judge stated that appellant made contradictory statements in her testimony concerning the report made by her to the police authorities, for while at the start she declared that she did not report the "choking by her husband", she later changed her testimony and stated that she did relate that fact. (p. 10, Decision)

We have gone over the stenographic transcript of the testimony of appellant on direct examination and *nowhere is there a positive and direct statement of hers that she did not* report that she was choked by her husband. What the trial judge asked of appellant was whether or not she told the police about the fist mark on her face and her answer was "No, sir, I forgot." (tsn. p. 55, supra) And on appellant's cross-examination, there was no question propounded and therefore there was no answer given on the subject-matter of appellant's report to the police concerning the incident except for the following:

"COURT:

Q Did you show that dress to the police authorities the following day?

A I was not able to wear that, Your Honor, because it was torn out.

Q You did not bring that to the police authorities?

A I showed it to the police authorities, and they told me to keep it, but not to touch it." (Tsn. p. 65, ibid).

We do not see, therefore, the alleged contradiction in appellant's testimony which was singled out by His Honor as one of his reasons for discrediting her plea of self-defense.

That appellant made it clear to the police that she stabbed her husband because he attacked her is confirmed by no less than the prosecution witness, Patrolman Restituto Mariveles, who was on duty at the desk when appellant arrived at the police headquarters. This witness on cross-examination declared:

"Q And she also told you that on that night previous to the incident her husband Francisco Caballero beat her up, is that right?

A She told me that she was met on the way by her husband immediately after carolling and she was manhandled by her husband and when she was struggling to get loose from her husband she happened to take hold of a knife that was placed under the belt of her husband and because she was already half conscious she did not know that she was able to thrust said knife to the stomach of her husband." (tsn. p. 23, witness R. Mariveles)

It is indeed regrettable that the statements made by appellant to the police upon her surrender were not taken down in writing to serve as a faithful and reliable account

of her report, nevertheless, We are satisfied by the fact, which is not disputed, that of her own accord appellant went to the police authorities early in the morning of January 3, informed policeman Mariveles that she stabbed her husband because he manhandled her which rendered her "half-conscious", and brought and showed the dress she wore during the incident which was torn by the collar and with blood stains due to the bleeding of her nose. Another policeman, Joventino de Leon, who at the time was property custodian of the Ormoc City police, corroborated appellant's testimony concerning the dress marked Exhibit 1 for the defense. (tsn. p. 70 witness J. de Leon) If there was no clear and positive statement in appellant's testimony either on direct or cross examination that she informed the police that she was choked by her husband, it was because, as We noted, no question was propounded to her on that point.

While We are on this subject of appellant's surrender, mention is to be made of the knife marked as Exhibit C for the prosecution. In her testimony, appellant stated that Exhibit C was not the knife actually used by her in stabbing her husband because the true weapon was her husband's Moro hunting knife with a blade of around six inches which she threw away immediately after the incident; that when she was asked by Pat. Mariveles to look for the weapon and she could not find it, she was advised by policeman Cabral who helped her in the search to get any knife and surrender it to the desk officer and so she took the knife Exhibit C and presented it to Pat. Mariveles. (tsn. appellant pp. 56-57, 60) This testimony of appellant was taken against her by the court *a quo* which held that her declaration could not have been true. We find however no strong reason for disbelieving the accused on this point. Appellant does not deny that she turned over Exhibit C to Pat. Mariveles as the knife with which she stabbed her husband but she claims that she did so upon advise of another policeman, Pat. Cabral, and it is quite significant that the latter was not called upon by the prosecution to refute such declaration. There is sincerity in appellant's attempt to rectify a misstatement made by her to Pat. Mariveles and We are inclined to believe and in fact We do believe that the fatal weapon must have had indeed a blade of around six inches as stated by appellant for it to penetrate through the left lumbar region to the victim's large intestine and cause the discharge of fecal matter. (tsn. Dr. C. Samson, p. 6).

All the elements of self-defense are indeed present in the instant case.

The element of unlawful aggression has been clearly established as pointed out above.

The second element, that is, reasonable necessity for the means employed is likewise present. Here we have a woman who being strangled and choked by a furious aggressor and rendered almost unconscious by the strong pressure on her throat had no other recourse but to get hold of any weapon within her reach to save herself from impending death. Early jurisprudence of this Court has followed the principle that the *reasonable necessity of the means employed in self-defense does not depend upon the harm done but rests upon the imminent danger of such injury.* (U.S. vs. Paras, 1907, 9 Phil. 367, citing Decision of Dec. 22, 1887) And so the fact that there was no visible injury caused on the body of the appellant which necessitated medical attention, a circumstance noted by the trial court, is no ground for discrediting self-defense; what is vital is that there was imminent peril to appellant's life caused by the unlawful aggression of her husband. The knife tucked in her husband's belt afforded appellant the only reasonable means with which she could free and save herself from being strangled and choked to death. What this Court expressed in the case of People vs. Lara, 1925, 48 Phil. 153, 160, is very true and applicable to the situation now before Us,

and We quote:

> "It should be borne in mind that in emergencies of this kind human nature does not act upon processes of formal reason but in obedience to the instinct of self-preservation; and when it is apparent, as in this case, that a person has reasonably acted upon this instinct, it is the duty of the courts to sanction the act and to hold the actor irresponsible in law for the consequences." [16]

Equally relevant is the time-honored principle: *Necessitas Non habet legem.* Necessity knows no law.

The third element of self-defense is lack of sufficient provocation on the part of the person defending himself. Provocation is sufficient when it is proportionate to the aggression, that is, adequate enough to impel one to attack the person claiming self-defense. [17] Undoubtedly appellant herein did not give sufficient provocation to warrant the aggression or attack on her person by her husband, Francisco. While it was understandable for Francisco to be angry at his wife for finding her on the road in the middle of the night, however, he was not justified in inflicting bodily punishment with an intent to kill by choking his wife's throat. All that appellant did was to provoke an imaginary commission of a wrong in the mind of her husband, which is not a sufficient provocation under the law of self-defense. Upon being confronted by her husband for being out late at night, accused gave a valid excuse that she went carolling with some friends to earn some money for their child. January 2 was indeed within the Christmas season during which by tradition people carol from house to house and receive monetary gifts in a Christian spirit of goodwill. The deceased therefore should have given some consideration to his wife's excuse before jumping to conclusions and taking the extreme measure of attempting to kill his wife.

IN VIEW OF THE ABOVE CONSIDERATIONS, We find that accused-appellant acted in the legitimate defense of her person, and We accordingly set aside the judgment of conviction and ACQUIT her with costs de oficio.

So Ordered.

Makalintal, C.J., Teehankee, Makasiar and *Esguerra, JJ.,* concur.

Castro, J., On leave.

Footnotes

1. This appeal was originally elevated to the Court of Appeals; however, in a Resolution promulgated on May 7, 1964, it forwarded the case to this Court on the ground that the penalty for the crime committed by the accused is *reclusion perpetua*.

2. Marriage contract marked Exhibit G.

3. T.s.n. March 19, 1958, pp. 3-7, witness Ignacio Barabad.

4. T.s.n. April 18, 1958, pp. 2-7, witness Dr. Cesar Samson.

5. T.s.n. June 24, 1958, pp. 16-17, witness Restituto Mariveles.

6. T.s.n. June 24, 1958, pp. 28-32, witness Covero; t.s.n. June 24, 1958, pp. 54-62, 67, witness Tomada; t.s.n. pp. 72-73 witness Cresencio Caballero.

7. see death certificate marked Exhibit H.

8. T.s.n. August 12, 1958, pp. 58-68, witness Cunigunda Caballero.

9. see 1 Viada, 172, 5th edition. "That which anyone should do for the safety of his own person is to be adjudged as having been done justly in his own favor." (Writer's translation).

10. Guillermo B. Guevara's Penal Science and Philippine Criminal Law, 1974 ed. p. 82, citing: Pessina, par. 73; Carrara, par. 291; and Calon, Derecho Penal, 292.

11. U.S. vs. Coronel, 30 Phil. 112; People vs. Cruz, 53 Phil. 635; People vs. Ansoyon, 75 Phil. 772; People vs. Davis, L-13337, Feb. 16, 1961, 1 SCRA 473; People vs. Solaña, L-13967, Sept. 29, 1962, 6 SCRA 60; People vs. Mendoza, L-16392, January 30, 1965, 13 SCRA 11; People vs. Talaboc, L-25004, October 31, 1969, 30 SCRA 87; People vs. Ordiales, L-30956, November 23, 1971, 42 SCRA 238; People vs. Tingson, L-31228, October 24, 1972, 47 SCRA 243; People vs. Llamera, L-21604-5-6, May 25, 1973, 51 SCRA 48.

12. pp. 7-9, Decision found in pp. 267-269, original record.

13. Underhill's Criminal Evidence, 5th edition, Vol. 1, pp. 2-3, cited in Francisco's Evidence, Vol. VII, Part 1, p. 68.

14. see also People vs. Maliwanag, et al., L-30302, August 14, 1974 (1st Division).

15. People vs. Zamora, 59 Phil. 568; People vs. Ramponit, 62 Phil. 284; People vs. Divinagracia, 105 Phil. 281; People vs. Ester Murray, 105 Phil. 591; People vs. Macabenta, 106 Phil. 77.

16. See also People vs. Encomienda, No. L-26750, August 18, 1972, 46 SCRA p. 522.

17. Guevara's supra p. 89, citing Decision of Supreme Court of Spain, February 20, 1893, 50 Jur. Crim. 166-168; Padilla's Criminal Law, Book I, 1971 ed., p. 197.

EN BANC

[G.R. No. L-162. April 30, 1947.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **DIOSCORO ALCONGA and ADOLFO BRACAMONTE**, *defendants*. **DIOSCORO ALCONGA**, *appellant*.

D E C I S I O N

HILADO, *J* :

On the night of May 27, 1943, in the house of one Mauricio Jepes in the municipality of San Dionisio, Province of several persons were playing prohibited games . n., pp. 95, 125). The deceased Silverio Barion was the banker in the game of black jack, and Maria de Raposo, a witness for the prosecution, was one of those playing the game (t. s. n., p. 96). Upon invitation of the said Maria de Raposo, the accused Dioscoro Alconga joined her as a partner, each of them contributing the sum of P5 to a common fund (t. s. n., pp. 95, 125). Maria de Raposo played the game while the said accused posted himself behind the deceased, acting as a spotter of the cards of the latter and communicating by signs to his partner (t. s. n., 95-96, 126). The deceased appears to have suffered losses in the game because of the team work between Maria de Raposo and the accused Alconga (t. s. n., pp. 96, 126). Upon discovering what the said accused had been doing, the deceased became indignant and expressed his anger ; the former (t. s. n., pp. 96, 126). An exchange of words followed, and the two would have come to blows but for the intervention of the maintainer of the games t. s. n., p. 96). In a fit of anger, the deceased left the house but not before telling the accused Alconga, "tomorrow morning I will give you a breakfast" (t. s. n., p. 96), which expression would seem to signify an intent to inflict bodily arm when uttered under such circumstances.

The deceased and the accused Alconga did not meet hereafter until the morning of May 29, 1943, when the latter was in the guardhouse located in the barrio of Santol, performing his duties as "home guard" (t. s. n., pp. 98-100). While the said accused was seated on a bench in the guardhouse, the deceased came along and, addressing the former, said, "Coroy, this is your breakfast," followed forthwith by a swing of his "pingahan" (t. s. n., p. 100). The accused avoided the blow by falling to the ground under the bench with the intention to crawl out of the guardhouse (t. s. n., pp. 100-101). A second blow was given but failed to hit the accused, hitting the bench instead (t. s. n., p. 101). The accused managed to go out of the guardhouse by crawling on his abdomen (t. s. n., p. 101). While the deceased was in the act delivering the third blow, the accused, while still in a crawling position (t. s. n., p. 119), fired at him with his revolver, causing him to stagger and to fall to the ground (t. s. n., p. 101). Rising to his feet, the deceased drew forth his dagger and directed a blow at the accused who, however, was able to parry the same with his bolo (t. s. n., pp, 101-102). A hand-to-hand fight ensued (t. s. n., p. 102). Having sustained several wounds, the deceased ran away but was followed by the accused (t. s. n., p. 6). After running a distance of about 200 meters (t. s. n., pp. 21, 108), the deceased was overtaken, and another fight took

place, during which the mortal bolo blow — the one which slashed the cranium — was delivered, causing the deceased to fall to the ground, face downward, besides many other blows delivered right and left (t. s. n., pp. 6, 28). At this instant, the other accused, Adolfo Bracamonte, arrived and, being the leader of the "home guards" of San Dionisio, placed under his custody the accused Alconga with a view to turning him over to the proper authorities (t. s. n., pp. 102-105).

On their way to San Dionisio, the two accused were stopped by Juan Collado, a guerrilla soldier (t. s. n., pp. 80, 104). Adolfo Bracamonte turned over Alconga to Collado who in turn took him to the headquarters (t. s. n., pp. 81, 104). In the afternoon of the same day, Collado delivered Alconga to Gregorio Barredo, a municipal policeman of San Dionisio, together with the weapons used in the fight: a revolver, a bolo, and a dagger (t. s. n., pp. 81, 104).

The injuries sustained by the deceased were described by police sergeant Gil G. Estaniel as follows:

> "P. Y que hicieron ustedes cuando ustedes vieron Barion?
>
> R. Examine sus heridas.
>
> "P. Donde ha encontrado usted las heridas, en que parte del cuerpo?
>
> R. En la cabeza, en sus brazos, en sus manos, en la mandbula inferior, en la parte frente de su cuello, en su pecho derecho, y tambien en el pecho izquierdo, y su dedo menique habia volado, se habia cortado, y otras pequeñas heridas mas.
>
> "P. En la cabeza, vio usted heridas?
>
> R. Si, señor.
>
> "P. Cuantas heridas?
>
> R. Una herida en la region parietal derecha y una contusion en la corona de la cabeza.
>
> "P. Ivio usted el craneo?.
>
> R. En el craneo llevaba una herida, en el craneo se ha roto.
>
> "P. En el pecho, que herida ha encontrado usted?
>
> R. Debajo de la tetilla derecha, una herida causada por una bala.
>
> "P. Y otras heridas en el pecho, puede usted decir que clase de heridas?
>
> R. Heridas causadas por bolo.
>
> P. Como de grande aquellas heridas en el pecho?
>
> R. No recuerdo la dimension de las heridas en el pecho.
>
> P. Pero en la cabeza?
>
> R. La cabeza se rajo por aquella herida causada por el bolo." (T. s. n., p. 25.)

It will be observed that there were two stages in the fight between appellant and the deceased. The initial stage commenced when the deceased assaulted appellant without sufficient provocation on the part of the latter. Resisting the aggression, appellant managed to have the upper hand in the fight, inflicting several wounds upon the deceased, on account of which the latter fled in retreat. From that moment there was no longer any danger to the life of appellant who, being virtually unscathed, could

have chosen to remain where he was. Resolving all doubts in his favor, considering that in the *first stage* the deceased was the unlawful aggressor and defendant had not given sufficient provocation, and considering further that when the deceased was about to deliver the third blow, appellant was still in a crawling position and, on that account, could not have effectively wielded his bolo and therefore had to use his "paltik" revolver — his only remaining weapon — ; we hold that said appellant was then acting in self-defense.

But when he pursued the deceased, he was no longer acting in self-defense, there being then no more aggression to defend against, the same having ceased from the moment the deceased took to his heels. During the *second stag*e of the fight appellant inflicted many additional wounds upon the deceased. That the deceased was not fatally wounded in the first encounter is amply shown by the fact that he was still able to run a distance of some 200 meters before being overtaken by appellant. Under such circumstances, appellant's plea of self-defense in the *second stage* of the fight cannot be sustained. There can be no defense where there is no aggression.

> "Although the defendant was not the aggressor, he is not exempt from criminal liability for the reason that it is shown that he struck several blows, among them the fatal one, after the necessity for defending himself had ceased, his assailant being then in retreat. Therefore one of the essential ingredients of self-defense specified in No. 4, article 8 of the Penal Code is wanting" (now article 11, case No. 1, Revised Penal Code). (United States vs. Dimitillo, 7 Phil., 475, 476; words in parenthesis supplied.)

> " . . . Even if it be conceded for the moment that the defendants were assaulted by the four (offended parties), the right to kill in self-defense ceased when the aggression ceased; and when Toledo and his brothers turned and ran, without having inflicted so much as a scratch upon a single one of the defendants, *the right of the defendants to inflict injury upon them ceased absolutely*. They had no right to pursue, no right to kill or injure. A fleeing man is not dangerous to the one from whom he flees. When danger ceases, the right to injure ceases. When the aggressor turns and flees, the one assaulted must stay his hand." (United States vs. Vitug, 17 Phil., 1, 19; emphasis supplied.)

Upon the foregoing facts, we hold that appellant's guilt of the crime of homicide has been established beyond reasonable doubt. The learned trial court appreciated in his favor two mitigating circumstances: voluntary surrender and provocation on the part of the deceased. The first was properly appreciated; the second was not, since it is very clear that from the moment he fled after the first stage of the fight to the moment he died, the deceased did not give any provocation for appellant to pursue much less further to attack him.

The only provocation given by him was imbibed in, and inseparable from, the aggression with which he started the first stage of the fight. The evidence, as weighed and appreciated by the learned trial judge, who had heard, seen and observed the witnesses testify, clearly shows that said e ended with the flight of the deceased after receiving a bullet wound in his right breast, which caused him to stagger and fall to the ground, and several bolo wounds inflicted by appellant during their hand-to-hand fight after had gotten up. The learned trial judge said:

> "The evidence adduced by the prosecution and the defense in support of their respective theories of the case vary materially on certain points. Some of these facts have to be admitted and some have to be rejected with the end in

view of arriving at the truth. To the mind of the Court, what really happened in the case at bar, as can be disclosed by the records, which lead to the killing of the leased on that fatal morning of May 29, 1945 (should be 1943), is us follows:

xxx xxx xxx

In the morning of May 29, 1943, while Dioscoro Alconga was alone in the guardhouse performing his duties as guard or 'ronda' in Barrio Santol, the deceased Silverio Barion passed by with a pingahan.' That was the first time the deceased and the accused Alconga had met since that eventful night of May 27th in the gambling house of Gepes. Upon seeing the accused Alconga, who was then seated in the guardhouse, the deceased cried: 'Coroy, this is now the breakfast!' These words of warning were immediately followed by two formidable swings of the 'pingahan' directed at the accused :Alconga which failed to hit him. Alconga was able to avoid the blows by falling to the ground and crawling on his abdomen until he was outside the guardhouse. The deceased followed him and while in the act of delivering the third blow, Dioscoro Alconga fired at him with his revolver thereby stopping the blow in mid-air. The deceased fell to the ground momentarily and upon rising to his feet, he drew forth a dagger. The accused Alconga resorted to his bolo and both persons being armed, a hand-to-hand fight followed. The deceased having sustained several wounds from the hands of Alconga, ran away with the latter close to his heels."

The foregoing statement of the pertinent facts by the learned trial judge is in substantial agreement with those found by us and narrated in the first paragraphs of this decision. Upon those facts the question arises whether when the deceased started to run and flee, or thereafter until he died, there was any provocation given by him for appellant to pursue and further to attack him. It will be recalled, to begin with, that the first stage of the fight was provoked when the deceased said to appellant "Coroy, this is now the breakfast," or "This is your breakfast," followed**;** forthwith by a swing or two of his "pingahan." These words without the immediately following attack with the "pingahan" would not have been uttered, we can safely assume, since such an utterance alone would have been entirely meaningless. It was the *attack,* therefore, that effectively constituted the provocation, the utterance being, at best, merely a prelude to the attack. At any rate, the quoted words by themselves, without the deceased's act immediately following them, would certainly not have been considered a sufficient provocation to mitigate appellant's liability in killing or injuring the deceased. For provocation in order to be a mitigating circumstance must be *sufficient* and immediately preceding the act. (Revised Penal Code, article 13, No. 4.)

Under the doctrine in United States vs. Vitug, supra, when the deceased ran and fled without having inflicted so much as a scratch upon appellant, but after, upon the other hand, having been wounded with one revolver shot and several bolo slashes, as aforesaid, the right of appellant to inflict injury upon him *ceased absolutely* — appellant "had no right to pursue, no right to kill or injure" said deceased — for the reason that "a fleeing man is not dangerous to the one from whom he flees." If the law, as interpreted and applied by this Court in the Vitug case, enjoins the victorious contender from pursuing his opponent on the score of self-defense, it is because this Court considered that the requisites of self-defense had ceased to exist, principal and indispensable among these being the unlawful aggression of the opponent (Rev. Penal Code, article 11, No. 1; 1 Viada, 5th ed., 173).

Can we find under the evidence of record that after the cessation of said aggression the provocation thus involved therein still persisted, and to a degree *sufficient* to extenuate appellant's criminal responsibility for his acts during the second stage of the fight? Appellant did not testify nor offer other evidence to show that when he pursued the deceased he was still acting under the impulse of the effects of that provocation, be it anger, obfuscation or the like. The Revised Penal Code provides:

> "ART. 1.3. Mitigating circumstances:
>
> xxxx xxx xxx
>
> "4. That sufficient provocation or threat on the part of the offended party immediately preceded the act."

It is therefore apparent that the Code requires for provocation to be such a mitigating circumstance that it not only immediately precede the act but that it also be *sufficient*. In the Spanish Penal Code, the adjective modifying said noun is "adecuada" and the Supreme Court of Spain in its judgment of June 27, 1883, interpreted the equivalent provision of the Penal Code of that country, which was the source of our own existing Revised Penal Code, that "adecuada" means *proportionate* to the damage caused by the act. Viada (Vol. 11, 5th ed., p. 51) gives the ruling of that Supreme Court as follows:

> El Tribunal Supremo ha declarado que la *provocacion o amenaza* que de parte del ofendido ha de preceder para la disminucion de la responsabilidad criminal debe ser *proporcionada* al daño que se cause, lo cual no concurre a favor del reo si resulta que la unica cuestion que hubo fue si en un monton de yeso habia mas o menos cantidad y como perdiera la apuesta y bromeando dijera el que la gano que beberia vino de balde, esa pequeña cuestion de amor propio no justificaba en modo alguno la ira que le impelio a herir y matar a su contrario." (S. de 27 de junio de 1883, Gaceta de 27 de septiembre.)

Justice Albert, in his commentaries on the Revised Penal Code, 1946 edition, page 94, says: "The provocation or threat must be sufficient, which means that it should be proportionate to the act committed and adequate to *stir* one its commission" (emphasis supplied).

Sufficient provocation, being a matter of defense, should, like any other, be affirmatively proven by the accused.

This the instant appellant has utterly failed to do. Any way, it would seem self-evident that appellant could never have succeeded in showing that whatever remained of the effects of the deceased's aggression, by way of provocation after the latter was already in flight, was proportionate to his *killing* his already defeated adversary.

That provocation gave rise to a fight between the two men, and may be said, not without reason, to have spent itself after appellant had shot the deceased in his right breast and caused the latter to fall to the ground; or — making a concession in appellant's favor — after the latter had inflicted several bolo wounds upon the deceased, without the deceased so much as having scratched his body in their hand-to-hand fight when both were on their feet again. But if we are to grant appellant a further concession, under the view most favorable to him, that aggression must be deemed to have ceased upon the flight of the deceased — upon the end of the first stage of the fight. In so affirming, we had to strain the concept in no small degree. But to further strain it so as to find that said aggression or provocation persisted even when the deceased was already in flight, clearly accepting defeat and no less clearly running for

his life rather than evincing an intention of *returning to the fight, is* more than we can sanction. It should always be remembered that "illegal aggression" is equivalent to assault or at least threatened assault of an immediate and imminent kind.

> *"Agression ilegitimate*. — Agresion vale tanto como acometimiento. Para que exista el derecho de defensa es preciso que se nos acometa, que se nos ataque, o cuando menos, que se nos amenace de atacanos de un modo inmediato e inminente; v. *gr.,* desenvainando el puñal para herirnos con el o apuntando la pistola para dispararla contra nosotros." (Viada, 5. edicion, 173.)

After the flight of the deceased there was clearly neither an assault nor a threatened assault of the remotest kind It has been suggested that when pursuing his fleeing, opponent, appellant might have thought or believed that said opponent was going to his house to fetch some other weapon. But whether we consider this as a part or continuation of the self-defense alleged by appellant, or as a separate circumstance, the burden of proof to establish such a defense was, of course, upon appellant, and he has not so much as attempted to introduce evidence for this purpose. If he really thought so, or believed so, he should have positively proven it, as any other defense. We cannot now gratuitously assume it in his behalf.

It is true that in the case of United States vs. Rivera (41 Phil., 472, 474), this Court held that one defending himself or his property from a felony violently or by surprise threatened by another is not obliged to retreat but may pursue his adversary *until he has secured himself from danger*. But that is not this case. Here from the very start appellant was the holder of the stronger and more deadly weapons — a revolver and a bolo, as against a piece of bamboo called 'pingahan" and a dagger in the possession of the deceased. In actual performance appellant, from the very beginning, demonstrated his superior fighting ability; and he confirmed it when after the deceased as first felled down by the revolver shot in his right breast, and after both combatants had gotten up and engaged in a hand-to-hand fight, the deceased using his danger and appellant his bolo, the former received several bolo wounds while the latter got through completely unscathed. And when the deceased thereupon turned and fled, the circumstances were such that it would be unduly stretching e imagination to consider that appellant was still in anger from his defeated and fleeing opponent. Appellant reserved his revolver and his bolo, and if he could therefore so easily overpower the deceased, when the latter had not yet received any injury, it would need, indeed, an unusually strong positive showing — which is completely sent from the record — to persuade us that he had not "secured himself from danger" after shooting his weakly armed adversary in the right breast and giving him several bolo slashes in different other parts of his body. To so hold would, we believe, be unjustifiably extending the doctrine of the Rivera case to an extreme not therein contemplated.

Under article 249, in relation with article 64, No. 2, of the Revised Penal Code, the crime committed by appellant is punishable by *reclusion temporal* in its minimum period, which would be from 12 years and 1 day to 14 years and 8 months. However, in imposing the penalty, we take into consideration the provisions of section 1 of the Indeterminate Sentence Law (Act No. 4103), as amended by Act No. 4225. Accordingly, we find appellant guilty of the aforesaid crime of homicide and sentence him to an indeterminate penalty of from 6 years and 1 day of *prison mayor* to 14 years and 8 months of *reclusion temporal,* to indemnify the heirs of the deceased in the sum of P2,000, and to pay the costs.

As thus modified, the judgment appealed from is hereby affirmed. So ordered.

Moran, C.J., Pablo, Bengzon, Briones, Hontiveros, Padilla and *Tuason, JJ.,* concur.

Moran, C.J., I certify that Mr. Justice Feria concurs in this decision.

Dissenting Opinion

PARAS, J.:

I agree to the statement of facts in so far as it concerns what is called by the majority the first stage of the fight. The following narration dealing with the second stage is not, however, in accordance with the record: "Having sustained several wounds, the deceased ran away but was followed by the accused (t. s. n., p. 6). After running a distance of about 200 meters (t. s. n., pp. 21, 108), the deceased was overtaken, and another fight took place, during which the mortal bolo blow — the one which slashed the cranium — was delivered, causing the deceased to fall to the ground, face downward besides many other blows delivered right and left (t. s. n., pp. 6, 28)."

It should be noted that the testimony of witness Luis Ballaran for the prosecution has been completely discarded by the lower court and we can do no better in this appeal. Had said testimony been given credit, the accused-appellant would appear to have been the aggressor from. the beginning, and the facts constitutive of the first stage of the fight, as testified to by said accused, should not have been accepted by the lower court. Now, continuing his testimony, the accused stated: "Cuando yo paraba las puñaladas se avalanzaba hacia mi y yo daba pasos atras hasta llegar al terleno palayero (t. s. n., p. 102). Y mientras el seguia avalanzandome dandome punaladas y yo seguia dando pasos atras, y al final, cuando el ya quiso darme na puñalada certera con fuerza el se cayo al suelo por su inercia (t. s. n., p. 102). Si, señor, yo daba pasos atras y tratando de parar la puñalada (t. s. n., p. 108)."

It is thus shown that the accused never pursued the deceased. On the contrary, the deceased tried to continue his assault started during the first stage of the fight, and the accused had been avoiding the blows by stepping backward.

There may be error as to the exact distance between the guardhouse and the place where the deceased fell. What is very clear is that it was during the first stage of the fight that the deceased received a wound just below the right chest, caused by a bullet that penetrated and remained in said part of the body. According to the witness for the prosecution, that wound was also fatal.

Since the lower court by its decision has considered the testimony of the witnesses for the prosecution to be unworthy of credit, and, as we also believe that said witnesses were really not present at the place and time of the occurrence, this Court is bound by the testimony of the witnesses for the defense as to what in fact happened, under and by which the appellant is shown to have acted in self-defense.

Wherefore, he should be acquitted.

Dissenting Opinion

PERFECTO, J.:

Four witnesses testified for the prosecution. In syn thesis their testimonies are as follows:

Luis Ballaran. — On May 29, 1943, at about 9 o'clock a. m., while the two

accused Dioscoro Alconga and Rodolfo Bracamonte were in search for home guards, Siverio Barion passed by. Alconga invited him for breakfast. But Barion ran and Alconga followed him. When Barion looked back, Bracamonte hit him with a stick at the left temple. The stick was of *bahi*. Barion fell down. Alconga stabbed him with his *bolo*. Then he fired with his *paltik*. After having been fired at with the *paltik*, Barion rose up and ran towards his house. The two accused pursued him. Alconga stabbed him right and left and Bracamonte hit him with his *bahi*. When Barion breathed no more, the two accused went to the municipal building of San Dionisio. The witness went home without approaching Barion. During the whole fight, the witness remained standing in the home guard shed. At the time there were no other people in the place. The witness is an uncle of the deceased Barion. The shed was about half a kilometer from the farm in which the witness was working. The place where Barion fell was about the middle between the two places. The witness did not intervene in the incident nor shouted for help. He did not tell anybody of the incident, neither the chief of police, the fiscal, nor the justice of the peace.

Gil G. Estaniel, Police Sergeant of San Dionisio. — He went in the company of the justice of the peace to the place of the incident. He saw the body of the deceased Barion and examined his wounds. The deceased had wounds in the head, arms, hands, lower jaw, neck, chest. The small finger of his right hand was severed. There were other wounds. The cranium was broken. At the right side of the chest there was a gunshot wound. After the inspection, the body of the deceased was delivered to the widow. The accused were arrested, but refused to testify.

Ruperto L. Libres, acting clerk of court since May 16, 43. — He received one *paltik* with blank cartridge, one bolo, one cane of *bahi* and one dagger, which weapons he d not produce save the *paltik*. The other effects were missing due to transfers caused by frequent enemy penetration in Dingle. The *bolo* was a rusty working *bolo* The dagger was 6 inches long, made of iron. The *bolo* was 11/2 feet long. The *bahi* was a cane of average length, about 2 inches wide and 3/4 of an inch thick.

Maria de Raposo. — On May 29, 1943, the witness was walking following Silverio Barion. When the latter passed from of the home guard shed, Bracamonte pursued him d hit him with the *bahi*. Barion fell down; Alconga proached him and stabbed him with his *bolo*, after which shot him with his *paltik*. When Barion saw that the accused were looking at Luis Ballaran he rose up and ran awards a rice-field where he fell down. The accused pursued him and stabbed him right and left. When Barion died, the accused went away. Bracamonte shouted that he as ready to face the relatives of the deceased who might feel aggrieved. The witness was about twenty meters from the place of the incident. The deceased was her cousin. The witness also passed in front of the shed, but does not know whether Luis Ballaran who was in the shed was able to see her. She passed at about three meters from Luis Ballaran. Before Bracamonte delivered the first low to Barion, the witness did not hear any exchange f words. When Barion fell, the witness remained standing at the canal of the road at about twenty meters from Ballaran. On Thursday night**,** May 27, there was gambling going on in the house of Mauricio Gepes. The witness played black jack with Dioscoro Alconga against Silverio Barion.

The two accused and three witnesses testified for the defense, and their testimonies are synthesized as follows:

Juan Collado. — This witness is a soldier who took part n the arrest of Dioscoro Alconga, whom he delivered to Barredo with a revolver, a *bolo,* and a dagger.

Felix Dichosa. — In the morning of May 29, 1943, the witness was in the home guard shed. When Bioy (Silveno Barion) was about to arrive at the place, the witness asked him if he had fish. He answered no and then went a his way. The witness went to the road and he heard Bioy saying: "So you are here, lightning ! Your hour has come." The witness saw Bioy striking Dioscoro Alcon with the lever he used for carrying fish. Alconga was not hit. Bioy tried to strike him again, but Alconga sought cover under the bench of the shed. The bench was hit. When Bioy pursued him and gave him a blow with a *bolo*, the witness heard a gunshot and he saw Bioy falling down. Upon falling in a sitting position, Bioy took a dagger with the purpose of stabbing Alconga. Upon seeing this, Alconga stabbed Barion right and left, while Barion was coming against Alconga. When Barion fell into the canal, the witness shouted for help. Rodolfo Bracamonte and Dalmacio Mendoza came. When the witness came out from the shed and was at a distance of ten brazas, he saw Ballaran, and requested him to intervene in the fight, because the witness felt that Bioy was about to kill Alconga. Ballaran went to their shed and the witness went to his house. At noon, Ballaran went to the house of the witness to ask him to testify and gave him instructions to testify differently from what actually had happened. The witness told him that it would be better if Ballaran himself should testify and Ballaran answered: "I cannot be cause I was not present. You can testify better because you were present. I will go down to look for another witness."

Dalmacio Mendoza. — On the morning of May 29, 1943, he went to the house of Rodolfo Bracamonte to borrow a small saw and one auger. While the witness was conversing with Bracamonte, a gunshot was fired. Bracamonte announced that he was going to the home guard shed and stated: "That Goroy is a fool, because he fired a revolver which has but one bullet." The witness followed. Upon reaching the shed they saw Felix Dichosa, who said that Bracamonte and the witness should hurry because Coroy to be killed by Bioy. The witness saw Bioy falling. In front of him was Alconga who took a dagger from the ground. The dagger was in Barion's hand before he fell. Bracamonte asked Alconga: "Coroy, what did you do to Silverio?" Alconga answered: "I killed Bioy, because if I did not he would have killed me. My shirt was pierced by the dagger, and if I did not evade I would have been hit. "Bracamonte said. "Go to town, to the authority, I will accompany you." After leaving the place, Alconga, Bracamonte and the witness met Luis Ballaran who asked: Rodolfo. what happened to the boys?" Rodolfo answered: Go and help Bioy because I am going to bring Coroy to the town officer." Ballaran went to the place where Barion as lying, while Alconga and Bracamonte went to town.

Adolfo Bracamonte. — His true name is Adolfo and not Rodolfo as stated in the information, which was amended accordingly. He belies the testimonies of Luis Ballaran and Maria de Raposo. At about 7 o'clock a. m. on May 29, 1943, he went to the home guard shed, he being the leader. '"When he found it without guards, he called Alconga to mount guard and delivered to him the *paltik* Exhibit A.. The witness returned home to take breakfast. Dalmacio Mendoza came to borrow a small saw and auger, because the witness is also a carpenter. He heard a gunshot, and he went to the shed, followed by Dalmacio. When they were approaching the shed, Felix Dichosa shouted: "Come in a hurry, because Bioy is going to kill Dioscoro Alconga." The witness asked: "Where are they?" Dichosa showed e place. The witness went towards the place and he saw o persons fighting. One fell down. Upon seeing Barion falling, the witness shouted to Alconga: "What happened to you?" Alconga answered: "Manoy, I stabbed Bioy, because if I did not he was to kill me," showing his shirt. When Barion fell down the witness saw him with dagger. Upon meeting him coming from the opposite direction, Ballaran addressed Bracamonte: "Rodolfo what happened?" Baracamonte answered:

"Bioy is in the rice land. Help him because I am going to bring Dioscoro to the town and I will return immediately." Ballaran went to the place where Barion fell. On the way, Alconga was taken by soldier Juan Collado who later brought him to the town of San Dionisio. The witness did not carry at the time of the incident any cane of *bahi* nor did he carry one on other occasions. The occupation of the deceased was selling fish and he used to take much tuba. He was of aggressive character and sturdier than Alconga. Once, Barion gave a fist blow to the witness and on another occasion stabbed him with a *bolo*, wounding him in the head. For such stabbing, Barion was held in prison for one month.

Dioscoro Alconga. — On May 27, Thursday, at night, he went to gamble in the house of Mauricio Gepes. Mahjong, poker, monte and black jack were being played in the house. Maria de Raposo invited Alconga to be her partner in black jack against Barion who was then the banker. Each put a share of P5. When Alconga placed himself behind Barion, the latter saw Maria winking to Alconga. Barion looked back at Alconga saying: "Coroy it seems that you are cheating. Son of a whore." Alconga answered "Bioy you are also son of a whore. I am not like you who lives on cheating." Barion stood up to give a fist blow to Alconga who pinned him to his sit and attempted to give him a fist blow. The owner of the house separated them. Barion struck Maria de Raposo, because he was losing in the game, threw away the cards, took the money from the table, and rose to leave the place. While he was walking he addressed Alconga: "Coroy you are son of a whore. Tomorrow I will give you a breakfast. You failed to take lesson by the fact that I *boloed* the head of your brother," referring to Bracamonte. When Alconga saw Maria leaving the place, he pursued her asking for his share of the winnings. Maria answered: "What winnings are you asking for?" Alconga said: "You are like your cousin. Both of you are cheaters." Maria went away insulting the accused. On the morning of the 29th, Alconga went to one of his houses carrying an old working bolo to do some repairing. He left his long combat *bolo* in one of his houses. On the way he met Bracamonte who instructed him to mount guard in the home guard shed, because no one was there. Bracamonte gave him a *paltik* After staying about two hours in the shed, Bioy came and upon seeing him, threw away his baskets and with his carrying lever gave a blow to Alconga, saying "This is your breakfast." Alconga was not hit because he dodged the blow, by allowing himself to fall down. He sought cover under a bench with the purpose of going away. Barion gave him another blow, but his lever hit the bench instead. When Alconga was able to come out from under the bench, Barion went to the other side of the shed with the intention of striking him. Alconga took the *paltik* and fired. Barion fell down losing hold of the lever. Both stood up at the same time; Barion took his dagger and stabbed Alconga with it saying: "You are son of a whore, Coroy, I will kill you." Alconga took his *bolo* to stop the dagger thrust. Barion continued attacking Alconga with dagger thrusts, while Alconga kept stepping back in the direction of the rice lands. In one of his dagger thrusts, Barion fell down by his own weight. Alconga took the dagger from his hand, and at the same time Alconga heard his brother Bracamonte asking: "Coroy Coroy, what is that ?" Alconga answered: "Manoy, I killed Bioy, because if I did not he would have killed me." Bracamonte took the *paltik,* the *bolo* and the dagger and pushing Alconga said: "Go to town." Alconga added: "Look, Bioy gave me dagger thrusts, if I did not escape he would had killed me," showing his torn shirt. Bracamonte said: "Go to town, I will bring you to the town officer." On the way, they met Luis Ballaran who asked: "Rodolfo, what happened to the boys?" Bracamonte answered: "Uncle Luis, go to help Silverio at the rice land because am going to bring my brother to town and I will return soon.

For all the foregoing we are convinced:

1. That the testimonies of Luis Ballaran and Maria Raposo are unworthy of credit. Both have been contradicted by the witnesses for the defense, and the fact that the lower court acquitted Adolfo Bracamonte, show that it believed the theory of the defense to the effect that it is not true, as testified to by Luis Ballaran and Maria de Raposo, that Bracamonte took active part in the fight and it was he who gave the first blow to the deceased with his *bahi* cane, causing him to fall. Ballaran's declaration to the effect that aside from the two accused, the deceased and himself, no other people were in the place, is directly contradicted by Maria de Raposo who said that she even passed in front of Ballaran, within a few meters from him. There being no way of reconciling the contradicting testimonies of Ballaran and Maria and of determining who among the two, declared the truth, we cannot but reject both testimonies as unreliable. Felix Dichosa testified the Ballaran went to his house to request him to testify with instructions to give facts different from those which actually happened. Upon Dichosa's suggestion that Ballara himself testify, Ballaran had to confess that he did not s what happened and he was going to look for another witness. The prosecution did not dare to recall Ballaran belie Dichosa.

2. That Adolfo Bracamonte did not take part in t fight which resulted in Barion's death. When Bracamonte arrived at the place of the struggle, he found Barion al ready a cadaver.

3. That after rejecting the incredible version of Luis . Ballaran and Maria de Raposo, the only version available of what happened is the one given in the testimony o Alconga, well-supported and corroborated by all the other witnesses for the defense.

4. That according to the testimony of Alconga, there not be any question on the following:

(a) That Barion had a grudge against Alconga in view of the gambling incident on the night of May 27, in which he promised to give Alconga a breakfast, which, upon what subsequently happened, was in fact a menace to kill him.

(b) That while Alconga was alone in the home guard shed, Barion, upon seeing him, suddenly attacked him with blows with his carrying lever.

(c) That Alconga, to defend himself, at first fired the only bullet available in the *paltik* given to him by Bracamonte

(d) That although Barion had fallen and lost hold of his carrying lever, he was able to stand up immediately and with a dagger continued attacking Alconga.

(e) That Alconga took his old rusty *bolo* to defend him-self against the dagger thrusts of Barion, while at the same time stepping backwards until both reached the rice land, where Barion fell dead.

(f) That the wounds received by Barion, who was sturdier and of aggressive character, were inflicted on him by Alconga while defending himself against the illegal aggression of Barion.

(g) That in view of the number of wounds received by Barion, it is most probable that Alconga continued being blows with his *bolo* even after Barion was already unable to fight back.

(h) The theory of dividing the fight which took place in two stages, in the first one, Barion being the aggressor, and in the second one, as the victim, finds no support in the evidence. It seems clear to us that the fight, from the beginning to the end, was a

continuous and uninterrupted occurrence. There is no evidence upon which to base the proposition that there were two stages or periods in the incident, in such a way that we might be allowed to conclude that in fact there were two fights.

The fact that Barion died with many wounds might be taken against appellant and may weaken the theory that he acted only in legitimate self-defense. To judge, however, the conduct of appellant during the whole incident, it is necessary to consider the psychology of a person engaged in a life or death struggle, acting under the irresistible impulses of self-preservation and blinded by anger and indignation for the illegal aggression of which he was the victim. A person placed in such a crucial situation must have to summon all his physiological resources and physical forces to rally to the one and indivisible aim of survival and, to that end, placed his energies on the level of highest pitch. In that moment of physical and spiritual hypertension, to ask that a man should measure his acts as an architect would make measurements to achieve proportion and symmetry in a proposed building or a scientist would make a calibration, so that his acts of self-defense should stop precisely at the undeterminable border line when the aggressor ceases to be dangerous, is to ask the impossible. Appellant's conduct must be judged not by the standards which may be exacted from the supermen of the future, if progressive evolution may happen to develop them. Appellant's conduct can only be tested by the average standards of human nature as we found it, which has many limitations and defects. If in trying to eliminate an actual danger menacing his own existence, appellant was not able to moderate his efforts to destroy that menace to the extent of actually killing his aggressor, he is certainly not accountable. He is not an angel. We must judge him as a man, with its average baggage of faults and imperfections. After all, the aggressor ought to know that he acted at his risk, and that by trying to kill a human being he defied fate, he gambled his own life. Fate is always stronger than all its challengers. He who gambles with life, like all gamblers, in the end becomes the loser.

Peace cannot remain undisturbed and justice cannot remain unchallenged unless all aggression is stopped. individual or collective. A great number of human miseries are the, natural fruits of aggression. One of the means of curving it is to give a conclusive notice to all aggressors, not only are they to pay very dearly for their acts, but that the victims of their aggression are entitled, in self-defense, to avail themselves of even the most devastating weapons. Those who allow themselves to run amuck in an aggression spree cannot complain because the means of defense of the victims happen to be destructive. re may be some narrow-minded persons who would hold illegal the use by the Americans of the atomic bomb to compel Japan to surrender. They must be followers of philosophy of the sheep. We prefer to follow the principle of dynamic self-defense for the innocent. Those who are bent on destroying human beings, must, before they able to achieve their diabolical objective, be first destroyed. Those who were killed at Hiroshima and Nagasaki may appeal to our pity, but the millions whose lives were spared by the prompt and spectacular ending of the war with the help of the atomic energy, are entitled to justice, a justice which would have been denied them if Americans, swayed by unreasonable feminine compunctions, should have abstained from using the weapon upon which were pinned the hopes and salvation of those millions of innocent human beings. While those who cannot offend and the defenseless may merit all our sympathy and kindness, those who constitute an actual menace to human life are liable to be relentlessly crushed, until the last residuum of menace has been wiped out.

We vote to acquit appellant.

FIRST DIVISION

[G.R. No. L-3515. October 3, 1907.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **ANDERSON MACK**, *defendant-appellant*.

D E C I S I O N

CARSON, *J* :

The defendant was charged with the crime of *asesinato* (assassination) and convicted of the crime of *homicidio* (homicide). From this judgment of conviction he appealed to this court.

It is admitted that upon the night of May 4, 1906, the accused, a negro soldier, shot and killed a municipal policeman named Estanislao Indic. The evidence of record is contradictor and conflicting in the extreme, but we think that, giving the accused the benefit of the doubt as to the veracity and credibility of the witnesses, the following relation of the incidents, as the occurred must be held to be in accordance with the weight of the evidence.

Just before the shooting, the accused was sitting on a bench a few feet back from the street, in the town of Tacloban, in the Province of Leyte, in an open space some 3 or 4 feet, width, between the *tienda* or content of a woman named Olimpia and another building. The deceased, with another policemen, approached the place directed Olimpia to close her *tienda*, and, later, ordered the accused and another soldier who was standing near by to go to their quarters. The accused did not obey this order, and it is probable that some words passed between the soldiers, the policemen, and the woman which angered the deceased, though the weight of the evidence clearly maintain the contention of the accused that he did and said nothing to provoke or offend the deceased, except in so far as his failure to obey the order to go to his quarters may have had that effect. The deceased, who was standing some 10 or 12 feet from the accused, cursing and abusing him for his failure to obey the order, wrought himself into a passion dragged himself free from his companion, who was endeavoring to restrain him and take him away, and started toward the accused, at the same time drawing his bolo and brandishing it in a threatening manner. Thereupon the accused got up, drew his revolver, and the deceased having then approached within a distance of from 3 to 6 feet, the accused fired three shots, one of which took effect in the left breast of the deceased, just above the nipple, and another in the back of his head.

There was some testimony tending to show that when the shooting took place the deceased was under the influence of liquor, and that he bore resentment against the accused arising out of a quarrel about a woman, but these contentions are not satisfactorily sustained by the evidence, nor it is necessary to take them into consideration in deciding the case.

Upon the foregoing statement of facts the defendant's contention that he shot the deceased in self-defense and is therefore exempt from punishment, must be sustained

The trial court was of opinion that the evidence offered by the accused

established "an in complete defense," which entitles the defendant to a reduction of the penalty, but not to complete exception from punishment; in support of his opinion the trial judge reasons as follows:

> "The accused claims exemption from criminal liability on the ground that the act was committed in self defense. At the outset of the discussion of this point it may be well to quote the following from an opinion cited by his counsel:
>
> " 'The defendant, having admitted the killing, has assumed the task of establishing his defense, not that the burden of proof shifted in the case, but *it was necessary for him to, establish his defense to the satisfaction of the court*.' (United State vs>. Capisonda 1 Phil. Rep., 575.)
>
> "It is true that the presumption of innocence is always in favor of the accused, but when, as here, the Government has actually proven the crime of *homicidio*, it need not go, farther and negative a particular and exculpatory plea on the part of the accused such as self-defense. That must be established by the accused himself 'to the satisfaction of the court.'
>
> "Article 8, subdivision 4, of the Penal Code prescribes the elements which must exist in order that self-defense may be established. Counsel for the accused maintains that it is sufficient if he establishes two of these elements, namely, illegal aggression and lack of sufficient provocation. But in each of the authorities which he cites on this propositions, although the court does not emphasize it, there was also present the third element "reasonable necessity of the means employed to prevent or repel it" (aggression). Thus in United States vs. Salandanan (1 Phil. Rep., 478) the court lays stress (p. 479) on the fact that "it can not be asserted that the danger to the defendant had ceased" because disarmament by the deceased "was the contingency which the accused might well have reasonable feared." In other words, there was or seemed to be a "reasonable necessity" or defendant's part of continuing the struggle. So in United States *vs*. Patala (2 Phil. Rep., 752) the court says (p. 756): "Considering the nature of the aggression the defendant could have reasonably believed that his life was in danger and that it was a case of life or death with him." This again could mean nothing less than that the means employed seemed reasonably necessary. In United States *vs*. Regis (2 Phil. Rep., 113) the deceased was the aggressor and the accused, although he had succeeded in wresting the bolo from the deceased Languido inflicted the wounds because (p. 116) "fearing that Languido might again possess himself of the weapon In none of these cases does not court say that this reason able necessity of the means employed" is not essential the establishment of self-defense and that is failure to especially mention this element is not to be construed prescribing the rule for which counsel contends is parent from United States *vs*. De Castro (2 Phil. Rep., 67), in which the opinion was written by the name judge (Mapa) who wrote the opinions in United States Salandanan and United States *vs*. Patala (*supra*) and where after reviewing the facts it is observed (p. 70):
>
> " '. . . such means were not reasonably required or necessary to repel the attack . . . It follows that there is absent in this case one of the three requisites section 4 of article 8 of the code — that is, the reasonable necessity of the means employed to repel the attack — in order that the necessity for self-defense may be a complete exemption from criminal liability.'
>
> "Indeed such a constructions as counsel urges would effect a virtual repeal of article 8, subdivision 4, which recognizes the validity of self-defense only provide 'there *are* the following attendant circumstances; not, as in article

403, 'if the deed is attended by *any* of the following circumstances.' It is clear therefore that in order to show himself entitled to complete acquittal in this case the accused must 'establish to the satisfaction of the court' a 'reasonable necessity of the means employed to prevent or repel' the attack. On this point let us hear the accused.

"He testifies (Def., pp. 47, 49) that saw the deceased approaching when he was 'quite a distance away, . . . might have been or 10 feet.' This was apparent (p. 51) before he had turned his dead around and seems that the rear entrance was obstructed by a barrel and other articles mentioned. He had been sitting (Def., pp. 21, 42) on a each between the *tienda* and the next house on the right. But he could not have been seated much in the rear of the front of either house for Adams, who was leaning against the corner of the *tienda*, was not more than 2 feet way (Def., pp. 9, 22), near enough indeed for the accused to reach over and touch him (Def., pp. 21, 47) and it seems also (p. 39) that the tendera who had been seated on the steps behind the accused was only about a foot and a half from Adams. Moreover one step seems to have bought the accused to the edge of the street (Def., pp. 19, 459. He testifies (Def., p. 49) that there were no fixtures built into the street and he mentions no obstruction of the right except the house and its inmate, Townsend, who was standing on the corner (Def., pp. 48, 49). According to his own testimony the accused, after recognizing his danger, had time enough to rise from his seat, look backward for a way of escape, push Adams aside, extricate his revolver from the left side of his oath (Def., p. 43) with his right hand (Def., p. 2), change the weapon from the right hand to the left (Def., p. 43), and fire the shot that killed the deceased. Since one step brought him to the edge of the street and he 'had to wheel to the right' anyway (Def., p. 19), it would seem that during this interval he might have found time to move farther to the right, passing around Townsend if necessary, in order to dodge the deceased. While the latter was coming 9 or 10 feet, it should not have been impossible, and hardly difficult, for the accused to have covered the distance necessary to place him out of the deceased's path. If this case were being tried in any of the Federal courts it would be necessary for the accused to show, in order to establish his plea of self-defense, that he had retreated as far as he safely could, even though he was without fault and was in no danger of a murderous attack. [125 Am. & Eng. Encyc. of Law (2d ed.), p. 271-272.] This is not the rule in all or perhaps a majority of the State courts, but in view of the recent decision in United States *vs*. Grafton[1] (4 Off. Gaz., 364) it seems more than likely that the above rule would be followed in this jurisdiction. Besides, can it be said that there was 'a reasonable necessity' of shooting the deceased so long as the accused could escape?

"Again if escape were impracticable, was it 'reasonably necessary' for the accused to employ a firearm to repel or prevent the threatened attack? The Supreme Court has held, in considering this section, that it is not necessary to use revolver in order to repel an attack with a *calicut* (United States vs. Mendoza, 2 Phil. Rep., 109), nor to inflict a mortal wound with a dagger when assailed with a bamboo club. (United States *vs*. Castro, 2 Phil. Rep., 67.)

"The bolo carried by the deceased is a formidable-looking weapon with a blade fourteen and a half inches in length, but it is not a sharp-pointed instrument and the blade is almost blunt through rust and dullness. Indeed it is more than doubtful whether, if applied with ordinary force against any portion of the accused's body covered by clothing, it would penetrate the latter. According to the testimony of the accused and his witnesses the deceased was hardly in condition to use the weapon with more than ordinary force. Following is the

accused's description of the appearance of the deceased at the time (Def., p. 53):

" 'He did not walk exactly straight, but he was not exactly staggering about; he was doing the same as any other than man under the influence of liquor.'

"This is corroborated by Adams (Def., p. 4) and the *tendera* (p. 14), A man under the influence of liquor and unable to walk straight cold hardly wield a weapon with full force or in such a manner that it could not be dodged.

"Moreover the accused admits (Def., pp. 51, 79) — and it is a material circumstance [25 Am. & Eng. Encyc. of Law. (2 ed.), 282] — that he was taller than the deceased and he is unable to say (Def., p. 52) that the latter was taller the Lieutenant Soledad, who was then present in court. If not, the deceased must have been four or five inches shorter than the accused and he would have had to reach accordingly in order to strike the accused in the face or head, which would be the most vulnerable because least protected portion. Again the accused is a man of powerful physique, well proportioned and strong of limb. Could he not have parried the blow or wrested the weapon from the man who he says was drunk and unable to walk straight?

"Finally, if the use of a firearm seemed necessary, could it not least have been employed in such a way that fatal results might have been avoided? a shot directed at the menacing arm with the same unerring accuracy as that actually fired would have stayed the threatened blow. A bullet in the leg or foot not less surely than that which pierced the assailant's heart would have halted him and still spared his life. But the accused directed his first ball at a vital spot and although he saw that this 'took effect' and that the deceased 'became helpless within a second' (Def., p. 43) he fired two additional shots (Def., pp. 11, 18, 28-44). This certainly did not indicate that the accused was doing no more than was 'reasonably necessary to prevent or repel' the attack. It demonstrates a considerable degree of recklessness and, in spite of the witnesses who speak of his apparent 'coolness,' that the accused was in fact greatly excited. Human life is too sacred and the tendency to disregard it too common to justify a court in finding that the destruction of it under such circumstances is wholly blameless.

"But although the accused has not established 'to the satisfaction of the court . . . reasonable necessity' for killing the deceased in order to save himself, he has made what the courts call an 'incomplete defense' under article 86 of the Penal Code (United States vs. Mendoza, 2 Phil., Rep., 109; United States *vs*. De Castro, 2 Phil. Rep., 67), which entitles him to a reduction of the penalty by two degrees."

We agree with the trial court that on a plea of self-defense under the provisions of case 4 of article 8 of the Penal Code, an accused person is not entitled to exemption from criminal responsibility unless each and all the following facts are established to the satisfaction of the court:

First. That there was an unlawful aggression;

Second. That there was reasonable necessity for the employment of the means taken to prevent or resist such unlawful aggression;

Third. That there was no sufficient provocation on the part of the accused.

We think it affirmatively appears from the evidence of record that there was an unprovoked, illegal aggression on the part of the deceased, as held by the trial court, after a careful analysis of the testimony; and further that there was reasonable

necessity for the use of the means employed by the accused to defend himself from this unlawful aggression.

The trial court held that in shooting and killing the deceased, the defendant adopted a mode of defense which was not "reasonable necessary," because it was of opinion, first, that it was possible by taking to flight he might have escaped injury, second, that he might have parried the blow aimed at him or wrested the bolo from his assailant without the necessity for the use of his revolver; and third, against his assailant, the accused might have successfully defended himself against the attack by directing his aim at the arm or hand with which the bolo was held, or at the legs or feet of his assailant.

We do not think that under all the circumstances in this case it was the duty of the defendant to take refuge in flight. Without attempting to lay down a rule covering all the cases wherein it is the duty of one who is unlawfully assailed to 'give ground" instead of resisting the attack, it is sufficient to hold, that under such circumstances that assailed person need not attempt to retreat where there is no reasonable ground to believe that by so doing he can *safely* avoid the threatened attack; not is he required to continue his retreat when there is no reason able ground to believe that he can do so *with safety*. These prepositions fall within the rule of the Federal courts relied upon in the opinion of the trial court and applied by him to the facts in this case. (Wheaton's Criminal Law, 10th ed., p. 486, and many cases there cited; Bishop's Criminal Law, 8th ed., secs. 864 and 869, and cases cited; Clark's Criminal Law, p. 154, and cases cited.)

The defendant was sitting on a beach in a narrow alleyway when the deceased started to advance upon him from a distance of from 9 to 12 feet, brandishing a formidable looking bolo." We do not think that under the circumstances the defendant had reasonable grounds to believe that he could safely make his escape by flight. In order to do so it was necessary that the defendant, in the second or two required by his assailant to advance the couple of space which would bring him within striking distance, should recognize his danger, resolve upon flight rather than resistance, rise from his seat, look backward only to discover that there were obstacles with made it impracticable to escape to the rear, step forward a few feet *toward* his approaching assailant, turn to the right or to the left. on reaching the street, thus exposing his unprotected body to this assailant's attack, and finally distance his pursuer in flight. If the deceased was in fact endeavoring to reach the defendant and to strike him with his bolo, it is very doubtful whether there was time to avoid the blow by instant flight; certainly the accused had reasonable grounds to believe that he could not hope to make his escape with safety; and even though it were true that "he might have found time" to dodge the deceased" and make his escape by flight, yet it is too much to ask of one who is in imminent peril of felonious and murderous attack that without reasonable grounds to believe can safely do so, he should "give ground" rather than use any other more certain means to defend himself which he may have at hand.

Nor can we agree with the opinion of the trial court that there was no reasonable necessity for the use of the revolver because the deceased was a smaller man than the accused and perhaps under the influence of liquor, or because on examination. after the occurrence, it is discovered that the bolo in the hands of the deceased was "almost blunt through rust and dullness."

Mere physical superiority in no protection to an unarmed man, as against an assailant armed with a large bolo, and if it be true that the deceased was under the influence of liquor when he made that attack, his intoxication probably rendered him the more dangerous unless he was so drunk as to be physically helpless, which is not

suggested in the evidence.

Nor does the fact that *after* the occurrence the blade of the bolo was found to be "almost blunt through rust and dullness," and that it is "more than doubtful whether if applied with ordinary force against any portion of the accused's body covered by clothing it would penetrate the latter," justify the conclusion that there who no reasonable necessity for the defendant's use of the only weapon at land to resist the onslaught of his adversary. Lying on the desk in the trial court, in the broad light of day, that bolo was, in the language of the trial court a "formidable looking weapon, with a blade fourteen and a half inches in length;" the accused, in apparent imminent danger of his life, court not reasonably be excepted to take the chance that mere ordinary force would be used in striking, or that the blow would be given upon some protected part of his body, or that the cutting edge of the blade was not keen enough to give him his death blow.

The findings of facts occurring in the cases cited in the opinion of the trial judge are not applicable in this case. On a plea of self-defense the question as to the "reasonable necessity" for the use of the means employed is one of fact to be determined in accordance with the particular facts proven in each case.

In the case of the United States vs. Mendoza (2 Phil. Rep., 109), the court held that the character of the weapon in the hands of the aggressor, a *calicut*, was such that in our opinion the defendant could not have reasonably believed that it was necessary to kill his assailant in order to repel the attack. A *calicut* is a comparatively harmless weapon. It is an instrument shaped like a small chisel (*escoplo*) with no point or cutting edge on either side, and is used for the purpose of taking out the contents of betel nuts or the like.

In the case of the United States vs. De Castro (2 Phil. Rep., 67) the accused inflicted a mortal wound with a dagger and the court held that such means were not reasonably required or necessary to repel the attack, in view of the fact it was made with nothing more than a piece of bamboo (*una simple caña partida*), a weapon insufficient to put the life of the person attacked in imminent peril, more especial in consideration of the significance of the attack itself, for, according to the witnesses, the blow struck by the deceased did not even bruise the accused.

A murderous attack with a formidable-looking boo is a very different from an assault with a small chisel or a piece of bamboo, and the fact that this court has held that the taking of life was not reasonably necessary in defending oneself against assault in the latter cases does not sustain a ruling that taking the life of one's assailant in the former case may not become reasonably necessary in the defense of one's person, as we think it was in the case at bar.

Finally, if it be admitted that it was reasonably necessary to make use of the revolver, it would be unreasonable to hold that in the shades of night the defendant, with his adversary advancing upon him and within a few feet of striking distance, should be held responsible for a failure to take deliberate and careful aim at the arm or hand that held the bolo or at the legs or the effect of his assailant. The reasonable and natural thing for him to do under the circumstances was to fire at the body of his opponent, and thus make sure of his own life.

It is suggested that since the first shot inflicted a fatal wound there was no necessity for the firing of the two succeeding shows in order to prevent or repel the attack. The record discloses that there shots were fired in rapid succession. Not every wound which proves fatal is sufficient to stop an enemy's attack, and the accused and

his assailant were so close at hand that until the assailant fell to the ground it can be said that the accused was out of danger. Even a wounded man with a drawn bolo in his hand might prove to be no mean antagonist at close quarters.

The judgment of the trial court is reversed and the appellant acquitted of the crime with which he was charged, with the costs of both instances *de oficio*; and if in custody, he will be discharged forthwith, or if a liberty under his bond will be cancelled and his sureties exonerated. ordered.

Torres, Johnson, Willard, and *Tracey, JJ.,* concur.

Arellano, C.J., dissents.

Footnotes

1. 6 Phil. Rep., 55.

EN BANC

[G.R. No. 35524. March 18, 1932.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **JULIAN SUMICAD**, *defendant-appellant*.

D E C I S I O N

STREET, *J* :

This appeal has been brought to reverse a judgment of the Court of First Instance of the Province of Occidental Misamis, finding the appellant, Julian Sumicad, guilty of the offense of homicide and sentencing him to undergo imprisonment for twelve years and one day, *reclusion temporal*, and requiring him to indemnify the family of the deceased in the amount of P1,000, as well as to pay the costs of prosecution.

On February 23, 1931, the accused, a resident of Buenavoluntad, in the municipality of Plaridel, Occidental Misamis, was engaged with others in the gratuitous labor of hauling logs for the construction of a chapel in the barrio above-mentioned. At about 5.30 o'clock in the afternoon on the day mentioned, when the laborers were resting from the work of the day, one Segundo Cubol happened to pass the place where the accused was sitting. Prior to this date the accused had rendered five and one-half days service to Cubol, and as the latter passed, the accused said to him, "Segundo, pay me for the five and one-half days work for which you owe me." Cubol replied, "What debt!," an exclamation which was followed by an insulting expression. At the same time he struck the accused with his fist. The accused arose from the log upon which he was sitting and moved backward, trying to escape, but Cubol pursued him and continued striking him with his fists. As the accused receded he found himself cornered by a pile of logs, the wings of which extended out on either side, effectually preventing any further retreat. As Cubol pressed upon him, the accused drew his bolo and delivered a blow on Cubol's right shoulder. Upon this Cubol lunged at the accused with the evident intention of wresting the bolo from the accused. To prevent this the accused struck two other blows with the bolo, inflicting two deep cuts on Cubol's forehead above the left eye. One of these blows broke through the cranium. The other made a cut extending from the left eyebrow to the nose and upper lip. Upon receiving these wounds, Cubol gave down and crawled away, finding a seat on a log nearby. A witness, named Francisco Villegas, who came up in a moment, after learning something about the matter, asked Cubol whether he had struck the accused blows with his fist. Cubol replied that he had. The witness Villegas then turned to the accused, who was standing a short distance away, and told him to put up his bolo and go to the *poblacion*. Acting upon this suggestion the accused immediately repaired to the office of the justice of the peace and surrendered himself to the authorities. Cubol lived only an hour or so, and died from the effect of the wounds received. In one of the pockets of the deceased a knife was found, and the accused testified that, when he struck the deceased with his bolo, the latter was attempting to draw a knife from his pocket.

The accused was 25 years of age when this case was tried, has a height of 5 feet and 1 1/2 inches, and a weight of 105 pounds. The deceased appears to have been a

taller, larger and stronger man. The evidence shows that the deceased was quarrelsome and in the habit of making frequent trouble by fighting in the places where he happened to be present with others. In the local courts he had been convicted and sentenced to jail for assault and battery in two different cases. In another case he was convicted of the offense of inflicting minor physical injuries, being sentenced to imprisonment for one month and one day. In still another case he had been convicted of theft and sentenced to imprisonment for the same period of one month and one day. The proof leaves no reason to doubt that the deceased was hot- tempered and that he had the reputation of being a trouble maker. It is a safe inference from this proof — and there is nothing to the contrary, — that the deceased was with good reason considered by his neighbors to be a dangerous man.

From the facts above stated it is evident that the quarrel which resulted in the death of Segundo Cubol was of his own making, and that the accused was not materially to blame in bringing about the trouble. Two of the elements of self-defense were therefore clearly present, namely, that the deceased was the aggressor and that there was lack of sufficient provocation on the part of the accused. The only further question that can therefore arise in discussing the criminal liability of the accused is whether there was reasonable necessity for the means employed by him to prevent or repel the aggression to which he was subjected. Upon this point it will be noted that, when the aggression was begun by the deceased, the accused retreated until he was begun by the deceased, the accused retreated until he was cornered in the angle of a pile of logs. His further retreat was thus effectually cut off both in the rear and at the sides. In response to the blows which the deceased delivered with his fists, the accused first delivered a cut on the left shoulder of the deceased; but, if we rightly interpret the transcript of the record on this point, the sanitary officer who examined the body of the deceased meant to say that this wound alone could not have resulted in death. This we consider to be the decisive turning point in the case. Upon receiving that cut the deceased should have been admonished that further aggression on his part would be met by determined resistance and that any further advance would be at grave peril to himself. Instead of acting upon this warning, the deceased pressed forward in the attempt to possess himself of the bolo, the only means of defense then at the command of the accused.

Under these circumstances what might the accused have been reasonably expected to do. Was he to surrender the weapon to his assailant, a large and stronger man than himself, who was now infuriated by the blood that had been drawn from his shoulder? Or was he justified in keeping the weapon in his hands and, as an ultimate resort, in using it as a means for his own defense? Our reply is that he was justified in pursuing the latter alternative; for it would probably have been act of suicide to permit that weapon to pass into the hands of his assailant. In judging a question of this kind the reputation of the deceased for violence is pertinent, for it tends to show that when the fatal blows were struck the accused had reasonable grounds for believing that he was in grave peril to life or limb.

It is undoubtedly well established in jurisprudence that a man is not, as a rule, justified in taking the life of one who assaults him with his fist only, without the use of a dangerous weapon. The person assaulted must, in such case, either resist with the arms that nature gave him or with other means of defense at his disposal, short of taking life. But that rule contemplates the situation where the contestants are in the open and the person assaulted can exercise the option of running away. It can have no binding force in the case where the person assaulted has retreated to the wall, as the saying is, and uses in a defensive way the only weapon at his disposal. One is not

required, when hard pressed, to draw fine distinctions as to the extent of the injury which a reckless and infuriated assailant might probably inflict upon him (Brownell *vs.* People, 38 Mich., 732). And it was not incumbent on the accused in this case, when assailed by a bully of known violent disposition, who was larger and stronger than himself, to take the risk of losing possession of his bolo and of having it turned upon him with probable fatal results to himself. On the contrary, under the circumstances stated, he had the right to resist the aggression with the bolo, and if he unfortunately inflicted a fatal blow, it must be considered to have been given in justifiable self-defense. Upon this point it may be recalled that the deceased, when asked about the circumstances of the homicide, admitted that he himself was the aggressor; and it is noteworthy that he used no word placing blame upon the accused.

We are of the opinion that all the elements necessary to constitute justifiable self-defense were present in this case and the accused should have been acquitted.

The judgment appealed from will therefore be reversed and the appellant absolved from the information, with costs of both instances de oficio. So ordered.

Malcolm, Romualdez, Villa-Real and *Imperial, JJ.,* concur.

Johnson, J., reserves his vote.

Dissenting Opinion

AVANCEÑA, C.J.:

I dissent. In my opinion, there is but an incomplete self-defense here. The defendant's act in wounding the deceased with a bolo so as to bring about the latter's death, was not a reasonably necessary means of defending himself against the other's attack, which was but a matter of fisticuffs. The Supreme Court of Spain has held this doctrine in many cases; e. g., where the deceased attacked the defendant with his fist (November 29, 1883; May 3, 1888; and May 9, 1911); where the deceased, for no particular reason, threw himself upon the defendant, caught him by the throat, and tried to choke him (November 4, 1910); where the deceased boxed the accused, knocking him down, and keeping him underneath (November 28, 1910); and where the deceased attacked the accused with an umbrella (April 22, 1896). In all these cases it was not held that the defendant acted with full justification in self-defense. Our own reports contain rulings of the like tenor; in the earliest case, the deceased attacked the accused with a piece of bamboo (U. S. *vs.* De Castro, 2 Phil., 67), and in the latest, he attacked the defendant with his fist (G. R. No. 34750). [1] In neither was it held that a complete case of self-defense had been made out. Nor is the defendant's case improved by the consideration that he aimed the first blow at the deceased's arm, and delivered the last two blows, which caused death, after the other had attempted to wrench away the bolo; for, having received the first blow on the arm, the deceased was justified in acting as he did, in the reasonable belief that the defendant would continue the attack with that weapon.

Footnotes

1. People vs. Montalbo, page 443, ante.

Dissenting Opinion

OSTRAND, J.:

I cannot fully agree with the majority in this case and therefore dissent.

EN BANC

[G.R. No. 135981. January 15, 2004.]

PEOPLE OF THE PHILIPPINES, *appellee*, ***vs.*** **MARIVIC GENOSA**, *appellant*.

D E C I S I O N

PANGANIBAN, *J* :

Admitting she killed her husband, appellant anchors her prayer for acquittal on a novel theory — the "battered woman syndrome" (BWS), which allegedly constitutes self-defense. Under the proven facts, however, she is not entitled to complete exoneration because there was no unlawful aggression — no immediate and unexpected attack on her by her batterer-husband at the time she shot him.

Absent unlawful aggression, there can be no self-defense, complete or incomplete.

But all is not lost. The severe beatings repeatedly inflicted on appellant constituted a form of cumulative provocation that broke down her psychological resistance and self-control. This "psychological paralysis" she suffered diminished her will power, thereby entitling her to the mitigating factor under paragraphs 9 and 10 of Article 13 of the Revised Penal Code.

In addition, appellant should also be credited with the extenuating circumstance of having acted upon an impulse so powerful as to have naturally produced passion and obfuscation. The acute battering she suffered that fatal night in the hands of her batterer-spouse, in spite of the fact that she was eight months pregnant with their child, overwhelmed her and put her in the aforesaid emotional and mental state, which overcame her reason and impelled her to vindicate her life and her unborn child's.

Considering the presence of these two mitigating circumstances arising from BWS, as well as the benefits of the Indeterminate Sentence Law, she may now apply for and be released from custody on parole, because she has already served the minimum period of her penalty while under detention during the pendency of this case.

The Case

For automatic review before this Court is the September 25, 1998 Decision [1] of the Regional Trial Court (RTC) of Ormoc City (Branch 35) in Criminal Case No. 5016-0, finding Marivic Genosa guilty beyond reasonable doubt of parricide. The decretal portion of the Decision reads:

> "WHEREFORE, after all the foregoing being duly considered, the Court finds the accused, Marivic Genosa y Isidro, GUILTY beyond reasonable doubt of the crime of Parricide as provided under Article 246 of the Revised Penal Code as restored by Sec. 5, RA No. 7659, and after finding treachery as a generic aggravating circumstance and none of mitigating circumstance, hereby sentences the accused with the penalty of DEATH.
>
> "The Court likewise penalizes the accused to pay the heirs of the

deceased the sum of fifty thousand pesos (P50,000.00), Philippine currency as indemnity and another sum of fifty thousand pesos (P50,000.00), Philippine currency as moral damages." [2]

The Information [3] charged appellant with parricide as follows:

"That on or about the 15th day of November 1995, at Barangay Bilwang, Municipality of Isabel, Province of Leyte, Philippines and within the jurisdiction of this Honorable Court, the above-named accused, with intent to kill, with treachery and evident premeditation, did then and there wilfully, unlawfully and feloniously attack, assault, hit and wound one BEN GENOSA, her legitimate husband, with the use of a hard deadly weapon, which the accused had provided herself for the purpose, [causing] the following wounds, to wit:

'Cadaveric spasm.

'Body on the 2nd stage of decomposition.

'Face, black, blownup & swollen w/ evident post-mortem lividity. Eyes protruding from its sockets and tongue slightly protrudes out of the mouth.

'Fracture, open, depressed, circular located at the occipital bone of the head, resulting [in] laceration of the brain, spontaneous rupture of the blood vessels on the posterior surface of the brain, laceration of the dura and meningeal vessels producing severe intracranial hemorrhage.

'Blisters at both extrem[i]ties, anterior chest, posterior chest, trunk w/ shedding of the epidermis.

Abdomen distended w/ gas. Trunk bloated.'

which caused his death." [4]

With the assistance of her counsel, [5] appellant pleaded not guilty during her arraignment on March 3, 1997. [6] In due course, she was tried for and convicted of parricide.

The Facts

Version of the Prosecution

The Office of the Solicitor General (OSG) summarizes the prosecution's version of the facts in this wise:

"Appellant and Ben Genosa were united in marriage on November 19, 1983 in Ormoc City. Thereafter, they lived with the parents of Ben in their house at Isabel, Leyte. For a time, Ben's younger brother, Alex, and his wife lived with them too. Sometime in 1995, however, appellant and Ben rented from Steban Matiga a house at Barangay Bilwang, Isabel, Leyte where they lived with their two children, namely: John Marben and Earl Pierre.

"On November 15, 1995, Ben and Arturo Basobas went to a cockfight after receiving their salary. They each had two (2) bottles of beer before heading home. Arturo would pass Ben's house before reaching his. When they arrived at the house of Ben, he found out that appellant had gone to Isabel, Leyte to look for him. Ben went inside his house, while Arturo went to a store across it, waiting until 9:00 in the evening for the *masiao* runner to place a bet. Arturo did not see

appellant arrive but on his way home passing the side of the Genosas' rented house, he heard her say 'I won't hesitate to kill you' to which Ben replied 'Why kill me when I am innocent?' That was the last time Arturo saw Ben alive. Arturo also noticed that since then, the Genosas' rented house appeared uninhabited and was always closed.

"On November 16, 1995, appellant asked Erlinda Paderog, her close friend and neighbor living about fifty (50) meters from her house, to look after her pig because she was going to Cebu for a pregnancy check-up. Appellant likewise asked Erlinda to sell her motorcycle to their neighbor Ronnie Dayandayan who unfortunately had no money to buy it.

"That same day, about 12:15 in the afternoon, Joseph Valida was waiting for a bus going to Ormoc when he saw appellant going out of their house with her two kids in tow, each one carrying a bag, locking the gate and taking her children to the waiting area where he was. Joseph lived about fifty (50) meters behind the Genosas' rented house. Joseph, appellant and her children rode the same bus to Ormoc. They had no conversation as Joseph noticed that appellant did not want to talk to him.

"On November 18, 1995, the neighbors of Steban Matiga told him about the foul odor emanating from his house being rented by Ben and appellant. Steban went there to find out the cause of the stench but the house was locked from the inside. Since he did not have a duplicate key with him, Steban destroyed the gate padlock with a borrowed steel saw. He was able to get inside through the kitchen door but only after destroying a window to reach a hook that locked it. Alone, Steban went inside the unlocked bedroom where the offensive smell was coming from. There, he saw the lifeless body of Ben lying on his side on the bed covered with a blanket. He was only in his briefs with injuries at the back of his head. Seeing this, Steban went out of the house and sent word to the mother of Ben about his son's misfortune. Later that day, Iluminada Genosa, the mother of Ben, identified the dead body as that of [her] son.

"Meanwhile, in the morning of the same day, SPO3 Leo Acodesin, then assigned at the police station at Isabel, Leyte, received a report regarding the foul smell at the Genosas' rented house. Together with SPO1 Millares, SPO1 Colon, and Dr. Refelina Cerillo, SPO3 Acodesin proceeded to the house and went inside the bedroom where they found the dead body of Ben lying on his side wrapped with a bedsheet. There was blood at the nape of Ben who only had his briefs on. SPO3 Acodesin found in one corner at the side of an *aparador* a metal pipe about two (2) meters from where Ben was, leaning against a wall. The metal pipe measured three (3) feet and six (6) inches long with a diameter of one and half (1½) inches. It had an open end without a stop valve with a red stain at one end. The bedroom was not in disarray.

"About 10:00 that same morning, the cadaver of Ben, because of its stench, had to be taken outside at the back of the house before the postmortem examination was conducted by Dr. Cerillo in the presence of the police. A municipal health officer at Isabel, Leyte responsible for medico-legal cases, Dr. Cerillo found that Ben had been dead for two to three days and his body was already decomposing. The postmortem examination of Dr. Cerillo yielded the findings quoted in the Information for parricide later filed against appellant. She concluded that the cause of Ben's death was 'cardiopulmonary arrest secondary to severe intracranial hemorrhage due to a depressed fracture of the occipital [bone].'

"*Appellant admitted killing Ben*. She testified that going home after work on November 15, 1995, she got worried that her husband who was not home yet might have gone gambling since it was a payday. With her cousin Ecel Araño, appellant went to look for Ben at the marketplace and taverns at Isabel, Leyte but did not find him there. They found Ben drunk upon their return at the Genosas' house. Ecel went home despite appellant's request for her to sleep in their house.

"Then, Ben purportedly nagged appellant for following him, even challenging her to a fight. She allegedly ignored him and instead attended to their children who were doing their homework. Apparently disappointed with her reaction, Ben switched off the light and, with the use of a chopping knife, cut the television antenna or wire to keep her from watching television. According to appellant, Ben was about to attack her so she ran to the bedroom, but he got hold of her hands and whirled her around. She fell on the side of the bed and screamed for help. Ben left. At this point, appellant packed *his* clothes because she wanted him to leave. Seeing his packed clothes upon his return home, Ben allegedly flew into a rage, dragged appellant outside of the bedroom towards a drawer holding her by the neck, and told her 'You might as well be killed so nobody would nag me.' Appellant testified that she was aware that there was a gun inside the drawer but since Ben did not have the key to it, he got a three-inch long blade cutter from his wallet. She however, 'smashed' the arm of Ben with a pipe, causing him to drop the blade and his wallet. Appellant then 'smashed' Ben at his nape with the pipe as he was about to pick up the blade and his wallet. She thereafter ran inside the bedroom.

"Appellant, however, insisted that she ended the life of her husband by shooting him. She supposedly 'distorted' the drawer where the gun was and shot Ben. He did not die on the spot, though, but in the bedroom." [7] (Citations omitted)

Version of the Defense

Appellant relates her version of the facts in this manner:

"1. Marivic and Ben Genosa were allegedly married on November 19, 1983. Prior to her marriage, Marivic had graduated from San Carlos, Cebu City, obtaining a degree of Bachelor of Science in Business Administration, and was working, at the time of her husband's death, as a Secretary to the Port Managers in Ormoc City. The couple had three (3) children: John Marben, Earl Pierre and Marie Bianca.

"2. Marivic and Ben had known each other since elementary school; they were neighbors in Bilwang; they were classmates; and they were third degree cousins. Both sets of parents were against their relationship, but Ben was persistent and tried to stop other suitors from courting her. Their closeness developed as he was her constant partner at fiestas.

"3. After their marriage, they lived first in the home of Ben's parents, together with Ben's brother, Alex, in Isabel, Leyte. In the first year of marriage, Marivic and Ben 'lived happily'. But apparently, soon thereafter, the couple would quarrel often and their fights would become violent.

"4. Ben's brother, Alex, testified for the prosecution that he could not remember when Ben and Marivic married. He said that when Ben and Marivic

quarreled, *generally when Ben would come home drunk*, Marivic would inflict injuries on him. He said that in one incident in 1993 he saw Marivic holding a kitchen knife after Ben had shouted for help as his left hand was covered with blood. Marivic left the house but after a week, she returned apparently having asked for Ben's forgiveness. In another incident in May 22, 1994, early morning, Alex and his father apparently rushed to Ben's aid again and saw blood from Ben's forehead and Marivic holding an empty bottle. Ben and Marivic reconciled after Marivic had apparently again asked for Ben's forgiveness.

"Mrs. Iluminada Genosa, Marivic's mother-in-law, testified too, saying that Ben and Marivic married in '1986 or 1985 more or less here in Fatima, Ormoc City.' She said as the marriage went along, Marivic became `already very demanding. Mrs. Iluminada Genosa said that after the birth of Marivic's two sons, there were `three (3) misunderstandings.' The first was when Marivic stabbed Ben with a table knife through his left arm; the second incident was on November 15, 1994, when Marivic struck Ben *on the forehead*, 'using a sharp instrument until the eye was also affected. It was wounded and also the ear' and her husband went to Ben to help; and the third incident was in 1995 when the couple had already transferred to the house in Bilwang and she saw that Ben's hand was plastered as '*the bone cracked*.'

"Both mother and son claimed they brought Ben to a Pasar clinic for medical intervention.

"5. Arturo Basobas, a co-worker of Ben, testified that on November 15, 1995 'After we collected our salary, we went to the cock-fighting place of ISCO.' They stayed there for three (3) hours, after which they went to 'Uniloks' and drank beer — allegedly only two (2) bottles each. After drinking they bought barbeque and went to the Genosa residence. *Marivic was not there*. He stayed a while talking with Ben, after which he went across the road to wait 'for the runner and the usher of the masiao game because during that time, the hearing on masiao numbers was rampant. I was waiting for the ushers and runners so that I can place my bet.' On his way home at about 9:00 in the evening, he heard the Genosas arguing. They were quarreling loudly. Outside their house was one 'Fredo' who is used by Ben to feed his fighting cocks. Basobas' testimony on the root of the quarrel, conveniently overheard by him was Marivic saying 'I will never hesitate to kill you', whilst Ben replied 'Why kill me when I am innocent.' Basobas thought they were joking.

"He did not hear them quarreling while he was across the road from the Genosa residence. Basobas admitted that he and Ben were always at the cockpits every Saturday and Sunday. He claims that he once told Ben 'before when he was stricken with a bottle by Marivic Genosa' that he should leave her and that Ben would always take her back after she would leave him 'so many times'.

"Basobas could not remember when Marivic had hit Ben, but it was a long time that they had been quarreling. He said Ben `even had a wound' on the right forehead. He had known the couple for only one (1) year.

"6. Marivic testified that after the first year of marriage, Ben became cruel to her and was a habitual drinker. She said he provoked her, he would slap her, sometimes he would pin her down on the bed, and sometimes beat her.

"These incidents happened several times and she would often run home

to her parents, but Ben would follow her and seek her out, promising to change and would ask for her forgiveness. She said after she would be beaten, she would seek medical help from Dr. Dino Caing, Dr. Lucero and Dra. Cerillo. These doctors would enter the injuries inflicted upon her by Ben into their reports. Marivic said Ben would beat her or quarrel with her every time he was drunk, at least three times a week.

"7. In her defense, witnesses who were *not* so closely related to Marivic, testified as to the abuse and violence she received at the hands of Ben.

'7.1. Mr. Joe Barrientos, a fisherman, who was a [neighbor] of the Genosas, testified that on November 15, 1995, he overheard a quarrel between Ben and Marivic. Marivic was shouting for help and through the open jalousies, he saw the spouses 'grappling with each other'. Ben had Marivic in a choke hold. He did not do anything, but had come voluntarily to testify. (*Please note this was the same night as that testified to by Arturo Busabos*.[8])

7.2. Mr. Junnie Barrientos, also a fisherman, and the brother of Mr. Joe Barrientos, testified that he heard his neighbor Marivic shouting on the night of November 15, 1995. He peeped through the window of his hut which is located beside the Genosa house and saw 'the spouses grappling with each other then Ben Genosa was holding with his both hands the neck of the accused, Marivic Genosa'. He said after a while, Marivic was able to extricate he[r]self and enter the room of the children. After that, he went back to work as he was to go fishing that evening. He returned at 8:00 the next morning. (*Again, please note that this was the same night as that testified to by Arturo Basobas*).

7.3. Mr. Teodoro Sarabia was a former neighbor of the Genosas while they were living in Isabel, Leyte. His house was located about fifty (50) meters from theirs. Marivic is his niece and he knew them to be living together for 13 or 14 years. He said the couple was always quarreling. Marivic confided in him that Ben would pawn items and then would use the money to gamble. One time, he went to their house and they were quarreling. Ben was so angry, but would be pacified 'if somebody would come.' He testified that while Ben was alive 'he used to gamble and when he became drunk, he would go to our house and he will say, 'Teody' because that was what he used to call me, 'mokimas ta,' which means 'let's go and look for a whore.' Mr. Sarabia further testified that Ben `would box his wife and I would see bruises and one time she ran to me, I noticed a wound (the witness pointed to his right breast) as according to her a knife was stricken to her.' Mr. Sarabia also said that once he saw Ben had been injured too. He said he voluntarily testified only that morning.

7.4. Miss Ecel Arano, an 18-year old student, who is a cousin of Marivic, testified that in the afternoon of November 15, 1995, Marivic went to her house and asked her help to look for Ben. They searched in the market place, several taverns and some other places, but could not find him. She accompanied Marivic home. Marivic wanted her to sleep with her in the Genosa house 'because she might be battered by her husband.' When they got to the Genosa house at about 7:00 in the evening, Miss Arano said that 'her husband was already there and was

drunk.' Miss Arano knew he was drunk 'because of his staggering walking and I can also detect his face.' Marivic entered the house and she heard them quarrel noisily. (Again, please note that this is the same night as that testified to by Arturo Basobas) Miss Arano testified that this was not the first time Marivic had asked her to sleep in the house as Marivic would be afraid every time her husband would come home drunk. At one time when she did sleep over, she was awakened at 10:00 in the evening when Ben arrived because the couple 'were very noisy in the sala and I had heard something was broken like a vase.' She said Marivic ran into her room and they locked the door. When Ben couldn't get in, he got a chair and a knife and `showed us the knife through the window grill and he scared us.' She said that Marivic shouted for help, but no one came. On cross-examination, she said that when she left Marivic's house on November 15, 1995, the couple were still quarreling.

7.5. Dr. Dino Caing, a physician testified that he and Marivic were co-employees at PHILPHOS, Isabel, Leyte. Marivic was his patient 'many times' and had also received treatment from other doctors. Dr. Caing testified that from July 6, 1989 until November 9, 1995, there were six (6) episodes of physical injuries inflicted upon Marivic. These injuries were reported in his Out-Patient Chart at the PHILPHOS Hospital. The prosecution admitted the qualifications of Dr. Caing and considered him an expert witness.'

xxx xxx xxx

'Dr. Caing's clinical history of the *tension headache and hypertension of Marivic on twenty-three (23) separate occasions* was marked at Exhibits '2' and '2-B.' The OPD Chart of Marivic at the Philphos Clinic which reflected all the consultations made by Marivic and the *six (6) incidents of physical injuries reported* was marked as Exhibit '3.'

"On cross-examination, Dr. Caing said that he is not a psychiatrist, he could not say whether the injuries were directly related to the crime committed. *He said it is only a psychiatrist who is qualified to examine the psychological make-up of the patient, 'whether she is capable of committing a crime or not*.'

7.6 Mr. Panfilo Tero, the barangay captain in the place where the Genosas resided, testified that about two (2) months before Ben died, Marivic went to his office past 8:00 in the evening. She sought his help to settle or confront the Genosa couple who were experiencing 'family troubles'. He told Marivic to return in the morning, but he did not hear from her again and assumed 'that they might have settled with each other or they might have forgiven with each other.'

xxx xxx xxx

"Marivic said she did not provoke her husband when she got home that night it was her husband who began the provocation. Marivic said she was frightened that her husband would hurt her and she wanted to make sure she would deliver her baby safely. In fact, Marivic had to be admitted later at the Rizal Medical Centre as she was suffering from eclampsia and hypertension, and

the baby was born prematurely on December 1, 1995.

"Marivic testified that during her marriage she had tried to leave her husband at least five (5) times, but that Ben would always follow her and they would reconcile. Marivic said that the reason why Ben was violent and abusive towards her that night was because 'he was crazy about his recent girlfriend, Lulu . . . Rubillos.'

"On cross-examination, Marivic insisted she shot Ben with a gun; she said that he died in the bedroom; that their quarrels could be heard by anyone passing their house; that Basobas lied in his testimony; that she left for Manila the next day, November 16, 1995; that she did not bother anyone in Manila, rented herself a room, and got herself a job as a field researcher under the alias 'Marvelous Isidro'; she did not tell anyone that she was leaving Leyte, she just wanted to have a safe delivery of her baby; and that she was arrested in San Pablo, Laguna.

> 'Answering questions from the Court, Marivic said that she threw the gun away; that she did not know what happened to the pipe she used to 'smash him once'; that she was wounded by Ben on her wrist with the bolo; and that two (2) hours after she was 'whirled' by Ben, he kicked her 'ass' and dragged her towards the drawer when he saw that she had packed his things.'

"9. The body of Ben Genosa was found on November 18, 1995 after an investigation was made of the foul odor emitting from the Genosa residence. This fact was testified to by all the prosecution witnesses and some defense witnesses during the trial.

"10. Dra. Refelina Y. Cerillo, a physician, was the Municipal Health Officer of Isabel, Leyte at the time of the incident, and among her responsibilities as such was to take charge of all medico-legal cases, such as the examination of cadavers and the autopsy of cadavers. *Dra. Cerillo is not a forensic pathologist* She merely took the medical board exams and passed in 1986. She was called by the police to go to the Genosa residence and when she got there, she saw 'some police officer and neighbor around.' She saw Ben Genosa, covered by a blanket, lying in a semi-prone position with his back to the door. He was wearing only a brief.

xxx xxx xxx

"Dra. Cerillo said that `there is only one injury and that is the injury involving the skeletal area of the head' which she described as a `fracture'. And that based on her examination, Ben had been dead 2 or 3 days. Dra. Cerillo did not testify as to *what* caused his death.

"Dra. Cerillo was not cross-examined by defense counsel.

"11. The Information, dated November 14, 1996, filed against Marivic Genosa charged her with the crime of PARRICIDE committed 'with intent to kill, with treachery and evidence premeditation, . . . wilfully, unlawfully and feloniously attack, assault, hit and wound . . . her legitimate husband, with the use of a hard deadly weapon . . . which caused his death.'

"12. Trial took place on 7 and 14 April 1997, 14 May 1997, 21 July 1997, 17, 22 and 23 September 1997, 12 November 1997, 15 and 16 December

1997, 22 May 1998, and 5 and 6 August 1998.

"13. On 23 September 1998, or only fifty (50) days from the day of the last trial date, the Hon. Fortunito L. Madrona, Presiding Judge, RTC-Branch 35, Ormoc City, rendered a JUDGMENT finding Marivic guilty 'beyond reasonable doubt' of the crime of parricide, and further found treachery as an aggravating circumstance, thus sentencing her to the ultimate penalty of DEATH.

"14. The case was elevated to this Honorable Court upon automatic review and, under date of 24 January 2000, Marivic's trial lawyer, Atty. Gil Marvel P. Tabucanon, filed a Motion to Withdraw as counsel, attaching thereto, as a precautionary measure, two (2) drafts of Appellant's Briefs he had prepared for Marivic which, for reasons of her own, were not conformed to by her.

"The Honorable Court allowed the withdrawal of Atty. Tabucanon and permitted the entry of appearance of undersigned counsel.

"15. Without the knowledge of counsel, Marivic Genosa wrote a letter dated 20 January 2000, to the Chief Justice, coursing the same through Atty. Teresita G. Dimaisip, Deputy Clerk of Court of Chief Judicial Records Office, wherein she submitted her `Brief without counsels' to the Court.

"This letter was stamp-received by the Honorable Court on 4 February 2000.

"16. In the meantime, under date of 17 February 2000, and stamp-received by the Honorable Court on 19 February 2000, undersigned counsel filed an URGENT OMNIBUS MOTION praying that the Honorable Court allow the exhumation of Ben Genosa and the re-examination of the cause of his death; allow the examination of Marivic Genosa by qualified psychologists and psychiatrists to determine her state of mind at the time she killed her husband; and finally, to allow a partial re-opening of the case *a quo* to take the testimony of said psychologists and psychiatrists.

"Attached to the URGENT OMNIBUS MOTION was a letter of Dr. Raquel Fortun, then the only qualified forensic pathologist in the country, who opined that the description of the death wound (as culled from the post-mortem findings, Exhibit 'A') is more akin to a gunshot wound than a beating with a lead pipe.

"17. In a RESOLUTION dated 29 September 2000, the Honorable Court partly granted Marivic's URGENT OMNIBUS MOTION and remanded the case 'to the trial court for the reception of expert psychological and/or psychiatric opinion on the 'battered woman syndrome' plea, within ninety (90) days from notice, and, thereafter to forthwith report to this Court the proceedings taken, together with the copies of the TSN and relevant documentary evidence, if any, submitted.'

"18. On 15 January 2001, Dra. Natividad A. Dayan appeared and testified before the Hon. Fortunito L. Madrona, RTC-Branch 35, Ormoc City.

"Immediately before Dra. Dayan was sworn, the Court*a quo* asked if she had interviewed Marivic Genosa. Dra. Dayan informed the Court that interviews were done at the Penal Institution in 1999, but that the clinical interviews and psychological assessment were done at her clinic.

"Dra. Dayan testified that she has been a clinical psychologist for twenty

(20) years with her own private clinic and connected presently to the De La Salle University as a professor. Before this, she was the Head of the Psychology Department of the Assumption College; a member of the faculty of Psychology at the Ateneo de Manila University and St. Joseph's College; and was the counseling psychologist of the National Defense College. She has an AB in Psychology from the University of the Philippines, a Master of Arts in Clinical [Counseling], Psychology from the Ateneo, and a PhD from the U.P. She was the past president of the Psychological Association of the Philippines and is a member of the American Psychological Association. She is the secretary of the International Council of Psychologists from about 68 countries; a member of the Forensic Psychology Association; and a member of the ASEAN [Counseling] Association. She is actively involved with the Philippine Judicial Academy, recently lecturing on the socio-demographic and psychological profile of families involved in domestic violence and nullity cases. She was with the Davide Commission doing research about Military Psychology. She has written a book entitled 'Energy Global Psychology' (together with Drs. Allan Tan and Allan Bernardo). The Genosa case is the first time she has testified as an expert on battered women as this is the first case of that nature.

"Dra. Dayan testified that for the research she conducted, on the socio-demographic and psychological profile of families involved in domestic violence, and nullity cases, she looked at about 500 cases over a period of ten (10) years and discovered that 'there are lots of variables that cause all of this marital conflicts, from domestic violence to infidelity, to psychiatric disorder.'

"Dra. Dayan described domestic violence to comprise of `a lot of incidents of psychological abuse, verbal abuse, and emotional abuse to physical abuse and also sexual abuse.'

xxx xxx xxx

"Dra. Dayan testified that in her studies, `the battered woman usually has a very low opinion of herself. She has a self-defeating and self-sacrificing characteristics. . . . they usually think very lowly of themselves and so when the violence would happen, they usually think that they provoke it, that they were the one who precipitated the violence, they provoke their spouse to be physically, verbally and even sexually abusive to them.' Dra. Dayan said that usually a battered . . . comes from a dysfunctional family or from 'broken homes.'

"Dra. Dayan said that the batterer, just like the battered woman, 'also has a very low opinion of himself. But then emerges to have superiority complex and it comes out as being very arrogant, very hostile, very aggressive and very angry. They also had (sic) a very low tolerance for frustrations. A lot of times they are involved in vices like gambling, drinking and drugs. And they become violent.' The batterer also usually comes from a dysfunctional family which over-pampers them and makes them feel entitled to do anything. Also, they see often how their parents abused each other so `there is a lot of modeling of aggression in the family.'

"Dra. Dayan testified that there are a lot of reasons why a battered woman does *not* leave her husband: poverty, self-blame and guilt that she provoked the violence, the cycle itself which makes her hope her husband will change, the belief in her obligations to keep the family intact at all costs for the sake of the children.

xxx xxx xxx

"Dra. Dayan said that abused wives react differently to the violence: some leave the house, or lock themselves in another room, or sometimes try to fight back triggering 'physical violence on both of them.' She said that in a 'normal marital relationship,' abuses also happen, but these are 'not consistent, not chronic, are not happening day in [and] day out.' In an 'abnormal marital relationship,' the abuse occurs day in and day out, is long lasting and `even would cause hospitalization on the victim and even death on the victim.'

xxx xxx xxx

"Dra. Dayan said that as a result of the battery of psychological tests she administered, it was her opinion that Marivic fits the profile of a battered woman because 'inspite of her feeling of self-confidence which we can see at times there are really feeling (sic) of loss, such feelings of humiliation which she sees herself as damaged and as a broken person. And at the same time she still has the imprint of all the abuses that she had experienced in the past.'

xxx xxx xxx

"Dra. Dayan said Marivic thought of herself as a loving wife and did not even consider filing for nullity or legal separation inspite of the abuses. It was at the time of the tragedy that Marivic then thought of herself as a victim.

xxx xxx xxx

"19. On 9 February 2001, Dr. Alfredo Pajarillo, a physician, who has since passed away, appeared and testified before RTC-Branch 35, Ormoc City.

"Dr. Pajarillo was a Diplomate of the Philippine Board of Psychiatry; a Fellow of the Philippine Board of Psychiatry and a Fellow of the Philippine Psychiatry Association. He was in the practice of psychiatry for thirty-eight (38) years. Prior to being in private practice, he was connected with the Veterans Memorial Medical Centre where he gained his training on psychiatry and neurology. After that, he was called to active duty in the Armed Forces of the Philippines, assigned to the V. Luna Medical Center for twenty six (26) years. Prior to his retirement from government service, he obtained the rank of Brigadier General. He obtained his medical degree from the University of Santo Tomas. He was also a member of the World Association of Military Surgeons; the Quezon City Medical Society; the Cagayan Medical Society; and the Philippine Association of Military Surgeons.

"He authored 'The Comparative Analysis of Nervous Breakdown in the Philippine Military Academy from the Period 1954-1978' which was presented twice in international congresses. He also authored 'The Mental Health of the Armed Forces of the Philippines 2000', which was likewise published internationally and locally. He had a medical textbook published on the use of Prasepam on a Parke-Davis grant; was the first to use Enanthate (siquiline), on an E.R. Squibb grant; and he published the use of the drug Zopiclom in 1985-86.

"Dr. Pajarillo explained that psychiatry deals with the functional disorder of the mind and neurology deals with the ailment of the brain and spinal cord enlarged. Psychology, on the other hand, is a bachelor degree and a doctorate degree; while one has to finish medicine to become a specialist in psychiatry.

"Even only in his 7th year as a resident in V. Luna Medical Centre, Dr.

Pajarillo had already encountered a suit involving violent family relations, and testified in a case in 1964. In the Armed Forces of the Philippines, violent family disputes abound, and he has seen probably ten to twenty thousand cases. In those days, the primordial intention of therapy was reconciliation. As a result of his experience with domestic violence cases, he became a consultant of the Battered Woman Office in Quezon City under Atty. Nenita Deproza.

"As such consultant, he had seen around forty (40) cases of severe domestic violence, where there is physical abuse: such as slapping, pushing, verbal abuse, battering and boxing a woman even to an unconscious state such that the woman is sometimes confined. The affliction of Post-Traumatic Stress Disorder 'depends on the vulnerability of the victim.' Dr. Pajarillo said that if the victim is not very healthy, perhaps one episode of violence may induce the disorder; if the psychological stamina and physiologic constitutional stamina of the victim is stronger, 'it will take more repetitive trauma to precipitate the post-traumatic stress disorder and this . . . is very dangerous.'

"In psychiatry, the post-traumatic stress disorder is incorporated under the 'anxiety neurosis or neurologic anxcietism.' It is produced by 'overwhelming brutality, trauma.'

xxx xxx xxx

"Dr. Pajarillo explained that with 'neurotic anxiety', the victim relives the beating or trauma as if it were real, although she is not actually being beaten at that time. She thinks 'of nothing but the suffering.'

xxx xxx xxx

"A woman who suffers battery has a tendency to become neurotic, her emotional tone is unstable, and she is irritable and restless. She tends to become hard-headed and persistent. She has higher sensitivity and her 'self-world' is damaged.

"Dr. Pajarillo said that an abnormal family background relates to an individual's illness, such as the deprivation of the continuous care and love of the parents. As to the batterer, he normally `internalizes what is around him within the environment.' And it becomes his own personality. He is very competitive; he is aiming high all the time; he is so macho; he shows his strong facade 'but in it there are doubts in himself and prone to act without thinking.'

xxx xxx xxx

"Dr. Pajarillo emphasized that `even though without the presence of the precipator (sic) or the one who administered the battering, that re-experiencing of the trauma occurred (sic) because the individual cannot control it. It will just come up in her mind or in his mind.'

xxx xxx xxx

"Dr. Pajarillo said that a woman suffering post traumatic stress disorder try to defend themselves, and `primarily with knives. Usually pointed weapons or any weapon that is available in the immediate surrounding or in a hospital . . . because that abound in the household.' He said a victim resorts to weapons when she has 'reached the lowest rock bottom of her life and there is no other recourse left on her but to act decisively.'

xxx xxx xxx

"Dr. Pajarillo testified that he met Marivic Genosa in his office in an interview he conducted for two (2) hours and seventeen (17) minutes. He used the psychological evaluation and social case studies as a help in forming his diagnosis. He came out with a Psychiatric Report, dated 22 January 2001.

xxx xxx xxx

"On cross-examination by the private prosecutor, Dr. Pajarillo said that at the time she killed her husband Marivic's mental condition was that she was 're-experiencing the trauma.' *He said 'that we are trying to explain scientifically that the re-experiencing of the trauma is not controlled by Marivic. It will just come in flashes and probably at that point in time that things happened when the re-experiencing of the trauma flashed in her mind*.' At the time he interviewed Marivic 'she was more subdued, she was not super alert anymore . . . she is mentally stress (sic) because of the predicament she is involved.'

xxx xxx xxx

"20. No rebuttal evidence or testimony was presented by either the private or the public prosecutor. Thus, in accord with the Resolution of this Honorable Court, the records of the partially re-opened trial *a quo* were elevated." [9]

Ruling of the Trial Court

Finding the proffered theory of self-defense untenable, the RTC gave credence to the prosecution evidence that appellant had killed the deceased while he was in bed sleeping. Further, the trial court appreciated the generic aggravating circumstance of treachery, because Ben Genosa was supposedly defenseless when he was killed — lying in bed asleep when Marivic smashed him with a pipe at the back of his head.

The capital penalty having been imposed, the case was elevated to this Court for automatic review.

Supervening Circumstances

On February 19, 2000, appellant filed an Urgent Omnibus Motion praying that this Court allow (1) the exhumation of Ben Genosa and the re-examination of the cause of his death; (2) the examination of appellant by qualified psychologists and psychiatrists to determine her state of mind at the time she had killed her spouse; and (3) the inclusion of the said experts' reports in the records of the case for purposes of the automatic review or, in the alternative, a partial reopening of the case for the lower court to admit the experts' testimonies.

On September 29, 2000, this Court issued a Resolution granting in part appellant's Motion, remanding the case to the trial court for the reception of expert psychological and/or psychiatric opinion on the "battered woman syndrome" plea; and requiring the lower court to report thereafter to this Court the proceedings taken as well as to submit copies of the TSN and additional evidence, if any.

Acting on the Court's Resolution, the trial judge authorized the examination of Marivic by two clinical psychologists, Drs. Natividad Dayan [10] and Alfredo Pajarillo, [11] supposedly experts on domestic violence. Their testimonies, along with their documentary evidence, were then presented to and admitted by the lower court before

finally being submitted to this Court to form part of the records of the case. [12]

The Issues

Appellant assigns the following alleged errors of the trial court for this Court's consideration:

> "1. The trial court gravely erred in promulgating an obviously hasty decision without reflecting on the evidence adduced as to self-defense.
>
> "2. The trial court gravely erred in finding as a fact that Ben and Marivic Genosa were legally married and that she was therefore liable for parricide.
>
> "3. The trial court gravely erred finding the cause of death to be by beating with a pipe.
>
> "4. The trial court gravely erred in ignoring and disregarding evidence adduced from impartial and unbiased witnesses that Ben Genosa was a drunk, a gambler, a womanizer and wife-beater; and further gravely erred in concluding that Ben Genosa was a battered husband.
>
> "5. The trial court gravely erred in not requiring testimony from the children of Marivic Genosa.
>
> "6. The trial court gravely erred in concluding that Marivic's flight to Manila and her subsequent apologies were *indicia* of guilt, instead of a clear attempt to save the life of her unborn child.
>
> "7. The trial court gravely erred in concluding that there was an aggravating circumstance of treachery.
>
> "8. The trial court gravely erred in refusing to re-evaluate the traditional elements in determining the existence of self-defense and defense of foetus in this case, thereby erroneously convicting Marivic Genosa of the crime of parricide and condemning her to the ultimate penalty of death." [13]

In the main, the following are the essential legal issues: (1) whether appellant acted in self-defense and in defense of her fetus; and (2) whether treachery attended the killing of Ben Genosa.

The Court's Ruling

The appeal is partly meritorious.

Collateral Factual Issues

The first six assigned errors raised by appellant are factual in nature, if not collateral to the resolution of the principal issues. As consistently held by this Court, the findings of the trial court on the credibility of witnesses and their testimonies are entitled to a high degree of respect and will not be disturbed on appeal in the absence of any showing that the trial judge gravely abused his discretion or overlooked, misunderstood or misapplied material facts or circumstances of weight and substance that could affect the outcome of the case. [14]

In appellant's first six assigned items, we find no grave abuse of discretion, reversible error or misappreciation of material facts that would reverse or modify the trial court's disposition of the case. In any event, we will now briefly dispose of these alleged errors of the trial court.

First, we do not agree that the lower court promulgated "an obviously hasty decision without reflecting on the evidence adduced as to self-defense." We note that in his 17-page Decision, Judge Fortunito L. Madrona summarized the testimonies of both the prosecution and the defense witnesses and — on the basis of those and of the documentary evidence on record — made his evaluation, findings and conclusions. He wrote a 3-page discourse assessing the testimony and the self-defense theory of the accused. While she, or even this Court, may not agree with the trial judge's conclusions, we cannot peremptorily conclude, absent substantial evidence, that he failed *to reflect* on the evidence presented.

Neither do we find the appealed Decision to have been made in an "obviously hasty" manner. The Information had been filed with the lower court on November 14, 1996. Thereafter, trial began and at least 13 hearings were held for over a year. It took the trial judge about two months from the conclusion of trial to promulgate his judgment. That he conducted the trial and resolved the case with dispatch should not be taken against him, much less used to condemn him for being unduly hasty. If at all, the dispatch with which he handled the case should be lauded. In any case, we find his actions in substantial compliance with his constitutional obligation. [15]

Second, the lower court did not err in finding as a fact that Ben Genosa and appellant had been legally married, despite the non-presentation of their marriage contract. In *People v. Malabago*, [16] this Court held:

> "The key element in parricide is the relationship of the offender with the victim. In the case of parricide of a spouse, the best proof of the relationship between the accused and the deceased is the marriage certificate. In the absence of a marriage certificate, however, oral evidence of the fact of marriage may be considered by the trial court if such proof is not objected to."

Two of the prosecution witnesses — namely, the mother and the brother of appellant's deceased spouse — attested in court that Ben had been married to Marivic. [17] The defense raised no objection to these testimonies. Moreover, during her direct-examination, appellant herself made a judicial admission of her marriage to Ben. [18] Axiomatic is the rule that a judicial admission is conclusive upon the party making it, except only when there is a showing that (1) the admission was made through a palpable mistake, or (2) no admission was in fact made. [19] Other than merely attacking the non-presentation of the marriage contract, the defense offered no proof that the admission made by appellant in court as to the fact of her marriage to the deceased was made through a palpable mistake.

Third, under the circumstances of this case, the specific or direct cause of Ben's death — whether by a gunshot or by beating with a pipe — has no legal consequence. As the Court elucidated in its September 29, 2000 Resolution, "[c]onsidering that the appellant has admitted the fact of killing her husband and the acts of hitting his nape with a metal pipe and of shooting him at the back of his head, the Court believes that exhumation is unnecessary, if not immaterial, to determine *which of said acts actually caused the victim's death*." Determining which of these admitted acts caused the death is not dispositive of the guilt or defense of appellant.

Fourth, we cannot fault the trial court for not fully appreciating evidence that Ben was a drunk, gambler, womanizer and wife-beater. Until this case came to us for automatic review, appellant had not raised the novel defense of "battered woman

syndrome," for which such evidence may have been relevant. Her theory of self-defense was then the crucial issue before the trial court. As will be discussed shortly, the legal requisites of self-defense under prevailing jurisprudence ostensibly appear inconsistent with the surrounding facts that led to the death of the victim. Hence, his personal character, especially his past behavior, did not constitute vital evidence at the time.

Fifth, the trial court surely committed no error in not requiring testimony from appellant's children. As correctly elucidated by the solicitor general, all criminal actions are prosecuted under the direction and control of the public prosecutor, in whom lies the discretion to determine which witnesses and evidence are necessary to present. [20] As the former further points out, neither the trial court nor the prosecution prevented appellant from presenting her children as witnesses. Thus, she cannot now fault the lower court for not requiring them to testify.

Finally, merely collateral or corroborative is the matter of whether the flight of Marivic to Manila and her subsequent apologies to her brother-in-law are *indicia* of her guilt or are attempts to save the life of her unborn child. Any reversible error as to the trial court's appreciation of these circumstances has little bearing on the final resolution of the case.

First Legal Issue:

Self-Defense and Defense of a Fetus

Appellant admits killing Ben Genosa but, to avoid criminal liability, invokes self-defense and/or defense of her unborn child. When the accused admits killing the victim, it is incumbent upon her to prove any claimed justifying circumstance by clear and convincing evidence. [21] Well-settled is the rule that in criminal cases, self-defense (and similarly, defense of a stranger or third person) shifts the burden of proof from the prosecution to the defense. [22]

The Battered Woman Syndrome

In claiming self-defense, appellant raises the novel theory of the battered woman syndrome. While new in Philippine jurisprudence, the concept has been recognized in foreign jurisdictions as a form of self-defense or, at the least, incomplete self-defense. [23] By appreciating evidence that a victim or defendant is afflicted with the syndrome, foreign courts convey their "understanding of the justifiably fearful state of mind of a person who has been cyclically abused and controlled over a period of time." [24]

A battered woman has been defined as a woman "who is repeatedly subjected to any forceful physical or psychological behavior by a man in order to coerce her to do something he wants her to do without concern for her rights. Battered women include wives or women in any form of intimate relationship with men. Furthermore, in order to be classified as a battered woman, the couple must go through the battering cycle at least twice. Any woman may find herself in an abusive relationship with a man once. If it occurs a second time, and she remains in the situation, she is defined as a battered woman." [25]

Battered women exhibit common personality traits, such as low self-esteem, traditional beliefs about the home, the family and the female sex role; emotional dependence upon the dominant male; the tendency to accept responsibility for the batterer's actions; and false hopes that the relationship will improve. [26]

More graphically, the battered woman syndrome is characterized by the so-called

"cycle of violence," [27] which has three phases: (1) the tension-building phase; (2) the acute battering incident; and (3) the tranquil, loving (or, at least, nonviolent) phase. [28]

During the *tension-building phase*, minor battering occurs — it could be verbal or slight physical abuse or another form of hostile behavior. The woman usually tries to pacify the batterer through a show of kind, nurturing behavior; or by simply staying out of his way. What actually happens is that she allows herself to be abused in ways that, to her, are comparatively minor. All she wants is to prevent the escalation of the violence exhibited by the batterer. This wish, however, proves to be double-edged, because her "placatory" and passive behavior legitimizes his belief that he has the right to abuse her in the first place.

However, the techniques adopted by the woman in her effort to placate him are not usually successful, and the verbal and/or physical abuse worsens. Each partner senses the imminent loss of control and the growing tension and despair. Exhausted from the persistent stress, the battered woman soon withdraws emotionally. But the more she becomes emotionally unavailable, the more the batterer becomes angry, oppressive and abusive. Often, at some unpredictable point, the violence "spirals out of control" and leads to an acute battering incident. [29]

T h e *acute battering incident* is said to be characterized by brutality, destructiveness and, sometimes, death. The battered woman deems this incident as unpredictable, yet also inevitable. During this phase, she has no control; only the batterer may put an end to the violence. Its nature can be as unpredictable as the time of its explosion, and so are his reasons for ending it. The battered woman usually realizes that she cannot reason with him, and that resistance would only exacerbate her condition.

At this stage, she has a sense of detachment from the attack and the terrible pain, although she may later clearly remember every detail. Her apparent passivity in the face of acute violence may be rationalized thus: the batterer is almost always much stronger physically, and she knows from her past painful experience that it is futile to fight back. Acute battering incidents are often very savage and out of control, such that innocent bystanders or intervenors are likely to get hurt. [30]

The final phase of the cycle of violence begins when the acute battering incident ends. During this *tranquil period*, the couple experience profound relief. On the one hand, the batterer may show a tender and nurturing behavior towards his partner. He knows that he has been viciously cruel and tries to make up for it, begging for her forgiveness and promising never to beat her again. On the other hand, the battered woman also tries to convince herself that the battery will never happen again; that her partner will change for the better; and that this "good, gentle and caring man" is the real person whom she loves.

A battered woman usually believes that she is the sole anchor of the emotional stability of the batterer. Sensing his isolation and despair, she feels responsible for his well-being. The truth, though, is that the chances of his reforming, or seeking or receiving professional help, are very slim, especially if she remains with him. Generally, only after she leaves him does he seek professional help as a way of getting her back. Yet, it is in this phase of remorseful reconciliation that she is most thoroughly tormented psychologically.

The illusion of absolute interdependency is well-entrenched in a battered woman's psyche. In this phase, she and her batterer are indeed emotionally dependent

on each other — she for his nurturant behavior, he for her forgiveness. Underneath this miserable cycle of "tension, violence and forgiveness," each partner may believe that it is better to die than to be separated. Neither one may really feel independent, capable of functioning without the other. [31]

History of Abuse in the Present Case

To show the history of violence inflicted upon appellant, the defense presented several witnesses. She herself described her heart-rending experience as follows:

"ATTY. TABUCANON

Q How did you describe your marriage with Ben Genosa?

A In the first year, I lived with him happily but in the subsequent year he was cruel to me and a behavior of habitual drinker.

Q You said that in the subsequent year of your marriage, your husband was abusive to you and cruel. In what way was this abusive and cruelty manifested to you?

A He always provoke me in everything, he always slap me and sometimes he pinned me down on the bed and sometimes beat me.

Q How many times did this happen?

A Several times already.

Q What did you do when these things happen to you?

A I went away to my mother and I ran to my father and we separate each other.

Q What was the action of Ben Genosa towards you leaving home?

A He is following me, after that he sought after me.

Q What will happen when he follow you?

A He said he changed, he asked for forgiveness and I was convinced and after that I go to him and he said `sorry'.

Q During those times that you were the recipient of such cruelty and abusive behavior by your husband, were you able to see a doctor?

A Yes, sir.

Q Who are these doctors?

A The company physician, Dr. Dino Caing, Dr. Lucero and Dra. Cerillo.

xxx xxx xxx

Q You said that you saw a doctor in relation to your injuries?

A Yes, sir.

Q Who inflicted these injuries?

A Of course my husband.

Q You mean Ben Genosa?

A Yes, sir.

xxx xxx xxx

[Court]/to the witness

Q How frequent was the alleged cruelty that you said?

A Everytime he got drunk.

Q No, from the time that you said the cruelty or the infliction of injury inflicted on your occurred, after your marriage, from that time on, how frequent was the occurrence?

A Everytime he got drunk.

Q Is it daily, weekly, monthly or how many times in a months or in a week?

A Three times a week.

Q Do you mean three times a week he would beat you?

A Not necessarily that he would beat me but sometimes he will just quarrel me." [32]

Referring to his "Out-Patient Chart" [33] on Marivic Genosa at the Philphos Hospital, Dr. Dino D. Caing bolstered her foregoing testimony on chronic battery in this manner.

"Q So, do you have a summary of those six (6) incidents which are found in the chart of your clinic?

A Yes, sir.

Q Who prepared the list of six (6) incidents, Doctor?

A I did.

Q Will you please read the physical findings together with the dates for the record.

A 1. May 12, 1990 — physical findings are as follows: Hematoma (R) lower eyelid and redness of eye. Attending physician: Dr. Lucero;

2. March 10, 1992 — Contusion-Hematoma (L) lower arbital area, pain and contusion (R) breast. Attending physician: Dr. Canora;

3. March 26, 1993 — Abrasion, Furuncle (L) Axilla;

4. August 1, 1994 — Pain, mastitis (L) breast, 2° to trauma. Attending physician: Dr. Caing;

5. April 17, 1995 — Trauma, tenderness (R) Shoulder. Attending physician: Dr. Canora; and

6. June 5, 1995 — Swelling Abrasion (L) leg, multiple contusion Pregnancy. Attending physician: Dr. Canora.

Q Among the findings, there were two (2) incidents wherein you were the attending physician, is that correct?

A Yes, sir.

Q Did you actually physical examine the accused?

A Yes, sir.

Q Now, going to your finding no. 3 where you were the one who attended the patient. What do you mean by abrasion furuncle left axilla?

A Abrasion is a skin wound usually when it comes in contact with something rough substance if force is applied.

Q What is meant by furuncle axilla?

A It is secondary of the light infection over the abrasion.

Q What is meant by pain mastitis secondary to trauma?

A So, in this 4th episode of physical injuries there is an inflammation of left breast. So, [pain] meaning there is tenderness. When your breast is traumatized, there is tenderness pain.

Q So, these are objective physical injuries. Doctor?

xxx xxx xxx

Q Were you able to talk with the patient?

A Yes, sir.

Q What did she tell you?

A As a doctor-patient relationship, we need to know the cause of these injuries. And she told me that it was done to her by her husband.

Q You mean, Ben Genosa?

A Yes, sir.

xxx xxx xxx

ATTY. TABUCANON:

Q By the way Doctor, were you able to physical examine the accused sometime in the month of November, 1995 when this incident happened?

A As per record, yes.

Q What was the date?

A It was on November 6, 1995.

Q So, did you actually see the accused physically?

A Yes, sir.

Q On November 6, 1995, will you please tell this Honorable Court, was the patient pregnant?

A Yes, sir.

Q Being a doctor, can you more engage at what stage of pregnancy was she?

A Eight (8) months pregnant.

Q So in other words, it was an advance stage of pregnancy?

A Yes, sir.

Q What was your November 6, 19'95 examination, was it an examination about her pregnancy or for some other findings?

A No, she was admitted for hypertension headache which complicates her pregnancy.

Q When you said admitted, meaning she was confined?

A Yes, sir.

Q For how many days?

A One day.

Q Where?

A At PHILPHOS Hospital.

Q Lets go back to the clinical history of Marivic Genosa. You said that you were able to examine her personally on November 6, 1995 and she was 8 months pregnant. What is this all about?

A Because she has this problem of tension headache secondary to hypertension and I think I have a record here, also the same period from 1989 to 1995, she had a consultation for twenty-three (23) times.

Q For what?

A Tension headache.

Q Can we say that specially during the latter consultation, that the patient had hypertension?

A The patient definitely had hypertension. It was refractory to our treatment. She does not response when the medication was given to her, because tension headache is more or less stress related and emotional in nature.

Q What did you deduce of tension headache when you said is emotional in nature?

A From what I deduced as part of our physical examination of the patient is the family history in line of giving the root cause of what is causing this disease. So, from the moment you ask to the patient all comes from the domestic problem.

Q You mean problem in her household?

A Probably.

Q Can family trouble cause elevation of blood pressure, Doctor?

A Yes, if it is emotionally related and stressful it can cause increases in hypertension which is unfortunately does not response to the medication.

Q In November 6, 1995, the date of the incident, did you take the blood pressure of the accused?

A On November 6, 1995 consultation, the blood pressure was 180/120.

Q Is this considered hypertension?

A Yes, sir, severe.

Q Considering that she was 8 months pregnant, you mean this is dangerous level of blood pressure?

A It was dangerous to the child or to the fetus."[34]

Another defense witness, Teodoro Sarabia, a former neighbor of the Genosas in Isabel, Leyte, testified that he had seen the couple quarreling several times; and that on some occasions Marivic would run to him with bruises, confiding that the injuries were inflicted upon her by Ben. [35]

Ecel Arano also testified [36] that for a number of times she had been asked by Marivic to sleep at the Genosa house, because the latter feared that Ben would come home drunk and hurt her. On one occasion that Ecel did sleep over, she was awakened about ten o'clock at night, because the couple "were very noisy . . . and I heard something was broken like a vase." Then Marivic came running into Ecel's room and locked the door. Ben showed up by the window grill atop a chair, scaring them with a knife.

On the afternoon of November 15, 1995, Marivic again asked her help — this time to find Ben — but they were unable to. They returned to the Genosa home, where they found him already drunk. Again afraid that he might hurt her, Marivic asked her to sleep at their house. Seeing his state of drunkenness, Ecel hesitated; and when she heard the couple start arguing, she decided to leave.

On that same night that culminated in the death of Ben Genosa, at least three other witnesses saw or heard the couple quarreling.[37] Marivic relates in detail the following backdrop of the fateful night when life was snuffed out of him, showing in the process a vivid picture of his cruelty towards her:

"ATTY. TABUCANON:

Q Please tell this Court, can you recall the incident in November 15, 1995 in the evening?

A Whole morning and in the afternoon, I was in the office working then after office hours, I boarded the service bus and went to Bilwang. When I reached Bilwang, I immediately asked my son, where was his father, then my second child said, `he was not home yet'. I was worried because that was payday, I was anticipating that he was gambling. So while waiting for him, my eldest son arrived from school, I prepared dinner for my children.

Q This is evening of November 15, 1995?

A Yes, sir.

Q What time did Ben Genosa arrive?

A When he arrived, I was not there, I was in Isabel looking for him.

Q So when he arrived you were in Isabel looking for him?

A Yes, sir.

Q Did you come back to your house?

A Yes, sir.

Q By the way, where was your conjugal residence situated this time?

A Bilwang.

Q Is this your house or you are renting?

A Renting.

Q What time were you able to come back in your residence at Bilwang?

A I went back around almost 8:00 o'clock.

Q What happened when you arrived in your residence?

A When I arrived home with my cousin Ecel whom requested to sleep with me at that time because I had fears that he was again drunk and I was worried that he would again beat me so I requested my cousin to sleep with me, but she resisted because she had fears that the same thing will happen again last year.

Q Who was this cousin of yours who you requested to sleep with you?

A Ecel Araño, the one who testified.

Q Did Ecel sleep with you in your house on that evening?

A No, because she expressed fears, she said her father would not allow her because of Ben.

Q During this period November 15, 1995, were you pregnant?

A Yes, 8 months.

Q How advance was your pregnancy?

A Eight (8) months.

Q Was the baby subsequently born?

A Yes, sir.

Q What's the name of the baby you were carrying at that time?

A Marie Bianca.

Q What time were you able to meet personally your husband?

A Yes, sir.

Q What time?

A When I arrived home, he was there already in his usual behavior.

Q Will you tell this Court what was his disposition?

A He was drunk again, he was yelling in his usual unruly behavior.

Q What was he yelling all about?

A His usual attitude when he got drunk.

Q You said that when you arrived, he was drunk and yelling at you? What else did he do if any?

A He is nagging at me for following him and he dared me to quarrel him.

Q What was the cause of his nagging or quarreling at you if you know?

A He was angry at me because I was following . . . him, looking for him. I was just worried he might be overly drunk and he would beat me again.

Q You said that he was yelling at you, what else, did he do to you if any?

A He was nagging at me at that time and I just ignore him because I want to avoid trouble for fear that he will beat me again. Perhaps he was disappointed because I just ignore him of his provocation and he switch off the light and I said to him, `why did you switch off the light when the children were there.' At that time I was also attending to my children who were doing their assignments. He was angry with me for not answering his challenge, so he went to the kitchen and [got] a bolo and cut the antenna wire to stop me from watching television.

Q What did he do with the bolo?

A He cut the antenna wire to keep me from watching T.V.

Q What else happened after he cut the wire?

A He switch off the light and the children were shouting because they were scared and he was already holding the bolo.

Q How do you described this bolo?

A 1½ feet.

Q What was the bolo used for usually?

A For chopping meat.

Q You said the children were scared, what else happened as Ben was

carrying that bolo?

A He was about to attack me so I run to the room.

Q What do you mean that he was about to attack you?

A When I attempt to run he held my hands and he whirled me and I fell to the bedside.

Q So when he whirled you, what happened to you?

A I screamed for help and then he left.

Q You said earlier that he whirled you and you fell on the bedside?

A Yes, sir.

Q You screamed for help and he left, do you know where he was going?

A Outside perhaps to drink more.

Q When he left what did you do in that particular time?

A I packed all his clothes.

Q What was your reason in packing his clothes?

A I wanted him to leave us.

Q During this time, where were your children, what were their reactions?

A After a couple of hours, he went back again and he got angry with me for packing his clothes, then he dragged me again of the bedroom holding my neck.

Q You said that when Ben came back to your house, he dragged you? How did he drag you?

COURT INTERPRETER:

(The witness demonstrated to the Court by using her right hand flexed forcibly in her front neck)

A And he dragged me towards the door backward.

ATTY. TABUCANON:

Q Where did he bring you?

A Outside the bedroom and he wanted to get something and then he kept on shouting at me that `you might as well be killed so there will be nobody to nag me.'

Q So you said that he dragged you towards the drawer?

A Yes, sir.

Q What is there in the drawer?

A I was aware that it was a gun.

COURT INTERPRETER:

(At this juncture the witness started crying).

ATTY. TABUCANON:

Q Were you actually brought to the drawer?

A Yes, sir.

Q What happened when you were brought to that drawer?

A He dragged me towards the drawer and he was about to open the drawer but he could not open it because he did not have the key then he pulled his wallet which contained a blade about 3 inches long and I was aware that he was going to kill me and I smashed his arm and then the wallet and the blade fell. The one he used to open the drawer I saw, it was a pipe about that long, and when he was about to pick-up the wallet and the blade, I smashed him then I ran to the other room, and on that very moment everything on my mind was to pity on myself, then the feeling I had on that very moment was the same when I was admitted in PHILPHOS Clinic, I was about to vomit.

COURT INTERPRETER:

(The witness at this juncture is crying intensely).

xxx xxx xxx

ATTY. TABUCANON:

Q Talking of drawer, is this drawer outside your room?

A Outside.

Q In what part of the house?

A Dining.

Q Where were the children during that time?

A My children were already asleep.

Q You mean they were inside the room?

A Yes, sir.

Q You said that he dropped the blade, for the record will you please describe this blade about 3 inches long, how does it look like?

A Three (3) inches long and ½ inch wide.

Q Is it a flexible blade?

A It's a cutter.

Q How do you describe the blade, is it sharp both edges?

A Yes, because he once used it to me.

Q How did he do it?

A He wanted to cut my throat.

Q With the same blade?

A Yes, sir, that was the object used when he intimidate me."[38]

In addition, Dra. Natividad Dayan was called by the RTC to testify as an expert witness to assist it in understanding the psyche of a battered person. She had met with Marivic Genosa for five sessions totaling about seventeen hours. Based on their talks, the former briefly related the latter's ordeal to the court *a quo* as follows:

"Q: What can you say, that you found Marivic as a battered wife? Could you in layman's term describe to this Court what her life was like as said to you?

A: What I remember happened then was it was more than ten years, that she was suffering emotional anguish. There were a lot of instances of abuses,

to emotional abuse, to verbal abuse and to physical abuse. The husband had a very meager income, she was the one who was practically the bread earner of the family. The husband was involved in a lot of vices, going out with barkadas, drinking, even womanizing being involved in cockfight and going home very angry and which will trigger a lot of physical abuse. She also had the experience a lot of taunting from the husband for the reason that the husband even accused her of infidelity, the husband was saying that the child she was carrying was not his own. So she was very angry, she was at the same time very depressed because she was also aware, almost like living in purgatory or even hell when it was happening day in and day out." [39]

In cross-examining Dra. Dayan, the public prosecutor not merely elicited, but wittingly or unwittingly put forward, additional supporting evidence as shown below:

"Q In your first encounter with the appellant in this case in 1999, where you talked to her about three hours, what was the most relevant information did you gather?

A The most relevant information was the tragedy that happened. The most important information were escalating abuses that she had experienced during her marital life.

Q Before you met her in 1999 for three hours, we presume that you already knew of the facts of the case or at least you have substantial knowledge of the facts of the case?

A I believe I had an idea of the case, but I do not know whether I can consider them as substantial.

xxx xxx xxx

Q Did you gather an information from Marivic that on the side of her husband they were fond of battering their wives?

A I also heard that from her?

Q You heard that from her?

A Yes, sir.

Q Did you ask for a complete example who are the relatives of her husband that were fond of battering their wives?

A What I remember that there were brothers of her husband who are also battering their wives.

Q Did she not inform you that there was an instance that she stayed in a hotel in Ormoc where her husband followed her and battered [her] several times in that room?

A She told me about that.

Q Did she inform you in what hotel in Ormoc?

A Sir, I could not remember but I was told that she was battered in that room.

Q Several times in that room?

A Yes, sir. What I remember was that there is no problem about being battered, it really happened.

Q Being an expert witness, our jurisprudence is not complete on saying this matter. I think that is the first time that we have this in the Philippines, what

is your opinion?

A Sir, my opinion is, she is really a battered wife and in this kind happened, it was really a self-defense. I also believe that there had been provocation and I also believe that she became a disordered person. She had to suffer anxiety reaction because of all the battering that happened and so she became an abnormal person who had lost she's not during the time and that is why it happened because of all the physical battering, emotional battering, all the psychological abuses that she had experienced from her husband.

Q I do believe that she is a battered wife. Was she extremely battered?

A Sir, it is an extreme form of battering. Yes." [40]

Parenthetically, the credibility of appellant was demonstrated as follows:

"Q And you also said that you administered [the] objective personality test, what . . . [is this] all about?

A The objective personality test is the Millon Clinical Multiaxial Inventory. The purpose of that test is to find out about the lying prone[ne]ss of the person.

Q What do you mean by that?

A Meaning, am I dealing with a client who is telling me the truth, or is she someone who can exaggerate or . . . [will] tell a lie[?]

Q And what did you discover on the basis of this objective personality test?

A She was a person who passed the honesty test. Meaning she is a person that I can trust. That the data that I'm gathering from her are the truth. [41]

The other expert witness presented by the defense, Dr. Alfredo Pajarillo, testified on his Psychiatric Report, [42] which was based on his interview and examination of Marivic Genosa. The Report said that during the first three years of her marriage to Ben, everything looked good — the atmosphere was fine, normal and happy — until "Ben started to be attracted to other girls and was also enticed in[to] gambling[,] especially cockfighting . . . At the same time Ben was often joining his *barkada* in drinking sprees."

The drinking sprees of Ben greatly changed the attitude he showed toward his family, particularly to his wife. The Report continued: "At first, it was verbal and emotional abuses but as time passed, he became physically abusive. Marivic claimed that the viciousness of her husband was progressive every time he got drunk. It was a painful ordeal Marivic had to anticipate whenever she suspected that her husband went for a drinking [spree]. They had been married for twelve years[;] and practically more than eight years, she was battered and maltreated relentlessly and mercilessly by her husband whenever he was drunk."

Marivic sought the help of her mother-in-law, but her efforts were in vain. Further quoting from the Report, "[s]he also sought the advice and help of close relatives and well-meaning friends in spite of her feeling ashamed of what was happening to her. But incessant battering became more and more frequent and more severe. . . .." [43]

From the totality of evidence presented, there is indeed no doubt in the Court's mind that Appellant Marivic Genosa was a severely abused person.

Effect of Battery on Appellant

Because of the recurring cycles of violence experienced by the abused woman,

her state of mind metamorphoses. In determining her state of mind, we cannot rely merely on the judgment of an ordinary, reasonable person who is evaluating the events immediately surrounding the incident. A Canadian court has aptly pointed out that expert evidence on the psychological effect of battering on wives and common law partners are both relevant and necessary. "How can the mental state of the appellant be appreciated without it? The average member of the public may ask: Why would a woman put up with this kind of treatment? Why should she continue to live with such a man? How could she love a partner who beat her to the point of requiring hospitalization? We would expect the woman to pack her bags and go. Where is her self-respect? Why does she not cut loose and make a new life for herself? Such is the reaction of the average person confronted with the so-called 'battered wife syndrome.'" [44]

To understand the syndrome properly, however, one's viewpoint should not be drawn from that of an ordinary, reasonable person. What goes on in the mind of a person who has been subjected to repeated, severe beatings may not be consistent with — nay, comprehensible to — those who have not been through a similar experience. Expert opinion is essential to clarify and refute common myths and misconceptions about battered women. [45]

The theory of BWS formulated by Lenore Walker, as well as her research on domestic violence, has had a significant impact in the United States and the United Kingdom on the treatment and prosecution of cases, in which a battered woman is charged with the killing of her violent partner. The psychologist explains that the cyclical nature of the violence inflicted upon the battered woman immobilizes the latter's "ability to act decisively in her own interests, making her feel trapped in the relationship with no means of escape." [46] In her years of research, Dr. Walker found that "the abuse often escalates at the point of separation and battered women are in greater danger of dying then." [47]

Corroborating these research findings, Dra. Dayan said that "the battered woman usually has a very low opinion of herself. She has . . . self-defeating and self-sacrificing characteristics. . . . [W]hen the violence would happen, they usually think that they provoke[d] it, that they were the one[s] who precipitated the violence[; that] they provoke[d] their spouse to be physically, verbally and even sexually abusive to them." [48]

According to Dra. Dayan, there are a lot of reasons why a battered woman does not readily leave an abusive partner — poverty, self-blame and guilt arising from the latter's belief that she provoked the violence, that she has an obligation to keep the family intact at all cost for the sake of their children, and that she is the only hope for her spouse to change. [49]

The testimony of another expert witness, Dr. Pajarillo, is also helpful. He had previously testified in suits involving violent family relations, having evaluated "probably ten to twenty thousand" violent family disputes within the Armed Forces of the Philippines, wherein such cases abounded. As a result of his experience with domestic violence cases, he became a consultant of the Battered Woman Office in Quezon City. As such, he got involved in about forty (40) cases of severe domestic violence, in which the physical abuse on the woman would sometimes even lead to her loss of consciousness. [50]

Dr. Pajarillo explained that "overwhelming brutality, trauma" could result in posttraumatic stress disorder, a form of "anxiety neurosis or neurologic anxcietism." [51] After being repeatedly and severely abused, battered persons "may believe that they are essentially helpless, lacking power to change their situation. . . . [A]cute battering

incidents can have the effect of stimulating the development of coping responses to the trauma at the expense of the victim's ability to muster an active response to try to escape further trauma. Furthermore, . . . the victim ceases to believe that anything she can do will have a predictable positive effect." [52]

A study [53] conducted by Martin Seligman, a psychologist at the University of Pennsylvania, found that "even if a person has control over a situation, but believes that she does not, she will be more likely to respond to that situation with coping responses rather than trying to escape." He said that it was the cognitive aspect — the individual's thoughts — that proved all-important. He referred to this phenomenon as "learned helplessness." "[T]he truth or facts of a situation turn out to be less important than the individual's set of beliefs or perceptions concerning the situation. Battered women don't attempt to leave the battering situation, even when it may seem to outsiders that escape is possible, because they cannot predict their own safety; they believe that nothing they or anyone else does will alter their terrible circumstances." [54]

Thus, just as the battered woman believes that she is somehow responsible for the violent behavior of her partner, she also believes that he is capable of killing her, and that there is no escape. [55] Battered women feel unsafe, suffer from pervasive anxiety, and usually fail to leave the relationship. [56] Unless a shelter is available, she stays with her husband, not only because she typically lacks a means of self-support, but also because she fears that if she leaves she would be found and hurt even more. [57]

In the instant case, we meticulously scoured the records for specific evidence establishing that appellant, due to the repeated abuse she had suffered from her spouse over a long period of time, became afflicted with the battered woman syndrome. We, however, failed to find sufficient evidence that would support such a conclusion. More specifically, we failed to find ample evidence that would confirm the presence of the essential characteristics of BWS.

The defense fell short of proving all three phases of the "cycle of violence" supposedly characterizing the relationship of Ben and Marivic Genosa. No doubt there were acute battering incidents. In relating to the court *a quo* how the fatal incident that led to the death of Ben started, Marivic perfectly described the tension-building phase of the cycle. She was able to explain in adequate detail the typical characteristics of this stage. However, that single incident does not prove the existence of the syndrome. In other words, she failed to prove that in at least another battering episode in the past, she had gone through a similar pattern.

How did the tension between the partners usually arise or build up prior to acute battering? How did Marivic normally respond to Ben's relatively minor abuses? What means did she employ to try to prevent the situation from developing into the next (more violent) stage?

Neither did appellant proffer sufficient evidence in regard to the third phase of the cycle. She simply mentioned that she would usually run away to her mother's or father's house; [58] that Ben would seek her out, ask for her forgiveness and promise to change; and that believing his words, she would return to their common abode.

Did she ever feel that she provoked the violent incidents between her and her spouse? Did she believe that she was the only hope for Ben to reform? And that she was the sole support of his emotional stability and well-being? Conversely, how dependent was she on him? Did she feel helpless and trapped in their relationship? Did both of them regard death as preferable to separation?

In sum, the defense *failed to elicit from appellant herself her factual experiences and thoughts that would clearly and fully demonstrate the essential characteristics of the syndrome*.

The Court appreciates the ratiocinations given by the expert witnesses for the defense. Indeed, they were able to explain fully, albeit merely theoretically and scientifically, how the personality of the battered woman usually evolved or deteriorated as a result of repeated and severe beatings inflicted upon her by her partner or spouse. They corroborated each other's testimonies, which were culled from their numerous studies of hundreds of actual cases. *However, they failed to present in court the factual experiences and thoughts that appellant had related to them — if at all — based on which they concluded that she had BWS*.

We emphasize that in criminal cases, all the elements of a modifying circumstance must be proven in order to be appreciated. To repeat, the records lack supporting evidence that would establish all the essentials of the battered woman syndrome as manifested specifically in the case of the Genosas.

BWS as Self-Defense

In any event, the existence of the syndrome in a relationship does not in itself establish the legal right of the woman to kill her abusive partner. Evidence must still be considered in the context of self-defense. [59]

From the expert opinions discussed earlier, the Court reckons further that crucial to the BWS defense is the state of mind of the battered woman at the time of the offense [60] — she must have actually feared imminent harm from her batterer and honestly believed in the need to kill him in order to save her life.

Settled in our jurisprudence, however, is the rule that the one who resorts to self-defense must face a *real threat* on one's life; and the peril sought to be avoided must be *imminent and actual*, not merely imaginary. [61] Thus, the Revised Penal Code provides the following requisites and effect of self-defense: [62]

> "Art. 11. *Justifying circumstances*. — The following do not incur any criminal liability:
>
> "1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur;
>
> *First*. Unlawful aggression;
>
> *Second*. Reasonable necessity of the means employed to prevent or repel it;
>
> *Third*. Lack of sufficient provocation on the part of the person defending himself."

Unlawful aggression is the most essential element of self-defense. [63] It presupposes actual, sudden and unexpected attack — or an imminent danger thereof — on the life or safety of a person. [64] In the present case, however, according to the testimony of Marivic herself, there was a sufficient time interval between the unlawful aggression of Ben and her fatal attack upon him. She had already been able to withdraw from his violent behavior and escape to their children's bedroom. During that time, he apparently ceased his attack and went to bed. The reality or even the

imminence of the danger he posed had ended altogether. He was no longer in a position that presented an actual threat on her life or safety.

Had Ben still been awaiting Marivic when she came out of their children's bedroom — and based on past violent incidents, there was a great probability that he would still have pursued her and inflicted graver harm — then, the imminence of the real threat upon her life would not have ceased yet. Where the brutalized person is already suffering from BWS, further evidence of actual physical assault at the time of the killing is not required. Incidents of domestic battery usually have a predictable pattern. To require the battered person to await an obvious, deadly attack before she can defend her life "would amount to sentencing her to 'murder by installment.'" [65] Still, impending danger (based on the conduct of the victim in previous battering episodes) prior to the defendant's use of deadly force must be shown. Threatening behavior or communication can satisfy the required imminence of danger. [66] Considering such circumstances and the existence of BWS, self-defense may be appreciated.

We reiterate the principle that aggression, if not continuous, does not warrant self-defense. [67] In the absence of such aggression, there can be no self-defense — complete or incomplete — on the part of the victim. [68] Thus, Marivic's killing of Ben was not completely justified under the circumstances.

Mitigating Circumstances Present

In any event, all is not lost for appellant. While she did not raise any other modifying circumstances that would alter her penalty, we deem it proper to evaluate and appreciate in her favor circumstances that mitigate her criminal liability. It is a hornbook doctrine that an appeal in a criminal case opens it wholly for review on any issue, including that which has not been raised by the parties. [69]

From several psychological tests she had administered to Marivic, Dra. Dayan, in her Psychological Evaluation Report dated November 29, 2000, opined as follows:

> "This is a classic case of a *Battered Woman Syndrome*. The repeated battering Marivic experienced with her husband constitutes a form of [cumulative] provocation which broke down her psychological resistance and natural self-control. It is very clear that she developed heightened sensitivity to sight of impending danger her husband posed continuously. Marivic truly experienced at the hands of her abuser husband a state of psychological paralysis which can only be ended by an act of violence on her part." [70]

Dr. Pajarillo corroborates the findings of Dra. Dayan. He explained that the effect of "repetitious pain taking, repetitious battering, [and] repetitious maltreatment" as well as the severity and the prolonged administration of the battering is posttraumatic stress disorder. [71] Expounding thereon, he said:

> "Q What causes the trauma, Mr. Witness?
>
> A What causes the trauma is probably the repetitious battering. Second, the severity of the battering. Third, the prolonged administration of battering or the prolonged commission of the battering and the psychological and constitutional stamina of the victim and another one is the public and social support available to the victim. If nobody is interceding, the more she will go to that disorder . . .
>
> xxx xxx xxx
>
> Q You referred a while ago to severity. What are the qualifications in terms of

severity of the posttraumatic stress disorder, Dr. Pajarillo?

A The severity is the most severe continuously to trig[g]er this post[t]raumatic stress disorder is injury to the head, banging of the head like that. It is usually the very very severe stimulus that precipitate this post[t]raumatic stress disorder. Others are suffocating the victim like holding a pillow on the face, strangulating the individual, suffocating the individual, and boxing the individual. In this situation therefore, the victim is heightened to painful stimulus, like for example she is pregnant, she is very susceptible because the woman will not only protect herself, she is also to protect the fetus. So the anxiety is heightened to the end [sic] degree.

Q But in terms of the gravity of the disorder, Mr. Witness, how do you classify?

A We classify the disorder as [acute], or chronic or delayed or [a]typical.

Q Can you please describe this pre[-]classification you called delayed or [atypical]?

A The acute is the one that usually require only one battering and the individual will manifest now a severe emotional instability, higher irritability remorse, restlessness, and fear and probably in most [acute] cases the first thing will be happened to the individual will be thinking of suicide.

Q And in chronic cases, Mr. Witness?

A The chronic cases is this repetitious battering, repetitious maltreatment, any prolonged, it is longer than six (6) months. The [acute] is only the first day to six (6) months. After this six (6) months you become chronic. It is stated in the book specifically that after six (6) months is chronic. The [a]typical one is the repetitious battering but the individual who is abnormal and then become normal. This is how you get neurosis from neurotic personality of these cases of post[t]raumatic stress disorder." [72]

Answering the questions propounded by the trial judge, the expert witness clarified further:

"Q But just the same[,] neurosis especially on battered woman syndrome . . . affects . . . his or her mental capacity?

A Yes, your Honor.

Q As you were saying[,] it . . . obfuscated her rationality?

A Of course obfuscated." [73]

In sum, the cyclical nature and the severity of the violence inflicted upon appellant resulted in "cumulative provocation which broke down her psychological resistance and natural self-control," "psychological paralysis," and "difficulty in concentrating or impairment of memory."

Based on the explanations of the expert witnesses, such manifestations were analogous to an illness that diminished the exercise by appellant of her will power without, however, depriving her of consciousness of her acts. There was, thus, a resulting diminution of her freedom of action, intelligence or intent. Pursuant to paragraphs 9 [74] and 10 [75] of Article 13 of the Revised Penal Code, this circumstance should be taken in her favor and considered as a mitigating factor. [76]

In addition, we also find in favor of appellant the extenuating circumstance of having acted upon an impulse so powerful as to have naturally produced passion and

obfuscation. It has been held that this state of mind is present when a crime is committed as a result of an uncontrollable burst of passion provoked by prior unjust or improper acts or by a legitimate stimulus so powerful as to overcome reason. [77] To appreciate this circumstance, the following requisites should concur: (1) there is an act, both unlawful and sufficient to produce such a condition of mind; and (2) this act is not far removed from the commission of the crime by a considerable length of time, during which the accused might recover her normal equanimity. [78]

Here, an acute battering incident, wherein Ben Genosa was the unlawful aggressor, preceded his being killed by Marivic. He had further threatened to kill her while dragging her by the neck towards a cabinet in which he had kept a gun. It should also be recalled that she was eight months pregnant at the time. The attempt on her life was likewise on that of her fetus. [79] His abusive and violent acts, an aggression which was directed at the lives of both Marivic and her unborn child, naturally produced passion and obfuscation overcoming her reason. Even though she was able to retreat to a separate room, her emotional and mental state continued. According to her, she felt her blood pressure rise; she was filled with feelings of self-pity and of fear that she and her baby were about to die. In a fit of indignation, she pried open the cabinet drawer where Ben kept a gun, then she took the weapon and used it to shoot him.

The confluence of these events brings us to the conclusion that there was no considerable period of time within which Marivic could have recovered her normal equanimity. Helpful is Dr. Pajarillo's testimony [80] that with "neurotic anxiety" — a psychological effect on a victim of "overwhelming brutality [or] trauma" — the victim relives the beating or trauma as if it were real, although she is not actually being beaten at the time. She cannot control "re-experiencing the whole thing, the most vicious and the trauma that she suffered." She thinks "of nothing but the suffering." Such reliving which is beyond the control of a person under similar circumstances, must have been what Marivic experienced during the brief time interval and prevented her from recovering her normal equanimity. Accordingly, she should further be credited with the mitigating circumstance of passion and obfuscation.

It should be clarified that these two circumstances — psychological paralysis as well as passion and obfuscation — did not arise from the same set of facts.

On the one hand, the first circumstance arose from the cyclical nature and the severity of the battery inflicted by the batterer-spouse upon appellant. That is, the repeated beatings over a period of time resulted in her psychological paralysis, which was analogous to an illness diminishing the exercise of her will power without depriving her of consciousness of her acts.

The second circumstance, on the other hand, resulted from the violent aggression he had inflicted on her prior to the killing. That the incident occurred when she was eight months pregnant with their child was deemed by her as an attempt not only on her life, but likewise on that of their unborn child. Such perception naturally produced passion and obfuscation on her part.

Second Legal Issue:

Treachery

There is treachery when one commits any of the crimes against persons by employing means, methods or forms in the execution thereof without risk to oneself arising from the defense that the offended party might make. [81] In order to qualify an act as treacherous, the circumstances invoked must be proven as indubitably as the killing

itself; they cannot be deduced from mere inferences, or conjectures, which have no place in the appreciation of evidence. [82] Because of the gravity of the resulting offense, treachery must be proved as conclusively as the killing itself. [83]

Ruling that treachery was present in the instant case, the trial court imposed the penalty of death upon appellant. It inferred this qualifying circumstances merely from the fact that the lifeless body of Ben had been found lying in bed with an "open, depressed, circular" fracture located at the back of his head. As to exactly how and when he had been fatally attacked, however, the prosecution failed to establish indubitably. Only the following testimony of appellant leads us to the events surrounding his death:

"Q You said that when Ben came back to your house, he dragged you? How did he drag you?

COURT:

The witness demonstrated to the Court by using her right hand flexed forcibly in her front neck)

A And he dragged me towards the door backward.

ATTY. TABUCANON:

Q Where did he bring you?

A Outside the bedroom and he wanted to get something and then he kept on shouting at me that 'you might as well be killed so there will be nobody to nag me'

Q So you said that he dragged you towards the drawer?

A Yes, sir.

Q What is there in the drawer?

A I was aware that it was a gun.

COURT INTERPRETER

(At this juncture the witness started crying)

ATTY. TABUCANON:

Q Were you actually brought to the drawer?

A Yes, sir.

Q What happened when you were brought to that drawer?

A He dragged me towards the drawer and he was about to open the drawer but he could not open it because he did not have the key then he pulled his wallet which contained a blade about 3 inches long and I was aware that he was going to kill me and I smashed his arm and then the wallet and the blade fell. The one he used to open the drawer I saw, it was a pipe about that long, and when he was about to pick-up the wallet and the blade, I smashed him then I ran to the other room, and on that very moment everything on my mind was to pity on myself, then the feeling I had on that very moment was the same when I was admitted in PHILPHOS Clinic, I was about to vomit.

COURT INTERPRETER

(The witness at this juncture is crying intensely).

xxx xxx xxx

Q You said that he dropped the blade, for the record will you please describe this blade about 3 inches long, how does it look like?

A Three (3) inches long and ½ inch wide.

Q It is a flexible blade?

A It's a cutter.

Q How do you describe the blade, is it sharp both edges?

A Yes, because he once used it to me.

Q How did he do it?

A He wanted to cut my throat.

Q With the same blade?

A Yes, sir, that was the object used when he intimidate me.

xxx xxx xxx

ATTY. TABUCANON:

Q You said that this blade fell from his grip, is it correct?

A Yes, because I smashed him.

Q What happened?

A Ben tried to pick-up the wallet and the blade, I pick-up the pipe and I smashed him and I ran to the other room.

Q What else happened?

A When I was in the other room, I felt the same thing like what happened before when I was admitted in PHILPHOS Clinic, I was about to vomit. I know my blood pressure was raised. I was frightened I was about to die because of my blood pressure.

COURT INTERPRETER:

(Upon the answer of the witness getting the pipe and smashed him, the witness at the same time pointed at the back of her neck or the nape).

ATTY. TABUCANON:

Q You said you went to the room, what else happened?

A Considering all the physical sufferings that I've been through with him, I took pity on myself and I felt I was about to die also because of my blood pressure and the baby, so I got that gun and I shot him.

COURT

/to Atty. Tabucanon

Q You shot him?

A Yes, I distorted the drawer."[84]

The above testimony is insufficient to establish the presence of treachery. There is no showing of the victim's position relative to appellant's at the time of the shooting. Besides, equally axiomatic is the rule that when a killing is preceded by an argument or a quarrel, treachery cannot be appreciated as a qualifying circumstance, because the deceased may be said to have been forewarned and to have anticipated aggression from the assailant. [85]

Moreover, in order to appreciate *alevosia*, the method of assault adopted by the aggressor must have been consciously and deliberately chosen for the specific purpose of accomplishing the unlawful act without risk from any defense that might be put up by the party attacked. [86] There is no showing, though, that the present appellant intentionally chose a specific means of successfully attacking her husband without any risk to herself from any retaliatory act that he might make. To the contrary, it appears that the thought of using the gun occurred to her only at about the same moment when she decided to kill her batterer-spouse. In the absence of any convincing proof that she consciously and deliberately employed the method by which she committed the crime in order to ensure its execution, this Court resolves the doubt in her favor. [87]

Proper Penalty

The penalty for parricide imposed by Article 246 of the Revised Penal Code is *reclusion perpetua* to death. Since two mitigating circumstances and no aggravating circumstance have been found to have attended the commission of the offense, the penalty shall be lowered by one (1) degree, pursuant to Article 64 of paragraph 5 [88] of the same Code. [89] The penalty of *reclusion temporal* in its medium period is imposable, considering that two mitigating circumstances are to be taken into account in reducing the penalty by one degree, and no other modifying circumstances were shown to have attended the commission of the offense. [90] Under the Indeterminate Sentence Law, the minimum of the penalty shall be within the range of that which is next lower in degree — *prision mayor* — and the maximum shall be within the range of the medium period of *reclusion temporal*.

Considering all the circumstances of the instant case, we deem it just and proper to impose the penalty of *prision mayor* in its minimum period, or six (6) years and one (1) day in prison as minimum; to *reclusion temporal* in its medium period, or 14 years 8 months and 1 day as maximum. Noting that appellant has already served the minimum period, she may now apply for and be released from detention on parole. [91]

Epilogue

Being a novel concept in our jurisprudence, the battered woman syndrome was neither easy nor simple to analyze and recognize vis-a-vis the given set of facts in the present case. The Court agonized on how to apply the theory as a modern-day reality. It took great effort beyond the normal manner in which decisions are made — on the basis of existing law and jurisprudence applicable to the proven facts. To give a just and proper resolution of the case, it endeavored to take a good look at studies conducted here and abroad in order to understand the intricacies of the syndrome and the distinct personality of the chronically abused person. Certainly, the Court has learned much. And definitely, the solicitor general and appellant's counsel, Atty. Katrina Legarda, have helped it in such learning process.

While our hearts empathize with recurrently battered persons, we can only work within the limits of law, jurisprudence and given facts. We cannot make or invent them. Neither can we amend the Revised Penal Code. Only Congress, in its wisdom, may do so.

The Court, however, is not discounting the possibility of self-defense arising from the battered woman syndrome. We now sum up our main points. *First*, each of the phases of the cycle of violence must be proven to have characterized at least two battering episodes between the appellant and her intimate partner. *Second*, the final

acute battering episode preceding the killing of the batterer must have produced in the battered person's mind an actual fear of an imminent harm from her batterer and an honest belief that she needed to use force in order to save her life. *Third*, at the time of the killing, the batterer must have posed probable — not necessarily immediate and actual — grave harm to the accused, based on the history of violence perpetrated by the former against the latter. Taken altogether, these circumstances could satisfy the requisites of self-defense. Under the existing facts of the present case, however, not all of these elements were duly established.

WHEREFORE, the conviction of Appellant Marivic Genosa for parricide is hereby AFFIRMED. However, there being two (2) mitigating circumstances and no aggravating circumstance attending her commission of the offense, her penalty is REDUCED to six (6) years and one (1) day of *prision mayor* as minimum; to 14 years, 8 months and 1 day of *reclusion temporal* as maximum.

Inasmuch as appellant has been detained for more than the minimum penalty hereby imposed upon her, the director of the Bureau of Corrections may immediately RELEASE her from custody upon due determination that she is eligible for parole, unless she is being held for some other lawful cause. Costs *de oficio*.

SO ORDERED.

Puno, Carpio, Corona, Carpio Morales, Callejo, Sr., Azcuna and *Tinga, JJ.*, concur.

Vitug and *Quisumbing, JJ.*, concur in the result.

Davide, Jr., C.J., Sandoval-Gutierrez and *Austria-Martinez, JJ .,* join Mr. Justice Santiago in his dissent.

Ynares-Santiago, J., see dissenting opinion.

Footnotes

1. Penned by Judge Fortunito L. Madrona.
2. Assailed Decision, p. 17; *rollo*, p. 43.
3. Signed by Provincial Prosecutor I Rosario D. Beleta.
4. *Rollo*, p. 9.
5. Atty. Joventino Isidro. The accused was also represented later by Atty. Gil Marvel P. Tabucanon.
6. Records, p. 65.
7. Appellee's Brief, pp. 5-13; *rollo*, pp. 435-443. Signed by Solicitor General Alfredo L. Benipayo, Assistant Solicitor General Karl B. Miranda, and Solicitor Ma. Ana C. Rivera.
8. Spelled as "Basobas" in some parts of the record.
9. Appellant's Brief, pp. 10-71; *rollo*, pp. 284-345; signed by Atty. Katrina Legarda. Citations omitted.
10. Qualifying her expertise, Dra. Dayan stated that she had been a practising clinical

psychologist for over twenty (20) years. Currently, she is a professor at the De La Salle University. Prior thereto, she was the head of the Psychology Department of the Assumption College; a member of the faculty of Psychology of the Ateneo de Manila University and St. Joseph's College; and the counseling psychologist of the National Defense College. She obtained her bachelor's degree in psychology from the University of the Philippines (UP), her Master of Arts in Clinical Counseling from Ateneo, and her Ph.D. also from UP. She is the secretary of the International Council of Psychologists, comprised of members from about 68 countries; and was the past president of the Psychological Association of the Philippines. She is a member of the Forensic Psychology Association, the American Psychological Association, and the ASEAN Counseling Association. She authored the book entitled *Energy Global Psychology* (together with Drs. Allen Tan and Allan Bernardo). Dra. Dayan also lectures at the Philippine Judicial Academy, recently on the socio-demographic and psychological profiles of families involved in domestic violence cases. On the subject, she had conducted, for over a period of ten years, research on the profiles of about 500 families involved in domestic violence.

11. Dr. Pajarillo obtained his medical degree from the University of Santo Tomas and has been in the practice of psychiatry for thirty-eight years. He honed his practice in psychiatry and neurology during his stint with the Veterans Memorial Medical Centre. Thereafter, he was called to active duty in the Armed Forces of the Philippines and was assigned at the V. Luna Medical Center for twenty-six years. He was a diplomate of the Philippine Board of Psychiatry; and a fellow of the Philippine Board of Psychiatry and the Philippine Psychiatry Association. He was also a member of the World Association of Military Surgeons; the Quezon City Medical Society; the Cagayan Medical Society; and the Philippine Association of Military Surgeons. He authored *The Comparative Analysis of Nervous Breakdown in the Philippine Military Academy from the Period 1954-1978*, which was presented twice in international congresses. He also authored "The Mental Health of the Armed Forces of the Philippines 2000," which was likewise published internationally and locally. On a Parke-Davis grant, he published a medical textbook on the use of Prasepam; on an ER Squibb grant, he was the first to use Enanthate (siquiline); and he published the use of the drug Zopiclom in 1985-86. Prior to his retirement from government service, he obtained the rank of Brigadier General. (TSN, February 9, 2001, pp. 6-9; Exhibits "F"-"F-9"-Appellant (Bio-Data of Dr. Pajarillo).

12. This case was deemed submitted for resolution on April 4, 2003, upon receipt by this Court of appellee's Brief. Appellant's Brief was filed on December 2, 2002.

13. Appellant's Brief, *rollo*, pp. 346-347. Original in upper case.

14. *Caca v. Court of Appeals and People*, 341 Phil. 114, July 7, 1997; *People v. Paragua*, 326 Phil. 923, May 24, 1996; *People v. Tanoy*, 387 Phil. 750, May 12, 2000; *People v. Magaro*, 353 Phil. 862, July 2, 1998.

15. §15 of Art. VIII of the Constitution provides:

"Sec. 15.(1) All cases or matters filed after the effectivity of this Constitution must be decided or resolved within . . . three months for all other lower courts.

"(2) A case or matter shall be deemed submitted for decision or resolution upon the filing of the last pleading, brief, or memorandum required by the Rules of Court or by the court itself."

16. 333 Phil. 20, December 2, 1996, per Puno, J.

17. TSN, September 23, 1997, pp. 11-12 & 14; TSN, November 12, 1997, pp. 29 & 33.

18. TSN, August 6, 1998, pp. 7-8.

19. *People v. Sarabia*, 376 Phil. 32, October 29, 1999.

20. Appellee's Brief, p. 26, citing *People v. De los Reyes*, 229 SCRA 439, January 21, 1994. *See also* §5 of Rule 110 of the New Rules of Criminal Procedure and *People v. Vergara*, 221 SCRA 560, April 28, 1993.

21. *People v. Rabanal*, 349 SCRA 655, January 19, 2001; *People v. Cario*, 351 Phil. 644, March 31, 1998; *People v. Baniel*, 341 Phil. 471, July 15, 1997.

22. *People v. Peralta*, 350 SCRA 198, January 24, 2001.

23. See *Ibn-Tamas v. US*, 477 A.2d 626, 1979 DC App. LEXIS 457; *McLuckie v. Abbott*, 337 F.3d 1193; 2003 US App. LEXIS 15240; *DePetris v. Kuykendall*, 239 F.3d 1057; 2001 US App. LEXIS 1062; *State v. Kelley*, 478 A.2d 364 (1984); *McMaugh v. State*, 612 A.2d 725 (RI 1992); *State v. Frost*, 577 A.2d 1282 (NJ Super. Ct. App. Div. 1990); *State v. Gallegos*, 719 P.2d 1268 (NM Ct. App. 1986); *R. v. Lavallee* (1990) 1 SCR; *Reilly v. The Queen*, (1984) 2 SCR 396.

24. Symposium on Domestic Violence. Article: "Providing Legal Protection for Battered Women: An Analysis of State Statutes and Case Law," LEXSEE 21 Hofstra L. Rev. 801 (Summer 1993), 1161.

25. *McMaugh v. State*, 612 A.2d 725, 731, quoting L. Walker, *The Battered Woman*, at XV (1979).

26. *People v. Torres*, 128 Misc 2d, 129, 488 NYS2d 358; *McMaugh v. State*, 612 A.2d 725.

27. Walker, Lenore, *The Battered Woman Syndrome* (1984), pp. 95-96. Dr. Walker, a clinical psychologist, is an acknowledged expert on BWS in the United States. She is a pioneer researcher in the field. In this book, she reports the results of her study involving 400 battered women. Her research was designed to test empirically the theories expounded in her earlier book, *The Battered Woman* (1979). In 1989, she also wrote *Terrifying Love: Why Battered Women Kill and How Society Responds*

28. Walker, *Terrifying Love: Why Battered Women Kill and How Society Responds* (Harper Perennial, 1989), p. 42.

29. *Ibid.* See also *R. v. Lavallee, supra*; *Ibn-Tamas v. US, supra*.

30. *Ibid*.

31. *Ibid*.

32. TSN, August 6, 1998, pp. 12-19.

33. Exhibits 1 & 1-A; records, p. 44.

34. TSN, August 5, 1998, pp. 14-23, 27-31.

35. TSN, December 16, 1997, pp. 15-17 & 20-21.

36. TSN, May 22, 1998, pp. 2-20.

37. TSN (Arturo Basobas), July 21, 1997, pp. 13, 15 & 21; TSN (Jose Barrientos), December 15, 1997, pp. 17-20; TSN (Junnie Barrientos), December 15, 1997, pp. 35-37; TSN (Ecel Arano), May 22, 1998, pp. 10 & 20.

38. TSN, August 6, 1998, pp. 19-32.

39. TSN, January 15, 2001, pp. 37-38.

40. *Id.*, pp. 51-53.

41. *Id.*, p. 36.

42. Exhibits "G"-"G-3"-Appellant.

43. *Ibid*.

44. In *R. v. Lavallee, supra*.

45. *Ibid*.

46. Fiona E. Raitt and M. Suzanne Zeedyk, The Implicit Relation of Psychology and Law: Women and Syndrome Evidence, pp. 66-67 (Exh. D).

47. Walker, *Terrifying Love*, p. 47.

48. TSN, January 15, 2001, p. 18.

49. *Id.*, p. 20.

50. TSN, February 9, 2001, pp. 11-13.

51. *Id.*, p. 14.

52. Walker, *Terrifying Love*, p. 48.

53. *Id.*, pp. 49-50.

54. *Ibid*.

55. Dr. Lenore Walker's testimony before the court in *Ibn-Tamas*, *supra*.

56. Psychologist Nancy Kaser-Boyd testifying as an expert on the battered woman syndrome in *Depetris, supra*.

57. Dr. Lenore Walker's testimony before the court in *Ibn-Tamas, supra*.

58. Her biological parents lived separately.

59. *State v. Kelly*, 655 P.2d 1202, 1203 (1982).

60. "The case would rise or fall on whether . . . [appellant] acted in actual fear of imminent harm from her husband when she shot [or injured] him . . . ." *Depetris v. Kuykendall, supra*. See also *People v. Torres*, 128 Misc 2d 129, 488 NYS.2d 358.

61. *People v. PO3 Langres*, 375 Phil. 240, 258, October 13, 1999.

62. See also *People v. Plazo*, 350 SCRA 433, January 29, 2001; *People v. Cario*, 351 Phil. 644, March 31, 1998; *People v. Timblor*, 348 Phil. 847, January 27, 1998.

63. *People v. Saul*, 372 SCRA 636, December 19, 2001.

64. *People v. Galapin*, 355 Phil. 212, July 31, 1998; *People v. Panes*, 343 Phil. 878, August 29, 1997.

65. *State v. Gallegos*, 104 NM 247, 719 P.2d 1268, citing Eber, *The Battered Wife's Dilemma: To Kill or To Be Killed*, 32 Hasting LJ 895, 928 (1981).

66. *Id.*, citing *State v. Walker*, 40 Wash. App. 658, 700 P.2d 1168 (1985).

67. *People v. Saul, supra*.

68. *People v. Bato*, 348 SCRA 253, December 15, 2000.

69. *People v. Maquiling*, 368 Phil. 169, June 21, 1999; *People v. Discalsota*, GR No. 136892, April 11, 2002.

70. Exhibits "B" et seq. — Appellant, p. 10.

71. TSN, February 9, 2001, p. 19.

72. *Id.*, pp. 15-17.

73. *Id.*, p. 54.

74. "Art. 13. *Mitigating Circumstances*. — The following are mitigating circumstances:

xxx xxx xxx

"9. Such illness of the offender as would diminish the exercise of the will-power of the offender without however depriving him of the consciousness of his acts."

75. "10. And, finally, any other circumstances of a similar nature and analogous to those above mentioned."

76. See *People v. Javier*, 370 Phil. 596, July 28, 1999; *People v. Amit*, 82 Phil. 820, February 15, 1949; *People v. Francisco*, 78 Phil. 694, July 16, 1947; *People v. Balneg*, 79 Phil. 805, January 9, 1948.

77. *People v. Lobino*, 375 Phil. 1065, October 28, 1999; *People v. Valles*, 334 Phil. 763, January 28, 1997.

78. I Reyes, *The Revised Penal Code*, p. 272 (1998).

79. According to Dr. Lenore Walker, batterers commonly "escalate their abusiveness" when their wives are pregnant.

80. *Id.*, pp. 17-18.

81. *People v. Cabande*, 381 Phil. 889, February 8, 2000.

82. *People v. Llanes*, 381 Phil. 733, February 4, 2000.

83. *People v. Albao*, 383 Phil. 873, March 2, 2000; *People v. Aguilar*, 354 Phil. 360, July 10, 1998.

84. TSN, August 6, 1998, pp. 26-32.

85. *People v. Buluran*, 382 Phil. 364, February 15, 2000; *People v. Ereño*, 383 Phil. 30, February 22, 2000.

86. *People v. Cañete*, 44 Phil. 478, February 5, 1923; *People v. Narvaez*, 206 Phil. 314, April 20, 1983.

87. *People v. Aguilar, supra*.

88. "Art. 64. Rules for the application of penalties which contain three periods.

xxx xxx xxx

"5. When there are two or more mitigating circumstances and no aggravating circumstances are present, the court shall impose the penalty next lower to that prescribed by law, in the period that it may deem applicable, according to the number and nature of such circumstances."

xxx xxx xxx

89. *People v. Narvaez*, 206 Phil. 314, April 20, 1983; *Guevarra v. Court of Appeals*, 187 SCRA 484, July 16, 1990.

90. *Basan v. People*, 61 SCRA 275, November 29, 1974.

91. §5, Indeterminate Sentence Law (Act 4103, as amended).

Dissenting Opinion

YNARES-SANTIAGO, J.:

In convicting Marivic Genosa of the crime of parricide, our esteemed colleague Mr. Justice Artemio V. Panganiban found that there was no factual basis to conclude that Marivic was suffering from "Battered Woman Syndrome" (BWS) at the time she took the life of her husband. With due respect, I register my dissent.

The novel theory of "Battered Woman Syndrome" is recognized in foreign jurisprudence as a form of self-defense. It operates upon the premise that a woman who has been cyclically abused and controlled over a period of time develops a fearful state of mind. Living in constant danger of harm or death, she knows that future beatings are almost certain to occur and will escalate over time. Her intimate knowledge of the violent nature of her batterer makes her alert to when a particular attack is forthcoming, and when it will seriously threaten her survival. Trapped in a cycle of violence and constant fear, it is not unlikely that she would succumb to her helplessness and fail to perceive possible solutions to the problem other than to injure or kill her batterer. She is seized by fear of an existing or impending lethal aggression and thus would have no opportunity beforehand to deliberate on her acts and to choose a less fatal means of eliminating her sufferings. [1]

As exhaustively discussed in the *ponencia*, the "Battered Woman Syndrome" has three phases, to wit: (1) the tension-building phase, where minor batterings in the form of verbal or slight physical abuse occurs. Here, the woman tries to pacify the batterer through a show of kind, nurturing behavior; or by simply staying out of his way; (2) the acute battering incident phase which is characterized by brutality, destructiveness and sometimes, death. The battered woman usually realizes that she cannot reason with him and that resistance would only exacerbate her condition; and (3) the tranquil period,

where the couple experience a compound relief and the batterer may show a tender and nurturing behavior towards his partner.

Contrary to the findings in the *ponencia*, the defense was able to establish the occurrence on more than one occasion of the "tension-building phase" of the cycle. The various testimonies of appellant's witnesses clearly reveal that she knew exactly when she would once again be subjected to acute battery. Her cousin, Ecel Arano, testified that she often asked the latter to sleep in her house as she was afraid every time her husband came home drunk. Clearly, whenever appellant requested for Arano's company, she was experiencing a tension-building phase. The barangay captain, Panfilo Tero, also testified that appellant sought his help two months before she killed her husband, again demonstrating that she was in the tension-building phase and was attempting to prevent another incident of acute battery. Appellant presented evidence to prove that the tension-building phase would occur whenever her husband would go out looking for other women, would lose at cockfights or would come home drunk. She often tried to ignore her husband's attitude or, as testified to by some witnesses for the prosecution, even shouted back, fought off or even injured her husband during the tension-building phase, if only to prevent the onset of acute battery.

Appellant was able to perfectly describe the tension-building phase of the cycle immediately prior to the death of her husband, *i.e.*, when she knew or felt that she was going to be killed by the deceased. She could not possibly have testified with clarity as to prior tension-building phases in the cycle as she had never tried to kill her husband before this time.

It was shown by the testimonies of appellant and even witnesses for the prosecution that appellant would seek shelter in her mother's or her father's house after an acute battering incident, after which would begin the process of begging for forgiveness, promises of change in behavior and return to the conjugal home, only for the same cycle to begin all over again.

To require appellant to prove the state of mind of the deceased, as seems to be required in the*ponencia*, would mean that no person would ever be able to prove self-defense in a battered woman case. Appellant could not possibly prove whether the deceased felt provoked into battering by any act or omission of appellant. She cannot possibly prove that she felt herself to be the sole support of the deceased's emotional stability and well-being. Nevertheless, appellant felt trapped and helpless in the relationship as, in the end, she resorted to killing her husband as no one could or did help her, whether out of fear or insensitivity, during the violent marriage she endured.

The "acute battering incident stage" was well demonstrated by the severe beatings suffered by Marivic in the hands of the deceased as well as the threats to kill her using a bolo or a cutter. [2] The physical abuses occurred at least 3 times a week in the 11 miserable years of their marriage, [3] six incidents of which were documented by the 1990-1995 medical records of Marivic. They included, among others, hematoma, contusion, and pain on the breasts; multiple contusions and trauma on the different parts of her body even during her pregnancy in 1995. [4] The tranquil period underwent by Marivic was shown by the repeated "kiss and make-up" episodes of their relationship. On more than 5 occasions, Marivic ran to her parents' house after violent fights with the deceased only to forgive the latter every time he would fetch her and promise to change. [5]

All these recurring phases of cycle of violence, repentance and forgiveness developed a trauma in the mind of Marivic making her believe that a forthcoming attack

from the deceased would cause her death. This state of mind of Marivic was revealed in her testimony given way back in 1998, before she was examined by experts on BWS. Unaware of the significance of her declarations, she candidly narrated how she felt immediately before she killed the deceased, thus —

ATTY. TABUCANON

Q So you said that he dragged you towards the drawer?

A Yes, sir.

Q What is there in the drawer?

A I was aware that it was a gun.

xxx xxx xxx

Q What happened when you were brought to the drawer?

A He dragged me towards the drawer and he was about to open the drawer but he could not open it because he did not have the key. [T]hen he pulled his wallet which contained a blade about 3 inches long and I was aware that he was going to kill me and I smashed his arm and then the wallet and the blade fell. The one he used to open the drawer I saw, it was a pipe about that long, and when he was about to pick-up the wallet and the blade, I smashed him then I ran to the room, and on that very moment everything on my mind was pity on myself, then the feeling I had on that very moment was the same when I was admitted in PHILPHOS Clinic, I was about to vomit.

xxx xxx xxx [6]

Q What else happened?

A When I was in the room, I felt the same thing like what happened before I was admitted in PHILPHOS Clinic, I was about to vomit. I know my blood pressure has raised. I was frightened I was about to die because of my blood pressure.

xxx xxx xxx

A Considering all the physical sufferings that I've been through him, I took pity on myself and I felt I was about to die also because of my blood pressure and the baby, so I got the gun and shot him. [7]

It must be stressed that the defense of "Battered Woman Syndrome" was not raised by Marivic before the lower court but only here on automatic review. This makes the foregoing testimony more worthy of great weight and credence considering that the same could not have been cunningly given to suit or conform to the profile of a battered woman.

Moreover, there was indeed basis for Marivic to fear death because of her medical history. Dr. Dino Caing testified that he treated Marivic for hypertension due to domestically related emotional stress on 23 separate occasions. The latest one was on November 6, 1995 when she suffered from severe hypertension and had a blood pressure of 180/120 on the 8th month of her pregnancy. [8]

Furthermore, Dr. Natividad A. Dayan, a clinical psychologist and an expert on

BWS who examined Marivic, assessed the effects of the repeated violence on the latter as follows:

A What I remember . . . was it was more than ten years that she was suffering from emotional anguish. There were a lot of instance of abuses, . . . emotional abuse . . . verbal abuse and . . . physical abuse. The husband had very meager income, she was the one who was practically the bread earner of the family. The husband was involved in a lot of vices, going out with *barkadas*, drinking, even womanizing, being involved in cockfighting and in going home very angry which . . . triggered a lot of physical abuse. She also had the experience of taunting from the husband for the reason that the husband even accused her of infidelity, the husband was saying that the child she was carrying was not his own. So she was very angry, she was at the same time very depressed because she . . . [felt] almost like living in purgatory or even in hell when it was happening day in and day out.

xxx xxx xxx

Q And what was it that triggered . . . that tragedy in your opinion?

A I think for several weeks, she was already having all those tensions, all those anxieties, they were not enough, that the husband was even going to cockfighting . . .

A She was angry with him, he was angry with her and I think he dragged her and even spun her around. She tried to fight him so there was a lot of fight and when she was able to escape, she went to another room and she locked herself with the children. And when the husband was for a while very angry he calms down then and then (sic). But I remember before that the husband was looking for the gun and I think he was not able to open the cabinet because she had the key. So during that time, I remember, that she was very much afraid of him, so when the husband calmed down and he was asleep, all she was concerned was to end up her misery, to save her child which she was carrying and to save her two children. I believe that somehow she's not rational. [9]

xxx xxx xxx

PROS. TRUYA

Q Mrs. Witness, being an expert witness, giving more the facts and circumstances on this case that the books you studied in the expertise in line and in the 77 hour contact with appellant Mrs. Genosa, could you say that this is not ordinary self-defense but a survival on her part?

A Yes, sir.

Q To what she did to her husband (sic)?

A Yes, sir this is not an ordinary self-defense, but this [is] a need to survive, a need to survive with her two sons and [the] child she's bringing.

Q Had she not able to kill her husband, would she still be in the very short moment with the victim (sic)?

A If she did not do that she believes that she will be the one who would be

killed. [10]

There is no doubt therefore that Marivic was afflicted with the "Battered Woman Syndrome" and that it was an apprehension of death and the instinct to defend her and her unborn child's life that drove her to kill her husband.

The *ponente* further refused to sustain the self-defense proffered by Marivic because there was allegedly no aggression or danger posed on her life by the victim at the time she attacked the latter. Again, I beg to disagree.

Traditionally, in order that self-defense may be appreciated, the unlawful aggression or the attack must be imminent and actually in existence. This interpretation must, however, be re-evaluated *vis-a-vis* the recognized inherent characteristic of the psyche of a person afflicted with the "Battered Woman Syndrome." As previously discussed, women afflicted by this syndrome live in constant fear for their life and thus respond in self-defense. Once BWS and an impending danger based on the conduct of the deceased in previous battering episodes are established, actual occurrence of an assault is no longer a condition *sine qua non* before self-defense may be upheld. *Threatening behavior or communication can satisfy the required imminence of danger*. As stated in the *ponencia*, to require the battered person to await an obvious deadly attack before she can defend her life would amount to sentencing her to murder by installment.

In the case at bar, the cycle of violence perpetrated by the deceased, which culminated in the physical assaults and an attempt to shoot Marivic when she was 8 months pregnant, took the place of unlawful aggression, thus entitling her to a complete self-defense even if there was no actual employment of violence by the deceased at the time of the killing. Marivic had every reason to believe that the deceased would kill her that night not only because the latter was verbally threatening to kill her while attempting to get a gun from the drawer, but more importantly because the deceased wounded her on the wrist with a bolo, and because of the deceased's previous conduct of threatening to cut her throat with a cutter which he kept in his wallet. Quoted hereunder are the relevant testimonies of Marivic —

A When I arrived home, he was already in his usual behavior.

xxx xxx xxx

A He was drunk again, he was yelling in his usual unruly behavior.

xxx xxx xxx

A He was nagging . . . me at that time and I just ignore[d] him because I want to avoid trouble for fear that he will beat me again. Perhaps he was disappointed because I just ignore[d] hi[s] provocation and he switch off the light and I said to him, "why did you switch off the light when the children were there." At that time I was also attending to my children who were doing their assignments. He was angry with me for not answering his challenge, so he went to the kitchen and g[o]t a bolo and cut the antenna wire to stop me from watching television.

xxx xxx xxx

A He switch[ed] off the light and the children were shouting because they were scared and he was already holding a bolo.

Q How do you describe this bolo?

A 1½ feet.

xxx xxx xxx

Q You said the children were scared, what else happened as Ben was carrying that bolo?

A He was about to attack me so I ran to the room.

Q What do you mean that he was about to attack you?

A When I attempt[ed] to run he held my hands and he whirled me and I fell [on] the bedside. 11

xxx xxx xxx

COURT

To the witness

xxx xxx xxx

Q The bolo that you said which Ben was holding at that time, [was] it a bolo or a knife?

A Bolo.

Q Were you wounded or were there inflictions on your body when he was holding and trying to frighten you [with] that bolo?

A No, only here.

COURT INTERPRETER

(The witness pointed to her wrist).

COURT

To the witness

Q You were demonstrating a motion, whirling, did your husband really whirl you?

A Yes, your Honor.

Q How did he whirl you?

A Whirled around.

Q Just like spinning.

xxx xxx xxx

Q Where did he whirl you, was it inside the bedroom or outside?

A In our bedroom.

Q Then after the whirling what happened?

A He kicked my ass and then I screamed.12

xxx xxx xxx

Q You screamed for help and he left, do you know where he was going?

A Outside perhaps to drink more.

Q When he left what did you do . . .?

A I packed all his clothes.

Q What was your reason in packing his clothes?

A I wanted him to leave us. 13

xxx xxx xxx

A I was frightened that my husband would hurt me, so I packed all his things then on the following day I will leave, I was afraid and I want to make sure I would deliver my baby safely. 14

xxx xxx xxx

A After a couple of hours, he went back again and got angry with me for packing his clothes, then he dragged me again outside of the bedroom holding my neck.

ATTY. TABUCANON

Q You said that when Ben came back to your house, he dragged you? How did he drag . . . you?

COURT INTERPRETER

(The witness demonstrated to the Court by using her right hand flexed forcibly in her front neck)

A And he dragged me towards the door backwards.

ATTY. TABUCANON

Q Where did he bring you?

A Outside the bedroom and he wanted to get something and then he kept shouting at me that "you might as well be killed so there will be nobody to nag me."

Q So you said that he dragged you towards the drawer?

A Yes, sir.

Q What is there in the drawer?

A I was aware that it was a gun.

xxx xxx xxx

Q What happened when you were brought to the drawer?

A He dragged me towards the drawer and he was about to open the drawer but he could not open it because he did not have the key. [T]hen he pulled his wallet which contained a blade about 3 inches long and I was aware

that he was going to kill me and I smashed his arm and then the wallet and the blade fell. The one he used to open the drawer I saw, it was a pipe about that long, and when he was about to pick-up the wallet and the blade, I smashed him then I ran to the room, and on that very moment everything on my mind was pity on myself, then the feeling I had on that very moment was the same when I was admitted in PHILPHOS Clinic, I was about to vomit.

xxx xxx xxx

Q You said that he dropped the blade, for the record will you please describe this blade about 3 inches long, how does it look like?

A Three (3) inches long and ½ inch wide.

Q Is it a flexible blade?

A It's a cutter.

Q How do you describe the blade, is it sharp both edges?

A Yes, because he once used it to me.

Q How did he do it?

A He wanted to cut my throat.

Q With the same blade?

A Yes sir, that was the object used when he intimidate me.[15]

RE-DIRECT BY ATTY. TABUCANON

Q In other words, there were two (2) incidents, the first incident and then he left and then two (2) hours after he came back?

A Yes, sir.

Q And the whirling happened in the first incident?

A Yes, sir.

Q And the dragging with arms flexed in her neck and on that blade happened on the second incident (sic)?

A Yes, sir.

xxx xxx xxx

COURT

To the witness

Q Why, what is that blade about?

A A cutter about 3 inches long.

Q Who used that?

A Ben.

Q He used that on you?

A He scared me on that (sic).

xxx xxx xxx

Q But he did not hit you with that?

A Yes, because I managed to run every time he scared (sic).[16]

There are many things which cannot be proved by direct evidence. One of this is state of mind. In the case at bar, there is more than sufficient physical evidence presented by the appellant from which her mental state can be inferred. The prosecution did not object to the presentation of these physical and testimonial pieces of evidence, namely, the medical records of 23 instances of domestic violence-related injuries and the testimonies of neighbors, cousins and even the barangay captain. Indeed, no person would endure 23 reported instances of beatings if she were planning to kill her spouse in the first place. The majority need not worry that women around the country will mastermind the killings of their husbands and then use this Decision to bolster their attempts to employ the BWS defense.

Moreover, as found in the *ponencia*, appellant should be allowed the mitigating circumstance of passion and obfuscation. This, at the very least, supports a finding that the acts of violence and battery committed by the deceased were illegal and unlawful and were committed immediately before appellant could recover her natural equanimity. But what is the natural equanimity of a battered woman? Appellant was not a normal married woman. She can never be in a state of natural equanimity as she was in a constant state of alertness and hypersensitivity to the next phase of acute battery. The esteemed *ponente* also correctly found that the appellant acted with diminished will-power. However, he failed to go further. In the case of *People v. Javier*, [17] it was held:

> Since accused-appellant has already admitted to the killing, it is incumbent upon him to prove the claimed mitigating circumstance of illness. In this case, however, aside from the testimony of the accused that his mind went blank when he killed his wife due to loss of sleep, no medical finding was presented regarding his mental condition at the time of the killing. This Court can hardly rely on the bare allegations of accused-appellant, nor on mere presumptions and conjectures. No clear and convincing evidence was shown that accused-appellant was suffering an illness which diminished his exercise of will-power at the time of the killing. [18]

In the case at bar, appellant was allowed and did in fact present clear and convincing evidence that she was a battered woman for 13–14 years and that she suffered from the "Battered Woman Syndrome". Expert testimony was presented and admitted to this effect, such that the *ponente* ably discussed the causes and effects of the syndrome. To ignore the testimony and the evidence thus presented is to make impossible the proof of mental state. Evidence as to the mental state need not be also "beyond reasonable doubt."

Verily, the requirement of threatening behavioral pattern of the batterer in previous violent episodes was sufficiently satisfied in the present case. This, juxtaposed to Marivic's affliction with BWS justified the killing of the deceased. The danger posed or created in her mind by the latter's threats using bladed weapons, bred a state of fear, where under the circumstances, the natural response of the battered woman would be to defend herself even at the cost of taking the life of the batterer.

The *ponencia's* acknowledgment of "Battered Woman Syndrome" as a valid form of self-defense, is a noble recognition of the plight of, and a triumph for battered women who are trapped in a culture of silence, shame, and fear. This would however be an empty victory if we deliberately close our eyes to the antecedents of this case. The facts are simple. Marivic was suffering from the "Battered Woman Syndrome" and was defending herself when she killed her husband. Her acquittal of the charge of parricide is therefore in order.

IN VIEW WHEREOF, I vote to ACQUIT Marivic Genosa.

Footnotes

1. *People v. Genosa*, G.R. No. 135981, 29 September 2000, 341 SCRA 493, 498.
2. TSN, August 6, 1998, pp. 22-30; 47-49; 50-51.
3. *Id.*, pp. 8-13, 18.
4. Exhibit 1, Compilation of Exhibits, p. 44.
5. TSN, August 6, 1998, pp. 12-13; 36-37.
6. *Id.*, pp. 27-28.
7. *Id.*, pp. 31-32.
8. TSN, August 5, 1998, pp. 21-31.
9. TSN, January 15, 2001, pp. 38-40.
10. *Id.*, pp. 74-75.
11. TSN, August 6, 1998, pp. 22-25.
12. *Id.*, pp. 47-49.
13. *Id.*, pp. 25-26.
14. *Id.*, p. 34.
15. *Id.*, pp. 26-30.
16. *Id.*, pp. 50-51.
17. G.R. No. 130654, 28 July 1999.
18. *Supra*, at 581-582.

EN BANC

[G.R. No. 43588. November 7, 1935.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **NATIVIDAD LUAGUE and WENCESLAO ALCANSARE**, *defendants-appellants*.

D E C I S I O N

RECTO, *J* :

The spouses Wenceslao Alcansare and Natividad Luague having been charged with homicide in the Court of First Instance of Occidental Negros and sentenced, the former to the penalty of from eight years and one day of *prision mayor,* as the minimum, to fourteen years, eight months and one day of *reclusion temporal*, as the maximum, with the accessories of the law, and the latter to that of from six years and one day of *prision mayor*, as the minimum, to twelve years and one day of *reclusion temporal*, as the maximum, with the accessory penalties of the law, both to indemnify jointly and severally the heirs of Paulino Disuasido in the sum of one thousand pesos, with costs, appealed to this court for a review of the judgment rendered against them, praying that the same be reversed and that they be acquitted.

Upon examination of the appeal, it appears: that in the morning of February 18, 1935, while the accused Natividad Luague was in her house situated in Lupuhan, barrio of Agpañgi, municipality of Calatrava, Occidental Negros, with only her three children of tender age for company, her husband and coaccused Wenceslao Alcansare having gone to grind corn in Juan Garing's house several kilometers away, Paulino Disuasido came and began to make love to her; that as Natividad could not dissuade him from his purpose, she started for the kitchen where Paulino followed her, notwithstanding her insistence that she could by no means accede to his wishes, for Paulino, bent on satisfying them at all cost, drew and opened a knife and, threatening her with death, began to embrace her and to touch her breasts; that in preparing to lie with her, Paulino had to leave the knife on the floor and the accused, taking advantage of the situation, picked up the weapon and stabbed him in the abdomen; and that Paulino, feeling himself wounded, ran away jumping through the window and falling on some stones, while the accused set forth immediately for the *poblacion* to surrender herself to the authorities and report the incident.

Natividad Luague's act in mortally wounding Paulino Disuasido, unaided by her husband and coaccused Wenceslao Alcansare, and in the circumstance above set out, constitutes the exempting circumstance defined in article 11, subsection 1, of the Revised Penal Code, because, as stated by a commentator of note, "aside from the right to life on which rests the legitimate defense of our person, we have the right to property acquired by us, and the right to honor which is not the least prized of man's patrimony." (1 Viada, 172, 173, 5th edition.) "Will the attempt to rape a woman constitute an aggression sufficient to put her in a state of legitimate defense?" asks the same commentator. "We think so," he answers, "inasmuch as a woman's honor cannot

but be esteemed as a right as precious, if not more, than her very existence; this offense, unlike ordinary slander by word or deed susceptible of judicial redress, is an outrage which impresses an indelible blot on the victim, for, as the Roman Law says: *quum virginitas, vel castitas, corrupta restitui non potest* (because virginity or chastity, once defiled, cannot be restored). It is evident that a woman who, thus imperiled, wounds, nay kills the offender, should be afforded exemption from criminal liability provided by this article and subsection since such killing cannot be considered a crime from the moment it became the only means left for her to protect her honor from so great an outrage." (1 Viada, 301, 5th edition.)

Similar to the present question was the one determined by the Supreme Court of Spain in a decision of February 21, 1911: "This court in due homage to the principles of morality and in strict observance of the provision of law justly interpreted, has always held that one of the rights referred to in article 8, subsection 4, of the Penal Code, is that which assists a woman in defense of her honor when an attempt is made against it reasonably necessitating the use of violent means to repel the aggression or to avoid in time the imminent danger of its consummation; and in view of this, it must be conceded upon the findings of the trial court, that the accused Maria Sanchez Cañistro acted in legitimate self-defense, because the conduct of Diego Cardenas, who made love to her, in blowing in at midnight, knocking at the door and demanding admittance and against Maria's refusal, insisting in his purpose and threatening to break open the door, in the light of prior events and the circumstances of the case, implies the imminence of an affront against honor, involving an actual and certain danger to the person so threatened, while at the same time the fact that she was alone; that no help was forthcoming; her founded fear that the door might give way and the dreaded evil wrought, her consequent helplessness on the advent of that crisis, and her natural desire to attest openly her conjugal fidelity by foiling all suspicious aspersions, show the reasonableness of the defensive measures availed of by her and warrant her complete exemption from liability, inasmuch as, aside from all these, it does not appear from the decision that said accused had previously committed any act deserving of censure or marring the just motive which obviously induced her to repel, as she did, a violence unprovoked by her. Thus viewed, all the requisites of the exempting circumstances above mentioned are present and should be taken into consideration, etc." (1 viada, 303, 304, 5th edition.)

The theory of the prosecution, which we consider a trifle unsubstantial is as follows: The accused Wenceslao Alcansare, thinking that Paulino importuned his wife with unchaste advances, out of jealousy, decided to get rid of him. His chance to bring about his plan came when, in the morning of the crime, Paulino happened to pass in front of the house of the spouses with his friend Olimpio Libosada. The accused wife invited Paulino to drop in, which the latter and his friend did. The spouses met them at the threshold. The accused wife asked Paulino whether he had a knife and as the latter answered in the affirmative, she asked him to lend it to her because she wanted to cut her nails, to which Paulino willingly acceded. While the accused wife was cutting her nails, she asked Paulino where he came from and the latter answered, turning his head around, that he came from the house of one Inting, whereupon the accused wife slashed him in the abdomen. Paulino tried to return the blow but the accused husband picked up a stone and struck him in the forehead. Wounded in the abdomen and in the forehand, Paulino fled therefrom.

The government presented three witnesses to establish this theory. Pablo Alvarez, barrio lieutenant of Cabuñgahan, testified that on his way to "communal" the day before the crime, he met the accused wife who told him that she had wanted to see

him and ask his help because her husband, who was jealous of Paulino, was maltreating her and he was furthermore resolved to assault Paulino at sight. On the following day, Alvarez, on his way to Bacacay, dropped in the house of the accused spouses to inquire whether they had tobacco seeds and, as they answered him in the negative, he went his way. He had hardly left the place when Paulino and Olimpio arrived, the accused wife inviting the former to drop in. Paulino and Olimpio went to the threshold of the house and the accused spouses, in turn, went down, and the four engaged in a conversation which, to Alvarez, seemed a friendly one. The witness left and when he returned to the place sometime later, he was informed that Paulino had been stabbed.

The accused were from the barrio of Agpañgi and not from Cabuñgahan where the witness was the barrio lieutenant. Had the accused wife gone to complain against the alleged conduct of her husband, she would have sought the lieutenant of Agpañgi, her barrio. The accused wife, by reporting the incident directly to the municipal authorities without seeking the intervention of any barrio lieutenant, showed that she knew where to go in a difficulty.

Were it true that the accused husband, prompted by jealousy, designed to do away with Paulino, it would have been because he observed that his wife somehow returned Paulino's attentions, for otherwise he would not have indulged in tragic cogitations. From any point of view, however, it is quite incomprehensible why the wife would take upon herself, and the husband would charge her with, the execution of the plan. The observation is no less true if the spouses plotted in common for it would have been patently disgraceful and cowardly of the husband to thrust its execution upon the wife at the hazard of her life, and liberty to shield his own, in the event of prosecution; and there is really nothing of record compelling the supposition that the husband was thus minded. Under the theory of the prosecution, whether the accused husband doubted his wife's fidelity or was sure of it, in connection with Paulino's attentions, the natural thing in either case would be for him, unaided by his wife, in avenge the affront or punish the offender. In the case at bar, we must assume that, if the motive attributed to him by the prosecution were true, the accused would have acted, as would the great, majority of men in identical circumstances.

The witness Alvarez, himself testified that he was informed the day before by the wife of the accused husband that the latter would get even with Paulino at the first opportunity. The witness saw them together in the morning of the crime and he should have surmised that the announced tragedy might take place. Rather than foil it, as an agent of the law, if for no other reason, he went his way unconcerned, as if nothing serious was impending. We find his conduct, or that which he claims to have followed, so extremely strange to be considered true. When the truth is beyond our reach, as is often the case, we have to be contented with the probable. This is the basis of the so-called presumptions of fact. The acts which this witness claims to have done are so out of the ordinary conduct of men as to be devoid of probability. Occasionally, indeed, there are those who behave strangely, but this is the exception and not the rule.

In addition to this, the theory of the prosecution that the accused husband and his wife had conspired to kill Paulino is overcome by the very facts which the prosecution itself has attempted to prove. If such conspiracy had really existed, the accused spouses would have been fully prepared to carry it into execution, because rational beings differ from those who are not in that when they embark on anything, they make the means equal to its realization. However, these accused, on the occasion, had neither a rusty bolo nor an outworn club to cope with Paulino. The weapon with which Paulino was first wounded was his own knife which, according to the prosecution, the

accused wife had to borrow from him on the pretext that she wanted to cut her nails, and later a stone which the accused husband casually picked up from the ground. Yarns of this kind make good material for fables.

Angel Emia, the other government witness who testified at the trial that he saw the crime attributed to the two accused by the prosecution, made a previous statement wherein he disclaimed knowledge of who had stabbed Paulino. Required to explain the contradiction, he bungled in his attempt. The trial judge erred in giving him credit.

Olimpio Libosada, another government witness, likewise affirmed that he had seen all that had transpired, claiming that he then accompanied Paulino. It seems strange, however, that in the two statements made by Paulino before his death he did not state that he was accompanied by Libosada or by any other person in the morning of the crime. It likewise happens that the conduct of this witness, according to his own testimony, appears to be inconsistent because he did nothing to defend and help Paulino, his friend and companion, in that most critical moment, and did not report the crime to the authorities, disappearing from the scene all of a sudden with the very frivolous excuse that "he was afraid to be implicated". Furthermore, after discarding the testimony of Angel Emia, there is nothing to corroborate that of Olimpio Libosada which, by its inherent weakness, cannot alone and unsubstantiated by other reliable incriminatory circumstances, support a judgment of conviction.

As to the two statements, Exhibits C and D, styled *ante-mortem* by the Solicitor-General, the trial court properly disregarded them because there is no evidence of record that Paulino had made them under a sense of impending death and with no hope of recovery.

The trial judge gave unusual importance to the testimony of the two policemen who testified that they made an ocular inspection of the scene of the crime and found no bloodstain in the kitchen of the house of the accused spouses. This, according to the trial judge, destroys the theory of the defense that Paulino was stabbed in said kitchen by the accused wife when he tried to lie with her through intimidation and violence. We are of the opinion that the trial judge erred on this point as he did on others. It appears that the said policeman did not also find any bloodstain on the threshold of the house of the accused spouses where, according to the prosecution, the aggression took place. Therefore, said testimony contradicts the defense no less than it does the prosecution.

In resume, we are of the opinion that we should, as we do hereby hold that the accused Natividad Luague in wounding Paulino Disuasido to death, acted in legitimate self-defense, and that the other accused Wenceslao Alcansare had no participation in said act; wherefore, reversing the appealed judgment, we hereby acquit both accused, and order their immediate release, if in confinement, with costs *de oficio*.

Avanceña, C. J., Abad Santos, Hull, and *Vickers, JJ.,* concur.

EN BANC

[G.R. No. 41674. March 30, 1935.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **REMEDIOS DE LA CRUZ**, *defendant-appellant*.

D E C I S I O N

VICKERS, *J* :

This is an appeal from a decision of the Court of First Instance of Nueva Ecija, finding the defendant guilty of homicide and sentencing her to suffer not more than fourteen years, eight months and one day of *reclusion temporal* and not less than eight years and one day of *prision mayor*, to indemnify the heirs of the deceased Francisco Rivera in the sum of P1,000, and to pay the costs.

Appellant's attorney makes the following assignments of error:

"I. El Juzgado *a quo*, erro al dar absoluto credito a las pruebas de la acusacion las que son insuficientes para apoyar una declaracion de conviccion.

"II. El Juzgado *a quo* erro al declarar que los celos fueron el motivo que impulso a la acusada al agredir al occiso Francisco Rivera.

"III. El Juzgado *a quo* erro al declarar increible el testimonio de la acusada en esta causa.

"IV. Y el Juzgado *a quo* erro al no absolver a la acusada."

It appears from the evidence that on the evening of February 18, 1934, Francisco Ramos and his wife, Brigida Vistada; his sister, Baltazara Ramos; and a woman named Consuelo or Natividad Santoyo called at the house of the defendant and asked her to go with them to a wake in honor of one Sion, who had died in the house of Maria Inguit. About nine o'clock the defendant and her friends started home. They were followed about five minutes later, according to Enrique Bautista, by the deceased Francisco Rivera, who had been playing cards in the house where the wake was held. He was accompanied by Enrique Bautista. Rivera and Bautista overtook defendant's party. When they reached a narrow part of the path, Rivera went ahead of Bautista. At that time the members of the defendant's party were walking in single file. Baltazara Ramos was in the lead and the defendant was the hindmost. She was about two brazas from the person immediately ahead of her. Francisco Ramos, the only one of defendant's companions that was called to testify, heard someone cry out "Aruy, Dios mio". He went back and found that Francisco Rivera had been stabbed under the right breast. The wounded man was taken to the hospital, where he died the next afternoon.

Francisco Ramos testified that it took him about two minutes to go back to the place where Francisco Rivera was. He found that Enrique Bautista was with the wounded man, and that the defendant had started back towards the house of mourning. He overtook her. She had a knife in her hand. When they reached the house of Maria Inguit, Remedios de la Cruz stuck the knife into a table and said that she stabbed Francisco Rivera because he embraced her.

The case for the prosecution rests upon the testimony of Enrique Bautista. According to him the defendant waited on the right side of the path near some guava trees and stabbed Francisco Rivera with a knife in her right hand when he arrived in front of her; that the injured man cried "Aruy, Dios mio", while the defendant turned around and returned to the house of Maria Inguit, saying "Icao ay malaon na" (hacia tiempo ya). He further testified that the defendant stabbed the deceased before either of them had said anything; that the distance between him and the deceased was about one foot; that he did not see any of the companions of the defendant after they reached the path and had to walk one behind the other.

The defendant on the other hand testified that after they had passed a fork in the trail and reached a narrow part a man suddenly threw his arms around her from behind, caught hold of her breasts and kissed her, and seized her in her private parts; that she tried to free herself, but he held her and tried to throw her down; that when she felt weak and could do nothing more against the strength of the man, she got a knife from her pocket, opened it, and stabbed him in defense of her honor. She further testified that the man who attacked her did not say anything; that she asked him who he was but he did not answer; that when she was assaulted she cried for help, saying "Madre mia; Dios mio"; that when she was seized, she was about two brazas behind her nearest companion; that when she was face to face with her assailant during the struggle she could scarcely recognize his face in the darkness and could not be sure that it was Francisco Rivera.

Her testimony as to what occurred is as follows:

"P. ¿ Y que paso siendo usted la ultima de entre sus companeros?

R. Despues de pasar nosotros en una bifurcacion de dos caminos cuando llegabamos en una parte estrecha el occiso subitamente me abrazo por detras cogiendome los pechos y besandome.

"P. ¿ Y entonces que hizo usted cuando usted sintio ese abrazo y beso?

R. Todavia me agarro en mi parte genital y en eso y trataba de desasirme de el; el me siguio abrazando cogiendome de los pechos y besandome, y yo a mi vez seguia tratando de desasirme de el insistentemente.

"P. ¿ Y que sucedio?

R. Cuando yo trataba de desasirme de el, el me siguio abrazando y yo a mi vez seguia tratandome de desasirme de el y el llego a agarrarme en la parte genital y trato de lanzarme.

"P. ¿ Y que hizo usted cuando le trataba de lanzarle a usted el occiso?

R. Yo procuraba desasirme de el y cuando me quede debilitada y ya no podia hacer nada contra la fuerza de el yo saque de mi bolsillo un cortaplumas.

"P. ¿ Y que hizo usted del cortaplumas?

R. Lo abri porque cuando ya no podia hacer nada y estaba ya debil yo hice lo que debia hacer en defensa nada y estaba y debil yo hice lo que debia hacer en defensa de mi pudor, le apunale."

She further testified that she was engaged in selling fruit, and that the fan knife in question was in a pocket of the overcoat she was wearing that day; that she went off with her friends without having an opportunity of changing her clothes.

We cannot believe the testimony of Enrique Bautista, because Francisco Ramos, one of the witnesses for the prosecution, testified that it was a dark night, and Bautista

himself said that he could scarcely see anyone in the darkness ("Apenas se podia ver a alguien en esa obscuridad."); that he did not see any of the companions of the defendant.

It appears from the evidence that the deceased had been making love to the defendant, and also to another girl named Felicisima Sincaban; but the finding of the trial judge that Francisco Rivera and the defendant were engaged, that she was madly in love with him and was extremely jealous of Felicisima Sincaban is not sustained by the evidence of record.

The appellant stabbed the deceased only once, although she retained possession of the knife, and undoubtedly could have inflicted other wounds on him if she had desired. In other words she desisted as soon as he released her.

The evidence shows that an officer of the Constabulary went to see the injured man about eleven o'clock that night in the hospital, but it does not appear that Rivera told him anything about the circumstances under which had had been stabbed.

The appellant is an illiterate barrio girl, unable to write her name, and scarcely eighteen years old. We do not believe her story is a fabrication. In this connection it is to be noted that almost immediately after the incident in question took place, the appellant said she stabbed Francisco Rivera because he embraced her. it is not improbable that she was reluctant to relate in the presence of all the people in the house of Maria Inguit the details of what had occurred.

We are convinced from a study of the record that the deceased did in fact grab hold of the defendant on the night in question, and whether he intended to rape her or not, taking into consideration that it was dark night and that the deceased grabbed her from behind without warning and without making himself known and refused to say who he was, and in the struggle that followed touched her private parts, and the fact that she was unable to free herself by means of her strength alone, we are of the opinion that she was justified in making use of the pocket-knife in repelling what she believed to be an attach upon her honor. Since she had no other means of defending herself.

In the case of the United States vs. Ah Chong (15 Phil., 488), this court held that a person is not criminally responsible when, by reason of a mistake of facts, he does an act for which he would be exempt if the facts were as he supposed them to be, but would constitute murder if he had known the true state of facts at the time, provided that the ignorance or mistake of fact was not due to negligence or bad faith.

The appellant claims to have cried for help, but so far as the record shows her cries were not heard by any of her companions. Whether she did in fact cry for help, as claimed by her, or failed to do so because of the suddenness with which the deceased grabbed her and the fright which it naturally caused, taking into consideration the circumstances of the case, we still think she is exempt from criminal liability. In the case of the United States vs. Ana and Ramos (22 Phil., 249), this court held that a woman in defense of her honor is justified in inflicting wounds on her assailant with a bolo which she happens to be carrying, even though her cry for assistance might have been heard by people near by.

For the foregoing reason, the decision appealed from is reversed, and the appellant is acquitted, with the costs de oficio.

Avanceña, C.J., Malcolm, Abad Santos, Imperial, Butte and *Diaz, JJ.,* concur.

Dissenting Opinion

HULL, J.:

My colleagues possibly through chivalry and compassion have given much greater credence to the tale of the defendant than it justifies. I am convinced that the trial judge, who heard her testify, more correctly appreciated the facts of this case.

Goddard, J., concurs.

SECOND DIVISION

[Adm. Matter No. 384 . February 21, 1946.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **NICOLAS JAURIGUE and AVELINA JAURIGUE** , *defendants*. **AVELINA JAURIGUE** , *appellant*.

D E C I S I O N

DE JOYA, *J* :

Nicolas Jaurigue and Avelina Jaurigue were prosecuted in the Court of First Instance of Tayabas, for the crime of murder, of which Nicolas Jaurigue was acquitted, but defendant Avelina Jaurigue was found guilty of homicide and sentenced to an indeterminate penalty ranging from seven years, four months and one day of *prision mayor* to thirteen years, nine months and eleven days of *reclusion temporal*, with the accessory penalties provided by law, to indemnify the heirs of the deceased, Amado Capiña, in the sum of P2,000, and to pay one-half of the costs. She was also credited with one-half of the period of preventive imprisonment suffered by her.

From said judgment of conviction, defendant Avelina Jaurigue appealed to the Court of Appeals for Southern Luzon, and in her brief filed therein on June 10, 1944, claimed —

> "(1) That the lower court erred in not holding that said appellant had acted in the legitimate defense of her donor and that she should be completely absolved of all criminal responsibility;
>
> "(2) That the lower court erred in not finding in her favor the additional mitigating circumstances that (*a*) she did not have the intention to commit so grave a wrong as that actually committed, and that (b)she voluntarily surrendered to the agents of the authorities; and
>
> "(3) That the trial court erred in holding that the commission of the alleged offense was attented by the aggravating circumstance of having been committed in a sacred place."

The evidence adduced by the parties, at the trial in the court below, has sufficiently established the following facts:

That both the defendant and appellant Avelina Jaurigue and the deceased Amado Capiña lived in the barrio of Sta. Isabel, city of San Pablo, Province of Laguna; that for sometime prior to the stabbing of the deceased by defendant and appellant, in the evening of September 20, 1942, the former had been courting the latter in vain, and that on one occasion, about one month before that fatal night, Amado Capiña snatched a handkerchief belonging to her, bearing her nickname "Aveling,: while it was being washed by her cousin, Josefa Tapay.

On September 13, 1942, while Avelina was feeding a dog under her house, Amado approached her and spoke to her of his love, which she flatly refused, and he thereupon suddenly embraced and kissed her and touched her breast, on account of

which Avelina, a resolute and quick- tempered girl, slapped Amado, gave him fist blows and kicked him. She kept the matter to herself, until the following morning when she informed her mother about it. Since then, she armed herself with a long fan knife, whenever she went out, evidently for self-protection.

On September 15, 1942, about midnight, Amado climbed up the house of defendant and appellant, and surreptitiously entered the room where she was sleeping. He felt her forehead, evidently with the intention of abusing her. She immediately screamed for help, which awakened her parents and brought them to her side. Amado came out from where he had hidden under a bed in Avelina's room and kissed the hand of Nicolas Jaurigue, her father, asking for forgiveness; and when Avelina's mother made an attempt to beat Amado, her husband prevented her from doing so, stating that Amado probably did not realize what he was doing. Nicolas Jaurigue sent for the barrio lieutenant, Casimiro Lozada, and for Amado's parents, the following morning. Amado's parents came to the house of Nicolas Jaurigue and apologized for the misconduct of their son; and as Nicolas Jaurigue was then angry, he told them to end the conversation, as he might not be able to control himself.

In the morning of September 20, 1942, Avelina received information that Amado had been falsely boasting in the neighborhood of having taken liberties with her person and that she had even asked him to elope with her and that if he should not marry her, she would take poison; and that Avelina again received information of Amado's bragging at about 5 o'clock in the afternoon of that same day.

At about 8 o'clock in the evening of the same day, September 20, 1942, Nicolas Jaurigue went to the chapel of the Seventh Day Adventists of which he was the treasurer, in their barrio, just across the provincial road from his house, to attend religious services, and sat on the front bench facing the altar with the other officials of the organization and the barrio lieutenant, Casimiro Lozada. Inside the chapel it was quite bright as there were electric lights.

Defendant and appellant Avelina Jaurigue entered the chapel shortly after the arrival of her father, also for the purpose of attending religious services, and sat on the bench next to the last one nearest the door. Amado Capiña was seated on the other side of the chapel. Upon observing the presence of Avelina Jaurigue, Amado Capiña went to the bench on which Avelina was sitting and sat by her right side, and, without saying a word, Amado, with the greatest of impudence, placed his hand on the upper part of her right thigh. On observing this highly improper and offensive conduct of Amado Capiña, Avelina Jaurigue, conscious of her personal dignity and honor, pulled out with her right hand the fan knife marked Exhibit B, which she had in a pocket of her dress, with the intention of punishing Amado's offending hand. Amado seized Avelina's right hand, but she quickly grabbed the knife with her left hand and stabbed Amado once at the base of the left side of the neck, inflicting upon him a wound about 41/2 inches deep, which was necessarily mortal. Nicolas Jaurigue, who was seated on one of the front benches, saw Amado bleeding and staggering towards the altar, and upon seeing his daughter still holding the bloody knife, he approached her and asked: "Why did you do that," and answering him, Avelina said: "Father, I could not endure anymore." Amado Capiña died from the wound a few minutes later. Barrio lieutenant Casimiro Lozada, who was also in the same chapel, approached Avelina and asked her why she did that, and Avelina surrendered herself, saying: "Kayo na po and bahala sa aquin," meaning: "I hope you will take care of me." or more correctly, "I place myself at your disposal." Fearing that Amado's relatives might retaliate, barrio lieutenant Lozada advised Nicolas Jaurigue and herein defendant and appellant to go home immediately,

to close their doors and windows and not to admit anybody into the house, unless accompanied by him. That father and daughter went home and locked themselves up, following instructions of the barrio lieutenant, and waited for the arrival of the municipal authorities; and when three policemen arrived in their house, at about 10 o'clock that night, and questioned them about the incident, defendant and appellant immediately surrendered the knife marked as Exhibit B, and informed said policemen briefly of what had actually happened in the chapel and of the previous acts and conduct of the deceased, as already stated above, and went with said policemen to the police headquarters, where her written statements were taken, and which were presented as a part of the evidence for the prosecution.

The high conception of womanhood that our people possess, however humble they may be, is universal. It has been entertained and has existed in all civilized communities.

A beautiful woman is said to be a jewel; a good woman, a treasure; and that a virtuous woman represents the only true nobility. And they are the future wives and mothers of the land Such are the reasons why, in the defense of their honor, when brutally attacked, women are permitted to make use of all reasonable means available within their reach, under the circumstances. Criminologists and courts of justice have entertained and upheld this view.

On the other hand, it is the duty of every man to protect and show loyalty to womanhood, as in the days of chivalry. There is a country where women freely go out unescorted and, like the beautiful roses in their public gardens, they always receive the protection of all. That country is Switzerland.

In the language of Viada, aside from the right to life on which rests the legitimate defense of our own person, we have the right to property acquired by us, and the right to honor which is not the least prized of our patrimony (1 Viada, Codigo Penal, 5th ed., pp. 172, 173).

The attempt to rape a woman constitutes an unlawful aggression sufficient to put her in a state of legitimate defense, inasmuch as a woman's honor cannot but be esteemed as a right as precious, if not more, than her very existence; and it is evident that a woman who, thus imperiled, wounds, may kills the offender, should be afforded exemption from criminal liability, since such killing cannot be considered a crime from the moment it became the only means left for her to protect her honor from so great an outrage (1 Viada, Codigo Penal, 5th ed., p. 301; People vs. Luague and Alcansare, 62 Phil., 504).

As long as there is actual danger of being raped, a woman is justified in killing her aggressor, in the defense of her honor. Thus, where the deceased grabbed the defendant in a dark night at about 9 o'clock, in an isolated barrio trail, holding her firmly from behind, without warning and without revealing his identity, and, in the struggle that followed, touched her private parts, and that she was unable to free herself by means of her strength alone, she was considered justified in making use of a pocket knife in repelling what she believed to be an attack upon her honor, and which ended in his death, since she had no other means of defending herself, and consequently exempt from all criminal liability (People vs. De la Cruz, 61 Phil., 344).

And a woman, in defense of her honor, was perfectly justified in inflicting wounds on her assailant with a bolo which she happened to be carrying at the time, even though her cry for assistance might have been heard by people nearby, when the deceased tried to assault her in a dark and isolated place, while she was going from her

house to a certain *tienda*, for the people of making purchases (United States vs. Santa Ana and Ramos, 22 Phil., 249).

In the case, however, in which a sleeping woman was awakened at night by someone touching her arm, and, believing that some person was attempting to abuse her, she asked who the intruder was and receiving no reply, attacked and killed the said person with a pocket knife, if was held that, notwithstanding the woman's belief in the supposed attempt, it was not sufficient provocation or aggression to justify her completely in using a deadly weapon. Although she actually believed it to be the beginning of an attempt against her, she was not completely warranted in making such a deadly assault, as the injured person, who turned out to be her own brother-in-law returning home with his wife, did not do any other act which could be considered as an attempt against her honor (United States vs. Apego, 23 Phil., 391).

In the instant case, if defendant and appellant had killed Amado Capiña, when the latter climbed up her house late at night on September 15, 1942, and surreptitiously entered her bedroom, undoubtedly for the purpose of raping her, as indicated by his previous acts and conduct, instead of merely shouting for help, she could have been perfectly justified in killing him, as shown by the authorities cited above.

According to the facts established by the evidence and found by the learned trial court in this case, when the deceased sat by the side of defendant and appellant on the same bench, near the door of the barrio chapel and placed his hand on the upper portion of her right thigh, without her consent, the said chapel was lighted with electric lights, and there were already several people, about ten of them, inside the chapel, including her own father and the barrio lieutenant and other dignitaries of the organization; and under the circumstances, there was and there could be no possibility of her being raped. And when she gave Amado Capiña a thrust at the base of the left side of his neck, inflicting upon him a mortal wound 41/2 inches deep, causing his death a few moments later, the means employed by her in the defense of her honor was evidently excessive; and under the facts and circumstances of the case, she cannot be legally declared completely exempt from criminal liability.

But the fact that defendant and appellant immediately and voluntarily and unconditionally surrendered to the barrio lieutenant in said chapel, admitting having stabbed the deceased, immediately after the incident, and agreed to go to her house shortly thereafter and to remain there subject to the order of the said barrio lieutenant, an agent of the authorities (United States vs. Fortaleza, 12 Phil., 472); and the further fact that she had acted in the immediate vindication of a grave offense committed against her a few moments before, and upon such provocation as to produce passion and obfuscation, or temporary loss of reason and self-control, should be considered as mitigating circumstances in her favor (People vs. Parana, 64 Phil., 331; People vs. Sakam, 61 Phil., 27; United States vs. Arribas, 1 Phil., 86).

Defendant and appellant further claims that she had not intended to kill the deceased but merely wanted to punish his offending hand with her knife, as shown by the fact that she inflicted upon him only one single wound. And this is another mitigating circumstance which should be considered in her favor (United States vs. Brobst, 14 Phil., 310; United States vs. Diaz, 15 Phil., 123).

The claim of the prosecution, sustained by the learned trial court, that the offense was committed by the defendant and appellant, with the aggravating circumstance that the killing was done in a place dedicated to religious worship, cannot be legally sustained; as there is no evidence to show that the defendant and appellant had murder

in her heart when she entered the chapel that fatal night. Avelina is not a criminal by nature. She happened to kill under the greatest provocation. She is a God-fearing young woman, typical of our country girls, who still possess the consolation of religious hope in a world where so many others have hopelessly lost the faith of their elders and now drifting away they know not where.

The questions raised in the second and third assignments of error appear, therefore, to be well taken; and so is the first assignment of error to a certain degree.

In the mind of the court, there is not the least doubt that, in stabbing to death the deceased Amado Capiña, in the manner and form and under the circumstances above indicated, the defendant and appellant committed the crime of homicide, with no aggravating circumstance whatsoever, but with at least three mitigating circumstances of a qualified character to be considered in her favor; and, in accordance with the provisions of article 69 of the Revised Penal Code, she is entitled to a reduction by one or two degrees in the penalty to be imposed upon her. And considering the circumstances of the instant case, the defendant and appellant should be accorded the most liberal consideration possible under the law (United States vs. Apego, 23 Phil., 391; United States vs. Rivera, 41 Phil., 472; People vs. Mercado, 43 Phil., 950).

The law prescribes the penalty of *reclusion temporal* for the crime of homicide; and if it should be reduced by two degrees, the penalty to be imposed in the instant case is that of *prision correccional*; and pursuant to the provisions of section 1 of Act No. 4103 of the Philippine Legislature, known as the Indeterminate Sentence Law, herein defendant and appellant should be sentenced to an indeterminate penalty ranging from *arresto mayor* in its medium degree, to *prision correccional* in its medium degree. Consequently, with the modification of the judgment appealed from, defendant and appellant Avelina Jaurigue is hereby sentenced to an indeterminate penalty ranging from two months and one day of *arresto mayor*, as minimum, to two years, four months, and one day of *prision correccional*, as maximum, with the accessory penalties prescribed by law, to indemnify the heirs of the deceased Amado Capiña, in the sum of P2,000, and to suffer the corresponding subsidiary imprisonment, not to exceed 1/3 of the principal penalty, in case of insolvency, and to pay the costs. Defendant and appellant should also be given the benefit of 1/2 of her preventive imprisonment, and the knife marked Exhibit B ordered confiscated. So ordered.

Ozaeta, Perfecto, and *Bengzon, JJ.,* concur.

Concurring Opinion

HILADO, J.:

In past dissenting and concurring opinions my view regarding the validity or nullity of judicial proceedings in the Japanese-sponsored courts which functioned in the Philippines during the Japanese occupation has been consistent. I am not abandoning it. But in deference to the majority who sustain the opposite view, and because no party litigant herein has raised the question, I have taken part in the consideration of this case on the merits. And, voting on the merits, I concur in the foregoing decision penned by Justice De Joya.

FIRST DIVISION

[G.R. No. 5318. December 23, 1909.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **RAFAEL BUMANGLAG ET AL.**, *defendants*. **GREGORIO BUNDOC**, *appellant*.

Iñigo Bitanga for appellant.

Attorney-General Villamor for appellee.

D E C I S I O N

TORRES, *J* :

On the night of January 2, 1909, Rafael Bumanglag, an inhabitant of the pueblo of San Nicolas, Province of Ilocos Norte, missed 4 *baares* or 40 bundles of *palay* which were kept in his granary, situated in the place called "Payas," barrio No. 16 of the said pueblo, and on proceeding to search for them on the following morning, he found them in an inclosed field which was planted with sugar cane, at a distance of about 100 meters from his granary; thereupon, for the purpose of ascertaining who had done it, he left the *palay* there, and that night, accompanied by Gregorio Bundoc. Antonio Ribao, and Saturnino Tumamao, he waited near the said field for the person who might return to get the *palay*. A man, who turned out to be Guillermo Ribis, made his appearance and approaching the *palay*, attempted to carry it away him, but at that instant Bumanglag, Bundoc, and Ribao assaulted the presumed thief with sticks and cutting and stabbing weapons; as a result of the struggle which ensued the person attacked fell down and died instantly, Bumanglag and his companions believing that Guillermo Ribis was the author of several robberies and thefts that had occurred in the place.

In view of the foregoing, the provincial fiscal filed a complaint on January 15, 1909, charging Rafael Bumanglag, Gregorio Bundoc, and Antonio Ribao with the crime of homicide, and the trial judge, on February 5 of the present year, rendered judgment in the case, sentencing the three accused persons to the penalty of fourteen years eight months and one day of *reclusion temporal*, with the accessories, and to the payment of an indemnity of P1,000 to the heirs of the deceased, and the costs in equal parts, from which decision only Gregorio Bundoc appealed.

From the facts above mentioned, fully proven in this case, the commission of the crime of homicide, defined and punished by article 404 of the Penal Code, is inferred, inasmuch as Guillermo Ribis was violently deprived of his life in consequence of serious wounds and bruises, some of them of a mortal nature, as appears from a certificate issued by a physician who examined the body of the deceased, and who ratified said certificate at the trial under oath.

The accused Bundoc, the only appellant, pleaded not guilty, but, in the absence of justification, and his exculpatory allegation being unreasonable, it is not proper to hold that he assaulted and killed the deceased, with the help of his codefendants, in

order to defend himself from an attack made by the former with a bolo.

Both Gregorio Bundoc and his codefendants Bumanglag and Ribao declared that, during the fight with the deceased Ribis, they only beat the latter with sticks, because he unsheathed the bolo he carried; but from the examination made of the body it appeared that several serious wounds had been inflicted with cutting and stabbing weapons, besides some bruises, and according to the declaration of the health officer Felipe Barba, which declaration was confirmed by the municipal president of Laoag, the bolo worn by the deceased was in its heath and hanging from his waist; therefore it can not be concluded that the deceased even intended to assault his murderers with his bolo either before he was attacked by them or during the fight, because, had Ribis made use of the bolo he carried sheathed, the bolo would have been found unsheathed at the place where the fight occurred, and it is not reasonable to believe that, before falling to the ground in a dying condition he succeeded in sheathing his bolo, in which condition it was found on his body.

It is therefore indisputable that, without any prior illegal aggression and the other requisites which would fully of partially exempt the accused from criminal responsibility, the appellant and his two companions assaulted Guillermo Ribis with sticks and cutting and stabbing arms, inflicting upon him serious and mortal wounds, and therefore, the said accused is guilty of the crime of homicide as co-principal by direct participation, fully convicted, together with his codefendants who are already serving their sentence.

In the commission of the crime we should take into account the mitigating circumstance No. 7 of article 9 of the Penal Code, because the defendant acted with loss of reason and self-control on seeing that Guillermo Ribis was taking material possession of the *palay* seized and hidden by him on the previous night, thus committing one of the numerous unlawful acts perpetrated at that place, to the damage and prejudice of those who, by their labor endeavor to provide themselves with the necessary elements for their subsistence and that of their families. The special circumstance established by article 11 of the same code should be also considered in favor of the accused, in view of the erroneous and quite general belief that it is legal to punish, even to excess the thief who, in defiance of law and justice, while refusing to work, devotes himself to depriving his neighbors of the fruits of their arduous labors; these two circumstances are considered in the present case as especially admissible, without any aggravating circumstance, and they determine, according to article 81, rule 5, of the Penal Code, the imposition of the penalty immediately inferior to that prescribed by the law, and in its minimum degree, and therefore —

By virtue of the foregoing considerations, we are of the opinion that, the judgment appealed from being reversed with respect to Gregorio Bundoc only, the latter should be, and is hereby, sentenced to the penalty of six years and one day of *prision mayor*, to the accessories of article 61 of the code, to indemnify the heirs of the deceased jointly or severally with his codefendants, in the sum of P1,000, and to pay one-third the costs of both instances. So ordered.

Arellano, C.J., Mapa and *Johnson, JJ.,* concur.

Concurring and Dissenting Opinion

MORELAND, J., with whom CARSON, J.:

The defendants in this case were convicted of the crime of homicide in causing the death of Guillermo Ribis, and sentenced to fourteen years eight months and one

day of *reclusion temporal*, accessories, indemnification, and costs.

Gregorio Bundoc is the only one who appealed.

On the night of the 21st of February, 1909, Rafael Bumanglag, a resident of the pueblo of San Nicolas, Province of Ilocos Norte, found missing from his granary, situated at a place called Payas, barrio No. 16 of said pueblo, 4 baares and 40 *manojos* of *palay*, and the inclosure within which the *palay* was situated torn down and partly destroyed. The following morning he discovered a portion of the missing *palay* in a field of sugar cane about 100 meters from the granary from which it was taken. For the purpose of discovering who was the author of the crime and of bringing him to justice, he secured the assistance of Gregorio Bundoc, Antonio Ribao, and Saturnino Tumamao, the first being his cousin and the others his neighbors and friends, to watch with him the succeeding night in the vicinity of the *palay*, acting upon the expectation that the robber would return to secure it. Some time after dark of the night succeeding to the robbery, Bumanglag, and the other persons mentioned, gathered together in said field of sugar cane, near to the *palay* in question, placing themselves so as to surround it in a measure, and awaited the appearance of the malefactor. At about 10 o'clock there came into the field the deceased, Guillermo Ribis, who approached the *palay*, picked it up, and started to carry it away. At this moment Bumanglag presented himself in front of Ribis, stopping his further progress, whereupon Ribis attacked him viciously with a bolo and they engaged in a hand-to-hand struggle. Bumanglag, upon finding that he was likely to be killed by the robber because of his great strength and the fact that he was armed with a bolo, called for assistance, whereupon his three companions rushed forward and, seeing the extremity in which Bumanglag was, joined in the struggle for the purpose of his protection. Within a few minutes Ribis fell to the earth mortally injured and soon expired.

The only proofs in the trial relating to the death are the statements and testimony of the defendants themselves. Immediately after the death of Ribis, they, acting voluntarily, went to the nearest justice of the peace and stated what had occurred. Each one signed a statement of the facts constituting the occurrence as he understood them. Later each one of defendants testified on the trial.

Bundoc, in the written statement made by him before the justice of the peace, said that at about 10 o'clock of the night in question he saw Ribis enter the field, going toward the place where the *palay* was located, and a little while afterwards Bumanglag called him and his companions to come to his assistance because a man was attacking him, and that thereupon he, Bundoc, and his companions, "went to the assistance of Bumanglag, who was fighting with Ribis, and, in view of the fact that it appeared that Bumanglag was not able to resist his adversary because he had a bolo and Bumanglag had only a bamboo stick," he and his companions took part in the fight solely to protect his cousin and that, during the struggle that followed, the decedent was killed. He said further that he recognized the deceased, Ribis, as a resident of San Nicolas, and that he was a person of bad character and was known as the author of various robberies and burglaries which had occurred in that vicinity.

The statements of the other defendants are substantially the same as that of Bundoc.

Upon the trial Bumanglag testified, relative to the acts of defendants from which the death of Ribis resulted, that Ribis came into the field, arranged the *palay* in handy form, picked it up, and started to go away with it; that thereupon Bumanglag told him to halt; that Ribis instantly dropped his bundle to the ground and immediately attacked

Bumanglag with a bolo, striking at him several times but failing to hit him on account of stalks of sugar cane which Bumanglag interposed between himself and his assailant; that, while Ribis was trying to kill him with his bolo, he called to his companions for help, at the same time trying to defend himself with blows of his bamboo stick; that his companions soon arrival, and, between the three, they struck him several blows, from which he died immediately; that they carried no weapons except bamboo sticks, while the deceased was armed with a large bolo.

The statement of Bumanglag made upon the trial is somewhat different from his statement made before the justice of the peace but is more in accord with the statements of the other defendants in the case, both before the justice of the peace and upon the trial of the case. Bundoc testified that Bumanglag called for help because he was being attacked by the robber, who was armed with a bolo, and that he was likely to be killed at any instant, and that he and companions, desiring to defend Bumanglag from his imminent peril, ran forward to his assistance, and that during the fight which occurred, the deceased was killed.

These are the only proofs before us relative to the manner in which Ribis met his death. The court below, however, refused to believe the story of defendants because of certain alleged contradictory circumstances which appear in the proofs. These circumstances, as presented by the court below and here argued by the fiscal, are that (1) while the defendants claim in their statements and testimony that the deceased attacked Bumanglag with his bolo, nevertheless, when the body of the decedent was the next day taken possession of by the justice of the peace, the bolo was still in its sheath; and (2) that while the defendants stated and testified that they were not armed with any kind of weapons except bamboo sticks or clubs, still the testimony of Barba, the sanitary inspector of that district, shows that some of the wounds upon the body of the deceased were made with sharp instruments. Upon these two circumstances, impugning, as it is alleged they do, the evidence of the defendants in their own behalf, the court below found the defendants guilty of homicide.

The only evidence in relation to these two circumstances is that of the peace and the sanitary inspector, who assert that when they went to examine the body and take charge of it, the next day after the death, they found the bolo in its sheath. It appear, however, that no one watched the body during the interval running between the time when the death occurred and when the body was first examined, and therefore no one knows how it was handled or what was done with or to it. As to the other point, namely, that the wounds were made with sharp instruments, it may be said that the witness Barba, the sanitary inspector, who is the only one who testified in relation to that matter, stated that the only two wounds that were mortal were located, one in the right side of the head, caused by a sharp instrument, the other a contusion at the base of the neck upon the left side, not made with a sharp instrument. He does not say which one of the wounds caused the death of the decedent, neither does he state the facts upon which he bases his claim that the wounds were made with sharp instruments. He simply his conclusions, without presenting the facts from which such conclusions naturally spring. It is well known, however, that a wound, smooth edged and clean cut, and simulating with remarkable closeness a wound made with a sharp cutting instrument, may be frequently is produced by a wooden instrument or club, particularly where, as in this case, said instrument or club is extremely hard and has a sharp edge. The witness Barba was not a physician or surgeon and had little experience with wounds. His judgment was scarcely better than that of the average man. In no sense was he qualified as an expert. Besides, and this is very important, the only wounds found upon the person of deceased *were about the head, neck, and face*. No wound was found on

any other part of the person. Does this look like the use of knives or bolos by the defendants? If they had been using such weapons it is almost certain that the fatal wound would have been found in the body and not the head; or, if in the head, the wound made would have been far more extensive and ghastly than any of those found.

It appears from the undisputed testimony (if we except the two circumstances above referred to) that the decedent was a man of bad reputation; that he was a thief, a robber, and a convicted criminal, having served at least one term in prison for robbery; that he was known in all that country as a leader of criminal bands and as an all-round desperado; that he was a man of exceptionally large stature and of unusual strength; that at the time of his attack upon Rafael Bumanglag he was armed with a bolo; that on the evening before his death he had robbed the granary of Bumanglag, taking a part of the property which he had stolen away with him at the time and leaving the other portion, which he was unable to carry, in a place where it would be easily accessible when he desired later to remove it; that on the night of the event he had returned to carry away the balance of the property which he had stolen the night before; that while in the act of taking it he was surprised and confronted by the owner thereof; that he immediately assailed said owner viciously with his bolo, and so pressed him that, for the protection of his life, he called upon his friends for assistance; that his companions, on arriving, saw that he was likely to be killed at any instant and they, endeavoring to save his life, attacked the decedent.

It is not known who among the defendants killed the decedent or what blow caused his death. All that is known is that in the struggle which occurred, resulting from the efforts of three of the defendants to save the life of the fourth, the decedent met his death.

It nowhere appears, except from the fact of death itself, that the defendants sought or intended to kill the decedent. Their sole purpose appears from the evidence to have been to protect their companion from the murderous assault of decedent. Such purpose could have been accomplished as well by disabling as by killing him; and it must not be forgotten in this connection that the effect produced by the use of their bamboo sticks was not that which is ordinarily produced. This consideration was regarded by this court as having much importance in the case of the United States *vs*. Sosa (4 Phil. Rep., 104). This court has, moreover, held that piece of bamboo (*una simple cana partida*), exactly what was used by defendants in the case at bar was a weapon insufficient ordinarily to put the life of a person attacked in imminent peril. (U. S. *vs*. De Castro, 2 Phil. Rep., 67; U. S. *vs*. Mack, 8 Phil. Rep., 701).

I am convinced that there is a strong doubt of the criminal responsibility of the defendants, particularly of the appellant. Article 8 of the Penal Code reads in part as follows:

> "The following are not delinquent and are, therefore, exempt from criminal liability:
>
> xxx xxx xxx
>
> "5. He who acts in defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural, or adopted brothers or sisters, or of his relatives by affinity in the same degrees and those by consanguinity within the fourth civil degree, provided the first and second circumstances mentioned in the foregoing number are attendant, and provided that in case the party attacked first gave provocation, the defender took no part therein.
>
> "6. He who acts in defense of the person or rights of a stranger,

provided the first and second circumstances mentioned in No. 4 are attendant and that the defender is not actuated by revenge, resentment, or other illegal motive."

Subdivision 4 is as follows:

"4. He who acts in defense of his person or rights, provided there are the following attendant circumstances:

"(1) Illegal aggression.

"(2) Reasonable necessity of the means employed to prevent or repel it.

"(3) Lack of sufficient provocation on the part of the person defending himself."

That there was an unlawful aggression seems to me to be indisputable under the evidence. The great preponderance of the testimony, in fact the undisputed evidence, is to that effect. Every witness who touched the subject testified positively that the assault upon Bumanglag was made with a bolo. It is admitted that the decedent had one at the time of the assault. Nevertheless the fiscal contends that the assault was not made with a bolo and bases that contention upon the single fact, before adverted to, that, many hours after the assault, the bolo was found in its sheath on the dead man's body. The probative effect of that fact is founded purely in an inference which necessarily presupposes that the bolo had not been replaced in its sheath by anyone after the death of Ribis, his body having been left unwatched, as before stated, for a considerable period of time. It seems to me, however, that that inference is met sufficiently overcome by the manifest and perfect unreasonableness of the assumption, which must necessarily arise from the inference, that a man of the character of the decedent, having been caught red-handed in the commission of a robbery by the owner of the property against which the felony had been and was being committed, and that owner armed with a club, would attack such owner with his naked hands when he carried at his side a formidable weapon with which to defend himself in precisely such an emergency. It is wholly unreasonable, if not positively unbelievable, that the decedent, under all the circumstances of this case, did not draw his bolo. That he did unsheathe it and did attack Bumanglag therewith is the sworn statement of every witness who testified on that subject. This proof, taken in connection with the unreasonableness of the claim that the decedent, caught red-handed in felony, attacked with his bare hands a man armed with a club, the man against whose property he was in the very act of perpetrating a felony, and permitted himself to be beaten to death, when he carried at his side a formidable and effective weapon of aggression as well as defense, can not be overcome by a mere inference deduced from the circumstance that the bolo, many hours after the event, was found in its sheath. The entire evidence, fairly considered, reasonably establishes, it seems to be, not only an unlawful but a dangerous aggression. (Supreme court of Spain, 17 November, 1897; 6 July, 1898; 16 March, 1892; 11 December, 1896; 26 January, 1897; 11 December, 1896; 6 April, 1904; 27 June, 1894; 30 January, 1904; 16 February, 1905; 10 July, 1902; 27 June, 1903; 28 February, 1906; 17 March, 1888; 29 May, 1888; 13 February, 1890; 20 January, 1894; 24 October, 1895; 27 January, 1896; 11 December, 1896; 26 January, 1897; 30 September, 1897; 10 February, 1898; 6 July, 1898; 21 December, 1898; 24 January, 1899; 29 September, 1900; 12 January, 1901; 21 April, 1902; 20 December, 1902; 4 February, 1903; 11 July, 1903; 11 July, 1904; 22 March, 1905; 8 July, 1905.)

In the case of Stoneham *vs.* Commonwealth (86 Va., 523, 525, 526), where the defendant was being followed up by the deceased who was wholly unarmed and

without any demonstration of violence except raising his fist, and the defendant shot and killed him, the court said:

> "The accused was closely pressed by an attacking man, who was his superior in strength, and his situation was one which justified his fear of grievous bodily harm; and, if the jury had found the facts as certified by the court, they should have found the homicide to be excusable self-defense under all the circumstances of his case." (Parrishe's case, 81 Va., 1.)

Moreover, it is admitted that the defendant, Bumanglag, was upon his own land and was, therefore, defending his habitation against a violent and wrongful invasion when the assault upon him was made in the manner proved.

> "A person may repel force by force in defense of his habitation or property, as well as in defense of his person, against one who manifestly intends and endeavors by violence or surprise to commit a known felony upon either, if need be, may kill his adversary." (25 Am. & Eng. Ency. of L., 275.)

In the case of United States *vs*. Brello (9 Phil. Rep., 424), the court said (p. 425):

> "The evidence of the defendant and his witnesses was to the effect that at 10 o'clock at night Candelario came to the house of the defendant coming out, saying that if he did not, he would burn the house. The defendant refused to go out and thereupon Candelario broke the door down, came in and attacked the defendant with a cane, throwing him to the ground two or three times. He defended himself as well as he could and finally seized a bolo and struck Candelario in the stomach. Immediately after the affair the defendant presented himself to the authorities of the town, stating that had happened. *It does not appear that Candelario had any other weapon than a cane*.
>
> "These facts to our mind constitute a complete defense. Candelario committed a crime in entering the house as he did, the defendant was justified in protecting himself with such weapons as were at his hand, and if from that defense the death of the aggressor resulted, that result must be attributed to his own wrongful act and can not be charged to the defendant."
>
> (The italics do not appear in the original.)

If the defendant in the above case was in danger of death or of great bodily harm, and that danger was imminent, and it the means employed by him to repel the assault were reasonably necessary to attain that result, then, how much more perfectly were these conditions present in the case at bar! If the defendant in the case cited was entitled legally to be relieved from all criminal liability, upon what subtle distinction, and, above all, upon what principles of justice, shall we found a judgment declaring guilty the appellant at bar?

While the premises upon which the assault occurred were not, strictly speaking, the habitation of the defendant, Bumanglag, still as matter of law no substantial distinction is made between habitation and premises. The Supreme Court of the United States has held directly (Beard *vs*. United States, 158 U. S., 550) that for the purposes of self-defense there is no difference between one's habitation and his premises. In that case the court said, in part, Mr. Justice Harlan writing (p. 559):

> "But the court below committed an error of a more serious character when it told the jury, as in effect it did by different forms of expression, that if the accused could have save his own life and avoided taking the life of Will Jones by retreating from and getting out of the way of the latter as he advanced upon him, the law made it his duty to do so; and if he did not, when it was in his power to do so without putting his own life or body in imminent peril, he was guilty of

manslaughter. The court seemed to think if the deceased had advanced upon the accused while the latter was in his dwelling house and under such circumstances as indicated the intention of the former to take life or inflict great bodily injury, and if, without retreating, the accused had taken the life of his assailant, having at the time reasonable grounds to believe, and in good faith believing, that his own life would be taken or great bodily harm done him unless he killed the accused, the case would have been one of justifiable homicide. To that proposition we give our entire assent. But we can not agree that the accused was under any greater obligation, when on his own premises, near his dwelling house, to retreat or run away from his assailant, than he would have been if attacked within his dwelling house. The accused being where he had a right to be, on his own premises, constituting a part of his residence and home, at the time the deceased approached him in a threatening manner, and not having by language or by conduct provoked the deceased to assault him, the question for the jury was whether, without fleeing from his adversary, he had, at the moment he struck the deceased, that he could not save his life or protect himself from great bodily harm except by doing what he did, namely, strike the deceased with his gun, and thus prevent his further advance upon him. Even if the jury had been prepared to answer this question in the affirmative — and if it had been so answered the defendant should have been acquitted — they were instructed that the accused could not properly be acquitted on the ground of self-defense if they believed that, by retreating from his adversary, by 'getting out of the way,' he could have avoided taking life. We can not give our assent to this doctrine." (Erwin *vs*. State, 29 Ohio St., 186, 193, 199; Runyan *vs*. State, 57 Ind., 80, 84; Bishop's New Criminal Law, vol. 1, par. 850; 2 Wharto's Criminal Law, par. 1019, 7th ed.; Gallagher *vs*. State, 3 Minn., 270; Pond *vs*. People, 8 Mich., 150, 177; State *vs*. Dixon, 75 N. C., 275, 295; State *vs*. Sherman, 16 R. I., 631; Fields *vs*. State, 32 N. E. Rep., 780; Eversole *vs*. Commonwealth, 26 S. W. Rep., 816; Haynes *vs*. State, 17 Ga., 465, 483; Long *vs*. State, 52 Miss., 23, 35; Tweedy *vs*. State, 5 Ia., 433; Baker *vs*. Commonwealth, 19 S. W. Rep., 975; Tingle *vs*. Commonwealth, 11 S. W., 812; 3 Rice's Ev., par. 360.)

In the case of State *vs*. Cushing (14 Wash., 530), the court lays down the proposition that a defendant while on his own premises outside of his dwelling house, was where he had a right to be, and if the deceased advanced upon him in a threatening manner and the defendant at the time had reasonable grounds to believe, and in good faith did believe, that the deceased intended to take his life or do him great bodily harm, the defendant was not obliged to retreat nor to consider whether he could safely retreat, but was entitled to stand his ground and meet any attack made upon him in such a way and with such force as, under all the circumstances, he at the moment honestly believed and had reasonable grounds to believe was necessary to save his own life or protect himself from great bodily harm.

It is also admitted that the defendant, Bumanglag, was defending his property from one who by surprise and violence was endeavoring to commit a felony against it. Under such circumstances, if necessary to prevent the felony, he could lawfully kill the person attempting it. (See 25 Am. & Eng. Ency. of Law, 275, above quoted; U. S. *vs*. Wiltberger, 28 Fed. Cas., 727, 729; Commonwealth *vs*. Pipes, 158 Pa. St., 25, 30; Stoneham *vs*. Commonwealth, 86 Va., 523, 525; Ayers *vs*. State, 60 Miss., 709, 714; Crawford *vs*. State, 35 Am. St. Rep., 242, 244; People *vs*. Stone, 82 Cal., 36, 37, 38.)

It must not be forgotten that the undisputed evidence in the case at bar shows that Bumanglag, when attacked by deceased, although on his own premises and

defending his own property, did all he could to avoid an encounter, retreating as far as safety permitted, and interposing between himself and his assailant stalks of sugar cane to impede the blows aimed at him, at the same time warding off the bolo thrusts with his bamboo stick.

It appears, therefore, that there was not only an unlawful aggression against the defendant, Bumanglag, personally, but also that there was a wrongful invasion of his habitation and an attempt to commit a felony against his property.

It fairly appearing that there was an unlawful aggression, it is evident that the danger to Bumanglag was imminent and certain. It is difficult to conceive how, with a weapon in the hands of decedent no more deadly than a bolo, the defendant could have been in danger more imminent and certain. A notorious desperado (Hood *vs*. State, 27 So. Rep., 643) had been caught red-handed in a felony. He was large, powerful (Stoneham *vs*. Commonwealth, 86 Va., 523, 525), and vicious. It was dark. So far as he knew, he was alone with his discoverer. He carried a fighting bolo. His discoverer had only a bamboo stick. A long term in State prison stared him in the face. There was one way to avoid it and only one — to kill his discoverer. If Bumanglag escaped, his arrest and conviction would surely follow. Can any one doubt, under these circumstances, what such a man would do? Bumanglag, as he confronted and recognized the man with whom he had to deal, realized instantly the imminence and certainty of his danger; and, as the robber dropped the stolen property and made the assault, Bumanglag knew that, without assistance from some source, his death would result. His danger was fully appreciated and realized by his companions when they heard his cries for help. They knew Ribis, his criminal record, his desperate character, his unusual strength. (People *vs*. Webster, 139 N. Y., 73; State *vs*. Martin, 9 Ohio Dec., 778; State v. Broussard, 39 La. Ann., 671; State *vs*. Bowles 146 Mo., 6; State *vs*. Knapp, 45 N. H., 148.) They knew he was armed and their companion was not. They knew it lay with them whether Bumanglag was killed or not. From their viewpoint was not their participation in the struggle fully justified?

It has been suggested that the means used by the defendants were not reasonably necessary for the protection of their companion, and that, being so many against one, they should not have struck the decedent with their clubs, but, rather, should have seized him with their hands, disarmed him and made him prisoner. Among all the reasons assigned by the prosecution to sustain the conviction in this case this, to my mind, is the only one that in anywise appeals to reason or judgment. In fact it is the only ground presented by the Government upon which such conviction can be sustained, if it can be sustained at all. Still, giving that contention all of the weight which it justify carries, I yet am entirely lacking in confidence that it is sound under the circumstances of this case and the established law applicable thereto, and is, I belie, fully and fairly met by the substance of the following observations:

I remember, on occasion, seeing, in the public square in my native town, a large and powerful American attacked by a diminutive Italian armed with a stiletto. I remember seeing the American running backward, leaping and dodging frantically to avoid the vicious thrusts aimed by the pursuing Italian at a vital part. I remember also that at least a half dozen other Americans were at the rear of the Italian, closely following him and yelling to him at the top of their voices to desist, but not one daring to grapple with him to save the person attacked; and it was only when another American, having rushed into the yard of the hotel and secured a stick of wood, returned to the scene and gave the Italian from behind a heavy blow over the head with the club, stretching him senseless, that the assault was terminated.

The question naturally arises, Why did not some one seize the Italian? The answer is, for the simple reason that a furious and vicious man armed with a dagger and skilled in its use is an individual dangerous to the very extreme, and the man who seizes him with his naked runs and the chances of his life. This is known to all. But, comes the reply, Why not all seize him at once and thus avoid the danger to one? The suggestion is simple but the execution is most difficult — in most cases little short of impossible. On such an occasion the time within which action must be secured is of the very shortest. Everything is excitement and confusion. Everybody yells and dreads, but nobody thinks. If there happens to be one who does think, he has no companions in the process. There is, and in the vast majority of cases there can be, no concert of action. The aid rendered in such cases is almost invariably individual.

In the case at bar, as in the illustration, there was a fierce struggle between two men. The one was defending his own property on his own premises and performing a service to society by doing his part to render amenable to the law a desperate and reckless criminal. The other was an invader, a despoiler, wholly unrestrained by conscience or deterred by law — an inveterate enemy of society and his kind. He was armed with a dangerous weapon. He was desperate, vicious, criminal, and powerful, surprised in an act of felony. It was dark. He was attempting to take the life of his opponent. It was unknown, and unknowable, when, in that struggle, the fatal blow would be delivered. It might come at any instant. Ought it fairly to be required as a matter of law that the defendants, rushing forward to assist their companions, should, under these circumstances attempt the seizure of this powerful and desperate man with their naked hands, in the dark, without the ability, by reason of the conditions, to see the weapon and the manner in which it was being used? Would not such a requirement put them in great danger of being themselves seriously wounded, even if it did not add to the danger of their companion? It is the unquestioned law, and it should be rigorously enforced, that life can not be taken except in necessity, but it is as unquestioned that he who comes to his assistance, is not required to do anything which will increase his danger or enhance the opportunity of the aggressor to accomplish his end. (U. S. *vs*. Mack, 8 Phil. Rep., 701; U. S. *vs*. Paras, 9 Phil. Rep., 367; supreme court of Spain, 25 September, 1875; U. S. *vs*. Herbert, 26 Fed. Cas., No. 15354; State *vs*. Robertson, 50 La. Ann., 92; 25 Am. & Eng. Ency. of L., 273.) Moreover, if the life of Bumanglag was to be saved at all, the aggressor must be dealt with quickly and summarily. Events were unrolling rapidly. There was a life in danger, every instant becoming more imminent. There was no time to think; no time for deliberate, careful judgment and nice precision; no opportunity to devise means or lay plans. Under such circumstances the law does not hold men to the standards of careful thought and calm judgment. (Allen *vs*. U. S., 150; U. S., 551; State *vs*. West, 45 La. Ann., 14, 23' Brownell *vs*. People, 38 Mich., 732; supreme court of Spain, 7 December, 1886; Viada, Penal Code, vol. 1, 157-160.)

In order to make perfectly available the defense that they were rightfully defending Bumanglag, and that the means they employed were reasonably necessary, it is not essential that there should be absolute and positive danger to the person whose protection is attempted. If there is a well-grounded and reasonable belief that the person is in imminent danger of death or great bodily harm, an attempt to defend him by means which appear reasonably necessary is justifiable. The reasonable appearance is the important thing. (Shorter *vs*. People, 2 N. Y., 193, 197; Brown *vs*. Com., 86 Va., 466; Logue *vs*. Com., 38 Pa. St., 265; Murray *vs*. Com., 79 Pa. St., 311, 317; Pond *vs*. People, 8 Mich., 149, 150; Hurd *vs*. People, 25 Mich., 404, 405; People *vs*. Miles, 55 Cal., 207; People *vs*. Herbert, 61 Cal., 544; Campbell *vs*. People, 16 Ill.,

17; Enlow *vs*. State, 154 Ind., 664; Hubbard *vs*. State, 37 Fla., 156; Alvarez *vs*. State, 37 Fla., 156; Oliver *vs*. State, 17 Ala., 587; Stewart *vs*. State, 1 Ohio St., 66, 71; 25 Am. & Eng. Ency. of Law, 262, 263; U. S. *vs*. Paras, 9 Phil. Rep., 367.)

In deciding this case we must, therefore, under the law, put ourselves in the position of the defendants at the time of the event. It is from their point of view that they are to be judged.

If they honestly believed, and had apparently reasonable grounds for that belief, that the life of their companion was in imminent danger or that he was likely to suffer great bodily harm, and that the means which they used to protect him were reasonably necessary to that end, they can not be convicted. (Viada, Penal Code, vol. 1, 98; People *vs*. Bruggy, 93 Cal., 476; Harris *vs*. State, 96 Ala., 24; U. S. *vs*. Outerbridge, 5 Sawy. (U. S. Circ.), 620) I am convinced that the facts and circumstances of this case were sufficient to induce and support the belief in the minds of the defendants that their companion's life was in imminent danger and that the means which they employed were reasonably necessary to secure his protection. (Supreme court of Spain, 2 January, 1873; 5 April, 1873; 30 April, 1874; 31 May, 1879; 17 March, 1885; 25 November, 1886; 26 November, 1886; 2 March, 1888; 4 April, 1889; 5 July, 1890; 6 December, 1890; 30 December, 1890; 11 February, 1896; 9 December, 1896; 24 May, 1898; 28 May, 1898; 10 December, 1898; 15 November, 1899; 9 January, 1900; 1 June, 1901; 16 April, 1902; 3 January, 1903; 14 January, 1903; 20 March, 1903; 11 July, 1909; 26 October, 1904; 17 November, 1904; 20 October, 1904; 29 October, 1904; 8 March, 1905.) In other words, it would seem under all the circumstances, that it can not fairly be charged that the defendants, particularly the appellant, acted otherwise than as reasonable men would have acted in the same situation; and after all this is the real test. (Allen *vs*. U. S., 150 U. S., 551; Hickory *vs*. U. S., 151 U. S., 303; Christian *vs*. State, 96 Ala., 89; People *vs*. Hurley, 8 Cal., 390; Gainey *vs*. People, 97 Ill., 270; State *vs*. West, 45 La. Ann., 14.)

While most of the authorities above cited refer to self-defense only, the principles they enunciate are fully applicable to the case at bar, because, generally speaking, what one may do in his own defense another may do for him. (25 Am. & Eng. Ency. of Law, 274, and cases there cited.)

Under the circumstances of this case I can not fee that the fair and impartial administration of justice requires that we should refine doctrines, draw uncertain distinctions, invoke doubtful presumptions, employ fine analyses, or seize upon equivocal circumstances for the purpose of convicting the appellant of homicide, or for the purpose of establishing a doctrine which may have as a result that a criminal, invading his neighbors' premises feloniously and in the nighttime for the purpose of robbery, and surprised and taken in his wanton act, may feel that he is in any way of to any degree privileged under the law when, in attempting to make outrage against man and society secure from detection and punishment, he seeks by every means in his power to destroy the life of his discover. Every man ought to lend his hand in assisting society to apprehend and punish offenders against its institutions and laws, and while the wanton or illegal destruction of human life, under the guise of such assistance, ought to be promptly, vigorously, and unrelentingly punished, still, where such person, acting in the honest belief that he is saving the life of one who is viciously attacked by a criminal whose recognition or apprehension is attempted, in the defense of such person, causes the death of the criminal, the court ought not to be drawn from its usual, even and steady course in order to provide a punishment. (Supreme court of Spain, 5

February, 1887; Viada, Penal Code, vol. 1, 160, 161.)

This court has gone very far in the direction of liberality in laying down the principles governing the defense of self-defense and the means that may be legally employed to make that defense effective — very much further, indeed, than it is necessary to go to absolve the appellant in the case at bar. In the case of the United States *vs*. Patala (2 Phil. Rep., 752), the court says, page 756:

> "It appears from the testimony of the defendant that at the time of the occurrence he was cleaning fish on board the steamship *Compañia de Filipinas*; that without any provocation on his part the deceased, who was the cook of the boat, believing that some of the fish was missing, slapped him and kicked him; that not being satisfied with this, when the defendant started to run away from him, the deceased pursued him and attacked him with a knife; that the defendant, taking advantage of some favorable chance during the struggle, succeeded in wresting the knife from the deceased and inflicted upon him a wound in the left side, from the result of which he died a few hours later.
>
> ". . . The aggression on the part of the deceased was in every respect unjustified, and the defendant had a perfect right to repel the attack in the most adequate from within his power under the *critical circumstances of a sudden assault*.
>
> ". . . He had reason to believe that he was placed in the alternative of killing or being killed when he was being attacked and pursued with a deadly weapon. This was the only weapon used during the struggle and it necessary had to be either in his possession or in the hands of the deceased. If through a fortunate accident he came into possession of the knife, he could have lost control of it through a similar accident and then found himself at the mercy of his assailant. Therefore the act of the defendant rendering his assailant powerless as well as he could under the critical circumstances of the moment, and repelling his aggression, constitute, in our opinion, a true case of self-defense, which exempts the defendant from any criminal liability under paragraph 4 of article 8 of the Penal Code."

The same doctrine is laid down in the similar case of the United States *vs*. Salandanan (1 Phil. Rep., 478). (See also U. S. *vs*. Brello, 9 Phil. Rep., 424; U. S. *vs*. Reyes, 1 Phil. Rep., 517; U. S. *vs*. Bailon, 9 Phil. Rep., 161.)

There is neither claim nor evidence that any of the defendants were actuated in their defense of Bumanglag by revenge, resentment, or other illegal motive, and from this point of view the case requires no discussion.

As to the question of reasonable doubt.

> "In discussing the questions of burden of proof and reasonable doubt in cases involving self-defense, the courts have stated various confusing and apparently contradictory propositions but the general rule deducible from the authorities seems to be that when the prosecution has made a *prima facie* case against the accused, it is for him to introduce evidence showing self-defense, if he sets up that plea; but that if upon the whole testimony, both on the part of the State and the accused the jury had a reasonable doubt whether he acted in self-defense or not, he is entitled to the benefit of the doubt and to an acquittal." (25 Am. & Eng. Ency. of Law, 283.)

The doctrine above stated is fully supported by the authorities.

In the case of Lillienthal *vs*. United States (97 U. S., 237, 266), the court said:

> "In criminal cases the true rule is that the burden of proof never shifts; that, in all cases, before a conviction can be had, the jury must be satisfied from the evidence, beyond a reasonable doubt, of the affirmative of the issue presented in the accusation, that the defendant is guilty in the manner and form as charged in the indictment. . . . Where the matter of excuse or justification of the offense charged grows out of the original transaction, the defense is not driven to the necessity of establishing the matter is excuse or justification by a preponderance of the evidence, and much less beyond a reasonable doubt. If, upon a consideration of all the evidence, there be a reasonable doubt of the guilt of the party, the jury are to give him the benefit of such doubt."

To the same effect are Tweedy *vs*. State (5 Iowa, 433); Wharton's Criminal Evidence, p. 236; Tiffany *vs*. Commonwealth (121 Pa. St., 165); People *vs*. Coughlin (65 Mich., 704).

> "The section casts upon the defendant the burden of proving circumstances of mitigation, or that justify or excuse the commission of the homicide. This does not mean that he must prove such circumstances *by a preponderance of the evidence*, but that the presumption that the killing was felonious arises from the mere proof by the prosecution of the homicide, and the burden of proving circumstances of mitigation, etc., is thereby case upon him. He is only bound under this rule to produce such evidence as will create in the minds of the jury a reasonable doubt of his guilt of the offense charged." (People *vs*. Flanagan, 60 Cal., 3; 44 Am. Rep., 52; People *vs*. Smith, 59 Cal., 607.) "It can make no difference whether this reasonable doubt is the result of evidence on the part of the defendant tending to show circumstances of mitigation, or that justify or excuse the killing, or from other evidence coming from him or the prosecution. The well-settled rule that a defendant shall not be convicted unless the evidence proves his guilt beyond a reasonable doubt applies to the whole and every material part of the case, no matter whether it is as to the act of killing, or the reason for or manner of its commission." (People *vs*. Bushton, 80 Cal., 160, 164; Alexander *vs*. People, 96 Ill., 96; People *vs*. Riordan, 117 N. Y., 71.)

Reading the evidence in this case in the light of reason and of the principles enunciated by the courts, I can not but feel that, under all the circumstances, there is a strong doubt of the appellant's legal responsibility for the crime charged. In my opinion, therefore, the judgment of the court below should be reversed and the appellant acquitted.

EN BANC

[G.R. Nos. L-33466-67. April 20, 1983.]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **MAMERTO NARVAEZ**, *defendant-appellant*.

D E C I S I O N

MAKASIAR, *J* :

This is an appeal from the decision of the Court of First Instance of South Cotabato, Branch I, in Criminal Cases Nos. 1815 and 1816 for murder which, after a joint trial, resulted in the conviction of the accused in a decision rendered on September 8, 1970, with the following pronouncement:

> "Thus, we have a crime of MURDER qualified by treachery with the aggravating circumstance of evident premeditation offset by the mitigating circumstance of voluntary surrender. The proper penalty imposable, therefore, is RECLUSION PERPETUA (Arts. 248 and 64, Revised Penal Code).
>
> "Accordingly, finding Mamerto Narvaez guilty beyond reasonable doubt of the crime of murder,
>
> "(a) In Criminal Case No. 1815, he is hereby sentenced to RECLUSION PERPETUA, to indemnify the heirs of the deceased Davis Q. Fleischer in the sum of P12,000.00 as compensatory damages, P10,000.00 as moral damages, P2,000.00 as attorney's fees, the offended party having been represented by a private prosecutor, and to pay the costs;
>
> "(b) In Criminal Case No. 1816, he is hereby sentenced to RECLUSION PERPETUA, to indemnify the heirs of the deceased Flaviano Rubia in the sum of P12,000.00 as compensatory damages, P10,000.00 as moral damages, P2,000.00 as attorney's fees, the offended party having been represented by a private prosecutor, and to pay the costs" (p. 48, rec.).

The facts are summarized in the People's brief, as follows:

> "At about 2:30 in the afternoon of August 22, 1968, Graciano Juan, Jesus Verano and Cesar Ibañez, together with the two deceased Davis Fleischer and Flaviano Rubia, were fencing the land of George Fleischer, father of deceased Davis Fleischer. The place was in the boundary of the highway and the hacienda owned by George Fleischer. This is located in the municipality of Maitum, South Cotabato. At the place of the fencing is the house and rice drier of appellant Mamerto Narvaez (pp. 179-182, t.s.n., Pieza II). At that time, appellant was taking his rest, but when he heard that the walls of his house were being chiselled, he arose and there he saw the fencing going on. If the fencing would go on, appellant would be prevented from getting into his house and the bodega of his ricemill. So he addressed the group, saying -'Pare, if possible you stop destroying my house and if possible we will talk it over - what is good,' addressing the deceased Rubia, who is appellant's compadre. The deceased Fleischer,

however, answered: 'No, gademit, proceed, go ahead.' Appellant apparently lost his equilibrium and he got his gun and shot Fleischer, hitting him. As Fleischer fell down, Rubia ran towards the jeep, and knowing there is a gun on the jeep, appellant fired at Rubia, likewise hitting him (pp. 127-133, t.s.n., Defense transcript). Both Fleischer and Rubia died as a result of the shooting' (pp. 9-14, t.s.n., Pieza I; pp. 8-9, Appellant's Brief, p. 161, rec.).

It appears, however, that this incident is intertwined with the long drawn out legal battle between the Fleischer and Co., Inc. of which deceased Fleischer was the secretary-treasurer and deceased Rubia the assistant manager, on the one hand, and the land settlers of Cotabato, among whom was appellant.

From the available records of the related cases which had been brought to the Court of Appeals (CA-G.R. Nos. 28858-R and 50583-R) and to this Court on certiorari (G.R. No. L-26757 and L-45504), WE take judicial notice of the following antecedent facts:

Appellant was among those persons from northern and central Luzon who went to Mindanao in 1937 and settled in Maitum, a former sitio of Kiamba, and now a separate municipality of South Cotabato. He established his residence therein, built his house, cultivated the area, and was among those who petitioned then President Manuel L. Quezon to order the subdivision of the defunct Celebes Plantation and nearby Kalaong Plantation totalling about 2,000 hectares, for distribution among the settlers.

Shortly thereafter, Fleischer and Company, headed by George W. Fleischer, an American landowner in Negros Oriental, filed sales application No. 21983 on June 3, 1937 over the same area formerly leased and later abandoned by Celebes Plantation Company, covering 1,017.2234 hectares.

Meanwhile, the subdivision was ordered and a public land surveyor did the actual survey in 1941 but the survey report was not submitted until 1946 because of the outbreak of the second world war. According to the survey, only 300 hectares identified as Lots Nos. 22, 26 and 38, Ps. 176 Kiamba, were set aside for Sales Application No. 21983, while the rest were subdivided into sublots of 5 to 6 hectares each to be distributed among the settlers (pp. 32-33, G.R. No. L-45504).

The 300 hectares set aside for the sales application of Fleischer and Company was declared open for disposition, appraised and advertised for public auction. At the public auction held in Manila on August 14, 1948, Fleischer and Company was the only bidder for P6,000.00. But because of protests from the settlers the corresponding award in its favor was held in abeyance, while an investigator was sent by the Director of Lands to Kiamba in the person of Atty. Jose T. Gozon. Atty. Gozon came back after ten days with an amicable settlement signed by the representative of the settlers. This amicable settlement was later repudiated by the settlers, but the Director of Lands, acting upon the report of Atty. Gozon, approved the same and ordered the formal award of the land in question to Fleischer and Company. The settlers appealed to the Secretary of Agriculture and Natural Resources, who, however, affirmed the decision in favor of the company.

On May 29, 1950, the settlers filed Civil Case No. 240 in the Court of First Instance of Cotabato which then consisted only of one sala, for the purpose of annulling the order of the Secretary of Agriculture and Natural Resources which affirmed the order of the Director of Lands awarding the contested land to the company. The settlers, as plaintiffs, lost that case in view of the amicable settlement which they had repudiated as resulting from threats and intimidation, deceit, misrepresentation and

fraudulent machination on the part of the company. They appealed to the Court of Appeals (CA-G.R. No. 28858-R) which likewise affirmed on August 16, 1965 the decision of the Court of First Instance in favor of the company.

This resulted in the ouster of the settlers by an order of the Court of First Instance dated September 24, 1966, from the land which they had been occupying for about 30 years. Among those ejected was the appellant who, to avoid trouble, voluntarily dismantled his house, built in 1947 at a cost of around P20,000.00, and transferred to his other house which he built in 1962 or 1963 near the highway. The second house is not far from the site of the dismantled house. Its ground floor has a store operated by Mrs. June Talens who was renting a portion thereof. He also transferred his store from his former residence to the house near the highway. Aside from the store, he also had a rice mill located about 15 meters east of the house, and a concrete pavement between the rice mill and the house, which is used for drying grains and copra.

On November 14, 1966, appellant was among the settlers on whose behalf Jose V. Gamboa and other leaders filed Civil Case No. 755 in the Court of First Instance of Cotabato, Branch I, to obtain an injunction or annulment of the order of award with prayer for preliminary injunction. During the pendency of this case, appellant on February 21, 1967 entered into a contract of lease with the company whereby he agreed to lease an area of approximately 100 to 140 square meters of Lot No. 38 from the company (Exh. 9, p. 1, Folder of Exhibits for Defense) for a consideration of P16.00 monthly. According to him, he signed the contract although the ownership of the land was still uncertain, in order to avoid trouble, until the question of ownership could be decided. He never paid the agreed rental, although he alleges that the milling job they did for Rubia was considered payment. On June 25, 1968, deceased Fleischer wrote him a letter with the following tenor:

> "You have not paid six months rental to Fleischers & Co., Inc. for that portion of land in which your house and ricemill are located as per agreement executed on February 21, 1967. You have not paid even after repeated attempts of collection made by Mr. Flaviano Rubia and myself.
>
> "In view of the obvious fact that you do not comply with the agreement, I have no alternative but to terminate our agreement on this date.
>
> "I am giving you six months to remove your house, ricemill, bodega, and water pitcher pumps from the land of Fleischers & Co., Inc. This six-month period shall expire on December 31, 1966.
>
> "In the event the above constructions have not been removed within the six-month period, the company shall cause their immediate demolition" (Exhibit 10, p. 2, supra).

On August 21, 1968, both deceased, together with their laborers, commenced fencing Lot 38 by putting bamboo posts along the property line parallel to the highway. Some posts were planted right on the concrete drier of appellant, thereby cutting diagonally across its center (pp. 227-228, t.s.n., Vol. 2), with the last post just adjacent to appellant's house (p. 231, t.s.n., *supra*). The fence, when finished, would have the effect of shutting off the accessibility to appellant's house and rice mill from the highway, since the door of the same opens to the Fleischers' side. The fencing continued on that fateful day of August 22, 1968, with the installation of four strands of barbed wire to the posts.

At about 2:30 p.m. on the said day, appellant who was taking a nap after working

on his farm all morning, was awakened by some noise as if the wall of his house was being chiselled. Getting up and looking out of the window, he found that one of the laborers of Fleischer was indeed chiselling the wall of his house with a crowbar (p. 129, t.s.n., Vol. 6), while deceased Rubia was nailing the barbed wire and deceased Fleischer was commanding his laborers. The jeep used by the deceased was parked on the highway. The rest of the incident is narrated in the People's Brief as above-quoted. Appellant surrendered to the police thereafter, bringing with him shotgun No. 1119576 and claiming he shot two persons (Exh. P, p. 31, Defense Exhibits).

Appellant now questions the propriety of his conviction, assigning the following errors:

> *"First Assignment of Error:* That the lower court erred in convicting defendant-appellant despite the fact that he acted in defense of his person; and
>
> *"Second Assignment of Error:* That the court *a quo* also erred in convicting defendant-appellant although he acted in defense of his rights" (p. 20 of Appellant's Brief, p. 145, rec.).

The act of killing of the two deceased by appellant is not disputed. Appellant admitted having shot them from the window of his house with the shotgun which he surrendered to the police authorities. He claims, however, that he did so in defense of his person and of his rights, and therefore he should be exempt from criminal liability.

Defense of one's person or rights is treated as a justifying circumstance under Art. 11, par. 1 of the Revised Penal Code, but in order for it to be appreciated, the following requisites must occur:

> "First. Unlawful aggression;
>
> "Second. Reasonable necessity of the means employed to prevent or repel it;
>
> "Third. Lack of sufficient provocation on the part of the person defending himself" (Art 11, par. 1, Revised Penal Code, as amended).

The aggression referred to by appellant is the angry utterance by deceased Fleischer of the following words: "Hindi, sigue, gademit, avante", in answer to his request addressed to his *compadre,* the deceased Rubia, when he said, "Pare, hinto mona ninyo at pag-usapan natin kung ano ang mabuti" (pp. 227-229, t.s.n., Vol. 6). This was in reaction to his having been awakened to see the wall of his house being chiselled. The verbal exchange took place while the two deceased were on the ground doing the fencing and the appellant was up in his house looking out of his window (pp. 225-227, *supra*). According to appellant, Fleischer's remarks caused this reaction in him: "As if, I lost my senses and unknowingly I took the gun on the bed and unknowingly also I shot Mr. Fleischer, without realizing it, I shot Mr. Fleischer" (p. 132, *supra*). As for the shooting of Rubia, appellant testified:

> "When I shot Davis Fleischer, Flaviano Rubia was nailing and upon hearing the shot, Mr. Rubia looked at Mr. Fleischer and when Mr. Fleischer fell down, Mr. Rubia *ran toward s the jeep and knowing that there was a firearm in the jeep and thinking that if he will take that firearm he will kill me, I shot at him"* (p. 132, supra, emphasis supplied).

The foregoing statements of appellant were never controverted by the

prosecution. They claim, however, that the deceased were in lawful exercise of their rights of ownership over the land in question, when they did the fencing that sealed off appellant's access to the highway.

A review of the circumstances prior to the shooting as borne by the evidence reveals that five persons, consisting of the deceased and their three laborers, were doing the fencing and chiselling of the walls of appellant's house, The fence they were putting up was made of bamboo posts to which were being nailed strands of barbed wire in several layers. Obviously, they were using tools which could be lethal weapons, such as nail and hammer, bolo or bamboo cutter, pliers, crowbar, and other necessary gadgets. Besides, it was not disputed that the jeep which they used in going to the place was parked just a few steps away, and in it there was a gun leaning near the steering wheel. When the appellant woke up to the sound of the chiselling on his walls, his first reaction was to look out of the window. Then he saw the damage being done to his house, compounded by the fact that his house and rice mill will be shut off from the highway by the fence once it is finished. He therefore appealed to his *compadre,* the deceased Rubia, to stop what they were doing and to talk things over with him. But deceased Fleischer answered angrily with "gademit" and directed his men to proceed with what they were doing.

The actuation of deceased Fleischer in angrily ordering the continuance of the fencing would have resulted in the further chiselling of the walls of appellant's house as well as the closure of the access to and from his house and rice mill — which were not only imminent but were actually in progress. There is no question, therefore, that there was aggression on the part of the victims: Fleischer was ordering, and Rubia was actually participating in the fencing. This was indeed aggression, not on the person of appellant, but on his property rights.

The question is, was the aggression unlawful or lawful? Did the victims have a right to fence off the contested property, to destroy appellant's house and to shut off his ingress and egress to his residence and the highway?

Article 30 of the Civil Code recognizes the right of every owner to enclose or fence his land or tenements.

However, at the time of the incident on August 22, 1968, Civil Case no. 755 for annulment of the order of award to Fleischer and Company was still pending in the Court of First Instance of Cotabato. The parties could not have known that the case would be dismissed over a year after the incident on August 22, 1968, as it was dismissed on January 23, 1970 on ground of *res judicata,* in view of the dismissal in 1965 (by the Court of Appeals) of Civil Case No. 240 filed in 1950 for the annulment of the award to the company, between the same parties, which the company won by virtue of the compromise agreement in spite of the subsequent repudiation by the settlers of said compromise agreement; and that such 1970 dismissal also carried the dismissal of the supplemental petition filed by the Republic of the Philippines on November 28, 1968 to annul the sales patent and to cancel the corresponding certificate of title issued to the company, on the ground that the Director of Lands had no authority to conduct the sale due to his failure to comply with the mandatory requirements for publication. The dismissal of the government's supplemental petition was premised on the ground that after its filing on November 28, 1968, nothing more was done by the petitioner Republic of the Philippines except to adopt all the evidence and arguments of plaintiffs with whom it joined as parties-plaintiffs.

Hence, it is reasonable to believe that appellant was indeed hoping for a

favorable judgment in Civil Case No. 755 filed on November 14, 1966 and his execution of the contract of lease on February 21, 1967 was just to avoid trouble. This was explained by him during cross-examination on January 21, 1970, thus:

> "It happened this way: we talked it over with my Mrs. that we better rent the place because even though we do not know who really owns this portion to avoid trouble. To avoid trouble we better pay while waiting for the case because at that time, it was not known who is the right owner of the place. So we decided until things will clear up and determine who is really the owner, we decided to pay rentals" (p. 169, t.s.n., Vol. 6).

In any case, Fleischer had given him up to December 31, 1968 (Exh. 10, p. 2, Defense Exhibits) within which to vacate the land. He should have allowed appellant the peaceful enjoyment of his properties up to that time, instead of chiselling the walls of his house and closing appellant's entrance and exit to the highway.

The following provisions of the Civil Code of the Philippines are in point:

> "Art. 536. In no case may possession be acquired through force or intimidation as long as there is a possessor who objects thereto. He who believes that he has an action or a right to deprive another of the holding of a thing must invoke the aid of the competent court, if the holder should refuse to deliver the thing."

> "Art. 539. Every possessor has a right to be respected in his possession; and should he be disturbed therein he shall be protected in or restored to said possession by the means established by the laws and the Rules of Court" (Articles 536 and 539, Civil Code of the Philippines).

Conformably to the foregoing provisions, the deceased had no right to destroy or cause damage to appellant's house, nor to close his accessibility to the highway while he was pleading with them to stop and talk things over with him. The assault on appellant's property, therefore, amounts to unlawful aggression as contemplated by law.

> "Illegal aggression is equivalent to assault or at least threatened assault of immediate and imminent kind" (People vs. Encomiendas, 46 SCRA 522).

In the case at bar, there was an actual physical invasion of appellant's property which he had the right to resist, pursuant to Art. 429 of the Civil Code of the Philippines which provides:

> "Art. 429. The owner or lawful possessor of a thing has the right to exclude any person from the enjoyment and disposal thereof. For this purpose, he may use such force as may be reasonably necessary to repel or prevent an actual or threatened unlawful physical invasion or usurpation of his property" (emphasis supplied).

The reasonableness of the resistance is also a requirement of the justifying circumstance of self-defense or defense of one's rights under paragraph 1 of Article 11, Revised Penal Code. When the appellant fired his shotgun from his window, killing his two victims, his resistance was disproportionate to the attack.

WE find, however, that the third element of defense of property is present, i.e., lack of sufficient provocation on the part of appellant who was defending his property. As a matter of fact, there was no provocation at all on his part, since he was asleep at

first and was only awakened by the noise produced by the victims and their laborers. His plea for the deceased and their men to stop and talk things over with him was no provocation at all.

Be that as it may, appellant's act in killing the deceased was not justifiable, since not all the elements for justification are present. He should therefore be held responsible for the death of his victims, but he could be credited with the special mitigating circumstance of incomplete defense, pursuant to paragraph 6, Article 13 of the Revised Penal Code.

The crime committed is homicide on two counts. The qualifying circumstance of treachery cannot be appreciated in this case because of the presence of provocation on the part of the deceased. As WE held earlier in People vs. Manlapaz (55 SCRA 598), the element of a sudden unprovoked attack is therefore lacking.

Moreover, in order to appreciate *alevosia,* "it must clearly appear that the method of assault adopted by the aggressor was deliberately chosen with a special view to the accomplishment of the act without risk to the assailant from any defense that the party assailed might have made. This cannot be said of a situation where the slayer acted instantaneously . . ." (People vs. Cañete, 44 Phil. 481).

WE likewise find the aggravating (qualifying) circumstance of evident premeditation not sufficiently established. The only evidence presented to prove this circumstance was the testimony of Crisanto Ibañez, 37 years old, married, resident of Maitum, South Cotabato, and a laborer of Fleischer and Company, which may be summarized as follows:

> "On August 20, 1968 (two days before the incident) at about 7:00 A.M., he was drying corn near the house of Mr. and Mrs. Mamerto Narvaez at the crossing. Maitum, South Cotabato, when the accused and his wife talked to him. Mrs. Narvaez asked him to help them, as he was working in the hacienda. She further told him that if they fenced their house, there is a head that will be broken. Mamerto Narvaez added 'Noy, it is better that you will tell Mr. Fleischer because there will be nobody who will break his head but I will be the one.' He relayed this to Mr. Flaviano Rubia, but the latter told him not to believe as they were only idle threats designed to get him out of the hacienda" (pp. 297-303, t.s.n., Vol. 2).

This single evidence is not sufficient to warrant appreciation of the aggravating circumstance of evident premeditation. As WE have consistently held, there must be "direct evidence of the planning or preparation to kill the victim, . . . it is not enough that premeditation be suspected or surmised, but the criminal intent must be evidenced by notorious outward acts evincing the determination to commit the crime" (People vs. Ordioles, 42 SCRA 238). Besides, there must be a "showing" that the accused premeditated the killing; that the culprit clung to their (his) premeditated act; and that there was sufficient interval between the premeditation and the execution of the crime to allow them (him) to reflect upon the consequences of the act" (People vs. Gida, 102 SCRA 70).

Moreover, the obvious bias of witness Crisanto Ibañez, as a laborer of the deceased Davis Fleischer, neutralizes his credibility.

Since in the case at bar, there was no direct evidence of the planning or preparation to kill the victims nor that the accused premeditated the killing, and clung to his premeditated act, the trial court's conclusion as to the presence of such circumstance may not be endorsed.

Evident premeditation is further negated by appellant pleading with the victims to stop the fencing and destroying his house and to talk things over just before the shooting.

But the trial court has properly appreciated the presence of the mitigating circumstance of voluntary surrender, it appearing that appellant surrendered to the authorities soon after the shooting.

Likewise, We find that passion and obfuscation attended the commission of the crime. The appellant awoke to find his house being damaged and its accessibility to the highway as well as of his rice mill bodega being closed. Not only was his house being unlawfully violated; his business was also in danger of closing down for lack of access to the highway. These circumstances, coming so near to the time when his first house was dismantled, thus forcing him to transfer to his only remaining house, must have so aggravated his obfuscation that he lost momentarily all reason causing him to reach for his shotgun and fire at the victims in defense of his rights. Considering the antecedent facts of this case, where appellant had thirty years earlier migrated to this so-called "land of promise" with dreams and hopes of relative prosperity and tranquility, only to find his castle crumbling at the hands of the deceased, his dispassionate plea going unheeded - all these could be too much for any man — he should be credited with this mitigating circumstance.

Consequently, appellant is guilty of two crimes of homicide only, the killing not being attended by any qualifying nor aggravating circumstance, but extenuated by the privileged mitigating circumstance of incomplete defense - in view of the presence of unlawful aggression on the part of the victims and lack of sufficient provocation on the part of the appellant - and by two generic mitigating circumstance of voluntary surrender and passion and obfuscation.

Article 249 of the Revised Penal Code prescribes the penalty for homicide as *reclusion temporal.* Pursuant to Article 69, *supra*, the penalty lower by one or two degrees shall be imposed if the deed is not wholly excusable by reason of the lack of some of the conditions required to justify the same. Considering that the majority of the requirements for defense of property are present, the penalty may be lowered by two degrees, i.e., to *prision correccional.* And under paragraph 5 of Article 64, the same may further be reduced by one degree, i.e., *arresto mayor*, because of the presence of two mitigating circumstances and no aggravating circumstance.

The civil liability of the appellant should be modified. In the case of Zulueta vs. Pan American World Airways (43 SCRA 397), the award for moral damages was reduced because the plaintiff contributed to the gravity of defendant's reaction. In the case at bar, the victims not only contributed but they actually provoked the attack by damaging appellant's properties and business. Considering appellant's standing in the community, being married to a municipal councilor, the victims' actuations were apparently designed to humiliate him and destroy his reputation. The records disclose that his wife, councilor Feliza Narvaez, was also charged in these two cases and detained without bail despite the absence of evidence linking her to the killings. She was dropped as a defendant only upon motion of the prosecution dated October 31, 1968. (p. 14, CFI rec. of Crim. Case No. 1816), but acted upon on November 4, 1968 (p. 58, CFI rec. of Criminal Case No. 1815).

Moreover, these cases arose out of an inordinate desire on the part of Fleischer and Company, despite its extensive landholdings in a Central Visayan province, to extend its accumulation of public lands to the resettlement areas of Cotabato. Since it

had the capability — financial and otherwise — to carry out its land accumulation scheme, the lowly settlers, who uprooted their families from their native soil in Luzon to take advantage of the government's resettlement program, but had no sufficient means to fight the big landowners, were the ones prejudiced. Thus, the moral and material suffering of appellant and his family deserves leniency as to his civil liability.

Furthermore, Article 39 of the Revised Penal Code requires a person convicted of *prision correccional* or *arresto mayor* and fine who has no property with which to meet his civil liabilities to serve a subsidiary imprisonment at the rate of one (1) day for each P2.50. However, the amendment introduced by Republic Act No. 5465 on April 21, 1969 made the provisions of Art. 39 applicable to fines only and not to reparation of the damage caused, indemnification of consequential damages and costs of proceedings. Considering that Republic Act 5465 is favorable to the accused who is not a habitual delinquent, it may be given retroactive effect pursuant to Article 22 of the Revised Penal Code.

WHEREFORE, FINDING APPELLANT GUILTY BEYOND REASONABLE DOUBT OF ONLY TWO (2) HOMICIDES, MITIGATED BY THE PRIVILEGED EXTENUATING CIRCUMSTANCE OF INCOMPLETE SELF-DEFENSE AS WELL AS BY TWO (2) GENERIC MITIGATING CIRCUMSTANCES OF VOLUNTARY SURRENDER AND OBFUSCATION, WITHOUT ANY AGGRAVATING CIRCUMSTANCE, APPELLANT IS HEREBY SENTENCED TO SUFFER AN IMPRISONMENT OF FOUR (4) MONTHS OF ARRESTO MAYOR, TO INDEMNIFY EACH GROUP OF HEIRS OF DAVIS FLEISCHER AND OF FLAVIANO RUBIA IN THE SUM OF FOUR THOUSAND (P4,000.00) PESOS, WITHOUT SUBSIDIARY IMPRISONMENT AND WITHOUT ANY AWARD FOR MORAL DAMAGES AND ATTORNEY'S FEES.

CONSIDERING THAT APPELLANT HAS BEEN UNDER DETENTION FOR ALMOST FOURTEEN (14) YEARS NOW SINCE HIS VOLUNTARY SURRENDER ON AUGUST 22, 1968, HIS IMMEDIATE RELEASE IS HEREBY ORDERED. NO COSTS.

SO ORDERED.

Fernando, C.J., Teehankee, Concepcion, Jr., Guerrero, De Castro, Melencio-Herrera, Escolin, Vasquez and Relova, JJ., *concur.*

Aquino, J., *is on leave.*

Plana, J., *concur in the result.*

Dissenting Opinion

ABAD SANTOS, J.:

I dissent. The self-defense of the Revised Penal Code refers to unlawful aggression on persons, not property.

Dissenting Opinion

GUTIERREZ, JR., J.:

While I agree with the order to release the appellant, I am constrained to dissent in part. It is true that Art. 429, Civil Code of the Philippines, provides that the owner or

legal possessor of a thing may use such force as may be reasonably necessary to repel or prevent an actual or threatened unlawful physical invasion or usurpation of his property. It seems to me, however, that an attack on the person defending his property is an indispensable element where an accused pleads self-defense but what is basically defended is only property.

Defense of property is not of such importance as the right to life and defense of property can only be invoked when it is coupled with some form of attack on the person of one entrusted with said property. The defense of property, whether complete or incomplete, to be available in prosecutions for murder or homicide must be coupled with an attack by the one getting the property on the person defending it.

In the case now before Us, there is absolutely no evidence that an attack was attempted, much less made upon the person of appellant. The mere utterance "No, gademit, proceed, go ahead" is not the unlawful aggression which entitles appellant to the pela of self-defense. I agree with the majority opinion that the crime is homicide but without any privileged mitigating circumstance.

Therefore, since the appellant is guilty beyond reasonable doubt of two (2) homicides, mitigated by the two generic mitigating circumstances of voluntary surrender and obfuscation, without any aggravating circumstance, the maximum sentence the appellant should have served was prision mayor plus the indemnification to each group of heirs of Davis Fleischer and of Flamiano Rubia of the sum of Four Thousand (P4,000.00) Pesos, without subsidiary imprisonment, but without any award for moral damages and attorney's fees.

Considering that appellant has been under detention for almost fourteen (14) years now since August 22, 1968, he has served the penalty and should be released.

THE PEOPLE OF THE PHILIPPINES, plaintiff and appellee, vs. PANTALEON V. PELAYO, accused and appellant

1966-09-20 | G.R. No. 05152-CR

VILLAMOR, J.:

Appeal from a judgment convicting the accused-appelant Pantaleo V. Pelayo, Jr. of the crime of light oral defamation and sentencing him "to suffer an imprisonment of twenty (20) days of *arresto menor*; to indemnify the offended party in the concept of nominal damages for injury of reputation in the sum of P1,000.00 and in case of insolvency to suffer the corresponding subsidiary imprisonment which shall, however not exceed one-third (1/3) of the principal penalty; and to pay the costs."

The offended party was then Governor, now Senator, Alejandro Almemdras. The appellant was then city councilor of Davao City.

It appears that on November 15, 1956, in the office of Atty. Clapano, appellant told the latter, within the hearing of Franscisco Banez, Rafael,Mascarinas and Prisco Parmisano , that while making one of his rounds to investigte the existence f gambling in ths community, a chinese operator named Lim Peng told him that the Gov. Almendras used to receive from the chinese P500.00 protection money. Thus he said to Clapano:

> Another operator whom i befriend, cofided to me that,he used to give P500.00 monthly. The governor was not satisfied with instead demanded that amount to be hiked to P1,000 a month but because i could no longer afford that amount, I gave to almendras my watch costing P250.00. Failure to gave P1,000.00 a,month, Gov. Almendras raided my place." and other of similar imoort.

On the following day , appellant delivered a priveledge speech during the regular session of the City Council of Davao City wherein, although without directly mentioning the governor as receiving "tongs", the reference to the latter after a series of interpellations and answers during the speech, because obvious.

Appellant does not deny but even admits having uttered these words and phrases to Clapano. However, he offered as defenses the following:

> 1 That he uttered those words and phrases in confidence to Clapano and that they are covered by the rule of privileged communication;
>
> 2 That since the crime as charged which is for serious slander is different from, and not included in, the as proved which is intriguing against honor, the conviction is illegal;
>
> 3 That he uttered those words and phrases in self-defense to what then Gov. Almendras in the latter's speech had stated of him in another place a few says before;
>
> 4 The award for nominal damages should have been set off by what he was also entitled to as a result of the slander made to him by Gov. Almendras on a previous occasion.

On appellant's first contention that the utterances made by him to Clapano were given in confidance to the latter and that the same should be covered by the rule on privileged communication, he argues that since Clapano is himself a member of the City Council, he, appellant, had the legal and moral duty to make the communication to him.

We overrule this contention. In the first place, his contention of confidence is inconsistent with his other contention of self-defense. If the communication was for the purpose of self-defense, it should not have been made in confidence as be alleged; it should have received some amount of publicity. In the second place, the records also show that on the following day he delivered a speech at the session of the City Council, wherein although he did not mention names he made it obvious that he was referring to the complainant as receiving money from gambling operators. In the third place there were others who heard the remarks when he was talking to Clapano. He could not have given the communication, therefore, in confidence.

On his other contention that the remarks should be covered by the rule on privileged communication, we consider the same rule as untenable. We cannot accept as true that he was actuated by a sense of duty, moral, legal, or social to communicate the matter to Clapano. He, himself was a member of the City Council. If he was carried by that sense of duty as he claims, it was not necessary for him to give his information to Clapano who was not his superior nor the party to whom the information should be given. He could have made the revelation himself either in open session or by taking the necessary steps to have the matter investigated. As,a co-member of the City Council appellant owes no,longer legal or moral duty to Clapano.

Tue next point raised is that the evidence adduced is for intriguing against honor and not light moral defamation.

The facts do not constitute intriguing against honor because the information given by appellant to Clapano, within the hearing of others, allegedly came from a definite source, to wit: Lim Peng. Where the source of the information can be pin-pointed and definitely determined, as what appellant had asserted by stating that it was from a certain Lim Peng, and he, appelant, àdopting as his own the information he has obtained, passes the same to another for the purpose of causing dishonor to complainant's reputation, the act is not intriguing against honor, but clearly,one of slander. But where the source or the author of the derogatory information cannot be determined and the defendant borrows the same and, without subscribing to the truth thereof, passes it to others, the defendant's act is one of intriguing against honor.

We agree that, in appropriate cases, self-defense in libel as,well as in slander, maybe,invoked as a legitimate defense. But the situation obtaining in the instant case is not one of those where that defense can be validly invoked. Even assuming that on a previous occasion the complainant in his speech had made derogatory with scurrilous words does not bring him within the protection of self-defense. His act of telling Clapano, within the hearing of others, that Almendras was receiving P500.00 monthly from operators of "panchong" and that he was demanding an increase to P1,000.00, is entirely independent of, and apart from, the alleged imputation made to him by complainant. For self-defense to exist in instances such as this, the defendant should not go beyond explaining what was previously said of him for the purpose f repairing or minimizing if not entirely removing the effect of the damage caused to him. The principle does not license him to utter blow-for-blow scurrilous language in return for what,he received. This is not as we understand it, what,the principle embraces.

Where the defender goes beyond more explaining his side and/or repairing, minimizing, or removing the effect of the damage by hitting back with equally if not more scurrilous remarks against the one who first made the imputation, his retaliation becomes entirely an independent act of his own of which he may stand to answer the consequences. The defense will lie only where the defendant makes a defense of the imputation previously made against him by another without, in turn, making slanderous remarks against the latter unless the remarks are necessary for his explanation or defense. In other words, unless make scurrilous remarks or language against the person who has defamed him, the defendant is not justified to hit back with slanderous words that will subject him to criminal prosecution for libel or slander. In the case at bar, if it is true that on a previous occasion the complainant had imputed to the defendant that he, the latter, was receiving money from gambling operators, the defendant was not licensed to make the same imputation or accusation because to do that is not an act of defense or one constitutive of an element thereof, but an aggression itself. Hitting back with words of same derogatory nature and degree does not repel the attack made against one's honor. To repel that attack, the defendant make an explanation of the imputation, and it is only where, if by explaining he must of necessity have to use scurrilous and slanderous remarks, that he may legally be allowed to do so without placing himself under criminal prosecution.

We share the view of the Solicitor General that the award of nominal damages should be reduced to the amount of P200.00. This amount, however, is not for the purpose of indemnifying the plaintiff, but as,a form of vindication or recognition of a right that has been violated or invaded by the defendant (Art. 2221, Civil Code).

The penalty fr the light oral defamation is *arresto menor* or a fine not exceeding P200.00 (Art. 358, last part). We have come across no portion of appellant's brief invoking any mitigating circumstances in his favor; nor is there evidence of existence of any aggravating circumstances.

WHEREFORE, the judgment of conviction appealed from is affirmed, but the sentence imposed upon appellant is hereby modified in the sense that he should pay,a fine of P100.00 with subsidiary imprisonment not to exceed 15 days in case of insolvency; to pay nominal damage to the offended party in the sum of P200.00 and the costs of this action.

Perez and Nolasco, JJ., concur.
Judgment modified.

FIRST DIVISION

[G.R. No. L-5749. October 21, 1910.]

THE UNITED STATES, *plaintiff-appellee*, ***vs.*** **PONCIANO ESMEDIA and MENA ESMEDIA**, *defendants-appellants*.

D E C I S I O N

TRENT, *J* :

This is an appeal from a sentence rendered by the Court of First Instance of the Province of Antique, condemning Ponciano Esmedia and Mena Esmedia to twelve years and one day of *reclusion temporal,* to jointly and severally pay to the heirs of Santiago Abando the sum of P1,000, and to pay the costs of the cause, for the crime of double homicide.

Ciriaco Abando, his wife, and their son, Santiago, lived in the jurisdiction of the municipality of Sibalom, in the barrio of Bongbongan, Province of Antique. Gregorio Esmedia, father of these two accused, son-in-law of Ciriaco Abando and brother-in-law of Santiago Abando, lived in the same barrio. These two families lived very near to each other and owned adjoining rice lands. Before this trouble occurred there had been a dispute between these two families relative to the ownership of the rice land then occupied by Ciriaco Abando. About 2 o'clock on the afternoon of the 24th of June, 1909, Ciriaco Abando instructed his son, Santiago, to go to a certain place in his rice field to let out the water in order that they could plant rice in the said field. In compliance with these instructions of his father, Santiago proceeded to the place designated, and while at work doing what he had been ordered by his father to do, Gregorio Esmedia appeared on the scene and started a quarrel with Santiago. Soon thereafter Gregorio drew a dagger and stabbed Santiago in the back. Santiago fell to the ground, but arose immediately and attacked Gregorio with his bolo, inflicting several wounds on the said Gregorio in consequence of which he fell to the ground. Before this trouble finally terminated the two accused and Ciriaco Abando appeared in that immediate vicinity.

These two accused contend that they were working in their rice field nearby, and on seeing Ciriaco Abando and Santiago Abando attacking their father, Gregorio, they started to the place to render their father assistance, Ponciano starting first; that when Ponciano got near the place of the trouble he was met by Ciriaco and Santiago who attacked him with bolos and clubs and that he, Ponciano, in self-defense, knocked them both down, and after they had fallen the other accused, Mena Esmedia, arrived. Ponciano further contends that he did not use a bolo in this fight, but used a club only.

The prosecution in the court below contended that when these two accused saw the fight between their father and Santiago they rushed to the place and proceeded to kill, as they thought, Santiago, and on seeing Ciriaco approaching they met him and killed him outright.

As a result of this fight Ciriaco was left dead on the scene, Gregorio received fatal wounds from which he died within about four hours, and Santiago also received fatal wounds from which he died five days later.

Ciriaco Abando received two wounds on the top of his head, one 8 centimeters and the other 3 centimeters in length, caused by some cutting instrument, and also sustained a fracture of the skull, apparently caused by means of a blow. He also had a wound on the head 3 centimeters in depth; another on the neck below the left war 3 1/2 centimeters in depth and 3 centimeters in length; the left eye was bruised and he also had a wound on the palm of the right hand 3 centimeters in length and 2 millimeters in depth.

Santiago Abando received in all seven wounds, one cross-wise of the head, back of the left ear, 8 centimeters in length and 1 centimeter in depth, another on top of the head, just above the first wound, 5 centimeters in length and a half centimeter in depth, a third wound on the left part of the neck 4 centimeters in length, all of these three wounds having been caused by a cutting instrument; a fourth wound, also caused by some sharp instrument, 1 centimeter in depth and 8 centimeters in length, on the top of the head; a fifth wound, 2 1/2 centimeters in length and 5 millimeters in depth, which was in the nature of a contusion, appeared on the frontal region of the head; a sixth wound, 2 centimeters in length and 3 1/2 centimeters deep, in the back; and a seventh wound on the left hand, 4 centimeters in length, 2 1/2 centimeters wide, and 2 millimeters in depth, which had apparently been caused by some cutting instrument.

The body of Gregorio Esmedia showed four wounds; a wound or bruise on the front of the head, 5 by 6 centimeters in dimension; another wound, caused by a cutting instrument, running across the head, 6 centimeters in length; another wound, apparently caused by a blow with some blunt instrument, on the breast; and another wound 1 centimeter in depth, apparently caused by a cutting instrument, and also a bruise on the left arm.

The accused, Ponciano Esmedia, received one wound on the head, but it was not of a serious nature; the other accused, Mena Esmedia, escaped uninjured.

The prosecution presented Andrea Lactoson, 60 years of age, wife of the deceased Ciriaco, and Julian Alagos, a young boy about 16 years of age, a grandson of Ciriaco. These two witnesses saw the fight and gave a detailed account of the same. While it is true that these two witnesses contradicted themselves to some extent on cross-examination, they having testified on direct examination that Ciriaco never did reach the scene of the fight but was killed by the two accused while on his way there, whereas on cross-examination they testified that Ciriaco was there and when the accused arrived, yet it is clear that they intended to say that when the two accused arrived Ciriaco was in that vicinity but they did not mean to say that he was at the very side of his son.

The theory of the defense that Ponciano was attacked by Ciriaco and Santiago is untenable, as the nature and character of the wounds on the bodies of these two persons show clearly that at least some of them were inflicted by bolos, and Ponciano must have used a bolo in the fight, though he contends that he only made use of a club. The bolo wounds on the heads of Gregorio and Santiago were of such a serious nature that it would have been impossible for them to have gone any distance after having been wounded. So they could not have rushed toward Ponciano and attacked him after having received these wounds. Santiago was stabbed in the back by Gregorio, but this wound of itself was not necessarily fatal.

After a careful consideration of this entire record we are thoroughly satisfied that the following facts, aside from those we have already related, have been established:

The two accused arrived on the scene about the time the fight between Santiago

and Gregorio was terminating, and on seeing their father, Gregorio, lying in the mud and water, fatally wounded and dying, and honestly believing that Santiago, who was standing at the time, would inflict other wounds upon their father, they, in his defense, immediately killed Santiago. Ciriaco was near the scene at this time and on seeing him the two accused, under this great excitement, proceeded to attack him, and as a direct result of the blows inflicted by them he fell to the ground, dying immediately. Ciriaco was an old man, about 80 years of age, and used a cane to assist him in walking about.

Under the provisions of No. 5, article 8 of the Penal Code, the two accused are exempt from criminal responsibility for having caused the death of Santiago Abando, inasmuch as it has been shown that they inflicted these wounds upon him in defense of their father who was fatally wounded at the time. They honestly believed, and had good grounds upon which to found their belief, that Santiago would continue his attack upon their father. They are, however, guilty of having caused the death of the old man, Ciriaco Abando. When they attacked and killed him the other trouble had terminated and they were not in danger of bodily harm from him.

In the commission of this crime of homicide, we must take into consideration No. 20 of article 10 of the Penal Code which provides, as an aggravating circumstance, that "when the act is committed with insult or in disregard for the respect which may be due the aggrieved party on account of his rank, age, . . ." inasmuch as the deceased, Ciriaco, was a man 80 years of age and did not arrive on the scene until after the trouble between the two accused and Santiago had terminated.

As we have said, these two accused killed this old man, Ciriaco, while laboring under great excitement and in the heat of passion, and it might be insisted that under these circumstances they should be given the benefit of No. 7 of article 9 of the Penal Code, as an extenuating circumstance. This provision should be applied to reduce the penalty in cases where the provocation which caused the heated passion was made by the injured party. In the case at bar the provocation was made by Santiago and not Ciriaco, as Ciriaco arrived after the fight had terminated and there was then no provocation running from the old man, Ciriaco, to these accused. He was entirely unarmed and made no demonstration and said no word prior to the assault upon him by the two accused. So the state of mind into which these two accused were thrown by the provocation induced by Santiago can not modify the extent of their punishment for killing the old man. In other words, before this provision can be applied as an extenuating circumstance it is necessary, as we have said, that the person injured should have executed the act producing *arrebato y obcecacion.* It can not be applied when an assault is made upon a person who had taken no part in the quarrel and had not in any manner provoked the accused. (Decision of the supreme court of Spain dated October 17, 1904, published in the Official Gazette on December 23 following; decision of the supreme court of Spain dated January 12, 1894; White vs. State, 44 Tex. Cr. Rep., 346; State vs. Jackson, 45 La. Ann., 1031; State vs. Vinso, 171 Mo., 576.)

In view of the fact that these two accused are ignorant the aggravating circumstance is compensated by the provisions of article 11 of the Penal Code which we applied in this case.

The sentence appealed from is, therefore, affirmed; provided, however, that these two accused, Ponciano Esmedia and Mena Esmedia, be condemned to fourteen years eight months and one day of reclusion temporal, and to the accessory penalties; and, provided further, that they be declared exempt from criminal responsibility for causing the death of Santiago Abando, which exemption relieves them from paying any

indemnity to the heirs of the said Santiago Abando.

Arellano, C.J., Torres, Johnson, and *Moreland, JJ.,* concur.

THE QUEEN *v.* DUDLEY AND STEPHENS.

1884
Dec. 9.

Criminal Law—Murder—Killing and eating Flesh of Human Being under Pressure of Hunger—"Necessity"—Special Verdict—Certiorari—Offence on High Seas—Jurisdiction of High Court.

A man who, in order to escape death from hunger, kills another for the purpose of eating his flesh, is guilty of murder; although at the time of the act he is in such circumstances that he believes and has reasonable ground for believing that it affords the only chance of preserving his life.

At the trial of an indictment for murder it appeared, upon a special verdict, that the prisoners D. and S., seamen, and the deceased, a boy between seventeen and eighteen, were cast away in a storm on the high seas, and compelled to put into an open boat; that the boat was drifting on the ocean, and was probably more than 1000 miles from land; that on the eighteenth day, when they had been seven days without food and five without water, D. proposed to S. that lots should be cast who should be put to death to save the rest, and that they afterwards thought it would be better to kill the boy that their lives should be saved; that on the twentieth day D., with the assent of S., killed the boy, and both D. and S. fed on his flesh for four days; that at the time of the act there was no sail in sight nor any reasonable prospect of relief; that under these circumstances there appeared to the prisoners every probability that unless they then or very soon fed upon the boy, or one of themselves, they would die of starvation:—

Held, that upon these facts, there was no proof of any such necessity as could justify the prisoners in killing the boy, and that they were guilty of murder.

INDICTMENT for the murder of Richard Parker on the high seas within the jurisdiction of the Admiralty.

At the trial before Huddleston, B., at the Devon and Cornwall Winter Assizes, November 7, 1884, the jury, at the suggestion of the learned judge, found the facts of the case in a special verdict which stated "that on July 5, 1884, the prisoners, Thomas Dudley and Edward Stephens, with one Brooks, all able-bodied English seamen, and the deceased also an English boy, between seventeen and eighteen years of age, the crew of an English yacht, a registered English vessel, were cast away in a storm on the high seas 1600 miles from the Cape of Good Hope, and were compelled to put into an open boat belonging to the said yacht. That in this boat they had no supply of water and no supply of food, except two 1lb. tins of turnips, and for three days they had nothing else to subsist upon. That on the fourth day they caught a small

1884

THE QUEEN v. DUDLEY AND STEPHENS.

turtle, upon which they subsisted for a few days, and this was the only food they had up to the twentieth day when the act now in question was committed. That on the twelfth day the remains of the turtle were entirely consumed, and for the next eight days they had nothing to eat. That they had no fresh water, except such rain as they from time to time caught in their oilskin capes. That the boat was drifting on the ocean, and was probably more than 1000 miles away from land. That on the eighteenth day, when they had been seven days without food and five without water, the prisoners spoke to Brooks as to what should be done if no succour came, and suggested that some one should be sacrificed to save the rest, but Brooks dissented, and the boy, to whom they were understood to refer, was not consulted. That on the 24th of July, the day before the act now in question, the prisoner Dudley proposed to Stephens and Brooks that lots should be cast who should be put to death to save the rest, but Brooks refused to consent, and it was not put to the boy, and in point of fact there was no drawing of lots. That on that day the prisoners spoke of their having families, and suggested it would be better to kill the boy that their lives should be saved, and Dudley proposed that if there was no vessel in sight by the morrow morning the boy should be killed. That next day, the 25th of July, no vessel appearing, Dudley told Brooks that he had better go and have a sleep, and made signs to Stephens and Brooks that the boy had better be killed. The prisoner Stephens agreed to the act, but Brooks dissented from it. That the boy was then lying at the bottom of the boat quite helpless, and extremely weakened by famine and by drinking sea water, and unable to make any resistance, nor did he ever assent to his being killed. The prisoner Dudley offered a prayer asking forgiveness for them all if either of them should be tempted to commit a rash act, and that their souls might be saved. That Dudley, with the assent of Stephens, went to the boy, and telling him that his time was come, put a knife into his throat and killed him then and there; that the three men fed upon the body and blood of the boy for four days; that on the fourth day after the act had been committed the boat was picked up by a passing vessel, and the prisoners were rescued, still alive, but in the lowest state of prostration. That they were carried to the

port of Falmouth, and committed for trial at Exeter. That if the men had not fed upon the body of the boy they would probably not have survived to be so picked up and rescued, but would within the four days have died of famine. That the boy, being in a much weaker condition, was likely to have died before them. That at the time of the act in question there was no sail in sight, nor any reasonable prospect of relief. That under these circumstances there appeared to the prisoners every probability that unless they then fed or very soon fed upon the boy or one of themselves they would die of starvation. That there was no appreciable chance of saving life except by killing some one for the others to eat. That assuming any necessity to kill anybody, there was no greater necessity for killing the boy than any of the other three men." But whether upon the whole matter by the jurors found the killing of Richard Parker by Dudley and Stephens be felony and murder the jurors are ignorant, and pray the advice of the Court thereupon, and if upon the whole matter the Court shall be of opinion that the killing of Richard Parker be felony and murder, then the jurors say that Dudley and Stephens were each guilty of felony and murder as alleged in the indictment."

The learned judge then adjourned the assizes until the 25th of November at the Royal Courts of Justice. On the application of the Crown they were again adjourned to the 4th of December, and the case ordered to be argued before a Court consisting of five judges.

Dec. 4. *Sir H. James, A.G.* (*A. Charles, Q.C., C. Mathews,* and *Danckwerts,* with him), appeared for the Crown.

The record having been read,

A. Collins, Q.C. (*H. Clark,* and *Pyke,* with him), for the prisoners, objected, first, that the statement in the verdict that the yacht was a registered British vessel, and that the boat in which the prisoners were belonged to the yacht, was not part of any finding by the jury; secondly, that the formal conclusion of the verdict, "whether upon the whole matter the prisoners were and are guilty of murder, the jury are ignorant," &c., was also no part of the finding of the jury, as they simply found the facts relating to the death of Parker, and nothing else was referred to them;

1884

THE QUEEN v. DUDLEY AND STEPHENS.

thirdly, that the record could not be filed, for it had been brought into the court by order only, and not by certiorari.

Sir H. James, A.G., for the Crown. As to the first point, the Crown are willing that the statement that the yacht was a registered British vessel, and that the boat belonged to the yacht, should be struck out of the record. With regard to the conclusion of the verdict it is according to the form of special verdicts in the Reports: *Rex* v. *Pedley* (1); *Rex* v. *Oneby* (2); *Mackally's Case* (3); *Hazel's Case.* (4) As for the certiorari there was no necessity for it, for the Court of Assize is now part of this Court.

[THE COURT intimated that the points taken on behalf of the prisoners were untenable.]

With regard to the substantial question in the case—whether the prisoners in killing Parker were guilty of murder—the law is that where a private person acting upon his own judgment takes the life of a fellow creature, his act can only be justified on the ground of self-defence—self-defence against the acts of the person whose life is taken. This principle has been extended to include the case of a man killing another to prevent him from committing some great crime upon a third person. But the principle has no application to this case, for the prisoners were not protecting themselves against any act of Parker. If he had had food in his possession and they had taken it from him, they would have been guilty of theft; and if they killed him to obtain this food, they would have been guilty of murder. The case cited by Puffendorf in his Law of Nature and Nations, which was referred to at the trial, has been found, upon examination in the British Museum, in the work of Nicolaus Tulpius, a Dutch writer, and it is clear that it was not a judicial decision. (5)

[He was stopped.]

(1) Leach, C. C. 242.

(2) 2 Ld. Raym. 1485.

(3) 9 Co. 65 b.

(4) Leach, C. C. 368.

(5) HUDDLESTON, B., stated that the full facts of the case had been discovered by Sir Sherston Baker, a member of the Bar, and communicated to him as follows:—

A Dutch writer, Nicolaus Tulpius, the author of a Latin work, Observationum Medicarum, written at Amsterdam in 1641, states that the following facts were given him by eye-witnesses. Seven Englishmen had prepared themselves in the Island of St. Christopher (one of the Caribbean Islands) for a cruise in a boat for a period of one night only, but a storm drove them so far out to sea that they could not get

A. Collins, Q.C., for the prisoners. The facts found on the special verdict shew that the prisoners were not guilty of murder, at the time when they killed Parker, but killed him under the pressure of necessity. Necessity will excuse an act which would otherwise be a crime. Stephen, Digest of Criminal Law, art. 32, Necessity. The law as to compulsion by necessity is further explained in Stephen's History of the Criminal Law, vol. ii., p. 108, and an opinion is expressed that in the case often put by casuists, of two drowning men on a plank large enough to support one only, and one thrusting the other off, the survivor could not be subjected to legal punishment. In the American case of *The United States* v. *Holmes* (1), the proposition that a passenger on board a vessel may be thrown overboard to save the others is sanctioned. The law as to inevitable necessity is fully considered

back to port before seventeen days. One of them proposed that they should cast lots to settle on whose body they should assuage their ravenous hunger. Lots were cast, and the lot fell on him who had proposed it. None wished to perform the office of butcher; and lots were again cast to provide one. The body was afterwards eaten. At length the boat was cast on the shore of the Isle of St. Martin, one of the same group, where the six survivors were treated with kindness by the Dutch, and sent home to St. Christopher.

The principal passages in the original are as follows:—

". . . Horribilis illa tragœdia quam non ita pridem conspexit India Occidentalis in septem Britannis; quibus necessitas famem fecit undecim dierum. Velut nobis sincere relatum, a testibus oculatis qui hæc ipsa ventorum ludibria et humaniter navibus suis excepêre, et officiosè ad suos reduxêre, septem Britanni accinxerant se in insulâ Christophorianâ unius solummodo noctis itineri, ultrà quam etiam non extenderant commeatum. At interveniens tempestas abripuit imparatos longius in mare quam ut potuerint reverti ad portum destinatum ante diem septimum decimum. . . . Cujus intracti erroris, nullum finem promittente spatioso mari, adigebantur tandem (O durum necessitatis telum!) ancipiti sorti committere, cujus carne urgentem famem, et quo sanguine compescerent inexplebilem sitim. Sed jacta alea (quis eventum hunc non miretur!) destinabit primæ cædi primum hujus lanienæ auctorem. . . . Quâ oratione ut non parum lenivit horrendi facinoris atrocitatem, sic erexit utique usque eò flaccidos ipsorum animos: ut tandem reperiretur aliquis, sorte tamen priusductus qui petierit animose perorantis jugulem, et intulerit vim volenti. Cujus cadaveris expetiit quilibet illorum tam præproperè frustum, ut vix potuerit tam festinanter dividi.

". . . At tandem misertus hujus erroris Deus deduxit ipsorum naviculam ad insulam Martiniam in quâ à præsidio Belgico et humaniter excepti, et benignè ad suos reducti fuêre. Sed vix attigerant terram quin accusarentur protinus a prætore homicidii. Sed diluente crimen inevitabili necessitate, dedit ipsis brevi veniam ipsorum judex."

(1) 1 Wallace, Jun. 25.

1884

THE QUEEN v. DUDLEY AND STEPHENS.

in Russell on Crimes, vol. i. p. 847, and there are passages relating to it in Bracton, vol. ii. p. 277; Hale's Pleas of the Crown, p. 54 and c. 40; East's Pleas of the Crown, p. 221, citing Dalton, c. 98, "Homicide of Necessity," and several cases, amongst others *McGrowther's Case* (1); *Stratton's Case* (2). Lord Bacon, Bac. Max., Reg. 5, gives the instance of two shipwrecked persons clinging to the same plank and one of them thrusting the other from it, finding that it will not support both, and says that this homicide is excusable through unavoidable necessity and upon the great universal principle of self-preservation, which prompts every man to save his own life in preference to that of another, where one of them must inevitably perish. It is true that Hale's Pleas of the Crown, p. 54, states distinctly that hunger is no excuse for theft, but that is on the ground that there can be no such extreme necessity in this country. In the present case the prisoners were in circumstances where no assistance could be given. The essence of the crime of murder is intention, and here the intention of the prisoners was only to preserve their lives.

Lastly, it is not shewn that there was jurisdiction to try the prisoners in England. They were part of the crew of an English yacht, but for anything that appears on the special verdict the boat may have been a foreign boat, so that they were not within the jurisdiction of the Admiralty: *Reg.* v. *Keyn.* (3) The indictment is not upon the Act 17 & 18 Vict. c. 104, for an offence committed by seamen employed or recently employed in a British ship. The special verdict cannot be amended in a capital case by stating the real facts.

Sir H. James, A.G., for the Crown.

[LORD COLERIDGE, C.J. The Court are of opinion that the conviction must be affirmed. What course do you invite us to take?]

To pronounce judgment and pass sentence. This was the practice even when, as formerly, the record was removed by certiorari: *Rex* v. *Royce* (4); *Rex* v. *Athos* (5); *Rex* v. *Cock.* (6)

THE COURT intimated that judgment would be given on December 9th.

(1) 18 How. St. Tr. 391.
(2) 21 How. St. Tr. 1223.
(3) 2 Ex. D. 63.
(4) 4 Burr. 2073.
(5) 8 Mod. 136.
(6) 4 M. & S. 71.

1884

THE QUEEN v. DUDLEY AND STEPHENS.

Dec. 9. The judgment of the Court (Lord Coleridge, C.J., Grove and Denman, JJ., Pollock and Huddleston, BB.) was delivered by

LORD COLERIDGE, C.J. The two prisoners, Thomas Dudley and Edwin Stephens, were indicted for the murder of Richard Parker on the high seas on the 25th of July in the present year. They were tried before my Brother Huddleston at Exeter on the 6th of November, and, under the direction of my learned Brother, the jury returned a special verdict, the legal effect of which has been argued before us, and on which we are now to pronounce judgment.

The special verdict as, after certain objections by Mr. Collins to which the Attorney General yielded, it is finally settled before us is as follows. [His Lordship read the special verdict as above set out.] From these facts, stated with the cold precision of a special verdict, it appears sufficiently that the prisoners were subject to terrible temptation, to sufferings which might break down the bodily power of the strongest man, and try the conscience of the best. Other details yet more harrowing, facts still more loathsome and appalling, were presented to the jury, and are to be found recorded in my learned Brother's notes. But nevertheless this is clear, that the prisoners put to death a weak and unoffending boy upon the chance of preserving their own lives by feeding upon his flesh and blood after he was killed, and with the certainty of depriving *him* of any possible chance of survival. The verdict finds in terms that "if the men had not fed upon the body of the boy they would *probably* not have survived," and that "the boy being in a much weaker condition was *likely* to have died before them." They might possibly have been picked up next day by a passing ship; they might possibly not have been picked up at all; in either case it is obvious that the killing of the boy would have been an unnecessary and profitless act. It is found by the verdict that the boy was incapable of resistance, and, in fact, made none; and it is not even suggested that his death was due to any violence on his part attempted against, or even so much as feared by, those who killed him. Under these circumstances the jury say that they are ignorant whether those who killed him were guilty of murder, and have referred it to this Court to

1884

THE QUEEN v. DUDLEY AND STEPHENS.

Lord Coleridge, C.J.

determine what is the legal consequence which follows from the facts which they have found.

Certain objections on points of form were taken by Mr. Collins before he came to argue the main point in the case. First it was contended that the conclusion of the special verdict as entered on the record, to the effect that the jury find their verdict in accordance, either way, with the judgment of the Court, was not put to them by my learned Brother, and that its forming part of the verdict on the record invalidated the whole verdict. But the answer is twofold—(1) that it is really what the jury meant, and that it is but the clothing in legal phraseology of that which is already contained by necessary implication in their unquestioned finding, and (2) that it is a matter of the purest form, and that it appears from the precedents with which we have been furnished from the Crown Office, that this has been the form of special verdicts in Crown cases for upwards of a century at least.

Next it was objected that the record should have been brought into this Court by certiorari, and that in this case no writ of certiorari had issued. The fact is so; but the objection is groundless. Before the passing of the Judicature Act, 1873 (36 & 37 Vict. c. 66), as the courts of Oyer and Terminer and Gaol delivery were not parts of the Court of Queen's Bench, it was necessary that the Queen's Bench should issue its writ to bring before it a record not of its own, but of another Court. But by the 16th section of the Judicature Act, 1873, the courts of Oyer and Terminer and Gaol delivery are now made part of the High Court, and their jurisdiction is vested in it. An order of the Court has been made to bring the record from one part of the court into this chamber, which is another part of the same court; the record is here in obedience to that order; and we are all of opinion that the objection fails.

It was further objected that, according to the decision of the majority of the judges in the *Franconia Case* (1), there was no jurisdiction in the Court at Exeter to try these prisoners. But (1) in that case the prisoner was a German, who had committed the alleged offence as captain of a German ship; these prisoners were English seamen, the crew of an English yacht, cast away in

(1) 2 Ex. D. 63.

a storm on the high seas, and escaping from her in an open boat; (2) the opinion of the minority in the *Franconia Case* (1) has been since not only enacted but declared by Parliament to have been always the law; and (3) 17 & 18 Vict. c. 104, s. 267, is absolutely fatal to this objection. By that section it is enacted as follows:—"All offences against property or person committed in or at any place either ashore or afloat, out of her Majesty's dominions by any master seaman or apprentice who at the time when the offence is committed is or within three months previously has been employed in any British ship, shall be deemed to be offences of the same nature respectively, and be inquired of, heard, tried, determined, and adjudged in the same manner and by the same courts and in the same places as if such offences had been committed within the jurisdiction of the Admiralty of England." We are all therefore of opinion that this objection likewise must be overruled.

There remains to be considered the real question in the case—whether killing under the circumstances set forth in the verdict be or be not murder. The contention that it could be anything else was, to the minds of us all, both new and strange, and we stopped the Attorney General in his negative argument in order that we might hear what could be said in support of a proposition which appeared to us to be at once dangerous, immoral, and opposed to all legal principle and analogy. All, no doubt, that can be said has been urged before us, and we are now to consider and determine what it amounts to. First it is said that it follows from various definitions of murder in books of authority, which definitions imply, if they do not state, the doctrine, that in order to save your own life you may lawfully take away the life of another, when that other is neither attempting nor threatening yours, nor is guilty of any illegal act whatever towards you or any one else. But if these definitions be looked at they will not be found to sustain this contention. The earliest in point of date is the passage cited to us from Bracton, who lived in the reign of Henry III. It was at one time the fashion to discredit Bracton, as Mr. Reeve tells us, because he was supposed to mingle too much of the canonist and civilian with the common lawyer. There is now no such feeling, but the passage upon homicide, on which reliance is placed,

(1) 2 Ex. D. 63.

1884

THE QUEEN v. DUDLEY AND STEPHENS.

Lord Coleridge, C.J.

is a remarkable example of the kind of writing which may explain it. Sin and crime are spoken of as apparently equally illegal, and the crime of murder, it is expressly declared, may be committed "linguâ vel facto"; so that a man, like Hero "done to death by slanderous tongues," would, it seems, in the opinion of Bracton, be a person in respect of whom might be grounded a legal indictment for murder. But in the very passage as to necessity, on which reliance has been placed, it is clear that Bracton is speaking of necessity in the ordinary sense—the repelling by violence, violence justified so far as it was necessary for the object, any illegal violence used towards oneself. If, says Bracton, the necessity be "evitabilis, et evadere posset absque occisione, tunc erit reus homicidii"—words which shew clearly that he is thinking of physical danger from which *escape* may be possible, and that the "inevitabilis necessitas" of which he speaks as justifying homicide is a necessity of the same nature.

It is, if possible, yet clearer that the doctrine contended for receives no support from the great authority of Lord Hale. It is plain that in his view the necessity which justified homicide is that only which has always been and is now considered a justification. "In all these cases of homicide by necessity," says he, "as in pursuit of a felon, in killing him that assaults to rob, or comes to burn or break a house, or the like, which are in themselves no felony" (1 Hale's Pleas of the Crown, p. 491). Again, he says that "the necessity which justifies homicide is of two kinds: (1) the necessity which is of a private nature; (2) the necessity which relates to the public justice and safety. The former is that necessity which obligeth a man to his own defence and safeguard, and this takes in these inquiries:—(1.) What may be done for the safeguard of a man's own life;" and then follow three other heads not necessary to pursue. Then Lord Hale proceeds:—"As touching the first of these—viz., homicide in defence of a man's own life, which is usually styled se defendendo." It is not possible to use words more clear to shew that Lord Hale regarded the private necessity which justified, and alone justified, the taking the life of another for the safeguard of one's own to be what is commonly called "self-defence." (Hale's Pleas of the Crown, i. 478.)

But if this could be even doubtful upon Lord Hale's words, Lord

Hale himself has made it clear. For in the chapter in which he deals with the exemption created by compulsion or necessity he thus expresses himself:— "If a man be desperately assaulted and in peril of death, and cannot otherwise escape unless, to satisfy his assailant's fury, he will kill an innocent person then present, the fear and actual force will not acquit him of the crime and punishment of murder, if he commit the fact, for he ought rather to die himself than kill an innocent; but if he cannot otherwise save his own life the law permits him in his own defence to kill the assailant, for by the violence of the assault, and the offence committed upon him by the assailant himself, the law of nature, and necessity, hath made him his own protector cum debito moderamine inculpatæ tutelæ." (Hale's Pleas of the Crown, vol. i. 51.)

But, further still, Lord Hale in the following chapter deals with the position asserted by the casuists, and sanctioned, as he says, by Grotius and Puffendorf, that in a case of extreme necessity, either of hunger or clothing; "theft is no theft, or at least not punishable as theft, as some even of our own lawyers have asserted the same." "But," says Lord Hale, "I take it that here in England, that rule, at least by the laws of England, is false; and therefore, if a person, being under necessity for want of victuals or clothes, shall upon that account clandestinely and animo furandi steal another man's goods, it is felony, and a crime by the laws of England punishable with death." (Hale, Pleas of the Crown, i. 54.) If, therefore, Lord Hale is clear—as he is—that extreme necessity of hunger does not justify larceny, what would he have said to the doctrine that it justified murder?

It is satisfactory to find that another great authority, second, probably, only to Lord Hale, speaks with the same unhesitating clearness on this matter. Sir Michael Foster, in the 3rd chapter of his Discourse on Homicide, deals with the subject of "homicide founded in necessity"; and the whole chapter implies, and is insensible unless it does imply, that in the view of Sir Michael Foster "necessity and self-defence" (which he defines as "opposing force to force even to the death") are convertible terms. There is no hint, no trace, of the doctrine now contended for; the whole reasoning of the chapter is entirely inconsistent with it.

In East's Pleas of the Crown (i. 271) the whole chapter on homicide by necessity is taken up with an elaborate discussion of

1884

THE QUEEN v. DUDLEY AND STEPHENS.

Lord Coleridge C.J.

the limits within which necessity in Sir Michael Foster's sense (given above) of self-defence is a justification of or excuse for homicide. There is a short section at the end very generally and very doubtfully expressed, in which the only instance discussed is the well-known one of two shipwrecked men on a plank able to sustain only one of them, and the conclusion is left by Sir Edward East entirely undetermined.

What is true of Sir Edward East is true also of Mr. Serjeant Hawkins. The whole of his chapter on justifiable homicide assumes that the only justifiable homicide of a private nature is the defence against force of a man's person, house, or goods. In the 26th section we find again the case of the two shipwrecked men and the single plank, with the significant expression from a careful writer, "*It is said* to be justifiable." So, too, Dalton c. 150, clearly considers necessity and self-defence in Sir Michael Foster's sense of that expression, to be convertible terms, though he prints without comment Lord Bacon's instance of the two men on one plank as a quotation from Lord Bacon, adding nothing whatever to it of his own. And there is a remarkable passage at page 339, in which he says that even in the case of a murderous assault upon a man, yet before he may take the life of the man who assaults him even in self-defence, "cuncta prius tentanda."

The passage in Staundforde, on which almost the whole of the dicta we have been considering are built, when it comes to be examined, does not warrant the conclusion which has been derived from it. The necessity to justify homicide must be, he says, inevitable, and the example which he gives to illustrate his meaning is the very same which has just been cited from Dalton, shewing that the necessity he was speaking of was a physical necessity, and the self-defence a defence against physical violence. Russell merely repeats the language of the old text-books, and adds no new authority, nor any fresh considerations.

Is there, then, any authority for the proposition which has been presented to us? Decided cases there are none. The case of the seven English sailors referred to by the commentator on Grotius and by Puffendorf has been discovered by a gentleman of the Bar, who communicated with my Brother Huddleston, to convey the authority (if it conveys so much) of a single judge

of the island of St. Kitts, when that island was possessed partly by France and partly by this country, somewhere about the year 1641. It is mentioned in a medical treatise published at Amsterdam, and is altogether, as authority in an English court, as unsatisfactory as possible. The American case cited by my Brother Stephen in his Digest, from Wharton on Homicide, in which it was decided, correctly indeed, that sailors had no right to throw passengers overboard to save themselves, but on the somewhat strange ground that the proper mode of determining who was to be sacrificed was to vote upon the subject by ballot, can hardly, as my Brother Stephen says, be an authority satisfactory to a court in this country. The observations of Lord Mansfield in the case of *Rex* v. *Stratton and Others* (1), striking and excellent as they are, were delivered in a political trial, where the question was whether a political necessity had arisen for deposing a Governor of Madras. But they have little application to the case before us, which must be decided on very different considerations.

The one real authority of former time is Lord Bacon, who, in his commentary on the maxim, "necessitas inducit privilegium quoad jura privata," lays down the law as follows:—"Necessity carrieth a privilege in itself. Necessity is of three sorts—necessity of conservation of life, necessity of obedience, and necessity of the act of God or of a stranger. First of conservation of life; if a man steal viands to satisfy his present hunger, this is no felony nor larceny. So if divers be in danger of drowning by the casting away of some boat or barge, and one of them get to some plank, or on the boat's side to keep himself above water, and another to save his life thrust him from it, whereby he is drowned, this is neither se defendendo nor by misadventure, but justifiable." On this it is to be observed that Lord Bacon's proposition that stealing to satisfy hunger is no larceny is hardly supported by Staundforde, whom he cites for it, and is expressly contradicted by Lord Hale in the passage already cited. And for the proposition as to the plank or boat, it is said to be derived from the canonists. At any rate he cites no authority for it, and it must stand upon his own. Lord Bacon was great even as a lawyer; but it is permissible to much smaller men, relying upon principle and on the authority of others, the

(1) 21 How. St. Tr. at p. 1223.

1884

THE QUEEN v. DUDLEY AND STEPHENS.

Lord Coleridge, C.J.

equals and even the superiors of Lord Bacon as lawyers, to question the soundness of his dictum. There are many conceivable states of things in which it might possibly be true, but if Lord Bacon meant to lay down the broad proposition that a man may save his life by killing, if necessary, an innocent and unoffending neighbour, it certainly is not law at the present day.

There remains the authority of my Brother Stephen, who, both in his Digest and in his History of the Criminal Law, uses language perhaps wide enough to cover this case. The language is somewhat vague in both places, but it does not in either place cover this case of necessity, and we have the best authority for saying that it was not meant to cover it. If it had been necessary, we must with true deference have differed from him, but it is satisfactory to know that we have, probably at least, arrived at no conclusion in which if he had been a member of the Court he would have been unable to agree. Neither are we in conflict with any opinion expressed upon the subject by the learned persons who formed the commission for preparing the Criminal Code. They say on this subject:—

"We are certainly not prepared to suggest that necessity should in every case be a justification. We are equally unprepared to suggest that necessity should in no case be a defence; we judge it better to leave such questions to be dealt with when, if ever, they arise in practice by applying the principles of law to the circumstances of the particular case."

It would have been satisfactory to us if these eminent persons could have told us whether the received definitions of legal necessity were in their judgment correct and exhaustive, and if not, in what way they should be amended, but as it is we have, as they say, "to apply the principles of law to the circumstances of this particular case."

Now, except for the purpose of testing how far the conservation of a man's own life is in all cases and under all circumstances, an absolute, unqualified, and paramount duty, we exclude from our consideration all the incidents of war. We are dealing with a case of private homicide, not one imposed upon men in the service of their Sovereign and in the defence of their country. Now it is admitted that the deliberate killing of this unoffending and unresisting boy was clearly murder, unless the killing can be

justified by some well-recognised excuse admitted by the law. It is further admitted that there was in this case no such excuse, unless the killing was justified by what has been called "necessity." But the temptation to the act which existed here was not what the law has ever called necessity. Nor is this to be regretted. Though law and morality are not the same, and many things may be immoral which are not necessarily illegal, yet the absolute divorce of law from morality would be of fatal consequence; and such divorce would follow if the temptation to murder in this case were to be held by law an absolute defence of it. It is not so. To preserve one's life is generally speaking a duty, but it may be the plainest and the highest duty to sacrifice it. War is full of instances in which it is a man's duty not to live, but to die. The duty, in case of shipwreck, of a captain to his crew, of the crew to the passengers, of soldiers to women and children, as in the noble case of the *Birkenhead;* these duties impose on men the moral necessity, not of the preservation, but of the sacrifice of their lives for others, from which in no country, least of all, it is to be hoped, in England, will men ever shrink, as indeed, they have not shrunk. It is not correct, therefore, to say that there is any absolute or unqualified necessity to preserve one's life. "Necesse est ut eam, non ut vivam," is a saying of a Roman officer quoted by Lord Bacon himself with high eulogy in the very chapter on necessity to which so much reference has been made. It would be a very easy and cheap display of commonplace learning to quote from Greek and Latin authors, from Horace, from Juvenal, from Cicero, from Euripides, passage after passage, in which the duty of dying for others has been laid down in glowing and emphatic language as resulting from the principles of heathen ethics; it is enough in a Christian country to remind ourselves of the Great Example whom we profess to follow. It is not needful to point out the awful danger of admitting the principle which has been contended for. Who is to be the judge of this sort of necessity? By what measure is the comparative value of lives to be measured? Is it to be strength, or intellect, or what? It is plain that the principle leaves to him who is to profit by it to determine the necessity which will justify him in deliberately taking another's life to save his own. In this case the weakest, the youngest, the most unresisting, was chosen. Was it more

1884

THE QUEEN v. DUDLEY AND STEPHENS.

necessary to kill him than one of the grown men? The answer must be "No"—

> "So spake the Fiend, and with necessity,
> The tyrant's plea, excused his devilish deeds."

Lord Coleridge, C.J.

It is not suggested that in this particular case the deeds were "devilish," but it is quite plain that such a principle once admitted might be made the legal cloak for unbridled passion and atrocious crime. There is no safe path for judges to tread but to ascertain the law to the best of their ability and to declare it according to their judgment; and if in any case the law appears to be too severe on individuals, to leave it to the Sovereign to exercise that prerogative of mercy which the Constitution has intrusted to the hands fittest to dispense it.

It must not be supposed that in refusing to admit temptation to be an excuse for crime it is forgotten how terrible the temptation was; how awful the suffering; how hard in such trials to keep the judgment straight and the conduct pure. We are often compelled to set up standards we cannot reach ourselves, and to lay down rules which we could not ourselves satisfy. But a man has no right to declare temptation to be an excuse, though he might himself have yielded to it, nor allow compassion for the criminal to change or weaken in any manner the legal definition of the crime. It is therefore our duty to declare that the prisoners' act in this case was wilful murder, that the facts as stated in the verdict are no legal justification of the homicide; and to say that in our unanimous opinion the prisoners are upon this special verdict guilty of murder. (1)

THE COURT then proceeded to pass sentence of death upon the prisoners. (2)

Solicitors for the Crown: *The Solicitors for the Treasury.*

Solicitors for the prisoners: *Irvine & Hodges.*

(1) My brother Grove has furnished me with the following suggestion, too late to be embodied in the judgment but well worth preserving: "If the two accused men were justified in killing Parker, then if not rescued in time, two of the three survivors would be justified in killing the third, and of the two who remained the stronger would be justified in killing the weaker, so that three men might be justifiably killed to give the fourth a chance of surviving."—C.

(2) This sentence was afterwards commuted by the Crown to six months' imprisonment.

A. P. S.

SECOND DIVISION

[G.R. No. 149275. September 27, 2004.]

VICKY C. TY, *petitioner*, ***vs.*** **PEOPLE OF THE PHILIPPINES**, *respondent*.

DECISION

TINGA, *J* :

Petitioner Vicky C. Ty ("Ty") filed the instant *Petition for Review* under Rule 45, seeking to set aside the *Decision* [1] of the Court of Appeals Eighth Division in CA-G.R. CR No. 20995, promulgated on 31 July 2001. The *Decision* affirmed with modification the judgment of the Regional Trial Court (RTC) of Manila, Branch 19, dated 21 April 1997, finding her guilty of seven (7) counts of violation of *Batas Pambansa Blg. 22* [2] (B.P. 22), otherwise known as the Bouncing Checks Law.

This case stemmed from the filing of seven (7) *Informations* for violation of B.P. 22 against Ty before the RTC of Manila. The *Informations* were docketed as Criminal Cases No. 93-130459 to No. 93-130465. The accusatory portion of the *Information* in Criminal Case No. 93-130465 reads as follows:

> That on or about May 30, 1993, in the City of Manila, Philippines, the said accused did then and there willfully, unlawfully and feloniously make or draw and issue to Manila Doctors' Hospital to apply on account or for value to Editha L. Vecino Check No. Metrobank 487712 dated May 30, 1993 payable to Manila Doctors Hospital in the amount of P30,000.00, said accused well knowing that at the time of issue she did not have sufficient funds in or credit with the drawee bank for payment of such check in full upon its presentment, which check when presented for payment within ninety (90) days from the date hereof, was subsequently dishonored by the drawee bank for "Account Closed" and despite receipt of notice of such dishonor, said accused failed to pay said Manila Doctors Hospital the amount of the check or to make arrangement for full payment of the same within five (5) banking days after receiving said notice.
>
> Contrary to law. [3]

The other *Informations* are similarly worded except for the number of the checks and dates of issue. The data are hereunder itemized as follows:

Criminal Case No.	*Check No.*	*Postdated*	*Amount*
93-130459	487710	30 March 1993	P30,000.00
93-130460	487711	30 April 1993	P30,000.00
93-130461	487709	01 March 1993	P30,000.00
93-130462	487707	30 December 1992	P30,000.00
93-130463	487706	30 November 1992	P30,000.00
93-130464	487708	30 January 1993	P30,000.00

93-130465	487712	30 May 1993	P30,000.00 [4]

The cases were consolidated and jointly tried. At her arraignment, Ty pleaded not guilty. [5]

The evidence for the prosecution shows that Ty's mother Chua Lao So Un was confined at the Manila Doctors' Hospital (hospital) from 30 October 1990 until 4 June 1992. Being the patient's daughter, Ty signed the "Acknowledgment of Responsibility for Payment" in the Contract of Admission dated 30 October 1990. [6] As of 4 June 1992, the Statement of Account [7] shows the total liability of the mother in the amount of P657,182.40. Ty's sister, Judy Chua, was also confined at the hospital from 13 May 1991 until 2 May 1992, incurring hospital bills in the amount of P418,410.55. [8] The total hospital bills of the two patients amounted to P1,075,592.95. On 5 June 1992, Ty executed a promissory note wherein she assumed payment of the obligation in installments. [9] To assure payment of the obligation, she drew several postdated checks against Metrobank payable to the hospital. The seven (7) checks, each covering the amount of P30,000.00, were all deposited on their due dates. But they were all dishonored by the drawee bank and returned unpaid to the hospital due to insufficiency of funds, with the "Account Closed" advice. Soon thereafter, the complainant hospital sent demand letters to Ty by registered mail. As the demand letters were not heeded, complainant filed the seven (7) *Informations* subject of the instant case. [10]

For her defense, Ty claimed that she issued the checks because of "an uncontrollable fear of a greater injury." She averred that she was forced to issue the checks to obtain release for her mother whom the hospital inhumanely and harshly treated and would not discharge unless the hospital bills are paid. She alleged that her mother was deprived of room facilities, such as the air-condition unit, refrigerator and television set, and subject to inconveniences such as the cutting off of the telephone line, late delivery of her mother's food and refusal to change the latter's gown and bedsheets. She also bewailed the hospital's suspending medical treatment of her mother. The "debasing treatment," she pointed out, so affected her mother's mental, psychological and physical health that the latter contemplated suicide if she would not be discharged from the hospital. Fearing the worst for her mother, and to comply with the demands of the hospital, Ty was compelled to sign a promissory note, open an account with Metrobank and issue the checks to effect her mother's immediate discharge. [11]

Giving full faith and credence to the evidence offered by the prosecution, the trial court found that Ty issued the checks subject of the case in payment of the hospital bills of her mother and rejected the theory of the defense. [12] Thus, on 21 April 1997, the trial court rendered a *Decision* finding Ty guilty of seven (7) counts of violation of B.P. 22 and sentencing her to a prison term. The dispositive part of the *Decision* reads:

> CONSEQUENTLY, the accused Vicky C. Ty, for her acts of issuing seven (7) checks in payment of a valid obligation, which turned unfounded on their respective dates of maturity, is found guilty of seven (7) counts of violations of Batas Pambansa Blg. 22, and is hereby sentenced to suffer the penalty of imprisonment of SIX MONTHS per count or a total of forty-two (42) months.
>
> SO ORDERED. [13]

Ty interposed an appeal from the *Decision* of the trial court. Before the Court of Appeals, Ty reiterated her defense that she issued the checks "under the impulse of an

uncontrollable fear of a greater injury or in avoidance of a greater evil or injury." She also argued that the trial court erred in finding her guilty when evidence showed there was absence of valuable consideration for the issuance of the checks and the payee had knowledge of the insufficiency of funds in the account. She protested that the trial court should not have applied the law mechanically, without due regard to the principles of justice and equity. [14]

In its *Decision* dated 31 July 2001, the appellate court affirmed the judgment of the trial court with modification. It set aside the penalty of imprisonment and instead sentenced Ty "to pay a fine of sixty thousand pesos (P60,000.00) equivalent to double the amount of the check, in each case." [15]

In its assailed *Decision*, the Court of Appeals rejected Ty's defenses of involuntariness in the issuance of the checks and the hospital's knowledge of her checking account's lack of funds. It held that B.P. 22 makes the mere act of issuing a worthless check punishable as a special offense, it being a *malum prohibitum*. What the law punishes is the issuance of a bouncing check and not the purpose for which it was issued nor the terms and conditions relating to its issuance. [16]

Neither was the Court of Appeals convinced that there was no valuable consideration for the issuance of the checks as they were issued in payment of the hospital bills of Ty's mother. [17]

In sentencing Ty to pay a fine instead of a prison term, the appellate court applied the case of *Vaca v. Court of Appeals* [18] wherein this Court declared that in determining the penalty imposed for violation of B.P. 22, the philosophy underlying the Indeterminate Sentence Law should be observed, *i.e.*, redeeming valuable human material and preventing unnecessary deprivation of personal liberty and economic usefulness, with due regard to the protection of the social order. [19]

Petitioner now comes to this Court basically alleging the same issues raised before the Court of Appeals. More specifically, she ascribed errors to the appellate court based on the following grounds:

A. THERE IS CLEAR AND CONVINCING EVIDENCE THAT PETITIONER WAS FORCED TO OR COMPELLED IN THE OPENING OF THE ACCOUNT AND THE ISSUANCE OF THE SUBJECT CHECKS.

B. THE CHECKS WERE ISSUED UNDER THE IMPULSE OF AN *UNCONTROLLABLE FEAR OF A GREATER INJURY OR IN AVOIDANCE OF A GREATER EVIL OR INJURY*.

C. THE EVIDENCE ON RECORD PATENTLY SHOW[S] ABSENCE OF *VALUABLE CONSIDERATION* IN THE ISSUANCE OF THE SUBJECT CHECKS.

D. IT IS AN UNDISPUTED FACT THAT THE PAYEE OF *THE CHECKS WAS FULLY AWARE OF THE LACK OF FUNDS* IN THE ACCOUNT.

E. THE HONORABLE COURT OF APPEALS, AS WELL AS THE HONORABLE TRIAL COURT[,] SHOULD NOT HAVE APPLIED CRIMINAL LAW MECHANICALLY, WITHOUT DUE REGARD TO THE PRINCIPLES OF JUSTICE AND EQUITY.

In its *Memorandum*, [20] the Office of the Solicitor General (OSG), citing jurisprudence, contends that a check issued as an evidence of debt, though not

intended to be presented for payment, has the same effect as an ordinary check; hence, it falls within the ambit of B.P. 22. And when a check is presented for payment, the drawee bank will generally accept the same, regardless of whether it was issued in payment of an obligation or merely to guarantee said obligation. What the law punishes is the issuance of a bouncing check, not the purpose for which it was issued nor the terms and conditions relating to its issuance. The mere act of issuing a worthless check is *malum prohibitum*. [21]

We find the petition to be without merit and accordingly sustain Ty's conviction.

Well-settled is the rule that the factual findings and conclusions of the trial court and the Court of Appeals are entitled to great weight and respect, and will not be disturbed on appeal in the absence of any clear showing that the trial court overlooked certain facts or circumstances which would substantially affect the disposition of the case. [22] Jurisdiction of this Court over cases elevated from the Court of Appeals is limited to reviewing or revising errors of law ascribed to the Court of Appeals whose factual findings are conclusive, and carry even more weight when said court affirms the findings of the trial court, absent any showing that the findings are totally devoid of support in the record or that they are so glaringly erroneous as to constitute serious abuse of discretion. [23]

In the instant case, the Court discerns no compelling reason to reverse the factual findings arrived at by the trial court and affirmed by the Court of Appeals.

Ty does not deny having issued the seven (7) checks subject of this case. She, however, claims that the issuance of the checks was under the impulse of an uncontrollable fear of a greater injury or in avoidance of a greater evil or injury. She would also have the Court believe that there was no valuable consideration in the issuance of the checks.

However, except for the defense's claim of uncontrollable fear of a greater injury or avoidance of a greater evil or injury, all the grounds raised involve factual issues which are best determined by the trial court. And, as previously intimated, the trial court had in fact discarded the theory of the defense and rendered judgment accordingly.

Moreover, these arguments are a mere rehash of arguments unsuccessfully raised before the trial court and the Court of Appeals. They likewise put to issue factual questions already passed upon twice below, rather than questions of law appropriate for review under a Rule 45 petition.

The only question of law raised — whether the defense of uncontrollable fear is tenable to warrant her exemption from criminal liability — has to be resolved in the negative. For this exempting circumstance to be invoked successfully, the following requisites must concur: (1) existence of an uncontrollable fear; (2) the fear must be real and imminent; and (3) the fear of an injury is greater than or at least equal to that committed. [24]

It must appear that the threat that caused the uncontrollable fear is of such gravity and imminence that the ordinary man would have succumbed to it. [25] It should be based on a real, imminent or reasonable fear for one's life or limb. [26] A mere threat of a future injury is not enough. It should not be speculative, fanciful, or remote. [27] A person invoking uncontrollable fear must show therefore that the compulsion was such that it reduced him to a mere instrument acting not only without will but against his will as well. [28] It must be of such character as to leave no opportunity to the accused for escape. [29]

In this case, far from it, the fear, if any, harbored by Ty was not real and imminent. Ty claims that she was compelled to issue the checks — a condition the hospital allegedly demanded of her before her mother could be discharged — for fear that her mother's health might deteriorate further due to the inhumane treatment of the hospital or worse, her mother might commit suicide. This is speculative fear; it is not the uncontrollable fear contemplated by law.

To begin with, there was no showing that the mother's illness was so life-threatening such that her continued stay in the hospital suffering all its alleged unethical treatment would induce a well-grounded apprehension of her death. Secondly, it is not the law's intent to say that any fear exempts one from criminal liability much less petitioner's flimsy fear that her mother might commit suicide. In other words, the fear she invokes was not impending or insuperable as to deprive her of all volition and to make her a mere instrument without will, moved exclusively by the hospital's threats or demands.

Ty has also failed to convince the Court that she was left with no choice but to commit a crime. She did not take advantage of the many opportunities available to her to avoid committing one. By her very own words, she admitted that the collateral or security the hospital required prior to the discharge of her mother may be in the form of postdated checks or jewelry. [30] And if indeed she was coerced to open an account with the bank and issue the checks, she had all the opportunity to leave the scene to avoid involvement.

Moreover, petitioner had sufficient knowledge that the issuance of checks without funds may result in a violation of B.P. 22. She even testified that her counsel advised her not to open a current account nor issue postdated checks "because the moment I will not have funds it will be a big problem." [31] Besides, apart from petitioner's bare assertion, the record is bereft of any evidence to corroborate and bolster her claim that she was compelled or coerced to cooperate with and give in to the hospital's demands.

Ty likewise suggests in the prefatory statement of her *Petition* and *Memorandum* that the justifying circumstance of state of necessity under par. 4, Art. 11 of the Revised Penal Code may find application in this case.

We do not agree. The law prescribes the presence of three requisites to exempt the actor from liability under this paragraph: (1) that the evil sought to be avoided actually exists; (2) that the injury feared be greater than the one done to avoid it; (3) that there be no other practical and less harmful means of preventing it. [32]

In the instant case, the evil sought to be avoided is merely expected or anticipated. If the evil sought to be avoided is merely expected or anticipated or may happen in the future, this defense is not applicable. [33] Ty could have taken advantage of an available option to avoid committing a crime. By her own admission, she had the choice to give jewelry or other forms of security instead of postdated checks to secure her obligation.

Moreover, for the defense of state of necessity to be availing, the greater injury feared should not have been brought about by the negligence or imprudence, more so, the willful inaction of the actor. [34] In this case, the issuance of the bounced checks was brought about by Ty's own failure to pay her mother's hospital bills.

The Court also thinks it rather odd that Ty has chosen the exempting circumstance of uncontrollable fear and the justifying circumstance of state of necessity to absolve her of liability. It would not have been half as bizarre had Ty been able to

prove that the issuance of the bounced checks was done without her full volition. Under the circumstances, however, it is quite clear that neither uncontrollable fear nor avoidance of a greater evil or injury prompted the issuance of the bounced checks.

Parenthetically, the findings of fact in the *Decision* of the trial court in the Civil Case [35] for damages filed by Ty's mother against the hospital is wholly irrelevant for purposes of disposing the case at bench. While the findings therein may establish a claim for damages which, we may add, need only be supported by a preponderance of evidence, it does not necessarily engender reasonable doubt as to free Ty from liability.

As to the issue of consideration, it is presumed, upon issuance of the checks, in the absence of evidence to the contrary, that the same was issued for valuable consideration. [36] Section 24 [37] of the Negotiable Instruments Law creates a presumption that every party to an instrument acquired the same for a consideration [38] or for value. [39] In alleging otherwise, Ty has the onus to prove that the checks were issued without consideration. She must present convincing evidence to overthrow the presumption.

A scrutiny of the records reveals that petitioner failed to discharge her burden of proof. "Valuable consideration may in general terms, be said to consist either in some right, interest, profit, or benefit accruing to the party who makes the contract, or some forbearance, detriment, loss or some responsibility, to act, or labor, or service given, suffered or undertaken by the other aide. Simply defined, valuable consideration means an obligation to give, to do, or not to do in favor of the party who makes the contract, such as the maker or indorser." [40]

In this case, Ty's mother and sister availed of the services and the facilities of the hospital. For the care given to her kin, Ty had a legitimate obligation to pay the hospital by virtue of her relationship with them and by force of her signature on her mother's Contract of Admission acknowledging responsibility for payment, and on the promissory note she executed in favor of the hospital.

Anent Ty's claim that the obligation to pay the hospital bills was not her personal obligation because she was not the patient, and therefore there was no consideration for the checks, the case of *Bridges v. Vann, et al*. [41] tells us that "it is no defense to an action on a promissory note for the maker to say that there was no consideration which was beneficial to him personally; it is sufficient if the consideration was a benefit conferred upon a third person, or a detriment suffered by the promisee, at the instance of the promissor. It is enough if the obligee foregoes some right or privilege or suffers some detriment and the release and extinguishment of the original obligation of George Vann, Sr., for that of appellants meets the requirement. Appellee accepted one debtor in place of another and gave up a valid, subsisting obligation for the note executed by the appellants. This, of itself, is sufficient consideration for the new notes."

At any rate, the law punishes the mere act of issuing a bouncing check, not the purpose for which it was issued nor the terms and conditions relating to its issuance. [42] B.P. 22 does not make any distinction as to whether the checks within its contemplation are issued in payment of an obligation or to merely guarantee the obligation. [43] The thrust of the law is to prohibit the making of worthless checks and putting them into circulation. [44] As this Court held in *Lim v. People of the Philippines*, [45] "what is primordial is that such issued checks were worthless and the fact of its worthlessness is known to the appellant at the time of their issuance, a required element under B.P. Blg. 22."

The law itself creates a *prima facie* presumption of knowledge of insufficiency of funds. Section 2 of B.P. 22 provides:

> Section 2. *Evidence of knowledge of insufficient funds*. — The making, drawing and issuance of a check payment of which is refused by the drawee bank because of insufficient funds in or credit with such bank, when presented within ninety (90) days from the date of the check, shall be *prima facie* evidence of knowledge of such insufficiency of funds or credit unless such maker or drawer pays the holder thereof the amount due thereon, or makes arrangements for payment in full by the drawee of such check within five (5) banking days after receiving notice that such check has not been paid by the drawee.

Such knowledge is legally presumed from the dishonor of the checks for insufficiency of funds. [46] If not rebutted, it suffices to sustain a conviction. [47]

Petitioner likewise opines that the payee was aware of the fact that she did not have sufficient funds with the drawee bank and such knowledge necessarily exonerates her liability.

The knowledge of the payee of the insufficiency or lack of funds of the drawer with the drawee bank is immaterial as deceit is not an essential element of an offense penalized by B.P. 22. The gravamen of the offense is the issuance of a bad check, hence, malice and intent in the issuance thereof is inconsequential. [48]

In addition, Ty invokes our ruling in *Magno v. Court of Appeals* [49] wherein this Court inquired into the true nature of transaction between the drawer and the payee and finally acquitted the accused, to persuade the Court that the circumstances surrounding her case deserve special attention and do not warrant a strict and mechanical application of the law.

Petitioner's reliance on the case is misplaced. The material operative facts therein obtaining are different from those established in the instant petition. In the 1992 case, the bounced checks were issued to cover a "warranty deposit" in a lease contract, where the lessor-supplier was also the financier of the deposit. It was a *modus operandi* whereby the supplier was able to sell or lease the goods while privately financing those in desperate need so they may be accommodated. The maker of the check thus became an unwilling victim of a lease agreement under the guise of a lease-purchase agreement. The maker did not benefit at all from the deposit, since the checks were used as collateral for an accommodation and not to cover the receipt of an actual account or credit for value.

In the case at bar, the checks were issued to cover the receipt of an actual "account or for value." Substantial evidence, as found by the trial court and Court of Appeals, has established that the checks were issued in payment of the hospital bills of Ty's mother.

Finally, we agree with the Court of Appeals in deleting the penalty of imprisonment, absent any proof that petitioner was not a first-time offender nor that she acted in bad faith. Administrative Circular 12-2000, [50] adopting the rulings in *Vaca v. Court of Appeals* [51] and *Lim v. People*, [52] authorizes the non-imposition of the penalty of imprisonment in B.P. 22 cases subject to certain conditions. However, the Court resolves to modify the penalty in view of Administrative Circular 13-2001 [53] which clarified Administrative 12-2000. It is stated therein:

> The clear tenor and intention of Administrative Circular No. 12-2000 is not to remove imprisonment as an alternative penalty, but to lay down a rule of preference in the application of the penalties provided for in B.P. Blg. 22.
>
> Thus, Administrative Circular 12-2000 establishes a rule of preference in the application of the penal provisions of B.P. Blg. 22 such that where the circumstances of both the offense and the offender clearly indicate good faith or a clear mistake of fact without taint of negligence, the imposition of a fine alone should be considered as the more appropriate penalty. Needless to say, the determination of whether circumstances warrant the imposition of a fine alone rests solely upon the Judge. Should the judge decide that imprisonment is the more appropriate penalty, Administrative Circular No. 12-2000 ought not be deemed a hindrance.

It is therefore understood that: (1) Administrative Circular 12-2000 does not remove imprisonment as an alternative penalty for violations of B.P. 22; (2) the judges concerned may, in the exercise of sound discretion, and taking into consideration the peculiar circumstances of each case, determine whether the imposition of a fine alone would best serve the interests of justice, or whether forbearing to impose imprisonment would depreciate the seriousness of the offense, work violence on the social order, or otherwise be contrary to the imperatives of justice; (3) should only a fine be imposed and the accused unable to pay the fine, there is no legal obstacle to the application of the Revised Penal Code provisions on subsidiary imprisonment. [54]

WHEREFORE, the instant *Petition* is DENIED and the assailed *Decision* of the Court of Appeals, dated 31 July 2001, finding petitioner Vicky C. Ty GUILTY of violating Batas Pambansa Bilang 22 is AFFIRMED with MODIFICATIONS. Petitioner Vicky C. Ty is ORDERED to pay a FINE equivalent to double the amount of each dishonored check subject of the seven cases at bar with subsidiary imprisonment in case of insolvency in accordance with Article 39 of the Revised Penal Code. She is also ordered to pay private complainant, Manila Doctors' Hospital, the amount of Two Hundred Ten Thousand Pesos (P210,000.00) representing the total amount of the dishonored checks. Costs against the petitioner.

SO ORDERED.

Puno, Austria-Martinez and *Callejo, Sr., JJ* ., concur.

Chico-Nazario, J ., is on leave.

Footnotes

1. Penned by Justice Perlita J. Tria Tirona, concurred in by Justices Eugenio S. Labitoria and Eloy R. Bello, Jr.

2. Entitled "An Act Penalizing the Making or Drawing and Issuance of a Check Without Sufficient Funds or Credit and for Other Purposes."

3. *Rollo*, p. 44; See also *Rollo*, pp. 92 and 109.

4. *Ibid*; See also *Rollo*, pp. 62 and 93.

5. *Id*. at 44, 62, 93.

6. *Id*. at 46; Exhibits C and C-1.

7. *Ibid.*; Exhibits D, D-1 to D-3.

8. Exhibit D-4.

9. *Supra*, note 3 at 61, citing Exhibits E and E-1.

10. *Id.* at 46–47; See also Respondent's Comment,*Rollo*, pp. 60–61 and Respondent's Memorandum, *Rollo*, pp. 90–91.

11. *Id.* at 47 and 49.

12. *Id.* at 48.

13. *Id.* at 44–45; Written by Honorable Zenaida R. Daguna, Presiding Judge.

14. *Id.* at 51.

15. *Id.* at 53.

16. *Id.* at 51–52; Citations omitted.

17. *Id.* at 51.

18. G.R. No. 131714, 16 November 1998, 298 SCRA 656, 659.

19. *Supra*, note 3 at 53.

20. *Id.* at 90–102; Dated 11 September 2002.

21. *Id.* at 95–96; Citations omitted.

22. *Spouses Villarico v. Court of Appeals*, G.R. No. 105912, 28 June 1999, 309 SCRA 193; *Lim v. People*, G.R. No. 143231, 26 October 2001, 368 SCRA 436.

23. *Alipoon v. Court of Appeals*, G.R. No. 127523, 22 March 1999, 305 SCRA 118;*Perez v. Court of Appeals*, G.R. No. 107737, 1 October 1999, 316 SCRA 43;*Baguio v. Republic of the Philippines*, G.R. No. 119682, 21 January 1999, 301 SCRA 450;*Lim v. People*, G.R. No. 143231, 26 October 2001, 368 SCRA 436.

24. *People v. Petenia*, No. L-51256, 12 August 1986, 143 SCRA 361, 369.

25. *U.S. v. Elicanal*, No. 11439, 35 Phil 209, 212, 213 (1916).

26. *People v. Abanes*, No. L-30609, 28 September 1976, 73 SCRA 44, 47;*People v. Loreno*, No. L-54414, 9 July 1984, 130 SCRA 311, 321, 322;*People v. Serrano*, No. L-45382, 13 May 1985, 136 SCRA 399, 405.

27. *People v. Jesus*, No. L-2313, 88 Phil. 53, 56 (1951);*People v. Palencia*, No. L-38957, 30 April 1976, 71 SCRA 679, 690; See also Aquino, The Revised Penal Code, 1997 Edition, Vol. 1, p. 234 and Gregorio, Fundamentals of Criminal Law Review, 1997 Edition, p. 79.

28. *People v. Tami*, G.R. Nos. 101801–03, 2 May 1995, 244 SCRA 1, 23.

29. *People v. Villanueva*, No. L-9529, 104 Phil. 450, 464 (1958), Citation omitted;*People v. De Los Reyes*, G.R. No. 44112, 22 October 1992, 215 SCRA 63, 70; See also*People*

v. Nuñez, G.R. Nos. 112429–30, 341 Phil 817, 828 (1997).

30. *Supra*, note 3 at 15 and 112; See also TSN dated September 19, 1994, p. 24.

31. TSN dated September 19, 1994, p. 25.

32. Par. 4, Art. 11, Revised Penal Code.

33. Reyes, The Revised Penal Code, 1998 Edition, Book 1, p. 191.

34. *Id*. at 192.

35. Entitled "*So Un Chua v. Manila Doctors' Hospital*," Civil Case No. 63958, Regional Trial Court of Pasig, Branch 159.

36. *Lim v. People*, G.R. No. 143231, 26 October 2001, 368 SCRA 436; Sec. 24, The Negotiable Instruments Law.

37. SEC. 24. *Presumption of consideration*. — Every negotiable instrument is deemed *prima facie* to have been issued for valuable consideration; and every person whose signature appears thereon to have become a party thereto, for value.

38. SEC. 25. *Value; What constitutes*. — Value is any consideration sufficient to support a simple contract. An antecedent or pre-existing debt constitutes value, and is deemed such whether the instrument is payable on demand or at a future date.

39. SEC. 191. *Definitions and meaning of terms*. — In this Act, unless the context otherwise requires:

xxx xxx xxx

"Value" means valuable consideration.

40. Agbayani, Aguedo, Commentaries and Jurisprudence on the Commercial Laws of the Philippines, 1992 Edition, p. 235; Citations omitted.

41. 88 Kan 98, 127 Pacific Reporter 604, 9 November 1912; Citations omitted.

42. *Llamado v. Court of Appeals*, G.R. No. 99032, 26 March 1997, 270 SCRA 423;*Aguirre v. People*, G.R. No. 144142, 23 August 2001, 363 SCRA 672;*Abarquez v. Court of Appeals*, G.R. No. 148557, 7 August 2003, 408 SCRA 500;*Lazaro v. Court of Appeals*, G.R. No. 105461, 11 November 1993, 227 SCRA 723.

43. *Llamado v. Court of Appeals, supra*

44. *Caram Resources Corp. v. Contreras*, Adm. Matter No. MJT-93-849, 26 October 1994, 237 SCRA 724; *Cruz v. Court of Appeals*, G.R. No. 108738, 17 June 1994, 233 SCRA 301.

45. G.R. No. 143231, 26 October 2001, 368 SCRA 436.

46. *Meriz v. People*, G.R. No. 134498, 13 November 2001, 368 SCRA 524.

47. *Rosa Lim v. People*, G.R. No. 130038, 18 September 2000, 340 SCRA 497.

48. *Cruz v. Court of Appeals*, G.R. No. 108738, 17 June 1994, 233 SCRA 301.

49. G.R. No. 96132, 26 June 1992, 210 SCRA 471.

50. Issued on 21 November 2000.

51. *Supra* note 14.

52. *Supra* note 27.

53. Issued on 14 February 2001.

54. *Abarquez v. Court of Appeals*, G.R. No. 148557, 7 August 2003, 408 SCRA 500.

FIRST DIVISION

[G.R. No. L-18660. December 22, 1922.]

THE PEOPLE OF THE PHILIPPINE ISLANDS, *plaintiff-appellee*, ***vs.*** **FELIPE DELIMA**, *defendant-appellant*.

D E C I S I O N

ROMUALDEZ, *J* :

Lorenzo Napilon had escapes from the jail where he was serving sentence.

Some days afterwards the policeman Felipe Delima, who was looking for him, found him in the house of Jorge Alegria, armed with a pointed piece of bamboo in the shape of a lance, and demanded his surrender. The fugitive answered with a stroke of his lance. The policeman dodged it and to impose his authority fired his revolver, but the bullet did not hit him. The criminal ran away, without parting with his weapon. The peace officer went after him and fired again his revolver, this time hitting and killing him.

The policeman was tried and convicted for homicide and sentenced to *reclusion temporal* and the accessory penalties. He appeals from that judgment which must be reversed.

That killing was done in the performance of a duty. The deceased was under the obligation to surrender, and had no right, after evading service of his sentence, to commit assault and disobedience with a weapon in the hand, which compelled the policeman to resort to such an extreme means, which although it prove to be fatal, was justified by the circumstances.

Article 8, No. 11, of the Penal Code being considered, Felipe Delima committed no crime, and he is hereby acquitted with the costs *de oficio*. So ordered.

Araullo, C.J., Street, Malcolm, Avanceña, Villamor, Ostrand, and *Johns, JJ.,* concur.

SECOND DIVISION

[G.R. No. 124670. June 21, 2000.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **PATROLMAN DOMINGO BELBES**, *accused-appellant*.

D E C I S I O N

QUISUMBING, *J* :

Before the Regional Trial Court of Tabaco, Albay, Branch 18, Patrolman Domingo Belbes stood charged of Murder. The information against him reads:

> "That on or about the 16th of February, 1990 at 9:00 o'clock in the evening, more or less, inside the campus of Pili National High School, at Barangay Pili, Municipality of Bacacay, Province of Albay, Philippines and within the jurisdiction of this Honorable Court, the above-named accused, with treachery, taking advantage of nighttime, employing means to insure or afford impunity, with the use of high powered firearm, and with intent to kill, did then and there willfully, unlawfully, feloniously, suddenly, unexpectedly and without any warning, attack, fire and shoot successively with an armalite rifle (M-16) FERNANDO B. BATALLER while the latter was intoxicated, thereby hitting and inflicting upon him multiple serious and mortal wounds on his head, at the right lower face, the chest (front) at the left antero lateral approximately 5 cm. below but lateral to the left nipple, at the left lateral waistline, thereby lacerating the liver, hitting the stomach portions of the large and small intestines and lower vertebrae, and the chest (back) at the middle back and another at the left back, lateral level of the lower rib, which caused Fernando B. Batalier's direct and instantaneous death, to the damage and prejudice of his legal heirs.
>
> ACTS CONTRARY TO LAW." [1]

When arraigned, he pleaded not guilty.

The facts established during trial by the prosecution is summarized by the appellee in its brief, thus:

> "In the evening of February 16, 1990, appellant Pat. Domingo Belbes and Pat. Jose Pabon were assigned by the Bacacay Station Commander to maintain peace and order at the Junior and Senior Prom of Pili Barangay High School, Pili, Bacacay, Albay.
>
> Around 9:00 p.m. while Teacher-In-Charge Mila Ulanca, appellant, Pat. Pabon and Elmo Bes were watching the dance, two students, Riselle Banares and Juliana Basaysay, approached Mrs. Ulanca and said "Mam, it seems that there is somebody making trouble." Appellant and Pat. Pabon, armed with an armalite rifle and a .38 caliber revolver, respectively, responded forthwith. Moments after the two police officers left, bursts of gunfire — "Rat-tat-tat-tat-tat" filled the air. Fernando Bataller, a graduating student of Pili Barangay High School, was hit on different parts of his body and died.
>
> Moments before the gruesome incident, Fernando Bataller, then drunk, was in the company of Carlito Bataller and Rosalio Belista. While Fernando

was vomiting and holding on to the bamboo wall of the school's temporary building, the bamboo splits broke. At this instance, appellant and Pat. Pabon appeared. Without warning, appellant fired his gun. Fernando slumped on the ground, bathed with his own blood. Appellant and Pat Pahan fled from the crime scene.

Fernando was pronounced dead on arrival at the hospital. As shown in the autopsy report, Fernando suffered the following gunshot wounds: (1) head, located at the right lower face, skin, muscles, blood vessels, nerves, bone torn away; (2) chest (front, located at left, antero lateral approximately 5 cm. below but lateral to the left nipple, another gunshot wound on the same location with tattooing located at left lateral waistline; (3) chest (back) located at the middle back at the level of the lowest rib, skin and superficial muscles torn away, another gunshot wound located at the left back, lateral level of the lowest rib, with tattooing. (Citations omitted)" [2]

In his defense, the accused-appellant presented his version of the fatal incident, summed up by the trial court as follows:

"The accused, Domingo Belbes in his defense testified that he was at Pili Barangay High School with P/Cpl. Jose Pabon because they were detailed by their Station Commander. . . . At 9:00 p.m. two female students reported to them and Mrs. Ulanca that somebody was making trouble at the back of the temporary building. They were requested by Mrs. Ulanca to see what happened and they went to the place. There they came upon somebody who was making trouble and destroying the wall of the temporary building. He came to know that it was Fernando Bataller. Fernando Bataller had some companions, Carlito Bataller and certain Belista. Fernando Bataller was more than 20 years old at that time and Carlito was about Fernando's age. He saw Fernando destroying the wall of the temporary building which was made of bamboo splits. Pabon was in front of him. The two companions were prevailing upon Fernando. Fernando was drunk or a little bit tipsy. He was not vomiting but he smelled of wine. They approached Fernando and identified themselves as policemen. Fernando did not mind them. Fernando stabbed Pabon with a knife. Belbes knew because he saw the glint of the blade when the thrust was made on Pabon. Pabon and Bataller were about one (1) meter away from each other. Pabon was not hit, for he was able to move backward. Fernando made two thrusts on Pabon. After Pabon retreated because of the knife thrusts, he (Belbes) was also stabbed by Fernando. He was hit on his lower left shoulder. He was able to hold Fernando's hand because he wanted to get the knife from him. His firearm was slung on his shoulder. Fernando was able to free himself. Fernando made another thrust and Belbes moved to his left. Then he made a warning shot. After the warning shot, Fernando suddenly grabbed his firearm. Belista was quite aggressive at that moment, while Carlito wanted to kick him. Fernando was able to hold the barrel of the armalite. They struggled with each other and the gun went off considering that his armalite was semi-automatic, with one squeeze of the trigger one shot came out. During the process of grappling for the armalite he could not recall how many shots came out. When his service armalite went off he saw Fernando fall to the ground. When Fernando fell, he took the knife from his hand. The people gathered around them. They asked that Fernando be brought to the hospital. After one hour, the police mobile car arrived. They proceeded to the Police Station. There they turned over the knife to the Desk Officer. The knife is now with the Provincial Command." [3]

Defense witness Jose Pabon, also a policeman, who was present when the

incident happened, corroborated the testimony of the appellant. However, on cross-examination, Pabon belied the fact that the appellant fired a warning shot. Pabon likewise failed to mention anything about aggression on the part of the companions of the deceased, namely Carlito Bataller and Rosalio Belista. He only recalled that said companions ganged up on Belbes after he shot the deceased.

Finding the defense weak, while the evidence for the prosecution sufficiently strong, the trial court convicted the appellant of murder and sentenced him to *reclusion perpetua*.

In this appeal, counsel *de oficio* raised one issue:

> WAS THE TRIAL [Court] CORRECT IN HOLDING ACCUSED-APPELLANT GUILTY OF MURDER? [4]

We shall now consider this matter as well as the more basic issues of self-defense claimed by appellant and the credibility of the witness for the prosecution. Appellant policeman admits firing the fatal gunshots that hit the deceased student. But he claims that he did so in self-defense. He contends that he was only performing his official functions when he responded in the course of police duties to the information that somebody was making trouble and disturbing the peace. Being in charge of maintaining peace and order within the vicinity, he ascertained the veracity of the information given by the students concerned. He asserts that in the absence of intent and voluntariness, he cannot be faulted for the death of the deceased.

At the outset, we note that appellant questions the credibility of the sole eye-witness for the prosecution, Carlito Bataller. He states that Carlito is the cousin and friend of the deceased. In his view, Carlito had strong motive to falsely testify against him. Moreover, appellant says that Carlito kindled some moral guilt because he contributed to the sudden death of his cousin. Appellant alleges that if only Carlito had prevailed over Fernando (instead of tolerating the hostility of the deceased), he could have prevented the shooting incident.

Regrettably, appellant offers no material evidence to sufficiently support his claim of self-defense on the face of mortal danger while on police duty. The cross-examination of Carlito Bataller did not bear out his averments of fraternal bias and psychological guilt or moral taint in Carlito's testimony. The testimony of the single witness, if positive and clear, is sufficient to sustain a judgment of conviction, even in a charge for murder. [5] Moreover, when the issue boils down to the credibility of witnesses, the findings of the trial court deserve great respect since it is in a better position to observe the demeanor of the witnesses while testifying in court, and to discern its dimensions, both verbal and non-verbal. [6] The relationship of a witness to the victim does not necessarily diminish the former's credibility. [7]

It is a settled rule that the findings and conclusions of the trial court on the credibility of a witness deserve respect because it is in a better position to determine whether the witness was telling the truth or not, having observed the demeanor of the witness while testifying on the witness stand. [8] In the case at bar, there appears to be no cogent reason why we should not adhere to this rule.

Where the accused owns up to killing the victim in self-defense, the burden of evidence shifts to him. He must show by clear and convincing evidence that he indeed acted in self-defense, or in defense of a relative or a stranger. [9] To prove self-defense, the accused must show with clear an convincing evidence, that: (1) he is not the unlawful aggressor; (2) there was lack of sufficient provocation on his part; and (3) he

employed reasonable means to prevent or repel the aggression. Self-defense, like alibi, is a defense which can easily be concocted. It is well settled in this jurisdiction that once an accused had admitted that he inflicted the fatal injuries on the deceased, it was incumbent upon him, in order to avoid criminal liability, to prove the justifying circumstance claimed by him with clear, satisfactory and convincing evidence. He cannot rely on the weakness of the prosecution but on the strength of his own evidence, "for even if the evidence of the prosecution were weak it could not be disbelieved after the accused himself had admitted the killing." [10]

Appellant testified that upon responding to the report of two students, he and Patrolman Pabon, saw Fernando Bataller destroying the bamboo wall of the school's temporary building. Fernando appeared to be drunk and a little bit tipsy. They approached Fernando and identified themselves as policemen but the former ignored them. Instead, Fernando lunged with a knife at Patrolman Pabon but the latter avoided the thrust. Afterwards, Fernando also stabbed the appellant and hit his left shoulder. As another thrust was coming, appellant claims he fired a warning shot. Fernando grabbed the armalite and they struggled until the gun went off hitting Fernando, according to appellant.

We have serious questions on accused-appellant's claim of self-defense, on his part, against the alleged aggressiveness of the deceased student. First, why was the knife allegedly used by the deceased mishandled? It was not even subjected to fingerprinting. Second, why was the wound on appellant's shoulder medically examined only after the lapse of more than twenty-one hours? Was it possibly self-inflicted? According to the doctor who examined him, Dr. Evelyn Amador, it was a possibility. [11] Lastly, as observed by the trial court, if it was true that they grappled face to face with each other, why was the victim hit sideways, as testified to by Amador?

The time factor here appears significant. Mrs. Mila Ulanca testified that it only took about six seconds from the time Patrolman Belbes left his seat until she heard the burst of gunshots. [12] This testimony is not contradicted or rebutted.

Thus, appellant's claim of self-defense could not prosper. The evidence on record, however, reveals an incomplete justifying circumstance defined in Article 11, paragraph number 5 of the Revised Penal Code. [13] A person incurs no criminal liability when he acts in the fulfillment of a duty or in the lawful exercise of a right or office. But we must stress there are two requisites for this justifying circumstance: (a) that the offender acted in the performance of a duty or in the lawful exercise of a duty or in the lawful exercise of a right: and (b) that the injury or offense committed be the necessary consequence of the due performance of such right or office. [14] In the instant case, only the first requisite is present; admittedly appellant acted in the performance of his duty. However, the second requisite is lacking, for the killing need not be a necessary consequence of the performance of his duty. His duty is to maintain peace and order during the Junior and Senior Prom. But he exceeded such duty, in our view, when he fired his armalite without warning. No doubt, the concept of mitigating circumstances is founded on leniency in favor of an accused who has shown less perversity in the commission of an offense. [15] Though his protestation of innocence is unavailing, his offense could only be characterized as homicide, not murder, as hereafter shown.

On one hand, treachery did not attend the commission of the crime as to rule out murder. Treachery cannot be presumed but must be proved by clear and convincing evidence as conclusively as the killing itself. For the same to be considered as a qualifying circumstance, two conditions must concur: (a) the employment of means, method or manner of execution which would ensure the safety of the malefactor from

defensive or retaliatory acts on the part of the victim, no opportunity being given the latter to defend himself or to retaliate; and (b) the means, method or manner of execution were deliberately or consciously adopted by the offender. [16] There is no showing that the shooting was premeditated or that appellant, in shooting the victim, employed means, methods or forms to ensure its execution, without risk to himself arising from the defense which the offended victim might make. Likewise, mere suddenness of the attack does not necessarily imply treachery. [17]

On the other hand, the offense is definitely not reckless imprudence resulting in homicide because the shooting was intentional. [18] Illustrations of reckless imprudence resulting in homicide are: (1) exhibiting a loaded revolver to a friend, who was killed by the accidental discharge brought about by negligent handling; [19] or (2) discharging a firearm from the window of one's house and killing a neighbor who just at the moment leaned over the balcony front; [20] or (3) where the defendant, to stop a fist fight, fired his .45 caliber pistol twice in the air, and, as the bout continued, he fired another shot at the ground, but the bullet ricocheted and hit a bystander who died soon thereafter. [21] In this case, appellant intended to fire AT the victim, and in fact hit ONLY the victim.

We conclude that appellant is guilty only of homicide, mitigated by the incomplete justifying circumstance of fulfillment of duty. The penalty for homicide is *reclusion temporal*. There being one mitigating circumstance, the maximum of the penalty should be *reclusion temporal* in its minimum period, which is 12 years and 1 day to 14 years and 8 months. Applying the indeterminate sentence law, the minimum of said penalty should be taken from *prision mayor*.

WHEREFORE, the decision of the trial court convicting appellant Domingo Belbes of the crime of murder is hereby MODIFIED. Appellant is found guilty of the crime of homicide and sentenced to an indeterminate penalty of eight (8) years of *prision mayor* minimum, as minimum, to fourteen (14) years of *reclusion temporal* minimum, as maximum. He is also ordered to pay the heirs of the victim the amount of P50,000.00 as civil indemnity and P20,000.00 as moral damages, and to pay the costs.

SO ORDERED.

Bellosillo, Mendoza, Buena, and *De Leon, Jr., JJ.*, concur.

Footnotes

1. *Rollo*, p. 33.
2. *Id.* at 130-133.
3. *Id.* at 41-42.
4. *Id.* at 78.
5. *People v. Navarro*, 297 SCRA 331, 348-349 (1998) citing *People v. Hayahay, et al*, 279 SCRA 567 (1997); *People v. Tuvilla*, 259 SCRA 1 (1996); *People v. Panganiban*, 241 SCRA 91 (1995).
6. *People v. Uycoque*, 246 SCRA 769, 779 (1995).
7. *Ibid.*

8. *People v. Manalo*, 229 SCRA 479, 485 (1994).

9. *People v. Gutual*, 254 SCRA 37, 45 (1996).

10. *People v. Pay-an*, 84 SCRA 353, 362 (1978).

11. TSN, July 24, 1995, p. 11.

12. TSN, May 6, 1992, p. 8.

13. Art. 11 of the Revised Penal Code states:*Justifying Circumstances* — . . .

    5. Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.

14. *People v. Oanis*, 74 Phil. 257, 262-263 (1943).

15. *People v. Santos*, 255 SCRA 309, 311 (1996).

16. *People v. De Leon*, 262 SCRA 446, 450 (1996).

17. *Ibid.*

18. Article 365, Revised Penal Code.

19. Aquino, Revised Penal Code, Vol. III, p. 633.

20. *Ibid.*, citing *People v. Reodique*, 32 Phil. 458 (1915).

21. *Id.* at 635, citing *People v. Nocum*, 77 Phil. 1018 (1947); *Lampa v. People*, 73 Phil. 82 (1941).

EN BANC

[G.R. No. L-4445. February 28, 1955.]

THE PEOPLE OF THE PHILIPPINES, *plaintiff-appellee*, ***vs.*** **MANUEL BERONILLA, FILIPINO VELASCO, POLICARPO PACULDO, and JACINTO ADRIATICO,** *defendants-appellants*.

D E C I S I O N

REYES, **J.B.L.**, *J* :

This is an appeal by accused Manuel Beronilla, Policarpo Paculdo, Filipino Velasco, and Jacinto Adriatico from the judgment of the Court of First Instance of Abra (Criminal Case No. 70) convicting them of murder for the execution of Arsenio Borjal in the evening of April 18, 1945, in the town of La Paz, Province of Abra.

Arsenio Borjal was the elected mayor of La Paz, Abra, at the outbreak of war, and continued to serve as Mayor during the Japanese occupation, until March 10, 1943, when he moved to Bangued because of an attempt upon his life by unknown persons. On December 18, 1944, appellant Manuel Beronilla was appointed Military Mayor of La Paz by Lt. Col. R. H. Arnold, regimental commander of the 15th Infantry, Philippine Army, operating as a guerrilla unit in the province of Abra. Simultaneously with his appointment as Military Mayor, Beronilla received copy of a memorandum issued By Lt. Col. Arnold to all Military Mayors in Northern Luzon, authorizing them "to appoint a jury of 12 bolomen to try persons accused of treason, espionage, or the aiding and abetting (of) the enemy" (Exhibit 9). He also received from the Headquarters of the 15th Infantry a list of all puppet government officials of the province of Abra (which included Arsenio Borjal, puppet mayor of La Paz), with a memorandum instructing all Military Mayors to investigate said persons and gather against them complaints from people of the municipality for collaboration with the enemy (Exhibit 12-a).

Sometime in March, 1945, while the operations for the liberation of the province of Abra were in progress, Arsenio Borjal returned to La Paz with his family in order to escape the bombing of Bangued. Beronilla, pursuant to his instructions, placed Borjal under custody and asked the residents of La Paz to file complaints against him. In no time, charges of espionage, aiding the enemy, and abuse of authority were filed against Borjal; a 12-man jury was appointed by Beronilla, composed of Jesus Labuguen as chairman, and Benjamin Adriatico, Andres Afos, Juanito Casal, Santiago Casal, Benjamin Abella, Servillano Afos, Mariano Ajel, Felimon Labuguen, Felix Murphy, Pedro Turqueza, and Delfin Labuguen as members; while Felix Alverne and Juan Balmaceda were named prosecutors, Policarpo Paculdo as clerk of the jury, and Lino Inovermo as counsel for the accused. Later, Atty. Jovito Barreras voluntarily appeared and served as counsel for Borjal. Sgt. Esteban Cabanos observed the proceedings for several days upon instructions of Headquarters, 15th Infantry. The trial lasted 19 days up to April 10, 1945; the jury found Borjal guilty on all counts and imposed upon him the death penalty (Exhibits M to M-2). Pursuant to instructions from his superiors. Mayor Beronilla forwarded the records of the case to the Headquarters of the 15th Infantry for review. Said records were returned by Lt. Col. Arnold to Beronilla on April 18, 1945 with

the following instructions:

"HEADQUARTERS 3RD MILITARY DISTRICT
15TH INFANTRY, USAFIP
In the Field

16 April 1945

Msg. No. 337

Subject: Arsenio Borjal, Charges Against
To: Military Mayor of La Paz, Abra.

1. Returned herewith are the papers on the case of Arsenio Borjal.

2. This is a matter best handled by your government and whatever disposition you make of the case is hereby approved.

(Sgd. R. H. ARNOLD
Lieut.-Colonel, 15th Inf., PA
Commanding

Received April 18, 1945, 10:35 a.m

(Sgd.) MANUEL BERONILLA
Military Mayor, La Paz, Abra.

(Exhibits 8, 8-a)

and on the night of the same day, April 18, 1945, Beronilla ordered the execution of Borjal. Jacinto Adriatico acted as executioner and Antonio Palope as grave digger. Father Luding of the Roman Catholic Church was asked to administer the last confession to the prisoner, while Father Filipino Velasco of the Aglipayan Church performed the last rites over Borjal's remains. Immediately after the execution, Beronilla reported the matter to Col. Arnold who, in reply to Beronilla's report, sent him the following message:

"HEADQUARTERS 3RD MILITARY DISTRICT
15 INFANTRY, USAFIP
NL In the Field

22 April 1945

Msg. No. 398
Subject: Report and information Re Borjal case
To: Military Mayor Beronilla.

1. Received your letter dated 18 April 1945, subject, above.

2. My request that you withhold action in this case was only dictated because of a query from Higher Headquarters regarding same. Actually, I believe there was no doubt as to the treasonable acts of the accused Arsenio Borjal and I know that your trial was absolutely impartial and fair. Consequently, I can only compliment you for your impartial but independent way of handling the whole case.

Best regards,
(Sgd.) R. H. ARNOLD
Lieut.-Colonel, 15th Infantry, PA
Commanding

Received April 26, 1945 7:00 a.m.

(Sgd.) MANUEL BERONILLA
Military Mayor, La Paz, Abra"

(Exhibit 21, 21-a)

Two years thereafter, Manuel Beronilla as military mayor, Policarpo Paculdo as Clerk of the jury, Felix Alverne and Juan Balmaceda as prosecutors, Jesus Labuguen, Delfin Labuguen, Filemon Labuguen, Servillano Afos, Andres Afos, Benjamin Adriatico, Juanito Casel, Santiago Casel, Mariano Ajel, Felix Murphy, Benjamin Abella, and Pedro Turqueza as members of the jury, Jacinto Adriatico as executioner, Severo Afos as grave digger, and Father Filipino Velasco as an alleged conspirator, were indicted in the Court of First Instance of Abra for murder, for allegedly conspiring and confederating in the execution of Arsenio Borjal. Soon thereafter, the late President Manuel A. Roxas issued Executive Proclamation No. 8, granting amnesty to all persons who committed acts penalized under the Revised Penal Code in furtherance of the resistance to the enemy against persons aiding in the war efforts of the enemy. Defendant Jesus Labuguen, then a master sergeant in the Philippine Army, applied for and was granted amnesty by the Amnesty Commission, Armed Forces of the Philippines (Records, pp. 618-20). The rest of the defendants filed their application for amnesty with the Second Guerrilla Amnesty Commission, who denied their application on the ground that the crime had been inspired by purely personal motives, and remanded the case to the Court of First Instance of Abra for trial on the merits.

Upon motion of defense counsel, the case against defendant Jesus Labuguen, who had been granted amnesty by the Amnesty Commission of the Armed Forces of the Philippines, was ordered provisionally dismissed: defendant Juan Balmaceda was discharged from the information so that he might be utilized as state witness, altho actually he was not called to testify; while the case against defendants Antonio Palope (the grave digger) and Demetrio Afos (a boloman) was dismissed for lack of sufficient evidence.

Trial proceeded against the rest of the defendants; and on July 10, 1950, the Court below rendered judgment, acquitting the members of the jury and the grave digger Antonio Palope on the ground that they did not participate in the killing of Arsenio Borjal; acquitting defendants Jesus Labuguen, Felix Alverne, Severo Afos, and Lauro Parado upon insufficiency of evidence to establish their participation in the crime; but convicting defendants Manuel Beronilla, Policarpo Paculdo, Filipino Velasco, and Jacinto Adriatico as conspirator and co-principals of the crime of murder, and sentencing them to suffer imprisonment of from 17 years, 4 months and 1 day of *reclusion temporal to reclusion perpetua*, to indemnify the heirs of Arsenio Borjal jointly and severally in the amount of P4,000 with subsidiary imprisonment in case of insolvency, and each to pay one fourth of the costs. In convicting said defendants, the Court *a quo* found that while the crime committed by them fell within the provisions of the Amnesty Proclamation, they were not entitled to the benefits thereof because the crime was committed after the expiration of the time limit fixed by the amnesty proclamation;: i.e., that the deceased Arsenio Borjal was executed after the liberation of La Paz, Abra.

In view of the sentence meted by the Court below, the accused Beronilla, Paculdo, Velasco and Adriatico appealed to this Court.

The records are ample to sustain the claim of the defense that the arrest, prosecution and trial of the late Arsenio Borjal were done pursuant to express orders of the 15th Infantry Headquarters. (Exhibits 9 and 12-a), instructing all military mayors under its jurisdiction to gather evidence against puppet officials and to appoint juries of at least 12 bolomen to try the accused and find them guilty by two thirds vote. It is to be

noted that Arsenio Borjal was specifically named in the list of civilian officials to be prosecuted (Exhibit 12-b).

In truth, the prosecution does not seriously dispute that the trial and sentencing of Borjal was done in accordance with instructions of superior military authorities, altho it points to irregularities that were due more to ignorance of legal processes than personal animosity against Borjal. The state, however, predicates its case principally on the existence of the radiogram Exhibit H from Colonel Volckmann, overall area commander, to Lt. Col. Arnold, specifically calling attention to the illegality of Borjal's conviction and sentence, and which the prosecution claims was known to the accused Beronilla. Said message is as follows:

"Message:

VOLCKMAN TO ARNOLD CLN UNDERSTAND THAT MUNICIPALITIES OF ABRA HAVE ORGANIZED JURY SYSTEM PD BELIEVE THAT THIS BODY IS ILLEGAL AND CANNOT TRY PERSONS FOR ESPIONAGE OR COLLABORATION NOR METE OUT PUNISHMENTS THEREOF PD SPECIFIC INSTANCE IS BROUGHT TO YOUR ATTENTION FOR PROPER AND IMMEDIATE ACTION ON ONE ARSENIO BORJAL OF LA PAZ WHO HAS BEEN TRIED CMA CONVICTED AND SENTENCED TO BE HANGED PD REPORT ACTION TAKEN BY YOU ON THIS MATTER PD MSG BEGINS CLN"

(EXH. H)

The crucial question thus becomes whether or not this message, originally sent to Arnold's quarters in San Esteban, Ilocos Sur, was relayed by the latter to appellant Beronilla in La Paz, Abra, on the morning of April 18, 1945, together with the package of records of Borjal's trial that was admittedly returned to and received by Beronilla on that date, after review thereof by Arnold (Exhibits 8-8-a). Obviously, if the Volckmann message was known to Beronilla, his ordering the execution of Borjal on the night of April 18, 1945 can not be justified.

We have carefully examined the evidence on this important issue, and find no satisfactory proof that Beronilla did actually receive the radiogram Exhibit H or any copy thereof. The accused roundly denied it. The messenger, or "runner", Pedro Molina could not state what papers were enclosed in the package he delivered to Beronilla on the morning in question, nor could Francisco Bayquen (or Bayken), who claimed to have been present at the delivery of the message, state the contents thereof.

The only witness who asserted that Beronilla received and read the Volckmann message, Exhibit H, was Rafael Balmaceda, a relative of Borjal, who claimed to have been, as Beronilla's bodyguard, present at the receipt of the message and to have read it over Beronilla's shoulder. This testimony, however, can not be accorded credence, for the reason that in the affidavit executed by this witness before Fiscal Antonio of Abra (Exhibit 4), Balmaceda failed to make any mention of the reading, or even the receipt, of the message. In the affidavit, he stated:

"Q. In your capacity as policeman, do you know of any unusual occurrence that transpired in La Paz, Abra?. — A. Yes, sir.

Q. Will you state what is that event? — A. On April 17, 1945, I was assigned as guard at the Presidencia where Mayor Arsenio Borjal is confined. On the 18th of April, 1945, six bolomen came to me while I was on duty as guard, that Mayor Borjal should be tied, on orders of Mayor Manuel Beronilla. Mayor Borjal wanted to know the reason why he would be tied, as he has not yet learned of the decision of the jury against him. Mayor Borjal wrote a note to Mayor Beronilla, asking the reason for his

being ordered to be tied. I personally delivered the note of Borjal to Mayor Beronilla. Mayor Beronilla did not answer the note, but instead told me that I should tie Mayor Borjal, as tomorrow he would die, as he cannot escape. I returned to the Presidencia, and Mayor Borjal was tied, as that was the order of Mayor Beronilla.".

The plain import of the affidavit is that the witness Rafael Balmaceda was not with Beronilla when the message arrived, otherwise Beronilla would have given him his orders direct, as he (Balmaceda) testified later at the trial. Moreover, it is difficult to believe that having learned of the contents of the Volckmann message, Balmaceda should not have relayed it to Borjal, or to some member of the latter's family, considering that they were relatives. In addition, Balmaceda was contradicted by Bayken, another prosecution witness, as to the hatching of the alleged conspiracy to kill Borjal. Balmaceda claimed that the accused-appellants decided to kill Borjal in the early evening of April 18, while Bayken testified that the agreement was made about ten o'clock in the morning, shortly after the accused had denied Borjal's petition to be allowed to hear mass.

Upon the other hand, Beronilla's conduct belies his receipt of the Volckmann message. Had he executed Borjal in violation of superior orders, he would not have dared to report it to Arnold's headquarters on the very same day, April 18th, 1945, as he did (Exhibit 20), half an hour after the execution. And what is even more important, if Borjal was executed contrary to instructions, how could Lt. Colonel Arnold on April 22, 1945, write in reply (Exhibits 21, 21-a) "I can only compliment you for your impartial but independent way of handling the whole case" instead of berating Beronilla and ordering his court martial for disobedience?

Our conclusion is that Lt. Col. Arnold, for some reason that can not now be ascertained, failed to transmit the Volckmann message to Beronilla. And this being so, the charge of criminal conspiracy to do away with Borjal must be rejected, because the accused had no need to conspire against a man who was, to their knowledge, duly sentenced to death.

The state claims that the appellants held grudges against the late Borjal. Even so, it has been already decided that the concurrence of personal hatred and collaboration with the enemy as motives for a liquidation does not operate to exclude the case from the benefits of the Amnesty claimed by appellants, since then "it may not be held that the manslaughter stemmed from purely personal motives" (People vs. Barrioquinto, * G. R. Nos. L-2011 and 2267, June 30, 1951). Actually, the conduct of the appellants does not dispose that these appellants were impelled by malice (dolo). The arrest and trial of Borjal were made upon express orders of the higher command; the appellants allowed Borjal to be defended by counsel, one of them (attorney Jovito Barreras) chosen by Borjal's sister; the trial lasted nineteen (19) days; it was suspended when doubts arose about its legality, and it was not resumed until headquarters (then in Langangilang, Abra) authorized its resumption and sent an observer (Esteban Cabanos, of the S-5) to the proceedings, and whose suggestions on procedure were followed; and when the verdict of guilty was rendered and death sentence imposed, the records were sent to Arnold's headquarters for review, and Borjal was not punished until the records were returned eight days later with the statement of Arnold that "whatever disposition you make of the case is hereby approved" (Exhibit 8), which on its face was an assent to the verdict and the sentence. The lower Court, after finding that the late Arsenio Borjal had really committed treasonable acts, (causing soldiers and civilians to be tortured, and hidden American officers to be captured by the Japanese) expressly declared that "the Court is convinced that it was not for political or personal reason that the accused

decided to kill Arsenio Borjal" (Decision, p. 9; Record, p. 727).It appearing that the charge is the heinous crime of murder, and that the accused-appellants acted upon orders, of a superior officers that they, as military subordinates, could not question, and obeyed in good faith, without being aware of their illegality, without any fault or negligence on their part, we can not say that criminal intent has been established (U. S. vs. Catolico, 18 Phil., 507; Peo. vs. Pacana, 47 Phil., 48; Sent. of the Tribunal Supremo of Spain, 3 July 1886; 7 January 1901; 24 March 1900; 21 Feb. 1921; 25 March 1929). *Actus non facit reum nisi mens sit rea.*

"To constitute a crime, the act must, except in certain crimes made such by statute, be accompanied by a criminal intent, or by such negligence or indifference to duty or to consequences, as, in law, is equivalent to criminal intent. The maxim is, *actus non facit reum, nisi mens rea-a* is not committed if the mind of the person performing the act complained of be innocent." (U. S. vs. Catolico, 18 Phil., 507).

But even assuming that the accused-appellants did commit the crime with which they are charged, the Court below should not have denied their claim to the benefits of the Guerrilla Amnesty Proclamation No. 8 (42 Off. Gaz., 2072) of the ground that the slaying of Arsenio Borjal took place after actual liberation of the area from enemy control and occupation. The evidence on record regarding the date of liberation of La Paz, Abra, is contradictory. The Military Amnesty Commission that decided the case of one of the original accused, Jesus Labuguen, held that La Paz, Abra, was liberated on July 1, 1945, according to its records; and this finding was accepted by Judge Letargo when he dismissed the case against said accused on March 15, 1949. On the other hand, Judges Bocar and Hilario, who subsequently took cognizance of the case, relied on Department Order No. 25, of the Department of the Interior, dated August 12, 1948, setting the liberation of the Province of Abra on April 4, 1945, fifteen days before Borjal was slain. The two dates are not strictly contradictory; but even if they are, we believe these appellants should be given the benefit of the Presidential directive to the Amnesty Commissions (Adm. Order No. 11, of October 2, 1946) that "any reasonable doubt as to whether a given case falls within the (amnesty) proclamation shall be resolved in favor of the accused" (42 Off. Gaz., 2360), as was done in People vs. Gajo, 84 Phil., 107, 46 Off. Gaz., (No. 12) p. 6093.

For the reasons stated, the judgment appealed from is reversed and the appellants are acquitted, with costs de oficio.

Paras, C. J., Pablo, Bengzon, Padilla, Montemayor, Reyes, A., Jugo, Bautista Angelo and *Concepcion, JJ.,* concur.

Footnotes

* 89 Phil., 414.